SUPPLEMENT NO. 35
February 2026

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-090, enacted October 28, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xvii	xiii—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
CD15:5—CD15:18	CD15:5—CD15:31
CD17:1	CD17:1
CCT:23, CCT:24	CCT:23, CCT:24

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SUPPLEMENT NO. 34
February 2025

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-088, enacted December 3, 2024

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xvii	xiii—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
CD8:3, CD8:4	CD8:3, CD8:4
CD8:33—CD8:35	CD8:33—CD8:36
CD12:9—CD12:22	CD12:9—CD12:34
CD15:3—CD15:10.2	CD15:3—CD15:10.3
CCT:23	CCT:23, CCT:24
CDi:1—CDi:129	CDi:1—CDi:129

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SUPPLEMENT NO. 33
October 2024

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-032, enacted May 7, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xvii	xiii—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
CD2:11—CD2:14	CD2:11—CD2:14
CD4:1—CD4:6	CD4:1—CD4:6.2
CD8:5, CD8:6	CD8:5, CD8:6
CD10:3, CD10:4	CD10:3, CD10:4
CD14:12.6.3—CD14:12.6.5	CD14:12.6.3—CD14:12.6.5
CD21:18.7—CD21:20	CD21:19—CD21:20.3
CD23:43—CD23:44.1	CD23:43—CD23:44.1
CCT:23	CCT:23
CDi:1—CDi:129	CDi:1—CDi:129

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SUPPLEMENT NO. 32
February 2024

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-117, enacted October 17, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xvii	xiii—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
	SH:7
CD2:7, CD2:8	CD2:7, CD2:8
CD5:3	CD5:3
CD5:27—CD5:34	CD5:27—CD5:34
CD10:1—CD10:6	CD10:1—CD10:6
CD14:3, CD14:4	CD14:3, CD14:4
CD14:12.1—CD14:12.4	CD14:12.1—CD14:12.4.1
CD14:21	CD14:21—CD14:27
CD15:10.1—CD15:18	CD15:10.1—CD15:18
CD21:5—CD21:10	CD21:5—CD21:10.1
CD21:18.1, CD21:18.2	CD21:18.1—CD21:18.2.1
CD22:1—CD22:2.1	CD22:1—CD22:2.1
CD22:11—CD22:16	CD22:11—CD22:16.7
CD23:7—CD23:8.1	CD23:7, CD23:8
CD23:36.7—CD23:36.16	CD23:36.7—CD23:36.16
CD23:43, CD23:44	CD23:43, CD23:44
CD24:24.3—CD24:24.5	CD24:24.3—CD24:24.5
CCT:23	CCT:23
SLT:1—SLT:3	SLT:1—SLT:3
CDi:1—CDi:129	CDi:1—CDi:128

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SUPPLEMENT NO. 31
June 2023

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-037, enacted April 4, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
v	v
xiii—xvii	xiii—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
CD5:3—CD5:10.1	CD5:3—CD5:10.1
CD5:25	CD5:25—CD5:34
CD9:7, CD9:8	CD9:7, CD9:8
CD11:5	CD11:5
CD11:91	CD11:91, CD11:92
CD14:1—CD14:8.2	CD14:1—CD14:8.2.1
CD14:12.6.3, CD14:12.6.4	CD14:12.6.3—CD14:12.6.5
CD21:37, CD21:38	CD21:37, CD21:38
CD21:43, CD21:44	CD21:43, CD21:44
CD23:36.13—CD23:36.16.1	CD23:36.13—CD23.36.16.2
CD23:43, CD23:44	CD23:43, CD23:44
CCT:23	CCT:23
SLT:1—SLT:3	SLT:1—SLT:3
CDi:15—CDi:18	CDi:15—CDi:18
CDi:33, CDi:34	CDi:33, CDi:34
CDi:45—CDi:46.1	CDi:45—CDi:46.1
CDi:53—CDi:56	CDi:53—CDi:56.1
CDi:63—CDi:68	CDi:63—CDi:68
CDi:77, CDi:78	CDi:77—CDi:78.1
CDi:84.1—CDi:90	CDi:85—CDi:90
CDi:99—CDi:104	CDi:99—CDi:104
CDi:121, CDi:122	CDi:121, CDi:122

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SUPPLEMENT NO. 30, Rev.
April 2023

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2022-077, enacted August 2, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii— xvi	xiii— xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD11:1—CD11:8	CD11:1—CD11:25
CDi:21, CDi:22	CDi:21, CDi:22
CCT:21, CCT:22	CCT:21—CCT:23
SLT:1, SLT:2	SLT:1—SLT:3
CDi:9, CDi:10	CDi:9—CDi:10.1
CDi:17, CDi:18	CDi:17, CDi:18
CDi:91—CDi:92.1	CDi:91—CDi:92.1

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SUPPLEMENT NO. 30
November 2022

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2022-077, enacted August 2, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii— xvi	xiii— xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
CD2:1, CD2:2	CD2:1, CD2:2
CD2:5—CD2:10	CD2:5—CD2:10.1
CD2:18.9—CD2:20	CD2:19—CD2:20.1
CD5:17—CD5:20	CD5:17—CD5:20
CD5:25	CD5:25
CD8:5—CD8:8.4	CD8:5—CD8:8.4.1
CD11:1, CD11:2	CD11:1, CD11:2
CD11:5—CD11:44	CD11:5—CD11:8
CD14:3, CD14:4	CD14:3
CD14:21—CD14:34	CD14:21
CD15:3—CD15:6	CD15:3—CD15:6.1
CD23:1, CD23:2	CD23:1, CD23:2
CD23:36.15—CD23:36.16.1	CD23:36.15—CD23:36.16.1
CCT:21, CCT:22	CCT:21, CCT:22
SLT:1—SLT:3	SLT:1, SLT:2
CDi:1, CDi:2	CDi:1, CDi:2
CDi:7—CDi:10	CDi:7—CDi:10
CDi:17, CDi:18	CDi:17, CDi:18
CDi:21—CDi:30	CDi:21—CDi:30
CDi:39—CDi:42	CDi:39—CDi:42
CDi:45—CDi:46.1	CDi:45—CDi:46.1
CDi:57, CDi:58	CDi:57, CDi:58
CDi:61, CDi:62	CDi:61, CDi:62
CDi:65, CDi:66	CDi:65, CDi:66

Remove Old Pages	*Insert New Pages*
CDi:73—CDi:80	CDi:73—CDi:80
CDi:87, CDi:88	CDi:87, CDi:88
CDi:91, CDi:92	CDi:91—CDi:92.1
CDi:97, CDi:98	CDi:97, CDi:98
CDi:101, CDi:102	CDi:101, CDi:102
CDi:117, CDi:118	CDi:117, CDi:118
CDi:121, CDi:122	CDi:121, CDi:122
CDi:127—CDi:129	CDi:127—CDi:129

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SUPPLEMENT NO. 29
April 2022

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-099, enacted December 21, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
v	v
xiii, xiv	xiii, xiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
CD2:1, CD2:2	CD2:1, CD2:2
CD2:5—CD2:14	CD2:5—CD2:14
CD2:18.1, CD2:18.2	CD2:18.1, CD2:18.2
CD6:3—CD6:27	CD6:3—CD6:18
CD15:3—CD15:10	CD15:3—CD15:10.2
CD17:1	CD17:1
CCT:21, CCT:22	CCT:21, CCT:22
CDi:21—CDi:28	CDi:21—CDi:28
CDi:45, CDi:46	CDi:45—CDi:46.1
CDi:65, CDi:66	CDi:65, CDi:66
CDi:79—CDi:84	CDi:79—CDi:84.1

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SUPPLEMENT NO. 28
October 2021

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-013, enacted August 20, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv— xviii	xv— xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD17:1—CD17:208	CD17:1
CCT:21, CCT:22	CCT:21, CCT:22
SLT:1—SLT:3	SLT:1—SLT:3
CDi:1—CDi:175	CDi:1—CDi:129

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SUPPLEMENT NO. 27
August 2021

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-043, enacted May 18, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv— xviii	xv— xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
CD11:7—CD11:8.1	CD11:7—CD11:8.1
CD14:1—CD14:4	CD14:1—CD14:4
CD14:12.11—CD14:12.13	CD14:12.11—CD14:12.15
CD17:1—CD17:2.1	CD17:1—CD17:2.1
CD17:83—CD17:86.2	CD17:83—CD17:86.2
CD17:86.8.1, CD17:86.8.2	CD17:86.8.1, CD17:86.8.2
CD17:187—CD17:190	CD17:187—CD17:190.1
CD23:17—CD23:20	CD23:17—CD23:20.2
CD23:27, CD23:28	CD23:27—CD23:28.1
CD23:33—CD23:36	CD23:33—CD23:36
CD23:36.7—CD23:36.16	CD23:36.7—CD23:36.16.1
CCT:21, CCT:22	CCT:21, CCT:22
SLT:1—SLT:3	SLT:1—SLT:3
CDi:31, CDi:32	CDi:31—CDi:32.1
CDi:37, CDi:38	CDi:37, CDi:38
CDi:61, CDi:62	CDi:61, CDi:62
CDi:77, CDi:78	CDi:77—CDi:78.1
CDi:91, CDi:92	CDi:91—CDi:92.1
CDi:96.1, CDi:96.2	CDi:96.1, CDi:96.2
CDi:129, CDi:130	CDi:129, CDi:130
CDi:139, CDi:140	CDi:139, CDi:140
CDi:147, CDi:148	CDi:147, CDi:148
CDi:157, CDi:158	CDi:157, CDi:158
CDi:165—CDi:168	CDi:165—CDi:168.1

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SUPPLEMENT NO. 26
January 2021

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-100, enacted December 15, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
CD2:18.1, CD2:18.2	CD2:18.1, CD2:18.2
CD5:19, CD5:20	CD5:19—CD5:20.1
CD13:1	CD13:1
CD13:3, CD13:4	CD13:3, CD13:4
CD17:1, CD17:2	CD17:1, CD17:2
CD17:45, CD17:46	CD17:45—CD17:46.1
CD17:196.5—CD17:196.6.1	CD17:196.5—CD17:196.6.1
CD23:36.9, CD23:36.10	CD23:36.9, CD23:36.10
CCT:21, CCT:22	CCT:21, CCT:22
SLT:1, SLT:2	SLT:1, SLT:2
CDi:29—CDi:32	CDi:29—CDi:32

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SUPPLEMENT NO. 25
July 2020

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-046, enacted June 16, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5, SH:6
CD5:5—CD5:10.1	CD5:5—CD5:10.1
CD9:7, CD9:8	CD9:7, CD9:8
CD17:124.4.1—CD17:124.6	CD17:124.5—CD17:124.6.1
CD17:196.3—CD17:196.6.1	CD17:196.3—CD17:196.6.1
CD23:36.15—CD23:36.18	CD23:36.15—CD23:36.18
CD23:43, CD23:44	CD23:43, CD23:44
CCT:21	CCT:21

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SUPPLEMENT NO. 24
January 2020

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-099, enacted December 3, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
v	v
xiii— xviii	xiii— xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
CD2:3	CD2:3
CD2:21	CD2:21—CD2:25
CD5:1—CD5:3	CD5:1—CD5:3
CD5:13—CD5:16	CD5:13—CD5:16.6
CD6:25, CD6:26	CD6:25, CD6:26
CD8:1—CD8:8.2	CD8:1—CD8:8.2.1
CD8:8.7—CD8:12	CD8:9—CD8:12.4
CD11:44.1—CD11:44.2.1	CD11:44.1—CD11:44.2.1
CD12:1, CD12:2	CD12:1, CD12:2
CD12:4.1—CD12:8	CD12:5—CD12:8.3
CD14:1—CD14:3	CD14:1—CD14:4
CD14:7—CD14:8.2	CD14:7—CD14:8.3
CD14:21	CD14:21—CD14:34
CD15:3—CD15:4.1	CD15:3—CD15:4.1
CD17:1, CD17:2	CD17:1—CD17:2.1
CD17:55, CD17:56	CD17:55, CD17:56
CD17:64.1, CD17:64.2	CD17:64.1, CD17:64.2
CD20:5—CD20:7	CD20:5—CD20:7
CD23:1—CD23:6	CD23:1—CD23:6.1
CD23:10.1—CD23:36.2	CD23:11—CD23:36.18
CCT:19—CCT:21	CCT:19—CCT:21
SLT:1—SLT:3	SLT:1—SLT:3
CDi:1—CDi:12	CDi:1—CDi:12.1
CDi:17, CDi:18	CDi:17—CDi:18.1

Remove Old Pages	*Insert New Pages*
CDi:24.1—CDi:26.1	CDi:25—CDi:26.2
CDi:31—CDi:36	CDi:31—CDi:36.1
CDi:39—CDi:42	CDi:39—CDi:42
CDi:47—CDi:52	CDi:47—CDi:52.1
CDi:55—CDi:96	CDi:55—CDi:96.5
CDi:129—CDi:132	CDi:129—CDi:132
CDi:137, CDi:138	CDi:137, CDi:138
CDi:143—CDi:150.1	CDi:143—CDi:150.1
CDi:157—CDi:175	CDi:157—CDi:175

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SUPPLEMENT NO. 23
August 2019

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-042, enacted June 18, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
v	v
xiii— xviii	xiii— xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
	SH:5
	CD8:3, 8-4 (old page may be inadvertently missing from your book)
CD8:27—CD8:28.6	CD8:27—CD8:28.7
CD14:1—CD14:3	CD14:1—CD14:3
CD14:12.6.1—CD14:12.6.3	CD14:12.6.1—CD14:12.6.4
CD17:16.1—CD17:18	CD17:16.1—CD17:17
CD17:19, CD17:20	CD17:19, CD17:20
CD17:57, CD17:58	CD17:57, CD17:58
CD17:64.1, CD17:64.2	CD17:64.1, CD17:64.2
CD17:135—CD17:142	CD17:135—CD17:142.3
CD17:193—CD17:194.2	CD17:193—CD17:194.2
CD19:1	CD19:1
CD19:3—CD19:6.1	CD19:3—CD19:6.1
CD23:1—CD23:3	CD23:1—CD23:3
CD23:25—CD23:36.1	CD23:25—CD23:36.2
CCT:19, CCT:20	CCT:19—CCT:21
CDi:22.1—CDi:24	CDi:23—CDi:24.1
CDi:33, CDi:34	CDi:33, CDi:34
CDi:37, CDi:38	CDi:37, CDi:38
CDi:49, CDi:50	CDi:49, CDi:50
CDi:61, CDi:62	CDi:61, CDi:62
CDi:65, CDi:66	CDi:65, CDi:66
CDi:73, CDi:74	CDi:73, CDi:74
CDi:77, CDi:78	CDi:77, CDi:78
CDi:87, CDi:88	CDi:87—CDi:88.1

Remove Old Pages	*Insert New Pages*
CDi:93—CDi:96	CDi:93—CDi:96
CDi:129, CDi:130	CDi:129—CDi:130.1
CDi:139, CDi:140	CDi:139, CDi:140
CDi:143—CDi:150	CDi:143—CDi:150.1
CDi:156.1—CDi:158	CDi:157—CDi:158.1
CDi:163—CDi:168	CDi:163—CDi:168.1

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SUPPLEMENT NO. 22
September 2018

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-027, enacted June 19, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv— xviii	xv— xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD2:17—CD2:18.2	CD2:17—CD2:18.2
CD14:1, CD14:2	CD14:1, CD14:2
CD14:11—CD14:12.6	CD14:11—CD14:12.6.3
CD15:15—CD15:18	CD15:15—CD15:18
CD17:86.8.3—CD17:86.10	CD17:86.8.3—CD17:86.9
CD17:124.17, CD17:124.18	CD17:124.17—CD17:124.18.1
CD17:190.1—CD17:194.1	CD17:191—CD17:194.3
CD21:1—CD21:2.1	CD21:1—CD21:2.1
CD21:19—CD21:36	CD21:19—CD21:46
CD23:25—CD23:34.1	CD23:25—CD23:34.1
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SLT:1—SLT:3	SLT:1—SLT:3
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CDi:45, CDi:46	CDi:45, CDi:46
CDi:49—CDi:54.1	CDi:49—CDi:54.1
CDi:61, CDi:62	CDi:61, CDi:62
CDi:75—CDi:79	CDi:74.1—CDi:79
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SUPPLEMENT NO. 21
September 2017

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2017-049, enacted June 20, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD17:14.1—CD17:14.3	CD17:14.1—CD17:14.3
CD17:19, CD17:20	CD17:19, CD17:20
CD17:64.1, CD17:64.2	CD17:64.1, CD17:64.2
CD17:127, CD17:128	CD17:127—CD17:128.1
CD23:25—CD23:34.1	CD23:25—CD23:34.1
CD23:43—CD23:44.1	CD23:43—CD23:44.1
CCT:19, CCT:20	CCT:19, CCT:20
CDi:37, CDi:38	CDi:37—CDi:38.1
CDi:79, CDi:80	CDi:78.1—CDi:79
CDi:119—CDi:122.1	CDi:119—CDi:122.1

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SUPPLEMENT NO. 20
March 2017

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-109, enacted December 6, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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xiii— xviii	xiii— xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
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CD2:17—CD2:18.4	CD2:17—CD2:18.4.1
CD4:1—CD4:15	CD4:1—CD4:17
CD5:5—CD5:10.1	CD5:5—CD5:10.1
CD9:7, CD9:8	CD9:7—CD9:8.1
CD12:1, CD12:2	CD12:1, CD12:2
CD12:7—CD12:12.2	CD12:7—CD12:12.3
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CDi:79—CDi:80.2	CDi:79—CDi:80.2
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CDi:175	CDi:175

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SUPPLEMENT NO. 19
November 2016

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-063, enacted August 2, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
xiii, xiv	xiii, xiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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	CD2:5—CD2:18.9
CD17:81—CD17:86.8	CD17:81—CD17:86.8.3
CD17:196.5—CD17:196.6.1	CD17:196.5—CD17:196.6.1
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CDi:80.3, CDi:80.4	CDi:80.3, CDi:80.4
CDi:87, CDi:88	CDi:87—CDi:88.1
CDi:111, CDi:112	CDi:111, CDi:112
CDi:117, CDi:118	CDi:117, CDi:118
CDi:121, CDi:122	CDi:121—CDi:122.1
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SUPPLEMENT NO. 18
May 2016

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-002, enacted February 2, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii, xiv	xiii, xiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
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CDi:43—CDi:48	CDi:43—CDi:48
CDi:55—CDi:64	CDi:55—CDi:64.1
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SUPPLEMENT NO. 17
January 2016

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-102, enacted December 15, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
v	v
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD24:3	CD24:3
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SLT:1—SLT:3	SLT:1—SLT:3
CDi:25, CDi:26	CDi:25, CDi:26
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SUPPLEMENT NO. 16
September 2015

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-046, enacted June 16, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3, SH:4
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CD20:5, CD20:6	CD20:5, CD20:6
CD21:1, CD21:2	CD21:1—CD21:2.1
CD21:18.9—CD21:31	CD21:19—CD21:36
CD23:5—CD23:8	CD23:5—CD23:8.1
CD23:25—CD23:28	CD23:25—CD23:28
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SUPPLEMENT NO. 15
February 2015

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-103, enacted December 2, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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xiii— xviii	xiii— xviii
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CD3:1	CD3:1
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CD11:41—CD11:44.2	CD11:41—CD11:44.2.1
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CD17:53—CD17:56	CD17:53—CD17:56
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CD17:86.7—CD17:86.10	CD17:86.7—CD17:86.10.2
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CDi:52.1—CDi:54	CDi:53—CDi:54.1
CDi:73—CDi:80	CDi:73—CDi:80
CDi:85—CDi:94	CDi:85—CDi:94.1
CDi:111—CDi:114	CDi:111—CDi:114
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CDi:143—CDi:146.1	CDi:143—CDi:146.1
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SUPPLEMENT NO. 14
March 2014

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-115, enacted December 10, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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xiii— xviii	xiii— xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD2:15—CD2:18	CD2:15—CD2:18.1
CD5:5—CD5:10.1	CD5:5—CD5:10.1
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CD17:86.6.1—CD17:86.17	CD17:86.7—CD17:86.17
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CDi:9, CDi:10	CDi:9, CDi:10
CDi:45—CDi:48	CDi:45—CDi:48
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SUPPLEMENT NO. 14
March 2014

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-115, enacted December 10, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
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xiii— xviii	xiii— xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD2:15—CD2:18	CD2:15—CD2:18.1
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CD17:63—CD17:64.2	CD17:63—CD17:64.2
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CD17:196.3—CD17:196.6	CD17:196.3—CD17:196.6.1
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Remove Old Pages	*Insert New Pages*
SLT:1—SLT:3	SLT:1—SLT:3
CDi:3, CDi:4	CDi:3, CDi:4
CDi:9, CDi:10	CDi:9, CDi:10
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SUPPLEMENT NO. 13
February 2013

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-105, enacted December 18, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv— xviii	xv— xviii
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CD17:86.9, CD17:86.10	CD17:86.9—CD17:86.10.1
CD17:111—CD17:114	CD17:111—CD17:114.1
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CD20:1	CD20:1
CD20:5, CD20:6	CD20:5—CD20:7
CD23:1—CD23:3	CD23:1—CD23:3

Remove Old Pages	*Insert New Pages*
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CD23:43, CD23:44	CD23:43—CD23:44.1
CCT:17	CCT:17
SLT:1—SLT:3	SLT:1—SLT:3
CDi:4.1—CDi:6	CDi:5—CDi:6.1
CDi:9, CDi:10	CDi:9, CDi:10
CDi:13, CDi:14	CDi:13, CDi:14
CDi:19—CDi:22	CDi:19—CDi:22.1
CDi:49, CDi:50	CDi:49—CDi:50.1
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CDi:105—CDi:108	CDi:105—CDi:108.1
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CDi:123, CDi:124	CDi:123, CDi:124
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CDi:153, CDi:154	CDi:153—CDi:154.1
CDi:159, CDi:160	CDi:159—CDi:160.1
CDi:165—CDi:170	CDi:165—CDi:170.1

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SUPPLEMENT NO. 12
April 2012

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2011-103, enacted January 17, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii— xviii	xiii— xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1, SH:2
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CD2:15—CD2:20	CD2:15—CD2:21
CD8:9, CD8:10	CD8:9, CD8:10
CD11:5—CD11:42	CD11:5—CD11:42.1
CD14:3	CD14:3
CD14:19, CD14:20	CD14:19—CD14:21
CD17:15, CD17:16	CD17:15—CD17:16.1
CD17:19—CD17:21	CD17:19—CD17:21
CD17:27—CD17:30	CD17:27—CD17:30.1
CD17:47—CD47:48.2	CD17:47—CD47:48.2
CD17:64.1, CD17:64.2	CD17:64.1, CD17:64.2
CD17:124.3, CD17:124.4	CD17:124.3—CD17:124.4.1
CD17:127, CD17:128	CD17:127, CD17:128
CD17:153, CD17:154	CD17:153, CD17:154
CD17:183, CD17:184	CD17:183, CD17:184
CD17:193, CD17:194	CD17:193—CD17:194.1
CD17:196.3—CD17:196.4.4	CD17:196.3—CD17:196.4.4
CD21:1—CD21:18	CD21:1—CD21:18.10
CD23:1—CD23:3	CD23:1—CD23:3
CD23:33—CD23:52	CD23:33—CD23:49
CD24:1—CD24:24	CD24:1—CD24:24.5
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SLT:1, SLT:2	SLT:1—SLT:3
CDi:1—CDi:4.1	CDi:1—CDi:4.1
CDi:9—CDi:28	CDi:9—CDi:28

Remove Old Pages	*Insert New Pages*
CDi:32.1—CDi:80.2	CDi:33—CDi:80.4
CDi:84.1—CDi:95	CDi:85—CDi:96
CDi:131—CDi:173	CDi:131—CDi:175

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SUPPLEMENT NO. 11
December 2011

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2011-064, enacted August 30, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii— xviii	xiii— xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents) SH:1 (following Checklist of up-to-date pages)
CD2:1—CD2:4.2	CD2:1—CD2:4.2
CD2:15—CD2:19	CD2:15—CD2:20
CD6:3—CD6:18	CD6:3—CD6:27
CD11:5—CD11:8	CD11:5—CD11:8.1
CD11:23, CD11:24	CD11:23—CD11:24.1
CD11:35—CD11:44	CD11:35—CD11:44.4
CD12:1—CD12:3	CD12:1—CD12:3
CD12:7—CD12:8.1	CD12:7—CD12:8.2
CD14:1—CD14:3	CD14:1—CD14:3
CD14:10.1—CD14:12	CD14:11—CD14:12.13
CD17:3, CD17:4	CD17:3, CD17:4
CD17:19—CD17:22	CD17:18.1—CD17:21
CD17:47, CD17:48	CD17:47—CD47:48.2
CD17:55—CD17:60	CD17:55—CD17:60.1
CD17:65—CD17:68	CD17:64.1—CD17:67
CD17:81—CD17:86.6	CD17:81—CD17:86.6.1
CD17:124.19, CD17:124.20	CD17:124.19, CD17:124.20
CD17:175—CD17:196.4.1	CD17:175—CD17:196.4.4
CD21:23—CD21:26.1	CD21:23—CD21:26.2
CD23:25—CD23:28	CD23:25—CD23:28
CD23:31—CD23:34	CD23:31—CD23:34
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CDi:1—CDi:4.1	CDi:1—CDi:4.1

Remove Old Pages	*Insert New Pages*
CDi:21, CDi:22	CDi:21—CDi:22.1
CDi:27, CDi:28	CDi:27, CDi:28
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CDi:86.1—CDi:92.1	CDi:87—CDi:92.1
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SUPPLEMENT NO. 10
September 2010

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-110, enacted July 28, 2010.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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xiii— xviii	xiii— xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD2:1, CD2:2	CD2:1, CD2:2
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CD4:1—CD4:4	CD4:1— CD4:4.2
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CD8:8.1, CD8:8.2	CD8:8.1, CD8:8.2
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CD17:47—CD17:66	CD17:47—CD17:66
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CD20:5	CD20:5, CD20:6
CD21:11, CD21:12	CD21:11—CD21:12.1
CD23:25—CD23:28	CD23:25—CD23:28
CD23:31—CD23:34	CD23:31—CD23:34

Remove Old Pages	*Insert New Pages*
CCT:15	CCT:15
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CDi:157—CDi:158.1	CDi:157—CDi:158.1
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SUPPLEMENT NO. 9
February 2010

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-110, enacted October 7, 2009.

See the Code Comparative Table—Ordinances for further information.

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CD17:1—CD17:4	CD17:1—CD17:4.1
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SUPPLEMENT NO. 8
July 2009

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-12, enacted March 14, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 7
October 2008

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2008-044, enacted June 18, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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CD8:7—CD8:8.2	CD8:7—CD8:8.2
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CD17:121—CD17:124	CD17:121—CD17:124.5
CD17:135—CD17:144	CD17:135—CD17:144
CD17:177—CD17:184	CD17:177—CD17:184.1
CD17:189—CD17:196.3	CD17:189—CD17:196.8
CD21:17—CD21:22	CD21:17—CD21:22

CD23:1, CD23:2	CD23:1, CD23:2
CD23:9, CD23:10	CD23:9, CD23:10
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CDi:19—CDi:24	CDi:19—CDi:24.1
CDi:27—CDi:36.1	CDi:27—CDi:36.1
CDi:39—CDi:42	CDi:39—CDi:42
CDi:47, CDi:48	CDi:47—CDi:48.1
CDi:51, CDi:52	CDi:51, CDi:52
CDi:55—CDi:60	CDi:55—CDi:60.1
CDi:69, CDi:70	CDi:69—CDi:70.1
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CDi:77—CDi:82	CDi:77—CDi:82.1
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SUPPLEMENT NO. 6
April 2007

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2006-081, enacted November 8, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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xiii—xvii	xiii—xviii
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CD12:3, CD12:4	CD12:4.1—CD12:4.2
CD12:7, CD12:8	CD12:7—CD12:8.1
CD12:21	CD12:21, CD12:22
CD15:3—CD15:4.1	CD15:3—CD15:4.1
CD16:1	CD16:1
CD16:3	CD16:3
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CD17:122.3—CD17:128	CD17:123—CD17:128.2
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SUPPLEMENT NO. 5
March 2006

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2005-110, enacted October 26, 2005.

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SUPPLEMENT NO. 4
January 2005

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2004-080, enacted August 11, 2004.

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SUPPLEMENT NO. 3
June 2003

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

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Ordinance No. 2003-005, enacted January 15, 2003.

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SUPPLEMENT NO. 2
February 2000

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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SUPPLEMENT NO. 1
November 1998

CODE OF ORDINANCES

City of

COLUMBIA, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 98-59, enacted September 16, 1998.

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CODE OF ORDINANCES

CITY OF

COLUMBIA, SOUTH CAROLINA

Published by Order of the City Council, 1998

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OFFICIALS

of the

CITY OF

COLUMBIA, SOUTH CAROLINA

AT THE TIME OF THIS CODIFICATION

Robert D. Coble
Mayor

E. W. Cromartie, II
Francenia B. Heizer
Jim D. N. Papadea
Anne M. Sinclair
Hamilton Osborne, Jr.
Sam Davis
City Council

Michael A. Bierman
City Manager

James S. Meggs
City Attorney

Vivian A. Krigline
City Clerk

CURRENT OFFICIALS

of the

CITY OF

COLUMBIA, SOUTH CAROLINA

Daniel J. Rickenmann
Mayor

Howard E. Duvall, Jr.
Edward H. McDowell, JR.
William J. Brennan
Aditi Bussells
Tina N. Herbert
Peter M. Brown
City Council

Teresa B. Wilson
City Manager

Teresa A. Knox
City Attorney

Erika D.M. Hammond
City Clerk

PREFACE

This Code constitutes a complete recodification of the general and permanent ordinances of the City of Columbia, South Carolina.

Source materials used in the preparation of the Code were the 1979 Code, as supplemented through August 1993, and ordinances subsequently adopted by the city council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of the 1979 Code, as supplemented, and any subsequent ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order, and the various sections within each chapter have been catchlined to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Chapter and Section Numbering System

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of two parts separated by a dash. The figure before the dash refers to the chapter number, and the figure after the dash refers to the position of the section within the chapter. Thus, the second section of chapter 1 is numbered 1-2, and the first section of chapter 6 is 6-1. Under this system, each section is identified with its chapter, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments. For example, if new material consisting of one section that would logically come between sections 6-1 and 6-2 is desired to be added, such new section would be numbered 6-1.5. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division. New chapters may be included in the same manner. If the new material is to be included between chapters 12 and 13, it will be designated as chapter 12.5.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of

the page in that portion. In the case of a chapter of the Code, the number to the left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

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Index

The index has been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the index itself which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up-to-date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up-to-date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

This publication was under the direct supervision of Jan Shekitka, Supervising Editor, and Connie Timmons, Editor, of the Municipal Code Corporation,

Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to James S. Meggs, City Attorney, and his assistant Legal Department Administrative Coordinator Shari Lynn Ardis, for their cooperation and assistance during the progress of the work on this publication. It is hoped that their efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

ADOPTING ORDINANCE

ORDINANCE NO. 98-66

An ordinance adopting and enacting a new Code for the City of Columbia, South Carolina; providing for the repeal of certain ordinances not included therein; providing a penalty for the violation thereof; providing for the manner of amending such Code; and providing when such Code and this ordinance shall become effective.

Be it Ordained by the Mayor and City Council of the City of Columbia, South Carolina this 19th day of August, 1998:

Section 1. The Code entitled "Code of Ordinances, City of Columbia, South Carolina," published by Municipal Code Corporation, consisting of Chapters 1 through 24, each inclusive, is adopted.

Section 2. All ordinances of a general and permanent nature enacted on or before January 7, 1998, and not included in the Code or recognized and continued in force by reference therein, are repealed.

Section 3. The repeal provided for in Section 2 hereof shall not be construed to revive any ordinance or part thereof that has been repealed by a subsequent ordinance that is repealed by this ordinance.

Section 4. Unless another penalty is expressly provided, every person convicted of a violation of any provision of the Code or any ordinance, rule or regulation adopted or issued in pursuance thereof shall be punished by a fine of not more than $500.00 or imprisonment for not more than 30 day [days] or both fine and imprisonment. Each act of violation and each day upon which any such violation shall occur shall constitute a separate offense. The penalty provided by this section, unless another penalty is expressly provided, shall apply to the amendment of any Code section whether or not such penalty is reenacted in the amendatory ordinance. In addition to the penalty prescribed above, the City may pursue other remedies such as abatement of nuisances, injunctive relief and revocation of licenses or permits.

Section 5. Additions or amendments to the Code, when passed in the form as to indicate the intention of the Mayor and Council to make the same a part of the Code shall be deemed to be incorporated in the Code, so that reference to the Code includes the additions and amendments.

Section 6. Ordinances adopted after January 7, 1998, that amend or refer to ordinances that have been codified in the Code shall be construed as if they amend or refer to like provisions of the Code.

Section 7. This ordinance shall become effective as of second reading.

Requested by:

/s/ _____

/s/ _____
Robert D. Coble, Mayor

Approved by:

/s/ _____
Michael A. Bierman,
City Manager

Approved as to form:

/s/ _____
James S. Meggs, City Attorney

ATTEST:

/s/ _____
Vivian A. Krigline, City Clerk

Introduced: 8/12/98
Final Reading: 8/19/98

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Checklist of Up-to-Date Pages

(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omitted."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

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2010-119	8- 2-11	Included	11
2010-132	12-14-10	Included	11
2010-133	9-15-10	Included	11
2010-134	9-15-10	Included	11
2010-135	10- 6-10	Included	11
2010-137	9-15-10	Included	11
2010-138	10- 6-10	Included	11
2010-143	12- 7-10	Included	11
2010-144	11- 9-10	Included	11
2010-145	11- 9-10	Included	11
2010-151	12- 7-10	Included	11
2010-153	2-15-11	Included	11
2010-158	3-29-11	Included	11
2011-001	2-15-11	Included	11
2011-003	2-15-11	Included	11
2011-010	5-24-11	Included	11
2011-021	6- 7-11	Included	11
2011-024	5-17-11	Included	11
2011-027	6-21-11	Included	11
2011-032	5-24-11	Included	11
2011-033	5-24-11	Included	11
2011-034	5-24-11	Included	11
2011-043	6-21-11	Included	11
2011-046	7-19-11	Included	11
2011-047	8- 2-11	Included	11
2011-048	8- 2-11	Included	11
2011-049	8- 2-11	Included	11
2011-059	8-23-11	Included	11
2011-064	8-30-11	Included	11

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2011-036	10-18-11	Included	12
2011-058	10-18-11	Included	12
2011-067	9-27-11	Included	12
2011-070	10-11-11	Included	12
2011-071	10-11-11	Included	12
2011-072	9-20-11	Included	12
2011-073	10-11-11	Included	12
2011-076	11- 1-11	Included	12
2011-081	12-20-11	Included	12
2011-082	1-17-12	Included	12
2011-083	12-13-11	Included	12
2011-085	12-13-11	Included	12
2011-093	12-30-11	Included	12
2011-095	12-20-11	Included	12
2011-100	12-20-11	Included	12
2011-101	12-20-11	Included	12
2011-102	2-21-12	Included	13
2011-103	1-17-12	Included	12
2012-007	2- 7-12	Included	13
2012-010	4-10-12	Included	13
2012-020	4-10-12	Included	13
2012-021	4-18-12	Included	13
2012-023	4-10-12	Included	13
2012-026	6- 5-12	Included	13
2012-045	6-26-12	Included	13
2012-050	6-26-12	Included	13
2012-057	7-10-12	Included	13
2012-072	8-21-12	Included	13
2012-073	8-21-12	Included	13
2012-077	8-21-12	Included	13
2012-082	10-16-12	Included	13
2012-092	10- 2-12	Included	13
2012-093	11-13-12	Included	13
2012-094	10-16-12	Included	13
2012-095	10-16-12	Included	13
2012-096	10-16-12	Included	13
2012-097	12-18-12	Included	13
2012-099	10-16-12	Included	13
2012-101	12-18-12	Included	13
2012-104	12-18-12	Included	13
2012-105	12-18-12	Included	13
2011-105	12-29-11	Included	14
2012-103	2- 5-13	Included	14
2013-001	2- 5-13	Included	14
2013-009	2- 5-13	Included	14
2013-010	2- 5-13	Included	14

SUPPLEMENT HISTORY TABLE

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2013-011	2- 5-13	Included	14
2013-044	6- 4-13	Included	14
2013-046	6-18-13	Included	14
2013-049	6- 4-13	Included	14
2013-050	5- 7-13	Included	14
2013-059	6-18-13	Included	14
2013-068	9- 3-13	Included	14
2013-077	8-13-13	Included	14
2013-078	8-13-13	Included	14
2013-085	10- 1-13	Included	14
2013-087	10-15-13	Included	14
2013-088	10- 1-13	Included	14
2013-089	10- 1-13	Included	14
2013-090	10- 1-13	Included	14
2013-091	10- 1-13	Included	14
2013-092	10- 1-13	Included	14
2013-093	10- 1-13	Included	14
2013-094	10- 1-13	Included	14
2013-095	10- 1-13	Included	14
2013-110	10- 1-13	Included	14
2013-113	10- 1-13	Included	14
2013-115	12-10-13	Included	14
2013-013	3-26-13	Included	15
2013-135	1- 7-14	Included	15
2014-028	4- 8-14	Included	15
2014-029	4- 8-14	Included	15
2014-033	4- 8-14	Included	15
2014-034	6-17-14	Included	15
2014-036	4- 8-14	Included	15
2014-038	7-15-14	Included	15
2014-039	4-22-14	Included	15
2014-041	6-10-14	Included	15
2014-064	6-24-14	Included	15
2014-065	8- 5-14	Included	15
2014-071	8- 5-14	Included	15
2014-075	8-19-14	Included	15
2014-076	8-19-14	Included	15
2014-085	8-19-14	Included	15
2014-087	10-21-14	Included	15
2014-096	12-20-14	Included	15
2014-098	10-21-14	Included	15
2014-102	12- 2-14	Included	15
2014-103	12- 2-14	Included	15
2015-008	4-14-15	Included	16
2015-013	2-10-15	Included	16
2015-025	6-16-15	Included	16

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2015-028	4-21-15	Included	16
2015-035	5- 5-15	Included	16
2015-040	5-19-15	Included	16
2015-046	6-16-15	Included	16
2015-054	9- 1-15	Included	17
2015-068	9- 1-15	Included	17
2015-087	12- 1-15	Included	17
2015-091	11-18-15	Included	17
2015-102	12-15-15	Included	17
2015-99	4-19-16	Included	18
2015-100	1-5-16	Included	18
2015-101	1-5-16	Included	18
2016-002	2-2-16	Included	18
2016-027	6- 7-16	Included	19
2016-042	6-21-16	Included	19
2016-052	8- 2-16	Included	19
2016-063	8- 2-16	Included	19
2016-068	10-18-16	Included	20
2016-069	10-18-16	Included	20
2016-070	10-18-16	Included	20
2016-071	10-18-16	Included	20
2016-072	10-18-16	Included	20
2016-073	10-18-16	Included	20
2016-074	10-18-16	Included	20
2016-075	10-18-16	Included	20
2016-076	10-18-16	Included	20
2016-090	10-18-16	Included	20
2016-092	12-20-16	Included	20
2016-093	12- 6-16	Included	20
2016-109	12- 6-16	Included	20
2017-001	4- 4-17	Included	21
2017-002	4- 4-17	Included	21
2017-003	4- 4-17	Included	21
2017-044	6-20-17	Included	21
2017-049	6-20-17	Included	21
2017-063	8- 1-17	Included	22
2017-065	8- 1-17	Included	22
2017-090	12- 5-17	Included	22
2017-109	12-19-17	Included	22
2017-115	1-16-18	Included	22
2018-001	5-15-18	Included	22
2018-015	6- 5-18	Included	22
2018-016	5-15-18	Included	22
2018-021	6- 5-18	Included	22
2018-025	6-19-18	Included	22
2018-027	6-19-18	Included	22

SUPPLEMENT HISTORY TABLE

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2018-053	10- 2-18	Included	23
2018-054	10- 2-18	Included	23
2018-075	2- 5-19	Included	23
2019-011	2-19-19	Included	23
2019-012	5- 7-19	Included	23
2019-016	4- 2-19	Included	23
2019-017	4- 2-19	Included	23
2019-027	6- 4-19	Included	23
2019-035	6- 4-19	Included	23
2019-036	6- 4-19	Included	23
2019-039	6-18-19	Included	23
2019-040	6-18-19	Included	23
2019-041	6-18-19	Included	23
2019-042	6-18-19	Included	23
2017-045	7-18-17	Included	24
2018-079	1-15-19	Included	24
2019-009	10-15-19	Included	24
2019-013	8-20-19	Included	24
2019-022	8- 6-19	Included	24
2019-043	8-20-19	Included	24
2019-045	8- 6-19	Included	24
2019-046	8- 6-19	Included	24
2019-053	8- 6-19	Included	24
2019-055	7-16-19	Included	24
2019-056	9-17-19	Included	24
2019-057	8-20-19	Included	24
2019-059	9-17-19	Included	24
2019-060	8- 6-19	Included	24
2019-062	9-17-19	Included	24
2019-063	9-17-19	Included	24
2019-073	10-15-19	Included	24
2019-084	11-25-19	Included	24
2019-085	12- 3-19	Included	24
2019-098	12- 3-19	Included	24
2019-099	12- 3-19	Included	24
2019-083	1-21-20	Included	25
2020-005	3-10-20	Included	25
2020-006	3-10-20	Included	25
2020-007	3-10-20	Included	25
2020-008	3-10-20	Included	25
2020-009	3-10-20	Included	25
2020-010	3-10-20	Included	25
2020-011	3-10-20	Included	25
2020-012	3-10-20	Included	25
2020-013	6- 2-20	Included	25
2020-014	6- 2-20	Included	25

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2020-015	6- 2-20	Included	25
2020-046	6-16-20	Included	25
2020-072	9-15-20	Included	26
2020-077	8-27-20	Included	26
2020-080	9-15-20	Included	26
2020-086	10- 6-20	Included	26
2020-089	10- 6-20	Included	26
2020-099	12- 1-20	Omitted	26
2020-100	12-15-20	Included	26
2021-001	6-15-21	Included	27
2021-021	6-15-21	Included	27
2021-029	5- 4-21	Included	27
2021-030	6- 1-21	Included	27
2021-037	6- 1-21	Included	27
2021-040	5-18-21	Included	27
2021-041	5-18-21	Included	27
2021-042	5-18-21	Included	27
2021-043	5-18-21	Included	27
2021-053	8- 3-21	Omitted	29
2021-063	9-21-21	Included	29
2021-066	8-17-21	Included	29
2021-098	12-21-21	Included	29
2021-099	12-21-21	Included	29
2021-082	11- 9-21	Included	30
2021-089	12-18-21	Included	30
2021-097	12-21-21	Included	30
2022-020	4- 5-22	Included	30
2022-025	3- 4-22	Included	30
2022-035	6-21-22	Included	30
2022-059	6- 1-22	Included	30
2022-077	8- 2-22	Included	30
2022-048	8- 2-22	Included	31
2022-080	9-20-22	Included	31
2022-082	10-18-22	Included	31
2022-083	11- 1-22	Included	31
2022-095	11- 1-22	Included	31
2022-112	12-20-22	Included	31
2022-113	12-20-23	Included	31
2022-114	12-20-23	Included	31
2022-115	12-20-23	Included	31
2022-116	12-20-22	Included	31
2022-117	12-20-22	Included	31
2022-118	12-20-22	Included	31
2022-119	1-17-23	Included	31
2023-026	3- 7-23	Included	31
2023-037	4- 4-23	Included	31

SUPPLEMENT HISTORY TABLE

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2023-059	6-20-23	Included	32
2023-061	6-20-23	Included	32
2023-062	6-20-23	Included	32
2023-064	6-20-23	Included	32
2023-066	6-20-23	Included	32
2023-067	6-20-23	Included	32
2023-068	6-20-23	Included	32
2023-079	8- 1-23	Included	32
2023-080	8- 1-23	Included	32
2023-081	8-15-23	Included	32
2023-097	9-19-23	Included	32
2023-111	9-19-23	Included	32
2023-116	10- 3-23	Included	32
2023-117	10-17-23	Included	32
2023-093	11-21-23	Included	33
2023-099	12- 5-23	Included	33
2023-123	11-21-23	Included	33
2024-010	4- 2-24	Included	33
2024-025	4-16-24	Included	33
2024-032	5- 7-24	Included	33
2024-039	12- 3-24	Included	34
2024-069	9-17-24	Omitted	34
2024-072	10- 1-24	Omitted	34
2024-078	10-15-24	Omitted	34
2024-084	12- 3-24	Included	34
2024-088	12- 3-24	Included	34
2025-013	4- 1-25	Omitted	35
2025-038	9-16-25	Omitted	35
2025-039	6-10-25	Omitted	35
2025-047	6-24-25	Omitted	35
2025-055	10-28-25	Included	35
2025-073	10- 7-25	Omitted	35
2025-090	10-28-25	Included	35

CODE OF ORDINANCES

Chapter 1

GENERAL PROVISIONS

Sec. 1-1. Designation and citation of Code.
Sec. 1-2. Definitions and rules of construction.
Sec. 1-3. Provisions considered as continuation of existing ordinances.
Sec. 1-4. Jurisdiction of Code and ordinances.
Sec. 1-5. General penalty; continuing violations.
Sec. 1-6. Catchlines, history notes and references.
Sec. 1-7. Severability of parts of Code.
Sec. 1-8. Amendments to Code.
Sec. 1-9. Applicability of penalties to amended provisions.
Sec. 1-10. Supplementation of Code.
Sec. 1-11. Certain ordinances not affected by Code.

Sec. 1-1. Designation and citation of Code.

The ordinances embraced in this and the following chapters and sections shall constitute and be designated "Code of Ordinances, City of Columbia, South Carolina," and may be so cited. Such ordinances may also be cited as "Columbia City Code."

Sec. 1-2. Definitions and rules of construction.

(a) In the construction of this Code and of all ordinances of the city, the following definitions and rules of construction shall be observed, unless inconsistent with the manifest intent of the city council or the text clearly requires otherwise:

And, or. The word "and" may be read as "or," and the word "or" as "and," where the sense requires it.

Bond. When a bond is required, an undertaking in writing shall be sufficient.

City. The term "the city" means the City of Columbia, in the County of Richland and State of South Carolina, except as otherwise provided.

Code. Whenever the words "Code" or "this Code" are used they shall mean and refer to the Code of Ordinances, City of Columbia, South Carolina, as designated in section 1-1.

Computation of time. The time within which an act is to be done shall be computed by excluding the first day and including the last day, and if the last day is Sunday or a legal holiday, that day shall be excluded.

Council and *city council.* The terms "the council" and "the city council" mean the City Council of Columbia, South Carolina, and shall be inclusive of the mayor.

County. The term "county" means the County of Richland and/or the County of Lexington in the State of South Carolina.

Delegation of authority. Whenever a provision appears in this Code requiring or authorizing the head of a department or other officer of the city to do some act or perform some duty, it shall be construed to authorize such department head or other officer to designate, delegate and authorize subordinates to do the required act or perform the required duty unless the terms of the provision specifically designate otherwise.

Gender. Words importing the masculine gender include the feminine and neuter.

In the city. The term "in the city" means and includes any territory within the corporate limits of the City of Columbia, South Carolina, and the police jurisdiction thereof, and any other territory over which regulatory power has been conferred on the city by general or special act, except as otherwise specified.

Interpretation. In the interpretation and application of any provision of this Code, it shall be held to be the minimum requirement adopted for the promotion of the public health, safety,

comfort, convenience and general welfare. Where any provision of this Code imposes greater restrictions upon the subject matter than any general provisions imposed by this Code, the provisions imposing the greater restriction or regulation shall be applicable.

Joint authority. All words giving joint authority to three or more persons or officers shall be construed as giving such authority to a majority of such persons or officers.

Minor. The term "minor" means any person under the age of 18 years, unless otherwise governed by state law.

Month. The term "month" means a calendar month.

Municipal clerk and *clerk.* The terms "municipal clerk" and "clerk" mean the Municipal Clerk of the City of Columbia as described in S.C. Code 1976, § 5-7-220.

Number. Words used in the singular number include the plural, and words used in the plural number include the singular.

Oath. The term "oath" includes an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed."

Officers, employees, departments. The title of any officer, employee, department, board or commission used in this Code shall be construed as if the words "of the City of Columbia, South Carolina" followed it.

Owner. The term "owner," applied to a building or land, includes any part owner, joint owner, tenant in common, joint tenant, or tenant by the entirety of the whole or a part of such building or land.

Person. The term "person" includes a corporation, firm, partnership, association, organization and any other group acting as a unit, as well as an individual.

Personal property. The term "personal property" includes every species of property except real property.

Preceding, following. The terms "preceding" and "following" mean next before and next after, respectively.

Property. The term "property" includes real and personal property.

Public property. The term "public property" includes all land owned or leased by the city within or without the city.

Real property and *real estate.* The terms "real property" and "real estate" include lands, tenements and hereditaments.

Roadway. The term "roadway" means that portion of a street improved, designated or ordinarily used for vehicular travel.

Shall, may. The word "shall" is mandatory; the word "may" is permissive.

Sidewalk. The term "sidewalk" means any portion of a street between the curbline, or the lateral line of a roadway where there is no curb, and the adjacent property line, intended for the use of pedestrians.

Signature and *subscription.* The terms "signature" and "subscription" include a mark when the person cannot write.

State. The terms "the state" and "this state" mean the State of South Carolina.

Statute references. Whenever reference is made to state law or to the state statutes, it shall be construed to refer to the latest edition of the Code of Laws of South Carolina, as amended.

Street. The term "street" includes avenues, boulevards, highways, roads, alleys, lanes, viaducts, bridges and the approaches thereto and all other public thoroughfares in the city, and means the entire width thereof between opposed abutting property lines. It shall be construed to include a sidewalk or footpath, unless the contrary is expressed or unless such construction would be inconsistent with the manifest intent of the city council.

Tenant and *occupant.* The term "tenant" or "occupant," applied to a building or land, includes any person who occupies the whole or a part of such building or land, whether alone or with others.

Tense. Words used in the past or present tense include the future as well as the past and present.

Writing and *written.* The terms "writing" and "written" include printing and any other mode of representing words and letters.

Year. The term "year" means a calendar year.

(b) In the construction of this Code and of all ordinances of the city, all officers, agents, employees and other persons, together with all things and places therein referred to, unless a contrary intention appears, shall be construed to mean the officers, agents, employees, and other persons, things and places situate in the city or employed by or appertaining to the city.

Sec. 1-3. Provisions considered as continuation of existing ordinances.

The provisions appearing in this Code, so far as they are the same as those of the 1979 Code and all ordinances adopted subsequent to the 1979 Code and included herein, shall be considered as continuations thereof and not as new enactments.

Sec. 1-4. Jurisdiction of Code and ordinances.

In the construction of this Code and of all ordinances of the city, all acts prohibited or punishable under this Code or under any particular ordinance, unless a contrary intent appears, shall be construed to refer to such acts when committed or occurring within the limits of the city or in other places over which the municipal court and city police have authority or

jurisdiction under the laws of the state, even though the Code or the particular ordinance only provides that such acts shall be prohibited or punishable and shall not specifically designate the jurisdiction or scope thereof.

Sec. 1-5. General penalty; continuing violations.

(a) Wherever in the Code, or in any ordinance or resolution of the city, or rule or regulation or order promulgated by any officer or agency of the city under authority duly vested in him or it, any act is prohibited or is declared to be unlawful or an offense or misdemeanor, or the doing of any act is required, or the failure to do any act is declared to be unlawful or an offense or misdemeanor, and no specific penalty is provided for the violation thereof, the violation of any such provision of the code or any such ordinance, resolution, rule, regulation or order shall be punished by a fine of not more than $500.00 or by imprisonment for not more than 30 days, or both.

(b) Except as may otherwise be provided, each day any violation of the Code or any such ordinance, resolution, rule, regulation or order shall continue shall constitute a separate offense.

(c) Any person or entity who violates any provision of the Code or any code adopted pursuant to this Code, excluding any provision regulating the use of motor vehicles on public roads, may be issued a uniform ordinance summons in a form prescribed by South Carolina Code Ann. Section 56-7-80. Issuance of the uniform ordinance summons shall vest jurisdiction in the municipal court to hear and dispose of the charge for which the uniform ordinance summons was issued and served. The uniform ordinance summons may be issued by any city law enforcement officer or any other city official or employee designated by the city manager as a code enforcement officer. The amount of the bond prescribed by the municipal judge for the offense and the procedure for posting the bond shall be noted on the uniform ordinance summons. City law enforcement officers or code enforcement officers are prohibited from accepting bonds. The uniform ordinance summons shall not be used to perform a custodial arrest. The uniform ordinance summons shall contain a notice that failure to appear before the court without having posted bond or without having been granted a continuance is a misdemeanor punishable by a fine up to $500.00 or imprisonment for up to 30 days, or both. (Ord. No. 2000-052, 7-26-00)

State law reference—General limit on municipal penalty, S.C. Code 1976, § 5-7-30.

Sec. 1-6. Catchlines, history notes and references.

(a) The headings of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the sections, and shall not be deemed or taken to be titles of such sections, or any part of the sections, nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted.

(b) The history notes appearing in parentheses after sections of the Code and the references and notes scattered throughout the Code are for the benefit of the user of the Code and shall have no legal effect.

Sec. 1-7. Severability of parts of Code.

It is hereby declared to be the intention of the city council that the sections, paragraphs, sentences, clauses and phrases of this Code are severable, and if any phrase, clause, sentence, paragraph or section of this Code shall be declared unconstitutional or invalid by the valid judgment or decree of a court of competent jurisdiction, such unconstitutionality or invalidity shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this Code.

Sec. 1-8. Amendments to Code.

(a) Any and all additions and amendments to this Code, when passed in such form as to indicate the intention of the city council to make the addition or amendment a part of this Code, shall be deemed to be incorporated in this Code, so that reference to the "Code of Ordinances, City of Columbia, South Carolina" shall be understood and intended to include such additions and amendments.

(b) All ordinances passed subsequent to the adoption of this Code which amend, repeal or in any way affect this Code may be numbered in accordance with the numbering system of this Code and printed for inclusion in the Code, or, in the case of the repeal of chapters, sections and subsections, or any part thereof, by subsequent ordinances, such repealed portions may be excluded from the Code by omission from reprinted pages affected thereby; and the subsequent ordinances, as numbered and printed, or omitted in the case of repeal, shall be prima facie evidence of such subsequent ordinances until such time that this Code and subsequent ordinances numbered or omitted are readopted as a new code of ordinances by the city council.

(c) Amendments to any of the provisions of this Code should be made by amending such provisions by specific reference to the section of this Code in substantially the following language: "That section _____ of the Code of Ordinances, City of Columbia, South Carolina, is hereby amended to read as follows: . . . " (set out new provisions in full).

(d) If a new section not heretofore existing in the Code is to be added, the following language may be used: "That the Code of Ordinances, City of Columbia, South Carolina, is hereby amended by adding a section (or article, chapter or other designation as the case may be), to be numbered _____, which reads as follows: . . . " (set out new provisions in full).

(e) In lieu of subsection (d) of this section, when the city council desires to enact an ordinance of a general and permanent nature embracing a subject not previously existing in the Code, which the council desires to incorporate into the Code, a provision in substantially the following language may be made part of such ordinance: "It is the intention of the city council, and it is hereby ordained, that the provisions of this ordinance shall become and be made part of the Code of Ordinances, City of Columbia, South Carolina, and the sections of this ordinance may be renumbered to accomplish such intention."

(f) All sections, articles, chapters or other provisions of this Code desired to be repealed should be specifically repealed by section number, article number, chapter number or other number, as the case may be.

Sec. 1-9. Applicability of penalties to amended provisions.

In case of the amendment by the city council of any section of this Code for which a penalty is not provided, the general penalty, as provided in section 1-5, shall apply to the section as amended; or, in case such amendment contains provisions for which a penalty other than such general penalty is provided in another section in the same chapter, the penalty so provided in such other section shall be held to relate to the section so amended, unless such penalty is specifically repealed therein.

Sec. 1-10. Supplementation of Code.

(a) By contract or by city personnel, supplements to this Code shall be prepared and printed whenever authorized or directed by the city council. A supplement to the Code shall include all substantive permanent and general parts of ordinances passed by the council during the period covered by the supplement and all changes made thereby in the Code. The pages of a

supplement shall be so numbered that they will fit properly into the Code and will, when necessary, replace pages which have become obsolete or partially obsolete, and the new pages shall be so prepared that, when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) In preparing a supplement to this Code, all portions of the Code which have been repealed shall be excluded from the Code by the omission thereof from reprinted pages.

(c) When preparing a supplement to this Code, the codifier (meaning the person, agency or organization authorized to prepare the supplement) may make formal, nonsubstantive changes in ordinances and parts of ordinances included in the supplement, insofar as it is necessary to do so to embody them into a unified Code. For example, the codifier may:

(1) Organize the ordinance material into appropriate subdivisions.

(2) Provide appropriate catchlines, headings and titles for sections and other subdivisions of the Code printed in the supplement, and make changes in such catchlines, headings and titles.

(3) Assign appropriate numbers to sections and other subdivisions to be inserted in the Code and, where necessary to accommodate new material, change existing section or other subdivision numbers.

(4) Change the words "this ordinance" or words of the same meaning to "this chapter," "this article," "this division," etc., as the case may be, or to "sections _____ to _____" (inserting section numbers to indicate the sections of the Code which embody the substantive sections of the ordinance incorporated into the Code).

(5) Make other nonsubstantive changes necessary to preserve the original meaning of ordinance sections inserted into the Code, but in no case shall the codifier make any change in the meaning or effect of ordinance material included in the supplement or already embodied in the Code.

Sec. 1-11. Certain ordinances not affected by Code.

Nothing in this Code or the ordinance adopting this Code shall affect any ordinance:

(1) Promising or guaranteeing the payment of money for the city, or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness, or any contract or obligations assumed by the city.

(2) Providing for zoning map amendments.

(3) Prescribing rates, charges and fees for any city service.

(4) Granting any right or franchise and establishing any rates therefor.

(5) Dedicating, naming, establishing, locating, relocating, opening, paving, widening, vacating, etc., any street or public way in the city.

(6) Making any appropriation.

(7) Levying or imposing taxes, not inconsistent with this Code.

(8) Adopting community antenna television system regulations.

(9) Providing for local improvements and assessing taxes therefor.

(10) Dedicating or accepting any plat or subdivision in the city.

(11) Adopting, extending or contracting the boundaries of the city.

(12) Prescribing the number, classification or compensation of any city officers, employees or agents, not inconsistent with this Code.

(13) Which is not of a general and permanent nature.

(14) Which contracts with the state municipal association for the collection of business license taxes or with the county for the collection of taxes.

All such ordinances are hereby recognized as continuing in full force and effect to the same extent as if set out at length in this Code. Such ordinances are on file in the office of the city clerk.

Chapter 2

ADMINISTRATION*

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ARTICLE I. IN GENERAL

Sec. 2-1. Council-manager form of government adopted.

The city shall be governed by the council-manager form of municipal government as prescribed by Act. No. 283 of 1975 with a mayor and two councilmembers elected at large and four councilmembers elected from single-member districts as provided in section 6-2.
(Code 1979, § 1-1001)

State law reference—Selection of forms of municipal government by ordinance, S.C. Code 1976, § 5-5-10.

Sec. 2-2. Corporate boundaries.

(a) The boundaries of the city shall be those now and hereafter specified by law with any alterations that are made from time to time in the manner provided by law.

(b) The current city boundaries shall at all times be drawn on a map and set out in a written description. This delineation shall be retained permanently in the office of the city clerk. Alterations in these established boundaries shall be indicated by appropriate entries upon or additions to the map and description made under the direction of the city attorney. Copies of the map or description reproduced by any method of reproduction that gives legible and permanent copies, when certified by the city clerk, shall be admissible in evidence in all courts and shall have the same force and effect as would the original map or description. The city council may provide for the redrawing of any map of the city boundaries. A redrawn map shall supersede for all purposes the earlier maps that it is designated to replace.
(Code 1979, § 1-1002)

State law reference—Change in corporate limits, S.C. Code 1976, § 5-3-10 et seq.

Sec. 2-3. Members of council.

The mayor is considered to be a member of council.
(Ord. No. 2016-042, 6-21-16)

Sec. 2-4. Duties of council members.

The council members shall attend all regular and special meetings of the city council and hold themselves at all times in readiness to perform any duty entrusted to them by the city council. The councilmembers shall perform the duties thus imposed upon them with dispatch and to the best of their abilities.
(Ord. No. 2016-042, 6-21-16)

Sec. 2-5. Legislative powers; matters of policy:

All legislative powers of the city and the determination of all matters of policy are vested in the city council with each member, including the mayor, having one vote.
(Ord. No. 2016-042, 6-21-16)

Sec. 2-6. Mayor.

A mayor shall be elected from the city at large in the manner provided by law. The mayor shall be recognized as head of the city government for all ceremonial purposes and by the governor for purposes of military law. He shall preside over the meetings of the city council unless otherwise provided by council, but shall have no regular administrative duties. The mayor shall attend all regular and special meetings of the city council.
(Ord. No. 2016-042, 6-21-16)

Sec. 2-7. Mayor pro tempore.

On or before the second meeting in January, following a general election for the council, the council shall elect one member of their body as a mayor pro tempore to serve as such for one year, who shall act as mayor during the absence or disability of the mayor, and if a vacancy occurs, shall act as mayor until a successor is duly qualified and elected.
(Ord. No. 2016-042, 6-21-16; Ord. No. 2021-099, 12-21-21)

Sec. 2-8. Qualifications of mayor and council members; proceedings to vacate offices.

(a) The mayor and council members shall be qualified electors of the city. Except where authorized by law, neither the mayor nor any member of council shall hold any other elected position in local, state or federal government or any other municipal office or municipal employment. The mayor or any council member shall forfeit his office if he:

(1) Lacks at any time during his term of office any qualification for the office prescribed by city ordinance or the general law and constitution of the state;

(2) Violates any express prohibition of S.C. Code 1976, §§ 5-1-10 through 5-17-30;

(3) Is convicted of a crime of moral turpitude;

(b) The council shall be the judge of the election and qualifications of its members and of the grounds for forfeiture of office as provided in S.C. Code 1976, § 5-7-210.
(Ord. No. 2016-042, 6-21-16)

Sec. 2-9. Oaths of mayor and council members.

The mayor and council members before entering upon the duties of their respective offices shall take the following oaths:

"I do solemnly swear (or affirm) that I am duly qualified, according to the constitution of this state, to exercise the duties of the office to which I have been elected and that I will, to the best of my ability, discharge the duties thereof and preserve, protect and defend the constitution of this state and of the United States.

"As mayor (or council member) of the City of Columbia, I will equally, fairly and impartially, to the best of my ability and skill, exercise the trust reposed in me, and will use my best endeavor to preserve the peace and carry into effect according to law the purposes for which I have been elected. So help me God."

The oath of office shall be administered on or after January 1 following the election and the effective date of service shall be date the oath was administered.
(Ord. No. 2016-042, 6-21-16; Ord. No. 2021-097, 12-21-2021)

Secs. 2-10—2-30. Reserved.

ARTICLE II. MAYOR, COUNCIL, AND CITY MANAGER*

DIVISION 1. GENERALLY†

Sec. 2-31. Compensation.

(a) The council shall determine the annual salary of the mayor and council members by ordinance; provided, that an ordinance establishing or increasing such salaries shall not become effective until the commencement date of the terms of two or more members elected at the next general election following the adoption of the ordinance from which this section is derived, at which time it will become effective for all members whether or not they were elected in such election. The salary of the mayor shall be $75,000.00 annually under the council-manager form of government effective July 1, 2014. Effective January 1, 2024, the salaries of the members of city council shall be $20,350.00 annually.

(b) The council members shall also be reimbursed for their actual expenses incurred in the performance of their official duties upon submission of signed expense reimbursement forms as provided by the city finance department, subject to the availability of funds budgeted for council expense.
(Ord. No. 2016-042, 6-21-16; Ord. No. 2023-116, 10-3-23)

Sec. 2-32. City manager.

(a) The city manager shall be the chief executive officer of the city and head of the administrative branch of city government. The city manager shall perform and exercise the duties and responsibilities prescribed by law for this office and such other duties and responsibilities as prescribed by the city council.

***Editor's note—**Ord. No. 2016-042, adopted June 21, 2016, amended former Divs. 1, 2, of Art. II in their entirety and retitled Art. II from "Mayor and Council" to "Mayor, Council and City Manager."

Cross reference—Elections, ch. 6.

†**Editor's note—**Ord. No. 2016-042, adopted June 21, 2016, amended former Div. 1, §§ 2-31—2-32, in its entirety to read as herein set out. Former Div. 1 pertained to salaries of the mayor and councilmembers and reimbursement of expenses and derived from the Code of 1979, §§ 1-2001, 1-2002; Ord. No. 2001-042, 5-2-01; Ord. No. 2001-063, 7-11-01; Ord. No. 2005-059, 6-15-05; Ord. No. 2013-087, 10-15-13.

(b) The city manager may, within the financial limits imposed by the budget approved by city council, employ one or more assistants to exercise such supervisory responsibilities over departments as may be prescribed by the manager.

(c) The city manager shall attend all meetings of the council unless excused by the council. He shall keep the council advised of the status of matters pending for council consideration, make recommendations and present ordinances and resolutions for council action, participate in discussion of any matter involving the welfare of the city, and present items on the council agenda.

(d) Council shall evaluate the performance of the city manager on an annual basis. The timely completion of the council's goals and work plan objectives shall be a measure used in the manager's evaluation.
(Ord. No. 2016-042, 6-21-16)

Sec. 2-33. Appointment; qualification; residency requirements.

(a) The city manager shall be appointed by a majority vote of the council for an indefinite term. The manager shall be employed solely on the basis of his executive and administrative qualifications.

(b) The manager need not be a resident of the municipality or state at the time of appointment, but may reside outside the municipality while in office only with the approval of the council.

(c) No council member or mayor shall be employed as city manager during the term for which he or she shall have been elected.
(Ord. No. 2016-042, 6-21-16)

Sec. 2-34. City attorney.

(a) Appointment. The city council shall appoint a city attorney, who shall serve at its pleasure.

(b) Duties. The city attorney shall be the chief legal counsel to the city, the mayor and members of the council and the city manager and to the officers and department heads of the city. The city attorney shall prosecute and defend the city in all actions and appear on behalf of the city and its officers in legal proceedings and at all times take appropriate actions to protect the interests of the city. The city attorney shall prepare or supervise the preparation of all legal documents and instruments of the city and shall approve all ordinances, resolutions, contracts and related documents as to form. The city attorney may employ assistant city attorneys and legal assistants as necessary for the performance of his duties, when such positions are provided for in the city budget. The city attorney shall attend meetings of the council, unless excused from attending by council, and serve as the parliamentarian at such meetings, render legal opinions, represent the city at meetings and conferences and perform such other duties as prescribed by law and by the city council.

(c) Council shall evaluate the performance of the city attorney on an annual basis.
(Ord. No. 2016-042, 6-21-16)

Sec. 2-35. City clerk.

(a) *Appointment.* The city manager shall appoint the city clerk, who shall serve at his pleasure.

(b) *Duties.* The city clerk shall maintain a record of and be responsible for the preservation of minutes of all council meetings and all official maps and plats that are adopted; keep the corporate seal; attest signatures; file and record council actions; maintain election records; and perform such other duties as required by law or assigned by the city manager.
(Ord. No. 2016-042, 6-21-16)

Sec. 2-36. Council interaction with employees.

Except for the purpose of inquiries and investigations, neither the council nor its members shall deal with municipal officers and employees who are subject to the direction and supervision of the manager except through the manager, and neither the council nor its members shall give orders to any such officer or employee, either publicly or privately.
(Ord. No. 2016-042, 6-21-16)

Secs. 2-37—2-50. Reserved.

DIVISION 2. COUNCIL MEETINGS*

Sec. 2-51. Meetings; time and place of regular meetings; special meetings; meetings to be open to public.

(a) A meeting is the convening of a quorum of council, as defined by Sec. 2-54, to discuss or act upon a matter over which the city council has supervision, control, jurisdiction, or advisory power.

(b) To allow the vetting of complex issues, city council schedules work sessions the day of regularly or other scheduled meetings. The time and location of work sessions are subject to meeting notice requirements and are posted on the city's web site. Work sessions are public meetings.

***Editor's note—**Ord. No. 2016-042, adopted June 21, 2016, amended former §§ 2-51—2-62, in its entirety to read as herein set out. Former Div. 2 pertained to similar subject matter and derived from the Code of 1979, §§ 1-2011—1-2021; Ord. No. 2010-137, 9-15-11; Ord. No. 2013-113, 10-1-13; Ord. No. 2015-091, 11-18-15.

State law reference—Council meetings, rules and procedure for meetings, etc., S.C. Code 1976, § 5-7-250.

(c) Regular meetings of the council shall be held at 4:00 p.m. at city hall on the first and third Tuesdays in each month unless changed by a majority vote of members present at any meeting. Council may also decide by a majority vote of members present at any meeting to hold a regular meeting in a different location.

(d) Special meetings of the council may be held on the call of the mayor or of a majority of the members. Notice of a special meeting shall be given and posted 24 hours prior to the meeting to all members, the news media and the public by the city clerk.

(e) All regular, special and emergency meetings of the council shall be open to the public. (Ord. No. 2016-042, 6-21-16; Ord. No. 2021-097, 12-21-21)

Sec. 2-52. Executive sessions.

(a) By majority vote in a public meeting, council may hold an executive session as permitted by the South Carolina Freedom of Information Act, S.C. Code 1976, § 30-3-10 et seq., at such times and in such places as may be deemed necessary and in the public interest by the council.

(b) No vote or formal action shall be taken in executive session except to adjourn or to return to public session.

(c) No minutes shall be taken in executive session.

(d) It shall be unlawful for a member of council or person in attendance to disclose to another person or make public the substance of a matter discussed in executive session. (Ord. No. 2016-042, 6-21-16)

Sec. 2-53. Meeting agenda.

(a) An agenda shall be prepared for all council meetings by the city clerk, under the direction of the city manager. All requests or matters for official action of the city council shall be submitted to the city clerk no later than 10 business days preceding the council meeting.

(b) Any supporting materials necessary for review of items placed on the regularly scheduled meeting agenda for action shall be provided to city councilmembers and to the public no later than 72 hours prior to the city council meeting.

(c) The final agenda for regularly scheduled meetings shall then be prepared and provided electronically, mailed or physically provided to the members of the city council a minimum of 24 hours in advance of the council meeting.

(d) The mayor or any member of council may request the city manager to place an item on a future agenda by making such a request at a council meeting. Unless a council member or the city manager objects, the requested item shall be included. If a council member or the city manager has an objection, the item in question shall not be included on a future agenda, unless a majority of the council votes in favor of including the item. At the request of a member of the council, the city manager shall prepare a list setting forth items carried over

from previous meetings in the preceding three months. Additions to the agenda at a meeting should be reserved solely for situations requiring immediate action to address a critical and unanticipated situation by two-thirds vote of members present.
(Ord. No. 2016-042, 6-21-16)

Sec. 2-54. Quorum and rules of order; presiding officer.

(a) Quorum. A majority of the council members serving shall constitute a quorum for the conduct of business at any meeting. Only council members who are physically present at the meeting shall be counted for purposes of a quorum.

(b) Except as otherwise required by state law or ordinance, all proceedings of city council shall be governed by Robert's Rules of Order, Newly Revised, and the city attorney shall act as parliamentarian.

(c) Presiding officer. The mayor or, in the mayor's absence, the mayor pro tempore, shall preside at any meeting as provided in section 2-51. In the event that the mayor or mayor pro tempore is not in attendance or is ineligible to preside at any meeting, the next most senior member shall preside over the meeting.

(d) Points of order shall take precedent over all other business and shall be ruled on by the presiding officer without debate, subject to appeal to the council.

(e) If, in speaking or otherwise, a councilmember shall violate any rule of order, the presiding officer shall, and any other councilmember may, call such member to order.

(f) When two or more councilmembers shall attempt at the same time to speak, the presiding officer shall decide who is entitled to speak first.
(Ord. No. 2016-042, 6-21-16)

Sec. 2-55. Debate limitations.

No councilmember shall speak more than twice on the same subject or occupy more than five minutes in making any remarks or address unless further extension is granted by a majority of city council.
(Ord. No. 2016-042, 6-21-16)

Sec. 2-56. Voting requirements.

(a) All actions of the council shall be by majority vote of members present at a public meeting, including suspension of any rule of order, except as otherwise required by ordinance; provided that an ordinance amending the rules of order and procedure shall require a majority vote of the councilmembers serving.

(b) Every member of the council present shall vote on every question except when required to abstain from voting by state law. All conflicts should be stated for the record and the member shall submit a completed Statement of Potential Conflict. Any member of council who declares a conflict and abstains from voting on any matter shall remain present in the room during discussions and voting.

(c) The vote on every question shall be by roll call and shall be recorded in the council minutes by the city clerk.

(d) Abstentions are not counted and have no effect on the result.
(Ord. No. 2016-042, 6-21-16)

Sec. 2-57. Minutes.

The city clerk shall keep the minutes of all public meetings of the council, which shall be a matter of permanent public record. Whenever possible, at each council meeting the minutes of the previous meeting shall be presented for approval. Minutes shall not be considered the official record of a meeting until approved by the council. Any member of the council desiring to express a position on a matter voted upon by the council in the minutes may do so by presenting the position in writing to the council not later than the next regular meeting.
(Ord. No. 2016-042, 6-21-16)

Sec. 2-58. Appearance of citizens.

Any person having a matter pertaining to the city, comments on an agenda item requiring a vote of city council, or its services shall be entitled to present the matter to the city council at any work session, regular, special called or emergency meeting by placing his or her name and purpose for speaking on an agenda list to be maintained by the city clerk prior to the

commencement of the city council meeting. The city clerk shall make the agenda list available for public inspection. Except for comments on agenda items requiring a vote of city council, each person whose name appears on the agenda list may be allowed to speak at a time designated by the mayor or the presiding officer during the city council meeting and may be limited to a three-minute presentation at the discretion of the mayor or presiding officer. For comments on agenda items requiring a vote of city council, each person shall be allowed to speak prior to the vote of city council on the agenda item and may be limited to three minutes of speaking time by the mayor or presiding officer. Personnel matters shall not be considered by the council at public meetings.
(Ord. No. 2016-042, 6-21-16)

Sec. 2-59. Council committees and special committees.

(a) City council shall establish and use committees to expedite policy making and legislative functions by equally distributing the responsibilities and work load among members of council. Council members may participate in committee meetings remotely, in accordance with the procedures set forth in section 2-61, but will not be counted for purposes of a quorum.

(b) Council committee assignments shall be made by choice of the council members beginning with the most senior member and concluding with the most junior member until each committee consists of three members of the council. The budget and finance committee shall be a committee of the whole.

(c) Council may appoint a special committee to advise and make recommendations to the city's management team, the mayor, and city council on a variety of programs and issues.

(d) Special committees may conduct meetings remotely. All meetings of special committees shall be open to the public. Minutes or reports of hearings held by special committees shall be filed with the city clerk as public records.
(Ord. No. 2016-042, 6-21-16; Ord. No. 2021-066, 8-17-21)

Sec. 2-60. Motions generally.

When a motion is made and seconded, it shall be stated by the presiding officer if verbal, and if in writing it shall be read by the city clerk. At the request of the presiding officer or any councilmember, any motion shall be put in writing.
(Ord. No. 2016-042, 6-21-16; Ord. No. 2021-066, 8-17-2021)

Sec. 2-61. Remote meeting.

(a) Any council member may participate and vote in a city council meeting remotely, but will not be considered present for the purposes of a quorum. City council minutes shall reflect that the council member participated in the meeting electronically. The council member acting as the presiding officer must be physically present at the meeting.

(b) Acceptable means of remote participation include telephone, internet, or satellite enabled audio or video conferencing, or any other technology that enables the remote participant and all persons present at the meeting location to be clearly audible to one another. Text messaging, instant messaging, email and web chat without audio are not acceptable methods of remote participation. Accommodations shall be made for any council member who requires TTY service, video relay service, or other form of adaptive telecommunications.

(c) If technical difficulties arise as a result of utilizing remote participation, city council shall, whenever possible, suspend discussion while reasonable efforts are made to correct any problem that interferes with a remote participant's ability to hear or be heard clearly by all persons present at the meeting location. If a remote participant is disconnected from the meeting, the minutes must note that fact and the time at which the disconnection occurred and reflect that the member left the meeting.

(d) Other than establishing the remote connection to the meeting, there shall be no communications between the members of council attending the meeting remotely and other members of council, unless such communication is part of the meeting, and can be heard by the members of the public in attendance.
(Ord. No. 2016-042, 6-21-16; Ord. No. 2024-025, 4-16-24)

Sec. 2-62. Annual goal setting.

City council shall annually schedule and conduct a process to identify and prioritize goals which shall be the basis for the annual work plan prepared by the city manager and the guide for the appropriation of discretionary spending during the annual budget process.

Secs. 2-63—2-80. Reserved.

DIVISION 3. ORDINANCES AND RESOLUTIONS*

Sec. 2-81. Ordinances required.

(a) The council shall act by ordinance in all matters required by law to be done by ordinance, including:

(1) Adopt or amend an administrative code or code of ordinances, or create, alter or abolish any municipal department, office or agency;

(2) Provide for a fine or other penalty or establish a rule or regulation in which a fine or other penalty is imposed for violation;

(3) Appropriate funds and adopt a budget;

(4) Grant, renew or extend franchises, licenses or rights in public streets or public property, and close abandoned streets;

***State law references—**Acts required by ordinance, S.C. Code 1976, § 5-7-260; form and procedure for introducing ordinances, S.C. Code 1976, § 5-7-270.

(5) Authorize the borrowing of money or the issuance of bonds;

(6) Levy taxes, assess property for improvements or establish charges for services;

(7) Annex area to the city;

(8) Convey or lease or authorize the conveyance or lease of any lands of the city; and

(9) Amend or repeal any ordinance described in subsections (a)(1) through (8) of this section.

(b) In all other matters the council may act either by ordinance or resolution, written or oral, recorded in the minutes.
(Code 1979, § 1-2031)

Sec. 2-82. Codification of ordinances.

All ordinances relating to administration, health, safety, vehicles, streets (except franchises and encroachment), traffic, railroads, crimes and offenses, utilities, solicitations, pollution, municipal court, or descriptions of areas annexed to the city, and other ordinances or portions of ordinances so required by the council, shall be codified and updated annually.

Standard codes, technical regulations and zoning ordinances may be cited in the Code by reference and copies thereof shall be made available by the city clerk for distribution or for purchase at a reasonable price to be determined by the city manager.
(Code 1979, § 1-2032)

State law reference—Adoption of standard technical codes by reference, S.C. Code 1976, § 6-9-10.

Sec. 2-83. Form of ordinances and resolutions.

(a) Every proposed ordinance shall be introduced in writing and in the form required for final adoption, which shall include:

(1) A title briefly describing the contents.

(2) Findings, reasons or basis for the ordinance if desired and appropriate.

(3) An enacting clause.

(4) Citation of any ordinance repealed.

(5) The provisions of the ordinance, including section numbers if the ordinance is to be codified or amends an existing codified ordinance.

(6) The effective date of the ordinance.

(7) The name of the person requesting introduction of the ordinance.

(8) The approval of the city attorney as to form and the assignment of an ordinance number.

(9) Space for the signatures of the mayor or presiding member of the council and the city clerk attesting notice, if required, and adoption.

(b) Written resolutions shall be in such similar form as deemed appropriate by the city attorney.
(Code 1979, § 1-2034)

Sec. 2-84. Introduction of ordinances.

An ordinance may be proposed by any member of the council, the city manager or the head of any department of the city with the approval of the city manager. A proposed ordinance shall be referred to the city attorney for the assignment of an ordinance number and approval as to form. The city attorney shall render assistance in the preparation of notices and ordinances. After an ordinance is in proper form and required notices have been given, the city attorney shall send the ordinance to the city clerk to be held for public inspection, with a copy to the city manager, who shall place it on a regular agenda or special agenda as appropriate. An ordinance shall be deemed to be introduced when it appears on an agenda for a public meeting of the council and its title is read.
(Code 1979, § 1-2035)

Sec. 2-85. Introduction of resolutions.

A voice motion of a member of the council regarding an item on the agenda shall be considered to be the introduction of an oral resolution, which shall require no written record other than a notation of the city clerk in the council minutes. A resolution proposed in writing shall be introduced in the same manner as an ordinance.
(Code 1979, § 1-2036; Ord. No. 2016-042, 6-21-16)

Sec. 2-86. Enactment of ordinances.

(a) An ordinance to levy a tax, adopt a budget, amend a budget, appropriate funds, or grant a franchise, license or right to occupy a public street or public property for commercial purposes shall be complete in the form in which it is finally passed, and in such form remain on file with the city clerk for public inspection at least one week before final adoption. Any other ordinance may be amended on final reading.

(b) No ordinance shall be adopted until it shall have been read two times and on two separate days with at least six days between each reading.

(c) Emergency ordinances may be adopted on one reading without notice or hearing by affirmative vote of two-thirds of the members present. An emergency ordinance may not levy taxes or relate to a franchise or a service rate, and shall expire automatically on the 61st day following enactment.

(d) The introduction and reading of any ordinance shall be by the reading of the title only unless full reading is requested by a member of the council.

(e) After the introduction of an ordinance, any member of the council or any citizen of the city interested therein may request a public hearing, which may be held at any time designated by the council prior to final adoption.

(f) Upon final adoption by vote of the council, an ordinance shall be signed by the mayor or presiding member and attested by the city clerk, who shall file the original in the council minutes and send a copy to the head of each department.
(Code 1979, § 1-2037; Ord. No. 2016-042, 6-21-16)

Sec. 2-87. Adoption of resolutions.

Written or oral resolutions may be adopted on one reading unless a public hearing is set by a majority of the members of the council present.
(Code 1979, § 1-2038)

Secs. 2-88—2-110. Reserved.

ARTICLE III. DIRECTORS, DEPARTMENTS AND EMPLOYEES*

Sec. 2-111. Salaries.

The salaries of the officials and employees of the city shall be as provided in the classification and pay plan submitted by the city manager and approved by the city council. (Ord. No. 2016-092, 12-20-16)

Sec. 2-112. Political activity.

(a) It shall be unlawful for any person employed by the city to use his influence or official position, directly or indirectly, to intimidate or coerce, or to attempt to intimidate or coerce, any person for the purpose of interfering with the right of such person to vote as he may choose, or otherwise causing such person to vote for or against any candidate for municipal office. It shall be unlawful for any person employed by the city to take part in any election by hauling persons to the voting precinct, or to promise employment, favors or awards of any nature or kind, with the purpose of influencing such person to vote for or against any candidate for municipal office.

(b) Any city employee offering for public office of profit shall be required to take a leave of absence for a minimum of 60 days during his campaign.

(c) Any city employee who is elected or appointed to public office of profit shall, upon election or appointment, be required to resign from the service of the city.

(d) Any employee of the city violating the provisions of this section shall immediately be subject to removal from the position which he holds.
(Ord. No. 2016-092, 12-20-16)

Sec. 2-113. Bonds.

Except as otherwise provided, the city council may require suitable bonds of the city manager and other city employees upon recommendation of the city manager, conditioned for the faithful performance of their duties, and the cost of such bonds shall be paid by the city. (Ord. No. 2016-092, 12-20-16)

State law reference—Surety bonds of manager and other municipal employees, S.C. Code 1976, § 5-13-60.

***Editor's note—**Ord. No. 2016-092, adopted Dec. 20, 2016, amended and restated former Art. III, §§ 2-111—2-113, §§ 2-117—2-131, in its entirety to read as herein set out. Former Art. III was titled "Officers and Employees" and derived from Code of 1979, §§ 1-3021—1-3023; Ord. No. 2004-080, 8-11-04; 2016-042, 6-21-16.

Cross references—Any ordinance prescribing the number, classification, or compensation of any city officers, employees or agents not inconsistent with this Code saved from repeal, § 1-11(12); personnel, ch. 16.

Sec. 2-114. Director of finance.

The director of the finance department, subject to the city manager, shall have administrative supervision over accounting, business license, payment center and utility billing. He shall be responsible to the city manager or his designee for the financial planning, and for reviewing ordinances and resolutions relating to expenditures, revenues, tax levies and other fiscal problems. The director shall perform such additional duties as may be assigned to him by the city manager.
(Ord. No. 2016-092, 12-20-16)

Sec. 2-115. Director of information technology services.

The department of information technology services, subject to the city manager, shall be managed by the chief information officer. He shall be responsible for all activities relating to the planning, acquisition, maintenance and operation of the city information systems, GIS and telecommunications, and such additional duties as may be assigned by the city manager.
(Ord. No. 2016-092, 12-20-16)

Sec. 2-116. Director of public works.

The director of public works, subject to the city manager, shall have administrative supervision over animal control, public works, forestry and beautification, fleet maintenance, solid waste, streets, sustainability, and traffic engineering. He shall be responsible for those activities relating to maintenance and operation of public ways and storm drainage, garbage collection and disposal, electrical and street lighting, traffic control, animal control, supervision over the activities relating to landscaping, maintenance and beautification of public space, street division and traffic engineering . He shall be responsible for developing the paving and resurfacing capital improvements program. He shall perform such additional duties as may be assigned to the director by the city manager.
(Ord. No. 2016-092, 12-20-16)

Sec. 2-117. Director of engineering.

The director of engineering, subject to the city manager, shall have administrative supervision over engineering. He shall be responsible for administration, management, maintenance and operation of the storm water system, utility asset management, floodplain management, engineering design and support, real estate, project and construction management, and capital improvement programs. He shall perform such additional duties as may be assigned to him by the city manager.
(Ord. No. 2016-092, 12-20-16; Ord. No. 2017-065, 8-1-17)

Sec. 2-118. Director of utility operations.

The director of utility operations, subject to the city manager, shall have administrative supervision over utility operations. He shall be responsible for management, maintenance

and operation of water treatment and distribution facilities, and wastewater treatment and collection facilities, environmental quality, regulatory compliance, and planning and strategy. He shall perform such additional duties as may be assigned to him by the city manager.
(Ord. No. 2016-092, 12-20-16; Ord. No. 2017-065, 8-1-17)

Sec. 2-119. Director of emergency communications.

The director of emergency communications, subject to the city manager, shall have administrative supervision over the 911 emergency communications systems. He shall perform such additional duties as may be assigned to him by the city manager.
(Ord. No. 2016-092, 12-20-16)

Sec. 2-120. Director of general services.

The director of general services, subject to the city manager, shall have administrative supervision over the department of general services and shall be responsible for those activities relating to parking, fleet services, facilities/building support services, central stores and such duties as may be assigned by the city manager.
(Ord. No. 2016-092, 12-20-16)

Sec. 2-121. Director of community development.

The director of community development, subject to the city manager, shall have administrative supervision over the department of community development. He shall be responsible for those activities relating to community development, and shall perform such additional duties as may be assigned by the city manager.
(Ord. No. 2016-092, 12-20-16)

Sec. 2-122. Director of human resources.

The director of human resources, subject to the city manager, shall have administrative supervision over the department of human resources. He shall be responsible for those activities relating to employment, employee relations, employee health center, safety and risk management, employee benefits and training and shall perform such additional duties as may be assigned by the city manager.
(Ord. No. 2016-092, 12-20-16)

Sec. 2-123. Director of parks and recreation.

The director of parks and recreation, subject to the city manager, shall have administrative supervision over the department of parks and recreation. He shall be responsible for those activities, recreation programs, parks, tennis centers, wellness centers, swimming pools, special events, park landscaping and maintenance, and shall perform such additional duties as may be assigned by the city manager.
(Ord. No. 2016-092, 12-20-16)

Sec. 2-124. Director of economic development.

The director of economic development, subject to the city manager, shall have administrative supervision over the department of economic development. He shall perform such additional duties as may be assigned by the city manager.
(Ord. No. 2016-092, 12-20-16)

Sec. 2-125. Director of planning and development services.

The director of planning and development services, subject to the city manager shall have administrative supervision over the activities relating to annexation, zoning, building codes, building inspections, development review, land development, and planning. He shall perform such additional duties as may be assigned by the city manager.
(Ord. No. 2016-092, 12-20-16)

Sec. 2-126. Director of public and media relations.

The director of public and media relations, subject to the city manager, shall have administrative supervision over the department of public and media relations. He shall perform such additional duties as may be assigned by the city manager.
(Ord. No. 2016-092, 12-20-16)

Sec. 2-127. Director of municipal court.

The director of municipal court, subject to the city manager, shall have administrative supervision over the activities relating to municipal court administration, and city records management and shall perform such additional duties as may be assigned by the city manager.
(Ord. No. 2016-092, 12-20-16; Ord. No. 2020-080, 9-15-20; Ord. No. 2021-099, 12-21-21)

Sec. 2-128. Director of budget and program management

The director of budget and program management, subject to the city manager, shall have administrative supervision over the department of budget and program management and shall be responsible for directing the compilation of the city's annual budget and administer the enterprise-wide program management. He shall perform such additional duties as may be assigned by the city manager.
(Ord. No. 2016-092, 12-20-16)

Sec. 2-129. Director of office of business opportunities.

The director of the office of business opportunities, subject to the city manager, shall have administrative supervision over activities relating to small business loans and grants, small business and disadvantaged business enterprise goals and related programs, capacity building. He shall perform such additional duties as may be assigned by the city manager
(Ord. No. 2016-092, 12-20-16)

Sec. 2-130. Director of procurement and contracts.

The director of procurement and contracts, subject to the city manager, shall have administrative supervision over the department of procurement and contracts. He shall be responsible for managing, directing, facilitating and overseeing all aspects of the city's procurement and contracting process, coordinating with department and division end users to assist in identifying the most appropriate procurement delivery and source selection method for the procurement of goods, supplies, professional and non-professional services; assist in procurement negotiations; provide contract administration duties, develop model procurement strategies and best practice to ensure the timely delivery of products and services, assist in developing, implementing and evaluating city procurement policies, projects and programs to efficiently and effectively meet the needs of its customers and achieve strategic objectives necessary to support all operations of the city while maintaining the highest standards of integrity and ethical conduct.
(Ord. No. 2016-092, 12-20-16)

Sec. 2-131. Director of emergency management.

The director of the office of emergency management, subject to the city manager, shall have administrative supervision over activities relating to an emergency or disaster and any other projects as directed by the city manager. He shall perform such additional duties as may be assigned by the city manager.
(Ord. No. 2016-092, 12-20-16)

Secs. 2-132—2-150. Reserved.

ARTICLE IV. DEPARTMENTS*

Sec. 2-151. Departments created; department heads; administrative regulations and procedures.

(a) The following departments of the city are created:

(1) City clerk;

(2) Information technology services;

***Cross references—**Fire department, § 9-31 et seq.; police department, § 10-31 et seq.; public utilities department, § 23-31 et seq.

(3) Finance;

(4) Legal;

(5) Human resources;

(6) Municipal court;

(7) Police;

(8) Fire;

(9) Public works;

(10) Engineering;

(11) Utility operations;

(12) Community development;

(13) Parks and recreation;

(14) General services;

(15) Economic development;

(16) Planning and development services;

(17) Public and media relations;

(18) Emergency communications;

(19) Budget and program management;

(20) Office of business opportunities.

(21) Procurement and contracts.

(22) Emergency management

(b) The head of each department shall be a director and shall have supervision and control of his department, subject to the city manager. The city manager may serve as director of one or more departments or divisions within any department.

(c) Each department head shall be responsible for preparation of departmental and administrative regulations and procedures subject to the review and approval of the city manager.

(Code 1979, § 1-3002; Ord. No. 2002-085, 10-9-02; Ord. No. 2004-080, 8-11-04; Ord. No. 2007-028, 5-2-07; Ord. No. 2010-026, 2-17-10; Ord. No. 2010-097, 6-23-10; Ord. No. 2016-092, 12-20-16)

Secs. 2-152—2-200. Reserved.

ARTICLE V. PROCUREMENT*

Sec. 2-201. Statutory authority; title; definitions.

The procurement procedures in this article and regulations authorized by this article are adopted pursuant to S.C. Code 1976, § 11-35-50, and may be cited as "The City Procurement Code." Unless otherwise defined herein, terms used in this procurement code shall be defined in accordance with S.C. Code 1976, § 11-35-310.

(Code 1979, § 1-3040; Ord. No. 2014-075, 8-19-14)

Cross reference—Definitions generally, § 1-2.

***Cross references—**Any ordinance promising or guaranteeing the payment of money for the city, or authorizing the issuance of any bond of the city or any evidence of the city's indebtedness, or any contract or obligations assumed by the city saved from repeal, § 1-11(1); any ordinance making any appropriation saved from repeal, § 1-11(6).

Sec. 2-202. Purchasing agent.

The city manager shall appoint a purchasing agent, who shall serve at his pleasure and subject to the finance director. The purchasing agent or a designated department head shall be responsible for procurement under the regulations promulgated by the city manager.
(Code 1979, § 1-3041)

Sec. 2-203. Compliance with federal requirements.

Where a procurement involves the expenditure of federal assistance or contract funds, the city shall also comply with such federal law and authorized regulations as are mandatorily applicable. Notwithstanding, where federal assistance or contract funds are used in a procurement, requirements of this Code and regulations that are more restrictive than federal requirements shall be followed.
(Code 1979, § 1-3043)

Sec. 2-204. Competitive sealed bidding required; exceptions.

All city contracts shall be awarded by competitive sealed bidding except the following as determined pursuant to definitions and standards set by regulations, or except as otherwise provided in this article:

(1) Professional services where the person employed is customarily employed on a fee basis rather than by competitive bidding (examples: appraiser, architect-engineer, auditor, construction/program manager, legal services, physician).

(2) Competitive sealed proposals.

(3) Negotiations after unsuccessful competitive sealed bidding.

(4) Small purchases.

(5) Sole source procurements.

(6) Emergency procurements.

(7) Procurement of information technology.

(8) Leasing of real property for governmental use.

(9) When purchasing through state contracts.

(10) When purchasing through cooperative purchasing.

(11) When purchasing through a competitive online bidding process, including, but not limited to, reverse auctions when the purchasing agent determines that online bidding is more advantageous than other procurement methods provided herein.

(Code 1979, § 1-3044; 2009-120, 12-2-09; Ord. No. 2011-103, 1-17-12; Ord. No. 2013-050, 5-7-13; Ord. No. 2014-075, 8-19-14)

Sec. 2-205. Procurement methods.

Regulations promulgated by the city manager shall provide for a fair and equitable procurement system for the city through one or more of the following methods:

(1) Competitive sealed bidding.

(2) Competitive sealed proposals.

(3) Negotiations after unsuccessful competitive sealed bidding.

(4) Small purchases.

(5) Sole source procurement.

(6) Emergency procurements.

(7) Negotiations for contracts exempted from competitive procurement.

(8) Competitive online bidding, including, but not limited to, reverse auctions.

(Code 1979, § 1-3045; Ord. No. 2013-050, 5-7-13)

Sec. 2-206. Correction or withdrawal of bids; tie bids; cancellation of invitation for bids.

(a) *Withdrawal of bids; cancellation of awards.* Correction or withdrawal of inadvertently erroneous bids before bid opening, withdrawal of inadvertently erroneous bids after award, or cancellation of awards of contracts based on such bid mistakes may be permitted in accordance with regulations promulgated by the city manager. After bid opening, no changes in bid prices or other provisions of bids prejudicial to the interest of the city or fair competition shall be permitted. All decisions to permit the correction or withdrawal of bids, or to cancel awards or contracts based on bid mistakes, shall be supported by a written determination of appropriateness and shall be subject to approval by the city council when the amount involved exceeds $10,000.00.

(b) *Tie bids.* If two or more bidders are tied in price while otherwise meeting all of the required conditions, awards are determined as follows:

(1) Should there be a city firm tied with an out-of-city firm, the award shall be made automatically to the city firm.

(2) Tie bids involving only city firms or only out-of-city firms shall be resolved by the flip of a coin in the office of the procurement officer, witnessed by all interested parties.

(c) *Cancellation of invitation for bids or request for proposals.* An invitation for bids, a request for proposals, or other solicitation may be cancelled, or any or all bids or proposals may be rejected in whole or part as may be specified in the solicitation, when it is in the best interest of the city.

(Code 1979, § 1-3046)

Sec. 2-207. Award of contracts.

(a) The city manager may reject or approve bids and purchase agreements and award contracts in accordance with established procurement regulations, provided that contracts in excess of up to and including $50,000.00 shall be approved by the city council prior to award except that city council approval for bulk purchases of fuel in excess of $50,000.00 is not required, and the city manager is authorized to enter into agreements for the purchase of bulk fuel regardless of the amount. Any contracts signed by the city manager for $25,000.00 to $50,000.00 shall be reported by the city manager to council.

(b) The city manager, at his discretion, may direct the senior assistant city manager or assistant city managers to reject or approve bids and purchase agreements and award contracts in accordance with regulations up to and including $25,000.00.

(c) The city manager, at his discretion, may direct department heads to reject or approve bids and purchase agreements and award contracts in accordance with regulations up to and including $25,000.00.

(d) In the event that the city is under a state of emergency as declared by the mayor, Governor of the State of South Carolina, or the President of the United States, the city manager may reject or approve bids and purchase agreements and award contracts for emergency goods, supplies, equipment and services in accordance with established procurement regulations, without city council approval, for the duration of the state of emergency. After the state of emergency has ended, city council shall ratify any contracts entered into by the city manager during the state of emergency when the contract amount exceeds $50,000.00. In addition, under an officially declared state of emergency mentioned herein, the city procurement regulation 1.15, which regulation establishes procurement threshold amount for small procurements and procurements requiring the solicitation of quotes, shall be amended to adopt the Federal Emergency Management Agency (FEMA) simplified acquisition thresholds then in effect.

(Code 1979, § 1-3047; Ord. No. 2011-024, 5-17-11; Ord. No. 2011-076, 11-1-11; Ord. No. 2016-042, 6-21-16)

Sec. 2-208. Project delivery methods authorized for procurements relating to construction.

(1) The following project delivery methods are authorized for procurements relating to construction of any public infrastructure facility:

(a) Design-bid-build;

(b) Construction management at-risk;

(c) Design-build;

(d) Design-build-operate-maintain; and

(e) Design-build-finance-operate-maintain.

(2) Participation in a report or study that is later used in the preparation of design requirements for a project does not disqualify a firm from participating as a member of a proposing team in a construction management at-risk, design-build, design-build-operate-maintain, or design-build-finance-operate-maintain procurement unless the participation provides the business with a substantial competitive advantage. The city manager or his designee may establish guidance by regulation for the application of this item by departments procuring construction services.

(3) Definitions:

(a) *Construction management at-risk* means a project delivery method in which the City of Columbia awards separate contracts, one for architectural and engineering services to design a public infrastructure facility and the second to a construction manager at-risk for both construction of the public infrastructure facility according to the design and construction management services.

(b) *Design-bid-build* means a project delivery method in which the City of Columbia sequentially awards separate contracts, the first for architectural and engineering services to design a public infrastructure facility and the second for construction of the public infrastructure facility according to the design.

(c) *Design-build* means a project delivery method in which the City of Columbia enters into a single contract for design and construction of a public infrastructure facility.

(d) *Design-build-finance-operate-maintain* means a project delivery method in which the City of Columbia enters into a single contract for design, construction, finance, maintenance, and operation of a public infrastructure facility over a contractually defined period. Money appropriated by the city is not used to pay for a part of the services provided by the contractor during the contract period.

(e) *Design-build-operate-maintain* means a project delivery method in which the City of Columbia enters into a single contract for design, construction, maintenance, and operation of a public infrastructure facility over a contractually defined period.

(f) *Public infrastructure facility* means any public structure, public building, or other public improvements of any kind to real property.

(4) Choice of project delivery method.

(a) *Selection of method.* The project delivery method used for a city construction project must be that method which is most advantageous to the city and results in the most timely, economical, and successful completion of the construction project. The city shall select the appropriate project delivery method for a particular project and shall, for all project delivery methods other than design-bid-build, state in writing the facts and considerations leading to the selection of that particular method.

(b) *City manager review.* The department procuring construction services shall submit its written report stating the facts and considerations leading to the selection of the particular project delivery method to the city manager or his authorized designee for his review.

(Ord. No. 2011-043, 6-21-11; Ord. No. 2014-085, 8-19-14)

Sec. 2-209. Source selection methods assigned to project delivery methods.

(1) *Scope.* This section specifies the source selection methods applicable to procurements for the construction project delivery methods identified in section 2-208, except as otherwise provided by regulation for small purchases, sole source procurements, and emergency procurements.

(2) *Design-bid-build:*

(a) Design, architect-engineer, construction management, and land surveying services. A qualifications-based selection process must be used to procure design, architect-engineer, construction management, and land surveying services, unless those services are acquired in conjunction with construction using one of the project delivery methods provided in subsections (3) through (7) of this section.

(b) Construction. Competitive sealed bidding must be used to procure construction in design-bid-build procurements.

(3) *Construction management at-risk.* Contracts for construction management at-risk must be procured by either competitive sealed bidding or competitive sealed proposals.

(4) *Design-build.* Contracts for design-build must be procured by competitive sealed proposals.

(5) *Design-build-operate-maintain.* Contracts for design-build-operate-maintain must be procured by competitive sealed proposals.

(6) *Design-build-finance-operate-maintain.* Contracts for design-build-finance-operate-maintain must be procured by competitive sealed proposals.

(Ord. No. 2011-043, 6-21-11; Ord. No. 2014-085, 8-19-14)

Sec. 2-210. Purchase and sale of real property, exceptions for certain utilities project and site acquisitions.

(a) When the city desires to purchase real property for public use, the following procedures shall be followed:

(1) The property shall be appraised by a licensed South Carolina certified general real estate appraiser.

(2) The city manager or a designee may commence contract negotiations to purchase real property.

(3) Contract negotiations may be discussed with city council in executive session as provided for by the South Carolina Freedom of Information Act.

(4) City council shall make the final determination to contract for the purchase of the real property.

(b) When the city desires to sell surplus real property, the following procedures shall be followed:

(1) The property shall be appraised by a licensed South Carolina certified general real estate appraiser.

(2) The property shall be deemed surplus by the city manager, who has discretion to determine the method of disposal to be used, which may include but not be limited to, a sealed bid process, listing the property with a private broker, listing the property for auction with a private auctioneer, or any other method determined by the city manager to be commercially reasonable considering the type and location of property involved.

(3) Contract negotiations may be discussed with city council as provided for by the South Carolina Freedom of Information Act.

(4) City council shall make the final determination to contract for the sale of the real property.

(c) The procedures for the purchase of real property shall not apply to the acquisition of real property to be used by the City for pump stations, lift stations, pressure reducing valve sites, public streets, water lines, sanitary sewer lines, storm drainage lines, monitoring sites, mitigation sites, stormwater projects and utility easements.
(Ord. No. 2011-101, 12-20-11; Ord. No. 2022-077, 8-2-22)

Secs. 2-211—2-300. Reserved.

ARTICLE VI. LOBBYIST

Sec. 2-301. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning.

Lobbying means promoting or opposing through direct communication with city council members:

(1) The introduction or enactment of an ordinance or resolution; or

(2) The awarding of a city contract;

Lobbying does not include the activities of a member of city council, city staff or any public official with regard to their public duties.

Lobbyist means any person who is employed or retained, with compensation, by another person to lobby city council. Lobbyist does not include:

(1) An individual who receives no compensation from another person to engage in lobbying.

(2) A person who expresses a personal opinion, or discusses a constituent matter in relation to city services, or any other matter in which the person is not receiving compensation to lobby.

(3) A person who is a full-time, permanent employee of a governmental agency, a not-for-profit corporation, or a company and is lobbying as a result of his or her employment with such agency, not-for-profit corporation or company.

(Ord. No. 2004-094, 12-15-04)

Sec. 2-302. Registration of lobbyists.

(a) Any person who acts as a lobbyist must, within 15 days of being employed or retained as a lobbyist, register with the city clerk.

(b) The registration must be in a form approved by the city council that includes only the name and business address of the lobbyist, the name and business address of the person or entity who compensates the lobbyist, and the issue or matter for which the lobbyist has been retained. A separate form shall be submitted for each issue or matter and each person or entity who compensates the lobbyist.

(c) Any lobbyist who is employed by the city or has contracts with the city, must seek approval by city council to be a lobbyist for other clients so long as he is employed or under contract.

(Ord. No. 2004-094, 12-15-04)

Sec. 2-303. Prohibited acts.

(a) A lobbyist or a person acting on behalf of a lobbyist shall not offer, facilitate or provide to or on behalf of a city council member or city employee, any of the following that exceeds a total yearly value of $25.00: lodging; transportation; entertainment; food; meals; beverages; money or any other thing of value or contributions as defined in S.C. Code § 8-13-1300(7).

(b) No member of city council or any city employee shall knowingly solicit or accept, for his or her personal use or benefit, from any person known to be a lobbyist any of the following that exceeds a total yearly value of $25.00: lodging; transportation; entertainment; food; meals; beverages; money or any other thing of value or contributions as defined in S.C. Code § 8-13-1300(7). This prohibition shall not apply to any function to which all members of city council are invited.

(c) Subsections (a) and (b) of this section do not apply to the rendering of emergency assistance given gratuitously and in good faith by a lobbyist.
(Ord. No. 2004-094, 12-15-04)

Sec. 2-304. Penalties.

Any person who violates any provision of this article shall be punished in accordance with section 1-5 of this Code.
(Ord. No. 2004-094, 12-15-04)

Secs. 2-305—2-350. Reserved.

ARTICLE VII. CONVICTION AND WAGE HISTORY PROHIBITION IN CITY EMPLOYMENT AND BY CITY CONTRACTS AND CITY VENDORS

Sec. 2-351. Purpose.

The purpose of this article is to ensure that the hiring practices of the City of Columbia do not, and urge private employers and government contractors doing business with the City of Columbia, to not unfairly deny people with arrest and conviction records employment and to further encourage rehabilitation of people with records to strengthen communities as well as to ensure that salary offers are based upon the job responsibilities of the position sought and not based upon the prior wages earned by the applicant.
(Ord. No. 2019-022, 8-6-19)

Sec. 2-352. Definitions.

Unless otherwise expressly stated, the following terms shall, for the purposes of this Code, have the meanings shown in this section. Where terms are not defined, through the methods authorized by this section, such terms shall have ordinarily accepted meaning such as the context implies.

Adverse action means to refuse to hire, to not promote, to discharge a person, or to revoke an applicant's conditional offer of employment.

Applicant means any person considered for, or who requests to be considered for, employment or any employee considered for, or who requests to be considered for, another employment position, by the employer.

Awarding authority means any department, agency, or office of the city that authorizes a vendor to provide requested goods and/or perform services.

City means the city, department, agency, or office thereof.

Employer means the City of Columbia as a municipal corporation.

Employment means any occupation, vocation, job, or work for pay, including temporary or seasonal work, contracted work, contingent work and work through the services of a temporary or other employment agency; or any form of vocational or educational training with or without pay.

To inquire means to ask a job applicant in writing or otherwise.

Vendor means any vendor, contractor, or supplier of goods or services to the city.

Wages means all earnings of an employee, regardless of whether determined on time, task, piece, commission or other method of calculation and including fringe benefits, wage supplements, or other compensation whether payable by the employer from employer funds or from amounts withheld from employee's pay by the employer.
(Ord. No. 2019-022, 8-6-19; Ord. No. 2019-098, 12-13-19)

Sec. 2-353. Considering conviction history in employment decisions.

(a) *Identifying position as requiring background check.* The employer shall not conduct background checks on applicants unless the employer has made a good faith determination that the relevant position is of such sensitivity that a background check is warranted or if a background check is required by law.

(b) *Posting job announcements.* All job announcements and position descriptions shall contain the following information if the position requires a background check, unless otherwise required by law: "This position is subject to a background check for any convictions directly related to its duties and responsibilities. Only job-related convictions will be considered and will not automatically disqualify the candidate."

(c) *Job applications.* Job applications shall not inquire into an applicant's conviction history.

(d) *Notice of rights.* Prior to any conviction history check, the employer shall send the applicant a conditional offer letter, notice of rights under this ordinance, and a request for authorization to conduct a background check, if so required.

(e) *Limitation to conviction history.* The employer shall not use or access the following criminal records in relation to a background check: records of arrest not followed by a valid conviction, sealed, dismissed, or expunged convictions, misdemeanor convictions where no jail sentence can be imposed, and infractions.

(f) *Conviction history inquiry.* The employer shall not inquire into or consider an applicant's conviction history until after the applicant has received a conditional offer. If the employer is considering the conviction history of the applicant, the employer shall consider

job-related convictions only. If a statute explicitly requires that certain convictions are automatic bars to employment, then those convictions shall be considered as well. Otherwise, no person shall be disqualified from employment, solely or in part because of a prior conviction, unless it is a job-related conviction. In determining if a conviction is job-related, the employer shall consider:

(1) Whether the conviction is directly related to the duties and responsibilities of that employment position;

(2) Whether the position offers the opportunity for the same or a similar offense to occur;

(3) Whether circumstances leading to the conduct for which the person was convicted will recur in the position; and

(4) The length of time since the offense occurred.

(g) *Pre-adverse action notice.* If an applicant's conviction history contains information that may be the basis for an adverse action, the employer shall:

(1) Identify the conviction item(s) that are the basis for the potential adverse action;

(2) Provide a copy of the conviction history report, if any;

(3) Provide examples of mitigation or rehabilitation evidence that the applicant may voluntarily provide; and

(4) Provide the applicant with an individualized assessment as described below.

(h) *Individualized assessment.* A job-related conviction shall not be the basis for an adverse action if the applicant can show evidence of mitigation or rehabilitation and present fitness to perform the duties of the position sought. The applicant shall have ten business days, after issuance of the notice, to respond with any information rebutting the basis for the adverse action, including challenging the accuracy of the information and submitting mitigation or rehabilitation evidence. The employer shall hold the position open until it makes the final employment decision based on an individualized assessment of the information submitted by the applicant and the factors recommended by the U.S. Equal Employment Opportunity Commission.

(i) *Evidence of mitigation or rehabilitation.* Evidence of mitigation or rehabilitation may be established by:

(1) Evidence showing that at least one year has elapsed since release from any correctional institution without subsequent conviction of a crime; and evidence showing compliance with terms and conditions of probation or parole; or

(2) Any other evidence of mitigation or rehabilitation and present fitness provided, including, but not limited to, letters of reference.

(j) *Final notice.* If the employer makes an adverse decision, the applicant shall be informed of the final decision and that he or she may be eligible for other positions.

(k) *Confidentiality.* Any information pertaining to an applicant's background check obtained in conjunction with the hiring process shall remain confidential, and shall not be used, distributed, or disseminated by the employer or any of its agencies, or its vendors, to any other entity, except as required by law.
(Ord. No. 2019-022, 8-6-19)

Sec. 2-354. Prohibition on inquiries into wage history.

(a) *Prospective employees.* The city shall not inquire about a prospective employee's wage history, require disclosure of wage history, or condition employment or consideration for an interview or employment on disclosure of wage history, or retaliate against a prospective employee for failing to comply with any wage history inquiry or for otherwise opposing any act made unlawful by this article.

(b) *Salary or contract negotiations.* The city shall not rely on the wage history of a prospective employee from any current or former employer of the individual in determining the wages for such individual at any stage in the employment process, including the negotiation or drafting of any employment contract, unless such applicant knowingly and willingly disclosed his or her wage history to the employer, employment agency, employee, or agent thereof.

(c) *Job applications.* Job applications shall not inquire into an applicant's wage history.
(Ord. No. 2019-022, 8-6-19)

Sec. 2-355. Vendors.

(a) The city encourages vendors that do business with the city to adopt and employ conviction and wage history policies, practices, and standards that are consistent with city standards outlined in this chapter.

(b) During the bid or contracting process, the awarding authority can review all vendors' conviction and wage history policies for consistency with city standards. The vendors' conviction and wage history standards can be part of the criteria to be evaluated by the city when determining whether to award a city contract. Further, the city will be able to evaluate a vendor's execution of the conviction and wage history standards as a part of the performance criteria of said city contract(s). The awarding authority can, if it so chooses, consider these conviction and wage history standards when considering all city contracts.
(Ord. No. 2019-022, 8-6-19)

Sec. 2-356. Compliance.

(a) *Records.* The employer shall retain application forms, records of employment, and other pertinent data and records required under this chapter, including but not limited to, communication with the applicant, for a minimum of three years, and shall allow access to such records to appropriate entities if a dispute shall arise regarding the provisions of this chapter.

(b) *Data collection*. The employer shall maintain a record of the number of positions requiring background checks and for those positions, shall maintain a record of the number of applicants and the number of applicants who were provided a conditional offer. In addition, the employer shall maintain a record of the number of applicants with a record for a position:

(1) Who were provided a pre-adverse action notice;

(2) Who provided evidence of mitigation or rehabilitation;

(3) Who were provided a final adverse notice; and

(4) Who were hired.

(Ord. No. 2019-022, 8-6-19)

Chapter 3

ADVERTISING*

Sec. 3-1. Distribution of handbills and newspapers.
Sec. 3-2. Painting advertising matter on sidewalks or other public property.
Sec. 3-3. Flashing and confusing signs and lights prohibited.

***Cross references—**Licenses, permits and miscellaneous business regulations, ch. 11; signs, § 17-401 et seq.

State law reference—Intentional false advertising, S.C. Code 1976, § 39-1-20.

Sec. 3-1. Distribution of handbills and newspapers.

(a) *Definitions.* For purposes of this section, the following definitions shall apply:

(1) *Commercial handbill* means any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, paper or booklet, or any other printed or otherwise reproduced original or copies of any matter of literature which:

a. Advertises for sale any merchandise, product, commodity or thing;

b. Directs attention to any business or mercantile or commercial establishment, or other activity, for the purpose of either directly or indirectly promoting the interest thereof by sale;

c. Directs attention to or advertises any meeting, theatrical performance, exhibition or event of any kind, for which an admission fee is charged for the purpose of private gain or profit; or

d. While containing reading matter other than advertising matter, is predominantly and essentially an advertisement, and is distributed or circulated for advertising purposes, or for the private benefit and gain of any person so engaged as advertiser or distributor.

(2) *Newspaper* means any newspaper of general circulation as defined by general law, any newspaper duly entered with the United States Postal Service in accordance with federal statute or regulation, and any newspaper filed and recorded with any recording officer as provided by general law.

(3) *Noncommercial handbill* means any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, newspaper, magazine, paper or booklet, or any other printed or otherwise reproduced original or copies of any matter of literature not included in the definition of a commercial handbill or newspaper in this section.

(b) *Distribution of commercial handbills in public place.* It shall be unlawful for any person to hand out or distribute or sell any commercial handbill in or upon any sidewalk, street, park or other public place.

(c) *Littering; placing on vehicles.* It shall be unlawful for any person to throw or deposit any commercial or noncommercial handbill or newspaper in or upon any sidewalk, street, park or public place, vehicle or private premises within the city. This specifically includes placing such handbills or newspapers upon unoccupied vehicles.

(d) *Distribution of handbills on private property.* It shall be unlawful for any person to hand out or distribute or sell any commercial or noncommercial handbill upon any private premises, if requested by anyone thereon not to do so, or if there is placed on the private premises a conspicuous notice indicating in any manner that the occupants of the premises do not desire to be molested, or have their right of privacy disturbed, or to have any such handbills left upon the premises.

(e) *Exemption for mail and newspapers.* The provisions of subsections (a) through (d) of this section shall not apply to the distribution of mail by the United States or to the distribution of newspapers, except that newspapers shall be placed on private property in such a manner as to prevent their being carried or deposited by the elements upon any sidewalk, street or other public place or upon other private property. The chief of police may regulate the public places of distribution of newspapers in the interest of safety.

(f) *Obstruction of traffic.* It shall be unlawful for any person to hand out or distribute any commercial or noncommercial handbill or newspaper in a manner which would obstruct or interfere with pedestrian or vehicular traffic in or upon any sidewalk, street or other public place.

(g) *Obscene material.* It shall be unlawful for any person to distribute at any place in the city any commercial or noncommercial handbill or newspaper which is obscene as defined by state law.

(Code 1979, § 9-2001)

Cross reference—Distributing material, soliciting or conducting transactions on street, § 14-32.

Sec. 3-2. Painting advertising matter on sidewalks or other public property.

(a) Except as hereinafter provided no person shall print, paint or in any other way deface the sidewalks, streets, parks or other public property of the city for advertising or other purposes. The police department or any other department of the city may mark the sidewalks, streets or other public property for the purpose of controlling traffic or for any other purpose.

(b) Owners of property zoned for residential use may paint the house or building number of their premises upon the curb of the street upon which their property abuts. Building or street numbers shall be displayed in white on a dark green or black background of not more than nine inches in height by 18 inches in width. Numbers and letters shall be four inches in height.

(Code 1979, § 9-2003; Ord. No. 2002-12, 4-10-02; Ord. No. 2014-034, 6-7-14)

Editor's note—Ord. No. 2014-034, adopted June 7, 2014, repealed former § 3-2 in its entirety and renumbered former §§ 3-3, 3-4 as §§ 3-2, 3-3. Former § 3-2 pertained to approval of signs and derived from the Code of 1979, § 9-2002.

Cross reference—Streets, sidewalks and other public places, ch. 22.

Sec. 3-3. Flashing and confusing signs and lights prohibited.

Notwithstanding any other provisions of this Code, any advertising or commercially used sign or light located in whole or in part within 25 feet of the right-of-way of any street and which sign or light moves, flashes, blinks, fluctuates, is animated or rotates, or which contains any lights, whether flashing or not, similar in color and size, or color and shape, or color and arrangement, to any traffic control device or emergency vehicle light, is hereby declared to be a public nuisance and is prohibited. Signs giving public service information such as time, date, temperature, weather or similar information intermittently with low intensity lights which are not similar in any respect to traffic control devices or emergency lights are not prohibited.

It shall be unlawful for any person to install, cause to be installed, operate, maintain or modify any sign prohibited by this chapter as a nuisance, and each day such nuisance is maintained shall be a separate offense.
(Code 1979, § 9-2004; Ord. No. 2014-034, 6-7-14)

Chapter 4

ANIMALS*

Article I. In General

Sec. 4-1. Killing, injuring or disturbing squirrels or birds.
Secs. 4-2—4-30. Reserved.

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Sec. 4-32. Keeping hogs.
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Sec. 4-34. Keeping livestock and fowl generally; location of pens and stables.
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Sec. 4-91. Prohibited; exceptions.
Sec. 4-92. Impoundment.

***Cross references—**Environmental health and sanitation, ch. 8; rat control, § 8-261 et seq.; horse drawn vehicles for hire, § 24-171 et seq.

State law references—Animal control, S.C. Code 1976, §§ 47-5-140—47-11-160; crimes involving animals, S.C. Code 1976, §§ 47-1-10—47-1-170.

Sec. 4-93. Restraint of an aggressive animal.
Sec. 4-94. Penalties.
Sec. 4-95. Signage for guard dogs or attack dogs.
Sec. 4-96. Insurance requirements for guard dogs or attack dogs.

ARTICLE I. IN GENERAL

Sec. 4-1. Killing, injuring or disturbing squirrels or birds.

It shall be unlawful for any person to kill, maim or otherwise annoy with firearms, air rifles or slingshots, or in any other manner, the squirrels and birds within the limits of the city or within the limits of any park or playground owned by the city, or to disturb the nests of such birds and squirrels; provided that any owner, authorized agent, lessee or tenant of real estate in the city frequented by squirrels in number sufficient to create a nuisance on or cause damage to any property thereon may apply to the animal services division for a permit and may be authorized to humanely trap or have humanely trapped by a private wildlife or pest control agency and then appropriately relocate the squirrel(s) or birds.
(Code 1979, § 9-5003; Ord. No. 2016-093, 12-6-16)

Secs. 4-2—4-30. Reserved.

ARTICLE II. LIVESTOCK*

Sec. 4-31. Livestock and fowl running at large.

It shall be unlawful for any person who may own or have under his control any horse, mule, ass, jennet, swine, sheep, goat, goose, chicken and other fowl, or cattle of any description to allow or permit the animal or fowl to run at large within the corporate limits of the city.
(Ord. No. 2009-106, 6-2-10)

Cross reference—Streets, sidewalks and other public places, ch. 22.

Sec. 4-32. Keeping hogs.

It shall be unlawful for any person to keep or maintain any hogs or pigs within the corporate limits of the city.
(Ord. No. 2009-106, 6-2-10)

Sec. 4-33. Raising or keeping fowl or rabbits.

The raising or maintaining of live fowl and rabbits is prohibited within the city, except as provided in this article with regard to the keeping of chickens.
(Ord. No. 2009-106, 6-2-10)

Sec. 4-34. Keeping livestock and fowl generally; location of pens and stables.

It shall be unlawful for any person to own livestock and live fowls, other than chickens as provided in this article, or to establish a stable or riding academy or to engage in the

*__Editor's note—__Ord. No. 2009-106, adopted June, 2, 2010, amended and restated former Art. II, §§ 4-31—4-35, in its entirety which pertained to similar subject matter and derived from the Code of 1979.

business of renting, hiring, selling or trading livestock or live fowls within the city; provided, however, that the provisions of this section shall not apply when the stable or pen for keeping livestock or live fowls is so situated as to maintain a distance of at least 500 feet between the livestock and live fowls and any improvements or structure used for residential, commercial, professional, recreational, church, school or other institutional purposes, and provided further that the livestock or live fowls are kept securely penned in a clean and sanitary manner and in conformance with all county and state regulations and city public service department regulations.
(Ord. No. 2009-106, 6-2-10)

Sec. 4-35. Raising or keeping chickens, generally.

The keeping of chickens shall be in compliance with the following, in addition to any zoning and/or building regulations that may be applicable to the construction of coops and runs:

(1) No more than four hens shall be kept or maintained on a single premise. No roosters shall be allowed.

(2) Such hens must be confined in a coop not less than 18 inches in height and with a minimum square feet of floor area of two square feet per hen over four months of age, connected to a run of not less than nine square feet for one bird; 12 square feet for two birds; 16 square feet for three birds; or 20 square feet for four birds over four months of age, which shall be fully enclosed. Coops must be completely enclosed and constructed in a uniform manner of a sturdy material that provides protection from potential predators and the elements and properly ventilated. Runs must be constructed of a fencing material that prevents potential predators from getting in and prevents the hens from escaping.

(3) The run must be well drained so there is no accumulation of chicken excrement and shall be cleaned regularly with all droppings and excretion disposed of in a manner so as not to cause an odor or attract flies, unless otherwise disposed of in accordance with any federal, state or local health regulations.

(4) Coops must be screened from the side or rear lot line by shrubbery or a privacy fence if it comes within 25 feet of the property line and/or 50 feet of the nearest residence other than that of the owner.

(5) No person shall slaughter any chickens on his premises.

(6) It shall be unlawful to raise chickens for commercial purposes within the corporate limits of the city or to sell eggs laid by chickens kept in the corporate limits of the city.

(7) No person shall keep chickens on his premises within the city without first obtaining:

a. A zoning permit for an accessory structure from the planning and development services department; and

b. A certificate of inspection from the animal control division, issued pursuant to this section, for which an annual inspection fee of $5.00 per bird shall be paid, and for which an acknowledgment of the receipt of an informational presentation on proper hen raising, coop design and maintenance shall be required.

(Ord. No. 2009-106, 6-2-10)

Sec. 4-36. Impoundment.

(a) *Duty to impound.* It shall be the duty of the animal control officer or any police officer to seize any and all animals and/or fowl, other than common household pets, that may be found in violation of the provisions of this article within the city.

(b) *Advertisement.* Upon the impoundment of any animal or fowl under the provisions of this section, the city shall immediately advertise the animal at the police headquarters, giving a correct description thereof.

(c) *Redemption.* Should the owner of any animal or fowl impounded under the provisions of this section appear within four days thereafter and prove his right to the possession of the animal or fowl, then the city shall deliver the animal or fowl to him on the payment of all fees due as a result of such impoundment.

(d) *Fees.* A fee of $20.00 shall be charged for each animal or fowl impounded under the provisions of this section. In addition thereto, there shall also be charged against such animal and fowl all expenses actually incurred by each animal or fowl so impounded for feeding, care and keeping of the animal or fowl.

(e) *Sale; disposition of proceed*s. Should no owner appear within the time described in subsection (c) of this section or, appearing, should the owner fail or refuse to pay the fees or fine imposed, then it shall be the duty of the city to expose to public sale such animal or fowl impounded for the satisfaction of such fine.

(Ord. No. 2009-106, 6-2-10)

Sec. 4-37. Temporary use of goats for prescribed grazing.

(a) *Definitions.* Prescribed grazing means the temporary use of goats as a landscape management technique to control the growth of undesirable vegetation and a prescribed grazing permit means a permit issued by the city's planning and development department that allows prescribed grazing of only female and neutered goats within the city limits, the purpose of which is to establish conditions under which the temporary and periodic use of a limited number of goats for prescribed grazing for vegetative landscaping.

(b) *Permit required.* Notwithstanding the restrictions on livestock as may be found in chapter 4, article II, a prescribed grazing permit to be issued by the city's planning and development department, must be obtained prior to the use of any goats within the city limits for the limited purpose of prescribed grazing. A one-time fee of $25.00 shall be charged to offset the cost of administering this permit and such permit shall be nontransferable.

(c) *Standards.* The use of goats for prescribed grazing shall be compliant with the current standards and procedures promulgated by the animal services division as prescribed grazing permit conditions. In addition to other, more specific standards as may be set forth in the prescribed grazing permit conditions, the following shall apply to all permits:

(1) An application for a prescribed grazing permit must include at a minimum: a detailed site plan, a description of the fencing to be used, the dates the project will begin and end, a signature of the premises owner, the company name and contact information of the goat supplier, as well as a certificate of insurance maintaining coverage in an amount of $1,000,000.00 per occurrence, and $2,000,000.00 in the aggregate from the goat supplier; and,

(2) No more than five goats per ¼ acre and no more than 15 goats per project will be allowed and no front yard grazing shall be allowed on lots with a residence; and,

(3) The use of one joule or less electrified low voltage fencing may be allowed for the duration of the permit subject to approval and provided a copy of the permit is displayed on the premises; and,

(4) All fencing must have a warning sign clearly visible and posted every 25 feet with a minimum of one sign per side of fencing with said fencing to be placed not closer than one foot from adjacent occupied property and for front-yard grazing on vacant lots an additional orange-colored fence shall be required four feet in front of any electrified fencing and at least two feet back from front property line; and,

(5) All premises on which goats are kept shall be clean and used in a manner so as not to constitute a nuisance either by odor, noise, attraction of vermin, impairment of water quality, or violation of any other regulation found elsewhere in Columbia's Code of Ordinances.

(d) *Duration.* No person shall keep any goats under a prescribed grazing permit for longer than seven consecutive days or 14 total days in any six-month period. The permit shall issue only when in the discretion of the department the keeping of such an animal in a yard or building under the circumstances as set forth in the application for the permit will not injuriously affect the public health.

(e) *Inspections and enforcement.* The premises for which a permit issues shall at all times be open to inspection by a city official during the grazing period. If a violation of the permit terms is found, the property owner or goat owner will be notified and the violation remedied within 24 hours or the permit may be revoked by the issuing department.
(Ord. No. 2023-099, 12-5-23)

Secs. 4-38—4-60. Reserved.

ARTICLE III. ANIMAL CONTROL*

DIVISION 1. GENERALLY

Sec. 4-61. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Aggressive animal means any animal which exhibits unprovoked behavior which causes a person to reasonably believe that the animal may cause harm to a person or another animal for which an adequate enclosure, confinement, restraint, muzzling or training would protect the public or other animals from harm or the threat of harm by the animal. Such behavior includes, but is not limited to, growling, baring teeth, snarling, snapping, charging, or nuisance biting.

Animal control shelter means any premises designed by the city for the purpose of impounding and caring for all pets found at large or otherwise in violation of this article, or which are surrendered to the city by the owner.

Animal control superintendent means that person employed by the city to administer the animal control program.

Animal control worker means any person employed by the city to enforce the animal control program.

Dangerous animal.

(1) Dangerous animal means:

a. Any animal which the owner knows or reasonably should know has a propensity, tendency or disposition to attack unprovoked, to cause injury or to otherwise endanger the safety of human beings or pets for which an adequate enclosure, confinement, restraint, muzzling or training would not or does not protect the public or other animals from harm or the threat of harm by the animal; to be determined with consideration given to the following factors, which are listed by way of illustration and not limitation: the animal's behavior, its size, its temperament, its breed, and its capacity for inflicting serious injury; the likelihood that the conditions pertaining to the animal are detrimental to the safety or welfare of citizens in the immediate surrounding area; that there is a child under the age of 12 or a vulnerable adult, as defined in S.C. Code Ann. Section 43-35-10 (2006), who lives in close proximity or walks by or is otherwise in close proximity to the property occupied by the animal; that the animal has

*__State law references—__Dogs generally, S.C. Code 1976, §§ 44-1-80, 47-3-10—47-3-70; Rabies Control Act, S.C. Code 1976, §§ 44-1-80, 47-5-10—47-5-210.

bitten a human being or domestic animal without provocation or a trespass or has approached a person in an apparent attitude of attack; or other similar factors which would be relevant.

b. An animal which attacks a human being or a pet without provocation;

c. An animal owned, kept or harbored primarily, or in part, for the purpose of dogfighting.

d. An animal used to threaten or intimidate citizens or other animals.

(2) An animal shall not be deemed dangerous if:

a. It bites, attacks or menaces:

1. Anyone assaulting the owner;

2. A trespasser on the property of the owner; or

3. Any person or other animal who has tormented or abused it;

b. It is otherwise acting in defense of an attack from a person or other animal upon the owner or other person; or

c. It is protecting or defending its young or another animal.

Dog means all members of the canine family.

Guard dog and *attack dog* mean any dog which has been trained to attack persons independently or upon oral command and any dog which, while not so trained, is reasonably expected to perform as a guardian of its owner and/or the property upon and within which the dog is located and is owned by a licensed security service or is owned or used by law enforcement agencies.

Kennel means the premises of any person engaged in the business of breeding, buying, selling or boarding dogs or who keeps four or more dogs on the premises.

Nuisance biting means an animal bite which does not result in injury or bodily injury.

Owner means any person owning, keeping, harboring or acting as custodian of a pet.

Pet means any animal or fowl kept for pleasure rather than utility or commercial purposes.
(Code 1979, § 9-5021; Ord. No. 2001-070, 6-26-02; Ord. No. 2007-054, 9-19-07; Ord. No. 2016-093, 12-6-16)

Cross reference—Definitions generally, § 1-2.

Sec. 4-62. License for dogs and cats; rabies vaccination.

(a) *License required; proof of rabies vaccination.* It shall be unlawful for the owner of any dog or cat to fail to provide any dog or cat over four months of age with a current city license tag. The owner of any dog or cat over four months of age must also have a current rabies vaccination tag showing that such animal has been vaccinated. No license shall be issued unless proof of inoculation is shown. No new license shall be issued to a person, or anyone who resides with a person, who has been convicted of a violation of section 4-91 in the preceding five (5) years. These persons may, however, renew a license for an animal that was licensed at the time of the conviction, provided that a license shall never be renewed for the animal that provided the basis of the conviction. Any dog or cat owner who moves in the city for the purpose of establishing residency or who becomes a resident as a result of annexation shall have 30 days in which to obtain the license.

(b) *Fees generally; expiration and renewal; duties of veterinarians.* The city license fee for fertile dogs and cats shall be $25.00 per year. The city license fee for sterilized dogs and cats shall be $5.00 per year. Each license required by this article shall be good for one year from the date of its issuance and no longer. Licenses shall be renewed annually and may be renewed 60 days in advance of expiration. At the end of each month, all licensed veterinarians shall transmit complete and legible copies of all rabies vaccination certificates issued during the month to the city's superintendent of animal control.

(c) *Exemptions from differential license fees.*

(1) Any owner of a dog or cat who can furnish a statement by a licensed veterinarian that for medical reasons, the spay or neuter procedure is not appropriate at this time.

(2) Any owner of one or more purebred dogs or cats who can furnish proof of participation in at least three nationally recognized conformation or obedience shows within the past 12 months.

(3) Any owner of a dog which is trained and certified to be an assistance dog for its owner.

(d) *Tags.* The public services department shall annually provide a sufficient number of durable tags suitable for dogs and cats numbered from "1" upwards, on which shall be stamped the year and the words "dog/cat license." Such tags must be worn by all dogs and cats in the city at all times, except that an animal shall not be required to wear a tag if the animal has been permanently marked in a painless manner with an identification number issued by the public services department for that purpose. The permanent mark must be located in a position approved by the public services department.

(e) *Records.* The public services department shall obtain the name and address of each party to whom a license and tag or permanent number has been issued under the provisions of this article and shall keep the name and address on file in the offices of the department for the purpose of identification.
(Code 1979, §§ 9-5022, 9-5023; Ord. No. 99-046, 8-4-99; Ord. No. 2001-070, 6-26-02; Ord. No. 2007-054, 9-19-07)

Sec. 4-63. Kennels.

(a) *Certification of inspection.* No person shall own or operate a dog kennel or keep four or more dogs on his premises within the city without first obtaining a certificate of inspection from the animal control division, issued pursuant to this section, for which an annual inspection fee of $100.00 shall be paid.

(b) *Standards for commercial kennels.* Commercial kennels shall be constructed, maintained and operated in conformance with the current standards and procedures promulgated by the Humane Society of the United States.

(c) *Standards for noncommercial kennels.*

(1) Floors must be constructed of impervious material and treated with sealer and must slope at least one-half inch per foot for drainage to the sanitary sewer.

(2) All kennels must be connected to the city's sanitary sewer system in a manner approved by the city engineer.

(3) Dogs must be confined to enclosures of at least fifty (50) square feet per animal. Enclosures must have an impervious floor and have a completely enclosed area in which all confined animals will be kept at night. Kennels must be constructed in accordance with the building code of the city and inspected by the building official.

(4) Enclosures must have water available at all times.

(5) Enclosures must be cleaned at least once per day by rinsing into the sanitary sewer.

(6) Enclosures must be screened from the side or rear lot line by shrubbery or a privacy fence.

(Code 1979, § 9-5024; Ord. No. 2001-070, 6-26-02; Ord. No. 2016-093, 12-6-16)

Sec. 4-64. Restraint or confinement of dogs.

(a) All dogs must be kept under restraint or confinement within the city limits. Restraint or confinement means (1) on a leash held by a person of sufficient judgment and physical strength to control the dog and to prevent the dog from attacking, threatening or annoying other people or other animals; (2) confinement in an enclosure; or (3) confinement to the property or specific areas of the property of the owner by way of "invisible fencing" or electronic control by way of a transmitter which directs a radio signal to a pet collar which corrects the dog's approaching a perimeter or confinement area wire. Electronic fencing equipment must be approved by the American Society of Prevention of Cruelty to Animals, Humane Society of the United States or the superintendent of animal control for the City of Columbia. Any perimeter or confinement area must be flagged or signed in a conspicuous way so as to provide notice of confinement to pedestrians. Any dogs not so restrained or confined will be deemed unlawfully running at large within the city limits.

(b) It shall be unlawful for any animal to be confined by tethering for more than nine hours in any 24-hour period. Tethers shall be not less than ten feet in length and shall not allow the animal to approach within four feet of the owner's property line. The use of tethers must be humane in all other respects.

(c) Owners of dogs allowed to run at large within the city are guilty of a misdemeanor and are subject to the penalties provided by law for violation of this article. The citation will prescribe the amount of bond to be posted by the violator at the municipal court. A warrant will be issued and served on violators who fail to post bond within three days after issuance of the citation.

(Code 1979, § 9-5025; Ord. No. 99-046, 8-4-99; Ord. No. 2001-070, 6-26-02)

Sec. 4-65. Ownership of dogs running at large; removal of animal waste.

(a) Any owner whose dog is found unlawfully running at large or being at large within the city limits shall have no property right or right of ownership in the dog.

(b) The owner of every animal shall be responsible for the removal of any excreta deposited by his animal on public walks and ways, recreation areas or private property.

(Code 1979, § 9-5026; Ord. No. 2001-070, 6-26-02)

Sec. 4-66. Impoundment of pet animals; voluntary surrender of animal by owner.

(a) Any animal found within the city limits in violation of the provisions of this article may be caught and impounded by city authorities. If an animal cannot be caught in a safe, efficient manner, animal control personnel may tranquilize the animal by use of a

tranquilizer gun. Impounded animals not redeemed within five days may thereafter be humanely destroyed by the animal control division. Animals which are deemed by the superintendent of animal services to constitute a danger to other animals or persons at the shelter, or which are infectious to other animals, in pain or near death, may be humanely destroyed immediately.

(b) Any animal may be surrendered to the animal control division provided there is a properly completed animal surrender form provided to the animal control division for the animal concerned.

(c) It shall be unlawful for any person to furnish false information on the animal surrender form.

(d) Surrendered animals not redeemed within three days, excluding Saturdays, Sundays and city holidays, may thereafter be humanely destroyed by the animal control division. Animals which are deemed by the superintendent of animal services to constitute a danger to other animals or persons at the shelter, or which are infectious to other animals, in pain or near death, may be humanely destroyed immediately.

(e) A positively identifiable animal is one which bears or wears a legible and traceable current permanent number, city license or tag or rabies vaccination tag pursuant to section 4-62; or a traceable registration number, tattoo or microchip pursuant to S.C. Code Ann. 47-3-510 (Supp. 1999).

The owner of a positively identifiable impounded animal shall be notified at the owner's last known address by regular mail and registered mail that the animal has been impounded. The owner has 14 days from the date of mailing to contact the shelter for pick-up. Redemption costs will include the cost of mailing, any established costs, fines, fees or other charges. If the owner does not make contact within 14 days of the date of the mailing, the animal will be deemed abandoned and becomes the property of the animal control division, in which is vested in the animal superintendent the authority to either place the animal for adoption or have the animal humanely destroyed. S.C. Code Ann. 47-3-540 (Supp. 1999). Animals which are deemed by the superintendent to constitute a danger to other animals or persons at the shelter, or which are infectious to other animals, in pain or near death, may be humanely destroyed immediately.
(Code 1979, § 9-5027; Ord. No. 99-046, 8-4-99; Ord. No. 2001-070, 6-26-02)

Sec. 4-67. Redemption of impounded pet animals.

(a) The owner or keeper of any pet which has been impounded under the provisions of this article shall have the right to redeem such pet at any time within five days upon payment of a fee as follows:

(1) For a pet which has been properly inoculated, licensed, microchipped and neutered or spayed, the fee shall be $10.00.

(2) For other pets the fee shall be $10.00 plus the appropriate license fee, the charge for rabies inoculation, a $20.00 microchipping fee, and the cost of spaying or neutering

the animal. No fertile animal shall be redeemed or adopted from the shelter. No animal will be released from the shelter without proof of inoculation and without an implanted microchip. The requirement of spaying or neutering may be waived if the owner meets the criteria under the exceptions provisions in subsection 4-62(c). The requirement of spaying or neutering shall not be waived under the exceptions in subsections 4-62(c)(1)—(3) when the animal is impounded a second time for any violation of sections 4-64; 4-65; 4-66; 4-70(1), (2), (5), (7) or (8).

(b) In addition to the redemption fee, and an impound fee of $20.00, a board fee of $6.00 per day per pet shall be paid by the owner or keeper when a pet is redeemed.

(c) The fees set out in this section shall be doubled for any animal impounded twice or more within the same 12-month period.

(d) For a pet which has been properly inoculated, licensed, microchipped and neutered or spayed, the impound and redemption fee shall be waived if it is the animal's first impoundment, if the pet's microchip can be traced back to the current owner and the pet is redeemed within 48 hours of impoundment.
(Code 1979, § 9-5032; Ord. No. 99-046, 8-4-99; Ord. No. 2001-070, 6-26-02; Ord. No. 2004-070, 10-20-04; Ord. No. 2006-074, 12-13-06; Ord. No. 2016-093, 12-6-16)

Sec. 4-68. Adoption of impounded pet animals.

(a) Any pet impounded under the provision of this article may at the end of the legal detention period be adopted, provided the new owner will agree to comply with the provisions contained in the animal adoption contract, as promulgated by the animal superintendent, and the provisions contained in this chapter, including a $20.00 microchipping fee.

(b) Any pet surrendered to the shelter may be adopted at any time provided there is a completed and signed surrender form on file for the animal concerned.

(c) Fees for the adopted pets will be the same as those established for the redemption of impounded pets, together with a reasonable fee for microchipping.

(d) Those individuals adopting puppies or kittens too young to be neutered or spayed or receive rabies inoculations will pay the cost of these procedures at the time of adoption and be given an appointment for a later time to have these procedures accomplished. If the animal is deceased prior to the appointment date, the applicable portion of the adoption fee will be returned.
(Code 1979, § 9-5033; Ord. No. 98-32, 6-3-98; Ord. No. 99-046, 8-4-99; Ord. No. 2001-070, 6-26-02; Ord. No. 2006-074, 12-13-06)

Sec. 4-69. Duties of person striking animal with vehicle; disposition of injured or diseased animals received by animal shelter.

Anyone striking an animal with a motor vehicle or bicycle shall notify the animal control shelter or the police department, who will then take action necessary to make proper

disposition of the pet. Any pet received by the animal control shelter in critical condition from wounds, injuries or disease may be destroyed if the owner cannot be located within two hours. If the animal is in severe pain it may be destroyed immediately.
(Code 1979, § 9-5034; Ord. No. 2001-070, 6-26-02)

Cross reference—Motor vehicles and traffic, ch. 12.

Sec. 4-70. Nuisance animals.

(a) *Generally.* The actions of an animal constitute a nuisance when an animal disturbs the rights of, threatens the safety of or damages a member of the general public, or interferes with the ordinary use and enjoyment of their property.

(b) *Prohibited acts.* It shall be unlawful for any person to own, keep, possess or maintain an animal in such a manner as to constitute a public nuisance. By way of example and not of limitation, the following acts or actions by an owner or possessor of any animal are declared to be a public nuisance and are therefore unlawful:

(1) Failure to exercise sufficient restraint necessary to control an animal as required by section 4-64.

(2) Allowing or permitting an animal to damage the property of anyone other than its owner, including but not limited to turning over garbage containers or damaging gardens, flowers or vegetables.

(3) Maintaining a dangerous animal as defined in this article.

(4) Maintaining animals in an environment of unsanitary conditions which results in offensive odors or is dangerous to the animal or to the public health, welfare or safety.

(5) Maintaining his property in a manner that is offensive, annoying or dangerous to the public health, safety or welfare of the community because of the number, type, variety, density or location of the animals on the property.

(6) Allowing or permitting an animal to bark, whine, howl, crow or cackle in an excessive, continuous or untimely fashion, or make other noise in such a manner so as to result in a serious annoyance or interference with the reasonable use and enjoyment of neighboring premises.

(7) Maintaining an animal that is diseased and dangerous to the public health.

(8) Maintaining an animal that habitually or repeatedly chases, snaps at, attacks or barks at pedestrians, bicycles or vehicles.

(c) *Impoundment.* Any pet found in continued violation of the provisions of this section or identified as a public nuisance may be impounded and not released unless authorized by the animal control supervisor.

(d) *Confinement of female animals in heat.* Every female pet in heat shall be kept confined in a building or secure enclosure in such manner as will not create a nuisance by attracting other animals.
(Code 1979, § 9-5035; Ord. No. 2001-070, 6-26-02)

Sec. 4-71. Interference with animal control workers.

It shall be unlawful for any person to interfere with, hinder or molest the animal control worker in the performance of his duty or seek to release any pet in his custody without his consent.
(Code 1979, § 9-5037; Ord. No. 2001-070, 6-26-02)

Sec. 4-72. Prohibition; impoundment of unattended animals.

It shall be unlawful for a person to leave any animal in a vehicle unattended by a person of such maturity so as to be responsible for the animal's health and safety. An animal control officer, or other law enforcement officer will remove the animal by reasonable methods under the circumstances if the animal is reasonably believed to be in distress. Unattended animals left in vehicles shall be impounded. Redemption shall include the assessment of the fine resulting from the violation of this section.
(Ord. No. 99-046, 8-4-99; Ord. No. 2001-070, 6-26-02)

Sec. 4-73. Animal care, generally.

(a) It shall be unlawful for an owner to fail to provide his or her animal(s) with sufficient and wholesome food and water, proper shelter and protection from the weather, veterinary care when needed to prevent suffering, and humane care and treatment.

(b) It shall be unlawful for a person to beat, cruelly treat, torment, overload, overwork, or otherwise abuse an animal, or cause, instigate, or permit and dogfight or other combat between animals or between animals and humans.

(c) Any person violating any provision of this article shall be deemed guilty of a misdemeanor offense and shall be subject to the penalties outlined in section 1-5. Each day of violation shall be considered a separate offense. Punishment for violation shall not relieve the offender of liability for penalties, and costs provided for this article.
(Ord. No. 2016-093, 12-6-16)

Sec. 4-74. Community cat diversion program.

(a) Feral or free roaming cats may be allowed in the City of Columbia as long as all of the following requirements are met:

(1) Cat must be assessed by a veterinarian and deemed healthy.

(2) Cat must be spayed or neutered.

(3) Cat must be vaccinated for rabies, feline viral rhinotracheitis, calicivirus, and panleukopenia.

(4) Cat must be ear tipped.

(b) A feral or free roaming cat shall be scheduled for spay/neuter the day after entering the shelter or as soon as practicable thereafter and then returned to the area where it was trapped on the third day, or as soon as practicable thereafter. Any cats already meeting the

requirements in Sec 4-74(1) a, b, c and d may be returned immediately. Treatment and return of any program cat shall be subject to the discretion of the superintendent of animal services.

(c) The city shall have no liability for the disposition of any cat entered into a free roaming cat or feral colony program. No person shall have any ownership interest or property rights to any program cat.

(d) The city may suspend or eliminate the program at its sole discretion.

(e) Community cats are exempt from licensing provide that they meet all the requirements contained herein.
(Ord. No. 2016-093, 12-6-16)

Secs. 4-75—4-90. Reserved.

DIVISION 2. DANGEROUS ANIMALS

Sec. 4-91. Prohibited; exceptions.

(a) Except as provided in subsection 4-91(d), it shall be unlawful for any person to own, keep, harbor or act as custodian of a:

(1) Dangerous animal as defined by this article; this section does not apply to guard dogs or attack dogs;

(2) a. Nondomestic member of the family felidae;

b. Wolf-dog hybrid containing any percentage of wolf;

c. Badger, wolverine, weasel, skunk and mink;

d. Raccoon;

e. Bear;

f. Nonhuman primate to include ape, monkey, baboon, macaque, lemur;

g. Marmoset, tamarin and other species of the order primates;

h. Bat;

i. Alligator, crocodile and caiman;

j. Scorpion;

k. Constricting snake of the following species: reticulated python, python reticulatus; Burmese/Indian rock python, python molurus; rock python, python sebae, and anaconda, eunectes murinus;

l. Venomous reptile; or

m. Lizard over two feet which are members of the family varanidae.

(b) It shall be unlawful for any person to expose to public view or contact, exhibit either gratuitously or for a fee, any wild or feral animals identified in subsection 4-91(c), or any animal of mixed domestication and feral lineage within the corporate limits of the city on public or private property, except as provided in subsection 4-91(d).

(c) Wild or feral animal means:

(1) Any animal which is not naturally tame or gentle, and which is of a wild nature or disposition, and which is capable of killing, inflicting serious injury upon, or causing disease among, human beings or domestic animals and having known tendencies as a species to do so;

(2) Any animal declared to be illegal by the animal superintendent or the city manager or his or her designee;

(3) Any nondomesticated member of the order Carnivora;

(4) The following animals which shall be deemed to be wild or feral animals per se:

a. All nondomestic members of the family felidae;

b. Wolves, wolf-dog hybrids containing any percentage of wolf, coyotes and foxes;

c. Badgers, wolverines, weasels, skunks and mink;

d. Raccoons;

e. Bears;

f. Nonhuman primates to include apes, monkeys, baboons, macaques, lemurs, marmosets, tamarins and other species of the order primates;

g. Bats;

h. Alligators, crocodiles and caimans;

i. Scorpions;

j. Any snakes or venomous reptile; or

k. Lizards over two feet which are members of the family varanidae;

(d) The prohibition contained in subsections (a), (b) and (c) above, shall not apply to the keeping of wild or feral animals in the following circumstances:

(1) The keeping of wild or feral animals in a public zoo, bona fide education or medical institution, humane society, or museum where they are kept as live specimens for the public to view, or for the purpose of instruction, research or study.

(2) The keeping of wild or feral animals for exhibition to the public by a bona fide traveling circus, carnival, exhibit or show, properly licensed and permitted by state and local law.

(3) The keeping of wild or feral animals in a bona fide, licensed veterinary hospital for treatment.

(4) The keeping of wild or feral animals by a wildlife rescue organization with appropriate permits from any state or local regulatory body.

(Code 1979, § 9-5028; Ord. No. 99-046, 8-4-99; Ord. No. 99-083, 11-3-99; Ord. No. 2001-070, 6-26-02; Ord. No. 2007-054, 9-19-07)

Sec. 4-92. Impoundment.

After an animal is determined to be dangerous or aggressive but improperly confined, as defined in this article, an animal control officer shall have the authority to immediately impound the animal. Upon impounding the animal, an animal control officer shall immediately attempt to serve the owner with a uniform ordinance summons for a violation of this article. Impoundment shall continue until the resolution of the criminal charge. If the owner is not known or refuses to accept personal service of the uniform ordinance summons, the animal shall be impounded for five days and the animal services division shall make a reasonable effort to locate and serve the owner. If the owner cannot be located and served the animal may be humanely destroyed after the impoundment for the five-day period.

(Code 1979, § 9-5029; Ord. No. 2001-070, 6-26-02; Ord. No. 2007-054, 9-19-07)

Sec. 4-93. Restraint of an aggressive animal.

(a) It shall be unlawful for any person owning or harboring or having the care or the custody of an aggressive animal, as defined in this article, may permit the animal to go unconfined on his premises. An aggressive animal is "unconfined" as used in this section if the animal is not confined securely indoors or confined in a securely enclosed fence or securely enclosed and locked pen or run area upon the person's premises. The pen or run area must be clearly marked as indicted in section 4-95 and must be designed to prevent the entry of the general public, including children, and to prevent the escape or release of the animal. However, this section does not apply to an animal owned by a licensed security company and on patrol in a confined area as provided for in Sections 4-95 and 4-96 of this Code.

(b) It shall be unlawful for any person owning or harboring or having the care of an aggressive animal may permit the animal to go beyond his premises unless the animal is safely restrained and muzzled and the requirements of section 4-94(e) are met.

(Code 1979, § 9-5030; Ord. No. 2001-070, 6-26-02; Ord. No. 2007-054, 9-19-07; Ord. No. 2016-093, 12-6-16)

Sec. 4-94. Penalties.

(a) A person who violates sections 4-91, 4-93 or subsection (e) of this section, provided the animal has not attacked or injured a human being, is guilty of a misdemeanor and, upon conviction, for a first offense, must be fined not more than $200.00 or imprisoned not more than 30 days. Upon conviction of a subsequent offense, the person must be fined $500.00 and imprisoned for 30 days, none of which may be suspended or remitted.

(b) A person who is the owner of a dangerous animal which attacks and injures a human being is guilty of a misdemeanor and, upon conviction, for a first offense must be fined not more than $500.00 or imprisoned not more than 30 days.

(c) A dangerous animal which attacks a human being or domestic animal may be ordered destroyed when in the court's judgment the dangerous animal represents a continuing threat of serious harm to human beings or domestic animals.

(d) A person found guilty of violating this article shall pay all expenses, including, but not limited to, shelter, food, veterinary expenses for boarding and veterinary expenses necessitated by the seizure of an animal for the protection of the public, medical expenses incurred by a victim from an attack by a dangerous animal, and other expenses required for the destruction of the animal, for any time period during which the case is prosecuted or an appeal is pursued.

(e) A person owning an aggressive animal shall maintain liability insurance or surety bond of at least $50,000.00 insuring or securing the owner for personal injuries inflicted by the aggressive animal.

(f) Nothing in this chapter is designed to abrogate any civil remedies available under statutory or common law.
(Code 1979, § 9-5031; Ord. No. 2001-070, 6-26-02; Ord. No. 2007-054, 9-19-07)

Sec. 4-95. Signage for guard dogs or attack dogs.

All owners, keepers, harborers, lessees or custodians of any guard dog or attack dog shall display in a prominent place on their premises, and at each entrance or exit to the area in which such dog is confined, a sign, easily readable by the public, using the words "Beware of Dog" or wording of similar import in letters at least two inches in height. This section shall not apply to any guard dog or attack dog owned or used by law enforcement agencies.
(Ord. No. 99-046, 8-4-99; Ord. No. 2001-070, 6-26-02; Ord. No. 2007-054, 9-19-07)

Sec. 4-96. Insurance requirements for guard dogs or attack dogs.

The owner of any guard dog which protects property in the city shall maintain a general liability insurance policy insuring against liability resulting from acts of the dog while performing as guardian of the property upon which the dog is located in an amount not less than $300,000.00 aggregate combined single limit for bodily injury, personal injury and property damage.
(Ord. No. 2007-054, 9-19-07)

Chapter 5

BUILDINGS AND BUILDING REGULATIONS*

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State law reference—Building codes and fire prevention, S.C. Code 1976, § 5-25-10 et seq.

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ARTICLE I. IN GENERAL

Sec. 5-1. Required enclosures for swimming pools.

(a) All outdoor swimming pools shall be completely enclosed by a barrier meeting the requirements hereinafter specified.

(b) The top of the barrier shall be at least 48 inches above grade measured on the side of the barrier which faces away from the swimming pool. The maximum vertical clearance between grade and the bottom of the barrier shall be two inches measured on the side of the barrier which faces away from the swimming pool. Where the top of the pool structure is above grade the barrier may be at ground level or mounted on top of the pool structure. Where the barrier is mounted on top of the pool structure, the maximum vertical clearance between the top of the pool structure and the bottom of the barrier shall be four inches. Openings in the barrier shall not permit the passage of a four-inch diameter sphere.

(c) Solid barriers which do not have openings shall not contain indentions or protrusions except for normal construction tolerances and tooled masonry joints.

(d) Where the barrier is composed of horizontal and vertical members and the distance between the tops of the horizontal members is less than 45 inches, the horizontal members shall be located on the swimming pool side of the fence. Spacing between vertical members shall not exceed 1¾ inches in width. Where there are decorative cutouts within vertical members, spacing within the cutouts shall not exceed 1¾ inches in width.

(e) Where the barrier is composed of horizontal and vertical members and the distance between the tops of the horizontal members is 45 inches or more, spacing between vertical members shall not exceed four inches. Where there are decorative cutouts within vertical members, spacing within the cutouts shall not exceed 1¾ inches in width.

(f) Maximum mesh size for chain link fences shall be a 2¼-inch square unless the fence is provided with slats fastened at the top or the bottom which reduce the openings to no more than 1¾ inches.

(g) Where the barrier is composed of diagonal members, the maximum opening formed by the diagonal members shall be no more than 1¾ inches.

(h) Access gates shall be equipped to accommodate a locking device. Pedestrian access gates shall open outwards away from the pool and shall be self-closing and have a self-latching device. Gates other than pedestrian access gates shall have a self-latching device. Where the release mechanism of the self-latching device is located less than 54 inches from the bottom of the gate, the release mechanism shall be located on the pool side of the gate at least three inches below the top of the gate, and the gate and barrier shall have no opening greater than one-half inch within 18 inches of the release mechanism.

(i) The provisions of this section shall not apply retroactively to any existing outdoor swimming pool that is fully enclosed by an existing fence, wall, screen or other barrier.
(Ord. No. 96-74, § 1, 2-5-97)

Secs. 5-2—5-30. Reserved.

ARTICLE II. BUILDING AND TECHNICAL CODES*

DIVISION 1. GENERALLY

Secs. 5-31—5-50. Reserved.

DIVISION 2. BUILDING CODE

Sec. 5-51. Adoption; conflicting provisions.

(a) There is hereby adopted by and for the city the International Building Code 2021 edition, as modified by amendment of the South Carolina Building Code Council, which code is published separately in book form and is adopted by reference as though copied fully in this section, as published by the International Code Council, Inc. Specifically excluded from the adoption of the International Code referenced herein is Section 103 in its entirety, and its subsections (enumerated as 103.1, 103.2 and 103.3), and 104.8. Any other provision not specifically excluded above which concerns the qualification, removal, dismissal and duties of the building official or any other city official or employee are deemed excluded from this section. A file of record of this code is in the offices of the city clerk and building official.

(b) In the event of any conflict between the provisions of the code adopted by this section and state law or city ordinances, rules or regulations, then the code adopted by this section shall prevail and be controlling unless the code is specifically amended by state law which shall prevail and be controlling.

(Code 1979, § 6-2011; Ord. No. 94-67, 10-5-94; Ord. No. 96-41, 9-18-96; Ord. No. 98-47, 9-16-98; Ord. No. 2001-044, 6-20-01; Ord. No. 2005-081, 8-10-05; Ord. No. 2009-068, 11-18-09; Ord. No. 2013-091, 10-1-13; Ord. No. 2016-068, 10-18-16; Ord. No. 2020-005, 3-10-20; Ord. No. 2022-112, 12-20-22)

Secs. 5-52—5-70. Reserved.

DIVISION 3. GAS CODE

Sec. 5-71. Adoption; conflicting provisions.

(a) There is hereby adopted for the city the International Fuel Gas Code, 2021 edition as adopted and modified by amendment of the South Carolina Building Code Council, published by the International Code Council, Inc., which code is published separately in book form and is adopted by reference as though copied fully in this section. Specifically excluded

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***State law reference—**Adoption of technical codes and regulations, S.C. Code 1976, § 6-9-10 et seq.

from the adoption of the International Code referenced herein is Section 103 and its subsections (enumerated as Sections 103.1, 103.2 and 103.3) and 104.8. Any other provision not specifically excluded above which concerns the qualification, removal, dismissal and duties of the building official or any other city official or employee are deemed excluded from this section. A file of record of this code is in the offices of the city clerk and building official.

(b) In the event of any conflict between the provisions of the code adopted by this section and state law or city ordinances, rules or regulations, then the code adopted by this section shall prevail and be controlling unless the code is specifically amended by state law which shall prevail and be controlling.
(Code 1979, § 6-2031; Ord. No. 94-68, 10-5-94; Ord. No. 98-48, 9-16-98; Ord. No. 2001-047, 6-20-01; Ord. No. 2005-082, 8-10-05; Ord. No. 2009-071, 11-18-09; Ord. No. 2013-094, 10-1-13; Ord. No. 2016-069, 10-18-16; Ord. No. 2020-007, 3-10-20; Ord. No. 2022-113, 12-20-23)

Secs. 5-72—5-90. Reserved.

DIVISION 4. PLUMBING CODE

Sec. 5-91. Adoption; conflicting provisions.

(a) There is hereby adopted for the city the International Plumbing Code, 2021 edition, as adopted by the South Carolina Building Code Council, published by the International Code Council, Inc., which code is published separately in book form and is adopted by reference as though copied fully in this section. Specifically excluded from the adoption of the International Code referenced herein is Section 103 and its subsections (enumerated as Sections 103.1, 103.2 and 103.3) and 104.8. Any other provision not specifically excluded above which concerns the qualification, removal, dismissal and duties of the building official or any other city official or employee are deemed excluded from this section. A file of record of this code is in the offices of the city clerk and building official.

(b) In the event of any conflict between the provisions of the code adopted by this section and state law or city ordinances, rules or regulations, then the code adopted by this section shall prevail and be controlling unless the code is specifically amended by state law which shall prevail and be controlling.
(Code 1979, § 6-2041; Ord. No. 94-69, 10-5-94; Ord. No. 98-49, 9-16-98; Ord. No. 2001-46, 6-20-02; Ord. No. 2005-083, 8-10-05; Ord. No. 2009-073, 11-18-09; Ord. No. 2013-092, 10-1-13; Ord. No. 2016-070, 10-18-16; Ord. No. 2020-009, 3-10-20; Ord. No. 2022-114, 12-20-23)

Secs. 5-92—5-110. Reserved.

DIVISION 5. ELECTRICAL CODE*

Sec. 5-111. Adoption; conflicting provisions.

(a) There is hereby adopted for the city the National Electric Code (NFPA 70), 2020 edition, published by the National Fire Protection Association (NFPA), as adopted by the South Carolina Building Code Council, which code is published separately in book form and is adopted by reference as though copied fully in this section. Any provision not specifically excluded above which concerns the qualification, removal, dismissal and duties of the building official or any other city official or employee are deemed excluded from this section. A file of record of this code is in the office of the city clerk and building official.

(b) In the event of any conflict between the provisions of the code adopted by this section and, state law or city ordinances, rules or regulations, then the code adopted by this section shall prevail and be controlling unless the code is specifically amended by state law which shall prevail and be controlling.

(Code 1979, § 6-2051; Ord. No. 94-72, 10-5-94; Ord. No. 98-50, 9-16-98; Ord. No. 2001-048, 6-20-01; Ord. No. 2003-047, 6-18-03; Ord. No. 2009-076, 11-18-09; Ord. No. 2013-088, 10-1-13; Ord. No. 2016-071, 10-18-16; Ord. No. 2020-012, 3-10-20; Ord. No. 2022-115, 12-20-23)

Secs. 5-112—5-130. Reserved.

DIVISION 6. MECHANICAL CODE

Sec. 5-131. Adoption; conflicting provisions.

(a) There is hereby adopted by and for the city the International Mechanical Code, 2021 edition as adopted by the South Carolina Building Code Council, published by the International Code Council, Inc., which code is published separately in book form and is adopted by reference as though copied fully in this section. Specifically excluded from the adoption of the International Code referenced herein is Section 103 and its subsections (enumerated as Sections 103.1, 103.2 and 103.3) and 104.8. Any other provision not specifically excluded above which concerns the qualification, removal, dismissal and duties of the building official or any other city official or employee are deemed excluded from this section. A file of record of this code is in the offices of the city clerk and building official.

(b) In the event of any conflict between the provisions of the code adopted by this section and state law or city ordinances, rules or regulations, then the code adopted by this section shall prevail and be controlling unless the code is specifically amended by state law which shall prevail and be controlling.

(Code 1979, § 6-2061; Ord. No. 94-70, 10-5-94; Ord. No. 98-51, 9-16-98; Ord. No. 2001-045, 6-20-01; Ord. No. 2005-084, 8-20-05; Ord. No. 2009-072, 11-19-09; 2013-089, 10-1-13; Ord. No. 2016-072, 10-18-16; Ord. No. 2020-008, 3-10-20; Ord. No. 2022-116, 12-20-22)

***State law references—**Electric wiring to conform to regulations of National Board of Fire Underwriters, S.C. Code 1976, § 5-25-810; inspections of new wiring, S.C. Code 1976, § 5-25-820.

Secs. 5-132—5-150. Reserved.

DIVISION 7. PROPERTY MAINTENANCE CODE

Sec. 5-151. Adoption; conflicting provisions.

(a) There is hereby adopted by and for the city the International Property Maintenance Code 2021 edition as published by the International Code Council Inc., which code is published separately in book form and is adopted by reference as though copied fully in this section. Specifically excluded from the adoption of the Property Maintenance Code is Section 103, and its subsections (enumerated as 103.1, 103.2, and 103.3) and 105.7. Any other provision not specifically excluded above which concerns the qualification, removal, dismissal and duties of the building official or any other city official or employee are deemed excluded from this section. A file of record of this code is in the offices of the city clerk and building official.

(b) Section 107.2 of the 2021 International Property Maintenance Code is amended to read as follows:

107.2 Limitation of authority. Any person directly affected by a decision of the code official or a notice or order issued under this code shall have the right to appeal to the board of appeals, provided that a written application for appeal is filed within 10 days after the day the decision, notice or order was served. An application for appeal shall be based on a claim that the true intention of this code or the rules legally adopted thereunder have been incorrectly interpreted, the provisions of this code do not fully apply, or the requirements of this code are adequately satisfied by other means, or that the strict application of any requirement of this code would cause an undue hardship.

(c) Section 302.4 of the 2021 International Property Maintenance Code is amended to read as follows:

302.4 Weeds. All premises and exterior property shall be maintained free from weeds or plant growth in excess of one foot on the average. Weeds shall be defined as all grasses, annual plants and vegetation, other than trees or shrubs provided; however, this term shall not include cultivated flowers and gardens.

Upon failure of the owner or agent having charge of a property to cut and destroy weeds after service of a notice of violation, they shall be subject to prosecution in accordance with Section 106.3 and as prescribed by the authority having jurisdiction. Upon failure to comply with the notice of violation, any duly authorized employee of the jurisdiction or contractor hired by the jurisdiction shall be authorized to enter upon the property in violation and cut and destroy the weeds growing thereon, and the costs of such removal shall be paid by the owner or agent responsible for the property.

(d) Section 304.14 of the 2021 International Property Maintenance Code is amended to read as follows:

304.14 Insect Screens. During the period from January 1st to December 31st, every door, window and other outside opening required for ventilation of habitable rooms, food preparation areas, food service areas or any areas where products to be included or utilized in food for human consumption are processed, manufactured, packaged or stored shall be supplied with approved tightly fitting screens of not less than 16 mesh per inch (16 mesh per 25 mm), and every screen door used for insect control shall have a self-closing device in good working condition.

Exception: Screens shall not be required where other approved means, such as air curtains or insect repellent fans, are employed.

(e) In the event of any conflict between the provisions of the code adopted by this section and state law or city ordinances, rules or regulations, then the code adopted by this section shall prevail and be controlling unless the code is specifically amended by state law which shall prevail and be controlling.
(Code 1979, § 6-2071; Ord. No. 94-71, 10-5-94; Ord. No. 98-52, 9-16-98; Ord. No. 2000[1]-027, 6-27-01; Ord. No. 2002-49, 7-10-02; Ord. No. 2005-080, 8-17-05; Ord. No. 2009-074, 11-18-09; Ord. No. 2009-074, 11-18-09;Ord. No. 2013-095, 10-1-13; Ord. No. 2016-073, 10-18-16; Ord. No. 2020-010, 3-10-20; Ord. No. 2022-117, 12-20-22)

Secs. 5-152—5-170. Reserved.

DIVISION 8. ENERGY CONSERVATION CODE

Sec. 5-171. Adoption; conflicting provisions.

(a) There is hereby adopted by and for the city the International Energy Conservation Code 2009 edition as adopted by the South Carolina Building Code Council, Inc., which code is published separately in book form and is adopted by reference as though copied fully in this section. Any provision concerning the qualification, removal, dismissal and duties of the building official or any other city employee are deemed excluded from this section. A file of record of this code is in the offices of the city clerk and building official.

(b) In the event of any conflict between the provisions of the code adopted by this section and state law or city ordinances, rules or regulations, then the code adopted by this section shall prevail and be controlling unless the code is specifically amended by state law which shall prevail and be controlling.
(Code 1979, § 6-2081; Ord. No. 2005-078, 8-10-05; Ord. No. 2009-069, 11-18-09; Ord. No. 2016-074, 10-18-16)

Secs. 5-172—5-190. Reserved.

DIVISION 9. INTERNATIONAL RESIDENTIAL CODE FOR ONE- AND TWO-FAMILY DWELLINGS

Sec. 5-191. Adoption; conflicting provisions.

(a) There is hereby adopted by and for the city the 2021 International Residential Code for One- and Two-Family Dwellings as adopted and modified by amendment of the South Carolina Building Code Council, which code is published separately in book form and is adopted by reference as though copied fully in this section, as published by the International Code Council, Inc. Specifically excluded from the adoption of the International Residential Code for One- and Two-Family Dwellings referenced herein are Sections R103 in its entirety and its subsections (enumerated as Sections R103.1, R103.2, and R103.3) and R104.8. Any other provision not specifically excluded above which concerns the qualification, removal, dismissal and duties of the building official or any other city official or employee are deemed excluded from this section. A file of record of this code is in the offices of the city clerk and building official.

(b) In the event of any conflict between the provisions of the code adopted by this section and state law or city ordinances, rules or regulations, then the code adopted by this section shall prevail and be controlling unless the code is specifically amended by state law which shall prevail and be controlling unless the code is specifically amended by state law which shall prevail and be controlling.

(Ord. No. 2002-023, 7-10-02; Ord. No. 2005-085, 8-10-05; Ord. No. 2013-090, 10-1-13; Ord. No. 2016-075, 10-18-16; Ord. No. 2020-011, 3-10-20; Ord. No. 2022-118, 12-20-22)

Secs. 5-192—5-200. Rexerved.

ARTICLE III. BUILDING PERMITS*

Sec. 5-201. Required.

Before any individual or business entity shall engage in any part or facet of the building business within the city, they shall have obtained an appropriate permit and paid the fees as set forth in this chapter.

(Code 1979, § 6-2008(a))

Sec. 5-202. Completion date for renovations of residential structures.

Permits issued for renovation of residential structures shall prescribe a fixed date for completion of all work to be performed. The completion date may be extended by the building official for good cause shown. Any person aggrieved by a decision of the building official

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***State law reference—**Building permits and inspections, S.C. Code 1976, § 5-25-310 et seq.

granting or denying an extension of a completion date may appeal such grant or denial to the housing board of adjustment. It shall be unlawful for any person to fail to complete the work within the time fixed by the building official.
(Code 1979, § 6-2008(b))

Sec. 5-203. Obtaining permit fraudulently.

No individual or business entity engaged in the building business shall allow their names to be used by any other person or business entity to obtain a permit. No individual or business entity shall be allowed to use licenses other than those issued to him or his firm for the conduct of any building work. Intentional misrepresentation or omission in obtaining licenses is a fraudulent act.
(Code 1979, § 6-2009)

Sec. 5-204. Fee schedule.

(a) *Generally.* Permit fees for each category of work will be calculated on a per-building basis and shall be based on the total contract price or total value of work to be done or the per square foot values for construction as reported in the International Codes Council (ICC) Building Safety Journal for building valuation data, with one- and two-family dwellings calculated as follows: Average $45.00, Good $63.00, Best $70.00, Garage $25.00. The following dollar value schedule will be used in calculating permit fees for each category of work to be performed:

(1) Commercial construction and renovation: Building, plumbing, gas, mechanical, roofing, sign, building and fire protection, hood and/or fire suppression, electrical, communications, security, sound and telephone systems:

Total Value	*Fee*
$1.00 to $5,000.00	$50.00
$5,001.00 to $100,000	$50.00 for the first $5,000.00 plus $9.00 per $1,000.00 or fraction thereof
$100,001.00 to $1,000,000.00	$905.00 for the first $100,000.00 plus $4.00 for each additional $1,000.00 or fraction thereof
$1,000,001.00 to $5,000,000.00	$4,505.00 for the first $1,000,000.00 plus $3.00 for each additional $1,000.00 or fraction thereof
Over $5,000,000.00	$16,505.00 for the first $5,000,000.00 plus $2.00 for each additional $1,000.00 or fraction thereof

A permit is required for the electrical, plumbing, gas and HVAC trades, but there will be no fee charged for these trades for new construction, additions, and remodeling jobs where a building permit is obtained by a licensed general contractor provided that the subcontractors are licensed, hold a city qualification card and are listed on the building permit application.

(2) One- and two-family dwelling construction and renovation: Building, plumbing, gas, mechanical, electrical, signs, building, and fire protection, communications, security, sound and telephone systems:

Total Value	*Fee*
$1.00 to $5,000.00	$20.00
Over $5,000.00	$4.00 per $1,000.00 or fraction thereof

(3) Driveways and curb cut permit — $20.00 per driveway

(4) Construction trailer permit — $50.00

(5) Construction and moving meters

a.	Per day	$10.00
b.	Per week	$40.00
c.	Per month	$100.00

(6) Demolition permits:

a.	Residential storage or garage, attached or detached	$25.00
b.	One-story residence	$50.00
c.	Two-story residence	$75.00
d.	Commercial building	$150.00
e.	Three-story or more (basements count as a story)	$200.00 plus $25.00 per story

(7) Moving permits:

		Fee	*Vehicle Use (Per Hour)*
a.	Permit	$50.00	
b.	Police assistance	$80.00	$50.00
c.	Traffic engineering	$80.00	$50.00

Objects over 18 feet in height must begin movement at 4:00 a.m. Rates for movements at times other than normal working hours are: (1) police assistance, $170.00, and (2) traffic engineering assistance, $170.00.

(b) *Reinspections.* The fee for any reinspection resulting from work not being ready for inspection or being disapproved shall be $30.00 per inspection for the first reinspection and $50.00 for each additional reinspection.

(c) *Commencing work without permit.* Where work for which a permit is required is started or proceeded with prior to obtaining the permit, the fee set forth in this chapter shall be subject to a penalty of 100 percent of the usual permit fee in addition to the required permit fee.

(d) *Plan review fees.*

(1) *Standard plan review fee.* A plan review fee of $25.00 for residential one-and two-family construction shall be paid at the time of permit application. A plan review fee equal to 30 percent of the permit fee shall be paid at the time plans are submitted for a third review for commercial construction.

(2) *Express plan review fee.* For interior upfit and alterations, the fee for an express plan review shall be $400.00 per hour plus the standard plan review fee. For new construction, additions and/or projects including site review, the fee for an express plan review shall be $700.00 per hour plus the standard plan review fee. A minimum of one hour shall be assessed and rates after the first hour will be prorated to the nearest 15-minute increment. Resubmittal fees shall be 1.5 times the initial hourly rate. A non-refundable deposit of 50 percent of the base fee is due upon appointment confirmation. The remaining fee is due at the review appointment. Non-payment of fees will result in appointment cancellation.

(e) *Structures located within a flood plain.* Elevation certificates and an inspection checklist fee of $50.00 shall be required for new construction, additions, renovations, fences, pools, out-buildings, and similar structures.

(f) *Electrical, plumbing, gas and HVAC subcontractors.* Permits are not required for new construction, additions and remodeling jobs permitted by a licensed residential home builder provided that the subcontractors are licensed, hold a city qualification card and are listed on the building permit application. Any subcontractor changes shall be reported before work commences. All other sub contractors working under the supervision of a licensed residential home builder would not be required to have a business license to work the properly permitted job.

(Code 1979, § 6-2010; Ord. No. 98-093, 11-18-98; Ord. No. 2004-047, 11-10-04; Ord. No. 2007-108, 2-20-08; Ord. No. 2014-064, 6-24-14)

Secs. 5-205—5-230. Reserved.

ARTICLE IV. DEMOLITION OF STRUCTURES

Sec. 5-231. Permit required.

No person shall demolish any building or structure in the city or cause such work to be done without first obtaining a separate permit for the demolition of each and every building or structure from the building official in accordance with the provisions of the city building code and this article.

(Code 1979, § 6-2016)

Sec. 5-232. Obtaining permit fraudulently; qualifications of subcontractors.

No person shall allow his name to be used by any other person, directly or indirectly, to obtain a permit for the demolition of any building or structure under his name, license or bond; nor shall he make any misrepresentations or omissions in his permit application; nor shall any person in whose name a permit for the demolition of a building or structure has been issued subcontract any portion of the work specified in the permit except to a contractor properly licensed and bonded in accordance with the terms of the building code and not disqualified for a demolition permit under section 5-234. Every such subcontractor's name shall be filed in writing by the permit applicant with the building official prior to the subcontractor beginning work. A violation of this section shall be considered grounds for the building official, at his discretion, to revoke such person's business license and/or permit fraudulently obtained.
(Code 1979, § 6-2017)

Sec. 5-233. Time limits.

(a) The time limits for the demolition of various buildings or structures are as follows:

(1) One-story frame: 30 days;

(2) Two-story frame: 30 days;

(3) Small commercial buildings: 30 days; and

(4) Three stories or higher buildings, heavy manufacturing and all others: 60 days.

(b) The permit holder, prior to the expiration date of the permit, if he has good and sufficient reasons, may request an extension of time from the building official. When the permit expiration date has passed and work has not been accomplished in accordance with the provisions of this article, the permit holder shall be liable for penalty under section 5-240.

(c) If a demolition permit has been issued for a building or structure which subsequently is given landmark status by ordinance prior to the actual commencement of demolition, such permit shall be revoked immediately by the building official.
(Code 1979, § 6-2019)

Sec. 5-234. Failure to erect barricades; completion of work when permit has expired or been invalidated.

(a) Upon the failure of any person to whom a demolition permit has been issued to erect the proper barricades for protection of the public, the building official shall stop all work on the demolition until those barricades are properly erected.

(b) Upon proper application and the payment of the applicable permit fee, a person whose demolition permit has expired or has been invalidated by the building official may obtain additional permits to complete the work called for under the original expired and invalidated permits, but the building official shall not issue to that person a permit for the demolition of

any other building or structure within the corporate limits of the city until all work provided for by any and all expired and invalidated permits in the person's name has been completed in accordance with the provisions of this article.
(Code 1979, § 6-2020)

Sec. 5-235. Penalty bond.

It shall be the duty of every contractor who shall make contracts for the demolition of buildings or structures for which a permit is required to give good and sufficient bond in the sum of $5,000.00 for one and two family residential structures and $15,000.00 for multi-family and commercial structures, conditioned to conform to this article and other city ordinances in reference to buildings.
(Code 1979, § 6-2021; Ord. No. 2008-021, 4-2-08)

Sec. 5-236. Business license; indemnification bond.

Before any person shall engage in the business of demolition in the city, he shall first obtain the proper business license and deposit with the city a good and sufficient bond in the sum of $600,000.00 for bodily injury, death and/or property damage, to be approved by the legal department, conditioned that the city shall be indemnified and saved harmless from all claims arising from accidents and damage incident to demolition activities on city property of any character whatsoever caused by the negligence of any such person engaged in the demolition business, or by any other unfaithful or inadequate work done either by themselves or their agents or employees. In lieu of the $600,000.00 bond, the city will accept a copy of a liability insurance policy of $600,000.00 or more in which the city is named as an additional insured.
(Code 1979, § 6-2022)

Sec. 5-237. Protection and sealing of sewers and drains.

During demolition, sewer pipes shall be protected to prevent entrance of sand, earth or other foreign material. Upon completion of demolition the ends of all abandoned underground sewer or drain pipes shall be securely sealed and made watertight by means of a concrete or vitrified clay stopper grouted into a bell at the street right-of-way line.
(Code 1979, § 6-2023)

Sec. 5-238. Restoration of site.

(a) Once demolition has been started, it must be completed and the lot leveled off. It shall be unlawful for any property owner or demolition contractor to leave a partially demolished building in an unsafe, unsanitary, unsightly or hazardous condition.

(b) Damage to public property or facilities of any public utilities shall be repaired or rectified by the demolition contractor before a release will be given for the completion of demolition.

(c) All portions of the structure or building and its appurtenances shall be razed to grade level with no portions projecting above grade. The site shall be graded to conform with the grade of adjoining premises. No wood or other materials subject to rot, decay or decomposition shall be used for fill, and all debris and rubbish and other materials not used for fill shall be removed from the premises at completion of demolition work and the site left in a clean and sanitary condition.

(d) Where the owner certifies in writing that new construction will begin on the lot within 90 days, the building official may waive the provision relating to the filling of excavations and grading of the lot, but he shall require those barricades or other precautionary measures as he deems necessary to prevent unsanitary conditions and for the protection of public safety. Where the owner fails to provide the required protection or to begin construction within 90 days, the building official shall notify the owner to fill in the excavation and to grade the lot in accordance with the provisions of this section within a reasonable period of time designated by the building official.
(Code 1979, § 6-2024)

Sec. 5-239. Remedies cumulative.

Nothing in this article shall be construed to impair or limit in any way the power of the city to define and declare nuisances and to cause their removal or abatement by summary proceedings or otherwise. The measures and procedures provided for in this article do not supersede, and this article does not repeal, any other measures or procedures which are provided by city ordinance or state law, but the measures and procedures provided for in this article shall be in addition to such other measures.
(Code 1979, § 6-2025)

Sec. 5-240. Penalty; severability of provisions.

Any person violating any of the terms or provisions of this article or failing to comply with any notice or order of the building official authorized by this article, or demolishing or causing to be demolished any building or structure without first obtaining a permit, or continuing to work after the permit has expired or has been revoked, or failing to erect proper barricades, shall be guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5, and each day of such continued noncompliance shall constitute a separate offense.
(Code 1979, § 6-2026)

Sec. 5-241. Consent of owner required.

If application for a demolition permit is made by a person other than the owner of the property, the written consent of the owner of record must be filed with the building official before a permit is issued. This provision shall not apply to demolitions required by the city pursuant to the building or housing codes.
(Code 1979, § 6-2027)

Secs. 5-242—5-260. Reserved.

ARTICLE V. NUMBERING OF BUILDINGS*

Sec. 5-261. Required.

All stores, houses, shops and factories within the corporate limits of the city shall be numbered as designated by the city engineer.
(Code 1979, § 4-2091)

Sec. 5-262. Duty to post numbers.

Every owner of a house or dwelling shall cause to be placed thereon in permanent and legible characters, as prescribed in this article, the proper number.
(Code 1979, § 4-2092)

Sec. 5-263. Failure to post number; defacing or altering numbers.

Any person who shall fail to number a building, as required by this article, or who shall deface or alter such numbers thus put up, shall be guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5.
(Code 1979, § 4-2093)

Sec. 5-264. Authority of city to place numbers.

The city authorities shall have power to place the numbers required by this article wherever vacancies are found, and charge the placement to the lot owners.
(Code 1979, § 4-2094)

Sec. 5-265. Size and style of numbers.

The numbers required by this article shall be two by three inches in size, in plain and durable style.
(Code 1979, § 4-2095)

Secs. 5-266—5-290. Reserved.

ARTICLE VI. VACANT BUILDING REGISTRATION

Sec. 5-291. Declaration of policy.

The purpose of this chapter is to protect the public health, safety and welfare by enactment of this article which:

(1) Establishes a program for identification and registration of vacant buildings;

(2) Determines the responsibilities of owners of vacant buildings and structures; and

*Cross reference—Buildings and building regulations, ch. 5.

(3) Provides for administration, enforcement and penalties.
(Ord. No. 2019-009, 10-15-19)

Sec. 5-292. Definitions.

Unless otherwise expressly stated, the following terms shall, for the purposes of this Code, have the meanings shown in this section. Where terms are not defined, through the methods authorized by this section, such terms shall have ordinarily accepted meaning such as the context implies.

Citation means a charge or formal written accusation of violation of a municipal, state or federal law, regulation or ordinance, including any violations of the International Property Maintenance Code as adopted by the City of Columbia.

Code violation means violation of any code adopted and/or enforced by the city, which may include but not be limited to the City of Columbia Code of Ordinances or the International Property Maintenance Code.

Courtesy registration means notification by mail, phone, fax or email to the code enforcement division notifying them of an extended vacancy of 120 days or more of a primary residence for work, vacation, military or a medical reason.

Non-residential structure means any building designed for occupancy for office, commercial, industrial, three or more residential units, or a combination thereof.

Owner means any person, firm or corporation having a legal or equitable title in the property; or recorded in the official records of the state, county or municipality as holding title.

Property means a lot, plot, premises or parcel of land, including the buildings or structures thereon.

Residential structure means a building designed for occupancy as a single family or two family dwelling.

Responsible local representative means a person having his or her place of residence or business office within 45 miles of the vacant building and designated by the property owner as the agent responsible for operating such property in compliance with the ordinances adopted by the city. For the purposes of this article, the term "agent" shall refer to the responsible local representative.

Responsible party means any owner, occupant, agent, manager, operator and/or management company of a building, dwelling, structure or lot.

Secure means a building or portion of a building is closed or locked for entry by normal means other than boarding.

Unoccupied means a building which is not being used for a legal occupancy.

Unsecured means a building or portion of a building is open to entry by unauthorized persons without the use of tools or ladders.

Vacant building means any structure built for occupancy of residential, commercial or industrial uses that is unoccupied.

Vacant building; categorical classification standards: A building or portion of a building which is:

(1) *Category I:* No current code violations on the structure or the premise.

a. The building is secure, not boarded.

b. The building is structurally sound with no code violations.

c. The property is maintained to minimal code by owner or responsible party.

(2) *Category II:* Minimal code violations.

a. The building is boarded and secure.

b. The building is structurally sound with minor code violations.

c. The property is not regularly maintained.

(3) *Category III:* Severe code violations.

a. The building is boarded or needs to be boarded.

b. Structural deficiencies are evident.

c. History of criminal activity at the address.

d. Structure is unfit for occupancy.

e. The property is not maintained.

(Ord. No. 2019-009, 10-15-19)

Sec. 5-293. Registration of vacant buildings.

(a) Except as provided in subsection (b) below, all vacant buildings shall be registered with the code enforcement division within 120 days of becoming vacant as defined in section 5-292. Registration is valid for 12 months and must be renewed annually from date the building became vacant.

(b) Exemptions from registration:

(1) Residential structures that are used as residential rentals and have active residential rental permits in accordance with section 5-326;

(2) Office, industrial, or general commercial use buildings actively for sale or lease with a licensed real estate company or managed by a licensed property management company.

(3) Structures that have multiple units in which at least one unit is occupied;

(4) Accessory structures not designed for occupancy; and/or

(5) Buildings that serve as a primary residence in which the owner is away for an extended period of time for work, vacation, military or medical reason. Building and property must be maintained to minimum code. Requires a courtesy registration.

(c) If the building is vacant at the expiration of any registration period the owner shall re-register such building and pay the annual registration and inspection fees.

(d) The owner registering a vacant building shall supply the following information on an authorized form provided by the code enforcement division:

(1) Name, address, and telephone number of the owner;

(2) Name, address and telephone number of any responsible party, if applicable;

(3) Name, address, and telephone number of any local agent or representative of the owner, required if the owner's residence or business address in more than 45 miles from vacant building;

(4) Tax parcel identification number of the premise on which the building is situated;

(5) The common address of the building; and

(6) Vacant building plan in accordance with section 5-294.

(e) Following the registration of the vacant building, the code enforcement officer shall conduct an inspection of the property and premises to determine any code violations and to verify the vacant building category.

(1) A status report will be provided to the owner of the building with the findings and current condition of the property. It will include any found violations and assign a category to the building.

(f) All vacant buildings must remain secure and/or boarded in accordance with Article VII, Boarded-Up Buildings.

(g) Upon request by the code official, the owner shall post "No Trespass" placards on the property. Additional employment of security services for non-residential properties for a specified number of hours every day may be required by the police chief or his/her designee on the basis of the property history of code and/or criminal violations.

(h) Vacant building owners must designate a responsible local representative ("agent") if their place of residence or business is more than 45 miles from the vacant building. The responsible local representative shall act as agent for the property owner for purposes of accepting legal service; however the vacant building owner remains personally liable in criminal prosecutions for code violations. The responsible local representative must be available at the number listed at all times in the event of an emergency or catastrophe.
(Ord. No. 2019-009, 10-15-19)

Sec. 5-294. Establishment of vacant building plan.

(a) When a building is registered as required by this chapter, the owner shall submit, or caused to be submitted, a vacant building plan on a form provided by the code enforcement division for approval. The plan shall contain the following:

(1) A plan to make the building ready for occupancy with sufficient detail regarding the proposed repair and/or rehabilitation of the building to enable the code official to determine the adequacy of such plan;

(2) A letter of written consent by the owner allowing city officials to enter and inspect the property for the period in which the vacant building plan is in effect;

(3) For buildings, dwellings or structures which are identified as being or containing public nuisances, then the vacant building plan shall contain a plan of action to remedy such public nuisances;

(4) If available, a layout of the structure; and

(5) A plan of action to secure, monitor and maintain the building and premises thereof in conformance with this chapter.

(b) If the property is subject to a vacant building plan and the plan has been properly approved by the code enforcement division, the transferee is subject to the terms of the vacant building plan. The transferee may apply to the city to be released from the requirements of the vacant building plan.
(Ord. No. 2019-009, 10-15-19)

Sec. 5-295. Vacant building fees.

(a) Annual registration fees are based on the use and the number of years that a building has been vacant (after the effective date of the ordinance from which this article derives). All fees are due at the time of registration or renewal.

(1) *Fees for non-residential structures are as follows:*

a.	Initial registration	$0.00
b.	First annual renewal	$100.00
c.	Second annual renewal	$500.00
d.	Third annual renewal	$1,000.00
e.	Each year thereafter is	$1,000.00.

(2) *Fees for Residential structures are as follows:*

a.	Initial registration	$0.00
b.	First annual renewal	$50.00
c.	Second annual renewal	$250.00
d.	Third annual renewal	$500.00

e. Each year thereafter is $500.00

(b) An annual compliance inspection fee of $50.00 is required on all non-exempted vacant buildings. The fee shall be paid at the time of registration.

(c) Upon determination of a vacant building that hasn't been registered in accordance with this section additional penalties may apply in addition to the annual registration fees in accordance to section 5-296.

(d) *Delinquent registration fees as a lien.* After the owner is given notice of the amount of the registration fee due, except for those owners that have properly perfected an appeal pursuant to section 5-297, and the owner fails to pay the amount due, said amount shall constitute a debt due and owing to the city, and the city may commence a civil action to collect such the unpaid debt.

(e) Exemptions from annual registration fees shall be granted for the following situations upon notification in writing to the code enforcement division, registration is still required:

(1) Residential and commercial buildings that are actively being marketed for sale or rent (up to one year, longer by appeal). Must be maintained to minimum code for the duration on the market;

(2) Buildings that are actively being renovated. Repairs and progression must be noticeable by the inspector (up to one year, longer by appeal);

(3) Properties that are in probate and actively being transferred;

(4) Structures damaged by a fire or weather event may be exempt for up to one year;

(5) Financial hardship;

(6) Category I structures that have not had citations within the last 12 months;

(7) Buildings owned by the government or a successor-in-interest to the government, provided the vacancy began during the government ownership; and/or

(8) Buildings that are structurally deficient that have been ordered by the city to be demolished and removed, in which the owner has provided consent to the city to demolish, and the city has accepted the consent. Liens are to be placed against the property to cover the cost of demolition.

(f) Exemptions from annual registration fees not defined in this section may be requested to the property maintenance board of appeals for consideration.
(Ord. No. 2019-009, 10-15-19)

Sec. 5-296. Enforcement and penalties.

(a) Upon determination that a vacant building owner has failed to register or update information in accordance with this section, an administrative penalty of $500.00 in addition to the registration fee will be assessed if not in compliance within 30 days after notice.

(b) Failure by the owner to submit a vacant building plan or comply with a vacant building plan that has been approved by the city under this section is a violation of the Code and may be assessed an administrative penalty of $500.00.
(Ord. No. 2019-009, 10-15-19)

Sec. 5-297. Appeal.

Any person aggrieved by the requirements of this section may seek administrative appeal to the property maintenance board of appeals. Any person aggrieved by a final decision issued under this section by the property maintenance board of appeals, may seek relief in any court of competent jurisdiction as provided by the law.
(Ord. No. 2019-009, 10-15-19)

Sec. 5-298, 5-299. Reserved.

ARTICLE VII. BOARDED-UP BUILDINGS

Sec. 5-300. Covering of window and door openings of buildings.

Notwithstanding any other provision of this Code, it shall be unlawful for any person to cover the window or door openings of any building with any material other than window or door materials conforming with the International Building or Residential Code without first obtaining a boarded building permit.
(Ord. No. 2002-038, § 1, 6-19-02; Ord. No. 2005-110, 10-26-05; Ord. No. 2019-009, 10-15-19)

Sec. 5-301. Inventory of improperly boarded buildings; notification of owners.

(a) The housing official shall maintain an inventory of all buildings upon which one or more window or door openings are covered with non-conforming materials (e.g., plywood sheathing, OSB board, polycarbonate). This inventory shall be known as the "Boarded-up Building Inventory."

(b) Not less than every 60 days following the enactment of this article, the housing official shall update the "Boarded-up Building Inventory," and shall cause notice of this article and the property owner's obligation to comply with the same to be mailed by first class certified mail, return receipt requested, to all property owners whose building is added to the inventory.
(Ord. No. 2002-038, § 1, 6-19-02; Ord. No. 2005-110, 10-26-05; Ord. No. 2019-009, 10-15-19)

Sec. 5-302. Permit required for covering of window and door openings.

Except as provided in subsection (c) below it shall be unlawful for any person to cover the window or door openings of a building so as to secure the building. without first obtaining a permit to do so from the housing official.

(a) *Standard 90-day boarded building permit.* The permit fee shall be $50.00 for residential buildings and $100.00 for mixed-use and commercial buildings. The

permit shall authorize the owner to cover the window or door openings of a building with at least one-half-inch wood sheathing cut to fit the openings and to be secured to the window or door frames.

(1) All sheathing shall be painted so as to match either the dominant color of the exterior of the building or the color of the trim of the building, if any.

(2) Where applicable, the building must be registered in accordance with section 5-293, Vacant building registration.

(3) Permits issued pursuant to this section shall be valid for no more than 90 days. Upon issuance of a permit, the housing official shall list the property on the "Boarded-up Building Inventory."

(4) At the expiration of the standard 90-day boarded building permit, the owner of the boarded building may apply for an extended one-year boarded building permit in accordance with subsection (b) if additional time is needed.

(b) *Extended one-year boarded building permit.* The permit fee shall be $50.00 for residential buildings and $100.00 for mixed-use and commercial buildings. The permit shall authorize the owner to cover the window or door openings of a building with an approved non-color polycarbonate installed in accordance with manufacturer's instructions.

(1) Where applicable, the building must be registered in accordance with section 5-293, Vacant building registration.

(2) Permits issued pursuant to this section shall be valid for one year. They can be renewed annually in accordance with this section. Upon issuance of a permit, the housing official shall list the property on the "Boarded-up Building Inventory."

(c) *Temporary exemption:*

(1) In the event a structure is damaged and requires securing immediately. permit shall be obtained within three days.

(Ord. No. 2002-038, § 1, 6-19-02; Ord. No. 2005-110, 10-26-05; Ord. No. 2019-009, 10-15-19)

Sec. 5-303. Notification of violation.

(a) The housing official shall, on the expiration of the boarded building permit, give the owner notice of violation of this article. Such notice shall state that the owner must within ten days of the notice, remove the non-conforming materials from the window or door openings and replace the same with door or window installations which conform with the International Building Code.

(b) Any person failing to comply with the provisions of this article shall be deemed guilty of a misdemeanor punishable as prescribed by section 1-5 of this Code. Every day of noncompliance shall constitute a separate violation. The covering of window and door openings as provided under the provisions of this article does not stay enforcement of, or

compliance with, any orders or notices by the housing or building code official or relieve any person from complying with all other applicable local and state laws affecting structures and premises.
(Ord. No. 2002-038, § 1, 6-19-02; Ord. No. 2005-110, 10-26-05; Ord. No. 2019-009, 10-15-19)

Secs. 5-304—5-324. Reserved.

ARTICLE VIII. RENTAL HOUSING REGULATIONS*

Sec. 5-325. Definitions.

Unless otherwise expressly stated, the following terms shall, for the purposes of this Code, have the meanings shown in this section. Where terms are not defined, through the methods authorized by this section, such terms shall have ordinarily accepted meaning such as the context implies.

Citation means a charge or formal written accusation of violation of a municipal, state or federal law, regulation or ordinance, including any violations of the International Property Maintenance Code as adopted by the City of Columbia.

Dwelling unit means a building or portion thereof, designed for occupancy for residential purposes and having individual cooking facilities and sanitary facilities for each leased space.

Landlord means any person who owns or controls a dwelling, dwelling unit, or rental unit and rents such unit, either personally or through a designated agent, to any person.

Occupant means a family as defined by the City of Columbia Zoning Ordinance or an individual unrelated by blood to a second degree of consanguinity, marriage, adoption, or guardianship to any other occupant of the dwelling unit. A family of related persons shall be counted as one occupant.

Offense means any violation of local, state, or federal statutes or ordinances which results in a forfeiture of bond, plea of guilty, no contest, acceptance into pre-trial intervention, alcohol education program or a determination of guilt by a court or a jury. For purposes of this article, all violations for which charges are made during one response by law enforcement officers which result in a forfeiture of bond, acceptance into a pre-trial intervention program, alcohol education program, conviction, or a plea of guilty or no contest collectively shall be deemed one offense.

Owner means any person, firm or corporation having a legal or equitable title in the property; or recorded in the official records of the state, county or municipality as holding title.

***Editor's note—**Ord. No. 2015-099, adopted April 19, 2016, repealed former Art. VIII, §§ 5-325—5-328, in its entirety and enacted new provisions as herein set out. Former Art. VIII pertained to the absentee landlord registration program and derived from Ord. No. 2009-066, adopted Aug. 5, 2009.

Owner-occupied rental unit means a rental unit that is occupied in whole or in part by an individual whose name specifically appears on the deed for the property where the rental unit is located.

Person means any natural individual, firm, partnership, association, joint stock company, joint venture, public or private corporation or receiver, executor, personal representative, trust, trustee, conservator or other representative appointed by order of any court.

Premises means a lot, plot or parcel of land, including the buildings or structures thereon, which also includes dwelling units and dwellings.

Professional management company means any company licensed by South Carolina Department of Labor, Licensing and Regulation as a real estate broker or property manager and holding the appropriate current City of Columbia Business License.

Residential rental unit means that portion of a dwelling for which payment or other consideration, including performance of general maintenance, payment of utilities or other fees, or similar in-kind services, is being made to an owner, agent, or manager for the use and occupancy of that portion as a living facility. For purposes of this article, the term "rental unit" is limited to single-household dwellings, townhouses, and multi-unit structures used for residential purposes. Whenever the words rental unit are stated in this Code, they shall be construed as though they were followed by the words "or any part thereof". Exceptions shall be the following:

(1) Dwellings occupied for residency for over 120 days by employees of that organization which are owned by a firm, corporation, religious organization or another incorporated organization;

(2) Dwellings occupied by individuals who are under a written contract to purchase the residence after the contract has been reviewed for validity of purchase by the city attorney and the zoning and codes administrator; or

(3) Dwellings owned and operated by the United States of America, the State of South Carolina, or any agency thereof, including the Housing Authority of the City of Columbia, or any institution of higher learning which operates housing for its faculty, staff or students.

Responsible local representative means a person having his or her place of residence or business office within 45 miles of the rental property and designated by the property owner as the agent responsible for operating such property in compliance with the ordinances adopted by the city. For the purposes of this article, the term "*agent*" shall refer to the Responsible Local Representative.

Tenant means any individual who has the temporary use and occupation of real property owned by another person in subordination to that other person's title and with that other person's consent; for example, a person who rents or leases a dwelling, dwelling unit, or rental unit from a landlord.

Townhouses means dwelling units constructed in a series or group of attached units with property lines separating such units.

Violation means breach of law, except, for the purposes of this section, any laws related to Chapter 25 of Title 16 of the Code of Laws of South Carolina.
(Ord. No. 2015-099, 4-19-16)

Sec. 5-326. Rental permit required.

(a) No owner, whether a person, firm or corporation, shall operate any residential rental unit as defined in section 5-325 unless that owner holds a current rental permit issued by the City of Columbia for the residential rental unit named therein.

(b) Before a rental permit can be granted owner or landlord shall certify that the subject property complies with the minimum code. This minimum standard shall be determined by the city and available to all citizens upon request. If an owner or responsible local representative is unsure if the property meets the minimum code, inspections by city staff are available upon request.

(c) Properties that fail to pass an inspection as outlined in this article within 30 days shall correct all defects noted on the inspection report and schedule a subsequent inspection of property.

(d) Permits are not transferable from any owner to another.

(e) The permitting year shall begin on January 1st of each year and consist of a 12-month period.

(f) Renewals of permits after 60 days of the expiration date will be assessed a late penalty fee of five percent of the unpaid fee per month.

(g) If the permit fee is not paid after 120 days following the expiration of the permit and the property is occupied as a rental unit, then the City of Columbia shall issue a uniform ordinance summons to the property owner for appearance in municipal court and charged with a violation of this article as provided in section 5-337.

(h) The property owner will be susceptible to other code enforcement action depending upon the circumstance.

(i) Each individual property requires a separate permit.

(j) Professional management companies in good standing are exempt from the annual permit fee.
(Ord. No. 2015-099, 4-19-16; Ord. No. 2022-025, 3-4-22)

Sec. 5-327. Application.

Applications for a permit to operate residential rental units and for renewal thereof shall be on a form provided by the City of Columbia. Such form shall set forth the owner's name, address, and telephone number, the residential rental unit address, the name of the person, firm, or corporation located within a 45-mile radius of the City of Columbia responsible for the care and maintenance of the building and additional information as outlined on the application for rental housing. Multiple permits can be requested on one application when there are multiple units owned/managed by the same person or owner.
(Ord. No. 2015-099, 4-19-16)

Sec. 5-328. Issuance or refusal of rental permit.

The City of Columbia shall issue a rental permit for rental housing to the applicant upon proof of the following:

(1) The property has either passed the rental housing inspection or the owner has submitted a certification the subject property complies with the minimum code; and

(2) All fees have been paid as required by section 5-339 of the rental housing ordinance.
(Ord. No. 2015-099, 4-19-16)

Sec. 5-329. Property owner, responsible local representative, and occupant.

(a) A permit will not be issued or renewed to a person, firm, or corporation who does not either reside in nor have an office within a 45-mile radius of the City of Columbia, unless a responsible local representative is designated. The responsible local representative may be a professional management company. The zoning and codes administrator shall be notified in writing if there is a change of owner or responsible local representative within 14 days of the change.

(b) Property owner, the person in charge, and occupants shall be liable for occupancy violations within rental residences of their control or in which they are located.

(c) For every residential rental unit, the owner or responsible local representative shall be responsible for the repair and maintenance of the common areas of the dwelling and responding to service requests and emergency needs, including entry into units where an emergency appears to exist. Such person or persons shall be situated close enough to the dwelling as to be able to service tenant and emergency calls with reasonable dispatch. The owner shall advise the tenants individually of the names, addresses, and telephone numbers of such owner and/or responsible local representative.
(Ord. No. 2015-099, 4-19-16)

Sec. 5-330. Violations and assignment of violations.

(a) For purposes of this section, violations shall include citations for any federal, state, or local ordinance.

(b) Violations; warnings; points. Rental units where there are citations, warnings of violation and/or adjudication of guilt, finding of guilt with adjudication withheld, waiver of right to contest the violation, or pleas of no contest (including, but not limited to, payment of fine) of the following city ordinances:

(1) Nuisance ordinances (Chapter 8);

(2) Animal control ordinances (Chapter 4);

(3) Solid waste ordinances (Chapter 19)

(4) Zoning ordinances (Chapter 17);

(5) International Property Maintenance Code (section 5-151);

(6) Law enforcement (Chapter 10); or

(7) Licenses, permits and miscellaneous business regulations (Chapter 11).

(c) Violations shall apply as points towards revocation of the rental permit for residential rental units as follows:

(1) *Single-household dwellings and townhouses.* Violations that occur anywhere on the premises shall apply to the permitted dwelling unit.

(2) *Multi-unit structures.*

a. Violations that occur within an individual unit shall apply to that unit.

b. Violations occurring outside of the units shall be assigned to the unit responsible as determined by the investigating party for the offense.

c. Violations committed by the property owner and/or responsible local representative shall be assigned to all units.

(d) In the event a citation or violation takes place at a unit regulated by this article, such citation shall be grounds for the accumulation of points as follows:

(1) For one or more written warnings given in any 24-hour period for violation of one or more of the ordinances listed above, points will be assessed on the landlord permit for that unit in accordance with this section:

a. *First offense.* One point will be assessed for the first occurrence of citation, violation or offense.

b. *Second offense or each offense thereafter.* Five points will be assessed for a second occurrence and each occurrence thereafter of the same citation, violation or offense within the last 12 months.

c. *Serious offense.* Ten points will be assessed for any serious violation or offense that could result in serious bodily injury or death to occupants as determined by

the chief of police. A serious offense includes failure to comply with any Emergency Order issued by the City of Columbia, any Executive Order issued by the Governor of the State of South Carolina, or any local, state or federal law, regulation or mandate to address a health or safety concern including but not limited to a public health outbreak (including a pandemic or wide-spread and/or infectious disease outbreak), natural disasters, war, terrorist act, strike, fire, release of nuclear material or dangerous substance into the environment or other catastrophic event.

(2) After points are assessed on a landlord permit for a unit, the police chief or designee will send a written warning to the owner or agent. Each warning will specify which ordinance or ordinances have been violated and will state that further warnings or violations could lead to a revocation of the permit. Each warning will be sent by regular mail to the address of the owner or agent, as identified on the permit application, as well as a copy of the warning mailed to the property address of the subject property.

(3) A fee of $100.00 will be assessed per point for each point accumulated due within 30 days of assessment and no later than any renewal of the permit.

(4) If a person is found not guilty, or the case against them for a violation is dismissed, then the point shall be removed from the permit as if it had not been assessed.

(Ord. No. 2015-099, 4-19-16; Ord. No. 2020-077, 8-27-20; Ord. No. 20321-089, 12-18-21)

Sec. 5-331. Revocation of permit.

(a) Accumulation of 15 or more points on a permit for a dwelling unit within 12 months shall subject the owner to proceedings to revoke the permit.

(b) Upon the accumulation of 15 or more points or failure to comply with the requirements of this article, the following procedure shall be followed:

(1) The police chief or designee shall cause to be served written notice to show cause why the permit should not be revoked. Service shall be deemed complete if personally delivered upon the owner or agent by any officer authorized by law to serve process or a duly appointed law enforcement officer of the city police department. The person serving process shall make proof of service within the time during which the person served must respond to the process. If service cannot be personally made within the city, then service may be made by notice posted on the property and mailed certified return receipt to the last known address of record.

(2) The owner or agent shall have 15 days from the date of service to request a hearing to appeal the revocation of the permit. The request shall be sent to the police chief by certified mail, return receipt requested. If such request is not timely made, the revocation shall take effect on the 21st day after the date of service to show cause.

(3) Upon request for a hearing, the police chief or designee is authorized to schedule the appeal with the property maintenance board of appeals (PMBoA) at the next regularly scheduled meeting or special called meeting by the board.

(4) Once the hearing is scheduled, the property should be posted to announce the hearing date to the general public.

(5) In conducting the hearing, the PMBoA shall have the power to administer oaths, issue subpoenas, compel the production of books, paper, and other documents, and receive evidence. All parties shall have an opportunity to respond, to present evidence and argument on all issues involved, to conduct cross-examination and submit rebuttal evidence, to submit proposed findings of facts and orders, to file exceptions to the PMBoA's recommended order, and to be represented by counsel or other qualified representative. Hearsay evidence may be used for the purpose of supplementing or explaining other evidence, but it shall not be sufficient in itself to support a finding unless it would be admissible over objection in civil actions. The lack of actual knowledge of, acquiescence to, participation in, or responsibility for, a public nuisance at common law or a noxious use of private property on the part of the owner or agent shall not be a defense by such owner or agent.

(6) If the PMBoA finds that the accumulation of 15 or more points and the existence of a public nuisance at common law or noxious use of private property exist, then PMBoA shall prepare a recommended order.

(7) If the PMBoA finds no public nuisance at common law or noxious use of private property exists, or that the owner has recovered possession of the dwelling unit, the PMBoA will prepare a recommended order to dismiss the revocation action and recommend which points, if any, should be rescinded from the permit based upon the actions taken by the landlord to seek compliance with the city's ordinances.

(8) The PMBoA's recommended order shall consist of findings of fact, conclusions of law and recommended relief. The police chief or designee shall transmit the recommended order to the city manager and the owner or agent. The owner or agent shall have 15 days from the date of the hearing officer's order to submit written exceptions to the PMBoA's recommended order. The city manager shall review such order and any written exceptions by the owner and may set forth any deficiencies he/she finds with respect to the order. Said deficiencies shall be limited to determinations that the findings were not based upon competent, substantial evidence, or that the proceedings on which the findings were based did not comply with the essential requirements of law. In reviewing such recommended order, the city manager shall not have the power to receive or consider additional evidence and shall not have the power to reject or modify the findings of fact or conclusions of law contained in the recommended order. The city manager may remand the recommended order along with the delineated deficiencies back to the PMBoA for consideration of the deficiencies. The PMBoA shall address the deficiencies in an addendum to the recommended order. The city manager shall then either: (a) adopt the recommended order and addendum, if applicable, in its entirety; or (b) adopt the findings of fact and conclusions of law in the recommended order and addendum, if applicable, and reject or modify the recommended relief. The action of the city manager shall be the final order of the city.

(9) The city manager or designee shall provide notice of the final order within five days of the date of the final order.

(10) If the permit is revoked under these procedures, the owner or agent shall have five days from the date of the final order to commence recovering possession of the rental unit. If the tenants do not voluntarily agree to vacate the premises, the owner or agent shall diligently pursue the process of eviction to completion. The owner or agent shall provide copies of all documents provided to the tenants or filed with the court concerning the eviction process to the city manager or designee. If the owner collects any rent from the tenants following the revocation of the permit, fails to comply with these provisions, or fails to abide with the final order of the city, the city may seek criminal relief by citing the owner for violation of section 5-326 (rental permit required), or seek other available legal or equitable relief.

(11) In addition to the above-described procedures, the city attorney is authorized to file for injunctive relief to abate the public nuisance at common law or noxious use of private property pursuant to law.

(12) The final order of the city is subject to certiorari review in a court of competent jurisdiction in Richland or Lexington County, South Carolina.

(Ord. No. 2015-099, 4-19-16)

Sec. 5-332. Effect of revocation.

Upon the commencement of revocation, no permit shall be granted nor any lease approved and no person, firm or corporation shall operate or rent/lease to another for residential occupancy any dwelling unit or rooming unit during such time that the rental housing permit for such unit is revoked; however any residential tenants under a lease in existence at the time of the commencement of revocation shall have all of the rights afforded to them under applicable state law.

(Ord. No. 2015-099, 4-19-16)

Sec. 5-333. Notification exemption.

Residential rental properties are exempt from the notification requirements, as given in the codes, when they have not obtained a valid permit for rental housing as required by this article. Properties operating without a valid rental permit shall receive one written warning and 20 working days to comply. If an owner is convicted of a violation of section 5-326 of the City of Columbia Code of Ordinances, the property shall not be eligible for a rental housing permit for a period of six months after the conviction.

(Ord. No. 2015-099, 4-19-16)

Sec. 5-334. Defenses.

(a) When tenants are guilty of offenses resulting in a revocation notice, the property owner may request a suspension of revocation proceedings by providing written evidence of the initiation of eviction proceedings against the culpable tenants. If the tenants are evicted, the property owner may request termination of the revocation proceedings. If revocation has been suspended but the tenants are not evicted, revocation proceedings will be reinstated by

the city. A remediation plan, as outlined in section 5-341, which addresses any future problems with the tenants, will also have the same effect as initiating eviction proceedings.

(b) If the permit accumulates points which are solely caused by the behavior of a tenant, the Landlord or permit holder may apply for removal of those tenant-related points at the conclusion of eviction proceedings which result in the eviction of those tenants or upon proof that the tenants have vacated the property. If the city, by and through the chief of police, or his designee, agrees to remove the points after the landlord or permit holder presents a valid order of eviction of those tenants, the points shall be removed as if never assessed. If the chief of police, or his designee, does not agree to remove those points from the permit as tenant related, then the Landlord or permit holder may apply for a review by the city manager.
(Ord. No. 2015-099, 4-19-16)

Sec. 5-335. Operating without a permit a public nuisance.

If a person operates as a landlord without a rental permit as set forth in this section, such shall constitute a public nuisance.
(Ord. No. 2015-099, 4-19-16)

Sec. 5-336. Inspections and complaints.

(a) *Inspections*. By applying for a permit, the owner agrees to allow inspection of the unit for violations of this article, as well as violations of the International Property Maintenance Code at any reasonable time; however, this provision shall not be interpreted as authorizing the city to conduct an inspection of an occupied rental unit without obtaining either the consent of an occupant or a warrant.

(b) *Complaints*. Each complainant shall be requested to state his/her name and addresses and give a statement of the facts giving rise to the complainant's belief that the provisions of this article are being violated. Such information may be obtained orally or in writing. A complainant may be subpoenaed to appear in a revocation or denial proceeding to provide evidence or testimony.
(Ord. No. 2015-099, 4-19-16)

Sec. 5-337. Offenses.

Any person violating any provision of this article shall be deemed guilty of a misdemeanor offense and shall be subject to the penalties outlined in section 1-5. Each day of violation shall be considered a separate offense. Punishment for violation shall not relieve the offender of liability for delinquent taxes, penalties, and costs provided for this article.
(Ord. No. 2015-099, 4-19-16)

Sec. 5-338. Denial of permit.

(a) The police chief or designee may deny issuance of any permits applied for under this section if it is determined either that the owner or agent has made material misrepresentations about the condition of his/her property or status of ownership, or that the occupancy of the property is in violation of the International Property Maintenance Code or city ordinances or that the owner has otherwise violated a provision of this article.

(b) If the police chief or designee determines there is reasonable cause to believe that there are grounds to deny a permit applied for the police chief or designee shall provide notice of the denial, including the grounds for the denial.

(c) Within 15 days of the date of the notice, the owner may request in writing to the police chief a hearing on the denial. The police chief or designee shall schedule the hearing to occur within 15 days after receiving the request for hearing and shall notify the owner at least five days in advance of the time and location for the hearing. The hearing may be postponed if mutually agreed upon by the police chief and the owner.

(d) The hearing shall be conducted informally and adherence to the rules of evidence normally followed by the courts shall not be required. Any person may present testimony, documents or other evidence as deemed relevant by the city manager or designee. Any person may be represented by counsel.

(e) The police chief or designee shall consider all evidence presented, and if the preponderance of the evidence supports the allegation of violation the permit shall be denied. If the preponderance of the evidence does not support the allegation of violation, the permit shall be issued. The decision of the police chief or designee may be appealed by a writ of certiorari to a court of competent jurisdiction in Richland County or Lexington County, South Carolina.

(f) The police chief or designee may waive the denial requirement as to any permit if it is determined that the owner has attempted in good faith to comply with this article. In determining asserted good faith as required for a waiver, the police chief or designee may consider, but not be limited to, the owner response to current violations and remedy of past violations.

(g) If a permit is denied under this section, the owner whose permit was denied shall not be issued another permit on the same dwelling unit for a period of six months after the date of denial.
(Ord. No. 2015-099, 4-19-16)

Sec. 5-339. Permit fee.

(a) The annual permit fee shall be $25.00 for each permit, unless: (1) the applicant is a professional management company applying on behalf of an owner as a responsible local party; or (2) the applicant is licensed by the City of Columbia through the business license office to conduct the business of being a landlord.

(b) Upon determination that a rental property owner has failed to obtain a rental housing permit, a permit fee shall be assessed at $400.00 for each year the unpermitted occupancy has occurred.

(c) An inspection fee of $50.00 shall be included in the permit fee for properties that fail to pass inspection after the second inspection.

(d) All required fees shall be paid before a rental permit is issued, including any past due fees assessed for work abated by city.

(e) Permit fees shall be subject to a pro-rated fee schedule based upon the time frame in which a rental permit is obtained.
(Ord. No. 2015-099, 4-19-16; Ord. No. 2022-025, 3-14-22)

Sec. 5-340. Severability.

The provisions of this article are severable, and if any section, sentence, clause, part, or provision thereof shall be held illegal, invalid, or unconstitutional by any court of competent jurisdiction, such decision of the court shall not affect or impair the remaining sections, sentences, clauses, parts, or provisions of this article. It is hereby declared that the intent of the council is that this article would have been adopted as if such illegal, invalid, or unconstitutional section, sentence, clause, part, or provision had not been included herein.
(Ord. No. 2015-099, 4-19-16)

Sec. 5-341. Remediation plan.

Whenever points are assessed to a permit, the responsible party may establish a remediation plan with the city that outlines actions to be taken to remedy the violation of city ordinances. The plan must be approved by the police chief or his designee and include a timeline for implementation. Once the remediation plan is approved, the points against the permit will be suspended during the term of the remediation. When the remediation is completed successfully as agreed the points assessed prior to remediation will be removed. If the permit holder fails to adhere to the remediation plan, the plan will be withdrawn by the city and the points will be re-assessed.
(Ord. No. 2015-099, 4-19-16)

Sec. 5-342. Existing rights unaffected.

Nothing contained in this article is intended to affect the rights and responsibilities of property owners or tenants under the law of the United States of America or the State of South Carolina as outlined by the South Carolina Landlord Tenant Act, the Americans with Disabilities Act, the Violence Against Women Act, the Fair Housing Act or any other provision of federal or state law regulating housing.
(Ord. No. 2015-099, 4-19-16)

Sec. 5-343. Effective date.

The provisions of this section shall become effective July 1st, 2016.
(Ord. No. 2015-099, 4-19-16)

Secs. 5-344—5-399. Reserved.

ARTICLE IX. SHORT TERM RENTALS

Sec. 5-400. Scope of article.

Unless otherwise specified, the requirements and provisions of this article shall apply to owner-occupied and non-owner-occupied short-term rentals (collectively called "short-term rentals") made available to occupants for periods of less than 30 consecutive days in the municipal limits of the city. This article does not apply to hotels, motels, bed and breakfast establishments, or inns that are subject to and compliant with the city's business license and other applicable Code requirements. Unless otherwise specified, this article does not apply to rentals that are rented for a period of 30 days or greater and that are subject to the city's rental housing regulations found in Chapter 5, article VIII of the Code.
(Ord. No. 2023-037, 4-4-23)

Sec. 5-401. Definitions.

Unless otherwise expressly stated, the following terms shall, for the purposes of this article, have the meanings shown in this section. Where terms are not defined, through the methods authorized by this section or Code, such terms shall have ordinarily accepted meaning such as the context implies.

Citation means a charge or formal written accusation of violation of a city, state or federal law, regulation or ordinance.

Dwelling unit means any structure or portion of a structure arranged or designed to provide independent living facilities for living, sleeping, and personal hygiene and that may legally be used for habitation by humans.

Guest means any person who occupies a short-term rental.

Owner-occupied means a dwelling unit that is lawfully classified as owner-occupied by Richland County and is receiving the four percent special assessment ratio.

Non-owner-occupied means a dwelling unit that is not owner-occupied and is used and/or advertised for rent for transient occupancy by guests.

Residential district means residential base zoning district as defined by section 17-3.2 of the Unified Development Ordinance.

Responsible local representative means a person having his or her place of residence or business office within 45 miles of the short-term rental property and designated by the property owner as the agent responsible for operating such property in compliance with the city's ordinances and having been authorized by appointment to accept service of process on behalf of the owner pursuant to Rule 4(d)(1) of the South Carolina Rules of Civil Procedure.

Short-term rental (STR) means the use and enjoyment of a dwelling unit, or portion thereof, for a duration of less than 30 consecutive days in exchange for valuable consideration. Hotels, motels, bed and breakfast establishments, and inns are excluded from this definition.
(Ord. No. 2023-037, 4-4-23)

Sec. 5-402. Short-term rental regulations.

The following regulations apply to all dwelling units being used as a short-term rental in the city:

(1) *Determination of short-term rental offering.* Any advertisement for an STR by the owner or responsible local representative is sufficient to determine that a dwelling unit is being offered as a short-term rental.

(2) *Business license required.* The owner or responsible local representative offering a dwelling unit as a short-term rental shall obtain a business license and comply with all business license and revenue collection laws of the City of Columbia, Richland County, and State of South Carolina.

(3) *Code compliance required.* The owner of a permitted STR shall ensure the STR property and dwelling unit is in compliance with all city ordinances at all times, which include, but are not limited to:

a. Animal Control, Chapter 4;

b. Building and Building Regulations, Chapter 5;

c. Environmental Health and Sanitation, Chapter 8;

d. Fire Prevention and Protection, Chapter 9;

e. Unified Development Ordinance, Chapter 17; and

f. Solid Waste Management, Chapter 19.

(4) *Safety inspection.* A safety inspection to ensure compliance with the regulations in this article may be performed by the city if deemed necessary and with 24-hour notice to the permit holder.

(5) *Records required.* The property owner shall maintain the following which shall be made available to the city upon request:

a. For a period of two years, records demonstrating compliance with these provisions, including but not limited to, information demonstrating residency, if required; the number of days per calendar year the residential unit has been rented as an STR; and compliance with the insurance requirement in this section; and

b. The name and phone number of each short-term guest that booked the STR for the previous two years.

(6) *Contact.* The property owner must be willing to take phone calls at all times to address issues with the short-term rental; or the owner must provide the name, mailing address, and telephone number of a designated responsible local representative who is willing to take phone calls at all times if needed to address issues with the short-term rental use, and who is authorized to accept service of process on behalf of the owner.

(7) *Permits are non-transferrable.* If ownership of a permitted dwelling unit changes, the new owner must obtain a new permit before operating any part of the dwelling unit as an STR.

(8) *Minimum guest's age.* The guest making the booking or reservation for an STR shall be at least 18 years of age.

(9) *Minimum stay duration.* The short-term rental shall not be available for occupancy for a period of less than one night.

(10) *Permit number in advertisement.* Any online advertisement for an STR must include the current STR permit number, as issued by the city, within the description section of the advertisement.

(11) *House manual.* At a minimum, the following shall be made available to each short-term guest:

a. Emergency contact numbers;

b. The name and contact information for the owner or responsible local representative;

c. Instructions or a diagram of the designated parking space(s); and

d. The house rules imposed on guests by the owner.

(12) *Parking spaces required.* Two parking spaces per dwelling unit must be made available and designated on an STR property, within residential districts, as defined in section 17-3.2. Guests must be notified of the parking plan and the maximum number of vehicles allowed.

a. Exemption. The police chief or his/her designee may make an administrative adjustment to the parking requirement if it is determined that the minimum parking requirement cannot be met because of conditions on the lot in which the STR is requested.

b. Appeal. Whenever the police chief or his/her designee shall disapprove an application for an exemption, the applicant may appeal the decision to the property maintenance board of appeals.

(13) *Maximum occupancy.* The maximum overnight occupancy of an STR shall not exceed two persons, excluding minor children, per bedroom, plus two additional people per dwelling unit.

(14) *Identity verification.* The owner or responsible local representative shall be responsible for determining that any guest occupying the STR is listed in the booking or reservation for the STR.

(15) *Neighbor notification.* The owner or responsible local representative of an STR shall notify each household immediately adjacent to the STR and any neighborhood association, if the STR is located in a neighborhood with such an association, that the

property is being operated as an STR and must provide such households and association with the address of the STR and the phone number of the owner or responsible local representative.

(Ord. No. 2023-037, 4-4-23; Ord. No. 2023-111, 9-19-23)

Sec. 5-403. Short-term rental permit required.

(a) No dwelling unit in the city shall be operated as a short-term rental without a current STR permit issued by the City of Columbia. The permitting process shall begin 30 days after enactment of this article. Current owners of a STR must obtain a permit within 120 days of the beginning of the permitting process. Permits are to be issued and renewed on an annual basis and will only be issued or renewed to an owner or responsible local representative having his or her place of residence or business office within 45 miles of the STR property. If residing outside of 45 miles of the STR property, the owner may only obtain a permit if he or she has a responsible local representative.

(b) An STR permit authorizes the permit holder to operate one dwelling unit as an STR. Any person seeking to operate multiple STRs shall be required to obtain a separate STR permit for each dwelling unit address sought to be operated as an STR.

(c) Applications for renewals of STR permits must be submitted by July 1, of each year, except that any holder of a permit issued before July 1, 2023, will have until July 1, 2024, to submit an application for renewal. Beginning in 2024, any application for a permit renewal not submitted by July 31, will result in the loss of the permit.

(d) STR permits are non-transferable. A new owner or responsible local representative of a permitted STR shall be required to obtain a new and separate permit for the dwelling unit by submitting a new STR permit application.

(e) The permits required by this article are regulated privileges, not rights, and can be revoked by the city in accordance with the provisions provided in this article.

(Ord. No. 2023-037, 4-4-23)

Sec. 5-404. Short-term rental permit application and fees.

(a) An application is required for initial permit issuance and permit renewal and must be submitted on a form provided by the city. A separate application is required for each permit or renewal being sought. The STR application shall contain, at a minimum, the following information:

(1) The address of the dwelling unit;

(2) The number of bedrooms in the dwelling unit;

(3) The names, mailing addresses, and phone numbers, of the owner(s) and any responsible local representative;

(4) The address where the owner or responsible local representative will accept notices and orders;

(5) Certification that the owner has read applicable city regulations, including, but not limited to, those found in section 5-402(c) of this article;

(6) Certification that the owner is aware that penalties may be assessed for violations by guests; and

(b) The permit fees shall be paid at the time of application submission. These fees are established by city council and may be changed from time to time. These fees include the following:

(1) A non-refundable application fee of $50.00; and

(2) For an owner-occupied STR, a non-refundable STR permit registration fee of $100.00; or

(3) For a non-owner-occupied STR, a non-refundable STR permit registration fee of $250.00 per dwelling unit.

(4) Any permit renewal application and associated fees submitted after July 1, will incur a late fee of $100.00.

(c) An STR permit holder shall notify the city of any changes to the information submitted in the application within 30 days after any such change occurs.
(Ord. No. 2023-037, 4-4-23; Ord. No. 2023-111, 9-19-23)

Sec. 5-405. Criteria for permit issuance.

(a) Unless otherwise provided for by this article, the city shall issue an STR permit, within 30 days from application submission, to an applicant if the following criteria are met:

(1) The city has determined that the STR application is complete and all permit fees have been paid;

(2) The dwelling unit listed in the application has been certified by the applicant that the dwelling unit complies with all applicable fire and building codes. If, however, the city has reason to believe a safety inspection is deemed necessary, the dwelling unit must pass a safety inspection;

(3) The city has determined that all requirements of this article are satisfied; and

(4) Issuance of the permit will not violate any other provision of this article.
(Ord. No. 2023-037, 4-4-23)

Sec. 5-406. Short-term rental permit equivalency.

An STR permit issued pursuant to this article shall be considered the equivalent of a rental permit for the purposes of section 5-326. A holder of a current and valid STR permit may rent the dwelling unit for periods of 30 days or greater without obtaining a separate

rental permit as required under section 5-326 so long as all requirements of Chapter 5, article VIII are satisfied and the permit holder notifies the city that the dwelling unit is being rented for periods of 30 days or greater.
(Ord. No. 2023-037, 4-4-23)

Sec. 5-407. Violations.

(a) STR owners or their responsible local representative are ultimately responsible for the conduct of their occupants and guests, regardless of whether the owners are present at the dwelling unit. Violations include, but are not limited to:

(1) Intentionally providing false or inaccurate information about a dwelling unit or short-term rental to the city;

(2) Failure to have a valid STR permit for any dwelling unit at a time when it is used in whole or in part as a short-term rental;

(3) Violation of any part of this article;

(4) Violation of any City or Richland County ordinance or state or federal law by owners, responsible local representatives, operators, lessors, agents, occupants, or guests of short-term rentals but any such violation must have a nexus to the dwelling unit subject to the violation.

(b) Violations shall apply as points towards revocation of the permit for as follows:

(1) Single-household dwellings and townhouses. Violations that occur anywhere on the premises shall apply to the permitted dwelling unit.

(2) Multi-unit structures.

a. Violations that occur within an individual unit shall apply to that unit.

b. Violations occurring outside of the units shall be assigned to the unit responsible as determined by the investigating party for the offense.

(c) In the event a citation or violation takes place at an STR or dwelling unit regulated by this article, such violation shall be grounds for the accumulation of points as follows:

(1) For one or more written warnings given in any 24-hour period for one or more of the violations listed above, points will be assessed on the permit for that STR or dwelling unit in accordance with following:

a. First offense. One point will be assessed for the first occurrence of a citation, violation, or offense.

b. Second offense and each offense thereafter. Five points will be assessed for a second occurrence and each occurrence thereafter of a citation, violation, or offense within the last 12 months.

c. Serious offense. Ten points will be assessed for any serious violation or offense that could result in serious bodily injury or death to occupants as determined by the chief of police. A serious offense includes failure to comply with any

emergency order issued by the City of Columbia, any executive order issued by the governor of the State of South Carolina, or any local, state or federal law, regulation or mandate to address a health or safety concern including but not limited to a public health outbreak (including a pandemic or wide-spread and/or infectious disease outbreak), natural disasters, war, terrorist act, strike, fire, release of nuclear material or dangerous substance into the environment or other catastrophic event.

(2) After points are assessed on a permit for a dwelling unit, the police chief or designee will send a written warning to the owner or responsible local representative. Each warning will specify which ordinance or law has been violated and will state that further warnings or violations could lead to a revocation of the permit. Each warning will be sent by regular mail to the address of the owner or responsible local representative, as identified on the permit application, as well as a copy of the warning mailed to the property address of the subject property.

(3) A fee of $100.00 will be assessed per point for each point accumulated due within 30 days of assessment and no later than any renewal of the permit.

(4) If a person is found not guilty, or the case against them for a violation is dismissed, then the point shall be removed from the permit as if it had not been assessed.

(Ord. No. 2023-037, 4-4-23)

Sec. 5-408. Revocation of permit.

(a) Accumulation of 15 or more points on a STR permit within a 12-month period shall subject the owner to proceedings to revoke the permit and the following procedure shall be followed:

(1) The police chief or designee shall cause to be served written notice to show cause why the permit should not be revoked. Service shall be deemed complete if personally delivered upon the owner or responsible local representative by any officer authorized by law to serve process or a duly appointed law enforcement officer of the city police department. The person serving process shall make proof of service within the time during which the person served must respond to the process. If service cannot be personally made within the city, then service may be made by notice posted on the property and mailed certified return receipt to the last known address of record.

(2) The owner or responsible local representative shall have 15 days from the date of service to request a hearing to appeal the revocation of the permit. The request shall be sent to the police chief by certified mail, return receipt requested. If such request is not timely made, the revocation shall take effect on the 21st day after the date of service to show cause.

(3) Upon request for a hearing, the police chief or designee is authorized to schedule the appeal with the property maintenance board of appeals (PMBoA) at the next regularly scheduled meeting or special called meeting by the board.

(4) Once the hearing is scheduled, the property should be posted to announce the hearing date to the general public.

(5) In conducting the hearing, the PMBoA shall have the power to administer oaths, issue subpoenas, compel the production of books, paper, and other documents, and receive evidence. All parties shall have an opportunity to respond, to present evidence and argument on all issues involved, to conduct cross-examination and submit rebuttal evidence, to submit proposed findings of facts and orders, to file exceptions to the PMBoA's recommended order, and to be represented by counsel or other qualified representative. Hearsay evidence may be used for the purpose of supplementing or explaining other evidence, but it shall not be sufficient in itself to support a finding unless it would be admissible over objection in civil actions. The lack of actual knowledge of, acquiescence to, participation in, or responsibility for, a public nuisance at common law or a noxious use of private property on the part of the owner or responsible local representative shall not be a defense by such owner or responsible local representative.

(6) If the PMBoA finds that the violations resulting in the accumulation of 15 or more points did in fact occur and that 15 or more points have accumulated on the permit within a 12-month period, then PMBoA shall prepare a recommended order.

(7) If the PMBoA finds 15 or more points have not accumulated on the permit within a 12-month period, the PMBoA will prepare a recommended order to dismiss the revocation action and recommend which points, if any, should be rescinded from the permit based upon the actions taken by the owner to seek compliance with the city's ordinances.

(8) The PMBoA's recommended order shall consist of findings of fact, conclusions of law and recommended relief. The police chief or designee shall transmit the recommended order to the city manager and the owner or responsible local representative. The owner or responsible local representative shall have 15 days from the date of the hearing officer's order to submit written exceptions to the PMBoA's recommended order. The city manager shall review such order and any written exceptions by the owner and may set forth any deficiencies he/she finds with respect to the order. Said deficiencies shall be limited to determinations that the findings were not based upon competent, substantial evidence, or that the proceedings on which the findings were based did not comply with the essential requirements of law. In reviewing such recommended order, the city manager shall not have the power to receive or consider additional evidence and shall not have the power to reject or modify the findings of fact or conclusions of law contained in the recommended order. The city manager may remand the recommended order along with the delineated deficiencies back to the PMBoA for consideration of the deficiencies. The PMBoA shall address the deficiencies in an addendum to the recommended order. The city manager shall then either: (a) adopt the recommended order and addendum, if applicable, in its entirety;

or (b) adopt the findings of fact and conclusions of law in the recommended order and addendum, if applicable, and reject or modify the recommended relief. The action of the city manager shall be the final order of the city.

(9) The city manager or designee shall provide notice of the final order within five days of the date of the final order.

(10) In addition to the above-described procedures, the city attorney is authorized to file for injunctive relief to abate the public nuisance at common law or noxious use of private property pursuant to law.

(11) The final order of the city is subject to certiorari review in a court of competent jurisdiction in Richland or Lexington County, South Carolina.

(Ord. No. 2023-037, 4-4-23)

Sec. 5-409. Permit application after revocation.

Upon revocation of an STR permit of a dwelling unit, the owner or responsible local representative of the dwelling unit will not be eligible to apply for a new permit for the dwelling unit subject to permit revocation until six months have passed from the date of revocation. The city shall not issue an STR permit for a dwelling unit that has been subject to a permit revocation more than once.

(Ord. No. 2023-037, 4-4-23)

Sec. 5-410. Enforcement and penalties.

The failure of a STR owner to obtain a permit in accordance to the provisions of this section, within 15 days after notice of noncompliance, shall result in an administrative penalty of $500.00.

(Ord. No. 2023-111, 9-19-23)

Chapter 6

ELECTIONS*

Sec. 6-1. Term of office of mayor and councilmembers.
Sec. 6-2. Method of election; election districts.
Sec. 6-3. Election commission.
Sec. 6-4. Elections to be nonpartisan; notice of candidacy; runoff elections.
Sec. 6-5. Filing fees.
Sec. 6-6. Time of elections; notice.
Sec. 6-7. Time of taking office; contested elections.

*__Cross reference—__Mayor and council, § 2-31 et seq.

__State law reference—__Municipal elections generally, S.C. Code 1976, § 5-15-61 et seq.

Sec. 6-1. Term of office of mayor and councilmembers.

(a) The mayor and councilmembers shall be elected for a term of four years.

(b) The term of the office of councilmembers shall be staggered, so that one-half of the membership shall be elected every two years.
(Code 1979, § 1-2071)

State law reference—Terms of office for mayor and councilmembers, S.C. Code 1976, § 5-15-40.

Sec. 6-2. Method of election; election districts.

(a) The mayor and two councilmembers shall be elected at large and four councilmembers shall be elected one from each of four separate districts. Beginning with the 1982 city council elections, two councilmembers and the mayor shall be elected at large, the mayor and one councilmember shall be elected for four-year terms and one councilmember shall be elected to a two-year term, with the council candidate receiving the highest vote total serving the four-year term; also in the 1982 elections, two councilmembers shall be elected from single-member districts, those districts to be determined by the city council, one councilmember for a two-year term and one for a four-year term as determined by the council. In the 1984 election, councilmembers shall be elected from the remaining two districts, and one councilmember shall be elected for a two-year term and one councilmember elected for a four-year term as determined by the council, so that every two years hereafter, one councilmember at large and two from single-member districts will be elected for four-year terms.

(b) (1) The four single-member Election Districts, for the election of City Council members in the City of Columbia are hereby redistricted as described in this section, with the map of the districts being kept on file in the office of the city clerk. "Exhibit B" shall be the official map. Specifically, the four single-member Election Districts for the election of City Council members for the City of Columbia shall contain the following Census Blocks, allocated by district as follows:

District 1:

District 1: Lexington County: Vtd CHALLEDON: Block 211111000, Block 211111001, Block 211113000, Block 211113001, Block 211113002, Block 211113005, Block 211113006, Block 211113007, Block 211113008, Block 211113009, Block 211113011, Block 211113015, Block 211113016, Block 211113024; Vtd QUAIL VALLEY: Block 211122003, Block 211122004, Block 211122005, Block 211122009, Block 211122010, Block 211122011, Block 211122012, Block 211122013, Block 211122014, Block 211122015, Block 211122016, Block 211122018, Block 211122019, Block 211122021, Block 211122035; Richland County: Vtd Fairwold, Vtd Ward 3: Block 6001010, Block 6001011, Block 6001017, Block 6001018, Block 6001019, Block 6001020, Block 6001022, Block 6001023, Block 6001024, Block 6001025, Block 6001026, Block 6001029, Block 6002000, Block 6002001, Block 6002002, Block 6002004, Block 6002005, Block 6002008, Block 6002010, Block 6002013, Block 6002014, Block

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Vtd Dennyside: Block 105011003, Block 105011037, Block 105011039, Block 105011040, Block 105011041, Block 105011042, Block 105011045, Block 105011052, Block 105011053, Block 106003001, Block 106003004, Block 107013006, Block 107013009, Block 107013011, Block 107013016, Block 107013032; Vtd Dentsville: Block 108032004, Block 108032005, Block 108041000, Block 108041002, Block 108041004, Block 108041005; Vtd Fairlawn: Block 114211016; Vtd Greenview: Block 107031001, Block 107031003, Block 107031005, Block 107031006, Block 107031007, Block 107031008, Block 107031009, Block 107031010, Block 107031011, Block 107031012, Block 107031013, Block 107031014, Block 107031016, Block 107031017, Block 107031018, Block 107031019, Block 107031020, Block 107031021, Block 107031022, Block 107031023, Block 107031024, Block 107031025, Block 107031026, Block 107031027, Block 107031028, Block 107031029, Block 107031030, Block 107031031, Block 107031032, Block 107032000, Block 107032001, Block 107032002, Block 107032003, Block 107032004, Block 107032005, Block 107032006, Block 107032007, Block 107032008, Block 107032009, Block 107032010, Block 107032011, Block 107032012, Block 107032013, Block 107032014, Block 107032015, Block 107032016, Block 107032017, Block 107032018, Block 107032019, Block 107032020, Block 107033000, Block 107033001, Block 107033002, Block 107033004, Block 107033005, Block 107033007, Block 107033008, Block 107033016, Block 107033017, Block 107033018, Block 107033019, Block 107033020, Block 107033021, Block 107033022, Block 107033023, Block 107033024; Vtd Harbison 1: Block 103041013, Block 103041017, Block 103041026, Block 103041028, Block 103043025, Block 103043029, Block 103043030, Block 103043031, Block 103043033, Block 103043034, Block 103043035, Block 103043036, Block 103043037, Block 103043038, Block 103043039, Block 103043040, Block 103043069, Block 103043070, Block 103152006, Block 103152007, Block 103152008, Block 103152012, Block 103152013, Block 103152014, Block 103152016, Block 103152027; Vtd Harbison 2: Block 103043005, Block 103043006, Block 103043007, Block 103043008, Block 103043009, Block 103043017, Block 103043018, Block 103043050, Block 103043051, Block 103043052, Block 103043053, Block 103043054, Block 103043055, Block 103043056, Block 103043057, Block 103043060, Block 103043061, Block 103043062, Block 103043063, Block 103043064, Block 103151000, Block 103151001, Block 103151002, Block 103151003, Block 103151021, Block 103151047; Vtd Keels 2: Block 108051000, Block 108051001, Block 108051004, Block 108051005, Block 108051006, Block 108051007, Block 108051014; Vtd Kingswood: Block 104071000, Block 104071001, Block 104071003, Block 104072004, Block 104072011, Block 104072015, Block 104072016, Block 104072018, Block 104072019, Block 104072026, Block 104072029, Block 104072031, Block 104072033, Block 104072034, Block 104072035, Block 104072036, Block 104072040, Block 104081012; Vtd Lincolnshire: Block 107011032, Block 107013007, Block 107013010; Vtd Meadowlake: Block 107022014, Block 107022020, Block 107022021, Block 107023028, Block 108061002, Block 108061003, Block 108061006, Block 108061007, Block 108061008, Block 108061009, Block 108061012, Block 108061013, Block 108061017, Block 108061018; Vtd Monticello: Block 102003069, Block 102003070,

Block 102003083; Vtd Oak Pointe 1: Block 103142000, Block 103142001, Block 103142002, Block 103142003, Block 103142005, Block 103142009, Block 103143008, Block 103143009, Block 103143010, Block 103143013, Block 103143014, Block 103143015; Vtd Parkridge 1: Block 103041006, Block 103041009, Block 103041012, Block 103041024, Block 103052006, Block 103052007; Vtd Parkridge 2: Block 103041018, Block 103041020, Block 103041021, Block 103041022, Block 103041023, Block 103041025, Block 103041029, Block 103041030, Block 103041031, Block 103041032, Block 103041035, Block 103041036, Block 103041037, Block 103041038, Block 103041041, Block 103041042, Block 103041043, Block 103041044; Vtd Pine Grove: Block 103042001, Block 103042004, Block 103042013, Block 103042014, Block 103042015, Block 104141007; Vtd Ridgewood: Block 3001000, Block 106003017, Block 106003018, Block 106003019, Block 106003024, Block 106003026, Block 106003029, Block 106003030, Block 106003032, Block 106003069, Block 106003071, Block 106003073, Block 106003074, Block 106003075, Block 106003076, Block 106003077, Block 106003080, Block 106003082, Block 106003083, Block 106003085, Block 106003086; Vtd Riverside: Block 104122028, Block 104122030, Block 104122034, Block 104122036, Block 104131000, Block 104131002, Block 104131004, Block 104131005, Block 104131013, Block 104131020, Block 104132005, Block 104132006, Block 104132007, Block 104132008, Block 104132009, Block 104132011, Block 104132012, Block 104132013, Block 104132014, Block 104132015, Block 104132016, Block 104132017, Block 104132019; Vtd Riverwalk: Block 103081025, Block 103142016, Block 103151006, Block 103151009, Block 103151013, Block 103151015, Block 103151032, Block 103151042, Block 103151045, Block 103152000, Block 103152001; Vtd Walden: Block 103151022, Block 103151023, Block 103151048, Block 104072000, Block 104081000, Block 104081001, Block 104081002, Block 104081003, Block 104081004, Block 104081005, Block 104081006, Block 104081007, Block 104081008, Block 104081009, Block 104081010, Block 104081011, Block 104081013, Block 104081014, Block 104081015, Block 104144007, Block 104144008, Block 104144009, Block 104144013, Block 104144014, Block 104144015, Block 104144016, Block 104144017, Block 104144023; Vtd Westminster: Block 104121000, Block 104121001, Block 104121002, Block 104121003, Block 104122000, Block 104122031, Block 104132000, Block 104132001, Block 104132003.

District 2:

Lexington County: Vtd SALUDA RIVER: Block 205092003, Block 205092026, Block 205092027, Block 205092028, Block 205092029; District 2: Lexington County: Vtd WOODLAND HILLS: Block 205104004, Block 205104008; Richland County: Vtd Ward 2, Vtd Ward 8, Vtd Ward 9, Vtd Ward 18, Vtd Ward 30, Vtd Ward 32, Vtd Ward 33, Vtd Ward 1: Block 29001000, Block 29001001, Block 29001002, Block 29001003, Block 29001004, Block 29001005, Block 29001006, Block 29001040, Block 29001046, Block 30001000, Block 30001001, Block 30001002, Block 30001003, Block 30001004, Block 30001005, Block 30001006, Block 30001007, Block 30001008, Block 30001009, Block 30001010, Block 30001011, Block 30001012, Block 30001013, Block 30002005,

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District 3:

District 3: Richland County: Vtd Ward 12, Vtd Ward 13, Vtd Ward 14, Vtd Ward 23, Vtd Ward 1: Block 27001000, Block 27001001, Block 27001002, Block 27001003, Block 27001004, Block 27001005, Block 27001006, Block 30002027, Block 30002031, Block 30002032, Block 30002033, Block 30002034; Vtd Ward 5: Block 27003007, Block 28001000, Block 28001001, Block 28001002, Block 28001003, Block 28001004, Block 28001005, Block 28001006, Block 28001007, Block 28001008, Block 28001009, Block 28001010, Block 28001011, Block 28001012, Block 28001013, Block 28001014, Block 28001015, Block 28001016, Block 28001017, Block 28001018, Block 28001019, Block 28001020, Block 28001021, Block 28001022, Block 28001023, Block 28001024, Block 28001025, Block 28001026, Block 28001032, Block 28001033, Block 28001036, Block 28001039, Block 28001040, Block 28001041, Block 28001042, Block 28001043, Block 28001045, Block 28001046, Block 28001047, Block 28001048, Block 28001049, Block 28001053, Block 28001057, Block 28001060, Block 28003000, Block 28003001, Block 28003002, Block 28003003, Block 28003004, Block 28003005, Block 28003006, Block 28003007, Block 28003008, Block 28003009, Block 28003010, Block 28003011, Block 28003012, Block 28003013, Block 28003014, Block 28003015, Block 28003016, Block 28003017, Block 28003018, Block 28003019, Block 28003023, Block 28003024, Block 28003026, Block 29001014, Block 29001015, Block 29001016, Block 29001017, Block 29001018, Block 29001019, Block 29001020, Block 29001021, Block 29001022, Block 29001023, Block 29001024, Block 29001025, Block 29001026, Block 29001027, Block 29001034, Block 29001041, Block 29001042, Block 29001043, Block 29001044, Block 29001045; Vtd Ward 10: Block 27002000, Block 27002001, Block 27002002, Block 27002003, Block 27002004, Block 27002005, Block 27002006, Block 27002007, Block 27002008, Block 27002009, Block 27002010, Block 27002011, Block 27002012, Block 27002013, Block 27002014, Block 27002015, Block 27003001, Block 27003002, Block 27003003, Block 27003004, Block 27003005, Block 27003006, Block 27003008, Block 27003009, Block 27003010, Block 27003011, Block 27003012, Block 27003013, Block 27003015, Block 27003016, Block 27003017, Block 27003018, Block 27003020, Block 27003021, Block 27003022, Block 27003023, Block 27003024, Block 27003026, Block 27003027, Block 27003029, Block 27003030, Block 27003031, Block 27003032,

Block 27003033, Block 27003034, Block 27003035, Block 27003036; Vtd Ward 11: Block 26021005, Block 26021006, Block 26021007, Block 26021008, Block 26021009, Block 26021010, Block 26021029, Block 26021030, Block 26021031, Block 26021032, Block 26021033, Block 26021034, Block 26021035, Block 26021036, Block 26021039, Block 26021040, Block 26021041, Block 26021042, Block 26021043, Block 26021044, Block 26021045, Block 26021046, Block 26021053, Block 26022000, Block 26022001, Block 26022002, Block 26022003, Block 26022004, Block 26022005, Block 26022006, Block 26022007, Block 26022008, Block 26022009, Block 26022010, Block 26022011, Block 26022012, Block 26022013, Block 26022014, Block 26022015, Block 26022016, Block 26022017, Block 26022018, Block 26022019, Block 26022020, Block 26022021, Block 26022022, Block 26022023, Block 26022024, Block 26022025, Block 26022026, Block 26022027, Block 26022028, Block 26022029, Block 26022030, Block 26022031, Block 26022032, Block 26022033, Block 26022034, Block 26022039, Block 26022043, Block 26051015, Block 26052055; Vtd Ward 15: Block 22001000, Block 22001001, Block 22001002, Block 22001003, Block 22001007, Block 22002000, Block 22002001, Block 22002002, Block 22002003, Block 22002004, Block 22002005, Block 22002006, Block 22002007; Vtd Ward 17: Block 25004000, Block 25004001, Block 25004002, Block 25004003, Block 25004004, Block 25004005, Block 25004007, Block 25004008, Block 25004009; Vtd Bluff: Block 117022003, Block 117022006, Block 117022008, Block 117022009, Block 117022010, Block 117022014, Block 117022015, Block 117022016, Block 117022017, Block 117022020, Block 117022021, Block 117022022, Block 117022023, Block 117022024, Block 117022025, Block 117022026, Block 117022027, Block 117022028, Block 117022029, Block 117022030, Block 117022036, Block 117022037, Block 117022038, Block 117022039, Block 117022040, Block 117022044, Block 117022045, Block 117022046, Block 117022047, Block 117022052, Block 117022053, Block 117022060, Block 117022063, Block 117022067, Block 117022082, Block 117022083, Block 117022086, Block 117022088, Block 117022089, Block 117022095; Vtd Brandon 1: Block 116081060, Block 116081063, Block 116081065, Block 116081066, Block 116081067, Block 116081068, Block 116081069, Block 116081070; Vtd Brandon 2: Block 116071004, Block 116071006, Block 116071007, Block 116071008, Block 116071009, Block 116071010, Block 116071011, Block 116071012, Block 116071013, Block 116071014, Block 116071020, Block 116071021, Block 116071023, Block 116071024, Block 116071025, Block 116072000, Block 116072001, Block 116072002, Block 116072003, Block 116072004, Block 116072005, Block 116072006, Block 116072007, Block 116072008, Block 116072016, Block 116072017, Block 116072018, Block 116072019, Block 116072022; Vtd Hampton: Block 25004013, Block 25004014, Block 26022035, Block 26022036, Block 26022037, Block 26022038, Block 26022040, Block 26051000, Block 26051001, Block 26051002, Block 26051003, Block 26051004, Block 26051005, Block 26051006, Block 26051007, Block 26051008, Block 26051009, Block 26051010, Block 26051013, Block 26051019, Block 26052000, Block 26052003, Block 26052004, Block 26052005, Block 26052031, Block 26052040, Block 26052041, Block 26052042, Block 26052051, Block 26052052, Block 26052054, Block 26052056, Block 26052057, Block 26052059, Block

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District 4:

District 4: Richland County: Vtd Ward 16, Vtd Pennington 1, Vtd Ward 15: Block 12001005, Block 12001006, Block 12001011, Block 12001014, Block 12001015, Block 12001016, Block 12001017, Block 12001018, Block 12001019, Block 12002000, Block 12002001, Block 12002002, Block 12002003, Block 12002004, Block 12002005, Block 12002006, Block 12002007, Block 12002008, Block 12002009, Block 12002010, Block 12002011, Block 12002012, Block 12002013, Block 12002014, Block 12002015, Block 12002016, Block 12002017, Block 12002018, Block 12002019; Vtd Ward 17: Block 23002000, Block 23002001, Block 23002002, Block 23002003, Block 23002012, Block 23002013, Block 23002014, Block 23002015, Block 23002016, Block 23002017, Block 23003015, Block 24001018, Block 24001019, Block 24001020, Block 24001021, Block 24001022, Block 24001024, Block 24001025, Block 24001026, Block 24001027, Block 24001028, Block 24001029, Block 24001030, Block 24001031, Block 24001032, Block 24001033, Block 24001034, Block 24001035, Block 24001037, Block 24001038, Block 24001039, Block 24001040, Block 24001041, Block 116032024, Block 116032026, Block 116032027; Vtd Ward 24: Block 12001023, Block 12001030, Block 12001031, Block 12001034, Block 23003000, Block 23003001, Block 23003002, Block 23003003, Block 23003004, Block 23003005, Block 23003016, Block 23003017, Block 24001004, Block 24001005, Block 24001006, Block 24001007, Block 24001010, Block 24001011, Block 24001012, Block 24001013, Block 24001017, Block 112011023, Block 112011024, Block 112011025, Block 112011027, Block 112011028, Block 112012012, Block 112012013, Block 112012014, Block 112012016, Block 112012019, Block 112012021, Block 112012022, Block 112012023, Block 112012024, Block 112012025, Block 112012026, Block 112012027, Block 112012028, Block 112012029, Block 112012030; Vtd Ward 25: Block 24001000, Block 24001001, Block 24001002, Block 24001003, Block 24001008, Block 24001009, Block 24001014, Block 24001015, Block 24001016, Block 24001023, Block 24001036, Block 24002000, Block 24002001, Block 24002002, Block 24002003, Block 24002004, Block 24002005, Block 24002006, Block 24002007, Block 24002008, Block 24002009, Block 24002010, Block 24002011, Block 24002012, Block 24002013, Block 24002014, Block 24002018, Block 24002019, Block 24002020, Block 24002021, Block 24002022, Block 24003010, Block 24003024, Block 24003025, Block 24003026, Block 24003027, Block 24003028, Block 24003031, Block 24003032, Block 24003033, Block 24003035; Vtd Ward 26: Block 24002015, Block 24002016, Block 24002017, Block 24003007, Block 24003008, Block 24003009, Block 113073016, Block 113073017, Block 113073018, Block 115011000, Block 115011001, Block 115011002, Block 115011003, Block 115011004, Block 115011005, Block 115011006, Block 115011007, Block 115011008, Block 115011009, Block 115011011, Block 115011012, Block 115011013, Block 115011014, Block 115011015, Block 115011016, Block 115011017, Block 115011018, Block 115011019, Block 115011020, Block 115011021, Block 115011022, Block 115011023, Block 115011024, Block 115011025, Block 115011026, Block 115011027, Block 115011028, Block 115011029, Block 115011030, Block 115011031, Block 115011032, Block 115011033, Block 115011034, Block 115011035, Block 115011036, Block 115011037, Block 115011038, Block

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Block 116031038, Block 116031039, Block 116031040, Block 116031044, Block 116031047, Block 116031048, Block 116031061, Block 116031063, Block 116031064, Block 116031065, Block 116031067, Block 116031070, Block 116031071, Block 116081026; Vtd Pine Lakes 1: Block 119012010, Block 119012030, Block 119012031; Vtd Pine Lakes 2: Block 119011004, Block 119011005, Block 119011006, Block 119011007, Block 119011009, Block 119011011, Block 119011012, Block 119011014, Block 119011016; Vtd Polo Road: Block 114122000, Block 114122001, Block 114122002, Block 114122003, Block 114122004, Block 114122005, Block 114122007, Block 114122029; Vtd Pontiac 1: Block 114071008, Block 114071009, Block 114071011, Block 114071012, Block 114071013, Block 114071016, Block 114071024, Block 114072045, Block 114072047, Block 114072048, Block 114072065, Block 114072069, Block 114072071, Block 114072072, Block 114072079, Block 114072080, Block 114072082, Block 114072084, Block 114072086, Block 114072094, Block 114072098, Block 114072100, Block 114141026, Block 114141027, Block 114141028, Block 114141033, Block 114141034, Block 114141039, Block 114141043, Block 114141044, Block 114141055, Block 114141056, Block 114141057, Block 114141060, Block 114141061, Block 114141063; Vtd Pontiac 2: Block 114072005, Block 114072012, Block 114072013, Block 114072014, Block 114072024, Block 114072025, Block 114072026, Block 114072027, Block 114072029, Block 114072030, Block 114072031, Block 114072032, Block 114072033, Block 114072034, Block 114072035, Block 114072036, Block 114072038, Block 114072039, Block 114072040, Block 114072041, Block 114072042, Block 114072049, Block 114072057, Block 114072058, Block 114072059, Block 114072060, Block 114072073, Block 114072074, Block 114072075, Block 114072077, Block 114072089, Block 114072104, Block 114072105, Block 114072106; Vtd Trinity: Block 116082003, Block 116082004, Block 116084002, Block 116084003, Block 116084007, Block 116084009, Block 116084010, Block 116084011, Block 116084012, Block 116084013, Block 116084027, Block 116084029, Block 116084030, Block 114072013, Block 116084032, Block 116084033, Block 116084034, Block 116084035, Block 116084036, Block 116084043; Vtd Valhalla: Block 114141035, Block 114141036, Block 114141037, Block 114141048; Vtd Woodfield: Block 113051004, Block 113051015, Block 113051024, Block 113051025, Block 113051026.

(2) For those parcels that have been annexed by the City that do not correspond to those Census Blocks the 2020 Census classified as within the City of Columbia, they shall be part of the single-member Election District to which they are appurtenant.

(3) City staff is hereby authorized and directed to take all such administrative actions to promulgate and execute such procedures and policies as may be necessary or desirable to carry into effect and implement the redistricted election districts provided for and adopted in this section, including the elections required thereby, and in accordance with the law.

(Code 1979, § 1-2072; Ord. No. 2001-092, 10-17-01; Ord. No. 2009-110, 10-07-09; Ord. No. 2011-064, 8-30-11; Ord. No. 2021-098, 12-21-21)

State law reference—Methods of selection, S.C. Code 1976, § 5-15-20.

Sec. 6-3. Election commission.

(a) The city council shall appoint an election commission composed of three resident electors, which shall have the powers, functions and duties as prescribed by law.

(b) Commission appointees shall serve for a term of six years, provided that initial appointments shall be made in a manner to provide for staggered terms and in accordance with state law.

(Code 1979, § 1-2073)

State law reference—Municipal election commission, S.C. Code 1976, § 5-15-90 et seq.

Sec. 6-4. Elections to be nonpartisan; notice of candidacy; runoff elections.

(a) All regular and special elections for the offices of mayor and councilmembers shall be nonpartisan elections and runoff elections pursuant to state law.

(b) Each person offering as a candidate for election to any municipal election shall do so by filing a notice of candidacy with the election commission 60 days prior to the date of the election. The notice of candidacy shall be in substantially the following form:

Date _____

I hereby file notice that I am a candidate for election to the office of _____ (mayor) (councilmember) in the regular municipal election to be held on this _____ day of _____, _____. I certify that I am a qualified elector, and resident of the municipality for which I seek election.

Signed _____
Name of candidate

Witness _____

(c) A second election shall be conducted two weeks after the first election, between one more than the number of candidates necessary to fill offices for which no candidates received a majority of the votes cast. The second election shall be between the candidates receiving the largest number of votes in the first election. The candidates receiving the highest number of votes cast in the second election in number equal to the number of offices to be filled shall be declared elected.

(d) No political party affiliation shall be placed on any ballot for any candidate.

(Code 1979, § 1-2074; Ord. No. 99-080, 9-15-99)

State law reference—Nonpartisan elections, nomination petitions, S.C. Code 1976, § 5-15-60.

Sec. 6-5. Filing fees.

Filing fees for municipal office shall be:

(1) Candidates for mayor: $1,000.00.

(2) Candidates for council: $530.00

(Code 1979, § 1-2075; Ord. No. 2017-045, 7-18-17)

Sec. 6-6. Time of elections; notice.

(a) Elections for city officials shall be held in odd numbered years on the first Tuesday following the first Monday in November.

(b) The council shall give public notice of the general city election at least 90 days prior to the date of the election.

(Code 1979, § 1-2076; Ord. No. 99-080, 9-15-99; Ord. No. 2012-072, 8-21-12)

State law reference—Sixty days' public notice of elections required, S.C. Code 1976, § 5-15-50.

Sec. 6-7. Time of taking office; contested elections.

(a) Newly elected officers shall not be qualified pursuant to state law until January 1 next following the date of the general election.

(b) If the results of the election are contested, the incumbent who fills that contested office shall hold over until the contest is finally determined.

(Code 1979, § 1-2077; Ord. No. 2012-072, 8-21-12)

State law reference—Contested elections, S.C. Code 1976, §§ 5-15-130, 5-15-140.

Chapter 7

EMERGENCY MANAGEMENT*

Article I. In General

Secs. 7-1—7-30. Reserved.

Article II. State of Emergency

Sec. 7-31. Definition.
Sec. 7-32. Declaration; imposition of curfew.
Sec. 7-33. Limitation of application of curfew.
Sec. 7-34. City council to meet within 24 hours after proclamation.
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***Cross references—**Administration, ch. 2; fire prevention and protection, ch. 9; law enforcement, ch. 10.

State law reference—Emergency preparedness, S.C. Code 1976, § 25-1-420 et seq.

ARTICLE I. IN GENERAL

Secs. 7-1—7-30. Reserved.

ARTICLE II. STATE OF EMERGENCY

Sec. 7-31. Definition.

A state of emergency shall be deemed to exist within the city whenever, during times of great public crisis, disaster, rioting, civil disturbance or catastrophe, or for any other reason, municipal public safety authorities are unable to maintain public order or afford adequate protection for lives, safety, health, welfare or property.
(Code 1979, § 2-1006)

Cross reference—Definitions generally, § 1-2.

Sec. 7-32. Declaration; imposition of curfew.

In the event of a state of emergency threatening or endangering lives, safety, health and welfare of the people within the city or threatening damage to or destruction of property, the mayor is hereby authorized and empowered to issue a public proclamation declaring to all persons the existence of such a state of emergency, and, in order more effectively to protect the lives, safety and property of people within the city, to define and impose a curfew applicable to all persons within the jurisdiction of the city.
(Code 1979, § 2-1007)

Sec. 7-33. Limitation of application of curfew.

The mayor is hereby authorized and empowered to limit the application of the curfew authorized by section 7-32 to any area specifically designated and described within the jurisdiction of the city and to specific hours of the day or night, and to exempt from the curfew police officers, firefighters, doctors, nurses and such other classes of persons as may be essential to the preservation of public order and immediately necessary to serve the safety, health and welfare needs of the people within the city.
(Code 1979, § 2-1008)

Sec. 7-34. City council to meet within 24 hours after proclamation.

The city council shall be called into session within 24 hours after a state of emergency has been proclaimed by the mayor pursuant to the provisions of this article.
(Code 1979, § 2-1009)

Sec. 7-35. Prohibited acts.

During the existence of a proclaimed state of emergency when a curfew has been defined and imposed under the provisions of this article, it shall be unlawful for anyone subject to curfew to:

(1) Be or travel upon any public street, alley or roadway or upon public property unless such travel is necessary to obtain medical assistance;

(2) Possess off one's own premises, buy, sell, give away or otherwise transfer or dispose of any explosives, firearms, ammunition or dangerous weapon of any kind;

(3) Sell beer, wine or intoxicating beverages of any kind; or possess or consume beer, wine or intoxicating beverages off one's own premises; or

(4) Sell gasoline or any other similar petroleum products or any other combustible or inflammable substances except as expressly authorized by the provisions of the curfew imposed.

(Code 1979, § 2-1010)

Sec. 7-36. Termination.

The mayor shall proclaim the end of any state of emergency and curfew proclaimed under the provisions of this article as soon as circumstances warrant or when directed to do so by the city council.

(Code 1979, § 2-1011)

State law reference—Similar powers vested in governor and South Carolina National Guard, S.C. Code 1976, § 16-7-10 et seq.

Secs. 7-37—7-60. Reserved.

ARTICLE III. EMERGENCY INTERIM SUCCESSION*

Sec. 7-61. Order of succession to office of mayor.

In the event of an attack upon the United States and if the mayor is unavailable as defined by S.C. Code 1976, § 1-9-20, the order of succession for his emergency interim successors shall be:

(1) The mayor pro tempore.

(2) The available elected members of city council in order of seniority, or in alphabetical order in case of identical seniority.

(3) Three citizens of the city designated by the mayor in writing in the order specified.

(Code 1979, § 1-2051)

*__State law reference—__Emergency interim succession, S.C. Code 1976, §§ 1-9-20, 1-9-50, 1-9-60.

Sec. 7-62. Order of succession to office of councilmember.

Each member of the city council shall designate in writing not less than three and not more than seven citizens of the city to serve as emergency interim successors on the city council in the order specified. A member of the council shall be considered unavailable when serving as an interim successor to the mayor.
(Code 1979, § 1-2052)

Sec. 7-63. Order of succession to office of city manager.

The order of succession for successors to the city manager shall be:

(1) Assistant city manager.

(2) Finance director.

(3) Director of utilities and engineering.

(4) Such department heads or city employees as may be designated in writing by the city manager and filed with the city clerk.

(Code 1979, § 1-2053)

Sec. 7-64. Duration of service; authority of interim successor.

Interim successors shall serve only if the regular official is unavailable due to an attack on the United States, and shall exercise the powers and discharge the duties of the office to which designated until a vacancy is filled according to law, or until the official again becomes able to discharge the duties of his office, all in accordance with the provisions of S.C. Code 1976, §§ 1-9-10—1-9-230.
(Code 1979, § 1-2054)

Sec. 7-65. Review of designations; filing of copies of designations.

The written designations of successors provided by this article shall be reviewed and updated annually. Copies of the designations shall be filed with the city clerk, the secretary of state, the attorney general and the director of civil defense in the city.
(Code 1979, § 1-2055)

Sec. 7-66. Transfer of affairs of government from city hall.

If the affairs of city government cannot be conducted at city hall in an emergency, city officials or their designated interim successors shall meet at civil defense headquarters or such other site as may be established by resolution during the emergency.
(Code 1979, § 1-2056)

Chapter 8

ENVIRONMENTAL HEALTH AND SANITATION*

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State law reference—Health generally, S.C. Code 1976, title 44.

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ARTICLE I. IN GENERAL

Sec. 8-1. Hazardous fences.

It shall be unlawful for any person to install, erect, maintain or permit on property owned, occupied or controlled by such person any fence, wall, screen, barricade, post or structure which has affixed to or incorporated into it barbed wire, concertina wire, electrically charged wire, spikes, blades, glass or any other sharp objects or hazardous materials at a level lower than five feet above the ground or the surface upon which pedestrians or vehicles may travel; provided that a fence may have pointed surfaces above and aligned parallel to the fence at a level not lower than 45 inches above the ground or the surface upon which pedestrians or vehicles may travel. Notwithstanding the preceding prohibition, the use of one joule or less, low impedance, pulse type, properly grounded energizers and electrified low voltage fencing shall be allowed if permitted pursuant to a prescribed grazing permit as provided for in City Code section 4-37.
(Code 1979, § 2-2051; Ord. No. 2023-099, 12-5-23)

Sec. 8-2. Filling stations and garages to be kept clean and sanitary.

Every person owning or operating a public filling station or public garage in the city shall keep the premises in and about such filling station or garage in a neat, clean and sanitary manner, and shall keep the sidewalks, walkways and driveways in and about such filling station or garage free from grease, oil, water or other substance. Such filling station or garage shall at all times be subject to the inspection of the chief of police or his designated representatives. The owner or operator of such filling station or garage shall promptly carry out the order of any such inspector with regard to the keeping of such station or garage.
(Ord. No. 2015-101, 1-5-16)

Sec. 8-3. Outdoor placement of certain items prohibited.

(a) It shall be unlawful for the occupant or owner of any property within the city to allow any of the following items to remain on the property outside a dwelling or other enclosed structure for longer than 48 hours, in any location visible from streets or sidewalks adjacent to the property: Appliances, bedding, bottles, glass, cans, cardboard, upholstered furniture manufactured for indoor use only, household appliances, jars, lumber and building supply materials not related to an active permit and not neatly stacked, machine parts, motor vehicles parts, pallets, paper, plumbing fixtures, rags, scrap metal.

(b) For purposes of this section, the phrase "outside a dwelling or other enclosed structure" shall mean any location that is not within the interior of a dwelling or other enclosed structure. Porches, balconies, decks, carports or other similar structures, unless completely enclosed, shall be deemed to be outside a dwelling or other enclosed structure.
(Ord. No. 2015-101, 1-5-16)

Secs. 8-4—8-30. Reserved.

ARTICLE II. NUISANCES*

Sec. 8-31. Nuisance—Definitions.

(a) *Definitions.* As used in this article, the following terms shall have the following meanings, unless the context clearly indicates that a different meaning is intended:

Abate means repair, replace, remove, destroy or otherwise remedy the condition in question by such means, in such time, in such a manner and to such an extent as the enforcement officer or hearing committee shall determine to be in the best interest of the public, taking into account all facts and circumstances.

Business days means Monday at 9:00 am through Friday at 5:00 pm.

Citation means a charge or formal written accusation of violation of a municipal, state or federal law, regulation or ordinance, including any violations of the International Property Maintenance Code as adopted by the City of Columbia.

Conviction means a person has been found by a court of competent jurisdiction to have violated a municipal, state of federal law, regulation or ordinance, including any violations of the International Property Maintenance Code as adopted by the City of Columbia.

Delinquent arrearage means any funds or monies owed to the City of Columbia which were due to be paid on a date prior but have not been paid when due, provided, this shall not include arrearages which are the subject of a repayment plan or abatement agreement entered into with the City of Columbia.

Enforcement officer means a law enforcement officer, code enforcement official or city employee or official as may be designated in writing by the city manager or chief of police to enforce the provisions of this article.

Graffiti means any unauthorized inscription, word, figure, painting or other defacement that is written, marked, etched, scratched, sprayed, drawn, painted, or engraved on or otherwise affixed to any surface of public or private property by any graffiti implement, to the extent that the graffiti was not authorized in advance by the owner or occupant of the property, or, despite advance authorization.

Hearing board means the Property Maintenance Board of Appeals.

Industrial wastes means all liquid and water-borne solid, liquid or gaseous wastes resulting from industrial manufacturing, food processing operation, processing any natural resource or mixture of such wastes with water or domestic sewage.

Notice means a written document informing the citizen of the nature of the violation.

***Editor's note—**Ord. No. 2015-101, adopted Jan. 5, 2016, amended former Art. II, §§ 8-31—8-41, in its entirety to read as herein set out. Former Art. II pertained to similar subject matter and derived from the Code of 1979, §§ 9-3001—9-3009, Ord. No. 2000[1], §§ 1, 2, 11-14-01; Ord. No. 2008-026, 4-2-08; Ord. No. 2010-079, 6-2-10.

Cross reference—Abandoned refrigerators and other hazardous containers, § 14-241 et seq.

Person means any landlord, property owner, manager, lessee, tenant, or individual, group, association, corporation, partnership, trust, estate or receiver having the capacity to sue or be sued.

Premises mean any building, lot parcel, real estate, or land or portion of land whether improved or unimproved, occupied or unoccupied, including adjacent parking.

Public nuisance means as determined by an enforcement officer based upon the facts and circumstances found after reasonable inquiry, investigation or upon citizen report, those conditions or events which constitute an unreasonable interference with rights of the public in general, and where, in a public place, or where the public congregates, or where the public is likely to come within the range of influence through the senses, a person unlawfully does an act or omits to perform a duty, which act or omission does any one or more of the following:

(1) Annoys, injures, subverts or endangers the public's order, economy, resources, safety, health, welfare, comfort, repose or offends public decency;

(2) Unlawfully interferes with, obstructs or tends to obstruct, or renders dangerous for passage any waters or public places or way;

Structure means anything constructed, built or planted upon, any edifice or building of any kind or any piece of work artificially built up or composed of parts joined together in some definite manner, which structure requires location on the ground or is attached to something having a location on the ground.

(b) *Nuisances affecting public health.* The following are hereby declared to be nuisances affecting public health:

(1) All decayed or unwholesome food products or food waste not properly contained either inside or outside for more than 24 hours before pickup;

(2) Any violations of the smoking provisions of Article IV, Division 5 of this chapter, provided, however, the remedies under that section are exclusive and remedies contained herein for nuisances are not available;

(3) All pools of stagnant water or vessels holding stagnant water in which mosquitoes can breed, excluding required retention ponds;

(4) Swimming pools which violate any of the requirements of section 5-1 of the Columbia Code of Ordinances;

(5) Any violations of Chapter 4 as it relates to animal or animal waste;

(6) Any violation of the International Property Maintenance Code, as adopted by the City of Columbia, which related to sewage or leaks of sewage;

(7) Deliberate placement or discharge of into any part of a storm water drainage system of: untreated sewage, sewage solids, process wastewater, refuse, explosive or combustible liquid, solid or gas, oils, greases, industrial water or other polluted water except where a federal, state or local permit for connections, discharge or disposal has been obtained prior to the event; or waters or wastes containing toxic or

poisonous wastes to constitute a hazard to humans, plants or animals or to cause corrosion, discoloration or deposition on real or personal property; or any solid or viscous substances in such quantities or of such size capable of causing obstruction to the flow in the storm water drainage system or other interference with the proper operation of the drainage system of the city.

(8) All structures in violation of the International Property Maintenance Code or Chapter 5 of this Code, as adopted and all structures, for a period of 90 days, which remain unoccupied and boarded up, and whose exterior finish is destroyed, decayed, dilapidated or deteriorated in violation of the International Property Maintenance Code, as adopted.

(c) *Nuisances offending public decency, peace and order.* The following are hereby declared to be public nuisances affecting public decency, peace and order, whether such violations are of an intermittent, cyclical, continual, reoccurring or constant nature; and when the responsible party generates, enables, or contributes to the occurrence of the unlawful behavior by an absence or failure of property management policy or practice, absence or failure of control over the property, absence or failure of supervision of guests or invitees, absence or failure of security measures.

(1) Any premises or structure located thereupon, whether commercial or residential, where gambling devices, slot machines, punch boards and other such contrivances of similar character involving any elements of chance as a consideration or any type of gambling, bookmaking, wagering or betting is carried on, and all gambling equipment, except where such specific form of gambling is permitted by applicable law;

(2) Any premises or structure located thereupon, whether commercial or residential, operated as a bawdy house, house of assignation, place of prostitution or used and maintained for the commercial or criminal purposes of unlawful sexual activity in violation of federal, state or local law;

(3) Any premises or structure located thereupon, whether commercial or residential, where intoxicating liquors are manufactured, sold, bartered or given away in violation of federal, state or local law, or where intoxicating liquors kept for sale, barter or distribution in violation of federal, state or local law, and all liquors, bottles, kegs, pumps, bars and other property kept at and used for maintaining such a place; or where required safety plans are not in place, or where persistent violations of law occur under a failed or ineffective safety plan;

(4) Any premises or structure located thereupon, whether commercial or residential, where acts of sale, manufacture, possession or distribution of controlled substances occur in violation of federal, state and local law;

(5) Any premises or structure located thereupon, whether commercial or residential , where violations against the federal, state or municipal laws occur with disproportionate frequency or intensity that they require an excessive public safety response cost. "Excessive public safety response" means:

a. The reasonable deployment of five or more law enforcement officers to an emergency scene at any one time, or the reoccurring need for public safety or

code personnel or emergency vehicles at the location when compared to the frequency or intensity of law or regulation enforcement required at other similarly situated structures;

b. There have been more than two situations of unsafe traffic or crowd control issues at the location which result in the request of emergency assistance or the need for law enforcement assistance from an emergency situation; provided, however, this does not include when traffic control or crowd control is requested in advance of a scheduled event pursuant to a city issued permit or prior discussions with law enforcement.

c. There have been more than six citations, or search warrants executed, or a combination of the two, at the location for any of the following behaviors during any 12-month period:

i. Violation of any state or local alcohol law;

ii. Violation of any federal, state or local narcotics law;

iii. Violation of any state or local gun law;

iv. Assaults; and/or

v. Crimes of violence against another person(s).

(6) Any overgrown, uninhabited, undeveloped or vacant land, lot or property not licensed or zoned for camping that has been identified by law enforcement as an area used by persons other than the owner as an area to inhabit or camp, or any overgrown, uninhabited, undeveloped or vacant land, lot or property used by persons as an area to flee or evade police upon approach, or used to avoid detection or investigation by law enforcement without regard to the time of day or night regarding such conduct, as identified by a citizen or police reported incident level of more than two times in a 60-day period.

(7) Reentry upon a specified public place, after being ejected and excluded from a public place as a result of conduct that placed themselves or others in potentially dangerous situations on public places by disobedience to safety rules, disorderly conduct or breaches of the peace. (See Article IV, Division 5 of this Chapter.)

(d) *Nuisances affecting public welfare and safety.* The following are hereby declared to be public nuisances affecting public welfare and safety:

(1) All trees, hedges, signs or other obstructions, or any portion of the same, so located on private property which prevent persons driving vehicles approaching an intersection of streets from having a clear safe view of traffic approaching such intersection;

(2) All trees, hedges, signs or other obstructions, or any portion of the same so located on private property which prevents the clear and unobstructed view of a fire hydrant, fire department connection or other fire protection device, or directional or identification signage pertaining to the above, from a public way;

(3) Any obstruction, erosion or depression which poses a potential hazard to vehicles or pedestrians using a right-of-way on private property where the public is invited or permitted to traverse for commercial purposes;

(4) All wires, strings, ropes or lighting contrivances over streets, alley or public grounds which are not authorized or permitted by the city or which are strung so that the lowest portion is less than 13½ feet above the surface of the ground;

(5) All explosives, flammable liquids and other dangerous substances stored in any manner, in any amount other than that manner or amount permitted by law;

(6) All hanging signs, awnings, canopies and other similar structures over the streets or sidewalks so situated or constructed as to endanger public safety or to be contrary to ordinance;

(7) Any motor vehicle that is unregistered, inoperable, derelict or abandoned on any highway or right-of-way, or other public or private property (including motor vehicles in violation of section 302.8 of the International Property Maintenance Code, as adopted by and for the city), unless such vehicle is stored inside of a completely enclosed permanent structure.

(8) Any tents, trailers, structures, cooking devices, appliance, chairs, tables, coolers or other objects used in impromptu, unpermitted or unmanaged outdoor events or gatherings in a required parking area or landscaped area of a business license holder, or the site of any short-term residential rental, unless that such outdoor events that are specifically permitted through legislative or administrative action, or sponsored by the business license holder in compliance with regulations governing such outdoor events.

(9) Reentry upon a specified public place, after being ejected and excluded from a public place as a result of conduct that placed themselves or others in potentially dangerous situations on public places by disobedience to safety rules, disorderly conduct or breaches of the peace. (See division 5 of this chapter and article).

(e) *Nuisances affecting public economy.* The following are hereby declared to be public nuisances affecting the public economy:

(1) All structures bearing graffiti, to be abated by applicable law;

(2) All businesses or commercial enterprises operating without a current and valid business license;

(3) All premises that are found not in compliance with applicable licensing, landlord, zoning, land use laws and adopted codes;

(4) Any delinquent arrearage of applicable city liens, taxes, fees, charges or assessments;

(5) All premises which originate false fire or security alarms, as defined by sections 9-21 through 9-24 for fire alarms and sections 10-10 through 10-13 for security alarms.

(Ord. No. 2015-101, 1-5-16; Ord. No. 2019-046, 8-6-19; Ord. No. 2019-099, 12-3-19; Ord. No. 2021-089, 12-18-21; Ord. No. 2022-020, 4-5-22)

Sec. 8-32. Other nuisances.

(a) The enumeration of specific nuisances in this division shall not be deemed to make lawful any other act or condition declared to be a nuisance by any other city ordinance, state law, federal law, or court decision.

(b) Any other violation which is considered a public nuisance by any other violation of the International Property Maintenance Code or the municipal ordinances of the City of Columbia is hereby included in this section by general reference.

(Ord. No. 2015-101, 1-5-16)

Sec. 8-33. Reporting emergencies and emergency action.

(a) Any person who directly observes a nuisance posing an emergency threat to the public health or safety or to the environment shall immediately report the incident to the Columbia Police/Fire Communications Center and shall provide any information requested needed to investigate or abate the potential emergency. If any nuisance exists in such a condition so menacing to the public health, peace or safety that it is necessary that it be summarily abated, the city enforcement officer, after consultation with and concurrence from the city manager may proceed to abate the nuisance without a hearing.

(b) Whenever it is necessary to make an inspection to enforce any of the provisions of this article, or whenever the city manager, the chief of police or his designee has reasonable cause to believe that there exists on or within any premises within the city any condition which would constitute a common nuisance, the chief of police or his designated inspector may enter such premises at all reasonable times to inspect the premises or to perform any duty imposed by this Code, provided that, if such premises are occupied, he shall first present proper credentials and request entry. If such premises are unoccupied, he shall first make a reasonable effort to locate the owner or other persons having charge or control of the premises and request entry. If such entry to either occupied or unoccupied premises is refused, the director of public services shall have recourse to every remedy provided by law to secure entry.

(Ord. No. 2015-101, 1-5-16)

Sec. 8-34. Nuisances prohibited and unlawful.

No person shall create any public nuisance in the city, and no person shall by inaction permit a public nuisance to occur or continue on any real property under such person's

control, whether by recorded or unrecorded instrument or permission. Nor shall any person permit a public nuisance to occur involving any personal property under such person's control.
(Ord. No. 2015-101, 1-5-16)

Sec. 8-35. Institution of criminal process and penalty.

The declaration of the public nature of a nuisance must be made by the chief of police or the city housing officer or his designee. Enforcement of this chapter's provisions may be accomplished upon the institution of criminal process by way of uniform traffic ticket, municipal ordinance summons or warrant made only by a law enforcement officer or appropriate government official. Each day of violation constitutes a separate misdemeanor offense in accordance with section 1-5. In its discretion, the city may elect to use other applicable Code sections pertaining to remediation, abatement or offenses.
(Ord. No. 2015-101, 1-5-16)

Sec. 8-36. Notice to clean up lot or premises.

Whenever it shall appear to the chief of police or the housing officer that there are lying within the city limits any lots or premises in a condition which shall constitute a present or potential hazard to the public health, the chief of police or the housing officer shall issue a written notice to the owner requiring him within a certain specified reasonable time to clear such premises or lot of all rank or uncultivated vegetable growth or briars, brush, grass, weeds, litter, offal, refuse, rubbish, trash, stagnant water, inoperative or unregistered motor vehicles, or other matter deleterious to good health and public sanitation, as in the opinion of the issuing officer will abate such nuisance.
(Ord. No. 2015-101, 1-5-16; Ord. No. 2021-089, 12-18-21)

Sec. 8-37. Public abatement; notice, service.

(a) If a person fails or refuses to discharge the duty imposed by this section, the city may concurrently serve an administrative notice to abate a public nuisance upon the owner or occupant and demand that compliance must be achieved within the time specified in the notice.

(b) The city shall determine the individual, firm or corporation or lien holder who, from the records in the county tax assessor's office, appears to be the titled owner or lien holder of the property and cause a written notice of public nuisance to be served on such individual, firm or corporation or lien holder by:

(1) Personal service as attested to by affidavit of service; or by

(2) Copy mailed to such owner or lien holder at such place or address by United States certified mail return receipt requested; or

(3) The city shall cause a copy of the aforesaid notice to be posted at such structure, location or premises, which shall serve as notice to the public.

(c) The notice to abate the nuisance shall inform the person of the specific nuisance contained in this section, provide names, numbers and addresses for contact with the city; inform them of their rights to appeal and that, upon the day after the time specified in the notice, the city may abate the condition and assess an administrative fee and all public costs, including attorney's fees and costs as a lien against the property.
(Ord. No. 2015-101, 1-5-16)

Sec. 8-38. Appeal procedures; hearing.

(a) *Appeal of finding of nuisance:* The responsible person, owner or occupant, or the lien holder of the property, may make a written demand to the housing official for a hearing on the question of whether a public nuisance in fact exists. This appeal stays the public abatement until such time as the matter is heard and decided by the hearing board. The appeal must be received by the housing official before the time specified in the notice. The appeal may be faxed or emailed to the manager. The written demand shall include a contact number, either phone or facsimile in order for the person to be informed of the hearing location, date and time. It shall not be a defense to the determination that a public nuisance exists that the property is boarded up or otherwise enclosed. The hearing board may amend or modify the notice to abate the public nuisance, or when appropriate under the facts presented, extend the time for compliance by the owner to such date as the majority of the appeals board may determine. The decisions of the board are final, and shall be delivered orally to the appellant on the date of the hearing, and then, if requested, written and mailed to the address provided.

(b) *Failure to appeal:* Failure to timely appeal constitutes a waiver of the right to appeal the existence of a public nuisance.

(c) *Appeal of assessment:* Further, in those instances where the nuisance has been abated by the city after the required notice, the owner or occupant of the property who has been served with a notice of assessment pursuant to this article may make a written demand to the manager for a hearing to review the cost of the abatement. This appeal stays the attachment of the lien until such time as the matter is heard and decided by the hearing board. The appeal of the assessment must be received by the manager within five business days of the appellant's receipt of the notice of assessment. The written demand shall include a contact number, either phone or facsimile in order for the person to be informed of the hearing location, date and time. In an appeal of the assessment of costs, no testimony shall be permitted on the issue of the existence of the public nuisance. The decisions of the board are final, and shall be delivered orally to the appellant on the date of the hearing, and then, if requested, written and mailed to the address provided.

(d) *Failure to appeal assessment:* Failure to timely appeal constitutes a waiver of the right to appeal the assessment of costs.

(e) *Notice of the hearing:* By way of the contact numbers provided in the written demand, the manager shall orally advise the owner of the location, date and time of the hearing. Notice of the hearing must be provided at least two business days prior to the hearing, excluding city recognized holidays and weekends.

(f) *Time and manner of hearings:* The hearings as allowed under this section shall be held as soon as practical but in any event no later than ten business days after receipt of the appeal, excluding city recognized holidays and weekends. The hearing shall not be conducted under the strict rules of evidence, but the board can have formal rules of procedure. The enforcement officer shall present the facts and circumstances that resulted in a conclusion

that a public nuisance existed. The owner, occupant or lien holder, or their agents, representatives or attorneys shall be given the opportunity to present evidence to the appeals board in the course of the hearing, and shall have the right of cross examination of the enforcement officer. When the nuisance has been abated by the city and the person has appealed the assessment of the administrative fee and actual costs, the hearing board shall have discretion to waive the administrative fee or the public cost of abating a nuisance, in whole or in part, if, in the course of the hearing reviewing the decision, the hearing board finds that justice and equity require such waiver or that any of the following did not conform to the provisions of this article:

(1) The notice to remove the nuisance;

(2) The work performed in abating the nuisance;

(3) The itemized computation of charges and costs of abatement alleged to be owed by the owner of the property to the city.

(Ord. No. 2015-101, 1-5-16)

Sec. 8-39. Liability for costs.

In the event of refusal or neglect of a person to cause such nuisance to be abated in the manner and within the time provided herein, it shall be reported to the manager. The manager may, in a reasonable and prudent manner, direct the expenditure of public resources to abate the nuisance condition. Fee and costs shall be established by ordinance. The cost of abatement shall include an administrative assessment, title search costs, lien filing costs and any attorney's fees and costs made necessary when the public is compelled to collect through legal process, in addition to the actual cost of labor and materials expended in public abatement. The person shall be served with a notice of assessment within seven days of the completion of the abatement. The notice of assessment shall include the administrative fee and a statement of public cost, attested to by affidavit, and shall be issued and served upon the person responsible for payment who shall make payment within 30 days of the date of service. Upon the expiration of the 30-day period, if the amount has not been paid in full or contested before the manager, the manager may cause a lien in that amount to be filed with the county clerk of court and with the finance director of the city. The lien shall be of record in the county courthouse and the office of the finance director in the book of liens, until paid or recovered, or otherwise released. Collection of the lien by way of foreclosure may be instituted by the city attorney on behalf of the city.

(Ord. No. 2015-101, 1-5-16)

Sec. 8-40. Institution of administrative remedy and penalty.

(a) *Revocation of licenses or permits for public nuisance:* For any person or entity which holds or owns a license or permit issued by the City of Columbia, a determination of the public nature of a public nuisance must be made by the Chief of Police or must be made by the Director of Business Licenses for any public nuisance under section 8-31(e). Upon such a finding, in addition to any other relief under these ordinances or applicable law,

enforcement of this chapter's provisions may be accomplished upon the revocation of any license or permit issued by the City of Columbia by way of a Notice of Revocation to be served on the License Holder, his/her designee or a person of suitable age and discretion who lives or works at the subject location.

(b) *Operating without a license or permit:* Each day a person operates without a license beginning on the next business day after receiving the notice of revocation, constitutes a separate misdemeanor offense, punishable in accordance with section 1-5. In its discretion, the city may elect to use other applicable Code sections pertaining to remediation, abatement or offenses.

(c) *Review of finding of nuisance:* The responsible person, owner or occupant, or the lien holder of the property, may make a written demand to the city manager for a hearing on the question of whether a public nuisance in fact exists. This review does not stay the revocation of the license of permit, but a hearing will be scheduled with the city manager as soon as possible. The review must be received by the manager before the time specified in the notice. The review may be faxed or emailed to the manager. The written demand shall include an address and a contact number, either phone or facsimile, in order for the person to be informed of the hearing location, date and time. The city manager may amend or modify the notice of revocation, or when appropriate under the facts presented, extend the time for compliance by the owner to such date as the city manager may determine. The decisions of the city manager are final, and shall be delivered in written form within ten days and mailed to the address provided.

(d) *City manager's decision:* Any appeal of the city manager's administrative decision is final and reviewable by the circuit court in the same procedure and manner as state licensing appeals under Section 1-23-380, Code of Laws of South Carolina, as amended from time to time, incorporated herein by express reference.
(Ord. No. 2015-101, 1-5-16)

Sec. 8-41. Severability.

The provisions of this article are severable, and if any section, sentence, clause, part, or provision thereof shall be held illegal, invalid, or unconstitutional by any court of competent jurisdiction, such decision of the court shall not affect or impair the remaining sections, sentences, clauses, parts, or provisions of this article. It is hereby declared that the intent of the council is that this article would have been adopted as if such illegal, invalid, or unconstitutional section, sentence, clause, part, or provision had not been included herein.
(Ord. No. 2015-101, 1-5-16)

Secs. 8-42—8-60. Reserved.

ARTICLE III. NOISE*

DIVISION 1. GENERALLY

Sec. 8-61. Unreasonably loud, disturbing or unnecessary noise.

(a) It shall be unlawful for any person to create, assist in creating, permit, or allow any unreasonably loud, disturbing or unnecessary noise in the city.

(b) Any person who violates section 8-61(a) after being given notice that the noise is unlawful by any law enforcement officer authorized to arrest persons in the City of Columbia shall be subject to a criminal penalty in the municipal court as set forth in section 1-5(a). For purposes of this offense, notice must be written.
(Ord. No. 2019-059, 9-17-19)

Sec. 8-62. Noises in connection with loading or unloading vehicles.

(a) It shall be unlawful for any person to use or permit to be used any automobile, truck, bus, motorcycle or other vehicle, engine, stationary or moving, instrument, device or other thing so out of repair, or so loaded in such a manner, as to create any loud and excessive noise in connection with the loading or unloading of any vehicle or the opening or destruction of bales, boxes, crates or containers.

(b) Any commercial activity which involves the loading and unloading of a vehicle, truck, dump truck, or other conveyance, (specifically including, but not limited to, garbage containers or dumpsters), between the hours of 11:00 p.m. on one day and 6:00 a.m. of the next day must be below 50 dB(A) in all residential areas and below 70 dB(A) in all commercial areas, as measured in a direct line of sight/sound from 50 feet away, as near as possible.
(Ord. No. 2019-059, 9-17-19)

Sec. 8-63. Radios, phonographs, musical instruments and other sound-amplifying devices.

(a) *Disturbing the public generally.* It shall be unlawful for any person to maintain and operate in any building or on any premises in the city any radio device or mechanical musical instrument or device of any kind whereby the sound therefrom is cast directly upon the public streets and places in such a manner as to create unreasonably loud, excessive or disturbing noises and where such device is maintained and operated for advertising purposes or for the purpose of attracting the attention of the passing public, or which is so

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***Editor's note—**Ord. No. 2019-059, adopted Sept. 17, 2019, amended former Art. III, Divs. 1—3, in its entirety to read as herein set out. Former Art. III pertained to similar subject matter and derived from Code of 1979, §§ 2-2082—2-2094, 6-7131—6-7133; Ord. No. 2011-100, 12-20-11.

placed and operated that the sounds coming therefrom can be heard to the annoyance or inconvenience of travelers upon any street, park or public place or of persons on neighboring premises.

(b) *Disturbing persons in hotel or dwelling.* It shall be unlawful for any person to play any radio, phonograph or musical instrument in such a manner or with such volume, particularly between 10:00 p.m. and 7:00 a.m., as to annoy or disturb the quiet, comfort or repose of persons in any dwelling, hotel or other type of residence.

(c) *Creating public nuisance.* It shall be unlawful for any person to operate, or cause or permit to be operated, any instrument or sound-producing or sound-amplifying device so loudly as to unreasonably disturb persons in the vicinity thereof or in such a manner as renders the instrument or device a public nuisance.

(d) *Permit for special occasions.* Upon application to the city council, permits may be granted to responsible organizations to broadcast programs of music, speeches or general entertainment as a part and in recognition of the community celebration of national, state or city events, public festivals or outstanding events of a noncommercial character, provided that traffic on the streets is not obstructed by reason thereof.

(e) Any person who violates section 8-67(a), (b) or (c) after being given notice that the noise is unlawful by any law enforcement officer who is authorized to arrest a person in the geographical boundaries of City of Columbia shall be subject to a criminal penalty in the municipal court as set forth in section 1-5(a). For purposes of this offense, notice must be written.
(Ord. No. 2019-059, 9-17-19)

Sec. 8-64. Crying out or playing bells, drum or other instrument to attract attention.

It shall be unlawful for any person to make any noise upon a public street or in such proximity thereto as to be distinctly and loudly audible upon such street by any kind of crying, calling or shouting, or by means of any whistle, rattle, bell, gong, clapper, horn, hammer, drum, musical instrument or other device, for the purpose of attracting attention or of inviting patronage of any persons to any business whatever.
(Ord. No. 2019-059, 9-17-19)

Sec. 8-65. Building operations.

It shall be unlawful for any person in conducting any building operations between the hours of 11:00 p.m. and 6:00 a.m. to operate or use any machine, equipment or other apparatus, the use of which is attended with loud or unusual noise, in any block in which more than half of the buildings on either side of the street are used exclusively for residence purposes.
(Ord. No. 2019-059, 9-17-19)

Sec. 8-66. Audible signal alarm devices.

The following requirements as to the audible signal alarm devices shall apply to all buildings in the city:

(1) *Definition.* An audible signal alarm device shall mean any mechanism, equipment or system which is designed to operate automatically through the use or emission of an audible signal, message or warning.

(2) *Filing and posting of names of persons authorized to shut off alarm.* It shall be unlawful for the owner or occupant of any building in the city to cause or allow such building to contain or otherwise use an audible signal alarm device unless there is filed with the police department and posted on one or more of the usual entrances to the building, in a conspicuous place and manner visible from without the entrance, a list of the names and telephone numbers of persons who have access to and can shut down the device if the device is triggered or otherwise emits an audible signal or noise.

(3) *Availability of persons authorized to shut off alarm.* It shall be the duty of the owner or occupant to ensure that one or more of the persons whose telephone numbers are so listed shall be available at those telephone numbers at all hours and times, or in the alternative, that the owner or occupant notify the chief of police of the city, or such person as the chief of police may designate, of the telephone numbers at which one or more of those persons may be reached.

(4) *Penalty.* Violation of this section or failure to comply with any of its provisions shall be a misdemeanor, punishable, upon conviction, in accordance with section 1-5. A separate offense shall be deemed committed on each day during or on which a violation occurs or continues.

(Ord. No. 2019-059, 9-17-19)

Secs. 8-67—8-90. Reserved.

DIVISION 2. NOISE POLLUTION

Sec. 8-91. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Ambient noise level means the lowest sound level repeating itself during a six-minute period as measured with a sound level meter. The minimum sound level shall be determined with the noise source at issue silent, and in the same location as the measurement of the noise level of the source at issue.

dB(A) means a sound level in decibels measured on the "A" scale of a standard sound level meter having characteristics defined by the American National Standards Institute, publication S1.4-1971.

Decibel is a unit used to express the magnitude of a change in sound level. The difference in decibels between two sound pressure levels is twenty times the common logarithm of the ratio of that sound pressure level to a reference level of $2\times10^{-5}N/m^2$ (Newton's/meter squared).

Motorcycle means every vehicle designed to travel on not more than three wheels in contact with the ground, but does not include trail bikes, dirt bikes, minibikes, go-carts, golf carts, and similar vehicles which are not designed or approved for use on public roads and highways.

Muffler means a device consisting of a series of chambers or baffle plates or other mechanical design for the purpose of receiving exhaust gas from an internal combustion engine, and which is effective in reducing noise.

Sound level meter means an instrument, standardized by the American National Standards Institute (ANSI), used for measurement of the intensity of sound and calibrated in decibels.

Vehicle means any device which is capable of moving itself, or being moved, from place to place upon wheels or endless tracks; but such term does not include any farm tractor or any implement of husbandry designed primarily or exclusively for use and used in agricultural operations or any device moved by muscular power, or moved exclusively over stationary rails or tracks or designed to move primarily through the air.
(Ord. No. 2019-059, 9-17-19)

Sec. 8-92. Measurement of sound level.

(a) Sound from a vehicle operating on a public road or highway, including the sound of amplified music coming from such vehicle, shall be measured at a distance as close to 50 feet from the center of the lane of travel as is practical under the circumstances existing at the time of the measurement.

(b) Sound from a vehicle operating on private property or public property which is not a road or highway, including the sound of amplified music coming from such vehicle, shall be measured at a distance of 50 feet or more from such vehicle.

(c) Sound from a non-vehicular source shall be measured at a distance of ten feet from the property line of the property where such sound is radiating, except that where the noise source is located on public property owned by a governmental entity, the sound shall be measured at a distance of ten feet from the property line or 50 feet from the noise source, whichever is less. The sound of amplified music from a non-moving vehicle on private property or public property which is not a road or highway shall be considered "sound from a non-vehicular source."

(d) Sound shall be measured on the "A" weighting scale on a sound level meter of standard design and quality and characteristics established by the American National Standards Institute.

(e) For purposes of this article, measurements with sound level meters shall be made when the wind velocity at the time and place of such measurement is not more than five miles per hour or 25 miles per hour with a wind screen.

(f) For all sound level measurements, consideration shall be given to the effect of the ambient noise level created by the encompassing noise of the environment from all sources at the time and place of such sound level measurement.
(Ord. No. 2019-059, 9-17-19)

Sec. 8-93. Maximum permitted sound levels.

(a) Sound from a vehicle being operated on a public road or highway with the following speed limits shall not exceed the following as measured on the "A" weighting scale dB(a):

Type of Vehicle	*Speed Limit of 35 mph or less*	*Speed Limit of more than 35 mph*
Motorcycle manufactured before 1/1/73	82 dB(A)	86 dB(A)
Motorcycle manufactured on or after 1/1/73	80 dB(A)	84 dB(A)
Vehicle with a manufacturer's gross vehicle rating of 10,000 lbs. or more, and any combination of vehicles towed by such vehicle	86 dB(A)	88 dB(A)
All other vehicles	80 dB(A)	84 dB(A)

(b) Sound from a vehicle being operated on private property or public property which is not a road or highway shall not exceed the following as measured on the "A" weighting scale dB(A):

All vehicles: 78 dB (A)

(c) Sound from a non-vehicular source located in a residential area, shall not exceed the following limits:

6:00 a.m. until 11:00 p.m. of the same day: 55 dB (A)

11:00 p.m. until 6:00 a.m. of the following day: 50 dB (A)

(d) Construction projects in residential areas shall not exceed the following noise levels for the period within which construction is to be completed pursuant to any applicable construction permit, or if no time limitation is imposed, then for a reasonable period of time for completion of project:

7:00 a.m. until 7:00 p.m. of the same day: 80 dB (A)

7:00 p.m. until 7:00 a.m. of the following day: 75 dB (A)

(e) Periodic, impulsive, or shrill noises are hereby declared unlawful when such noises are at or above a sound level of five dB (A) more than those listed herein.
(Ord. No. 2019-059, 9-17-19)

Sec. 8-94. Exceptions.

The provisions of this article shall not apply to:

(a) The use of property by the state, or any political subdivision of the state, or any of their lessees, licensees, or permittees, for the purpose of promoting, producing, or holding cultural, entertainment, athletic, or patriotic events, including, but not limited to, concerts, music festivals, and fireworks displays.

(b) Property in use for manufacturing or industrial purposes as of January 1, 2018.

(c) Public utilities regulated pursuant to State or Federal law.

(d) Operation of aircraft or other activities which are subject to federal law with respect to noise control.

(e) Any authorized emergency vehicle, when responding to an emergency call or acting in time of emergency.

(f) The sound made by the sounding of the horn of any vehicle as a danger warning signal or by the sounding of any burglar, fire, personal safety or other warning device.

(g) Activities conducted pursuant to a special use permit issued by the City of Columbia, unless noise is not addressed by the special use permit.

(h) The sound made by a lawnmower or other hand or power tool of no more than five horsepower, between the hours of 7 a.m. and 11 p.m., except Sundays between the hours of 8 a.m. and 11 p.m.

(i) The sound made by persons who are engaged in, or attending as spectators, any organized sporting or athletic event between the hours of 7:00 a.m. and 11:00 p.m.
(Ord. No. 2019-059, 9-17-19)

Sec. 8-95. Vehicle muffler required.

(a) No person shall operate any vehicle that is not equipped with a muffler in constant operation.

(b) Every motor vehicle or moped driven upon a street and propelled by a combustion engine shall be equipped with a muffler and exhaust system in constant operation and properly maintained to prevent any noise:

(1) In excess of that emitted by the exhaust system of such vehicle as originally installed by the manufacturer of such vehicle; or

(2) Which exceeds 84 dB(A) at any time.

(c) No motor vehicle or moped driven on a street shall be equipped with any muffler cut-off or bypass.

(d) No motor vehicle or moped driven on a street shall emit sound in excess of that allowed under Article III.
(Ord. No. 2019-059, 9-17-19)

Sec. 8-96. Animal sounds.

Noise from animals shall conform to the requirements and guidelines of Article III, Animal Control, of Chapter 4, Animals, of the Code of Ordinances of the City of Columbia.
(Ord. No. 2019-059, 9-17-19)

Secs. 8-97—8-120. Reserved.

ARTICLE IV. POLLUTION CONTROL*

DIVISION 1. GENERALLY

Sec. 8-121. Title; definitions.

(a) The provisions embraced within this article shall constitute and be known and may be cited as the Pollution Control Ordinance.

(b) The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Air contaminant means dust, fumes, mist, smoke, other particulate matter, vapor, gas or any combination thereof.

Air pollution means the presence in the outdoor atmosphere of one or more air contaminants in such quantities and duration as is or tends to be injurious to human health or welfare, animal or plant life, or property, or interferes with the enjoyment of life or property.

Building official means the officer charged with the administration of the inspection division, and as defined in the Official Building Code of the City of Columbia, Part I, Building.

Engineer means a duly registered and licensed engineer.

Existing source means equipment, machines, devices, articles, contrivances or installations which are in being on the effective date of the ordinance from which this article is derived

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***State law reference—**Powers of municipalities generally, S.C. Code 1976, § 48-3-20.

except that any existing equipment, machine, device, article, contrivance or installation which is altered, replaced or rebuilt after the effective date of the ordinance from which this article is derived shall be reclassified as a new source.

Fuel-burning equipment means any furnace, boiler, apparatus or stack, and all appurtenances thereto, used in the process of burning fuel for the primary purpose of producing heat or power by indirect heat transfer.

Fugitive dust means solid airborne particulate matter emitted from any source other than a flue or stack.

Fumes means the solid particles generated by condensation from the gaseous state, generally after volatilization from melted substances and often accompanied by a chemical reaction such as oxidation.

Multiple-chamber incinerator means any article, machine, equipment, contrivance, structure or part of a structure used to dispose of combustible refuse by burning, consisting of three or more refractory line combustion furnaces in series, physically separated by refractory walls, interconnected by gas passage ports or ducts and employing adequate design parameters necessary for maximum combustion of the material to be burned.

New source means equipment, machines, devices, articles, contrivances or installations built or installed on or after the effective date of the ordinance from which this article is derived, and installations existing at such stated time which are later altered, repaired or rebuilt. Any equipment moved to another premises involving a change of address, or purchased and to be operated by a new owner, or by a new lessee when a new lessee desires to operate such equipment, after the effective date of the ordinance from which this article is derived, shall be considered a new source.

Opacity means a state which renders material partially or wholly impervious to rays of light and causes obstruction of an observer's view.

Open burning means the burning of any matter in such a manner that the products of combustion resulting from the burning are emitted directly into the ambient air without passing through an adequate stack, duct or chimney.

Particulate matter means any material, except water in uncombined form, that is or has been airborne and exists as a liquid or a solid at standard conditions.

Person means any individual, corporation, partnership, firm, association, trust, estate, public or private institution, group, agency, or political subdivision of this state, any other state or political subdivision or agency thereof, or any legal successor, representative, agent or agency of such individual or entity.

Ringelmann chart means the chart published and described in the U.S. Bureau of Mines Information Circular 8333, or any device equivalent to the Ringelmann Chart as may be designated by the building official.

Smoke means small gas-borne particles consisting essentially of carbonaceous materials in sufficient number to be observable.

Source means any property, real or personal, or person contributing to air pollution.

Stack and *chimney* mean any flue, conduit or duct arranged to conduct emissions.

Standard conditions means a dry gas temperature of 70 degrees Fahrenheit and a gas pressure of 14.7 pounds per square inch absolute.

Vehicle means a self-propelled mechanism, other than a railroad locomotive, such as a roller, derrick, crane, trencher, portable hoisting engine, steamboat, tug, automobile, truck and other apparatus which is not ordinarily permanently installed in one location but is used at various places over a wide location.
(Code 1979, § 6-7001)

Cross reference—Definitions generally, § 1-2.

Sec. 8-122. Purpose of article.

The provisions of this article are declared to be remedial and shall be construed to secure the beneficial interests and purposes thereof, which are public safety, health and general welfare through the proper control of pollutants.
(Code 1979, § 6-7002)

Sec. 8-123. Scope of article.

The provisions of this article shall apply to the installation, alteration, repair, maintenance and use of all materials and equipment and its appurtenances which cause pollutants to be discharged into the atmosphere.
(Code 1979, § 6-7003)

Sec. 8-124. Determination of requirements for equipment not specifically covered.

Any requirements necessary for effectuating the purpose of this article and for the installation, alteration or repair of equipment not specifically covered by this article shall be determined by the pollution control officer, with the advice and approval of the pollution control advisory board, subject to appeal to the board of appeals.
(Code 1979, § 6-7004)

Sec. 8-125. Applicability of article to existing installations.

Upon notice of violation of any of the general regulations of this article, existing equipment and appurtenances shall be altered or modified so as to eliminate such violation.
(Code 1979, § 6-7005)

Sec. 8-126. Maintenance of installations.

All installations covered by this article, both existing and new, and all parts thereof, shall be maintained in a satisfactory condition so as not to violate any of the terms of this article. The owner or his designated agent shall be responsible for the maintenance of equipment and appurtenances.
(Code 1979, § 6-7006)

Sec. 8-127. Inspections.

(a) *Required.* All new installations and such portions of existing installations as may be affected by new work or changes shall be inspected to ensure compliance with the requirements of this article and to ensure that the installation and construction are in accordance with approved plans.

(b) *Final inspection of newly installed equipment.* A final inspection and approval shall be requested and made prior to the placing in operation of any fuel-burning equipment installed under a properly issued permit.

(c) *Notification of building official when work is ready for inspection.* It shall be the duty of the installer to notify the building official when he is ready for inspection.
(Code 1979, §§ 6-7007—6-7009)

Sec. 8-128. Air pollution prohibited.

It shall be unlawful for any person to permit or cause air pollution, as defined in this article.
(Code 1979, § 6-7011)

Sec. 8-129. Compliance with article.

All sources of pollution shall comply with this article upon commencing operation.
(Code 1979, § 6-7012)

Sec. 8-130. Dilution or concealment of emissions.

No person shall cause or permit the installation or use of any device or any means which, without resulting in reduction in the total amount of air contaminant emitted, conceals or dilutes an emission of air contaminant which would otherwise violate the provisions of this article.
(Code 1979, § 6-7013)

Sec. 8-131. Open burning.

(a) All open burning is prohibited without special permit issued by the pollution control officer with concurrence of the fire department in exceptional cases, except as follows:

(1) Open fires may be set in performance of an official duty of any public officer if the fire is necessary for the prevention of a hazard which cannot be abated by other means, for the instruction of public firefighters under the supervision of the fire chief, or for the protection of public health.

(2) Fires may be used for the cooking of food, provided no smoke violation or other nuisance is created.

(3) Salamanders or other devices may be used for heating by construction or other workers, provided no smoke violation or other nuisance is created.

(4) Fires may be set in the course of agricultural operations in growing crops or raising fowl or animals, provided no nuisance is created.

(5) Open fires may be set for recreational purposes, such as campfires, provided no smoke violation or nuisance is created.

(b) Fires started in violation of this article shall be promptly extinguished by the person responsible for the fire upon proper notice by the pollution control officer or his agent. During the existence of a pollution alert, as may be declared by designated authorities, all exceptions are void and no open fires shall be kindled. Where possible, all open burning in progress during an alert will be extinguished immediately by responsible persons when properly notified.
(Code 1979, § 6-7014)

Secs. 8-132—8-150. Reserved.

DIVISION 2. ADMINISTRATION*

Sec. 8-151. Pollution control division.

(a) *Established.* There is hereby established in and as a part of the department of community development, a pollution control division, which shall be under the supervision of the building official and in charge of the pollution control officer.

(b) *Appointment of inspectors and other employees.* The building official, with the approval of the city manager, may appoint such inspectors, assistants or other employees as shall be authorized from time to time. No person shall be appointed as a pollution control officer until he has been thoroughly examined and his qualifications are firmly established to act as such.

(c) *Conflicts of interest.* No officer or employee connected with the department, except one whose only connection is as a member of the board established by this article, shall be financially interested in the furnishing of labor, material or appliances for equipment or appurtenances or in making of plans or specifications therefor, unless he is the owner of such building. No such officer or employee shall engage in any work which is inconsistent with his duties or the interest of the department.

(d) *Records.* The pollution control officer shall keep, or cause to be kept, a record of the business of the pollution control division. The records of the division shall be open to public inspection at all reasonable times.
(Code 1979, §§ 6-7021—6-7024)

*__Cross reference—__Administration, ch. 2.

Sec. 8-152. Powers and duties of pollution control officer.

(a) *Enforcement of article; right of entry.* The pollution control officer shall enforce the provisions of this article, and he or his duly authorized representative may enter any building, structure or premises in the city to perform any duty imposed upon him by this article.

(b) *Stop work orders.* Upon notice from the pollution control officer that work on any type of installation is being done contrary to the provisions of this article, or in a manner so as to violate any permit issued, such work shall be immediately stopped. Such notice shall be in writing and shall be given to the owner of such property or his agent or to the person doing the work and shall state the conditions under which work may be resumed. Where any emergency exists, oral notice given by the pollution control officer shall be sufficient.

(c) *Sealing of equipment.* Where any individual fails to comply within a reasonable time with any order issued by the pollution control officer, the pollution control officer shall then seal the equipment. The seal shall not be broken on this equipment until such time as corrections have been made; provided, however, that the individual may appeal the decision to the appeals board as established in this division and a properly made appeal shall give the pollution control officer the authority to remove the seal, unless the pollution control officer's opinion is that an emergency exists.

(d) *Revocation of permits.* The pollution control officer may revoke a permit and approval issued under the provisions of this article in case there has been any false statement or misrepresentation as to material fact in the application or plans on which the permit or approval was based. In all such cases no permit fees shall be refunded.

(e) *Annual report.* The pollution control officer shall annually submit a report to the building official covering the work of the pollution control division during the preceding year. He shall incorporate in the report a summary of decisions and examinations of the board of appeals and the rules and regulations as established by the pollution control advisory board. (Code 1979, §§ 6-7031—6-7035)

Sec. 8-153. Pollution control appeals board.

(a) *Established.* There is hereby established a pollution control appeals board.

(b) *Membership; compensation of members.* The pollution control appeals board established by this section shall consist of five members, and they shall serve without compensation.

(c) *Appointment and qualifications of members.* The members of the appeals board shall be appointed by the city council, and they shall have the following qualifications. None of the members shall be a member of the pollution control advisory board.

(1) One of the members shall be an attorney at law.

(2) One member shall be a professional engineer.

(3) One member shall be a representative of the industrial interests of the city.

(4) Two members shall be representatives of the citizens of the city and shall not in any way be connected with the fields of endeavor of the appointees listed in subsections (1) through (3) of this subsection.

(d) *Term of members.* Of the members first appointed, one shall be appointed for a term of one year, one shall be appointed for a term of two years, one shall be appointed for a term of three years, one shall be appointed for a term of four years, and one shall be appointed for a term of five years. Thereafter, they shall be appointed for a term of five years.

(e) *Termination of appointments.* Appointments to the appeals board as established by this section shall be terminated by the city council.

(f) *Quorum.* Three members of the board shall constitute a quorum. In upholding an appeal, the affirmative vote of the majority present, but not less than three affirmative votes, shall be required.

(g) *Conflicts of interest.* No member of the appeals board shall act in a case in which he has a personal interest.

(h) *Records.* The pollution control officer shall act as secretary to the appeals board and shall make a detailed report of all its proceedings, which shall set forth the reasons for its decisions, the vote of each member participating therein, the absence of any member and any failure of any member to vote.

(i) *Rules of procedure; meetings.* The board shall establish rules for its own procedure, not inconsistent with the provisions of this article. The appeals board shall meet at regular intervals to be determined by the chairman.
(Code 1979, §§ 6-7061—6-7069)

Sec. 8-154. Appeal procedure; decisions on appeals.

(a) *Right of appeal.* Whenever the pollution control officer shall reject or refuse to approve the mode or manner of a proposed installation or materials to be used in the installation, or when it is claimed that the provisions of this article do not apply or that any equally good or more desirable form of installation can be employed in any specific case, or when it is claimed that the true intent and meaning of this article or any of the regulations under this article have been misconstrued or wrongly interpreted, the owner of the building or structure or his duly authorized agent may appeal from the decision of the pollution control officer to the pollution control appeals board.

(b) *Time limit for filing appeal.*

(1) Notice of appeal shall be in writing and filed within 30 days after a decision is rendered by the pollution control officer.

(2) In case of an installation which in the opinion of the pollution control officer constitutes an immediate hazard, the pollution control officer may, on his order, limit the time for such an appeal to a shorter period.

(c) *Powers of appeals board.*

(1) The pollution control appeals board, when appealed to and after a hearing, may vary the application of any provision of this article in any particular case, when in its opinion the enforcement thereof would do manifest injustice and would be contrary to the spirit and purpose of this article and the public interest, or when in its opinion the interpretation of the pollution control officer should be modified or reversed.

(2) A decision of the appeals board to vary the application of any provision of this article or to modify an order of the pollution control officer shall specify in what manner such a variation or modification has been made, the conditions upon which it is made, and the reasons therefor.

(d) *Decisions by appeals board.*

(1) Every decision of the pollution control appeals board shall be final, subject, however, to such remedy as an aggrieved party might have at law or in equity. It shall be in writing and shall indicate the vote upon the decision. Every decision shall be promptly filed in the office of the building official and shall be open to public inspection. Certified copies should be sent by mail or otherwise to the appellant and a copy shall be publicly posted in the office of the building official for two weeks after filing.

(2) The appeals board shall, in every case, reach a decision without unreasonable or unnecessary delay.

(3) If a decision of the appeals board reverses or modifies a refusal order or disallowance of the pollution control officer or varies application of any phrase of this article, the pollution control officer shall immediately take action in accordance with such decision.

(Code 1979, §§ 6-7081—6-7084)

Secs. 8-155—8-170. Reserved.

DIVISION 3. PERMIT

Sec. 8-171. Required.

(a) Any owner, authorized agent or contractor who desires to install, construct, enlarge, alter or repair any apparatus or equipment, the installation of which is regulated by this article or by the rules and regulations provided for in this article, or to cause any such work to be done, shall first make application to the building official and obtain the required permit therefor.

(b) Ordinary minor repairs may be made without the approval of the pollution control officer, without a permit, provided that such repairs shall not violate any of the provisions of this article.

(Code 1979, § 6-7091)

Sec. 8-172. Filing of application.

An application for permit as required by the provisions of this division shall be filed with the building official prior to the starting of any construction or installation work. Such application shall be made in duplicate.
(Code 1979, § 6-7092)

Sec. 8-173. Coordination of applications.

It shall be the duty of the building official to coordinate all applications required by this article and other ordinances.
(Code 1979, § 6-7093)

Sec. 8-174. Submission of plans and specifications.

When, in the opinion of the pollution control officer, plans and specifications are required in order to determine that a proposed installation, alteration or repair of equipment and its appurtenances will comply with the terms of this article and the rules and regulations provided for in this article, such plans and specifications shall be submitted with the application for a permit; provided, however, that when fuel-burning equipment to be installed is in excess of a capacity of 400,000 Btu, plans and specifications shall be submitted with the application for a permit. The plans shall give all installation and construction details for the proposed work. The plans shall be submitted in duplicate, one copy of which shall be retained in the permanent files of the city, and the second copy of which shall be for the use of the pollution control officer.
(Code 1979, § 6-7094)

Sec. 8-175. Examination of application and plans.

The building official shall examine or cause to be examined each application for a permit under this division and the drawings and specifications which may be filed therewith, and shall ascertain by such examination whether the proposed installation indicated and described is in accordance with this article and all other pertinent laws or ordinances.
(Code 1979, § 6-7095)

Sec. 8-176. Fee.

Each application for a permit under this division shall be accompanied by the permit fee as established by the official building code of the city.
(Code 1979, § 6-7096)

Sec. 8-177. Action on application.

(a) If the building official is satisfied that the work described in an application for a permit under this division, and the drawings and specifications which may be filed therewith, conform to the requirements of this article and other pertinent laws and ordinances, he shall issue a permit therefor to the applicant.

(b) If the application for the permit and the drawings and specifications which may be filed therewith describe work which does not conform to the requirements of this article or other pertinent laws or ordinances, the building official shall not issue a permit but shall return the drawings to the applicant with his refusal to issue such a permit. Such refusal shall, when requested, be in writing and shall contain the reasons therefor.
(Code 1979, § 6-7097)

Sec. 8-178. Conditions; expiration.

The building official shall act upon an application for a permit under this division with plans, as filed or as amended, without unreasonable or unnecessary delay. The permit issued shall be construed to be permission to proceed with the work and shall not be construed as authority to violate, cancel, alter or set aside the provisions of this article or any other applicable code, nor shall issuance of a permit prevent the building official from thereafter requiring correction of errors in plans or in construction or of violations of this article. Any permit issued shall become invalid unless the work authorized by it shall have been commenced within six months after its issuance or if the work authorized by such permit is suspended or abandoned for a period of one year after the time the work is commenced; provided that, for cause, one or more extensions of time for periods not exceeding 90 days each may be allowed in writing by the building official.
(Code 1979, § 6-7098)

Secs. 8-179—8-200. Reserved.

DIVISION 4. VISIBLE EMISSION STANDARDS

Sec. 8-201. Emission restrictions for existing sources.

No person shall cause, suffer, allow or permit to be discharged into the atmosphere from any single source of emission existing prior to March 1, 1972, any air contaminant of a shade or density equal to that designated as no. 2 on the Ringelmann chart or 40 percent opacity.
(Code 1979, § 6-7111)

Sec. 8-202. Emission restrictions for new sources.

(a) No person shall cause, suffer, allow or permit to be discharged into the atmosphere from any single source of emission created after March 1, 1972, any air contaminants of a shade or density equal to that designated as no. 1 on the Ringelmann chart or 20 percent opacity.

(b) A person may discharge into the atmosphere from any single fuel-burning or combustion source for a period not to exceed more than four minutes in any 60 minutes air contaminants of a shade or density not darker than no. 3 on the Ringelmann chart or 60 percent opacity.

(c) The exception described in subsection (b) of this section shall not be permitted in excess of three times in any 24-hour period.
(Code 1979, § 6-7112)

Sec. 8-203. Control of fugitive dust; handling and disposal of asbestos.

(a) *Dust control generally.* No person shall cause, suffer, allow or permit any materials to be handled, transported or stored, or a building, its appurtenances or a road to be used, constructed, altered, repaired or demolished, without taking reasonable precautions to prevent particulate matter from becoming airborne. Such reasonable precautions shall include but not be limited to the following:

(1) Use, where possible, of water or chemicals for control of dust in the demolition of existing buildings or structures, construction operations, the grading of roads or the clearing of land.

(2) Application of asphalt, oil, water or suitable chemicals on dirt roads, materials stockpiles and other surfaces which can create airborne dusts.

(3) Installation and use of hoods, fans and fabric filters to enclose and vent the handling of dusty materials. Adequate containment methods shall be employed during sandblasting or other similar operations.

(4) Covering, at all times when in motion, open-bodied trucks transporting materials likely to become airborne.

(5) Conduct of agricultural practices, such as tilling of land, application of fertilizers, etc., in such manner as to not create a nuisance to others residing in the area.

(b) *Unlawful use of sealed equipment.* No person shall violate the seal on any equipment that has been sealed at the direction of the pollution control officer unless authorized by him in writing to do so.

(c) *National emission standards for asbestos.*

(1) When any owner or operator of a demolition or renovation operation intends to demolish any institutional, commercial or industrial building (including apartment buildings having more than four dwelling units), structure, facility, installation or portion thereof which contains any pipe, duct, boiler, tank, reactor, turbine, furnace or structural member that is insulated or fireproofed with friable asbestos material, or intends to renovate any institutional, commercial or industrial building, structure, facility, installation or portion thereof where more than 80 meters (about 260 feet) of pipe insulated or fireproofed with friable asbestos material are to be stripped or removed, or more than 15 square meters (about 160 square feet) of friable asbestos material used to insulate or fireproof any duct or boiler, tank, reactor, turbine, furnace or structural member are to be stripped or removed, such asbestos material shall be adequately wetted prior to and during such demolition, renovation or related handling operations.

(2) The disposal of all asbestos material generated by demolition shall be accomplished by depositing it in a disposal site approved by federal regulations and those of the state department of health and environmental control.

(Code 1979, § 6-7113)

Sec. 8-204. Smoke indicators or observation devices.

All newly constructed or reconstructed solid or liquid fuel-burning plants having more than 300 square feet of boiler surface (30 hp) or its equivalent shall be equipped with smoke indicators, mirrors or similar devices, approved by the pollution control officer, to enable the fireman to observe the top of his stack from the boiler room at all times, unless the top of the stack is readily visible to the fireman from the boiler room without the use of such devices. In plants where a fireman is not in constant attendance in the boiler room, the smoke indicator shall be of a type which will sound an alarm, or flash a signal, to attract the attention of the fireman. Any existing plant which emits unlawful visible emissions may be required to install such indicating devices.
(Code 1979, § 6-7114)

Sec. 8-205. Process weight emission limitations.

(a) No person shall cause, suffer, allow or permit the emission of particulate matter in any one hour from any source in excess of the amount shown in table II for the process weight rate allocated to such source or in excess of 0.03 grain per standard cubic foot of exhaust gas.

TABLE II. ALLOWABLE RATE OF EMISSION BASED ON PROCESS WEIGHT RATE

Process Weight Rate		*Rate of Emission*
Lb-Hr	*Tons-Hr*	*Lb-Hr*
100	0.05	0.551
200	0.10	0.877
400	0.20	1.40
600	0.30	1.83
800	0.40	2.22
1,000	0.50	2.58
1,500	0.75	3.38
2,000	1.00	4.10
2,500	1.25	4.76
3,000	1.50	5.38
3,500	1.75	5.96
4,000	2.00	6.52
5,000	2.50	7.58
6,000	3.00	8.56
7,000	3.50	9.49
8,000	4.00	10.4
9,000	4.50	11.2
10,000	5.00	12.0
12,000	6.00	13.6
16,000	8.00	16.5
18,000	9.00	17.9

Process Weight Rate		*Rate of Emission*
Lb-Hr	*Tons-Hr*	*Lb-Hr*
20,000	10	19.2
30,000	15	25.2
40,000	20	30.5
50,000	25	35.4
60,000	30	40.0
70,000	35	41.3
80,000	40	42.5
90,000	45	43.6
100,000	50	44.6
120,000	60	46.3
140,000	70	47.8
160,000	80	49.0
200,000	100	51.2
1,000,000	500	69.0
2,000,000	1,000	77.6
6,000,000	3,000	92.7

Interpolation of the data in this table II for process weight rates up to 60,000 lb-hr shall be accomplished by use of the equation $E = 4.10^{p0.67}$, and interpolation and extrapolation of the data for process weight rates in excess of 60,000 lb-hr shall be accomplished by use of the equation $E = 55.0^{p0.11} - 40$, where "E" equals rate of emission in lb-hr and "p" equals process weight rate in tons-hr.

(b) Process weight per hour is the total weight of all materials introduced into any specific process that may cause any discharge of particulate matter. Solid fuels discharged will be considered as part of the process weight, but liquid and gaseous fuels and combustion air will not. For a cyclical or batch operation, the process weight per hour will be derived by dividing the total process weight by the number of hours in one complete operation from the beginning of any given process to the completion thereof, excluding any time during which the equipment is idle. For a continuous operation, the process weight per hour will be derived by dividing the process weight for a typical period of time.
(Code 1979, § 6-7115)

Sec. 8-206. Incinerator emission limitations.

(a) No person shall cause or permit to be emitted into the open air from any incinerator, particulate matter in the exhaust gases to exceed 0.20 pound per 100 pounds of refuse burned.

(b) Any emission tests shall be conducted at maximum burning capacity of the incinerator.

(c) The burning capacity of an incinerator shall be the manufacturer's or designer's guaranteed maximum rate or such other rate as may be determined by the building official in accordance with good engineering practices. In case of conflict, the determination made by the building official shall govern.

(d) For the purposes of this article, the total of the capacities of all furnaces within one system shall be considered as the incinerator capacity.

(e) All new incinerators shall be multiple-chamber incinerators, provided that the building official may approve any other type of incinerator if it is demonstrated such design provides equivalent performance.

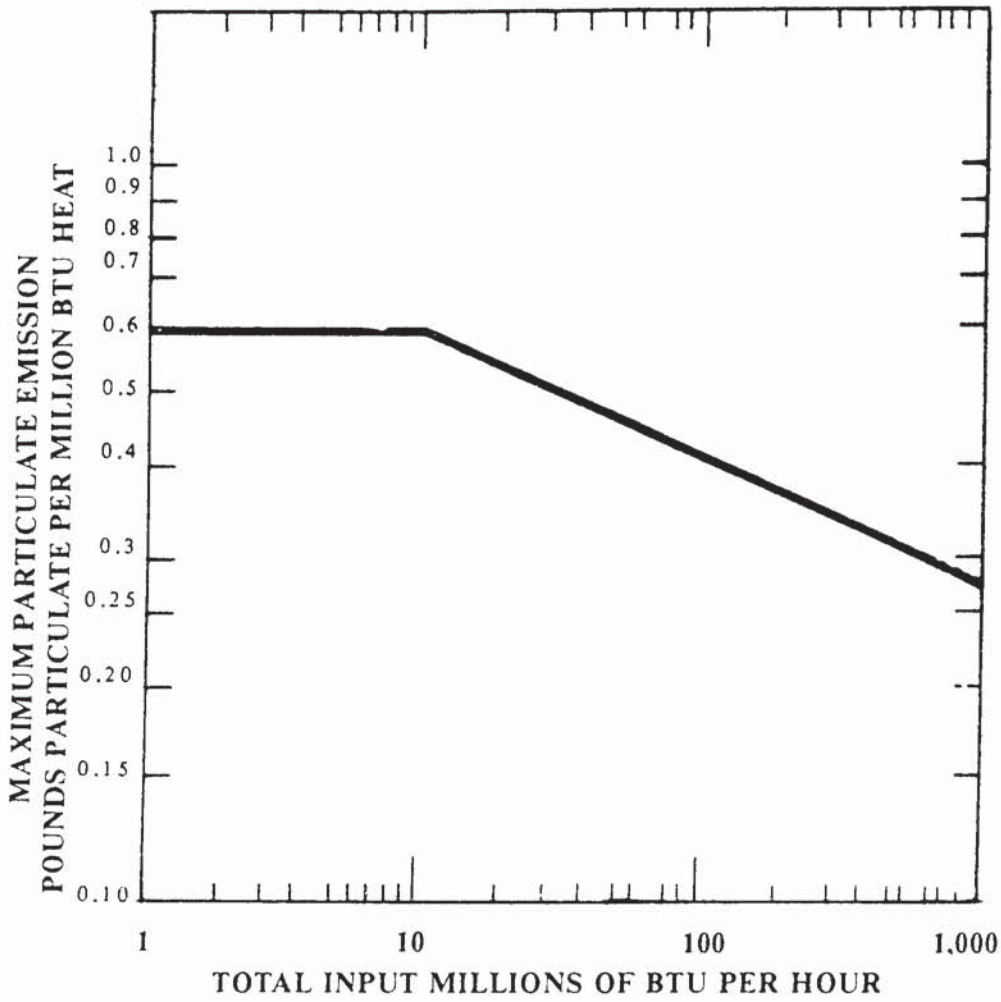
(f) No person shall operate or cause or permit the operation of any incinerator at any time other than between the hours of 10:00 a.m. and 4:00 p.m. This restriction shall not apply to incinerators having a refuse-burning capacity of five tons per hour or more.

(g) Incinerators shall be designed and operated in such manner as is necessary to prevent the emission of objectionable odors.
(Code 1979, § 6-7116)

Sec. 8-207. Fuel-burning equipment emission limitations.

No person shall cause, suffer, allow or permit to be emitted into the atmosphere from fuel-burning equipment, or to pass a convenient point near the stack outlet of such equipment, particulate matter in the flue gases to exceed 0.60 pound per million Btu heat input for installations using less than ten million Btu per hour total heat input. For installations using greater than ten million Btu per hour total heat input, figure 1 will be used to determine the allowable particulate emission limitation.

FIGURE 1. MAXIMUM EMISSION OF PARTICULATE MATTER FROM FUEL-BURNING INSTALLATIONS



(Code 1979, § 6-7117)

Sec. 8-208. Testing procedures.

Stack emission tests for particulate matter shall be undertaken by generally recognized standard methods of measurement. Methods found in the ASME Test Code for dust separating

apparatus, PTC 21-1941, the ASME Test Code for Determining Dust Concentration in Gas Streams, PTC 27-1057, and the Los Angeles County Source Testing Manual may be used. Other procedures may be specified by the building official to suit specific conditions or needs based upon good practice, judgment and experience.
(Code 1979, § 6-7118)

Sec. 8-209. Motor vehicle emissions.

(a) The engine, power and exhaust mechanism of every motor vehicle shall be equipped, adjusted and operated so as to prevent the escape therefrom of excessive fumes or smoke or other contaminants.

(b) It shall be unlawful for any motor vehicle to emit smoke of the shade or appearance greater than no. 1 of the Ringelmann chart or 20 percent opacity.

(c) The pollution control officer may require any vehicle used permanently or temporarily in the city to be equipped with approved devices for smoke elimination if it violates the provisions of this article.
(Code 1979, § 6-7119)

Secs. 8-210—8-214. Reserved.

DIVISION 5. REGULATIONS AND REQUIREMENTS RELATING TO SMOKING OF TOBACCO PRODUCTS

Sec. 8-215. Findings and intent.

(a) *Findings*. As an incident to the adoption of the ordinance from which this division derives, the city council ("city council") of the City of Columbia, South Carolina (the "city") makes the following findings:

(1) Secondhand smoke is the third leading cause of preventable death in the United States, killing 53,000 Americans prematurely each year; and

(2) The U.S. Environmental Protection Agency, U.S. Centers for Disease Control and Prevention, National Toxicology Program's Report on Carcinogens, National Cancer Institute, and the International Agency for Research and Cancer have all reported that secondhand smoke is a Group A human carcinogen, a cancer causing substance, of which there is no safe level of exposure; and

(3) The health consequences of involuntary smoking have been reported by the U.S. Surgeon General to be a cause of disease, including lung cancer, in healthy non-smokers; and

(4) The U.S. Surgeon General has concluded that a simple separation of smokers and non-smokers within the same airspace does not eliminate the exposure of non-smokers; and

(5) Numerous medical and scientific studies show substantial levels of exposure to secondhand smoke among the United States population, and over the past two decades, the health hazards resulting from exposure to secondhand smoke have been increasingly recognized; and

(6) Secondhand smoke increases the risk of developing breast cancer in younger, premenopausal women; and when inhaled by pregnant women, secondhand smoke increases the risk for low-weight babies, pre-term delivery, and Sudden Infant Death Syndrome(SIDS); and

(7) Exposure to secondhand smoke by children leads to decreased lung function, asthma, pneumonia, ear infections, bronchitis and even sudden infant death syndrome; and

(8) Studies of hospital admissions for acute myocardial infarction in Helena, Montana and Pueblo, Colorado before, during, and after a local law eliminating smoking in workplaces and public places was in effect, has determined that laws to enforce smoke-free workplaces and public places may be associated with a reduction in morbidity from heart disease; and

(9) Workplaces have been shown to be locations of significant exposure to secondhand smoke by employees working in the City of Columbia; and

(10) There are laws, ordinances and regulations in place that protect workers from other environmental hazards, including Class A carcinogens, asbestos, arsenic and benzene, but none which regulate exposure to secondhand smoke; and

(11) The South Carolina General Assembly at Section 44-95-10 et seq. (the "Clean Indoor Air Act of 1990") imposed certain limitations on smoking. For example, it limited smoking in government buildings (the definition of which includes city-owned buildings) except where the owner of such building shall designate smoking areas.

City Council has now determined that additional regulation of smoking in areas beyond those addressed in the Clean Indoor Air Act of 1990 is appropriate in furtherance of its duty to protect the health of its citizens and employees in the workplace and public places and therefore enacts this division.

(b) *Intent.* City council finds that it is in the best interest of the people of this city to protect nonsmokers from involuntary exposure to secondhand smoke in the workplace and public places. Therefore, city council declares that the purpose of this act is to preserve and improve the health, comfort and environment of this city by limiting exposure to secondhand smoke in the workplace and public places; and (2) to guarantee the right of nonsmokers to breathe smoke-free air, and to recognize that the need to breathe smoke-free air shall have priority over the desire to smoke.

(Ord. No. 2006-081, § 1, 11-8-06; Ord. No. 2019-012, 5-7-19)

Sec. 8-216. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Electronic smoking device means any product containing or delivering nicotine or any other substance intended for human consumption that can be used by a person in any manner for the purpose of inhaling vapor or aerosol from the product. The term includes any such device, whether manufactured, distributed, marketed, or sold as an e-cigarette, e-cigar, e-pipe, e-hookah, or vape pen, or under any other product name or descriptor.

Employee means any person who performs services for an employer in return for wages, profit or other valuable consideration, and a person who volunteers his or her services for a non-profit entity.

Employer means any person, partnership, association, corporation, trust, school, college, university or other educational institution, nonprofit entity or other organization, including any public or private employer, any manager, supervisor, and all other persons charged with control, supervision, and operation of any workplace, work space, or work spaces as defined herein, that employs one (1) or more persons.

Enclosed means a space bounded by walls (with or without windows), a ceiling or roof, and enclosed by doors, including but not limited to, offices, rooms, foyers, waiting areas and halls.

Medical facility means an office or institution providing care or treatment of diseases, whether physical, mental, or emotional, or other medical, physiological, or psychological conditions, including but not limited to, hospitals, rehabilitation hospitals or other clinics, including weight control clinics, nursing homes, homes for the aging or chronically ill, laboratories, and offices of surgeons, chiropractors, physical therapists, physicians, dentists, and all specialists within these professions. This definition shall include all waiting rooms, hallways, private rooms, semiprivate rooms, and wards within medical facilities.

Medical research facility means an enclosed indoor workplace where tobacco smoking is an integral part of a smoking cessation program approved by a university, college or hospital.

Private club means an organization, whether incorporated or not, which is the owner, lessee, or occupant of a building or portion thereof used exclusively for club purposes at all times, which is operated solely for a recreational, fraternal, social, patriotic, political, benevolent, or athletic purpose, but not for pecuniary gain, and which only sells alcoholic beverages incidental to its operation. The affairs and management of the organization are conducted by a board of directors, executive committee, or similar body chosen by the members at an annual meeting. The organization has established bylaws and/or a constitution to govern its activities. The organization has been granted an exemption from the payment of federal income tax as a club under 26 U.S.C. Section 501. Establishments which are in fact operating as bars, restaurants or entertainment venues primary for the

pecuniary benefit of the owner or chief operating officer shall not be treated as private clubs under this division. A private club is not a private club for the purposes of this division when being used for a function to which the general public is allowed to enter.

Public place means an area to which the public is invited or in which the public is permitted, including but not limited to, banks, bars, educational facilities, gambling facilities, health care facilities, hotels and motels, laundromats, parking structures, public transportation vehicles and facilities, reception areas, restaurants, retail food production and marketing establishments, retail service establishments, retail stores, shopping malls, sports arenas, theaters, and waiting rooms. A private residence is not a "public place" unless it is used as a child care, adult day care, or health care facility.

Retail tobacco store means any establishment which is not required to possess a retail food permit whose primary purpose is to sell or offer for sale to consumers, but not for resale, tobacco products and paraphernalia, in which the sale of other products is merely incidental, and in which the entry of persons under the age of 18 is prohibited at all times.

Secondhand smoke is the complex mixture formed from the escaping smoke of a burning tobacco product (termed as "side stream smoke") and smoke exhaled by the smoker. Exposure to secondhand smoke is also frequently referred to as "passive smoking," "secondhand smoking" or "involuntary smoking".

Smoking means inhaling, exhaling, burning, or carrying any lighted or heated cigar, cigarette, pipe, hookah, or any other lighted or heated tobacco or plant product, or liquid, gel or substance in any form, intended for inhalation, including but not limited to nicotine and/or marijuana products or derivatives, whether natural or synthetic, in any manner or in any form. "Smoking" includes the use of an electronic smoking device which creates an aerosol or vapor, in any manner or in any form, or the use of any oral smoking device for the purpose of circumventing the prohibition of smoking in this article.

Smoking materials includes cigars, cigarettes pipes, hookah, electronic smoking devices, or any other lighted or heated tobacco or plant product, or liquid, gel or substance in any form, including but not limited to nicotine and/or marijuana products or derivatives, whether natural or synthetic, in any form and all other manner of smoking devices intended to be used for the purpose of smoking as defined in this division.

Workplace means any enclosed indoor area, structure, building or facility or any portion thereof at which one (1) or more employee(s) perform services for their employer, including but not limited to: retail food stores; retail stores; restaurants; bars; cabarets, cafes; public or private clubs; pool halls and bowling alleys.

Work space or *work spaces* means any enclosed area occupied by an employee during the course of his or her employment, including but not limited to: offices, customer service areas; common areas; hallways; waiting areas; restrooms; lounges and eating areas.
(Ord. No. 2006-081, § 1, 11-8-06; Ord. No. 2008-034, 5-21-08; Ord. No. 2019-012, 5-7-19)

Sec. 8-217. Prohibition of smoking in the workplace and city-owned facilities and property.

(a) All employers shall provide a smoke free environment for all employees working in any work space or workplace as those terms are defined herein. Further, the employer shall prohibit any persons present in any work space and workplace from smoking or possessing lighted smoking materials therein.

(b) No person shall smoke or possess a lighted tobacco product in any work space and workplace.

(c) All enclosed areas, including buildings and vehicles owned, leased, or operated by the City of Columbia, as well as all outdoor property adjacent to such buildings and under the control of the city, shall be subject to the provisions of this division.
(Ord. No. 2006-081, § 1, 11-8-06; Ord. No. 2019-012, 5-7-19)

Sec. 8-218. Exceptions.

Notwithstanding the provisions of section 8-217 herein, smoking may be permitted in the following places or under the following circumstances:

(1) Private residences, unless used as a childcare, adult day care, or health care facility;

(2) Private clubs;

(3) Retail tobacco stores as defined herein;

(4) Religious ceremonies where smoking is part of the ritual;

(5) Medical research facilities;

(6) Smoking by performers during a theatrical event which requires smoking in the context of the performance.

(Ord. No. 2006-081, § 1, 11-8-06; Ord. No. 2008-034, 5-21-08; Ord. No. 2019-012, 5-7-19)

Editor's note—Ord. No. 2008-108, adopted March 25, 2009, repealed former § 8-219 in its entirety and renumbered former §§ 8-220—8-222 as §§ 8-219—8-221. Repealed former § 8-219 pertained to the posting of no smoking signs.

Sec. 8-219. Reasonable distance of entry.

Smoking shall be prohibited in the following outdoor places:

(a) Within a reasonable distance of 25 feet outside entrances, operable windows, and ventilation systems of enclosed areas where smoking is prohibited, so as to prevent tobacco smoke from entering those areas by those or any other means.

(b) On all outdoor property that is adjacent to buildings owned, leased, or operated by the City of Columbia and that is under the control of the City.

(c) In, and within 25 feet of, outdoor seating or serving areas of restaurants, bars, and gambling facilities.

(d) In outdoor shopping malls, including parking structures.

(e) In all outdoor arenas, stadiums, and amphitheaters. Smoking shall also be prohibited in, and within 25 feet of, bleachers and grandstands for use by spectators at sporting and other public events.

(f) In outdoor recreational areas, including parking lots.

(g) In, and within 25 feet of, all outdoor playgrounds.

(h) In, and within 25 feet of, all outdoor public events.

(i) In, and within 25 feet of, all outdoor public transportation stations, platforms, and shelters under the authority of the City.

(j) In all outdoor service lines, including lines in which service is obtained by persons in vehicles, such as service that is provided by bank tellers, parking lot attendants, and toll takers. In lines in which service is obtained by persons in vehicles, smoking is prohibited by both pedestrians and persons in vehicles, but only within 25 feet of the point of service.

(k) In outdoor common areas of apartment buildings, condominiums, trailer parks, retirement facilities, nursing homes, and other multiple-unit residential facilities, except in designated smoking areas, not to exceed twenty-five percent (25%) of the total outdoor common area, which must be located at least 25 feet outside entrances, operable windows, and ventilation systems of enclosed areas where smoking is prohibited.

(Ord. No. 2006-081, § 1, 11-8-06; Ord. No. 2008-108, 3-25-09; Ord. No. 2019-012, 5-7-19)

Sec. 8-220. Jurisdiction, enforcement and penalties.

(a) An infraction of this division is hereby declared to be a public nuisance.

(b) A manager, supervisor or any other person who owns, operates, or otherwise controls a workplace or work space and who fails to comply with the provisions of this division shall be guilty of an infraction.

(c) A person smoking or possessing lighted smoking materials in any workspace or workplace shall be guilty of an infraction.

(d) Each infraction shall be punishable by a civil penalty of :

(1) A fine not exceeding $100.00 for a first violation.

(2) A fine not exceeding $200.00 for a second violation.

(3) A fine not exceeding $500.00 for each additional violation.

The city shall serve a uniform ordinance summons upon the infractor.

(e) The city, in addition to or in lieu of assessing or collecting a civil penalty, may institute a civil action in the circuit court in the county in which the infraction occurred seeking (i) a mandatory injunction requiring compliance with this division, (ii) a declaration that the infraction is a public nuisance and an order requiring abatement of the public nuisance, or

(iii) if violation of this division is by a person who owns, manages, operates, or otherwise controls a public place or place of employment may result in the suspension or revocation of any permit or license issued to the person for the premises on which the violation occurred, and/or (iv) for any other remedy permitted by law.

(f) If three or more infractions occur within a six-month period at a workspace or workplace subject to this division, such shall be deemed to be a nuisance related to the business.

(g) Appeals. The filing of an appeal shall not act as a stay of the city's right to institute any civil action as described above.

(h) Each infraction and on each day which an infraction of this division occurs, shall be considered a separate and distinct infraction.
(Ord. No. 2006-081, § 1, 11-8-06; Ord. No. 2008-034, 5-21-08; Ord. No. 2008-088, 9-24-08; Ord. No. 2008-108, 3-25-09; Ord. No. 2009-041, 6-3-09; Ord. No. 2019-012, 5-7-19)

Sec. 8-221. Severability; conflicts with other regulations; cooperation with other governmental agencies.

(a) *Severability.* If any provision, clause, sentence or paragraph of this division or the application thereof to any person or circumstances shall be held invalid, that invalidity shall not affect the other provisions of this division which can be given effect without the invalid provision or application, and to this end the provisions of this division are declared to be severable.

(b) *Conflict with other laws, ordinances or regulations.* Nothing in this section shall be deemed to amend or repeal any applicable fire, health or other, law, ordinance or regulation so as to permit smoking in areas where it is prohibited by such applicable fire, health, or other law, ordinance or regulation.

(c) *Governmental agency cooperation.* The city manager shall annually request other governmental and educational agencies having facilities within the city to establish local operating procedures in cooperation and compliance with this division. This includes urging all federal, state, county, city, and school district agencies to update their existing smoking control regulations to be consistent with the current health findings regarding secondhand smoke.
(Ord. No. 2006-081, § 1, 11-8-06; Ord. No. 2008-108, 3-25-09)

Secs. 8-222—8-230. Reserved.

ARTICLE V. LITTER*

Sec. 8-231. Littering prohibited; responsibility for removal.

(a) No person shall dump, throw, drop, deposit, discard or otherwise dispose of litter or other solid waste upon any public property in the city or upon private property in this city or in the waters of the city, whether from a vehicle or otherwise, including but not limited to any public highway, public park, beach, campground, forest land, recreational area, trailer park, highway, road, street or alley, except:

(1) When such property is designated by the city for the disposal of litter and other solid waste and such person is authorized to use such property for such purpose.

(2) Into a litter receptacle in such a manner that the litter will be prevented from being carried away or deposited by the elements upon any part of such private or public property or waters.

(b) Responsibility for the removal of litter from property or receptacles shall be upon the owners of the property or upon the owner of the property where the receptacle is located.
(Code 1979, § 9-1001)

State law reference—Similar provisions, S.C. Code 1976, § 16-11-700.

Sec. 8-232. Liability of driver when litter is thrown from vehicle.

The driver of any vehicle, other than a commercial carrier, shall be held liable if it cannot be determined which vehicle occupant committed any acts in violation of this article.
(Code 1979, § 9-1002)

Cross reference—Motor vehicles and traffic, ch. 12.

Sec. 8-233. Transport of loose materials.

(a) It shall be unlawful for any person to transport any loose materials by truck or other motor vehicle within the corporate limits of the city unless the material is covered and secured in such a manner as to prevent litter on public and private property.

(b) Lack of adequate covering and securing of material while the loaded truck or other motor vehicle is in motion shall in itself constitute a violation of this section.
(Code 1979, § 9-1003)

Sec. 8-234. Throwing confetti or other materials.

It shall be unlawful for any person to engage during any festival occasion or at any other time in the throwing of confetti (excepting that known and designated as ribbon confetti, being and consisting of rolls of lightest tissue), flour, rubber balls, iodoform or other drugs or any material whatsoever serving the same purpose, upon any person.
(Code 1979, § 9-1004)

***Cross reference—**Solid waste management, ch. 19.

State law reference—Litter Control Act of 1978, S.C. Code 1976, § 44-67-10 et seq.

Sec. 8-235. Containers required at certain establishments.

To help prevent or reduce litter by pedestrians and motorists, owners of publicly patronized or used establishments and institutions, as may be designated by the city public services department, shall provide on their premises, and maintain in good condition, adequate containers that meet standards prescribed by the public services department. These owners shall regularly empty these containers into roll carts or bulk containers for collection by the city or private collection service. This requirement shall be applicable to, but not limited to, fast food outlets, shopping centers, convenience stores, supermarkets, service stations, commercial parking lots, motels, hospitals, schools, colleges and universities.
(Code 1979, § 9-1005)

Sec. 8-236. Unlawful disposal.

(a) It shall be unlawful for any owner, manager, employee, agent or independent contractor who works for a retail, commercial or institutional establishment (such persons include solicitors, vendors, etc.) to deposit materials from that business in any receptacle maintained on a sidewalk, at any other location for disposal of litter by pedestrians or motorists, or at any other unauthorized disposal site.

(b) Any establishment or institution which cannot meet any of the prescribed requirements of this section shall make appropriate arrangements for collection and disposal thereof or transport to a state-permitted landfill.
(Code 1979, § 9-1006)

Sec. 8-237. Duty of owner or occupant to keep premises clean; sweeping litter into street, sidewalk or drain.

(a) It shall be the duty of the owner, agent, occupant or lessee to keep exterior private and public property free of litter and unsightly growth. This requirement applies not only to removal of loose litter, but to materials that already are, or become, trapped at such locations as fences and wall bases, grassy and planted areas, borders, embankments and other lodging points.

(b) Owners, agents, occupants or lessees whose properties abut a city right-of-way shall be responsible for keeping the area up to and including the curb gutter or street line free of litter and unsightly growth.

(c) It shall be unlawful to sweep or push litter from buildings, property, sidewalks and strips into streets, sidewalks and the storm drainage system. Sidewalk and strip sweepings must be picked up and put into roll carts, litter containers or commercial bulk containers.

(d) The director of public services shall provide written notice to the owner, agent, occupant or lessee identifying any deficiencies or violation requiring correction five days prior to any other enforcement action taken in regard to the provisions of this section.
(Code 1979, § 9-1007)

Cross reference—Streets, sidewalks and other public places, ch. 22.

Secs. 8-238—8-260. Reserved.

ARTICLE VI. RAT CONTROL*

Sec. 8-261. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Business building means any structure, whether public or private, that is adapted for occupancy for transaction of business, for rendering of professional service, for amusement, for display, sale or storage of goods, wares or merchandise, or for the performance of work or labor, including hotels, office buildings, public buildings, stores, theaters, markets, restaurants, grain elevators, abattoirs, warehouses, workshops, factories and all outhouses, sheds, barns and other structures on premises used for business purposes.

Health officer means the duly authorized agent of the city required to perform this function.

*__Cross reference—__Animals generally, ch. 4.

Occupant means the person who has the use of or occupies any business building or a part or fraction thereof, whether the actual owner or a tenant. In the case of vacant business buildings or any vacant portion of a business building, the owner, agent or other person having custody of the building shall have the responsibilities of an occupant of a building.

Owner means the actual owner of the business building, whether an individual, partnership or corporation, or the agent of the building or other person having custody of the building or to whom rent is paid. In the case of business buildings leased with a clause in the lease specifying that the lessee is responsible for maintenance and repairs, the lessee will be considered in such cases as the owner for the purposes of this article.

Rat harborage means any condition which may provide shelter or protection for rats, thus favoring their multiplication and continued existence in, under or outside of a structure of any kind.

Rat-stoppage and *ratproofing* mean a relatively inexpensive form of ratproofing to prevent the ingress of rats into business buildings from the exterior or from one business building to another. It consists essentially of the closing of all openings in the exterior walls, ground or first floors, basements, roofs and foundations that may be reached by rats from the ground by climbing or by burrowing, with material impervious to rat gnawing.
(Code 1979, § 9-6001)

Cross reference—Definitions generally, § 1-2.

Sec. 8-262. Business buildings to be ratproof and free of rats.

All business buildings in the city shall be ratproofed, freed of rats and maintained in a ratproof and rat-free condition under the direction and supervision of the health officer.
(Code 1979, § 9-6002)

Sec. 8-263. Notice to ratproof building.

Upon receipt of a written notice or order from the health officer, the owner of any business building specified therein shall take immediate measures for ratproofing the building. Unless such work and improvements have been completed by the owner in the time specified in the written notice, in no event to be less than 15 days, or within the time to which a written extension may have been granted by the health officer, then the owner shall be guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5.
(Code 1979, § 9-6003)

Sec. 8-264. Notice to eradicate rats.

Whenever the health officer notifies the occupant of a business building that there is evidence of rat infestation of the building, such occupant or property owner shall immediately institute appropriate measures for freeing the premises each occupies of all rats.
(Code 1979, § 9-6004)

Sec. 8-265. Failure to comply with notice.

Unless suitable measures for freeing the building of rats are instituted within three days after receipt of notice and unless continuously maintained in a satisfactory manner until the building is free of rats, under the provisions of section 8-264, the health officer is hereby authorized and directed to free the building of rats.
(Code 1979, § 9-6005)

Sec. 8-266. Levy of cost for work done by city.

When the owner fails to comply with the notice as required by the provisions of this article and the work is done by the city, the city shall levy a monthly charge against the occupant or property owner to cover the costs for labor, materials and equipment necessary for eradication measures carried out each month.
(Code 1979, § 9-6006)

Sec. 8-267. Maintenance of ratproofed buildings.

The occupants or property owners of all ratproofed business buildings are required to maintain the premises in a ratproof condition and to repair all breaks or leaks that may occur in the ratproofing unless such breaks or leaks develop as the result of natural deterioration of the building.
(Code 1979, § 9-6007)

Sec. 8-268. Inspections.

The health officer is empowered to make unannounced inspections of the interior and exterior of business buildings, as in his opinion may be necessary to determine full compliance with this article. The health officer shall make periodic inspections at intervals of not more than 45 days of all rat-stopped buildings to determine evidence of rat infestation and the existence of new breaks or leaks in their ratproofing. When any evidence is found indicating the presence of rats or opening through which rats may again enter business buildings, the health officer shall serve the owners or occupants with notices or orders to abate the conditions found.
(Code 1979, § 9-6008)

Sec. 8-269. Installation of cement floors in basements; replacement of wood floors.

Whenever conditions inside or under business buildings provide such extensive harborage for rats that the health officer deems it necessary to eliminate such harborage, he may require the owner to install suitable cement floors in basements, or to replace wooden first or ground floors, or require the owner to correct such other interior rat harborage as may be necessary in order to facilitate the eradication of rats in a reasonable time and thereby to reduce the cost thereof.
(Code 1979, § 9-6009)

Sec. 8-270. Replacement of ratproofing after removal.

It shall be unlawful for an occupant, owner, contractor, public utility company, plumber or any other person to remove the ratproofing from any business building for any purpose and fail to restore the ratproofing in a manner satisfactory to the health officer, or to make any new openings that are not closed or sealed against the entrance of rats.
(Code 1979, § 9-6010)

Sec. 8-271. Storage of animal feed.

All food and feed kept within the city for feeding chickens, cows, pigs, horses and other animals shall be kept and stored in rat-free and ratproof containers, compartments or rooms unless kept in a ratproof building.
(Code 1979, § 9-6011)

Sec. 8-272. Dumping dead animals or waste matter.

It shall be unlawful for any person to dump or place on any premises, land or waterway within the corporate limits of the city any dead animals or any waste vegetable or animal matter of any kind.
(Code 1979, § 9-6012)

Cross reference—Solid waste management, ch. 19.

Sec. 8-273. Storage of lumber, bricks and similar materials.

It shall be unlawful for any person to permit to accumulate on any premises, improved or vacant, or on any open lot or alley in the city, any lumber, boxes, barrels, bricks, stones or similar materials that may be permitted to remain thereon, unless the materials shall be placed on open racks that are elevated not less than 18 inches above the ground and evenly piled or stacked so that these materials will not afford harborage for rats.
(Code 1979, § 9-6013)

Sec. 8-274. Ratproofing required in new or remodeled buildings.

It shall be unlawful for any owner to erect a business building in the city or to remodel, or renovate any existing business building in the city, without adequately ratproofing such business building.
(Code 1979, § 9-6014)

Sec. 8-275. Dumping or accumulation of garbage or refuse.

It shall be unlawful for any person to place, leave, dump or permit to accumulate any garbage, rubbish or trash in any building or premises in the city so that the garbage, rubbish or trash shall or may afford food or harborage for rats.
(Code 1979, § 9-6015)

Cross reference—Solid waste management, ch. 19.

Sec. 8-276. Storage of garbage and refuse.

All garbage or refuse consisting of waste animal or vegetable matter upon which rats may feed, and all small dead animals, within the corporate limits of the city, shall be placed and stored until collected by the solid waste department in covered containers of a type prescribed by the health officer according to existing conditions.
(Code 1979, § 9-6016)

Cross reference—Solid waste management, ch. 19.

Secs. 8-277—8-300. Reserved.

ARTICLE VII. WEEDS AND DEBRIS*

Sec. 8-301. Removal required.

It shall be unlawful for the owner and/or occupant of property to fail to cut grass, weeds and other overgrowth vegetation on property when the grass, weeds and other overgrowth vegetation is of a greater height than one foot on the average, or to permit the property to serve as a breeding place for mosquitoes, as a collecting place for trash and litter, or as a fire hazard, any one of which situations is declared to be a nuisance. However, in accordance with section 8-306 (below), if the area in question is a planned and managed naturalistic landscape, designed to support pollinators, birds and other wildlife, these restrictions do not apply. It shall be the duty of the owner and occupant to cut and remove all grass, weeds and other overgrowth vegetation as often as necessary so as to comply with this section, unless the vegetation has been installed and managed to support habitat. Vacant lots shall be cut at least three times per year, as required during the growing season (April through September). Heavily wooded lots where equipment cannot maneuver on the lot because of density of the area shall be trimmed within 20 feet of street right-of-way and adjacent improved property and kept free of litter.
(Code 1979, § 9-3021; Ord. No. 2024-088)

Sec. 8-302. Notice to remove.

Whenever the public services department of the city, or its duly authorized agent or representative, shall find that weeds or other rank vegetation has been allowed to stand upon, or any such debris has been allowed to accumulate and remain upon, any lot or parcel of land in the city, unless said vegetation is part of a planned and managed naturalistic landscape, the public services department may serve notice upon the owner, lessee or occupant of the premises, or upon the agent or representative of the owner of such land having control thereof, to comply with the provisions of this article. It shall be sufficient

*__State law reference—__Authority to regulate upkeep of property and to impose lien upon real estate to cover cost of cleanup, S.C. Code 1976, § 5-7-80.

notification to deliver the notice to the person to whom it is addressed, or to deposit a copy of such notice in the United States mail properly stamped and directed to the person to whom the notice is addressed, or to post a copy of the notice upon such premises.
(Code 1979, § 9-3022; Ord. No. 2024-088)

Sec. 8-303. Failure to comply with notice.

If the person to whom the notice is directed under the provisions of section 8-302 fails or neglects to cause such weeds or other rank vegetation to be cut and removed or such debris to be removed from any such premises within ten days after such notice has been served, or deposited in the United States mail, or posted upon the premises, such person shall be guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5.
(Code 1979, § 9-3023)

Sec. 8-304. Removal by city on failure to comply with notice.

Weeds, rank vegetation or debris existing on any property not removed pursuant to section 8-303 may be removed by a duly authorized agent of the city, and the cost of doing so shall become a lien upon the property affected and shall be collected in the same manner as municipal taxes are collected. This remedy shall be cumulative to other remedies, penalties or fines.
(Code 1979, § 9-3024)

Sec. 8-305. Removal by city at request of owner or occupant.

Upon the written request by the owner or the person in control of any lot or parcel of land covered by this article, and the payment to the city for the services, the public services department may enter upon any such lands and cut and remove the weeds or other rank vegetation or remove such debris therefrom, the charge and cost of such service to be paid into the city treasury.
(Code 1979, § 9-3025)

Sec. 8-306. Certification of naturalistic landscape or garden.

In recognition of the environmental benefits of planned, managed, naturalistic landscapes and gardens, the city recognizes the need for a deviation from strict code enforcement regarding these properties.

(1) To assist with this, the city encourages any such garden to be certified as such by a reputable organization. Such organizations include, but are not limited to, South Carolina Wildlife Federation, Gills Creek Watershed Association, and Clemson's Carolina Yard. Signage verifying compliance with these organizations' standards is encouraged, but not required.

(2) Registration with City of Columbia Code Enforcement is required to maintain a naturalistic garden within the city. Owners or persons in control of such gardens shall contact code enforcement to provide vital information, such as address and

contact information. Property owners must also provide evidence of certification with an organization such as those listed in subsection (1) or submit to a site visit by code enforcement. In such a visit, code enforcement officers shall look for "cues to care," such as trimmed borders, signage, birdbaths, paths, and the like when attempting to determine if a potentially offensive property is actually a planned and managed garden.

(3) Owners or persons in control of naturalistic gardens remain subject to all other City ordinances regarding environmental health and sanitation as listed in the rest of Chapter 8. Code enforcement retains the authority to issue notice and/or remove offending vegetation pursuant to both 802 and 803 above, as well as other subsections within this chapter.

(Ord. No. 2024-088)

Secs. 8-307-8-330. Reserved.

ARTICLE VIII. SIDEWALK MAINTENANCE*

Sec. 8-331. Duties of property owners.

(a) It shall be the duty of all owners of property in the city upon which sidewalks have been laid to keep such walkways clean and free from obstruction. Owners of property shall report defective conditions in sidewalks to the city manager or director of public services.

(b) All persons who own real estate in the city which abuts upon any street right-of-way shall be required to keep that portion of the right-of-way which lies between the property line and the street side of the gutter of the adjoining street free from unsightly vegetation or other things which would mar or detract from the beauty and cleanliness of the street upon which their property abuts. Any owner of business or institutional property who shall place or allow grass to grow upon the portion of the right-of-way lying between the property line and the curbline of the street upon which his real estate abuts shall keep such grass properly mowed and free from rubbish of all kinds. If such owners are not in the possession of their property, then this section shall apply to their tenants or those who have possession or control of the property.

(Code 1979, § 9-3030)

Sec. 8-332. Notice to correct conditions.

Whenever the public services department of the city, or its duly authorized agent or representative, shall find that any property owner or other person with possession or control of property has failed to comply with the provisions of section 8-331, the public services department may serve upon the owner, lessee or occupant of the premises, or upon the agent or representative of the owner of such land having control thereof, notice to comply with the provisions of this article. It shall be sufficient notification to deliver the notice to the person

*__Cross reference—__Streets, sidewalks and other public places, ch. 22.

to whom it is addressed, or to deposit a copy of such notice in the United States mail properly stamped and directed to the person to whom the notice is addressed, or to post a copy of the notice upon the premises subject to the notice.
(Code 1979, § 9-3031)

Sec. 8-333. Failure to comply with notice.

If the person to whom the notice is directed under the provisions of section 8-332 fails or neglects to correct, or cause to be corrected, the deficiencies identified in the notice within ten days after such notice has been served, or deposited in the United States mail, or posted upon the premises, such person shall be guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5.
(Code 1979, § 9-3032)

Sec. 8-334. Correction of conditions by city.

Violations of section 8-331 not corrected pursuant to section 8-333 may be corrected by a duly authorized agent of the city, and the cost of doing so shall be charged to the owner or occupant or other person in control of the property.
(Code 1979, § 9-3033)

Chapter 9

FIRE PREVENTION AND PROTECTION*

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***Cross references—**Buildings and building regulations, ch. 5; emergency management, ch. 7.

State law reference—Building codes and fire prevention, S.C. Code 1976, § 5-25-10 et seq.

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ARTICLE I. IN GENERAL

Secs. 9-1—9-20. Reserved.

ARTICLE II. FALSE FIRE ALARMS*

Sec. 9-21. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

False alarm means the activation of a fire alarm system through mechanical failure, malfunction, improper installation, improper maintenance, or the negligence of the owner or lessee of the fire alarm system or of his employees or agents. This does not include alarms caused by unauthorized tampering with a fire alarm system by anyone other than the fire alarm user or his agent.

Fire alarm system means any assembly of equipment, mechanical or electrical, installed by a fire alarm business, arranged to signal the occurrence of a fire, smoke, water flow or other condition to which the fire department may be expected to respond.

Fire alarm user means a person who is in control of any building, structure or facility where a fire alarm system is present.

Year means a 12-month period beginning with July 1 and ending on June 30 of each year. (Ord. No. 94-59, 10-5-94)

Cross reference—Definitions generally, § 1-2.

Sec. 9-22. False alarm procedure and user fee.

(a) Whenever fire department personnel respond to an activated fire alarm system, the fire official in charge of the incident shall determine if the response was caused by a false alarm and shall indicate that fact upon the incident report.

(b) The fire department shall regularly review incident reports to monitor the accumulation of false alarms at any one location. When two false alarms have occurred at the same location within one year, and the location is within the incorporated area of the city, the fire department shall notify the fire alarm user by letter, citing the location and date of each false alarm. The letter shall recommend that appropriate action be taken on the part of the fire alarm user to alleviate the causes of false alarms and shall include a statement that an accumulation of more than three false alarms within a year shall result in a charge for services. Another similar letter shall be sent when three false alarms have occurred at the same location within the year.

(c) When four false alarms have occurred at one location within a year, a user fee of $100.00 for service for false alarm response shall be billed to the property owner. Each additional false alarm within the year shall require the billing of an additional fee of $100.00. However, no fire

*__Cross reference—__Intentional false alarms, § 9-38.

alarm user shall be charged with accumulating more than one false alarm in any 24-hour period. The fee established by this section affords only partial recovery of the expenses incurred in responding to the false alarm. If payment of the fee, in full, has not been received within 30 days of billing, the fee shall increase to $300.00.
(Ord. No. 94-59, 10-5-94)

Sec. 9-23. Evidence of repair accepted in lieu of fee.

An alarm user may submit evidence that a malfunctioning system has been repaired in lieu of paying a user fee within ten days of the date of notification of the fee. Evidence such as a receipt from a licensed alarm business with a statement of repairs made to the system is acceptable. For a repeated problem with a system after a repair is alleged to have been made, the city manager or his designee may decide not to accept an alternative to paying the fee.
(Ord. No. 94-59, 10-5-94)

Sec. 9-24. Appeals.

Any person may appeal the imposition of a false alarm user fee to the city manager or his designee. Such appeal shall be in writing and shall be made to the city manager within ten days of the date of notification of the fee.
(Ord. No. 94-59, 10-5-94)

Secs. 9-25—9-30. Reserved.

ARTICLE III. FIRE DEPARTMENT*

Sec. 9-31. Fire chief.

The fire chief, subject to the city manager, shall have administrative supervision over the fire department. He shall be responsible for the direction of all firefighting, fire prevention and fire service activities of the city, and he shall be responsible for planning and developing programs to protect life and property in the city from fire. He shall be responsible for establishing departmental policies, rules and regulations necessary for the operation of the department. He shall assign personnel and maintain a training program. He shall perform such additional duties as may be assigned to the fire chief by the city manager.
(Code 1979, § 1-3007)

Sec. 9-32. Functions.

The fire department of the city shall perform the following functions:

(1) Provide a comprehensive fire service program which minimizes the incidence and risk of physical and material harm caused by the outbreak and spread of fires.

***Cross reference—**Departments, § 2-151 et seq.

State law reference—Authority to establish and operate a fire department, S.C. Code 1976, § 5-25-110.

(2) Minimize the loss of life and property due to fires and emergencies by maintaining thoroughly trained and equipped firefighting forces at strategic locations throughout the city service area.

(3) Inspect buildings and premises within the city for the purpose of ascertaining and causing to be corrected any condition which could endanger life and property by fire, and to discover any violations of the fire code or other laws affecting fire safety.

(4) Design, install and maintain a public emergency reporting system for fires and medical emergencies ensuring the quick response of the fire department when such protection and services are needed.

(5) Provide leadership and administrative support to the divisions within the department and coordinate the efforts of the department to maintain a high level of efficiency in fire safety, and develop new programs to continually improve upon fire service.

(Code 1979, § 3-1001)

Sec. 9-33. Qualifications of officers and employees.

The officers and employees of the fire department, other than office employees, shall be able-bodied persons. No person of physical infirmity or disability and no person under the age of 18 years shall be employed.

(Code 1979, § 3-1002)

Sec. 9-34. Insurance and inspection fund benefits.

(a) *Qualification of city for benefits.* The city has under its control an organized fire department and owns and has in serviceable condition for fire duty at all times fire apparatus and necessary equipment belonging thereto of a value exceeding $10,000.00 and qualifies for the benefits of S.C. Code 1976, §§ 23-9-310—23-9-470.

(b) *Board of trustees; use of funds.* Pursuant to S.C. Code 1976, § 23-9-320, the board of trustees of the firemen's insurance and inspection fund of the city shall consist of the mayor, the mayor pro tempore and the chief of the fire department. All funds received by the board of trustees shall be set apart and equitably used for the betterment and maintenance of a skilled and efficient fire department, including contributions to an approved pension fund pursuant to S.C. Code 1976, § 9-11-48.

(Code 1979, §§ 3-1005, 3-1006)

Sec. 9-35. Reports to state insurance commissioner.

The finance director shall, on or before October 31 in each year, make and file with the state insurance commissioner his certificate stating the existence in the city of a regularly organized fire department under the control of the mayor and city council, the number of steam, hand or other engines, hook and ladder trucks and hose wagons in actual use, together with the value of the fire apparatus and necessary equipment belonging to the fire department in serviceable

condition for fire duty, the number of organized companies and the system of water supply in use for such department, together with such other facts as the insurance commissioner may require, on a blank to be furnished by him.
(Code 1979, § 3-1007)

Sec. 9-36. Membership in state retirement system.

(a) *Generally.* Pursuant to S.C. Code 1976, § 9-11-48, all active members and retirees or beneficiaries of the firemen's pension fund heretofore existing under S.C. Code 1976, § 9-13-10 et seq., are required to become members or beneficiaries of the South Carolina Police Officers' Retirement System effective July 1, 1989, upon transfer of all assets of the firemen's pension fund to the South Carolina Police Officers' Retirement System and provision by the board of trustees of the firemen's insurance and inspection fund for payments of accrued liabilities realized by the South Carolina Police Officers' Retirement System on account of the transfer, including retiree liability, to be determined by the actuary for the South Carolina Police Officers' Retirement System, such payments to be paid in installments over a period not to exceed ten years.

(b) *Deductions and payments.* The finance director shall make such payroll deductions from firefighters' salaries as may be required as the employee's contribution to the South Carolina Police Officers' Retirement System pursuant to state statute.
(Code 1979, §§ 3-1008, 3-1009)

Sec. 9-37. Obstructing fireplug, sprinkler or standpipe.

It shall be unlawful for any person to obstruct with building material or otherwise any fireplug, sprinkler or standpipe connection such as would obstruct approaches to the fireplug, sprinkler or standpipe by the fire department. Each day such obstruction is continued shall constitute a separate offense.
(Code 1979, § 3-1011)

Sec. 9-38. Intentional false alarms; injuring fire alarm system.

It shall be unlawful for any person to give or cause to be given a false alarm of fire, or to pull the slide of any signal box except in case of fire, or to injure, destroy or in any manner interfere with the electric fire alarm of the city, or with the batteries, boxes, stations, wires or other apparatus used in connection therewith.
(Code 1979, § 3-1012)

Cross reference—False fire alarms, § 9-21 et seq.

Sec. 9-39. Injuring hoses.

It shall be unlawful for any person in any way without permission of the chief of the fire department to injure any hose belonging to any fire engine company of the city.
(Code 1979, § 3-1013)

Secs. 9-40—9-60. Reserved.

ARTICLE IV. FIRE PREVENTION CODE

Sec. 9-61. Adoption.

(a) There is hereby adopted by the city council, for the purpose of prescribing regulations governing conditions hazardous to life and property from fire or explosion, that certain code known as the 2021 edition of the International Fire Code as adopted and modified by amendment of the South Carolina Building Code Council and published by the International Code Council, Inc., Section 103 and its subsections (enumerated as Sections 103.1, 103.2 and 103.3) and 104.7 are expressly excluded from the Code of Ordinances of the City of Columbia.

(b) In the event of any conflict between the provisions of the code adopted by this section and state law or city ordinances, rules or regulations, then the code adopted by this section shall prevail and be controlling, unless the code is specifically amended by state law which shall prevail and be controlling.

(Code 1979, § 3-2001; Ord. No. 95-19, 7-12-95; Ord. No. 98-59, 9-16-98; Ord. No. 2001-043, 6-20-01; Ord. No. 2005-086, 10-3-07; Ord. No. 2009-070, 11-18-09; 2013-093, 10-1-13; Ord. No. 2016-076, 10-18-16; Ord. No. 2020-006, 3-10-2020; Ord. No. 2022-119, 1-17-23)

State law reference—Authority of municipality to adopt standard codes by reference, S.C. Code 1976, §§ 5-7-260, 6-9-10.

Sec. 9-62. Enforcement; bureau of fire prevention.

(a) The fire prevention code shall be enforced by the bureau of fire prevention in the fire department of the city, which is hereby established and which shall be operated under the supervision of the chief of the fire department.

(b) The chief in charge of the bureau of fire prevention shall be appointed by the city manager on the recommendation of the fire chief.

(c) The chief of the fire department may detail such members of the fire department as inspectors as shall from time to time be necessary. The chief of the fire department shall recommend to the city manager the employment of technical inspectors.

(d) A report of the bureau of fire prevention shall be made annually and transmitted to the chief executive officer of the city. It shall contain all proceedings under the fire prevention code, with such statistics as the chief of the fire department may wish to include therein. The chief of the fire department shall also recommend any amendments to the fire prevention code which in his judgment shall be desirable.

(Code 1979, § 3-2002)

Sec. 9-63. Definitions.

(a) Whenever the word "municipality" is used in the fire prevention code, it shall be held to mean the City of Columbia, South Carolina.

(b) Whenever the term "corporation counsel" is used in the fire prevention code, it shall be held to mean the attorney for the city.
(Code 1979, § 3-2003)

Cross reference—Definitions generally, § 1-2.

Sec. 9-64. Districts in which storage of explosives and blasting agents is prohibited.

The limits referred to in the fire prevention code, in which storage of explosives and blasting agents is prohibited, shall be as established by the chief of the fire department.
(Code 1979, § 3-2004)

Sec. 9-65. Districts in which storage of flammable liquids in outside aboveground tanks is prohibited.

The limits referred to in the fire prevention code, in which storage of flammable liquids in outside aboveground tanks is prohibited, shall be established by the chief of the fire department.
(Code 1979, § 3-2005(a))

Sec. 9-66. Districts in which new bulk plants for flammable liquids are prohibited.

The limits referred to in the fire prevention code, in which new bulk plants for flammable or combustible liquids are prohibited, shall be as established by the chief of the fire department.
(Code 1979, § 3-2005(b))

Sec. 9-67. Districts in which bulk storage of liquefied petroleum gas is restricted.

The limits referred to in the fire prevention code, in which bulk storage of liquefied petroleum gas is restricted, shall be as established by the chief of the fire department.
(Code 1979, § 3-2006)

Sec. 9-68. License and permit fees.

No charge shall be made for the permits and licenses required by the provisions of the fire prevention code adopted by this article.
(Code 1979, § 3-2008; Ord. No. 93-77, 9-15-93; Ord. No. 2005-079, 8-10-05)

Editor's note—Ord. No. 2005-079, adopted Aug. 10, 2005, repealed former § 9-68 in its entirety and renumbered former §§ 9-69—9-73 as §§ 9-68—9-72.

Sec. 9-69. Modifications.

The chief of the bureau of fire prevention shall have power to modify any of the provisions of the fire prevention code adopted by the provisions of this article, upon application in

writing by the owner or lessee, or his duly authorized agent, when there are practical difficulties in the way of carrying out the strict letter of the fire prevention code; provided that the spirit of the fire prevention code shall be observed, public safety secured and substantial justice done. The

particulars of such modification, when granted or allowed, and the decision of the chief of the bureau of fire prevention thereon, shall be entered upon the records of the fire department, and a signed copy shall be furnished the applicant.
(Code 1979, § 3-2009; Ord. No. 2005-079, 8-10-05)

Sec. 9-70. Determination of new materials, processes or occupancies which may require permits.

The city manager, the chief of the fire department and the chief of the bureau of fire prevention shall act as a committee to determine and specify, after giving affected persons an opportunity to be heard, any new materials, processes or occupancies which shall require permits, in addition to those enumerated in the fire prevention code adopted by the provisions of this article. The committee mentioned in this section will be expected to notify the city council of the action of the committee before such requirements may become permanent. The chief of the bureau of fire prevention shall post such list in a conspicuous place in his office, and distribute copies thereof to interested persons.
(Code 1979, § 3-2010; Ord. No. 2005-079, 8-10-05)

Sec. 9-71. Appeals.

Whenever the chief of the fire department shall disapprove an application or refuse to grant a license or permit applied for, or when it is claimed that the provisions of the fire prevention code adopted by the provisions of this article do not apply or that the true intent and meaning of the code have been misconstrued or wrongly interpreted, the applicant may appeal from the decision of the chief of the fire department to the building board of adjustments and appeals.
(Code 1979, § 3-2011; Ord. No. 2005-079, 8-10-05)

Sec. 9-72. Violations; penalty.

(a) Any person who shall violate any of the provisions of the fire prevention code, including amendments, or fail to comply therewith, or who shall violate or fail to comply with any order made thereunder, or who shall build in violation of any detailed statement of specifications or plans submitted and approved thereunder or any certification or permit issued thereunder, and from which no appeal has been taken, or who shall fail to comply with such an order as affirmed or modified by persons responsible for adoption or administration of the fire prevention code, or by a court of competent jurisdiction, within the time fixed in this section, shall severally, for each and every such violation and noncompliance, respectively, be guilty of a misdemeanor and punished in accordance with section 1-5. The imposition of one penalty for any violation shall not excuse the violation or permit it to continue, and all such persons shall be required to correct or remedy such violations or defects within a reasonable time; and when not otherwise specified, each ten days that prohibited conditions are maintained shall constitute a separate offense.

(b) The application of any such penalty shall not be held to prevent the enforced removal of prohibited conditions.
(Code 1979, § 3-2012; Ord. No. 2005-079, 8-10-05)

Secs. 9-73—9-100. Reserved.

ARTICLE V. HAZARDOUS MATERIALS

Sec. 9-101. Purpose.

(a) It is the intent of this article to develop a database of information concerning the location and disposal of hazardous materials in the city. This database will be used to protect all emergency personnel from injury or death occurring from an explosion or fire because of unknown dangerous materials present.

(b) It is further intended to use this database to protect the natural environment through the monitoring of use and disposal of hazardous materials within the city.

(c) It is further intended to locate and identify those businesses that should report extremely hazardous substances under SARA Title III, in order to form site plans and assure compliance.
(Ord. No. 2013-059, 6-18-13)

Sec. 9-102. Scope.

(a) This article shall apply to all materials which are highly flammable, or which may react to cause fires or explosions, or which by their presence create or augment a fire or explosion hazard, or which because of the toxicity, flammability, or liability of explosion render firefighting, rescue or public safety operations abnormally dangerous or difficult, or create a threat to public health, safety or the environment.

This article shall also apply to flammable or combustible liquids which are chemically unstable and which may spontaneously form explosive compounds, or undergo evolution of heat to be a fire hazard. Hazardous materials shall include such materials as flammable solids, corrosive liquids, radioactive materials, oxidizing materials, potentially explosive materials, poisonous gases, and hazardous materials known or suspected of chronic toxicity, as defined in this chapter. However, this ordinance shall not include heating fuels, lubricating oils, hydraulic oils, lubricating greases or compressed gases for residential use.

(b) The storing, handling, and dispensing of materials covered by this article shall be conducted pursuant to the requirements of any and all applicable state and federal codes, and the most current edition of the various standard or international codes that have been adopted by the city council relating to building, fire prevention, gas, mechanical and plumbing.

(c) A current material safety data sheet for all hazardous materials inventory stored, handled, or used on a premise shall be made available to emergency personnel and a copy shall be located near the entrance to the premises and immediately available.

(d) This article recognizes that transporters of hazardous materials must comply with all United States Department of Transportation regulations, such hazardous materials regulations governing both interstate and intrastate activities.
(Ord. No. 2013-059, 6-18-13)

Sec. 9-103. Jurisdiction.

The provisions of this article shall apply to all lands within the jurisdiction of the city.
(Ord. No. 2013-059, 6-18-13)

Sec. 9-104. Definitions.

(a) For the purposes of this article, the following definitions as identified by the United Nations' classification system shall apply:

(1) *Class 1 Explosives.*

Division 1.1 Explosives with a mass explosion hazard.

Division 1.2 Explosives with a projection hazard.

Division 1.3 Explosives with predominantly a fire hazard.

Division 1.4 Explosives with no significant blast hazard.

Division 1.5 Very insensitive explosives.

(2) *Class 2 Gases.*

Division 2.1 Flammable gases (can be ignited very easily).

Division 2.2 Nonflammable gases.

Division 2.3 Poison gases (Any gas of such nature that a small amount of the gas, when mixed with air, is dangerous to life).

(3) *Class 3 Flammable liquids.*

Division 3.1 Flashpoint below minus 18°C (0°F).

Division 3.2 Flashpoint minus 18°C and above but less than 23°C (73 °F).

Division 3.3 Flashpoint of 23°C and up 61°C (141°F).

(4) *Class 4 Flammable solids; spontaneously combustible materials; and, materials dangerous when wet.*

Division 4.1 Flammable solids (A solid substance, other than one classified as an explosive, which is liable to cause fires through friction, through absorption of moisture, through spontaneous chemical changes, or as a result of retained heat from manufacturing or processing.).

Division 4.2 Spontaneously combustible materials.

Division 4.3 Materials that are dangerous when wet.

(5) *Class 5 Oxidizers and organic peroxides.*

Division 5.1 Oxidizers (evolve oxygen either spontaneously or with mild heating).

Division 5.2 Organic peroxides.

(6) *Class 6 Poisonous and etiologic (infectious) materials.*

Division 6.1.

Poison A: A liquid so toxic that an extremely small amount of the vapor formed by the liquid is dangerous to life.

Poison B: Less toxic liquids and solids that are hazardous either by contact with the body (skin absorption) or by ingestion.

Poison C: Liquids or solids that evolve toxic or strongly irritating fumes when heated or when exposed to air.

Division 6.2 Etiological (infectious) materials.

(7) *Class 7 Radioactive materials.* Any material or combination of materials that spontaneously emits ionizing radiation.

(8) *Class 8 Corrosives.* Any acids, alkaline caustic liquids, and other corrosive liquids which when in contact with living tissue, will cause severe damage of such tissue by chemical action; in case of leakage will materially damage or destroy other containers of other hazardous commodities by chemical action and cause the release of their contents; or are liable to cause fire when in contact with organic matter or with certain materials.

(b) Extremely hazardous substances are those substances designated as such by the Administrator of the United States Environmental Protection Agency.

(c) For the purpose of registration, the following registration categories are hereby established and defined:

(1) *Category A:* Includes any facility which uses, produces or stores any amount of extremely hazardous substance(s) as defined by Section 304 of the Emergency Planning and Community Right-to-Know Act of 1986 (SARA TITLE III); and meets or exceeds the Reportable Quantities under the Extremely Hazardous Substances list, or under the Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA) of 1980 list.

(2) *Category B:* Includes any facility which produces hazardous chemical(s) and/or stores hazardous chemical(s) for wholesale and/or any facility which uses hazardous chemicals as defined in section 9-104 of this article and meets or exceeds quantities listed in section 9-104(e) of this article.

(3) *Category C:* Includes any facility which handles or stores any hazardous chemical(s) as defined in section 9-104 (a) of this chapter and meets or exceeds quantities listed section 9-104(e) of this chapter for retail sale to the general public.

(d) For the purpose of registration, the term "hazardous chemicals" does not include:

(1) Any food, food additive, color additive, drug or cosmetic regulated by the Food and Drug Administration.

(2) Any substance to the extent it is used for personal, family or household purposes.

(3) This chapter shall not apply to farmers, provided, their storing, handling, and use of hazardous materials is for farming purposes only.

(4) Any substance to the extent it is used by a food service facility in the preparation of such food for human consumption.

(5) Any substance to the extent it is stored and used by the facility for janitorial and housekeeping purposes only.

(6) Any substance to the extent it is used in a medical research laboratory or a hospital or other medical facility under the direct supervision of a technically qualified individual.

(7) Any substance which meets the definition of other regulated material—domestic (ORM-D) due to its form, quantity, or packaging, while maintained in that form, quantity or packaging.

(e) A registration shall be required for the use, handling, production, and/or storage of any quantity of hazardous chemicals as defined under section 9-104 of this article, which meets or exceeds the below-listed amounts.

NOTE: A registration shall also be required for these facilities which adhere to section 9-104(a) of this article:

Division	*Amount*
Class 1:	
1.1	Any
1.2	Any
1.3	Any
1.4	Any
1.5	Any
Class 2:	
2.1	200 lbs
2.2	None
2.3	Any
Class 3:	
3.1	55 gals
3.2	110 gals
3.3	110 gals
Class 4:	
4.1	10 lbs
4.2	10 lbs

Division	*Amount*
4.3	10 lbs
Class 5:	
5.1	200 lbs
5.2	10 lbs
Class 6:	
6.1	Any
6.2	Any
Class 7:	Any
Class 8:	55 gals

(Ord. No. 2013-059, 6-18-13)

Sec. 9-105. Registration and fees required.

(a) Any person or entity possessing or storing hazardous materials, as defined herein within the corporate limits of the City of Columbia, shall be required to register such materials with the Columbia Fire Department by January 1st of each year. Only one registration is required per facility per year.

(b) No registration shall be valid after the last day of the year in which it was issued.

(c) Government agencies are not exempted from compliance.

(d) Registrations are nontransferable.

(e) Facilities registering under Category A, as defined in section 9-104(c) of this article may report inventories under the requirements and provisions of the Emergency Planning and Community Right-to-Know Act (SARA TITLE III).

(f) Facilities registering Class 7, Radioactive Materials, as defined in section 9-104 of this article, may submit a copy of the most recent Department of Health and Environmental Control (DHEC), Bureau of Radiological Health inventory file.

(g) Any person, firm, or corporation applying for a permit to store, handle, and/or use hazardous chemicals as required by section 9-104 of this article shall make application to the building license division of City of Columbia on such forms as the city fire marshal shall supply. Each applicant shall be required to furnish information concerning his/her business, including but not limited to the following: A hazardous materials inventory statement and a hazardous materials management plan as defined in the International Fire Code as adopted by the City and/or Tier II Hazardous Chemical Inventory Facility information as required by the State of South Carolina.
(Ord. No. 2013-059, 6-18-13)

Sec. 9-106. Official's right of entry.

(a) The appropriate official designated by the city or a duly authorized fire official may at all reasonable times request access to any building whether completed or under construction, or to any property for the purpose of making an inspection or investigation to enforce any of the provisions of this article, or to establish a pre-fire plan and, if denied, and a belief exists as to probable cause that hazardous materials are present, then such official shall obtain a search warrant to allow inspection of the premises.

(b) If an emergency appears to exist, the city may petition for a court order enjoining the owner or occupant of the premises from conducting business or storing product in question.

(c) No person, owner, or occupant of any building or premise shall fail, after proper credentials are displayed, to permit entry into any building or onto any property by the appropriate official designated by the city, or a duly authorized agent, for the purpose of inspections or pre-fire planning pursuant to this article.
(Ord. No. 2013-059, 6-18-13)

Sec. 9-107. Sampling permitted.

The appropriate official may verify the contents or labeling of any chemical container by taking a sample for analysis if the holder or owner of a chemical container is unable to identify or substantiate the contents through the production of trade-accepted manifests and/or acceptable documentation.
(Ord. No. 2013-059, 6-18-13)

Sec. 9-108. Vehicle inspection.

No materials shall be transported in any vehicle which has physical, mechanical or electrical defects which could cause or contribute to fire, explosion, spillage or release or which is improperly placarded, as provided in the United States Department of Transportation Regulation.
(Ord. No. 2013-059, 6-18-13)

Sec. 9-109. Disposal.

Disposal of materials shall be by methods meeting all requirements of local, state and federal law. Upon registration of hazardous materials, a list of materials for disposal, method of disposal, and location of disposal shall be supplied. Chemicals or chemical waste which are not produced within the City of Columbia shall not be disposed of within the city.
(Ord. No. 2013-059, 6-18-13)

Sec. 9-110. Reimbursement.

In the event of a spill or release of any hazardous materials, as defined by this article, which would require the City of Columbia to commit its resources, the party or parties responsible for such spill or release shall pay all costs incurred by the city or supporting agencies including,

but not limited to, all actual personnel costs, materials and supplies, equipment costs and legal fees, in its efforts to mitigate any risks to life, property and/or the environment caused by such a spill or release. Equipment costs shall be calculated in accordance with the then current FEMA's Schedule of equipment rates. The city fire chief or his designee or an authorized fire official shall have the sole authority to commit the city's hazardous materials resources.

Person shall mean an individual, firm, corporation, association, partnership, commercial entity, consortium, joint venture, governmental entity, or any other legal entity.

Party or parties responsible shall mean the person(s) whose act or omission caused a release; or, the person(s) who owned or had custody or control of the hazardous substances or waste at the time of such release without regard to fault or proximate cause; or, the person or persons who owned or had custody or control of the container which held the hazardous substance at the time or immediately prior to such release without regard to fault or proximate cause.
(Ord. No. 2013-059, 6-18-13)

Sec. 9-111. Enforcement and administration.

(a) The city finance department shall bill the party or parties responsible for payment of the hazard material incident response fee after responding to a hazardous material incident or release in the city.

(b) *Method of payment.* The party or parties responsible shall issue a certified check made payable to the City of Columbia within 60 days of receiving the bill for the hazardous materials incident response fee. The certified check shall be mailed or delivered to the City of Columbia's Finance Department.

(c) *Other remedies.* This section shall not prohibit the city from pursuing any other remedy, whether civil or criminal, or from instituting any appropriate action or proceedings, including injunction in a court of competent jurisdiction. Nor shall the recovery of expenses under this section in any way release the various parties, or limit them from legal liability incurred as a result of hazardous material cleanup or abatement as defined under any local, state or federal rule or regulation.
(Ord. No. 2013-059, 6-18-13)

Sec. 9-112. Notices and orders.

Whenever the city fire marshal or a duly authorized agent or authorized fire official finds in any building or upon any premises dangerous or hazardous conditions or materials, there shall be issued such notice or orders to remove or remedy the conditions as may be necessary for the protection of life and property from fire and smoke or explosion.
(Ord. No. 2013-059, 6-18-13)

Sec. 9-113. Violations and penalties.

Any person or entity failing to register material(s) as required by this article shall be guilty of a misdemeanor and punishable upon conviction in accordance with section 1-5 of this Code.
(Ord. No. 2013-059, 6-18-13)

Sec. 9-114. Conflicts of other laws.

Whenever the requirements or provisions of this article are in conflict with the requirements or provisions of any other lawfully adopted ordinance, the more restrictive requirements shall apply. Further, this section shall not restrict or replace cost recovery from funding sources available under state and federal regulations including but not limited to the revolving fund established under Section 311(K) of the Federal Water Pollution Trust Fund established under Comprehensive Environmental Response, Compensation and Liability Act (42 USC 9611).

This article intends to provide regulations consistent with nationally recognized practices for the reasonable protection of life and property from the hazards of fire and explosion due to storage, use or handling of hazardous materials, substances and devices, and to minimize hazards to life and property due to fire and panic.
(Ord. No. 2013-059, 6-18-13)

Sec. 9-115. Fire risk analysis and planning.

Facilities subject to the requirements of this article shall assist local fire departments in preplanning objectives. Upon request, the owner or operator of the facility shall provide information to the local fire department for the development and implementation of emergency plans. The appropriate local fire official may at reasonable and mutually acceptable times request access to any building, or to any property for the purpose of fire risk analysis and planning and, if denied, then shall make a written request to the city fire chief.
(Ord. No. 2013-059, 6-18-13)

Secs. 9-116—9-130. Reserved.

Chapter 10

LAW ENFORCEMENT*

Article I. False Security Alarms

Sec. 10-1. Definitions.
Sec. 10-2. False alarm procedure and user fee.
Sec. 10-3. Evidence of repair accepted in lieu of fee.
Sec. 10-4. Appeals.
Sec. 10-5. Appeal standard.
Secs. 10-6—10-30. Reserved.

Article II. Police Department

Sec. 10-31. Chief of police; authority of police on city lands outside city limits.
Sec. 10-32. Functions.
Sec. 10-33. Special police officers.
Sec. 10-34. Resisting arrest.
Sec. 10-35. Refusal to assist officer.
Sec. 10-36. Refusal to stop on command of officer.

***Cross references—**Administration, ch. 2; emergency management, ch. 7; motor vehicles and traffic, ch. 12; municipal court, ch. 13; offenses and miscellaneous provisions, ch. 14.

State law reference—Municipal police officers, S.C. Code 1976, § 5-7-110.

ARTICLE I. FALSE SECURITY ALARMS

Sec. 10-1. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

False alarm means the activation of an alarm system when, upon inspection by the police department, there is no evidence of unauthorized entry, robbery, or other such crime was committed or attempted in or on the premises which would have activated a properly functioning alarm. Notwithstanding the foregoing, a false alarm does not include an alarm which can reasonably be determined to have been caused or activated by unusually violent conditions of nature. In addition, an alarm activated during an alarm system testing procedure shall not be considered a false alarm if the security alarm user notifies and receives permission from the user's alarm company, or designee, to test the system.

Security alarm system means any assembly of equipment, mechanical or electrical, installed by a security alarm business, arranged to signal the occurrence of a criminal act, emergency, or other condition to which the Columbia Police Department may be expected to respond.

Security alarm user means a person who is in control of any building, structure or facility where a security alarm system is present.

Year means a 12-month period beginning with July 1 and ending on June 30 of each year. (Ord. No. 2015-100, 1-5-16; Ord. No. 2023-068, 6-20-23)

Sec. 10-2. False alarm procedure and user fee.

(a) Whenever Columbia Police Department personnel respond to an activated security alarm system, the Columbia Police Department official in charge of the incident shall determine if the response was caused by a false alarm and shall indicate that fact to dispatch.

(b) The dispatch notes shall be regularly reviewed to monitor the accumulation of false alarms at any one location. When two false alarms have occurred at the same location within one year, and the location is within the incorporated area of the city, the security alarm user shall be notified by and through letter, citing the location and date of each false alarm. The letter shall recommend that appropriate action be taken on the part of the security alarm user to alleviate the causes of false alarms and shall include a statement that an accumulation of any further false alarms within a year shall result in a charge for services and/or the Columbia Police Department discontinuing responding to that location unless dispatched as a result of an emergency call to 911.

(c) It is hereby found and determined that three or more false alarms within a year shall be deemed excessive. Excessive false alarms shall be assessed a user fee as follows:

Third through seventh false alarm	$100.00
Eighth and ninth false alarm	$250.00
Tenth or more false alarm	$500.00

However, no security alarm user shall be charged with accumulating more than one false alarm in any 24-hour period. The fee established by this section affords only partial recovery of the expenses incurred in responding to the false alarm. If payment of the fee, in full, has not been received within 30 days of billing, a late fee penalty of 15 percent of the user fee shall be assessed, and CPD will no longer respond to that location, unless dispatched as a result of an emergency call to 911, until the fee and penalty has been paid in full.
(Ord. No. 2015-100, 1-5-16; Ord. No. 2023-068, 6-20-23; Ord. No. 2023-123, 11-21-23)

Sec. 10-3. Evidence of repair accepted in lieu of fee.

An alarm user may submit evidence that a malfunctioning system has been repaired in lieu of paying a user fee within ten days of the date of notification of the fee. Evidence such as a receipt from a licensed alarm business with a statement of repairs made to the system is acceptable. For a repeated problem with a system after a repair is alleged to have been made, the city manager or his/her designee may decide not to accept an alternative to paying the fee.
(Ord. No. 2015-100, 1-5-16; Ord. No. 2023-068, 6-20-23)

Sec. 10-4. Appeals.

Any person may appeal the imposition of a false alarm user fee to the city manager or his/her designee. Such appeal shall be in writing and shall be made to the city manager within ten days of the date of notification of the fee. The failure to give notice of appeal within this time period shall constitute a waiver of the right to contest the user fee assessment or other enforcement decisions.
(Ord. No. 2015-100, 1-5-16; Ord. No. 2023-068, 6-20-23)

Sec. 10-5. Appeal standard.

The city manager or his/her designee shall review an appeal of the assessment of the user fee, late penalty, or other enforcement decisions using a preponderance of the evidence standard. Notwithstanding a determination that the preponderance of the evidence supports the assessment of the fee or other enforcement decisions, the city manager or his/her designee shall have the discretion to dismiss or reduce the user fee, waive the late penalty, or reverse any other enforcement decisions where warranted.
(Ord. No. 2023-068, 6-20-23)

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ARTICLE II. POLICE DEPARTMENT*

Sec. 10-31. Chief of police; authority of police on city lands outside city limits.

The chief of police, subject to the city manager, shall have administrative supervision over the police department. He shall be responsible for the enforcement of state laws and city ordinances, protection of life and property, preservation of law and order, investigation of crimes and suppression of vice, and he shall direct the proper assignment of police officers, establish training programs, maintain adequate records, provide traffic control and enforcement, cooperate with other law enforcement agencies, establish departmental rules and regulations, and be responsible for the custody of city prisoners. The chief of police and police officers are given the same authority over lands owned by the city or leased to the city beyond the city limits as they have within the city. He shall perform such additional duties as may be assigned to him by the city manager.
(Code 1979, § 1-3006)

Sec. 10-32. Functions.

The police department shall perform the following functions:

(1) Provide protection for persons and property against unlawful acts and reduce the opportunity for committing crime within the city;

(2) Maintain an active crime prevention and control program in order to ensure the security of the citizens;

(3) Provide police patrol services in all areas of the city;

(4) Investigate crimes and identify the perpetrators of crimes;

(5) Recover stolen property and investigate and apprehend those who receive stolen property;

(6) Arrest, apprehend and prosecute offenders;

(7) Maintain detention facilities to house persons arrested on various charges;

(8) Design and implement training programs for employees of the department;

(9) Maintain and administer records and identification facilities for processing of persons arrested, including the processing, storage and control of evidence;

(10) Maintain a communications system;

(11) Maintain and supply uniforms and clothing for all uniformed personnel; and

(12) Perform such other functions as prescribed by the city council or by directives of the city manager.

(Code 1979, § 2-1001)

State law reference—Powers and duties of police officers, S.C. Code 1976, § 5-7-110.

***Cross reference—**Departments, § 2-151 et seq.

Sec. 10-33. Special police officers.

The city manager, upon any emergency or apprehension of riot or tumult or mob violence or threatened violence, and during any of the public elections, may appoint as many special police officers as he may deem necessary; provided that such special police officers shall not be paid at a higher rate than that paid to regular patrolmen at the time such services are performed. Such special police officers are subject to the provisions of this article and all rules and regulations of the police department.
(Code 1979, § 2-1002)

State law reference—Use of law enforcement officers during emergencies, S.C. Code 1976, § 5-7-120.

Sec. 10-34. Resisting arrest.

It shall be unlawful for any person, after having been placed under arrest or taken into custody by the police or other persons authorized to do so, to resist arrest whether actively or by flight.
(Code 1979, § 2-1003; Ord. No. 2013-068, 9-3-13)

Sec. 10-35. Refusal to assist officer.

It shall be unlawful for any able-bodied person, being called upon by any police officer, any member of the city council or anyone deputized by them for assistance or to suppress an affray, breach of peace or any outrage, to refuse such assistance.
(Code 1979, § 2-1004)

Sec. 10-36. Refusal to stop on command of officer.

It shall be unlawful for any person in the city to willfully and knowingly fail or refuse to stop when signaled, hailed or commanded to stop by a police officer or other officer of the city.
(Code 1979, § 2-1005)

State law references—Police officers vested with all powers and duties conferred by law upon constables, S.C. Code 1976, § 5-7-110; failing or refusing to obey lawful orders of police officers prohibited, S.C. Code 1976, § 56-5-740.

Chapter 11

LICENSES, PERMITS AND MISCELLANEOUS BUSINESS REGULATIONS*

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ARTICLE I. IN GENERAL

Sec. 11-1. Weights and measures.

(a) *Official weights and measures.* All foodstuffs, goods, fuel, materials and other merchandise sold or exchanged or freight or baggage shipped within the limits of the city by weight or measurement shall be weighed or measured, as the case may be, by weights and measures in exact compliance and agreement with the standard weights and measures fixed by the Congress of the United States, in accordance with the provisions of the laws of the state.

(b) *Use of weights not in accord with standards.* It shall be unlawful for any merchant, vendor, common carrier or other person to use any weight or measure in trade other than such as are in exact accord and agreement with the standard weights and measures of the state and United States.
(Code 1979, §§ 2-2101, 2-2102)

Sec. 11-2. Closing hours for drive-in and curb service restaurants.

All drive-in and curb service restaurants and establishments located within the city which by the conduct and operation thereof tend to or do encourage, invite or bring about an objectionable condition because of the noise of horn blowing, the playing of music, the flashing of lights at night, the movement of traffic and the occasional disorderly acts of patrons, or tend to or do become a nuisance to residents of the surrounding neighborhood, shall close such business or establishment at 12:30 a.m. each and every night and shall remain closed during the remainder of each and every night. It shall be unlawful for any such business or establishment to carry on or conduct its business or operation after 12:30 a.m. any night; provided that the provisions of this section shall not apply to service of customers or patrons by such establishments inside a structure or building on the premises of such establishments.
(Code 1979, § 2-2103)

Sec. 11-3. Guest register for places of public accommodation; reports to police.

(a) *Suspicious characters, disorderly conduct, etc., to be reported to police.* All persons renting rooms or furnishing board and lodging as provided in this section shall report to the police immediately any suspicious character who may apply for rooms or board, and also any disorderly persons or disorderly conduct, or report any suspicious conduct on the part of any person to whom rooms or board may have been supplied.

(b) *Guest register required.* Every person operating a hotel, motel or other place of public accommodation shall keep a register of guests and other persons staying at such place.

(c) *Information to be shown on register.* Every register of guests required by subsection (b) of this section shall show the signature of the guest, written in ink, and the street and home address of each and every guest.

(d) *Tampering with entries in register.* Erasures or alterations on or in the register of guests required by the provisions of this section shall not be permitted or made for any purpose.

(e) *Inspection of register.* Every register of guests required by the provisions of this section shall be open for inspection of the police or any other proper officer at any time.
(Code 1979, §§ 2-2077—2-2081)

Secs. 11-4—11-30. Reserved.

ARTICLE II. BUSINESS AND PROFESSIONAL LICENSES*

Sec. 11-31. License required.

Every person engaged or intending to engage in any business, calling, occupation, profession, or activity engaged in with the object of gain, benefit, or advantage, in whole or in part within the limits of the City of Columbia, South Carolina, is required to pay an annual license tax for the privilege of doing business and obtain a business license as herein provided.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-32. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meaning ascribed herein. Defined terms are not capitalized when used in this article unless the context otherwise requires.

Business means any business, calling, occupation, profession, or activity engaged in with the object of gain, benefit, or advantage, either directly or indirectly.

Charitable organization means an organization that is determined by the Internal Revenue Service to be exempt from federal income taxes under 26 U.S.C. Section 501(c)(3), (4), (6), (7), (8), (10) or (19).

Charitable purpose means a benevolent, philanthropic, patriotic, or eleemosynary purpose that does not result in personal gain to a sponsor, organizer, officer, director, trustee, or person with ultimate control of the organization.

***Editor's note—**Ord. No. 2021-082, adopted Nov. 9, 2021, repealed former Art. II, §§ 11-31—11-50, in its entirety and enacted a new Art. II as set out herein. Former Art. II pertained to similar subject matter and derived from the following: Code of 1979, §§ 8-1001—8-1018; ; Ord. No. 93-87, 10-27-93; Ord. No. 93-93, 11-3-93; Ord. No. 93-96, §§ 1—4, 1-5-94; Ord. No. 93-98, 1-5-94; Ord. No. 95-31, 5-17-95; Ord. No. 95-41, 6-21-95; Ord. No. 95-47, 6-21-95; Ord. No. 97-21, § 1, 4-9-97; Ord. No. 97-79, 1-7-98; Ord. No. 98-46, 7-1-98; Ord. No. 2004-81, §§ 1-6, 9-22-04; Ord. No. 2004-098, § 1, 11-10-04; Ord. No. 2007-086, 11-7-07; Ord. No. 2007-086, 11-7-07; Ord. No. 2010-144, 11-9-10; Ord. No. 2010-145, 11-9-10; Ord. No. 2011-093, 12-30-11; Ord. No. 2012-007, 2-7-12; Ord. No. 2012-104, 12-18-12; Ord. No. 2014-087, 10-21-14; Ord. No. 2021-040, 5-18-21.

Classification means that division of businesses by NAICS codes subject to the same license rate as determined by a calculated index of ability to pay based on national averages, benefits, equalization of tax burden, relationships of services, or other basis deemed appropriate by the Council.

Council means the city council of the City of Columbia.

Domicile means a principal place from which the trade or business of a licensee is conducted, directed, or managed. For purposes of this article, a licensee may be deemed to have more than one domicile.

Gross income means the gross receipts or gross revenue of a business, received or accrued, for one calendar or fiscal year collected or to be collected from business done within the municipality. If the licensee has a domicile within the municipality, business done within the municipality shall include all gross receipts or revenue received or accrued by such licensee. If the licensee does not have a domicile within the municipality, business done within the municipality shall include only gross receipts or revenue received or accrued within the municipality. In all cases, if the licensee pays a business license tax to another county or municipality, then the licensee's gross income for the purpose of computing the tax within the municipality must be reduced by the amount of revenues or receipts taxed in the other county or municipality and fully reported to the municipality. Gross income for business license tax purposes shall not include taxes collected for a governmental entity, escrow funds, or funds that are the property of a third party. The value of bartered goods or trade-in merchandise shall be included in gross income. The gross receipts or gross revenues for business license purposes may be verified by inspection of returns and reports filed with the Internal Revenue Service, the South Carolina Department of Revenue, the South Carolina Department of Insurance, or other government agencies. In calculating gross income for certain businesses, the following rules shall apply:

(1) Gross income for agents shall be calculated on gross commissions received or retained, unless otherwise specified. If commissions are divided with other brokers or agents, then only the amount retained by the broker or agent is considered gross income.

(2) Except as specifically required by S.C. Code 1976, § 38-7-20, gross income for insurance companies shall be calculated on gross premiums written.

(3) Gross income for manufacturers of goods or materials with a location in the municipality shall be calculated on the lesser of (i) gross revenues or receipts received or accrued from business done at the location, (ii) the amount of income allocated and apportioned to that location by the business for purposes of the business's state income tax return, or (iii) the amount of expenses attributable to the location as a cost center of the business. Licensees reporting gross income under this provision shall have the burden to establish the amount and method of calculation by satisfactory records and proof. Manufacturers include those taxpayers reporting a manufacturing principal business activity code on their federal income tax returns.

License official means a person designated to administer this article. Notwithstanding the designation of a primary license official, the municipality may designate one or more alternate license officials to administer particular types of business licenses, including without limitation for business licenses issued to businesses subject to business license taxes under S.C. Code 1976, Article 20, Chapter 9, Title 58, and Chapters 7 and 45, Title 38.

Licensee means the business, the person applying for the license on behalf of the business, an agent or legal representative of the business, a person who receives any part of the net profit of the business, or a person who owns or exercises control of the business.

Municipality means the City of Columbia, South Carolina.

NAICS means the North American Industry Classification System for the United States published under the auspices of the Federal Office of Management and Budget.

Person means any individual, firm, partnership, limited liability partnership, limited liability company, cooperative non-profit membership, corporation, joint venture, association, estate, trust, business trust, receiver, syndicate, holding company, or other group or combination acting as a unit, in the singular or plural, and the agent or employee having charge or control of a business in the absence of the principal.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-33. Purpose and duration.

The business license required by this article is for the purpose of providing such regulation as may be required for the business subject thereto and for the purpose of raising revenue for the general fund through a privilege tax. The license year ending on April 30, 2022, shall commence on January 1, 2021 and shall run for a 16-month period. Except as set forth below for business licenses issued to contractors with respect to specific construction projects, each yearly license shall be issued for the 12-month period of May 1 to April 30. A business license issued for a construction contract may, at the request of the licensee, be stated to expire at the completion of the construction project; provided, any such business license may require that the licensee file, by each April 30 during the continuation of the construction project, a statement of compliance, including but not limited to a revised estimate of the value of the contract. If any revised estimate of the final value of such project exceeds the amount for which the business license was issued, the licensee shall be required to pay a license fee at the then-prevailing rate on the excess amount. The provisions of this article and the rates herein shall remain in effect from year to year as amended by the council.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-34. Business license tax, refund.

(a) The required business license tax shall be paid for each business subject hereto according to the applicable rate classification on or before the due date of the 30th day of April in each year, except for those businesses in Rate Class 8 for which a different due date is specified. Late payments shall be subject to penalties as set forth in section 12 hereof, except that admitted insurance companies may pay before June 1 without penalty.

(b) A separate license shall be required for each place of business and for each classification or business conducted at one place. If gross income cannot be separated for classifications at one location, the business license tax shall be computed on the combined gross income for the classification requiring the highest rate. The business license tax must be computed based on the licensee's gross income for the calendar year preceding the due date, for the licensee's 12-month fiscal year preceding the due date, or on a 12-month projected income based on the monthly average for a business in operation for less than one year. The business license tax for a new business must be computed on the estimated probable gross income for the balance of the license year. A business license related to construction contract projects may be issued on a per-project basis, at the option of the taxpayer. No refund shall be made for a business that is discontinued.

(c) A licensee that submits a payment greater than the amount owed may request a refund. To be considered, a refund request must be submitted in writing to the municipality before the June 1 immediately following the April 30 on which the payment was due and must be supported by adequate documentation supporting the refund request. The municipality shall approve or deny the refund request, and if approved shall issue the refund to the business, within 30 days after receipt of the request.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-35. Registration required.

(a) The owner, agent, or legal representative of every business subject to this article, whether listed in the classification index or not, shall register the business and make application for a business license on or before the due date of each year; provided, a new business shall be required to have a business license prior to operation within the municipality, and an annexed business shall be required to have a business license within 30 days of the annexation. A license for a bar (NAICS 722410) must be issued in the name of the individual who has been issued the corresponding state alcohol, beer, or wine permit or license and will have actual control and management of the business.

(b) Application shall be on the then-current standard business license application as established and provided by the director of the South Carolina Revenue and Fiscal Affairs Office and shall be accompanied by all information about the applicant, the licensee, and the business deemed appropriate to carry out the purpose of this article by the license official. Applicants may be required to submit copies of portions of state and federal income tax returns reflecting gross receipts and gross revenue figures.

(c) The applicant shall certify under oath that the information given in the application is true, that the gross income is accurately reported (or estimated for a new business) without any unauthorized deductions, and that all assessments, personal property taxes on business property, and other monies due and payable to the municipality have been paid.

(d) The municipality shall allow application, reporting, calculation, and payment of business license taxes through the business license tax portal hosted and managed by the state revenue and fiscal affairs office, subject to the availability and capability thereof. Any limitations in portal availability or capability do not relieve the applicant or Licensee from existing business license or business license tax obligations.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-36. Deductions, exemptions, and charitable organizations.

(a) No deductions from gross income shall be made except income earned outside of the municipality on which a license tax is paid by the business to some other municipality or county and fully reported to the municipality, taxes collected for a governmental entity, or income which cannot be included for computation of the tax pursuant to state or federal law. Properly apportioned income from business in interstate commerce shall be included in the calculation of gross income and is not exempted. The applicant shall have the burden to establish the right to exempt income by satisfactory records and proof.

(b) No person shall be exempt from the requirements of the article by reason of the lack of an established place of business within the Municipality, unless exempted by state or federal law. The license official shall determine the appropriate classification for each business in accordance with the latest issue of NAICS. No person shall be exempt from this article by reason of the payment of any other tax, unless exempted by state law, and no person shall be relieved of liability for payment of any other tax or fee by reason of application of this article.

(c) Wholesalers are exempt from business license taxes unless they maintain warehouses or distribution establishments within the municipality. A wholesale transaction involves a sale to an individual who will resell the goods and includes delivery of the goods to the reseller. It does not include a sale of goods to a user or consumer.

(d) A charitable organization shall be exempt from the business license tax on its gross income unless it is deemed a business subject to a business license tax on all or part of its gross income as provided in this section. A charitable organization, or any affiliate of a charitable organization, that reports income from for-profit activities or unrelated business income for federal income tax purposes to the Internal Revenue Service shall be deemed a business subject to a business license tax on the part of its gross income from such for-profit activities or unrelated business income.

(e) A charitable organization shall be deemed a business subject to a business license tax on its total gross income if (1) any net proceeds of operation, after necessary expenses of operation, inure to the benefit of any individual or any entity that is not itself a charitable organization as defined in this article, or (2) any net proceeds of operation, after necessary expenses of operation, are used for a purpose other than a charitable purpose as defined in

this article. Excess benefits or compensation in any form beyond fair market value to a sponsor, organizer, officer, director, trustee, or person with ultimate control of the organization shall not be deemed a necessary expense of operation.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-37. False application unlawful.

It shall be unlawful for any person subject to the provisions of this article to make a false application for a business license or to give or file, or direct the giving or filing of, any false information with respect to the license or tax required by this article.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-38. Display and transfer.

(a) All persons shall display the license issued to them on the original form provided by the license official in a conspicuous place in the business establishment at the address shown on the license. A transient or non-resident shall carry the license upon his person or in a vehicle used in the business readily available for inspection by any authorized agent of the municipality.

(b) A change of address must be reported to the license official within ten days after removal of the business to a new location and the license will be valid at the new address upon written notification by the license official and compliance with zoning and building codes. Failure to obtain the approval of the license official for a change of address shall invalidate the license and subject the licensee to prosecution for doing business without a license. A business license shall not be transferable, and a transfer of controlling interest shall be considered a termination of the old business and the establishment of a new business requiring a new business license, based on old business income.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-39. Administration of article.

The license official shall administer the provisions of this article, collect business license taxes, issue licenses, make or initiate investigations and audits to ensure compliance, initiate denial or suspension and revocation procedures, report violations to the municipal attorney, assist in prosecution of violators, produce forms, undertake reasonable procedures relating to the administration of this article, and perform such other duties as may be duly assigned.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-40. Inspection and audits.

(a) For the purpose of enforcing the provisions of this article, the license official or other authorized agent of the municipality is empowered to enter upon the premises of any person subject to this article to make inspections and to examine and audit books and records. It shall be unlawful for any such person to fail or refuse to make available the necessary books

and records. In the event an audit or inspection reveals that the licensee has filed false information, the costs of the audit shall be added to the correct business license tax and late penalties in addition to other penalties provided herein. Each day of failure to pay the proper amount of business license tax shall constitute a separate offense.

(b) The license official shall have the authority to make inspections and conduct audits of businesses to ensure compliance with the article. Financial information obtained by inspections and audits shall not be deemed public records, and the license official shall not release the amount of business license taxes paid or the reported gross income of any person by name without written permission of the licensee, except as authorized by this article, state or federal law, or proper judicial order. Statistics compiled by classifications are public records.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-41. Assessments, payment under protest, appeal.

(a) Assessments, payments under protest, and appeals of assessment shall be allowed and conducted by the municipality pursuant to the provisions of S.C. Code 1976, § 6-1-410, as amended. In preparing an assessment, the license official may examine such records of the business or any other available records as may be appropriate and conduct such investigations and statistical surveys as the license official may deem appropriate to assess a business license tax and penalties as provided herein.

(b) The license official shall establish a uniform local procedure consistent with S.C. Code 1976, § 6-1-410 for hearing an application for adjustment of assessment and issuing a notice of final assessment; provided that for particular types of business licenses, including without limitation for business licenses issued to businesses subject to business license taxes under S.C. Code 1976, Article 20, Chapter 9, Title 58, and Chapters 7 and 45, Title 38, the municipality, by separate ordinance, may establish a different procedure and may delegate one or more rights, duties, and functions hereunder to the Municipal Association of South Carolina.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-42. Delinquent license taxes, partial payment.

(a) For non-payment of all or any part of the correct business license tax, the license official shall impose and collect a late penalty of five percent of the unpaid tax for each month or portion thereof after the due date until paid. Penalties shall not be waived. If any business license tax remains unpaid for 60 days after its due date, the license official shall report it to the municipal attorney for appropriate legal action.

(b) Partial payment may be accepted by the license official to toll imposition of penalties on the portion paid; provided, however, no business license shall be issued or renewed until the full amount of the tax due, with penalties, has been paid.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-43. Notices.

The license official may, but shall not be required to, mail written notices that business license taxes are due. If notices are not mailed, there shall be published a notice of the due date in a newspaper of general circulation within the municipality three times prior to the due date in each year. Failure to receive notice shall not constitute a defense to prosecution for failure to pay the tax due or grounds for waiver of penalties.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-44. Denial of license.

The license official may deny a license to an applicant when the license official determines:

(1) The application is incomplete or contains a misrepresentation, false or misleading statement, or evasion or suppression of a material fact;

(2) The activity for which a license is sought is unlawful or constitutes a public nuisance per se or per accidens;

(3) The applicant, licensee, prior licensee, or the person in control of the business has been convicted within the previous ten years of an offense under a law or ordinance regulating business, a crime involving dishonest conduct or moral turpitude related to a business or a subject of a business, or an unlawful sale of merchandise or prohibited goods;

(4) The applicant, licensee, prior licensee, or the person in control of the business has engaged in an unlawful activity or nuisance related to the business or to a similar business in the municipality or in another jurisdiction;

(5) The applicant, licensee, prior licensee, or the person in control of the business is delinquent in the payment to the municipality of any tax or fee;

(6) A licensee has actual knowledge or notice, or based on the circumstances reasonably should have knowledge or notice, that any person or employee of the licensee has committed a crime of moral turpitude on the business premises, or has permitted any person or employee of the licensee to engage in the unlawful sale of merchandise or prohibited goods on the business premises and has not taken remedial measures necessary to correct such activity; or

(7) The license for the business or for a similar business of the licensee in the municipality or another jurisdiction has been denied, suspended, or revoked in the previous license year.

A decision of the license official shall be subject to appeal as herein provided. Denial shall be written with reasons stated.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-45. Suspension or revocation of license.

When the license official determines:

(1) A license has been mistakenly or improperly issued or issued contrary to law;

(2) A licensee has breached any condition upon which the license was issued or has failed to comply with the provisions of this article;

(3) A licensee has obtained a license through a fraud, misrepresentation, a false or misleading statement, or evasion or suppression of a material fact in the license application;

(4) A licensee has been convicted within the previous ten years of an offense under a law or ordinance regulating business, a crime involving dishonest conduct or moral turpitude related to a business or a subject of a business, or an unlawful sale of merchandise or prohibited goods;

(5) A licensee has engaged in an unlawful activity or nuisance related to the business; or

(6) A licensee is delinquent in the payment to the municipality of any tax or fee, the license official may give written notice to the licensee or the person in control of the business within the municipality by personal service or mail that the license is suspended pending a single hearing before council or its designee for the purpose of determining whether the suspension should be upheld and the license should be revoked.

The written notice of suspension and proposed revocation shall state the time and place at which the hearing is to be held, and shall contain a brief statement of the reasons for the suspension and proposed revocation and a copy of the applicable provisions of this article. (Ord. No. 2021-082, 11-9-21)

Sec. 11-46. Appeals to council or its designee.

(a) Except with respect to appeals of assessments under section 11 hereof, which are governed by S.C. Code 1976, § 6-1-410, any person aggrieved by a determination, denial, or suspension and proposed revocation of a business license by the license official may appeal the decision to the council or its designee by written request stating the reasons for appeal, filed with the license official within ten days after service by mail or personal service of the notice of determination, denial, or suspension and proposed revocation.

(b) A hearing on an appeal from a license denial or other determination of the license official and a hearing on a suspension and proposed revocation shall be held by the council or its designee within ten business days after receipt of a request for appeal or service of a notice of suspension and proposed revocation. The hearing shall be held upon written notice at a regular or special meeting of the council, or, if by designee of the council, at a hearing to be scheduled by the designee. The hearing may be continued to another date by agreement of all parties. At the hearing, all parties shall have the right to be represented by counsel, to present testimony and evidence, and to cross-examine witnesses. The proceedings shall be

recorded and transcribed at the expense of the party so requesting. The rules of evidence and procedure prescribed by council or its designee shall govern the hearing. Following the hearing, the council by majority vote of its members present, or the designee of council if the hearing is held by the designee, shall render a written decision based on findings of fact and conclusions on application of the standards herein. The written decision shall be served, by personal service or by mail, upon all parties or their representatives and shall constitute the final decision of the municipality.

(c) Timely appeal of a decision of council or its designee does not effectuate a stay of that decision. The decision of the council or its designee shall be binding and enforceable unless overturned by an applicable appellate court after a due and timely appeal.

(d) For business licenses issued to businesses subject to business license taxes under S.C. Code 1976, Article 20, Chapter 9, Title 58, and Chapters 7 and 45, Title 38, the municipality may establish a different procedure by ordinance.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-47. Consent, franchise, or license required for use of streets.

(a) It shall be unlawful for any person to construct, install, maintain, or operate in, on, above, or under any street or public place under control of the municipality any line, pipe, cable, pole, structure, or facility for utilities, communications, cablevision, or other purposes without a consent agreement or franchise agreement issued by the council by ordinance that prescribes the term, fees, and conditions for use.

(b) The annual fee for use of streets or public places authorized by a consent agreement or franchise agreement shall be set by the ordinance approving the agreement and shall be consistent with limits set by state law. Existing franchise agreements shall continue in effect until expiration dates in the agreements. Franchise and consent fees shall not be in lieu of or be credited against business license taxes unless specifically provided by the franchise or consent agreement.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-48. Confidentiality.

Except in accordance with proper judicial order or as otherwise provided by law, no official or employee of the municipality may divulge or make known in any manner the amount of income or any financial particulars set forth or disclosed in any report or return required under this article. Nothing in this section shall be construed to prohibit the publication of statistics so classified as to prevent the identification of particular reports or returns. Any license data may be shared with other public officials or employees in the performance of their duties, whether or not those duties relate to enforcement of this article.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-49. Violations.

Any person violating any provision of this article shall be deemed guilty of an offense and shall be subject to a fine of up to $500.00 or imprisonment for not more than 30 days or both, upon conviction. Each day of violation shall be considered a separate offense. Punishment for violation shall not relieve the offender of liability for delinquent taxes, penalties, and costs provided for in this article.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-50. Severability.

A determination that any portion of this article is invalid or unenforceable shall not affect the remaining portions. To the extent of any conflict between the provisions of this article and the provisions of the South Carolina Business License Tax Standardization Act, as codified at S.C. Code 1976, §§ 6-1-400 et seq., the standardization act shall control.
(Ord. No. 2021-082, 11-9-21)

Sec. 11-51. Classification and rates.

(a) The business license tax for each class of businesses subject to this article shall be computed in accordance with the current business license rate schedule, designated as Appendix A to this article, which may be amended from time to time by the council.

(b) The current business license class schedule is attached hereto as Appendix B. Hereafter, no later than December 31 of each odd year, the municipality shall adopt, by ordinance, the latest standardized business license class schedule as recommended by the Municipal Association of South Carolina and adopted by the director of the South Carolina Revenue and Fiscal Affairs Office. Upon adoption by the municipality, the revised business license class schedule shall then be appended to this article as a replacement Appendix B.

(c) The classifications included in each rate class are listed with NAICS codes, by sector, sub-sector, group, or industry. The business license class schedule (Appendix B) is a tool for classification and not a limitation on businesses subject to a business license tax. The classification in the most recent version of the business license class schedule adopted by the Council that most specifically identifies the subject business shall be applied to the business. The license official shall have the authority to make the determination of the classification most specifically applicable to a subject business.

(d) A copy of the class schedule and rate schedule shall be filed in the office of the municipal clerk.
(Ord. No. 2021-082, 11-9-21)

Appendix A. Business License Rate Schedule

	INCOME: $0—$2,000	*INCOME OVER $2,000*
RATE CLASS	*BASE RATE*	*RATE PER $1,000 OR FRACTION THEREOF*
1	$60.00	$0.90
2	$65.00	$1.00
3	$70.00	$1.10
4	$75.00	$1.20
5	$80.00	$1.30
6	$85.00	$1.40
7	$90.00	$1.50
8.1	$60.00	$0.53
8.2	Set by state statute	
8.3	MASC Telecommunications	
8.4	MASC Insurance	
8.51	$12.50 + $12.50 per machine	
8.52	$12.50 + $180.00 per machine	
9.10	$200.00	$1.00
9.20	$200.00	$3.00
9.30	$100.00	$0.40
9.41	$50.00	$3.00

NON-RESIDENT RATES

Unless otherwise specifically provided, all taxes and rates shall be doubled for nonresidents and itinerants having no fixed principal place of business within the Municipality.

DECLINING RATES

Declining Rates apply in all Classes for gross income in excess of $1,000,000, unless otherwise specifically provided for in this article.

Gross Income in $ Millions	*Percent of Class Rate for each additional $1,000*
0 - 1	100%
1 - 2	90%
2 - 3	80%
3 - 4	70%
4 - 5	60%
OVER 5	50%

CLASS 8 RATES

Each NAICS number designates a separate subclassification. The businesses in this section are treated as separate and individual subclasses due to provisions of state law, regulatory requirements, service burdens, tax equalization considerations, and other factors that are

deemed sufficient to require individually determined rates. In accordance with state law, the Municipality also may provide for reasonable subclassifications for rates, described by an NAICS sector, subsector, or industry, that are based on particularized considerations as needed for economic stimulus or for the enhanced or disproportionate demands on municipal services or infrastructure.

Non-resident rates do not apply except where indicated.

8.1 NAICS 230000 - Contractors, Construction, All Types [Non-resident rates apply].

Resident rates, for contractors having a permanent place of business within the Municipality:

Minimum on first $2,000 ..... $60.00 PLUS

Each additional 1,000 .....$0.53

Non-resident rates apply to contractors that do not have a permanent place of business within the Municipality. A trailer at the construction site or structure in which the contractor temporarily resides is not a permanent place of business under this article.

No contractor shall be issued a business license until all state and municipal qualification examination and trade license requirements have been met. Each contractor shall post a sign in plain view on each job identifying the contractor with the job.

Sub-contractors shall be licensed on the same basis as general or prime contractors for the same job. No deductions shall be made by a general or prime contractor for value of work performed by a sub-contractor.

No contractor shall be issued a business license until all performance and indemnity bonds required by the Building

Code have been filed and approved. Zoning permits must be obtained when required by the Zoning Ordinance.

Each prime contractor shall file with the License Official a list of sub-contractors furnishing labor or materials for each project.

For licenses issued on a per-job basis, the total tax for the full amount of the contract shall be paid prior to commencement of work and shall entitle the contractor to complete the job without regard to the normal license expiration date. An amended report shall be filed for each new job and the appropriate additional license fee per $1,000 of the contract amount shall be paid prior to commencement of new work. Only one base tax shall be paid in a license year. Licensees holding a per-job license shall file, by each April 30 during the continuation of the construction project, a statement of compliance, including but not limited to a revised estimate of the value of the contract. If any revised estimate of the final value of such project exceeds the amount for which the business license was issued, the licensee shall be required to pay a license fee at the then-prevailing rate on the excess amount.

8.2 NAICS 482 - Railroad Companies (See S.C. Code § 12-23-210).

8.3 NAICS 517311, 517312 - Telephone Companies.

With respect to "retail telecommunications services" as defined in S.C. Code § 58-9-2200, the Municipality participates in a collections program administered by the Municipal Association of South Carolina. The Municipality has approved participation in the collections program by separate ordinance (the "Telecommunications Collections Ordinance"). The rates, terms, conditions, dates, penalties, appeals process, and other details of the business license applicable to retail telecommunications services are set forth in the Telecommunications Collections Ordinance.

8.4 NAICS 5241 and 5242 - Insurance Companies and Brokers.

Independent agents, brokers, and their employees are subject to a business license tax based on their natural class. With respect to insurers subject to license fees and taxes under Chapter 7 of Title 38 and to brokers under Chapter 45 of Title 38, the Municipality participates in a collections program administered by the Municipal Association of South Carolina. The Municipality has approved participation in the collections program by separate ordinance (the "Insurers and Brokers Collections Ordinance"). The rates, terms, conditions, dates, penalties, appeals process, and other details of the business license applicable to insurers and brokers are set forth in the Insurers and Brokers Collections Ordinance.

8.51 NAICS 713120 - Amusement Machines, coin operated (except gambling).

Music machines, juke boxes, kiddy rides, video games, pin tables with levers, and other amusement machines with or without free play feature licensed by SC Department of Revenue pursuant to S.C. Code § 12-21-2720(A)(1) and (A)(2) [Type I and Type II].

For operation of all machines (not on gross income), pursuant to S.C. Code § 12-21-2746:

Per Machine. . . . . .$12.50 PLUS

Business license $12.50

Distributors that sell or lease machines and are not licensed by the state as an operator pursuant to § 12-21-2728 are not subject to Subclass 8.51.

8.52 NAICS 713290 - Amusement Machines, coin operated, non-payout.

Amusement machines of the non- payout type or in-line pin game licensed by SC Department of Revenue pursuant to S.C. Code § 12-21-2720(A)(3) [Type III].

For operation of all machines (not on gross income), pursuant to S.C. Code § 12-21-2720(B):

Per Machine. . . . . .$180.00 PLUS

Business license. $12.50

Distributors that sell or lease machines and are not licensed by the state as an operator pursuant to § 12-21-2728 are not subject to Subclass 8.52.

CLASS 9 RATES

9.1 NAICS 423930 - Junk or Scrap Dealers [Non-resident rates apply].

Minimum on first $2,000 . . . . . $200.00 PLUS

Per $1,000, or fraction, over $2,000 . . . . . $1.00

9.2 NAICS 522298 - Pawn Brokers [All Types].

Minimum on first $2,000 . . . . . $200.00 PLUS

Per $1,000, or fraction, over $2,000 . . . . . $3.00

9.3 NAICS 4411, 4412 - Automotive, Motor Vehicles, Boats, Farm Machinery or Retail.

(except auto supply stores - see 4413)

Minimum on first $2,000 . . . . . $100.00 PLUS

Per $1,000, or fraction, over $2,000 . . . . . $0.40

One sales lot not more than 400 feet from the main showroom may be operated under this license provided that proceeds from sales at the lot are included in gross receipts at the main office when both are operated under the same name and ownership.

Gross receipts for this classification shall include value of trade-ins. Dealer transfers or internal repairs on resale items shall not be included in gross income.

NAICS 454390 - Peddlers, Solicitors, Canvassers, Door-To-Door Sales.

Direct retail sales of merchandise. [Non-resident rates apply]

9.41 Regular activities [more than two sale periods of more than three days each per year]

Minimum on first $2,000 . . . . . $50.00 PLUS

Per $1,000, or fraction, over $2,000 . . . . . $3.00

(Ord. No. 2021-082, 11-9-21)

Appendix B. Business License Class Schedule by NAICS Code

NAICS Sector/Subsector	*Industry Sector*	*Class*
11	Agriculture, forestry, hunting and fishing	2.00
21	Mining	4.00
31	Manufacturing	2.00
32	Manufacturing	2.00
33	Manufacturing	2.00
42	Wholesale trade	1.00
44	Retail trade	1.00
45	Retail trade	1.00
48	Transportation and warehousing	2.00
49	Transportation and warehousing	2.00
51	Information	4.00
52	Finance and insurance	7.00
53	Real estate and rental and leasing	7.00
54	Professional, scientific, and technical services	5.00
55	Management of companies	7.00
56	Administrative and support and waste management and remediation services	4.00
61	Educational services	4.00
62	Health care and social assistance	4.00
71	Arts, entertainment, and recreation	3.00
721	Accommodation	3.00
722	Food services and drinking places	1.00
81	Other services	5.00
23	Construction	8.10
482	Rail Transportation	8.20
517311	Wired Telecommunications Carriers	8.30
517312	Wireless Telecommunications Carriers (except Satellite)	8.30
5241	Insurance Carriers	8.40
5242	Insurance Brokers for non-admitted Insurance Carriers	8.40
713120	Amusement Parks and Arcades (per machine)	8.51
713290	Nonpayout Amusement Machines (per machine)	8.52
423930	Recyclable Material Merchant Wholesalers (Junk)	9.10
522298	Pawnshops	9.20
4411	Automobile Dealers	9.30
4412	Other Motor Vehicle Dealers	9.30
454390	Other Direct Selling Establishments (Regular Peddlers)	9.41

*This appendix will be updated every odd year based on the latest available IRS statistics. (Ord. No. 2021-082, 11-9-21)

Secs. 11-52—11-70. Reserved.

ARTICLE III. CONTRACTORS*

Sec. 11-71. Permit, indemnification and insurance requirements for work affecting streets or other public property.

(a) *Permit required; indemnification of city.* Any person who proposes to perform any activity which requires excavation, encroachment, the possibility of encroachment, or temporary use or disruption of any street, easement, public right-of-way or other property owned by or under the control of the city shall be required to obtain a permit before conducting such activity. As a condition for the issuance of such permit, the permittee shall be required to indemnify the city and its agents and employees from and against all claims, damages, losses and expenses, including attorneys' fees, arising out of or resulting from the permitted activity, whether such activity is conducted by the permittee or its agents, employees, contractors or subcontractors, and to comply with the requirements of subsection (b) of this section.

(b) *Liability insurance.*

(1) To ensure the indemnification required by subsection (a) of this section, each permittee, except utility companies regulated by the state public service commission, shall provide the city, prior to the issuance of any permit, proof of liability insurance as follows:

a. An owner's and contractor's protective liability policy issued in the name of the owner for whom the activity is to be performed, with the city named as an additional insured, in an amount not less than $300,000.00 per occurrence limit for bodily injury, personal injury and property damage, with an aggregate liability not less than $600,000.00 (Coverage shall be at least as broad as provided for in the most current version of the Insurance Services Office Form) applicable to such policy;) and

b. A separate general liability policy naming the contractor or other person who will be performing the activity as insured and also naming the city as an additional insured in an amount not less than $300,000.00 per occurrence and $600,000.00 aggregate limit for bodily injury, personal injury and property damage. (Coverage shall be at least as broad as provided for in the most current version of the Insurance Services Office Form applicable to such policy.)

(2) An applicant for a permit may elect not to provide an owner's and contractor's protective liability policy as required by subsection (b)(1)a of this section, but if such

*__Cross reference—__Buildings and building regulations, ch. 5.

election is made the limits of liability required on the general liability policy required by subsection (b)(1)b of this section shall be no less than $1,000,000.00 per occurrence and $2,000,000.00 aggregate limit for bodily injury, personal injury and property damage.

(3) An applicant for a permit may further elect not to provide any proof of liability insurance to the city as required by subsection (b)(1) or (2) of this section, but if such election is made an indemnity surety bond in an amount not less than $4,000,000.00 and approved as to surety and form by the city attorney shall be filed in lieu of the required insurance.

(4) Any insurance policy provided to the city in satisfaction of the requirements of this subsection (b) shall specifically provide that the insurer provide written notice to the city at least 30 days prior to cancellation, termination or modification of the coverage provided to the city.

(5) If it appears that the proposed activity poses unusual hazard or danger to the public, the city manager may require such additional amounts of insurance coverage as he shall deem appropriate.

(6) The insurance requirements of this section shall supersede all other such provisions in this Code.

(c) *Contractors working for city.*

(1) Contractors performing construction, maintenance or repair work for the city are required to provide proof of liability insurance as follows:

a. An owner's and contractor's protective liability policy issued in the name of the city, in an amount not less than $2,000,000.00 per occurrence limit for bodily injury, personal injury and property damage, with an aggregate liability not less than $2,000.000.00. (Coverage shall be at least as broad as provided for in the most current version of the insurance services office form applicable to such policy);

b. A separate general liability policy naming the contractor or other person who will be performing the activity as insured and also naming the city as an additional insured in an amount not less than $1,000,000.00 per occurrence and $2,000,000.00 aggregate limit for bodily injury, personal injury, property damage and products completed operations. (Coverage shall be at least as broad as provided for in the most current version of the Insurance Services Office Form applicable to such policy); and

c. An excess liability policy naming the contractor or other person who will be performing the activity as insured and also naming the city as an additional insured in an amount not less than $2,000,000.00 for bodily injury, personal injury, property damage and products completed operations. (Coverage shall be at least as broad as provided for in the most current version of the Insurance Services Office Form applicable to such policy.)

(2) Any insurance policy provided to the city in satisfaction of the requirements of this subsection (c) shall specifically provide that the insurer provide written notice to the city at least 30 days prior to cancellation, termination or modification of the coverage provided to the city.

(3) The city manager, or his designee, may require such additional amounts of insurance coverage as he shall deem appropriate under the particular circumstances of the construction, maintenance or repair work to be performed.

(4) Contractors are also required to comply with any other or additional indemnification or insurance requirements as may be stated in the bid documents or their contract with the city.

(d) *Continuing encroachments.* Continuing encroachments into, over or under the streets, rights-of-way or other property owned or controlled by the city shall be authorized only by ordinance duly enacted by the city council. Insurance and indemnification requirements for such continuing encroachments shall be as specified in each authorizing ordinance; provided, however, that for encroachments granted by ordinance prior to December 1, 1987, each such ordinance is hereby amended to require proof of continuous general liability insurance naming the city as an additional insured in an amount not less than $600,000.00 per occurrence.

(e) *Outdoor dining encroachments.* The city manager is authorized to approve outdoor dining encroachments as set out by the policy and procedures for outdoor dining as adopted by city council.

(Code 1979, §§ 6-2002—6-2005; Ord. No. 2005-133, 1-11-06; Ord. No. 2006-012, 4-12-06; Ord. No. 2014-096, 12-20-14; Ord. No. 2019-085, 12-3-19)

Sec. 11-72. License; identification decals.

(a) Before any individual or business entity shall engage in any part or segment of the building business within the city, they shall have obtained an appropriate business license from the city.

(b) In addition to an appropriate business license, those individuals or entities qualified to perform work in the city in the electrical, plumbing and mechanical trades will be required to purchase identification decals bearing the letter "M."

(c) In addition to an appropriate business license, those individuals or entities licensed by the State of South Carolina to perform contracting work in the city will be required to purchase license identification decals bearing the letter "G."

(d) In addition to an appropriate business license, those individuals or entities qualified to perform work in the city in a construction trade will be required to purchase identification decals bearing the letter "S."

(e) License identification decals will be displayed conspicuously on the front and rear of each and every vehicle at the job site used in the performance of the construction or service trades in the city.

(f) License identification decals will be issued annually by the business license department at a cost of $5.00 per set.

(g) The term "building business," as used in this article, includes but is not limited to work performed in the plumbing, electrical, gas, mechanical, building, construction, roofing, renovation, grading, paving, demolition and fencing trades.
(Code 1979, § 6-2006; Ord. No. 2002-065, 11-6-02)

Sec. 11-73. Technical qualifications.

Whosoever desires to engage in any facet of the building business within the city, where that business requires a building permit, shall present evidence acceptable to the building official as to his or her qualifications before the city may issue that permit. Minimally, such evidence shall be those current licenses, certifications, and/or qualifications listed on Table 1 unless otherwise exempted by state statute.

Table 1. Minimum Current Licenses, Certifications, and/or Qualifications Required to Receive a Permit within the City of Columbia**

	Issuing Agency				
	SC Department of Labor, Licensing, and Regulation			Municipal Association of South Carolina	City of Columbia
Type of Work, Generally	General Contractors License	Mechanical Contractors Lcense	Residential Home Builders License	Masters Certification Card	Technical Qualification Card
Residential Construction, No Trades*			x		
Residential Trades*				x	x
Commercial Construction, No Trades*	x				
Commercial Trades*, < $5,000				x	x

Commercial Trades*, > $5,000		x			x

NOTES:
x Means that, at a minimum, the respective license, certification, and/or qualification is required.
* "Trades" includes, but is not limited to, gas, electrical, mechanical, HVAC, plumbing, pipefitting, and sheet metal work.
** In accordance with state statute, a person registered as a residential specialty contractor with the state is not a licensed contractor.

The individual may be required to provide such other evidence as deemed necessary by the building official to establish that he or she is competent to perform the specified work. A person registered as a residential specialty contractor within the siding installer classification may be issued a permit to install or repair exterior siding, a person registered as a residential specialty contractor within the roofer classification may be issued a permit to repair or replace roof coverings, and a person registered as a residential specialty contractor within the carpentry classification may be issued a permit to construct or repair decks, in each case so long as the cost of the materials and labor for the work does not exceed $5,000.00.
(Code 1979, § 6-2007; Ord. No. 2010-117, 8-4-10)

Secs. 11-74—11-100. Reserved.

ARTICLE IV. HEALTH CLUBS AND MASSAGE PARLORS

Sec. 11-101. Purpose of article.

The purpose of this article is to protect the general health, safety, welfare and morals of the public by the regulation of businesses, trades or professions commonly known as health clubs, massage parlors, spas, physical culture clubs and similar establishments, and the persons therein engaged in the bathing, physical treatment or manipulation of the human body, commonly known as massage, by prescribing minimum health standards, and to define and prohibit certain lewd conduct therein as being unlawful and a public nuisance.
(Code 1979, § 9-7001)

Sec. 11-102. License.

Any person desiring to engage in the operation of a health club, massage parlor, spa, physical culture club or similar establishment shall, before engaging in such business, obtain a city business license, which may be issued only upon presentation of a certificate of compliance with this article issued by the health department and compliance with the city zoning ordinance, fire prevention code, building code and business license ordinances.
(Code 1979, § 9-7002)

State law reference—Licensing by state law enforcement division, forwarding to local governing body, S.C. Code 1976, § 40-29-50.

Sec. 11-103. Certificate of compliance.

(a) Any applicant for a business license as provided for in section 11-102 must obtain a certificate of compliance with this article from the health department by submission of an application which shall contain written evidence that all applicable health ordinances, rules and regulations of the city have been met, including the following:

(1) The application shall contain the correct legal name and address of the owner or principal officer of the owner, the proposed business location within the city, the manager at that location, and the owner of the real property at that location.

(2) The applicant shall list the names and addresses of all other similar businesses owned or operated by the applicant within the city.

(3) A complete description of the building, proposed use of space therein, equipment and facilities shall be furnished.

(4) The name, address, history of past similar experience, and health history, including detailed information on any past or present communicable disease, shall be furnished for each person who will engage in giving massages or baths in the business, and the same information shall be furnished for each new employee prior to the giving of a massage or bath by such employee.

(5) A list of all previous convictions within the preceding ten years for violations of health, prostitution, obscenity or lewdness laws, rules or regulations of any jurisdiction shall be furnished for each applicant and each employee.

(6) A health certificate of a medical doctor dated within one month of the date of the application and based upon actual physical examination, including a chest X-ray and serological test for syphilis, shall be furnished for each person who will engage in giving massages or baths. Such certificate shall be renewed at least each six months thereafter and shall be displayed in the work area of the certificate holder.

(b) The contents of the application for a certificate of compliance shall be considered a part of the application for a business license.
(Code 1979, § 9-7003)

Sec. 11-104. Health regulations.

The city shall promulgate rules and regulations related to sanitation of the premises and equipment, the hygiene of persons giving massages or baths, and the minimum required lavatory, bath, toilet, ventilation, plumbing and electrical equipment and facilities for the safe and healthy operation of an establishment to be licensed pursuant to section 11-102. Compliance with such rules and regulations shall be a prerequisite to the issuance of the certificate required by section 11-103.
(Code 1979, § 9-7004)

Sec. 11-105. Patronage by minors.

(a) It shall be unlawful for any person under the age of 18 years to receive a massage or bath of any portion of the body in any establishment licensed as provided for in section 11-102 without a written prescription for such treatment signed by a licensed physician.

(b) It shall be unlawful for any person to give a massage or bath to any portion of the body of a person under the age of 18 years in any establishment licensed as provided for in section 11-102 without a written prescription for such treatment signed by a licensed physician. It shall be the duty of the operator of the business to determine the age of the person served.
(Code 1979, § 9-7005)

Sec. 11-106. Prohibited services and facilities.

No person working in an establishment licensed pursuant to section 11-102 shall:

(1) Allow any portion of the premises to be used for or have direct access to any sleeping quarters, bedroom, kitchen or restaurant; or

(2) Engage in or permit the sale, distribution or exhibition of any printed matter, film, recordings or photographs on the premises without a separate business license;

(3) Engage in or permit any live entertainment, modeling or demonstrations on the premises without a separate business license; or

(4) Engage in or permit the sale, distribution or consumption of any goods, products, wares, devices, merchandise, wearing apparel, beauty products, medication, hygiene aids, tobacco products, beverages, or similar or related products without a separate business license, except nonalcoholic beverages served to patrons without charge and lotions, ointments and cleansing materials actually used in a bath or massage on the premises without additional charge.

(Code 1979, § 9-7006)

Sec. 11-107. Lewd acts prohibited.

(a) Any act performed within an establishment licensed as provided for in section 11-102 which involves the touching of the genitals of a person for the purpose of sexual arousal or masturbation is a lewd act and is unlawful and prohibited. All parties to such an act shall be subject to prosecution for a misdemeanor, punishable, upon conviction, in accordance with section 1-5.

(b) Any establishment in which a lewd act as defined in subsection (a) of this section is performed is hereby declared to be a public nuisance subject to abatement as provided by law for bawdy houses and places used for lewdness. This remedy shall be cumulative to license revocation procedures and the imposition of penalties provided by law.

(Code 1979, §§ 9-7007, 9-7008)

Sec. 11-108. Inspections.

Representatives of the police department, building and inspection divisions, community development department, fire department and business license division of the finance department shall be permitted at all reasonable times to enter premises licensed under this article for the purpose of inspecting for any public health or safety hazards or nuisances, and for possession of required licenses and certificates. A written report of any such inspection shall be furnished to the operator of the business and the owner of the real property, noting any conditions which require correction. Failure to correct any noted condition within 24 hours after notice shall constitute grounds for revocation of the business license, in addition to other penalties provided by law or action to abate nuisances.

(Code 1979, § 9-7009)

Sec. 11-109. Posting of regulations.

The entire contents of this article and all rules and regulations promulgated by the city physician pursuant to this article shall be posted in a conspicuous place in the reception area of each establishment licensed pursuant to section 11-102.
(Code 1979, § 9-7010)

Sec. 11-110. Penalties.

The violation of any provision of this article shall be a misdemeanor, punishable in accordance with section 1-5. Conduct of business contrary to the provisions of this article shall be grounds for revocation of the business license upon a showing to the business license division that such conduct is contrary to the health, safety, welfare or morals of the people of the city.
(Code 1979, § 9-7011)

Secs. 11-111—11-130. Reserved.

ARTICLE V. JUNK AND SECONDHAND DEALERS*

Sec. 11-131. Transactions with minors.

No keeper of any junk shop shall himself, or through any other person, either directly or indirectly, purchase or receive, by way of barter or exchange, any of the articles mentioned in this article, from any minor, without the written permission of the parent, guardian of any such minor, which written permission shall be filed and produced whenever required by any person authorized to inspect such shops.
(Code 1979, § 2-5021)

Sec. 11-132. Hours.

Junk shops shall not be kept open for the purchase of any of the articles mentioned in this article, nor shall any purchase be made by the keeper of any such shop, or by any person for him, except between sunrise and sunset.
(Code 1979, § 2-5022)

Sec. 11-133. Required records.

Every person licensed as a junk or secondhand dealer shall keep a book in which shall be written, at the time of every purchase or barter at his place of business, the name and residence of the person from whom an article was purchased by him and the hour and date of purchase.
(Code 1979, § 2-5023)

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*__Cross references—__Environmental health and sanitation, ch. 8; pawnbrokers, § 11-161 et seq.

Sec. 11-134. Reports of purchases.

Every person licensed as a junk or secondhand dealer shall make a report to the chief of police by 11:00 a.m. every day, Sunday excepted, concerning purchases made by him since his last report.
(Code 1979, § 2-5024)

Sec. 11-135. Inspection of records.

All records kept by any person licensed as a junk or secondhand dealer shall at all times be subject to the inspection of the license inspector, the chief of police or any person duly authorized by them to inspect such records.
(Code 1979, § 2-5025)

Sec. 11-136. Retention of purchased articles.

Every article purchased by a licensed junk or secondhand dealer shall be retained in stock by such dealer subject to inspection for at least 48 hours after the purchase thereof.
(Code 1979, § 2-5026)

Sec. 11-137. Inspection of premises.

All junk shops shall be subject at all times to inspection by the chief of police or any person duly authorized.
(Code 1979, § 2-5027)

Sec. 11-138. Suspension or revocation of license.

Any license issued to junk and secondhand dealers may be suspended or revoked by the city council for the violation by the licensee of any applicable provision of this Code, state law or city ordinance, rule or regulation.
(Code 1979, § 2-5028)

Secs. 11-139—11-160. Reserved.

ARTICLE VI. PAWNBROKERS*

DIVISION 1. GENERALLY

Sec. 11-161. Required records.

Every pawnbroker doing business within the city shall keep a book in which shall be plainly written, at the time of every pledge, the name of the person and a description of the articles

***Cross reference—**Junk and secondhand dealers, § 11-131 et seq.

State law reference—Pawnbrokers generally, authority of municipalities to license such activities, S.C. Code 1976, § 40-39-10 et seq.

pledged, giving a full description of the articles pledged, the maker, number, brand, monogram or letters of any kind on such articles so pawned or bought by such dealers, and the name of the person from whom received.
(Code 1979, § 2-5001)

Sec. 11-162. Reports of articles purchased or received.

Each pawnbroker shall furnish to the chief of police every morning a list of every article taken in pawn or bought by him.
(Code 1979, § 2-5002)

Sec. 11-163. Inspection of records.

The records and books of every pawnbroker doing business within the city shall at all times be subject to the inspection of the chief of police or any other duly authorized person.
(Code 1979, § 2-5003)

Sec. 11-164. Fingerprints and other information to be obtained from persons pawning articles.

(a) In addition to the owner's records and information called for to obtain a license, each pawnbroker shall obtain from each person pawning any article with that pawnbroker the fingerprint of the righthand index finger, unless that finger is missing, in which event the print of the next finger in existence on the right hand of the person pawning the article shall be obtained with a notation as to the exact finger printed. All prints shall be made on forms to be furnished by the bureau of police services, and the pawnbroker shall obtain all other information called for on the form furnished. Fingerprints and the information as required in this section shall be obtained from all persons each time the persons pawn any article with a pawnbroker, regardless of whether or not those persons may have previously pawned an article with the pawnbroker and been fingerprinted.

(b) The provisions of subsection (a) of this section need not be complied with where the pawnbroker knows personally the person pawning the article or can identify within 90 days after the transaction the person pawning the article.
(Code 1979, § 2-5004)

Secs. 11-165—11-180. Reserved.

DIVISION 2. LICENSE

Sec. 11-181. Required.

It shall be unlawful for any person to do business as a pawnbroker within the city without first obtaining a license so to do from the city.
(Code 1979, § 2-5011)

Sec. 11-182. Identification sign.

Every person who shall obtain a pawnbroker's license shall put on or over the principal entrance to his shop a sign designating that he is licensed, and containing his name.
(Code 1979, § 2-5012)

Sec. 11-183. Suspension or revocation.

Any license issued under the provisions of this division may be suspended or revoked by the city council for the violation by the licensee of any applicable provision of this Code, state law or city ordinance, rule or regulation.
(Code 1979, § 2-5013)

Secs. 11-184—11-210. Reserved.

ARTICLE VII. PEDDLERS AND SOLICITORS*

DIVISION 1. GENERALLY

Sec. 11-211. Sales in or near city parks or places of amusement.

It shall be unlawful for any person to sell, barter or exchange any goods, wares or merchandise in, on or about any of the public parks, playgrounds, swimming pools or places of amusement owned or operated by the city.
(Code 1979, § 8-3001)

Secs. 11-212—11-230. Reserved.

DIVISION 2. CHARITABLE SOLICITATIONS†

Sec. 11-231. Definitions.

(a) The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Solicit and *solicitation* mean the request, directly or indirectly, of money, credit, property, financial assistance or other thing of value on the plea or representation that such money, credit, property, financial assistance or other thing of value will be used for a charitable

*__State law reference—__*Peddlers and itinerant tradesmen, S.C. Code 1976, §§ 40-41-70, 40-41-80.

†__State law reference—__Charitable Funds Solicitation Act, S.C. Code 1976, § 33-55-10 et seq.

purpose as those purposes are defined in this section. These words shall also mean and include, but shall not be limited to, the following methods of securing such money, credit, property, financial assistance or other thing of value:

(1) Any oral or written request;

(2) The making of any announcement to the local press, radio or television, or by telephone, concerning a local appeal or campaign to which the public is requested to make a contribution for any charitable purpose connected therewith;

(3) The distribution, circulation, posting or publishing of any handbill, written advertisement or other local publication; and/or

(4) The sale of, or the offer or attempt to sell, any advertisement, advertising space, book, card, chance, coupon, device, lapel button, membership, merchandise, subscription, ticket or other thing.

Solicitation shall be deemed to have taken place when the request is made, whether or not the person making the request received any contribution referred to in this section.

(b) The definitions of other terms used in this division shall be as defined in the Solicitation of Charitable Funds Act of the State of South Carolina (S.C. Code 1976, § 33-55-10 et seq.).
(Code 1979, § 8-3011)

Cross reference—Definitions generally, § 1-2.

Sec. 11-232. Registration and permit required.

(a) No person shall solicit contributions within the city unless the person or charitable organization for whom the contributions are solicited shall have complied with the requirements of the Solicitation of Charitable Funds Act of the State of South Carolina and shall have filed proof of such compliance with the city business license division.

(b) The requirement of proof of compliance established in this section may be satisfied by filing with the business license division certification of registration or of exemption provided by the public charities division of the office of the secretary of state.
(Code 1979, § 8-3012)

Sec. 11-233. Business license.

Compliance with the provisions of this division shall not relieve any person of the duty to comply with the applicable requirements of article II of this chapter, concerning business and professional licenses.
(Code 1979, § 8-3013)

Secs. 11-234—11-250. Reserved.

DIVISION 3. SIDEWALK VENDING*

Sec. 11-251. Findings.

(a) The primary purpose of the public streets and sidewalks is the use by vehicular and pedestrian traffic.

(b) Vending on the public sidewalks promotes the public interest by contributing to an active and attractive pedestrian environment.

(c) Reasonable regulation of sidewalk vending is necessary to protect the public health, safety and welfare.

(d) The regulations contained in this division do not prohibit free speech but merely regulate activities which are commercial in nature.

(e) The granting of franchises for the use of public streets and the making of charges therefor are authorized by S.C. Code 1976, § 5-7-30, and are subject to such conditions as the council may impose to protect the public interest, welfare and convenience.
(Ord. No. 2002-066, 8-21-02)

Sec. 11-252. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Cart means any portable vending device, pushcart or other wheeled vehicle or device which may be moved without the assistance of a motor and which is not required to be licensed and registered by the department of motor vehicles, used for the displaying, storing or transporting of articles offered for sale by a vendor, and which does not exceed four feet in width, six feet in length, and five feet in height, excluding canopy or cover.

Vending district means the zone or area specifically designated for vending franchises.

Vendor means any person engaged in the selling, or offering for sale, of food, beverages or merchandise on the public streets or sidewalks, from a cart.
(Ord. No. 2002-066, 8-21-02)

Sec. 11-253. Permitted merchandise.

No merchandise shall be sold by a vendor from a cart in a vending district except the merchandise approved for the specific location of the cart. Permitted merchandise shall be limited to hot dogs, sausages, hamburgers, tacos, burritos, baked potatoes, bagels, pastries,

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***Editor's note—**Ord. No. 2002-066, adopted Aug. 21, 2002, amended former Div. 3, §§ 11-251—11-263, in its entirety to read as herein set out. Former Div. 3 pertained to the same subject matter and derived from the Code of 1979.

Cross reference—Streets, sidewalks and other public places, ch. 22.

candy, prepackaged sandwiches, chips, biscuits, popcorn, nuts, pretzels, ice products, ice cream, milk products, frozen yogurt, hot and cold beverages containing no alcohol, flowers, and items related to permitted merchandise.
(Ord. No. 2002-066, 8-21-02; Ord. No. 2003-005, 1-15-03)

Sec. 11-254. Franchise and license required; franchise fee; transfer of franchise.

(a) It shall be unlawful to sell, or offer for sale, any food, beverage or merchandise on any street or sidewalk within the city from a cart without first obtaining a franchise and business license therefor.

(b) A nonexclusive franchise for not more than one year may be granted for the operation of one or more carts at locations specified by resolution of city council within a vending district prior to the acceptance of applications for a franchise. Notice of availability and nature of franchises shall be given by conspicuously posting at least one notice at the proposed location. At least one such notice shall be visible from each public thoroughfare that is within 100 feet of the proposed location. Such notice shall be posted 15 days prior to the public hearing.

(c) An annual franchise fee of $300.00 per location shall be paid in advance. One business license for each franchisee shall be required at the applicable rate pursuant to Article II of this chapter.

(d) A franchise may not be transferred in any manner. Sale of a majority of stock in a corporate franchisee by stockholders listed on the franchise application or sale of a majority interest in a partnership as listed on the franchise application shall be deemed a transfer of the franchise which is prohibited.

(e) The provisions of this division shall not apply to festivals, community projects or public events which occur on a periodic basis and which are specifically approved by the city council.
(Ord. No. 2002-066, 8-21-02; Ord. No. 2009-084, 9-16-09)

Sec. 11-255. Application to business license division for franchise.

The application to the business license division for a vendor's franchise include the following information:

(1) The name, home and business address of the applicant, and the name and address of the owner, if other than the applicant, of the cart to be used in the operation of the vending business.

(2) A description of the type of food, beverage or merchandise to be sold.

(3) A list of the proposed location of the vending cart for which a franchise is sought.

(4) A description and photograph or drawing of the cart proposed to be used.

(5) The location and description of off-street cart storage facilities.

(6) The method and routes for transporting carts to and from sidewalk locations and storage facilities.

(7) The names, addresses and percentage of stock owned by shareholders in a corporate applicant, and the percentage interest of each partner in a partnership applicant.

(8) Such other information as the applicant may choose or as may be requested by the city council to demonstrate that the applicant has the financial ability to perform the conditions of a franchise.

(Ord. No. 2002-066, 8-21-02)

Sec. 11-256. Issuance of franchise.

(a) The franchise required by section 11-254 shall be issued by ordinance in accordance with section 2-81. Any franchise issued pursuant to this division shall be subject to modification by ordinance at any time deemed necessary by the council for protection of public interests. Any franchise shall be granted as a privilege and not as a matter of right. Vending at any location may be temporarily suspended or relocated by the city manager upon reasonable notice when private or public construction or activities of the city make it unsafe or impractical to allow vending.

(b) In determining the acceptability of an application, the council may consider any factors presented in the application, at a public hearing, or in any staff report or investigation of matters related to the past record and ability of the applicant to perform conditions of this division and the franchise agreement in a manner which serves the public interests.

(c) Not later than 30 days after the filing of a completed application for a vendor's franchise, the applicant shall be notified by the city manager of the date of a public hearing before a decision on the issuance or denial of the franchise.

(d) It will be presumed that the owner of a food service business selling the same merchandise approved for a location within 50 feet of the principal public entrance to the food services business area can best serve the public convenience and interests. If two or more equally acceptable applications for the same location are received, the earliest application, if approved, shall be awarded the franchise. If the franchise is denied pursuant to section 11-262, the applicant shall be provided with a statement of the reasons therefor entered in writing on the application.

(Ord. No. 2002-066, 8-21-02)

Sec. 11-257. Evidence of compliance with health and fire regulations; insurance.

(a) A certificate of inspection or compliance as required by applicable health regulations and evidence of compliance with the fire code shall be filed with the city clerk before any sales are made from carts.

(b) Proof of an insurance policy, issued by an insurance company licensed to do business in the state, protecting the owner and the city from all claims for damages to property and bodily injury, including death, which may arise from operations under or in connection with the owner, shall be filed with the city clerk prior to use of the franchise and annually. Such policy shall be a general liability policy naming the franchisee as insured in an amount not less than

$500,000.00 per occurrence and $1,000,000.00 aggregate combined single limit for bodily injury, personal injury and property damage. The policy shall specifically provide that the insurer shall provide written notice to the city at least 30 days prior to cancellation, termination or modification of the coverage provided to the city.
(Ord. No. 2002-066, 8-21-02)

Sec. 11-258. Prohibited locations.

No cart location in a vending district shall be:

(1) Within 50 feet of the principal public entrance to any food service business area not owned by the vendor which sells merchandise approved for sale by a vendor.

(2) At any location which does not provide a clear passageway for pedestrians of at least four feet in width.

(3) Within ten feet of an entranceway to any building.

(4) Within 50 feet of any driveway entrance to a police or fire station, or within 25 feet of any other driveway.

(5) At any location where it would obstruct pedestrian traffic at crosswalks or sight clearance at intersections.

(6) Within 25 feet of any bus stop sign.

(Ord. No. 2002-066, 8-21-02)

Sec. 11-259. Prohibited conduct.

No vendor shall:

(1) Vend on any street or sidewalk where vending is otherwise prohibited.

(2) Vend between 11:00 p.m. and 6:00 a.m. of the following day.

(3) Leave any cart unattended.

(4) Store, park or leave any cart overnight on any street or sidewalk.

(5) Sell food or beverages for immediate consumption unless there is a litter receptacle which is available for patrons' use.

(6) Leave any location without first picking up, removing and disposing of all trash or refuse remaining from sales made by the vendor.

(7) Allow any items relating to the operation of the vending business to be placed anywhere other than in, on or under the cart.

(8) Set up, maintain or permit the use of any table, crate, carton, rack or other device to increase the selling or display capacity of his cart.

(9) Solicit or conduct business with persons in motor vehicles.

(10) Sell anything other than that for which a franchise and license to vend have been issued.

(11) Sound or permit the sounding of any device which produces a loud and raucous noise, or use or operate any loudspeaker, public address system, radio, sound amplifier or similar device to attract the attention of the public.

(12) Vend without the insurance coverage specified in section 11-257.

(13) Allow the stand or any other item relating to the operation of the vending business to lean against or hang from any building or other structure lawfully placed on public property, without the owner's permission.

(Ord. No. 2002-066, 8-21-02)

Sec. 11-260. Advertising.

No advertising shall be permitted on any cart except to identify the name of the product or the name of the vendor, and the posting of prices.
(Ord. No. 2002-066, 8-21-02)

Sec. 11-261. Renewal of franchise.

All franchises granted under this division are valid for the entire franchise period unless revoked or suspended prior to expiration. An application to renew a franchise shall be made not later than 60 days before the expiration of the current franchise.
(Ord. No. 2002-066, 8-21-02)

Sec. 11-262. Denial, suspension or revocation of franchise.

Any franchise granted under this division may be denied, suspended or revoked by the council for any of the following reasons:

(1) Fraud or misrepresentation contained in the application for a franchise.

(2) Fraud or misrepresentation made in the course of carrying on the business of vending.

(3) Conduct of the franchised business in such manner as to create a public nuisance or constitute a danger to the public health, safety, welfare or morals.

(4) Conduct which is contrary to the provisions of this division or the franchise.

(5) Failure to use the franchise fully in accordance with its terms within 90 days after notice of the grant of franchise, or within 15 days after notice of non-use, during the term of the franchise.

(6) Failure to qualify for a business license or determination that any condition in section 11-44 or 11-45 exists.

(7) A determination that the applicant is not able or qualified, by reason of background, medical limitations, financial condition or conditions related to the vending business, to render acceptable service to the public pursuant to this division.

(8) A determination that a more qualified applicant for the same location will accept a franchise.

(9) A determination that no franchise should be granted to any applicant and that a location should be removed from the vending district approved list.

(Ord. No. 2002-066, 8-21-02)

Secs. 11-263—11-290. Reserved.

ARTICLE VIII. SALES

DIVISION 1. GENERALLY

Secs. 11-291—11-310. Reserved.

DIVISION 2. GARAGE SALES

Sec. 11-311. Definition.

For purposes of this division, a garage sale is defined to mean the sale of any new or used personal property, which sale is conducted on or about the premises of a private residence or in any zoning area that permits single-family residential use, by any resident or residents of a neighborhood, one of whom must be the occupant of the premises, and which sale is open to the public.

(Code 1979, § 8-4001)

Cross reference—Definitions generally, § 1-2.

Sec. 11-312. Permit.

It shall be unlawful for anyone to conduct a garage sale in the area described in section 11-311 without first obtaining a permit from the license inspector of the city for each sale, and such permit shall be posted at the site of the sale. The cost of each permit is to be $5.50. The maximum period of each permit is two consecutive days, not to include Sunday. The maximum number of permits allowed per year is two for any one family unit, location, lot or premises. All participants in any joint sale must be named on the permit.

(Code 1979, § 8-4002)

Sec. 11-313. Parking requirements.

Parking shall be provided for all persons attending a garage sale in a manner that would not affect the free flow of traffic on a public street near the garage sale.

(Code 1979, § 8-4003)

Sec. 11-314. Reselling merchandise.

No new or used merchandise shall be purchased or brought for resale onto the premises for a sale permitted under this division.

(Code 1979, § 8-4004)

Sec. 11-315. Signs.

Only one non-illuminated sign, not to exceed two square feet, may be posted advertising a garage sale, and such sign may only be placed on the property where the sale is being conducted under this division.
(Code 1979, § 8-4005)

Sec. 11-316. Hours; sales on Sunday.

A garage sale shall be limited to the hours between 8:00 a.m. and 8:00 p.m. No Sunday sales will be allowed under this division.
(Code 1979, § 8-4006)

Sec. 11-317. Use of public address systems.

The use of a public address system is prohibited at garage sales.
(Code 1979, § 8-4007)

Sec. 11-318. Alcoholic beverages.

Alcoholic beverages of any type shall not be served or given on or near the premises where a garage sale is held.
(Code 1979, § 8-4008)

Sec. 11-319. Display of goods.

Goods for sale at a garage sale shall not be displayed on public property, neither shall such goods be displayed on private property in a manner which will materially impede visibility of pedestrian or vehicular traffic on or off the premises.
(Code 1979, § 8-4009)

Sec. 11-320. Inspections.

For the purpose of enforcing the provisions of this division, the city and its proper nominees, representatives and employees shall have the right of entry to any premises showing evidence of a garage sale and may close the premises from such a sale where any provisions of this division are being violated.
(Code 1979, § 8-4010)

Sec. 11-321. Penalty.

Violation of this division or failure to comply with any of its provisions shall be a misdemeanor, punishable, upon conviction, in accordance with section 1-5. Each day such violation continues shall be considered a separate offense.
(Code 1979, § 8-4011)

Secs. 11-322—11-340. Reserved.

DIVISION 3. DISCONTINUANCE OF BUSINESS SALES

Sec. 11-341. Restriction on stock offered for sale.

The stock offered for sale by any person under the designation of "closing out sale," "going out of business sale," "discontinuance of business sale" or "removal sale," or under any other description of like meaning, not involving bankruptcy or insolvency, shall be held to include only the goods, wares, furniture, fixtures, jewelry, merchandise or personal property actually in the stock or place of business of the person conducting the sale, at the opening of the sale.
(Code 1979, § 8-4041)

Sec. 11-342. Adding to stock.

It shall be unlawful to add to the stock, under the provisions of this division, by shipping in or bringing in goods, wares or merchandise from other sources, unless such replenishment is publicly advertised or clearly indicated as such by items.
(Code 1979, § 8-4042)

Sec. 11-343. Filing of inventory; bond.

Before commencing a sale as described in this division, the person conducting it shall file with the city clerk a complete inventory of the items described in section 11-341 and shall also file with the city clerk a good and sufficient bond for the sum of $1,000.00 guaranteeing compliance with the provisions of this division.
(Code 1979, § 8-4043)

Sec. 11-344. Change of ownership not to affect status of sale.

No change of ownership of the goods, wares, furniture, fixtures, jewelry, merchandise or personal property offered in sale as prescribed in this division and no change of ownership of the capital stock of a corporation conducting such a sale shall affect the status of the sale as governed by this division.
(Code 1979, § 8-4044)

Sec. 11-345. Misrepresenting sales.

Any person advertising by newspapers, radio, posters or otherwise, representing that he is operating, offering or maintaining fire sales, wreck sales, bankrupt sales, closing out or going out of business sales, removal sales and similar businesses, whereby the public is led to believe that they are being offered merchandise at reduced rates on account of fires, wrecks, bankruptcies, or closing out or discontinuance of business, when in fact such sales are not bona fide, but are fakes and frauds, and the advertisements and representations are untrue and false, shall be held to be guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5, and each day that such sale or business is conducted in violation of the terms of this section shall constitute a separate offense.
(Code 1979, § 8-4045)

Secs. 11-346—11-360. Reserved.

DIVISION 4. BANKRUPTCY, INSOLVENT AND FIRE SALES*

Sec. 11-361. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bankrupt stock and *stock of an insolvent* mean any stock of goods, wares, merchandise, furniture, fixtures, jewelry or personal property of any nature acquired from the trustee or referee in bankruptcy, a receiver or assignee, and this division shall apply whether the person actually conducting the sale acquired the stock of goods, wares, merchandise, furniture, fixtures, jewelry or personal property from the trustee, referee, receiver or assignee or from any other person if the stock is offered to the public in the manner described in this division at any time within six months from the date title passed out of the referee, receiver, trustee, assignee or other person, and shall include any stock of goods, wares, merchandise, furniture, fixtures or jewelry which shall be sold or offered for sale in any other way than through the usual channels of trade.

Down hill selling means the first offering of an article at a higher price and then offering the article at a successive lower price.

Fire stock means any goods, wares, furniture, fixtures, jewelry or merchandise which is or has been damaged by fire, or which is or has been claimed to have been damaged by fire, or which is or has been or which is claimed to be or have been sold or purchased on account of any fire.

Selling at auction and *auction sale* mean the offering for sale of personal property to the highest bidder, or offering for sale or selling of such property by the method known as down hill selling.

(Code 1979, § 8-4021)

Cross reference—Definitions generally, § 1-2.

Sec. 11-362. Special license tax.

Every person who shall take over or become the owner of or manager of any bankrupt stock of merchandise or stock of merchandise of an insolvent, or fire stock of merchandise, or wares which have been damaged or claimed to have been damaged by fire or purchased on account of fire, and who shall thereafter offer the stock or wares or any portion of the stock or wares for sale to the public in a manner commonly known as a bankruptcy sale or in the manner commonly known as an insolvency sale, or in a manner commonly known as a fire sale, or under any other designation, shall, before offering such merchandise for sale to the public, pay

*__State law reference—__Authority to regulate auction sales of personalty, S.C. Code 1976, § 39-1-60.

a special license tax in an amount equal to five percent of the invested capital paid to the assignee, receiver, trustee in bankruptcy or other person from whom such stock of goods was acquired.
(Code 1979, § 8-4022)

Sec. 11-363. Inventory and affidavit.

(a) *Inventory required; contents.* Before any person shall, within the city, conduct any sale of goods, wares, furniture, fixtures, jewelry, merchandise or personal property of any nature as defined in this division, such person shall file in the office of the city clerk an inventory of the goods or property, duly sworn to, setting forth the quality, quantity, kind or grade of the items thereon.

(b) *Affidavit required.* Attached to the inventory as required by the provisions of this division shall be an affidavit reflecting that the inventory is in all respects true and correct.

(c) *Person to make affidavit.* In the case of an individual, the required affidavit shall be made by him as such. In the case of a firm, the affidavit shall be made by one of the partners. In the case of a corporation, the affidavit shall be made by the president or general manager, or secretary or treasurer.

(d) *Filing.* The inventory and affidavit required by this division shall be kept on file as part of the public records of the city clerk.
(Code 1979, §§ 8-4023—8-4026)

Sec. 11-364. Additions to stock.

It shall be unlawful for any person to add to the stock of merchandise, goods, wares, furniture, fixtures, jewelry or property from any source whatsoever and advertise the stock as a bankrupt stock or as an insolvent stock or as a fire stock or to offer for sale any goods, wares, merchandise, furniture, fixtures, jewelry or personal property along with the original stock or in the same building which were not a part of the original bankrupt stock or insolvent stock or fire stock.
(Code 1979, § 8-4027)

Sec. 11-365. Bond.

(a) *Required; amount.* In addition to paying the tax as provided in section 11-362, every person so conducting a bankrupt sale, insolvency sale, fire sale or auction sale, as provided in this division, shall, before commencing such sale, file with the city clerk a good and sufficient bond in the sum of $1,000.00.

(b) *Approval and conditions.* The bond required by the provisions of this division shall be approved by the city clerk to the effect that such person conducting such sale will not mislead the public by any false or untrue advertising, or by holding back and not offering for sale any part of such stock, or by shipping in or bringing in from other sources goods or merchandise in such manner as the public may be led to believe that such additional goods and merchandise,

so shipped in or brought in, were part of the original stock, and to the further effect that such person so conducting such sale will not in any manner mislead, cheat or defraud or attempt to cheat, mislead or defraud the public in the conduct of the sale.
(Code 1979, §§ 8-4028, 8-4029)

Sec. 11-366. Exemptions.

The provisions of this division shall not extend to judicial sales, sales under execution, or bona fide executors' or administrators' sales, or to sales at auction where merchandise is turned over to a bona fide creditor or association of creditors to be sold for the benefit of such creditors.
(Code 1979, § 8-4030)

Secs. 11-367—11-390. Reserved.

ARTICLE IX. PREVENTION OF DISCRIMINATION IN THE RENTAL OR SALE OF HOUSING

Sec. 11-391. Title.

This article shall be known and may be cited as the City of Columbia "Fair Housing Ordinance".
(Ord. No. 2000-061, § 1, 11-1-00)

Sec. 11-392. Policy.

It is the policy of the City of Columbia, South Carolina, that no person shall be discriminated against in the sale or rental of housing on the basis of race, color, religion, sex, age, national origin, familial status, handicap, disability, or sexual orientation.
(Ord. No. 2000-061, § 2, 11-1-00; Ord. No. 2008-023, 3-5-08)

Sec. 11-393. Definitions.

Except where the context clearly indicates otherwise, the following terms as used in this article shall have the following meanings:

Disability means a physical or mental impairment that substantially limits one or more of the major life activities of the individual, a record of such an impairment or being regarded as having such an impairment.

Discrimination means any direct or indirect act or practice of exclusion, distinction, restriction, segregation, limitation, refusal, denial, or any other act or practice of differentiation or preference in the treatment of a person or persons because of race, color, religion, national origin, age, sex, familial status, handicap, disability, or sexual orientation in the aiding, abetting, inciting, coercing or compelling thereof.

Fair housing choice means the ability of persons of similar income levels regardless of race, color, religion, sex, age, national origin, familial status, handicap, disability, or sexual orientation to have available to them the same housing choices. "Impediments to such housing choices" are any actions, omissions, or decisions taken because of race, color religion, sex, age, national origin, handicap, familial status, disability, or sexual orientation which restrict housing choice or the availability of housing choices.

Housing accommodation includes improved and unimproved property and means a building structure, lot or part thereof of which is used or occupied, or is intended, arranged or designed to be used or occupied as a home or residence of one or more individuals.

Real estate broker or *real estate salesman* means an individual who, on behalf of others, for a fee, commission, salary or other valuable consideration, or who with the intention or expectation of receiving or collecting the same, lists, sells, purchases, exchanges, rents or leases real estate, or the improvements thereon, including options, or who negotiates or attempts to negotiate on behalf of others such an activity; or who advertises or holds themselves out as engaged in such activities; or who negotiates or attempts to negotiate on behalf of others a loan secured by mortgage or other encumbrances upon a transfer of real estate, or who is engaged in the business of charging an advance fee or contracting for collection of a fee in connection with a contract whereby he undertakes to promote the sale, purchase, exchange, rental or lease of real estate through its listing in a publication issued primarily for such purpose, or an individual employed by or acting on behalf of any of these.

Real estate operator means any individual or combination of individuals, labor unions, joint apprenticeship, committees, partnerships, associations, corporations, legal representatives, mutual companies, joint stock companies, trust, unincorporated organizations, trustees in bankruptcy, receivers or other legal or commercial entity, the city or county or any of its agencies or any owner of real property that is engaged in the business of selling, purchasing, exchanging, renting or leasing real estate, or the improvements thereof, including options, or that derives income, in whole or in part, from the sale, purchase, exchange, rental or lease of real estate; or an individual employed by or acting on behalf of any of these.

Real property includes buildings, structures, real estate, lands, tenement, leaseholds, cooperative, condominiums, mobile homes, and hereditaments, or any interest in the above.

Sexual orientation means a person's real or perceived heterosexuality, homosexuality or bisexuality or gender identity or expression.
(Ord. No. 2000-061, § 3, 11-1-00; Ord. No. 2008-023, 3-5-08)

Sec. 11-394. Purpose of law; construction; effect.

The general purposes of this article are:

(1) To provide for execution within the City of Columbia of the policies embodied in Title VIII of the Federal Civil Rights Act of 1968 as amended.

(2) To safeguard all individuals within the city from discrimination in housing opportunities because of race, color, religion, national origin, sex, familial status, handicap,

disability, or sexual orientation; thereby to protect their interest in personal dignity and freedom from humiliation; to secure the city against domestic strife and unrest which would menace its democratic institutions; to preserve the public health and general welfare; and to further the interests, rights, and privileges of individuals within the city.

(Ord. No. 2000-061, § 4, 11-1-00; Ord. No. 2008-023, 3-5-08)

Sec. 11-395. Unlawful housing practices.

It is an unlawful practice for a real estate owner or operator or for a real estate salesman, or any individual employed by or acting on behalf of any of these:

(1) To refuse to sell, exchange, rent or lease or otherwise deny to or withhold real property from an individual because of his or her race, color, religion, national origin, sex, familial status, or handicap, disability, or sexual orientation;

(2) To discriminate against an individual because of his or her race, color, religion, national origin, sex, familial status, handicap, disability, or sexual orientation in the terms, conditions, or privileges of the sale, exchange, rental or lease of real property or in the furnishings of facilities or services in connection therewith;

(3) To refuse to receive or transmit a bona fide offer to purchase, rent or lease real property from an individual because of his or her race, color, religion, national origin, sex, familial status, handicap, disability, or sexual orientation;

(4) To refuse to negotiate for the sale, rental, or lease of real property to an individual because of his or her race, color, religion, national origin, sex, familial status, handicap, disability, or sexual orientation;

(5) To represent to an individual that real property is not available for inspection, sale, rental or lease when in fact it is so available, or to refuse to permit an individual to inspect real property because of his or her race, color, religion, national origin, sex, familial status, handicap, disability, or sexual orientation;

(6) To print, circulate, post, or mail or cause to be printed, circulated, posted or mailed an advertisement or sign, or to use a form of application for the purchase, rental, or lease of real property, or to make a record of inquiry in connection with the prospective purchase, rental, or lease of real property, which indicates, directly or indirectly, a limitation, specification, or discrimination as to race, color, religion, national origin, sex, familial status, handicap, disability, or sexual orientation or an intent to make such a limitation, specification, or discrimination;

(7) To offer, solicit, accept, use or retain a listing of real property for sale, rental, or lease with the understanding that an individual may be discriminated against in the sale, rental, or lease of that real property or in the furnishing of facilities or services in connection therewith because of race, color, religion, national origin, sex, familial status, handicap, disability, or sexual orientation;

(8) To otherwise deny to or withhold real property from an individual because of race, color, religion, national origin, sex, familial status, handicap, disability, or sexual orientation;

(9) To induce or discourage, or to attempt to induce or discourage:

a. The sale;

b. The purchase;

c. The rental;

d. The lease; or

e. The listing for subparagraphs a, b, c or d of this subsection, of any housing accommodations in an area, by means of:

(i) Causing panic;

(ii) Inciting unrest; or

(iii) Creating or playing upon fear, by representing that the presence or anticipated presence in that area of persons of any particular race, color, religion, ancestry, sex, place of birth, physical handicap, national origin, disability, or sexual orientation will or may result in: The lowering of property values in the area; the increase in criminal or antisocial behavior in the area; or a decline in the quality of the school serving the area;

(10) For any bank, building and loan association, insurance company or other corporation, association, firm or enterprise whose business consists in whole or in part in the making of commercial real estate loans, to deny a loan or other financial assistance to a person applying there for the purpose of purchasing, construction, improving, repairing or maintaining a dwelling, or to discriminate against him in the fixing of the amount, interest rate, duration, or other terms or conditions of such loans or other financial assistance, because of race, color, religion, ancestry, sex, place of birth, physical handicap, national origin, disability, or sexual orientation of such person or of any person associated with him, in connection with such loan or other financial assistance or the purposes of such loan or other financial assistance, or of the present or prospective owners, lessees, tenants, or occupants of the dwelling or dwelling in relation to which such loan or other financial assistance is to be made or given;

(11) To deny any person, who is otherwise professionally qualified by state law, access to, or membership or participation in, any multiple listing service, real estate brokers' organization, or other service, organization or facility relating to the business of selling or renting dwellings, or to discriminate against him in the terms or conditions of such access, membership or participation, on account of race, color, religion, ancestry, sex, place of birth, physical handicap, national origin, disability, or sexual orientation.

(Ord. No. 2000-061, § 5, 11-1-00; Ord. No. 2004-077, 8-11-04; Ord. No. 2008-023, 3-5-08)

Sec. 11-396. Blockbusting.

It is an unlawful practice for a real estate owner or operator, a real estate broker, a real estate salesman, a financial institution, an employee of any of these, or any other person, for the purpose of inducing a real estate transaction from which he may benefit financially:

(1) To represent that a change has occurred or will or may occur in the composition with respect to race, color, religion, national origin, sex, familial status, handicap, disability, or sexual orientation of the owners or occupants in the block, neighborhood, or areas in which the real property is located; or

(2) To represent that this change will or may result in the lowering of property values, an increase in criminal or antisocial behavior, or a decline in the quality of schools in the block, neighborhood, or area in which the real property is located.

(Ord. No. 2000-061, § 6, 11-1-00; Ord. No. 2008-023, 3-5-08)

Sec. 11-397. Exemption from housing provisions.

(a) Nothing in section 11-395 shall apply:

(1) To the rental of housing accommodations in a building which contains housing accommodations for not more than four families living independently of each other, if the owner or member of his family resides in one of the housing accommodations;

(2) To the sale of single-family dwellings provided that a private individual owner who does not own more than three such single-family houses, does not advertise the sale or rental of such houses in a newspaper, magazine, or advertising circular, and does not employ the services of a real estate operator, real estate broker, or real estate salesman; or

(3) To the rental of one room or one rooming unit in a housing accommodation by an individual if he or a member of his family resides therein.

(b) A religious organization, association, or society, or any nonprofit institution or organization operated, supervised or controlled by or in conjunction with a religious organization, association, or society, from limiting the sale, rental, or occupancy of dwellings which it owns or operates for other than a commercial purpose to persons of the same religion, or from giving preference to such persons, unless membership in such a religion is restricted on account of race, color, national origin, sex, familial status, handicap, disability, or sexual orientation.

(Ord. No. 2000-061, § 7, 11-1-00; Ord. No. 2008-023, 3-5-08)

Sec. 11-398. Enforcement.

In addition to appropriate civil and/or equitable remedies for enforcement of this article, a violation of this article shall constitute a misdemeanor punishable as provided by law. Each day of noncompliance with the provisions of this article constitutes a separate and distinct violation.

(Ord. No. 2000-061, § 8, 11-1-00; Ord. No. 2008-023, 3-5-08)

Sec. 11-399. Establishment of procedures for conciliation.

The city manager may by regulation establish procedures for investigation of complaints and conciliation of apparent violations of this article.
(Ord. No. 2000-061, § 9, 11-1-00; Ord. No. 2008-023, 3-5-08)

Sec. 11-400. Conspiracy to violate this article unlawful.

It shall be an unlawful practice for a person, or for two or more persons to conspire:

(1) To retaliate or discriminate in any manner against a person because he or she has opposed a practice declared unlawful by this article, or because he or she has made a charge, filed a complaint, testified, assisted or participated in any manner in any investigation, or proceedings, or hearing under this article; or

(2) To aid, abet, incite, compel or coerce a person to engage in any of the acts or practices declared unlawful by this article; or

(3) To obstruct or prevent a person from complying with the provisions of this article or any other regulation issued thereunder; or

(4) To resist, prevent, impede, or interfere with the enforcing agent(s), housing board, or any of its members or representatives in the lawful performance of duty under this article.

(Ord. No. 2000-061, § 10, 11-1-00; Ord. No. 2008-023, 3-5-08)

Secs. 11-401—11-500. Reserved.

ARTICLE X. EQUAL ENJOYMENT AND PRIVILEGES TO PUBLIC ACCOMMODATIONS

Sec. 11-501. Title.

This article shall be known and may be cited as the City of Columbia "Public Accommodations Ordinance."
(Ord. No. 2008-024, 3-5-08)

Sec. 11-502. Policy.

It is the policy of the City of Columbia, South Carolina, that no person shall be discriminated against in the full and equal enjoyment of the goods, services, facilities, privileges, advantages and accommodations of any place of public accommodation on the basis of race, color, religion, sex, age, national origin, familial status, handicap, disability or sexual orientation.
(Ord. No. 2008-024, 3-5-08)

Sec. 11-503. Definitions.

Except where the context clearly indicates otherwise, the following terms as used in this article shall have the following meanings:

Disability means a physical or mental impairment that substantially limits one or more of the major life activities of the individual, a record of such an impairment or being regarded as having such an impairment.

Discrimination means any direct or indirect act or practice of exclusion, distinction, restriction, segregation, limitation, refusal, denial, or any other act or practice of differentiation or preference in the treatment of a person or persons because of race, color, religion, national origin, age, sex, familial status, handicap. disability or sexual orientation in the aiding, abetting, inciting, coercing or compelling thereof.

Place of public accommodation means any place which serves the public and requires a license or permit issued by the State of South Carolina, its agencies or the City of Columbia to operate, including, but not limited to:

(1) Any inn, hotel, motel, or other establishment which provides lodging to transient guests, other than an establishment located within a building which contains not more than five rooms for rent or hire and which is actually occupied by the proprietor of such establishment as his residence;

(2) Any restaurant, cafeteria, lunchroom, lunch counter, soda fountain, or other facility principally engaged in selling food for consumption on the premises, including, but not limited to, any such facility located on the premises of any retail establishment, or any gasoline station;

(3) Any hospital, clinic, or other medical facility which provides overnight accommodations;

(4) Any retail or wholesale establishment;

(5) Any motion picture house, theater, concert hall, billiard parlor, saloon, barroom, golf course, sports arena, stadium, or other place of amusement, exhibition, recreation, or entertainment; and,

(6) Any establishment which is physically located within the premises of any establishment otherwise covered by this subsection, or within the premises of which is physically located any such covered establishment, and which holds itself out as serving patrons of such covered establishment.

Sexual orientation means a person's real or perceived heterosexuality, homosexuality or bisexuality or gender identity or expression.
(Ord. No. 2008-024, 3-5-08)

Sec. 11-504. Exemption from public accommodations provisions.

The provisions of this article do not apply to a private club or other establishment not in fact open to the general public.
(Ord. No. 2008-024, 3-5-08)

Sec. 11-505. Purpose of law; construction; effect.

The general purpose of this article is to safeguard all individuals within the city from discrimination in the equal enjoyment and privileges to public accommodations because of race, color, religion, national origin, sex, familial status, handicap, disability or sexual orientation; thereby to protect their interest in personal dignity and freedom from humiliation; to secure the city against domestic strife and unrest which would menace its democratic institutions; to preserve the public health and general welfare; and to further the interests, rights, and privileges of individuals within the city.
(Ord. No. 2008-024, 3-5-08)

Sec. 11-506. Enforcement.

In addition to appropriate civil and/or equitable remedies for enforcement of this article, a violation of this article shall constitute a misdemeanor punishable as provided by law. Each day of noncompliance with the provisions of this article constitutes a separate and distinct violation.
(Ord. No. 2008-024, 3-5-08)

Secs. 11-507—11-700. Reserved.

ARTICLE XI. BUSKERS

Sec. 11-701. Definitions.

Busker is a person who performs in public areas; accepts donations from the public; and, has obtained a permit pursuant to this article.

Dangerous materials or objects includes, but is not limited to, pyrotechnics, fireworks, knives, animals, fire, projectiles or any other prop, device or material which could cause harm to or endanger the public, the busker or property.

Perform includes, but is not limited to, the following activities: acting, singing, playing musical instruments, pantomime, juggling, magic, dancing, reading, puppetry, sidewalk art (working with non-permanent, water-soluble media, i.e., chalk, pastels, or watercolors directly on the pavement), and reciting. Perform shall not include the production of or the offer of items for sale at the location of the performance, but buskers may offer items in exchange for a donation.

Public areas means public sidewalks and parks.
(Ord. No. 2012-057, 7-10-12)

Sec. 11-702. Prohibition.

It shall be unlawful for any person to give any kind of performance or entertainment without first obtaining a permit from the City of Columbia Business License Division.
(Ord. No. 2012-057, 7-10-12)

Sec. 11-703. Permit.

(a) A permit shall be issued by the City of Columbia Business License Division upon application to the City of Columbia Business License Division. The permit is $15.00 and is valid for one year from date of issuance. A day permit is $2.50 per day and limited to three consecutive days. Permits must be displayed at all times during performances. If a busker loses their permit, one replacement permit per calendar year may be obtained for a $5.00 fee.

No license shall be issued to any person who had had a permit suspended or revoked within the last 12 months prior to the current application for a permit.

(b) A completed application for a permit, and the permit itself, shall contain the applicant's name, residence address and telephone number and shall be signed by the applicant.

(c) A permit shall be nontransferable, and shall contain the permit number of the applicant and the year in which the permit is valid. Each member of a group of buskers who play together shall be required to obtain an individual permit.

(d) Each busker is required to display the permit at all times during performances.
(Ord. No. 2012-057, 7-10-12)

Sec. 11-704. Permitted performances.

(a) Performances may take place at the following locations:

(1) In public areas, except within 100 feet of an elementary and/or secondary school, library, or church while in session, a hospital or funeral home at any time, and except in public areas excluded by the city manager.

Performances in public areas shall not include, involve or utilize dangerous materials or objects.

Buskers shall not block roadways, fire apparatus access roads, sidewalks, crosswalks, driveways, stairways, curb cuts, handicapped access ramps nor block access to buildings, parks, public, conveyances, businesses, crosswalks, traffic control poles containing pedestrian crosswalk button(s), or be within 20 feet of a fire hydrant, fire department connection (FDC) or within five feet of any fire alarm or other emergency communication device, either by the buskers location, or by the location of any crowd that the busker may draw.

(2) In public areas where a street event or festival authorized by the city is being conducted, with the written permission of the sponsor of event. Performances in public areas where a street event or festival authorized by the city is being conducted may include, involve or utilize dangerous materials or objects, with the written permission

of the sponsor of the street event or festival. Buskers who include involve or utilize dangerous materials or objects in their performance at a street event or festival authorized by the city must obtain any required approvals or permits from the appropriate governmental agency or official. Buskers that include, involve or utilize dangerous materials or objects in their performance must take appropriate and adequate safety precautions to prevent personal injury to the public and to prevent property damage. The sponsor of the street event or festival shall be liable for any personal injury or property damage caused by a performance including, involving or utilizing dangerous materials or objects. A permit is not required when a busker is performing in a public area where a street event authorized by the city is being conducted. Police and fire marshal personnel shall be on site all events of street performances involving or utilizing dangerous materials or objects. Busker or group of buskers performing under this section shall not be deemed to be in violation of City of Columbia Code section 8-131 (Open burning); City of Columbia Code section 15-1(7) and (9) (Prohibited Acts in parks).

(b) Buskers shall not perform before the hour of 9:00 a.m. and after the hour of 10:00 p.m. Buskers may perform low amplified, acoustic, low noise or no noise activities between the hours of 10:00 p.m. and 12:00 a.m. During these hours buskers shall not perform 100 feet from a residential unit, a hotel or motel unless permitted by the property owner or other person in control of such property.

(c) The conduct and behavior of all buskers shall otherwise comply in all respects with existing noise ordinances at all times.

(d) Buskers shall not obstruct or cause to be obstructed pedestrian or vehicular traffic, including but not limited to not obstructing or causing to be obstructed sidewalks, doorways or other access areas. If a sidewalk entertainer attracts a crowd sufficient to obstruct the public way, a police officer may disperse the portion of the crowd that is creating the obstruction.

(e) Buskers shall provide the minimum pedestrian passageway on the sidewalk as required by the Americans with Disabilities Act, which is currently five feet.

(f) Buskers or a group of buskers shall not perform closer than 50 feet from a sidewalk entertainer located within an approved encroachment area, another busker or group of buskers or an approved sidewalk vendor unless the sidewalk vendor gives approval.

(g) Buskers or group of buskers shall perform in a manner so as to not to interfere with a community event, street events or festival (event resolutions and street closings) approved by the City of Columbia or the holder of a parade permit.

(h) Buskers shall remove all props and other items from the public area used for a performance during breaks and immediately after the performance ends. Trash and other debris shall be removed from the public area used for a performance immediately after the performance ends.

(i) A busker may orally request donations of money or property at a performance, provided that no sign requesting donations shall exceed 12 inches by 18 inches. Buskers shall not place signs within the right of way. Signs may not contain advertising. Contributions may be received in any receptacle, such as an open musical instrument case, box or hat.

(j) Buskers shall not use pyrotechnics, fireworks, knives, animals, fire, projectiles or any other prop, device or material which could cause harm to or endanger the public, the busker or property unless permitted herein.

(k) Buskers shall not consume nor be under the influence of alcoholic beverages or other controlled or intoxicating substances while performing.

(l) A busker or group of buskers complying with the requirements of this section shall not be deemed to be in violation of City of Columbia Code sections 22-71 through 22-74 (Obstructions of streets, sidewalks, and other places); City of Columbia Code section 14-3 (Begging); City of Columbia Code section 14-97 (Loitering) and City of Columbia Code section 22-162 (Parades) but shall otherwise comply with the said ordinances.

(m) Buskers shall not violate the prohibitions on disturbing, annoying and unnecessary noise as set forth in City of Columbia Code sections 8-61 through 8-93.

(n) Buskers shall not use a megaphone during a performance unless the performance is in conjunction with a street event or festival authorized by the city and with the written permission of the sponsor of the street event or festival. Devices such as amplifiers for musical instruments shall be permitted provided their use is in compliance with City of Columbia Code sections 8-61 through 8-93.
(Ord. No. 2012-057, 7-10-12)

Sec. 11-705. Exclusion of public areas.

(a) A specific public area may be permanently excluded from performances in accordance with constitutional standards by decision of the city council after a public hearing notice of which shall be advertised no less than 14 days prior to said hearing.

(b) During periods of construction on the streets, sidewalks and infrastructure, the city manager may from time to time temporarily exclude performances from areas where there are issues of serious public safety and the city manager or his designee may, in their discretion, issue notices of exclusion from areas as the construction requires.
(Ord. No. 2012-057, 7-10-12)

Sec. 11-706. Penalties.

(a) A permit may be suspended or revoked if a performer is found to have knowingly provided false information on the application or has violated the rules and regulations or any federal, state of local law or ordinance rationally related to this permit. Before suspension or revocation the city manager must hold a public hearing, after ten days written notice to the busker setting forth the facts constituting the basis for the proposed suspension or revocation.
(Ord. No. 2012-057, 7-10-12)

Sec. 11-707. Severability.

The provisions of this section are severable, and if any part of this section should be held invalid by a court of competent jurisdiction, such invalidity shall not affect the remainder of the section and the remainder of the section shall remain in full force and effect.
(Ord. No. 2012-057, 7-10-12)

Secs. 11-708—11-730. Reserved.

ARTICLE XII. SEXUALLY ORIENTED BUSINESSES*

Sec. 11-731. Purpose; findings and rationale.

(a) *Purpose*. It is the purpose of this article to regulate sexually oriented businesses in order to promote the health, safety, and general welfare of the citizens of the city, and to establish reasonable and uniform regulations to prevent the deleterious secondary effects of sexually oriented businesses within the city. The provisions of this article have neither the purpose nor effect of imposing a limitation or restriction on the content or reasonable access to any communicative materials, including sexually oriented materials. Similarly, it is neither the intent nor effect of this article to restrict or deny access by adults to sexually oriented materials protected by the First Amendment, or to deny access by the distributors and exhibitors of sexually oriented entertainment to their intended market. Neither is it the intent nor effect of this article to condone or legitimize the distribution of obscene material.

(b) *Findings and rationale*. Based on evidence of the adverse secondary effects of adult uses presented in hearings and in reports made available to the city council, and on findings, interpretations, and narrowing constructions incorporated in the cases of *City of Littleton v. Z.J. Gifts D-4, L.L.C.*, 541 U.S. 774 (2004); *City of Los Angeles v. Alameda Books, Inc.*, 535 U.S. 425 (2002); *City of Erie v. Pap's A.M.,* 529 U.S. 277 (2000); *City of Renton v. Playtime Theatres, Inc.*, 475 U.S. 41 (1986); *Young v. American Mini Theatres*, 427 U.S. 50 (1976); *Barnes v. Glen Theatre, Inc.*, 501 U.S. 560 (1991); *California v. LaRue*, 409 U.S. 109 (1972); *N.Y. State Liquor Authority v. Bellanca*, 452 U.S. 714 (1981); *City of Dallas v. Stanglin*, 490 U.S. 19 (1989); and,

Imaginary Images, Inc. v. Evans, 612 F.3d 736 (4th Cir. 2010); *D.G. Restaurant, Inc. v. City of Myrtle Beach*, 953 F.2d 140 (4th Cir. 1991); *Giovani Carandola, Ltd. v. Fox*, 470 F.3d 1074 (4th Cir. 2006); *Independence News, Inc. v. City of Charlotte*, 568 F.3d 148 (4th Cir. 2009); *Steakhouse, Inc. v. City of Raleigh*, 166 F.3d 634 (4th Cir. 1999); *Hart Bookstores, Inc. v. Edmisten*, 612 F.2d 821 (4th Cir. 1979); *Wall Distributors, Inc. v. City of Newport News*, 782 F.2d 1165 (4th Cir. 1986); *Restaurant Row Associates v. Horry County,* 516 S.E.2d 442 (1999);

***Editor's note—**Ord. No. 2011-105, adopted Dec. 29, 2011, amended the Code by adding provisions designated as Art. XI, §§ 11-601—11-623. In order to avoid conflicts in the numbering of provisions the editor has renumbered the provisions added by Ord. No. 2011-105 as herein set out.

Cross reference—Sexually oriented businesses, § 17-371 et seq.

Condor, Inc. v. Board of Zoning Appeals, 493 S.E.2d 342 (1997); *Rothschild v. Richland County Bd. of Adjustment,* 420 S.E.2d 853 (1992); *Centaur, Inc. v. Richland County,* 392 S.E.2d 165 (1990); and,

Ocello v. Koster, - S.W.3d -, 2011 WL 5547027 (Mo. Nov. 15, 2011); *84 Video/Newsstand, Inc. v. Sartini*, 2011 WL 3904097 (6th Cir. Sept. 7, 2011); *Plaza Group Properties, LLC v. Spencer County Plan Commission*, 877 N.E.2d 877 (Ind. Ct. App. 2007); *Flanigan's Enters., Inc. v. Fulton County*, 596 F.3d 1265 (11th Cir. 2010); *East Brooks Books, Inc. v. Shelby County*, 588 F.3d 360 (6th Cir. 2009); *Entm't Prods., Inc. v. Shelby County*, 588 F.3d 372 (6th Cir. 2009); *Sensations, Inc. v. City of Grand Rapids*, 526 F.3d 291 (6th Cir. 2008); *World Wide Video of Washington, Inc. v. City of Spokane*, 368 F.3d 1186 (9th Cir. 2004); *Ben's Bar, Inc. v. Village of Somerset*, 316 F.3d 702 (7th Cir. 2003); *Peek-a-Boo Lounge v. Manatee County*, 630 F.3d 1346 (11th Cir. 2011); *Daytona Grand, Inc. v. City of Daytona Beach*, 490 F.3d 860 (11th Cir. 2007); *Williams v. Morgan*, 478 F.3d 1316 (11th Cir. 2007); *Jacksonville Property Rights Ass'n, Inc. v. City of Jacksonville*, 635 F.3d 1266 (11th Cir. 2011); *H&A Land Corp. v. City of Kennedale*, 480 F.3d 336 (5th Cir. 2007); *Hang On, Inc. v. City of Arlington*, 65 F.3d 1248 (5th Cir. 1995); *Fantasy Ranch, Inc. v. City of Arlington*, 459 F.3d 546 (5th Cir. 2006); *Illinois One News, Inc. v. City of Marshall*, 477 F.3d 461 (7th Cir. 2007); *G.M. Enterprises, Inc. v. Town of St. Joseph*, 350 F.3d 631 (7th Cir. 2003); *Richland Bookmart, Inc. v. Knox County*, 555 F.3d 512 (6th Cir. 2009); *Richland Bookmart, Inc. v. Nichols*, 137 F.3d 435 (6th Cir. 1998); *Spokane Arcade, Inc. v. City of Spokane*, 75 F.3d 663 (9th Cir. 1996); *City of New York v. Hommes*, 724 N.E.2d 368 (N.Y. 1999); *Taylor v. State*, No. 01-01-00505-CR, 2002 WL 1722154 (Tex. App. July 25, 2002); *Gammoh v. City of La Habra*, 395 F.3d 1114 (9th Cir. 2005); *Z.J. Gifts D-4, L.L.C. v. City of Littleton*, Civil Action No. 99-N-1696, Memorandum Decision and Order (D. Colo. March 31, 2001); *People ex rel. Deters v. The Lion's Den, Inc.*, Case No. 04-CH-26, Modified Permanent Injunction Order (Ill. Fourth Judicial Circuit, Effingham County, July 13, 2005); *Reliable Consultants, Inc. v. City of Kennedale*, No. 4:05-CV-166-A, Findings of Fact and Conclusions of Law (N.D. Tex. May 26, 2005); and,

based upon reports concerning secondary effects occurring in and around sexually oriented businesses, including, but not limited to, Austin, Texas - 1986; Indianapolis, Indiana - 1984; Garden Grove, California - 1991; Houston, Texas - 1983, 1997; Phoenix, Arizona - 1979, 1995-98; Tucson, Arizona - 1990; Chattanooga, Tennessee - 1999-2003; Los Angeles, California - 1977; Whittier, California - 1978; Spokane, Washington - 2001; St. Cloud, Minnesota - 1994; Littleton, Colorado - 2004; Oklahoma City, Oklahoma - 1986; Dallas, Texas - 1997; Ft. Worth, Texas - 2004; Kennedale, Texas - 2005; Greensboro, North Carolina - 2003; Amarillo, Texas - 1977; Jackson County, Missouri - 2008; Louisville, Kentucky - 2004; New York, New York Times Square - 1994; the Report of the Attorney General's Working Group On The Regulation Of Sexually Oriented Businesses, (June 6, 1989, State of Minnesota); Dallas, Texas - 2007; "Rural Hotspots: The Case of Adult Businesses," 19 Criminal Justice Policy Review 153 (2008); and "Correlates of Current Transactional Sex among a Sample of Female Exotic Dancers in Baltimore, MD," Journal of Urban Health (2011),

the city council finds:

(1) Sexually oriented businesses, as a category of commercial uses, are associated with a wide variety of adverse secondary effects including, but not limited to, personal and

property crimes, prostitution, potential spread of disease, lewdness, public indecency, obscenity, illicit drug use and drug trafficking, negative impacts on surrounding properties, urban blight, litter, and sexual assault and exploitation. Alcohol consumption impairs judgment and lowers inhibitions, thereby increasing the risk of adverse secondary effects.

(2) Sexually oriented businesses should be separated from sensitive land uses to minimize the impact of their secondary effects upon such uses, and should be separated from other sexually oriented businesses, to minimize the secondary effects associated with such uses and to prevent an unnecessary concentration of sexually oriented businesses in one area.

(3) Each of the foregoing negative secondary effects constitutes a harm which the City has a substantial government interest in preventing and/or abating. This substantial government interest in preventing secondary effects, which is the city's rationale for this article, exists independent of any comparative analysis between sexually oriented and non-sexually oriented businesses. Additionally, the city's interest in regulating sexually oriented businesses extends to preventing future secondary effects of either current or future sexually oriented businesses that may locate in the city. The city finds that the cases and documentation relied on in this article are reasonably believed to be relevant to said secondary effects.

The city hereby adopts and incorporates herein its stated findings and legislative record related to the adverse secondary effects of sexually oriented businesses, including the judicial opinions and reports related to such secondary effects.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-732. Definitions.

For purposes of this article, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them unless a different meaning is clearly indicated by the context.

Administrator means the City of Columbia Business License Administrator. *Adult arcade* means any place to which the public is permitted or invited wherein coin-operated or slug-operated or electronically, electrically, or mechanically controlled still or motion picture machines, projectors, or other image-producing devices are regularly maintained to show images to five or fewer persons per machine at any one time, and where the images so displayed are characterized by their emphasis upon matter exhibiting "specified sexual activities" or "specified anatomical areas."

Adult bookstore or *adult video store* means a commercial establishment which, as one of its principal business activities, offers for sale or rental for any form of consideration any one or more of the following: books, magazines, periodicals or other printed matter, or photographs, films, motion pictures, video cassettes, compact discs, digital video discs, slides, or other visual

representations which are characterized by their emphasis upon the display of "specified sexual activities" or "specified anatomical areas." A "principal business activity" exists where the commercial establishment meets any one or more of the following criteria:

(1) At least 30 percent of the establishment's displayed merchandise consists of said items; or

(2) At least 30 percent of the wholesale value of the establishment's displayed merchandise consists of said items; or

(3) At least 30 percrent of the retail value (defined as the price charged to customers) of the establishment's displayed merchandise consists of said items; or

(4) At least 30 percent of the establishment's revenues derive from the sale or rental, for any form of consideration, of said items; or

(5) The establishment maintains at least 30 percent of its floor space for the display, sale, and/or rental of said items (aisles and walkways used to access said items shall be included in "floor space" maintained for the display, sale, or rental of said items); or

(6) The establishment maintains at least 500 square feet of its floor space for the display, sale, and/or rental of said items (aisles and walkways used to access said items shall be included in "floor space" maintained for the display, sale, or rental of said items); or

(7) The establishment regularly offers for sale or rental at least 1,000 of said items; or

(8) The establishment regularly features said items and regularly advertises itself or holds itself out, by using "adult," "adults-only,' "XXX," "sex," "erotic," "novelties," or substantially similar language, as an establishment that caters to adult sexual interests.

Adult cabaret means a nightclub, bar, juice bar, restaurant, bottle club, or similar commercial establishment which regularly features live conduct characterized by semi-nudity. No establishment shall avoid classification as an adult cabaret by offering or featuring nudity.

Adult motion picture theater means a commercial establishment where films, motion pictures, videocassettes, slides, or similar photographic reproductions which are characterized by their emphasis upon the display of "specified sexual activities" or "specified anatomical areas" are regularly shown to more than five persons for any form of consideration.

Characterized by means describing the essential character or quality of an item. As applied in this article, no business shall be classified as a sexually oriented business by virtue of showing, selling, or renting materials rated NC-17 or R by the Motion Picture Association of America.

City means the City of Columbia, South Carolina.

Employ, employee, and *employment* describe and pertain to any person who performs any service on the premises of a sexually oriented business, on a full time, part time, or contract

basis, regardless of whether the person is denominated an employee, independent contractor, agent, lessee, or otherwise. Employee does not include a person exclusively on the premises for repair or maintenance of the premises or for the delivery of goods to the premises.

Establish or *establishment* means and includes any of the following:

(1) The opening or commencement of any sexually oriented business as a new business;

(2) The conversion of an existing business, whether or not a sexually oriented business, to any sexually oriented business; or

(3) The addition of any sexually oriented business to any other existing sexually oriented business.

Floor space means the floor area inside an establishment that is visible or accessible to patrons for any reason, excluding restrooms.

Hearing officer means an attorney, not otherwise employed by the city, who is licensed to practice law in South Carolina, and retained to serve as an independent tribunal to conduct hearings under this Article.

Influential interest means any of the following:

(1) The actual power to operate the sexually oriented business or control the operation, management or policies of the sexually oriented business or legal entity which operates the sexually oriented business;

(2) Ownership of a financial interest of 30 percent or more of a business or of any class of voting securities of a business; or

(3) Holding an office (e.g., president, vice president, secretary, treasurer, managing member, managing director, etc.) in a legal entity which operates the sexually oriented business.

Licensee means a person in whose name a license to operate a sexually oriented business has been issued, as well as the individual or individuals listed as an applicant on the application for a sexually oriented business license. In the case of an "employee," it shall mean the person in whose name the sexually oriented business employee license has been issued.

Nudity means the showing of the human male or female genitals, pubic area, vulva, or anus with less than a fully opaque covering, or the showing of the female breast with less than a fully opaque covering of any part of the nipple and areola.

Operator means any person on the premises of a sexually oriented business who causes the business to function or who puts or keeps in operation the business or who is authorized to manage the business or exercise overall operational control of the business premises. A person may be found to be operating or causing to be operated a sexually oriented business regardless of whether that person is an owner, part owner, or licensee of the business.

Person means an individual, proprietorship, partnership, corporation, association, or other legal entity.

Premises means the real property upon which the sexually oriented business is located, and all appurtenances thereto and buildings thereon, including, but not limited to, the sexually oriented business, the grounds, private walkways, and parking lots and/or parking garages adjacent thereto, under the ownership, control, or supervision of the licensee, as described in the application for a sexually oriented business license.

Regularly means the consistent and repeated doing of an act on an ongoing basis.

Semi-nude or *semi-nudity* means the showing of the female breast below a horizontal line across the top of the areola and extending across the width of the breast at that point, or the showing of the male or female buttocks. This definition shall include the lower portion of the human female breast, but shall not include any portion of the cleavage of the human female breasts exhibited by a bikini, dress, blouse, shirt, leotard, or similar wearing apparel provided the areola is not exposed in whole or in part.

Semi-nude model studio means a place where persons regularly appear in a state of semi-nudity for money or any form of consideration in order to be observed, sketched, drawn, painted, sculptured, photographed, or similarly depicted by other persons. This definition does not apply to any place where persons appearing in a state of semi-nudity did so in a class operated:

(1) By a college, junior college, or university supported entirely or partly by taxation;

(2) By a private college or university which maintains and operates educational programs in which credits are transferable to a college, junior college, or university supported entirely or partly by taxation; or

(3) In a structure:

   a. Which has no sign visible from the exterior of the structure and no other advertising that indicates a semi-nude person is available for viewing; and

   b. Where, in order to participate in a class a student must enroll at least three days in advance of the class.

Sexual device means any three dimensional object designed for stimulation of the male or female human genitals, anus, buttocks, female breast, or for sadomasochistic use or abuse of oneself or others and shall include devices commonly known as dildos, vibrators, penis pumps, cock rings, anal beads, butt plugs, nipple clamps, and physical representations of the human genital organs. Nothing in this definition shall be construed to include devices primarily intended for protection against sexually transmitted diseases or for preventing pregnancy.

Sexual device shop means a commercial establishment that regularly features sexual devices. This definition shall not be construed to include any pharmacy, drug store, medical clinic, any establishment primarily dedicated to providing medical or healthcare products or services, or any establishment that does not limit access to its premises or a portion of its premises to adults only.

Sexually oriented business means an adult arcade," an "adult bookstore or adult video store," an "adult cabaret," an "adult motion picture theater," a "semi-nude model studio," or a "sexual device shop."

Specified anatomical areas means and includes:

(1) Less than completely and opaquely covered: human genitals, pubic region; buttock; and female breast below a point immediately above the top of the areola; and

(2) Human male genitals in a discernibly turgid state, even if completely and opaquely covered.

Specified criminal activity means any of the following specified crimes for which less than five years has elapsed since the date of conviction or the date of release from confinement for the conviction, whichever is the later date:

(1) Criminal sexual conduct and other offenses set forth in S.C. Code §§ 16-3-651 through 16-3-656;

(2) Prostitution and other offenses set forth in S.C. Code §§ 16-16-90, 16-15-100, and 16-15-110;

(3) Obscenity and other offenses set forth in S.C. Code §§ 16-15-305 through 16-15-425; or

(4) Narcotics and controlled substances offenses set forth in S.C. Code §§ 44-53-370 through 44-53-445;

(5) Any attempt, solicitation, or conspiracy to commit one of the foregoing offenses; or

(6) Any offense in another jurisdiction that, had the predicate act(s) been committed in South Carolina, would have constituted any of the foregoing offenses.

Specified sexual activity means any of the following:

(1) Intercourse, oral copulation, masturbation or sodomy; or

(2) Excretory functions as a part of or in connection with any of the activities described in (1) above.

Transfer of ownership or control of a sexually oriented business means any of the following:

(1) The sale, lease, or sublease of the business;

(2) The transfer of securities which constitute an influential interest in the business, whether by sale, exchange, or similar means; or

(3) The establishment of a trust, gift, or other similar legal device which transfers the ownership or control of the business, except for transfer by bequest or other operation of law upon the death of the person possessing the ownership or control.

Viewing room means the room, booth, or area where a patron of a sexually oriented business would ordinarily be positioned while watching a film, videocassette, digital video disc, or other video reproduction.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-733. Classification.

A sexually oriented business shall be classified as follows:

(a) Adult arcade;

(b) Adult bookstore or adult video store;

(c) Adult cabaret;

(d) Adult motion picture theater;

(e) Semi-nude model studio; or

(f) Sexual device shop.

(Ord. No. 2011-105, 12-29-11)

Sec. 11-734. License required.

(a) *License*. It shall be unlawful for any person to operate a sexually oriented business in the city without a valid sexually oriented business license. This license is in addition to the license required by Article II of this chapter.

(b) *Employee license*. It shall be unlawful for any person to be an employee," as defined in this article, of a sexually oriented business in the city without a valid sexually oriented business employee license, except that a person who is a licensee under a valid sexually oriented business license shall not be required to also obtain a sexually oriented business employee license.

(c) *Application*. An applicant for a sexually oriented business license or a sexually oriented business employee license shall file in person at the office of the administrator a completed application made on a form provided by the administrator. A sexually oriented business may designate an individual with an influential interest in the business to file its application for a sexually oriented business license in person on behalf of the business. The application shall be signed as required by subsection (d) herein and shall be notarized. An application shall be considered complete when it contains, for each person required to sign the application, the information and/or items required in this subsection (c), accompanied by the appropriate licensing fee:

(1) The applicant's full legal name and any other names used by the applicant in the preceding five years.

(2) Current business address or another mailing address for the applicant.

(3) Written proof of age, in the form of a driver's license, a picture identification document containing the applicant's date of birth issued by a governmental agency, or a copy of a birth certificate accompanied by a picture identification document issued by a governmental agency.

(4) If the application is for a sexually oriented business license, the business name, location, legal description, mailing address and phone number of the sexually oriented business.

(5) If the application is for a sexually oriented business license, the name and business address of the statutory agent or other agent authorized to receive service of process.

(6) A statement of whether an applicant has been convicted of or has pled guilty or nolo contendere to a specified criminal activity as defined in this article, and if so, each specified criminal activity involved, including the date, place, and jurisdiction of each as well as the dates of conviction and release from confinement, where applicable.

(7) A statement of whether any sexually oriented business in which an applicant has had an influential interest, has, in the previous five (5) years (and at a time during which the applicant had the influential interest):

(i) Been declared by a court of law to be a nuisance; or

(ii) Been subject to a court order of closure or padlocking.

(8) An application for a sexually oriented business license shall be accompanied by a legal description of the property where the business is located and a sketch or diagram showing the configuration of the premises, including a statement of total floor area occupied by the business and a statement of floor area visible or accessible to patrons for any reason, excluding restrooms. The sketch or diagram need not be professionally prepared but shall be drawn to a designated scale or drawn with marked dimensions of the interior of the premises to an accuracy of plus or minus six inches. Applicants who are required to comply with the stage, booth, and/or room configuration requirements of this article shall submit a diagram indicating that the setup and configuration of the premises meets the requirements of the applicable regulations. The administrator may waive the requirements of this subsection (8) for a renewal application if the applicant adopts a legal description and a sketch or diagram that was previously submitted and certifies that the configuration of the premises has not been altered since it was prepared.

The information provided pursuant to this subsection (c) shall be supplemented in writing by certified mail, return receipt requested, to the administrator within ten working days of a change of circumstances which would render the information originally submitted false or incomplete.

(d) *Signature*. A person who seeks a sexually oriented business employee license under this section shall sign the application for a license. If a person who seeks a sexually oriented business license under this section is an individual, he shall sign the application for a license as applicant. If a person who seeks a sexually oriented business license is other than an individual, each person with an influential interest in the sexually oriented business or in a legal entity that controls the sexually oriented business shall sign the application for a license as applicant. Each applicant must be qualified under this Article and each applicant shall be considered a licensee if a license is granted.

(e) The information provided by an applicant in connection with an application for a license under this article shall be maintained by the office of the administrator on a confidential basis, and such information may be disclosed only as may be required, and only to the extent required, by governing law or court order. Any information protected by the right to privacy as recognized by state or federal law shall be redacted prior to such disclosure.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-735. Issuance of license.

(a) *License*.Upon the filing of a completed application for a sexually oriented business license, the administrator shall immediately issue a temporary license to the applicant if the completed application is from a preexisting sexually oriented business that is lawfully operating in the city and the completed application, on its face, indicates that the applicant is entitled to an annual sexually oriented business license. The temporary license shall expire upon the final decision of the city to deny or grant an annual license. Within 20 days of the filing of a completed sexually oriented business license application, the administrator shall either issue a license to the applicant or issue a written notice of intent to deny a license to the applicant. The administrator shall issue a license unless:

(1) An applicant is less than 18 years of age.

(2) An applicant has failed to provide information required by this article for issuance of a license or has falsely answered a question or request for information on the application form.

(3) The sexually oriented business, as defined herein, is not in compliance with the interior configuration requirements of this article or is not in compliance with locational requirements of this article or the locational requirements of any other part of the City of Columbia Code.

(4) Any sexually oriented business in which an applicant has had an influential interest, has, in the previous five years (and at a time during which the applicant had the influential interest):

(i) Been declared by a court of law to be a nuisance; or

(ii) Been subject to an order of closure or padlocking.

(5) An applicant has been convicted of or pled guilty or nolo contendere to a specified criminal activity, as defined in this Article.

(b) *Employee license*.Upon the filing of a completed application for a sexually oriented business employee license, the administrator shall immediately issue a temporary license to the applicant if the applicant seeks licensure to work in a licensed sexually oriented business and the completed application, on its face, indicates that the applicant is entitled to an annual sexually oriented business employee license. The temporary license shall expire upon the final decision of the city to deny or grant an annual license. Within 20 days of the filing of a

completed sexually oriented business employee license application, the administrator shall either issue a license to the applicant or issue a written notice of intent to deny a license to the applicant. The Administrator shall issue a license unless:

(1) The applicant is less than 18 years of age.

(2) The applicant has failed to provide information as required by this article for issuance of a license or has falsely answered a question or request for information on the application form.

(3) Any sexually oriented business in which the applicant has had an influential interest, has, in the previous five years (and at a time during which the applicant had the influential interest):

(i) Been declared by a court of law to be a nuisance; or

(ii) Been subject to an order of closure or padlocking.

(4) The applicant has been convicted of or pled guilty or nolo contendere to a specified criminal activity, as defined in this article.

(c) The license, if granted, shall state on its face the name of the person or persons to whom it is granted, the number of the license issued to the licensee(s), the expiration date, and, if the license is for a sexually oriented business, the address of the sexually oriented business. The sexually oriented business license shall be posted in a conspicuous place at or near the entrance to the sexually oriented business so that it may be read at any time that the business is occupied by patrons or is open to the public. A sexually oriented business employee shall keep the employee's license on his or her person or on the premises where the licensee is then working or performing.
(Ord. No. 2011-105, 12-29-11; Ord. No. 2015-040, 5-19-15)

Sec. 11-736. Inspection.

Sexually oriented businesses and sexually oriented business employees shall permit the administrator and his or her agents to inspect, from time to time on an occasional basis, the portions of the sexually oriented business premises where patrons are permitted, for the purpose of ensuring compliance with the specific regulations of this article, during those times when the sexually oriented business is occupied by patrons or is open to the public. This section shall be narrowly construed by the city to authorize reasonable inspections of the licensed premises pursuant to this article, but not to authorize a harassing or excessive pattern of inspections.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-737. Expiration and renewal of license.

(a) Each license shall be issued for one calendar year and shall expire on December 31 unless otherwise suspended or revoked. Such license may be renewed only by making application as provided in this article.

(b) Application for renewal of an annual license should be made at least 90 days before the expiration date of the current annual license, and when made less than 90 days before the expiration date, the expiration of the current license will not be affected.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-738. Suspension.

(a) The administrator shall issue a written notice of intent to suspend a sexually oriented business license for a period not to exceed 30 days if the sexually oriented business licensee has knowingly or recklessly violated this article or has knowingly or recklessly allowed an employee or any other person to violate this article.

(b) The administrator shall issue a written notice of intent to suspend a sexually oriented business employee license for a period not to exceed 30 days if the employee licensee has knowingly or recklessly violated this Article.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-739. Revocation.

(a) The administrator shall issue a written notice of intent to revoke a sexually oriented business license or a sexually oriented business employee license, as applicable, if the licensee knowingly or recklessly violates this article or has knowingly or recklessly allowed an employee or any other person to violate this article and a suspension of the licensee's license has become effective within the previous twelve-month (12-mo.) period.

(b) The administrator shall issue a written notice of intent to revoke a sexually oriented business license or a sexually oriented business employee license, as applicable, if:

(1) The licensee has knowingly given false information in the application for the sexually oriented business license or the sexually oriented business employee license;

(2) The licensee has knowingly or recklessly engaged in or allowed possession, use, or sale of controlled substances on the premises of the sexually oriented business;

(3) The licensee has knowingly or recklessly engaged in or allowed prostitution on the premises of the sexually oriented business;

(4) The licensee knowingly or recklessly operated the sexually oriented business during a period of time when the license was finally suspended or revoked;

(5) The licensee has knowingly or recklessly engaged in or allowed any specified sexual activity or specified criminal activity to occur in or on the premises of the sexually oriented business; or

(6) The licensee has knowingly or recklessly allowed a person under the age of 18 years to consume alcohol or appear in a state of semi-nudity or nudity on the premises of the sexually oriented business.

(c) The fact that any relevant conviction is being appealed shall have no effect on the revocation of the license, provided that, if any conviction which serves as a basis of a license revocation is overturned or reversed on appeal, that conviction shall be treated as null and of no effect for revocation purposes.

(d) When, after the notice and hearing procedure described in this article, the city revokes a license, the revocation shall continue for one year and the licensee shall not be issued a sexually oriented business license or sexually oriented business employee license for one year from the date revocation becomes effective.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-740. Hearing; license denial, suspension, revocation; appeal.

(a) When the administrator issues a written notice of intent to deny, suspend, or revoke a license, the administrator shall immediately send such notice, which shall include the specific grounds under this article for such action, to the applicant or licensee (respondent) by personal delivery or certified mail. The notice shall be directed to the most current business address or other mailing address on file with the administrator for the respondent. The notice shall also set forth the following: The respondent shall have ten days after the delivery of the written notice to submit, at the office of the administrator, a written request for a hearing. If the respondent does not request a hearing within said ten days, the administrator's written notice shall become a final denial, suspension, or revocation, as the case may be, on the 30th day after it is issued, and shall be subject to the provisions of subsection (b) of this section.

If the respondent does make a written request for a hearing within said ten days, then the administrator shall, within ten days after the submission of the request, send a notice to the respondent indicating the date, time, and place of the hearing. The hearing shall be conducted not less than ten days nor more than 20 days after the date that the hearing notice is issued. The city shall provide for the hearing to be transcribed.

At the hearing, the respondent shall have the opportunity to present all of respondent's arguments and to be represented by counsel, present evidence and witnesses on his or her behalf, and cross-examine any of the administrator's witnesses. The administrator shall also be represented by counsel, and shall bear the burden of proving the grounds for denying, suspending, or revoking the license. The hearing shall take no longer than two days, unless extended at the request of the respondent to meet the requirements of due process and proper administration of justice. The hearing officer shall issue a final written decision, including specific reasons for the decision pursuant to this article, to the respondent within five days after the hearing.

If the decision is to deny, suspend, or revoke the license, the decision shall advise the respondent of the right to appeal such decision to a court of competent jurisdiction, and the decision shall not become effective until the 30th day after it is rendered. If the hearing officer's decision finds that no grounds exist for denial, suspension, or revocation of the license, the hearing officer shall, contemporaneously with the issuance of the decision, order the administrator to immediately withdraw the intent to deny, suspend, or revoke the license and to

notify the respondent in writing by certified mail of such action. If the respondent is not yet licensed, the administrator shall contemporaneously therewith issue the license to the applicant.

(b) If any court action challenging a licensing decision is initiated, the city shall prepare and transmit to the court a transcript of the hearing within 30 days after receiving written notice of the filing of the court action. The city shall consent to expedited briefing and/or disposition of the action, shall comply with any expedited schedule set by the court, and shall facilitate prompt judicial review of the proceedings. The following shall apply to any sexually oriented business that is lawfully operating as a sexually oriented business, or any sexually oriented business employee that is lawfully employed as a sexually oriented business employee, on the date on which the completed business or employee application, as applicable, is filed with the administrator: Upon the filing of any court action to appeal, challenge, restrain, or otherwise enjoin the city's enforcement of any denial, suspension, or revocation of a temporary license or annual license, the administrator shall immediately issue the respondent a provisional license. The provisional license shall allow the respondent to continue operation of the sexually oriented business or to continue employment as a sexually oriented business employee and will expire upon the court's entry of a judgment on the respondent's appeal or other action to restrain or otherwise enjoin the city's enforcement.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-741. Transfer of license.

A licensee shall not transfer his or her license to another, nor shall a licensee operate a sexually oriented business under the authority of a license at any place other than the address designated in the sexually oriented business license application.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-742. Hours of operation.

No sexually oriented business shall be or remain open for business between 12:00 midnight and 6:00 a.m. on any day.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-743. Exhibition of sexually explicit films on premises.

(a) A person who operates or causes to be operated a sexually oriented business which exhibits in a booth or viewing room on the premises, through any mechanical or electronic image-producing device, a film, video cassette, digital video disc, or other video reproduction characterized by an emphasis on the display of specified sexual activities or specified anatomical areas shall comply with the following requirements.

(1) Each application for a sexually oriented business license shall contain a diagram of the premises showing the location of all operator's stations, booths or viewing rooms, overhead lighting fixtures, and restrooms, and shall designate all portions of the premises in which patrons will not be permitted. Restrooms shall not contain

equipment for displaying films, video cassettes, digital video discs, or other video reproductions. The diagram shall also designate the place at which the license will be conspicuously posted, if granted. A professionally prepared diagram in the nature of an engineer's or architect's blueprint shall not be required; however, each diagram shall be oriented to the north or to some designated street or object and shall be drawn to a designated scale or with marked dimensions sufficient to show the various internal dimensions of all areas of the interior of the premises to an accuracy of plus or minus six inches. The administrator may waive the foregoing diagram for renewal applications if the applicant adopts a diagram that was previously submitted and certifies that the configuration of the premises has not been altered since it was prepared.

(2) It shall be the duty of the operator, and of any employees present on the premises, to ensure that no patron is permitted access to any area of the premises which has been designated as an area in which patrons will not be permitted.

(3) The interior premises shall be equipped with overhead lighting fixtures of sufficient intensity to illuminate every place to which patrons are permitted access at an illumination of not less than five foot candles as measured at the floor level. It shall be the duty of the operator, and of any employees present on the premises, to ensure that the illumination described above is maintained at all times that the premises is occupied by patrons or open for business.

(4) It shall be the duty of the operator, and of any employees present on the premises, to ensure that no specified sexual activity occurs in or on the licensed premises.

(5) It shall be the duty of the operator to post conspicuous signs in well-lighted entry areas of the business stating all of the following:

(i) That the occupancy of viewing rooms less than 150 square feet is limited to one person.

(ii) That specified sexual activity on the premises is prohibited.

(iii) That the making of openings between viewing rooms is prohibited.

(iv) That violators will be required to leave the premises.

(v) That violations of these regulations are unlawful.

(6) It shall be the duty of the operator to enforce the regulations articulated in (5)(i) though (iv) above.

(7) The interior of the premises shall be configured in such a manner that there is an unobstructed view from an operator's station of every area of the premises, including the interior of each viewing room but excluding restrooms, to which any patron is permitted access for any purpose. An operator's station shall not exceed 32 square feet of floor area. If the premises has two or more operator's stations designated, then the interior of the premises shall be configured in such a manner that there is an unobstructed view of each area of the premises to which any patron is permitted access for any purpose, excluding restrooms, from at least one of the operator's stations. The

view required in this paragraph must be by direct line of sight from the operator's station. It is the duty of the operator to ensure that at least one employee is on duty and situated in each operator's station at all times that any patron is on the premises. It shall be the duty of the operator, and it shall also be the duty of any employees present on the premises, to ensure that the view area specified in this paragraph remains unobstructed by any doors, curtains, walls, merchandise, display racks or other materials or enclosures at all times that any patron is present on the premises.

(8) It shall be the duty of the operator to ensure that no porous materials are used for any wall, floor, or seat in any booth or viewing room.

(b) It shall be unlawful for a person having a duty under subsections (a)(1) through (a)(8) to knowingly or recklessly fail to fulfill that duty.

(c) No patron shall knowingly or recklessly enter or remain in a viewing room less than 150 square feet in area that is occupied by any other patron.

(d) No patron shall knowingly or recklessly be or remain within one foot of any other patron while in a viewing room that is 150 square feet or larger in area.

(e) No person shall knowingly or recklessly make any hole or opening between viewing rooms.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-744. Loitering; lighting and monitoring requirements.

(a) It shall be the duty of the operator of a sexually oriented business to: (i) ensure that at least two conspicuous signs stating that no loitering is permitted on the premises are posted on the premises; (ii) designate one or more employees to monitor the activities of persons on the premises by visually inspecting the premises at least once every 90 minutes or inspecting the premises by use of video cameras and monitors; and (iii) provide lighting to the exterior premises to provide for visual inspection or video monitoring to prohibit loitering. Said lighting shall be of sufficient intensity to illuminate every place to which customers are permitted access at an illumination of not less than one foot candle as measured at the floor level. If used, video cameras and monitors shall operate continuously at all times that the premises are open for business. The monitors shall be installed within an operator's station.

(b) It shall be the duty of the operator of a sexually oriented business to ensure that the interior premises shall be equipped with overhead lighting of sufficient intensity to illuminate every place to which customers are permitted access at an illumination of not less than five foot candles as measured at the floor level and the illumination must be maintained at all times that any customer is present in or on the premises.

(c) No sexually oriented business shall erect a fence, wall, or similar barrier that prevents any portion of the parking lot(s) for the establishment from being visible from a public right of way.

(d) It shall be unlawful for a person having a duty under this section to knowingly or recklessly fail to fulfill that duty.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-745. Penalties and enforcement.

(a) Any person who violates any of the provisions of this article shall be guilty of an infraction. Each infraction, and each day on which an infraction of this Article occurs, shall be considered a separate and distinct infraction. An infraction of this Article is hereby declared to be a public nuisance.

(b) Each infraction shall be punishable by a civil fine of $50.00. The city shall serve a uniform ordinance summons upon the infractor.

(1) The city, in addition to or in lieu of assessing or collecting a civil fine, may institute a civil action in the circuit court of the county in which the infraction occurred seeking (i) a mandatory injunction requiring compliance with this division, (ii) a declaration that the infraction is a public nuisance and an order requiring abatement of the public nuisance, or (iii) any other remedy permitted by law.

(2) If three or more infractions occur within a six-month period at a sexually oriented business, such shall be deemed a nuisance related to the business.

(c) Appeals. The filing of an appeal shall not act as a stay of the city's right to institute any civil action as described above.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-746. Applicability of article to existing businesses.

All preexisting sexually oriented businesses actively operating in the city in compliance with all state and local laws, and having met all the requirements to establish a vested right under South Carolina law, prior to the effective date of this article, and all sexually oriented business employees working in the city prior to the effective date of this article, are hereby granted a de facto temporary license to continue operation or employment for a period of 30 days following the effective date of this article. By the end of said 30 days, all sexually oriented businesses and sexually oriented business employees must conform to and abide by the requirements of this article. No business that has procured a lease or interest in land, or right to occupy a property, by any false pretenses shall be deemed to satisfy to the requirements of obtaining a de facto license or any benefit under this section.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-747. Prohibited conduct.

(a) No person shall knowingly or recklessly allow a person under the age of eighteen (18) years to be or remain on the premises of a sexually oriented business.

(b) No person shall knowingly or intentionally, in a sexually oriented business, appear in a state of nudity or engage in a specified sexual activity.

(c) No person shall knowingly or intentionally, in a sexually oriented business, appear in a semi-nude condition unless the person is an employee who, while semi-nude, remains at least six feet from all patrons and on a stage at least 18 inches from the floor in a room of at least 600 square feet.

(d) No employee who regularly appears semi-nude in a sexually oriented business shall knowingly or intentionally touch a customer or the clothing of a customer on the premises of a sexually oriented business.

(e) No operator or licensee of a sexually oriented business shall knowingly violate the regulations in this section or knowingly allow an employee or any other person to violate the regulations in this section.

(f) No person shall operate more than one sexually oriented business or classification of sexually oriented business in a single building or structure.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-748. Scienter required.

This article does not impose strict liability. Unless a culpable mental state is otherwise specified herein, a showing of a knowing or reckless mental state is necessary to establish a violation of a provision of this article. Notwithstanding anything to the contrary, for the purposes of this article, an act by an employee that constitutes grounds for suspension or revocation of that employee's license shall be imputed to the sexually oriented business licensee for purposes of finding a violation of this article, or for purposes of license denial, suspension, or revocation, only if an officer, director, or general partner, or a person who managed, supervised, or controlled the operation of the business premises, knowingly or recklessly allowed such act to occur on the premises. It shall be a defense to liability that the person to whom liability is imputed was powerless to prevent the act.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-749. Failure of city to meet deadline not to risk rights.

In the event that a city official is required to act or to do a thing pursuant to this article within a prescribed time, and fails to act or to do such thing within the time prescribed, said failure shall not prevent the exercise of constitutional rights of an applicant or licensee. If the act required of the city official under this article, and not completed in the time prescribed, includes approval of condition(s) necessary for approval by the city of an applicant or licensee's application for a sexually oriented business license or a sexually oriented business employee's license (including a renewal), the license shall be deemed granted and the business or employee allowed to commence operations or employment the day after the deadline for the city's action has passed.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-750. Location of sexually oriented businesses.

(a) Sexually oriented businesses shall not be required to obtain a conditional use permit or special use permit.

(b) It shall be unlawful to establish, operate, or cause to be operated a sexually oriented business in the City of Columbia, within 1,000 feet of any parcel occupied by another sexually oriented business; and

(c) It shall be unlawful to establish, operate, or cause to be operated a sexually oriented business in the city within 700 feet of:

(1) A place of worship or any religious institution;

(2) Any public or private educational facility, including but not limited to, child day care facilities, nursery schools, preschools, kindergartens, elementary schools, primary schools, intermediate schools, junior high school, middle schools, high schools, vocational schools, secondary schools, technical colleges, junior colleges, and universities;

(3) A public park or any outdoor recreational facility;

(4) Any residence or property zoned for residential use.

(d) For the purpose of this section, measurements shall be made in a straight line in all directions without regard to intervening structures or objects, from the closest part of any structure, including signs and roof overhangs, used in conjunction with the sexually oriented business to the closest point on a property boundary or right-of-way associated with any of the land use(s) identified in subsection (b) or (c) above.

(e) Notwithstanding anything to the contrary in the City of Columbia Code, a nonconforming sexually oriented business, lawfully existing and fully operational in all respects under law prior to the effective date of this article, and having met all the requirements to establish a vested right under South Carolina law, may continue to operate for two years following that date in order to make a reasonable recoupment of its investment in its current location. No business that has procured a lease or interest in land, or right to occupy a property, by any false pretenses shall be deemed to satisfy the requirements of obtaining any benefit under this section. At the conclusion of said two years, the use will no longer be recognized as a lawful nonconforming use and must conform to the requirements of this section, provided that a nonconforming sexually oriented business may apply for one or more extensions of the original two-year period upon a showing of financial hardship. An application for an initial extension based upon financial hardship ("hardship exception") shall be made at least 60 days before the conclusion of the aforementioned two-year period. If a hardship extension is granted, subsequent applications for hardship extensions shall be made at least 60 days before the conclusion of the non-conforming sexually oriented business's current extension period.

(f) Procedure for seeking hardship extension. An application for a hardship extension shall be filed in writing with the administrator, and shall include evidence of purchase and improvement costs, income earned and lost, depreciation, and costs of relocation. Within ten days after receiving the application, the administrator shall schedule a public hearing on the

application before the hearing officer, which public hearing shall be conducted within 30 days after the administrator's receipt of the application. Notice of the time and place of such public hearing shall be published at least ten days before the hearing in a newspaper of general circulation published within the city, and shall contain the particular location for which the hardship extension is requested.

The hearing officer shall issue a written decision within ten days after the public hearing on the application for a hardship extension. The hardship extension shall be granted only upon a showing that the nonconforming sexually oriented business is unable to recoup its investments, made prior to the effective date of this article, in its current location unless the hardship extension is granted.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-751. Severability.

This article and each section and provision of said article hereunder, are hereby declared to be independent divisions and subdivisions and, not withstanding any other evidence of legislative intent, it is hereby declared to be the controlling legislative intent that if any provisions of said article, or the application thereof to any person or circumstance is held to be invalid, the remaining sections or provisions and the application of such sections and provisions to any person or circumstances other than those to which it is held invalid, shall not be affected thereby, and it is hereby declared that such sections and provisions would have been passed independently of such section or provision so known to be invalid. Should any procedural aspect of this article be invalidated, such invalidation shall not affect the enforceability of the substantive aspects of this article.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-752. Conflicting Code provisions repealed.

Any provision(s) in the City of Columbia Code of Ordinances specifically in conflict with any provision in this article is hereby deemed inoperative and repealed.
(Ord. No. 2011-105, 12-29-11)

Sec. 11-753. Effective date.

This article shall become effective immediately upon passage as provided by law.
(Ord. No. 2011-105, 12-29-11)

Secs. 11-754—11-800. Reserved.

ARTICLE XIII. PURVEYORS OF CANNABIS PRODUCTS

Sec. 11-801. Definitions.

Cannabidiol or *CBD* means a chemical compound from the species cannabis sativa l. of the plant family cannabaceae.

Cannabis means any derivative, compound, extract, cannabinoid, isomer, acid, salt, or salts of isomers of the species cannabis sativa l., excluding marijuana as defined by S.C. Code 1976, § 44-53-110(27)(a), with a tetrahydrocannabinol (THC) concentration of not more than 0.3 percent on a dry weight basis, or the THC concentration for hemp as defined in 7 U.S.C. § 5940, whichever is greater. "Cannabis" includes, but is not limited to, full-spectrum cannabidiol (CBD), delta-8 THC, delta-9 THC, delta-10 THC and HHC.

Product means any item for sale that contains cannabis and is intended for human ingestion, including capsules, candies, soft chews, gummies, vapor cartridges, cigarettes, flowers, extracts, teas, honey, chocolates, and patches.

Purveyor means a retail store physically located within the corporate limits of the City of Columbia that makes available for sale cannabis products to persons entering or shopping at the store. The term purveyor includes cannabis shops, vape shops, health and wellness establishments, grocery stores, and any other retail business that sells any type of cannabis product.
(Ord. No. 2022-082, 10-18-22)

Sec. 11-802. Disclosure requirement.

Purveyors of cannabis products shall post clear and conspicuous signage on or near displays of cannabis products stating that consumption or use of cannabis products may cause a person to fail a workplace drug screening test. These signs must be equal to 50 percent of the size of the purveyor's product signage.
(Ord. No. 2022-082, 10-18-22)

Chapter 12

MOTOR VEHICLES AND TRAFFIC*

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State law reference—Motor vehicles, S.C. Code 1976, title 56.

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Sec. 12-50. Responsibility of vehicle owner for illegal parking.
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ARTICLE I. IN GENERAL

Sec. 12-1. Adoption of state law.

There is hereby adopted by reference and made a part of this chapter as if set out in full those provisions of state law known as the uniform traffic act as contained in S.C. Code 1976, § 56-5-10 et seq.
(Code 1979, § 2-3001)

State law reference—Municipal court authority to try violations of state traffic laws, S.C. Code 1976, § 5-7-90.

Sec. 12-2. Obedience to traffic control devices and traffic officers.

(a) Drivers of all vehicles shall abide by signals of traffic officers and all automatic and stationary traffic signs and signals within the city limits.

(b) No person shall willfully fail or refuse to comply with any lawful order or direction of any police officer or other city employee authorized to direct, control or regulate traffic.
(Code 1979, § 2-3002)

State law reference—Similar provisions, S.C. Code 1976, § 56-5-740.

Sec. 12-3. Riding bicycles on sidewalks; riding bicycles, mopeds or motorcycles in parks and recreation areas.

(a) It is unlawful for any person to operate a bicycle upon any sidewalk or pedestrian walkway in the area bounded by the centerline of the following streets: Elmwood Avenue on the north, Sumter Street on the east, Gervais Street on the south, and Assembly Street on the west.

(b) No bicycles, mopeds or motorcycles shall be ridden in parks or in recreation areas except in areas specifically designated by signs for such use.
(Code 1979, § 2-3003)

Sec. 12-4. Riding on portion of vehicle not designed for passengers.

No person shall ride on any vehicle upon any portion thereof not designed or intended for the use of passengers. This section shall not apply to an employee engaged in necessary discharge of a duty, or to persons riding within truck bodies in space intended for merchandise.
(Code 1979, § 2-3004)

Sec. 12-5. Operation of motor scooters.

(a) For purposes of this section, a "motor scooter" is a motor vehicle as defined by the Code of Laws of South Carolina Sections 56-3-20(3) and (4), but without a saddle for the use of the rider.

(b) Motor scooters may not be operated on any public street in the City of Columbia which has a speed limit of 25 miles per hour or greater.

(c) No person may operate a motor scooter on any public sidewalk in the city.

(d) No person may operate a motor scooter in the city without wearing a protective helmet equipped with a neck or chin strap and reflectorized on both sides thereof.

(e) Any violation of this section is triable in the municipal court and punishable as provided in section 1-5.
(Ord. No. 2018-079, 1-15-19)

Sec. 12-6. Removal of trees, shrubs or other plants constituting traffic hazard.

(a) The director of public services is hereby authorized to remove any and all shrubbery, trees, weeds, bushes or plants of any kind from the streets and sidewalks of the city when it is determined by such officer that the tree, shrub or other plant constitutes a dangerous condition in the movement of motor vehicle traffic within the city or interferes in any way with the orderly and safe movement of such traffic. Such officer is further authorized to cut and remove any portion of any trees, shrubbery, bushes or plants which overhang the streets or sidewalks of the city and which interfere in the judgment of such official with the safe and proper movement of motor vehicle traffic.

(b) Whenever it shall be determined by the director of public services that there exists on any privately owned property or lot located at any street intersection of the city any tree, bush, shrubbery or other plant which obstructs the view of motor vehicles or other traffic or which interferes with the safe and orderly movement of traffic or creates a dangerous condition, the owner and occupant of such private lot or property shall, within ten days after written notice given by the city, remove any such tree, bush, shrubbery or other plant. Any owner or occupant of such privately owned property or lot who shall fail or refuse to remove any such tree, bush, shrubbery or other plant shall be guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5.
(Code 1979, § 2-3007)

Cross reference—Vegetation generally, § 17-791 et seq.

Sec. 12-7. Dangerous structures or obstructions in streets.

(a) All points and locations on the streets of the city where structures or obstructions exist in the street or other conditions exist which create traffic hazards dangerous to the life and public safety of the citizens of the city are hereby declared to be public nuisances.

(b) All points and locations on the streets of the city where structures or obstructions of any kind occupy a portion of the public ways and streets and prevent the full use thereof for public necessity and convenience and create dangerous traffic hazards and nuisances are hereby declared to be public nuisances.

(c) The chief of police is hereby authorized and is directed to take all necessary steps to cause to be eliminated and abated all such dangerous traffic hazards and all such public nuisances.
(Code 1979, § 2-3008)

Sec. 12-8. Driving on sidewalk.

The driver of a vehicle shall not drive within any sidewalk area except at a permanent or temporary driveway.
(Code 1979, § 2-3009)

Sec. 12-9. Obstructing traffic.

It shall be unlawful for any person to stop, drive or propel a vehicle in such manner as to block or obstruct the traffic on any street or alley of the city.
(Code 1979, § 2-3010)

Sec. 12-10. Spinning or sliding wheels.

Any driver of any motor vehicle who shall willfully cause such vehicle to "dig out" or cause any such vehicle to make unnecessary noise by reason of operating such vehicle in such manner as to cause the wheels thereof to spin or slide on the roadway of any street when starting such vehicle or while making any turning movement shall be deemed guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5.
(Code 1979, § 2-3011)

Sec. 12-11. Opening doors into traffic.

No person shall open the door of a motor vehicle on the side available to moving traffic unless and until it is reasonably safe to do so, nor shall any person leave a door open on the side of a motor vehicle available to moving traffic for a period of time longer than necessary to load or unload passengers.
(Code 1979, § 2-3012)

Sec. 12-12. Corner cutting.

It shall be unlawful for any person to drive a vehicle over any sidewalk area and through any driveway, parking lot or business entrance at any intersection, in making either a right or left turn, except for the purpose of coming to a complete stop to obtain or render some service or make a sale or purchase. It is the intention of this section to prohibit "corner cutting" by driving a vehicle from one street into another across any sidewalk and/or driveway and/or through any driveway.
(Code 1979, § 2-3013)

Sec. 12-13. Through trucks prohibited on certain streets.

It shall be unlawful for through trucks to travel where authorized signs are erected prohibiting such travel.
(Code 1979, § 2-3014)

Sec. 12-14. Play streets.

Whenever authorized signs are erected indicating any street or part thereof as a play street, no person shall drive a vehicle upon any such street or portion thereof except drivers of vehicles having business or whose residences are within such closed area, and then any such driver shall exercise the greatest care in driving upon any such street or portion thereof.
(Code 1979, § 2-3015)

Sec. 12-15. Obedience to restricted turn signs and signs prohibiting entrance to street.

It shall be unlawful in the city to turn upon any street or at any intersection at which a sign is displayed restricting or prohibiting turns at certain hours of the day, during those restricted hours, and it shall be unlawful at all times to enter any street at which a sign is displayed prohibiting entrance.
(Code 1979, § 2-3016)

Sec. 12-16. Speed limits generally.

(a) Where no special hazard exists, the following speeds for passenger vehicles shall be lawful, and any speed in excess of such limits shall be unlawful:

(1) Twenty-five miles per hour in any business district, as defined in this section; and

(2) Thirty miles per hour in any residence district, as defined in this section.

(b) Where no special hazard exists, the following speeds for motor trucks and motor truck tractors shall be lawful, but any speed in excess of such limitations shall be unlawful:

(1) Twenty miles per hour in any business district, as defined in this section; and

(2) Thirty miles per hour in any residence district, as defined in this section.

(c) The fact that the speed of a vehicle is lower than the limits set out in subsections (a) and (b) of this section shall not relieve the driver from the duty to decrease speed when approaching and crossing an intersection, when approaching and going around a curve, when approaching a hillcrest, when traveling upon any narrow or winding roadway, or when special hazards exist with respect to pedestrians or other traffic or by reason of weather or highway conditions, and speed shall be decreased as may be necessary to avoid colliding with any person, vehicle or other conveyance on or entering the highway in compliance with legal requirements and the duty of all persons to use due care.

(d) For purposes of this section, the term "business district" refers to the territory contiguous to and including a roadway when within any 600 feet along such roadway there are buildings in use for business or industrial purposes, including but not limited to hotels, banks, office buildings, railroad stations and public buildings, which occupy at least 300 feet of frontage on one side or 300 feet collectively on both sides of the roadway. The term "residence district" means the territory contiguous to and including a highway not

comprising a business district when the property on such highway for a distance of 300 feet or more is in the main improved with residences or residences and buildings in use for business.
(Code 1979, § 2-3017)

State law reference—Maximum speeds, S.C. Code 1976, § 56-5-1520.

Sec. 12-17. Speed in school zones.

(a) All school zones shall have a maximum speed limit of 25 miles per hour and shall have signs installed at the beginning of each zone delineating the time when the speed limit is in effect.

(b) All school zones shall be designated by signs, flashing lights or both.

(c) The school zone speed limit will be in effect 30 minutes before and 30 minutes after the opening of school and 30 minutes before and 30 minutes after the closing of school.
(Code 1979, § 2-3018)

Sec. 12-18. Vehicles displaying advertising.

Vehicles which display advertisements are permitted upon the streets and public ways of the city, provided such vehicles conform with the following requirements:

(1) No advertising display may be illuminated by any means;

(2) No advertising display shall exceed 85 square feet;

(3) Only one advertising display shall be permitted on any vehicle surface;

(4) Operators of such vehicles must obtain a franchise to be issued by Columbia City Council and pay an annual franchise fee of $350.00, such franchise fee to be in addition to a business license fee. The provisions of this subsection do not apply to vehicles which advertise goods or services provided by the person or business entity which owns the vehicle.

(5) Changeable copy signs must remain static for intervals of at least six seconds.
(Ord. No. 2005-104, 5-3-06)

Sec. 12-19. Alternative payment of fines—Temporary program.

(a) Notwithstanding any other provision of this chapter, the parking services division, from time to time and upon authorization by the city council pursuant to subsection (b), may operate a temporary program by which fines for qualifying parking infractions may be paid by means of the donation of food items, children's toys, or school supplies in lieu of the payment of money. In order to satisfy the amount of the fine for any particular infraction, receipts for the food, toys or supplies donated must be provided to reflect an amount of equal or greater value than the amount of the corresponding fine. Late fees are not to be included in the temporary program.

(b) A temporary program described in subsection (a) may be authorized no more than twice per calendar year and must be approved in advance, as to both time period and duration, by city council. The parking services division may establish such procedures and requirements regarding the program as may be desirable or appropriate, including without limitation what types of food items, toys or school supplies will qualify; a range of dates within which parking infractions must have been issued in order to be eligible; and a time period within which donations in lieu of payment must be made. The determination of whether or not a particular parking infraction qualifies under the program, and the determination of the value of donations are completely within the discretion of the parking services division.

(c) For purposes of subsection (a), "qualifying parking infraction" means any non-moving violation other than the following:

(1) Handicap parking

(2) Residential parking permit

(3) Parking improperly

(4) Parking in "No Parking" area

(5) Parking in bus/taxi zone

(6) Double parking blocking the sidewalk

(7) Loading zone

(8) Reserved parking only

(Ord. No. 2019-060, 8-6-19)

Secs. 12-20—12-40. Reserved.

ARTICLE II. STOPPING, STANDING AND PARKING*

DIVISION 1. GENERALLY

Sec. 12-41. Unattended motor vehicles.

It shall be unlawful for any person driving or in charge of a motor vehicle to leave such vehicle unattended on any street, alley, other public property, or new or used car lot, or on any private parking lot to which the general public is invited and at which there is no attendant, without first stopping the engine, locking the ignition and removing the ignition key from the vehicle; provided, however, the provisions of this section shall not be applicable to vehicles used for public transportation, vehicles used for delivery and emergency

*__Cross reference—__Off-street parking and loading facilities, § 17-341 et seq.

__State law reference—__Stopping, standing and parking, S.C. Code 1976, § 56-5-2510 et seq.

purposes, or vehicles owned and operated for governmental purposes by the city, county or state. Whenever any police officer shall find a motor vehicle standing unattended with the ignition key in the vehicle in violation of this section, such police officer shall prepare a citation against the owner of the vehicle and shall affix the citation to the vehicle. The registered owner of a vehicle found in violation shall be held prima facie responsible for any such violation.
(Code 1979, § 2-3051)

Sec. 12-42. Storage of commercial vehicles, recreational vehicles or trailers on streets.

No person shall store or permit to be stored any commercial vehicle, recreational vehicle or trailer of any size or description, upon any of the streets of the city. For the purpose of this section, storage shall mean the leaving or parking of such vehicle unattended on a street for a longer time than two hours, day or night or unmoved from its location on a street for a longer time than two hours, day or night, with no obvious sign of continuous human use during the two-hour period. For the purposes of this section, the term "street" shall include any area within the street right-of-way including the area between the curb-line and adjacent property lines.
(Code 1979, § 2-3052; Ord. No. 2002-017, 4-17-02; Ord. No. 2011-046, 7-19-11)

Sec. 12-43. Parking prohibited during certain hours in designated places.

When signs are erected in each block giving notice thereof, no person may park a vehicle as prohibited by such signage between the hours and days so designated.
(Code 1979, § 2-3053; Ord. No. 2016-090, 10-18-16)

Sec. 12-44. Parking time limited in designated places.

When signs are erected in each block giving notice thereof, no person shall park a vehicle for longer than the period and between the hours so designated except on Sundays and public holidays.
(Code 1979, § 2-3054)

Sec. 12-45. Stopping, standing or parking in loading zone.

(a) No person may stop, stand or park a vehicle for any purpose or period of time other than for the expeditious loading or unloading of passengers in any place marked as a passenger zone during hours when the regulations applicable to such passenger zone are effective, and then only for a period not to exceed three minutes.

(b) No person may stop, stand or park a vehicle for any purpose or length of time other than for expeditious unloading and delivery or pickup and loading of materials in any place marked as a loading zone during the hours of 7:00 a.m. to 11:00 a.m., Monday through Saturday. In no case shall the stop for loading and unloading of materials exceed 30 minutes.

Unless otherwise posted by the traffic engineer, any vehicle may occupy a loading zone on Sunday, or for a period not to exceed 30 minutes after 11:00 a.m. and before 8:00 a.m. on Monday through Saturday.
(Code 1979, § 2-3055; Ord. No. 2016-090, 10-18-16)

Sec. 12-46. Use of bus and taxicab stands.

(a) The driver of a bus or taxicab shall not stand or park upon any street in any business district at any place other than at a bus stop or taxicab stand respectively, except that this provision shall not prevent the driver of any such vehicle from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of and while actually engaged in loading or unloading passengers.

(b) No person shall stop, stand or park a vehicle other than a bus in a bus stop or other than a taxicab in a taxicab stand when any such stop or stand has been officially designated and appropriately signed, except that the driver of a passenger vehicle may temporarily stop therein for the purpose of and while actually engaged in loading or unloading passengers when such stopping does not interfere with any bus or taxicab waiting to enter or about to enter such zone.

(c) No person shall leave unattended a taxicab or other vehicle in a designated taxicab stand.
(Code 1979, § 2-3056)

Cross reference—Taxicabs, shuttles and limousines, § 24-31 et seq.

Sec. 12-47. Manner of parking generally; angle parking; permit for backing up to curb.

No person shall stand or park a vehicle in a roadway other than parallel with the edge of the roadway, headed in the direction of traffic, and with the curbside wheels of the vehicle within 18 inches of the edge of the roadway, except as follows:

(1) Upon those streets which have been marked or signed for angle parking, vehicles shall be parked at an angle to the curb indicated by such marks or signs and headed in the direction of traffic.

(2) In places where and at hours when stopping for the loading and unloading of merchandise or materials is permitted, vehicles used for the transportation of merchandise or materials may back into the curb to take on or discharge loads when the owner of such vehicle holds a permit granting him such privilege, and such permit shall be either in the possession of the driver or on the vehicle at the time such vehicle is backed against the curb to take on or discharge a load, and it shall be unlawful for any owner or driver to violate any of the special terms or conditions of any such special permit.

(Code 1979, § 2-3057)

State law reference—Authority of city to permit angle parking, S.C. Code 1976, §§ 56-5-2550, 56-5-2560.

Sec. 12-48. Parking between roadway and adjacent property line.

It shall be unlawful for any person to stand or park a vehicle upon that portion of a street between the curblines or the lateral lines of a roadway and adjacent property lines.
(Code 1979, § 2-3058)

Sec. 12-49. Parking for certain purposes prohibited.

No person may stand or park a vehicle upon any roadway, city parking garage or city parking lot for the principal purpose of:

(1) Displaying it for sale; and/or

(2) Washing, greasing or repairing such vehicle, except repairs necessitated by an emergency.

(Code 1979, § 2-3059; Ord. No. 2016-090, 10-18-16)

Sec. 12-50. Responsibility of vehicle owner for illegal parking.

No person shall allow, permit or suffer any vehicle registered in his name, or which he has leased or rented from another person, to stand or park in any street in the city in violation of any of the ordinances of this city regulating the standing or parking of vehicles.
(Code 1979, § 2-3060)

Sec. 12-51. Use of loading zones.

(a) Parking places marked as loading zones may be used only by vehicles actively engaged in loading or unloading, pickup or delivery of merchandise to or from a business which can be served from the loading zone within a period of 30 minutes.

(b) It shall be unlawful for any vehicle, regardless of size or tonnage, to occupy any loading zone unless the owner has first obtained an annual permit from the parking services division, which shall run from July 1 to June 30. The parking services division shall issue permits only for those vehicles which have as their principal business purpose the transporting of goods and merchandise, and may collect an annual fee as provided in the table below. Additional vehicles under the same ownership may be issued permits as provided in the table below.

	Fee
First 10 Permits	$100.00 each
Additional Permits (same vehicle ownership)	$50.00 each

(c) The owner of any vehicle found in violation of this section shall be guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5, and the permit, if any, issued for the vehicle, shall be revoked in addition to other penalties provided by law.
(Code 1979, § 2-3061; Ord. No. 2016-090, 10-18-16; Ord. No. 2024-039, 12-3-24)

Sec. 12-52. Certain parked vehicles declared nuisance.

Any vehicle parked continuously in any metered parking space, city controlled parking lot or city parking garage for 24 hours or more or parked on any street or other public property, whether in an authorized or unauthorized zone, which is found to be the subject of $100.00 or more past due on outstanding bonds under the city parking ordinance, is hereby declared to be a public nuisance.

(Code 1979, § 2-3062; Ord. No. 2016-090, 10-18-16)

Cross reference—Nuisances, § 8-31 et seq.

Sec. 12-53. Immobilization and impoundment of vehicles.

(a) *Authorized; procedure; fee.* Any vehicle identified as a public nuisance may be impounded by the city by giving authorization to a commercial towing or wrecker service to tow the vehicle away and store it in a safe place until claimed by the owner or by immobilizing it in such a manner as to prevent its operation.

(1) Immobilization shall be at the direction of a city police officer or other city employee charged with such responsibility.

(2) Upon immobilization, the officer or employee shall place upon the vehicle a notice sufficient to warn the owner or driver that the vehicle has been immobilized and that any attempt to move or drive it may result in damage. Such notice shall also inform the owner or driver of the reason for immobilization and the amount of the outstanding bonds then due.

(3) Immobilization shall remain in place for 48 hours unless sooner released in accordance with subsection (b) of this section. If compliance with subsection (b) of this section has not occurred within 48 hours, the vehicle shall be towed and impounded.

(4) The owner of the vehicle immobilized or towed shall have the right to contest the validity of the action taken by the city by requesting a hearing by the city manager or his/her designee. The request for a hearing must be in writing and delivered to the city manager's office within ten days of immobilization or towing. Any person dissatisfied with the decision of the city manager or his/her designee may appeal the decision to a court of competent jurisdiction within ten days after notice of the decision from which the appeal is taken.

(5) The owner of an immobilized vehicle shall be subject to a fee of $75.00 for the immobilization, which fee shall be exclusive of any bonds posted, fines imposed or storage costs assessed.

(b) *Release of vehicle to owner.*

(1) No impounded vehicle shall be released without satisfactory proof of ownership. The owner of a towed or immobilized vehicle may secure its release by:

a. Posting the bond required by the municipal court for his appearance to contest the validity of the actions of the city and to answer for the parking violations.

b. Paying the fee imposed by subsection (a)(5) of this section.

(2) Towing and storage charges of a commercial towing or wrecker service shall be the responsibility of the owner.

(Code 1979, §§ 2-3063, 2-3064; Ord. No. 2001-078, 10-17-01; Ord. No. 2024-039, 12-3-24)

Secs. 12-54—12-70. Reserved.

DIVISION 2. PARKING METER ZONES

Sec. 12-71. Establishment.

The city council may establish by resolution from time to time, as traffic conditions require, zones to be known as parking meter zones upon such streets of the city as are selected by the city council for the location of such meters, and in such parking meter zones the city manager shall cause parking meters to be installed and shall cause parking meter spaces to be designated as provided in this division.

(Code 1979, § 2-3065)

Sec. 12-72. Location and operation of meters.

Parking meters, parking control device or space controlled by a remote payment method installed in the parking meter zones established by the provisions of this division may be placed upon the curb nearby or adjacent to the individual parking places described in this division. Each parking meter space, control device or space controlled by a remote payment method shall be placed or set in such a manner as to show or display by a signal or through an electronic method that the parking space adjacent to such meter parking, control device or space controlled by a remote payment method is or is not in use. Each parking meter, parking control device or space controlled by a remote payment method may be installed and set to display, upon the deposit of coins, credit cards, prepaid parking card or by an electronic payment method authorized by the city, a signal indicating purchased parking for up to the maximum time allowed by the parking space, in such zones as are designated by the city council. Each parking space shall also be arranged so that upon the expiration of the purchased parking time, it will indicate by a mechanical operation and the dropping of the proper signal or through an electronic method of notification that the purchased parking has expired. Parking payment methods such as pay-by-space and pay-and-display may be installed in areas designated by the city manager within parking meter zones to provide convenient methods of payment for parking. Where meters or other devices are not practical in the judgment of parking services, signage may be erected at parking spaces and at the entrance to public off-street parking lots or garages to allow members of the public to use alternative methods of payment. The city may provide a pay-by-phone or other remote payment service to the public for payment of parking fees.

(Code 1979, § 2-3066; Ord. No. 2001-078, 10-17-01; Ord. No. 2016-090, 10-18-16; Ord. No. 2024-039, 12-3-24)

Sec. 12-73. Marking of spaces; vehicles to be parked within markings.

Parking services may have lines, markings or signage painted or placed upon the curb or upon the street adjacent to each parking meter, parking control device or spaces controlled by a parking payment program, for the purpose of designating the parking space. Each vehicle parked within the space shall park within the lines or markings so established. It shall be unlawful and a violation of this division to park any vehicle across any such line or marking or to park such vehicle in such position that the vehicle shall not be entirely within the area so designated by such lines or markings or to park a vehicle in a partially obstructed space, which would prevent the vehicle from parking within the designated lines or markings.
(Code 1979, § 2-3067; Ord. No. 2016-090, 10-18-16)

Sec. 12-74. Parking position.

When a parking space in any parking meter zone is parallel with the adjacent curb or sidewalk, any vehicle parked in such parking space shall be parked so that the foremost part of such vehicle shall be alongside of and nearest to the parking meter or sign. When a parking space in any parking meter zone is diagonal to the curb or sidewalk, any vehicle parked in such parking space shall be parked with the foremost part of such vehicle directed at and nearest to such meter or sign. The total length of any vehicle parked in a designated compact space shall not extend beyond the designated lines or markings.
(Code 1979, § 2-3068; Ord. No. 2016-090, 10-18-16)

Sec. 12-75. Deposit of payment.

When any vehicle shall be parked in any space alongside or next to which a parking meter, parking control device or space controlled by a remote payment method is located in accordance with the provisions of this division, the operator of such vehicle shall, upon entering the parking space, immediately deposit a coin of the United States, credit card, prepaid parking card in such parking meter or other parking control device, or purchase time by other designated electronic method, and the parking space may then be lawfully occupied by such vehicle during the period provided. If such vehicle shall remain parked in any such parking space beyond the parking time limit, the parking meter parking control device or space controlled by a remote payment method shall display a sign or signal showing expired parking or the operator shall be notified by electronic means, and in that event such vehicle shall be considered as parked overtime and beyond the period of purchased parking time, and the parking of a vehicle overtime or beyond the period of purchased parking time in any such part of a street where any such meter, parking control device or space controlled by a remote payment method is located shall be a violation of this division.

	Fee
On-Street	$1.50 per hour, or portion thereof, up to maximum time limit

	Fee
Daily Meter Reservation	$25.00 per meter
Weekly Meter Reservation	$100.00 per week (6 days)
Monthly Meter Reservation	$400.00

(Code 1979, § 2-3069; Ord. No. 2016-090, 10-18-16; Ord. No. 2024-039, 12-3-24)

Sec. 12-76. Overtime parking.

It shall be unlawful for any person to cause, allow, permit or suffer any vehicle registered in his name, or which he has leased or rented from another person, to be parked longer than the maximum period of purchased parking time established for any parking meter zone as described in this division, as shown on the face of the meter or through other established parking control devices or approved electronic methods. The provisions of this section apply whether or not additional parking time is purchased by an electronic method or by depositing additional coins in the meter after the vehicle has remained parked longer than the maximum period shown on the meter face or parking control device.
(Code 1979, § 2-3070; Ord. No. 2016-090, 10-18-16)

Sec. 12-77. Depositing slugs and alteration of payment methods.

It shall be unlawful to deposit or cause to be deposited in any parking meter any slug, device or metallic substitute for a coin of the United States or to use any method to alter any device or software to avoid paying parking fees.
(Code 1979, § 2-3071; Ord. No. 2016-090, 10-18-16)

Sec. 12-78. Defacing or injuring meters.

It shall be unlawful for any person to deface, injure, tamper with, open or willfully break, destroy or impair the usefulness of any parking meter, parking device, signage or parking payment software installed or authorized under the provisions of this division.
(Code 1979, § 2-3072; Ord. No. 2016-090, 10-18-16)

Sec. 12-79. Violations; citations; penalty.

(a) It shall be the duty of city police officers, other city employees, designated by the city manager, or any other state or federal government agency designated by the city manager with such responsibility to report:

(1) The number of each parking meter, parking control device or space controlled by a remote payment method which indicates that the vehicle occupying the parking space adjacent to such parking meter is or has been parked in violation of any of the provisions of this division;

(2) The state license number of such vehicle; and

(3) Any other facts, a knowledge of which is necessary to a thorough understanding of the circumstances attending such violation.

(b) Each such police officer, other city employees designated by the city manager, or any other state or federal government agency designated by the city manager shall also attach to such vehicle a notice to the owner thereof that such vehicle has been parked in violation of a provision of this division, stating the bond set by the city court in regard to such violation.

(1) In any parking meter zone, every hour or fraction of any hour of overtime parking shall constitute a separate offense.

(2) Persons who receive a parking ticket may elect to pay the bond amount of the parking ticket or they may invoke the right of trial upon their acceptance of a courtesy summons in substitution of each parking ticket issued. Upon receiving a request for such trial, a courtesy summons shall be issued and a copy of that courtesy summons will be mailed to the owner's address listed in the vehicle's registration information along with the date and time of the trial. The original courtesy summons will be served at the time of the trial. Service of a courtesy summons vests the municipal court with jurisdiction to hear and dispose of the charge for which the courtesy summons was issued and served. Upon conviction after trial, the person shall be punished for each violation in accordance with section 1-5.

Citation Type	*Initial Fine*	*30-Day Late Fee*	*60-Day Late Fee*	*90-Day Late Fee*
Handicapped Parking	$500	$0	$0	$0
Fire Lane	$500	$25	$25	$0
Parking Overtime/ Time Restriction	$25	$25	$25	$0
Parking Wrong Side of Street	$25	$25	$25	$0
Parking Improperly	$25	$25	$25	$0
Parking In "No Parking" Area	$50	$25	$25	$0
Parking In Bus/Taxi Zone	$50	$25	$25	$0
Double Parking	$50	$25	$25	$0
Blocking Driveway	$75	$25	$25	$0
Expired/Unpaid Meter/ Space	$20	$25	$25	$0
Blocking Sidewalk	$50	$25	$25	$0
Loading Zone	$75	$25	$25	$0
Reserved Parking Only	$75	$25	$25	$0
Re-Feeding Meter	$25	$25	$25	$0
Tree Zone	$25	$25	$25	$0
Keys in Unattended Vehicle	$50	$25	$25	$0
2nd Violation (same space)	$25	$25	$25	$0

Citation Type	*Initial Fine*	*30-Day Late Fee*	*60-Day Late Fee*	*90-Day Late Fee*
3rd Violation (same space)	$25	$25	$25	$0

(Code 1979, § 2-3073; Ord. No. 2000-002, 1-19-00; Ord. No. 2003-029, 5-7-03; Ord. No. 2008-090, 10-22-08; Ord. No. 2024-039, 12-3-24)

Sec. 12-80. Disposition of revenue.

The funds derived from parking meters, parking control devices and alternative parking payment methods as provided in this division, are hereby levied and assessed as fees to provide for the proper regulation and control of traffic upon the public streets, and to cover the cost of the supervision, inspection, installation, operation, maintenance, control and use of the parking spaces and regulating the parking of vehicles in the parking meter zones created by this division.
(Code 1979, § 2-3074; Ord. No. 2016-090, 10-18-16)

Sec. 12-81. Exemptions.

(a) All commercial trucks while actually loading and unloading are required to pull in to the curb without charge in metered space, parking control device or space controlled by a remote payment method space.

(b) Any commercial truck parked in a meter space, parking control device or space controlled by a remote payment method longer than while actually loading and unloading will be in violation of this division.

(c) Disabled operators of vehicles bearing license plates issued by the state highway department indicating that the operator is disabled shall be exempt from the requirements of this division pertaining to the payment of on-street parking fees. All other parking and meter regulations, except timed parking, shall apply to such operators.

(d) Witnesses who testify or are subpoenaed to testify in criminal cases in the circuit court, while in attendance at court, shall not be subject to parking meter requirements for deposit of coins or overtime parking, and parking meter tickets certified by the clerk of court as exempt under this subsection shall be cancelled.
(Code 1979, § 2-3075; Ord. No. 2016-090, 10-18-16; Ord. No. 2024-039, 12-3-24)

Secs. 12-82—12-100. Reserved.

Editor's note—Ord. No. 2004-022, adopted July 28, 2004, repealed former section 12-82 in its entirety which pertained valet parking and derived from Ord. No. 97-22, § 1, adopted April 9, 1997.

DIVISION 3. RESIDENTIAL PERMIT PARKING DISTRICTS*

Sec. 12-101. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Owned vehicles means automobiles registered at addresses in a permit parking district and operated on a regular basis by resident owners or tenants of residential units within a permit parking district.

Permit parking district means a residential district designated by resolution of the city council in which certain parking is limited to a specified time period, except to vehicles displaying a permit as provided in this division.

Visitor means a person or persons parking their vehicle in a permit parking district for the purpose of visiting the permit holder at the physical residence of the permit holder.
(Ord. No. 2008-050, 1-7-09)

Sec. 12-102. Purpose of division.

The purpose of this division is to reduce hazardous traffic conditions resulting from the use of streets within areas zoned for residential uses for the parking of vehicles by persons utilizing adjacent commercial, industrial, educational, recreational, governmental or institutional uses; to protect such districts from polluted air, excessive noise, litter and refuse caused by the entry of such vehicles; to protect the residents of such districts from unreasonable burdens in gaining access to their residences; to preserve the character of such districts as residential districts; to promote efficiency in the maintenance of residential streets in a clean and safe condition; to preserve the value of the property in such districts; and to preserve the safety of children, other pedestrians and traffic in the district, as well as the peace, good order, comfort, convenience and welfare of the inhabitants of the city.
(Ord. No. 2008-050, 1-7-09)

Sec. 12-103. Designation by council.

Whenever the city council shall determine, after a traffic survey of a particular residential area of the city and after a public hearing, that such an area is severely impacted by nonresidential on-street parking by reason of adjacent commercial, industrial, educational, recreational, governmental or institutional uses, such residential area may be designated as a permit parking district.
(Ord. No. 2008-050, 1-7-09)

***Editor's note—**Ord. No. 2008-050, adopted Nov. 5, 2008, amended and restated former Div. 3, §§ 12-101—12-115, in it entirety to read as herein set out. Former Div. 3 pertained to the same subject matter and derived from the Code of 1979.

Sec. 12-104. Survey and recommendation.

(a) Upon receipt of a petition signed by more than 50 percent of the resident property owners of a contiguous area, the department designated by the city manager to enforce residential parking permit regulations shall conduct a survey to determine whether such area should be designated as a permit parking district.

(b) The department designated by the city manager to enforce residential parking permit regulations may adjust the boundaries of the proposed area if it is determined that the purposes of this division will be best served by such adjustment.

(c) The department designated by the city manager to enforce residential parking permit regulations will conduct a block-by-block survey of the proposed area on a weekday. If more than 75 percent of the parking spaces are occupied by vehicles, 50 percent of which are not registered at addresses in the area, then the department designated by the city manager to enforce residential parking permit regulations shall certify the area as a proposed permit parking district and report his findings and recommendations to the city council; provided, however, if the area fails to qualify, the department designated by the city manager to enforce residential parking permit regulations may conduct additional surveys, if in the department's opinion the area is sufficiently impacted by nonresidential uses and further counts may be reasonably warranted.

(d) Upon receipt of the findings and recommendations of the department designated by the city manager to enforce residential parking permit regulations, the city council shall set a public hearing and may by resolution designate such area as a permit parking district and set the hours of regulation.
(Ord. No. 2008-050, 1-7-09)

Sec. 12-105. Parking limitations; posting of signs.

Upon designation by the council of a permit parking district, the department designated by the city manager to enforce residential parking permit regulations shall designate within the district an adequate number of on-street parking spaces to reasonably ensure sufficient parking to residents and visitors of residents of the district. In such district, appropriate signs giving notice of the designation of the district as a permit parking district will be posted restricting all parking during the hours specified on such signs, except parking by the holders of permits for that district granted under this division.
(Ord. No. 2008-050, 1-7-09)

Sec. 12-106. Resident and tenant permits.

(a) When an area has been designated as a permit parking district, each residential unit in the particular district may be issued by the department designated by the city manager to enforce residential parking permit regulations a maximum of two permits entitling owned vehicles to park in the restricted district. No vehicles shall receive a permit for more than one permit parking district at the same time.

(b) Upon showing proof of residency, any tenant living in a permit parking district who operates a vehicle may be issued, by the department designated by the city manager to enforce residential parking permit regulations, a permit entitling such vehicle to park in the restricted district. A vehicle may be entitled to a permit during such time as the tenant resides at the location designated on the application for the permit itself, and the permit shall automatically become void when the tenant vacates that location.

(c) The department designated by the city manager to enforce residential parking permit regulations may require an exterior inspection of the tenant property prior to the issuance of a permit. Where off-street parking exists at the tenant address, permits shall be issued only if the number of off-street spaces is less than the maximum number of tenant permits which may be issued for the rental unit(s)
(Ord. No. 2008-050, 1-7-09)

Sec. 12-107. Visitor permits.

Every resident of a permit parking district shall be entitled to three portable visitor permits that shall be used for visitors of the residents of the area. Every tenant of the district shall be entitled to one portable visitor permit; provided that, if two or more tenants occupy the same rental unit, the tenants shall be entitled to a maximum of one visitor permit per rental unit. Tenants in rental units with available off-street parking for visitors shall not be entitled to a visitor's pass. The department designated by the city manager to enforce residential parking permit regulations may require an exterior inspection of the tenant property prior to the issuance of a permit. Where off-street parking exists at the tenant address, permits shall be issued only if the number of off-street spaces is less than the maximum number of tenant permits which may be issued for the rental unit.

At such time as the number of the number of residential parking permits exceeds the number of available on-street designated parking spaces such that adding more permits would cause undue congestion, the issuance of tenant visitor passes may be suspended.
(Ord. No. 2008-050, 1-7-09)

Sec. 12-108. Special permits; exemptions.

(a) Each resident and tenant of a permit parking district may obtain from the department designated by the city manager to enforce residential parking permit regulations special parking permits for stated times on a temporary basis for meetings, gatherings, funerals, social occasions and similar events occurring at the residential unit of the individual requesting the special permit. Application for a special permit shall be made 24 hours in advance to the department designated by the city manager to enforce residential parking permit regulations in writing stating the time and duration for which the permit is requested, the address and the approximate number of vehicles contemplated. It shall be unlawful for any person requesting a special permit to abuse this section or make false statements in requesting a special permit. Upon violation, the department designated by the

city manager to enforce residential parking permit regulations shall immediately cancel all permits issued to the individual and the individual shall be subject to prosecution for violation of this division.

(b) Any truck or vehicle providing repairs, deliveries or other services to a resident of the area shall be exempted from the provisions of this division.
(Ord. No. 2008-050, 1-7-09)

Sec. 12-109. Obedience to parking regulations.

No permit issued pursuant to this division shall entitle a person to park a vehicle on yellow lines in bus stops, loading zones, or fire hydrant or other prohibited zones, or to violate any applicable parking law.
(Ord. No. 2008-050, 1-7-09)

Sec. 12-110. Permits to be property of city; confiscation of permits.

All permits issued under this division shall remain the property of the city. A resident permit found on a vehicle not registered at an address in the permit parking district shall be summarily confiscated by the department designated by the city manager to enforce residential parking permit regulations.
(Ord. No. 2008-050, 1-7-09)

Sec. 12-111. Permit fees.

Fees per vehicle will be charged as follows for permits issued under this division:

	Fee
Owner occupant vehicle permit - 24 month period	$30.00 per vehicle
Tenant vehicle permit - per the current lease term	$5.00 per vehicle/per month
Owner occupant visitor permit - 24 month period	$24.00 per vehicle
Tenant visitor permit - per the current lease term	$4.00 per vehicle/per month
Permit transfer to another vehicle	$10.00

(Ord. No. 2008-050, 1-7-09; Ord. No. 2024-039, 12-3-24)

Sec. 12-112. Violations; citations; penalty.

(a) Except as otherwise provided in this division, it shall be unlawful for any person to park a vehicle in a permit parking district without a permit or visitor's permit during any posted hours.

(b) Upon violation of this division, there shall be attached to such vehicle a citation to the owner thereof that such vehicle has been parked in violation of a provision of this division, stating the bond set by the court for such violation. Every person convicted of a violation of any of the provisions of this division shall be punished for each such violation by a fine of not less than $25.00.

(c) Any vehicle parked in violation of a provision of this division for more than 12 consecutive hours shall constitute a public nuisance and shall be summarily towed at the expense of the owner. In such cases, a notice shall be affixed to the vehicle a minimum of 24 hours prior to towing.
(Ord. No. 2008-050, 1-7-09)

Sec. 12-113. Disposition of fees and fines.

The funds derived from parking permits and fines as provided in this division are hereby levied and assessed to provide for the proper regulation and control of traffic upon the public streets, and to cover the cost of the supervision, inspection, installation, operation, maintenance, control, enforcement and regulation of the parking of vehicles in the permit parking district created by this division.
(Ord. No. 2008-050, 1-7-09)

Sec. 12-114. Denial or cancellation of permit.

The department designated by the city manager to enforce residential parking permit regulations shall have the power to deny the issuance of a permit under this division or cancel an existing permit if the vehicle is not an owned vehicle or the vehicle does not meet the criteria of this division, or if any individual is abusing the rights and privileges granted under this division. Upon cancellation of a permit, it shall be unlawful to use it, and the holder shall surrender the permit to the department designated by the city manager to enforce residential parking permit regulations immediately upon request.
(Ord. No. 2008-050, 1-7-09)

Sec. 12-115. Appeals.

Any person aggrieved by the denial or cancellation of a permit under this division shall have the right to appeal such denial or cancellation to the head of the department designated by the city manager to enforce residential parking permit regulations upon written notice to the head of the department designated by the city manager to enforce residential parking permit regulations within seven days of such denial or cancellation.
(Ord. No. 2008-050, 1-7-09; Ord. No. 2024-039, 12-3-24)

Secs. 12-116—12-119. Reserved.

DIVISION 4. VALET PARKING

Sec. 12-120. Purpose.

City council finds that the use of public streets and rights-of-way for valet parking, while providing a public benefit to some by making parking more convenient, may also impede travel, interfere with the rights of others using the streets and public rights-of-way, affect the public safety, and create a public nuisance. Therefore, valet parking may be permitted as a special privilege, not as a matter of right, subject to the regulations in this code.
(Ord. No. 2004-022, 7-28-04)

Sec. 12-121. Definitions.

For purposes of this division, the following words shall have the following meanings:

Applicant means a person requesting a valet parking permit.

Director of parking services means the director of parking services or his or her designee.

Permit means a valet parking permit.

Public right-of-way means any area dedicated for public use as a public street, pedestrian way, or other thoroughfare, including but not limited to streets, roadways, parkways, alleys, sidewalks, and pedestrian ways.

Valet parking means typical practices associated with, and the act of, driving another person's vehicle to and from a parking location so that said person and any passengers originally within the vehicle may unload and load at or near their immediate destination.

Valet parking service means a person valet parking, including any persons, subcontractors, or agents employed or otherwise assisting said person.
(Ord. No. 2004-022, 7-28-04; Ord. No. 2024-039, 12-3-24)

Sec. 12-122. Permit required.

A permit is required for any valet parking service that conducts any portion of its operation, including but not limited to the receiving, moving, or return of vehicles upon the public right-of-way. No permit is required for a valet service that is entirely conducted upon private property, and no permit is required for a non-recurring valet parking service at a dwelling unit. An applicant issued a permit pursuant to this code, any valet parking service operating under such a permit, and any premises that would benefit from the valet parking resulting from the permit are not required to obtain an encroachment, franchise, or other similar permission from the city for any fixture or structure located within the public right-of-way provided information regarding the size and location of said fixture or structure is made a part of the application required within section 12-123 below and said fixture or structure is not explicitly excluded from the permit by condition.
(Ord. No. 2004-022, 7-28-04)

Sec. 12-123. Process for permits and renewals.

(a) New applications for a permit shall be submitted to the business license division. New applications shall include the following information:

(1) The name, address, and telephone number of the applicant, the valet parking service, and a person associated with the valet parking service immediately available during all hours of its operation.

(2) A signed statement from the owner of each premises that would benefit from the valet parking, granting permission to the valet parking service to valet park the vehicles of his or her patrons.

(3) The hours of operation of all premises that would benefit from the valet parking and the hours of operation of the valet parking service at each premises. Where the premises that would benefit from the valet parking is an auditorium, convention center, or other major venue, the application may substitute a yearlong event schedule that includes anticipated event times rather than hours of operation.

(4) The number of employees assigned to valet park for each premises that would benefit from the valet parking.

(5) The seating capacity or other capacity of all premises that would benefit from the valet parking.

(6) The location where vehicles would queue prior to receipt by the valet parking service, the location where patrons would drop-off vehicles, and the location where the valet parking service would return vehicles to patrons.

(7) The location where vehicles would be parked or stored for each premises that would benefit from the valet parking.

(8) The route between the vehicle drop-off and return locations and the parking location.

(9) A signed statement from the operator of any parking facility designated as the parking location regarding that facility's ability to accept the vehicles. The statement shall include:

a. The total number of parking spaces within the parking facility.

b. The number of parking spaces within the parking facility to be reserved for the premises that would benefit from the valet parking.

c. An estimate of the percent usage of the parking facility prior to and subsequent to the proposed valet parking were it approved.

d. The number of parking spaces within the parking facility that is reserved because they satisfy the parking requirements of the zoning ordinance.

(10) A contract pending approval of a permit or an executed contract between the applicant and each operator of a parking facility designated as a parking location. Each contract shall contain a provision that it cannot be canceled without at least 60 days notice to the other party and to the city.

(11) The location of any proposed signs for the valet parking service and any proposed attendant stands.

(12) Proof that the applicant has insurance in force satisfying the requirements of section 12-128.

(13) Payment of a nonrefundable permit fee plus a parking space fee. The new permit fee and fee to renew a previously approved permit are provided in the table below. The parking space use fee shall equal the prevailing hourly rate of the associated parking meter(s), parking control device or space controlled by a remote payment method multiplied by the number of hours the parking meter(s), parking control device or space controlled by a remote payment method would otherwise have been in service. A parking space use fee shall not be charged where the parking space is not regulated by a parking meter space, parking control device or space controlled by a remote payment method; however, the city reserves the right to install a paid parking space at any time. Fees shall not be pro-rated based upon when the application was submitted during the calendar year.

	Fee
New Valet Operation Permit Fee	$100.00
Renewal Permit Fee	$100.00

(14) Where the applicant proposes to valet park in conjunction with a once-a-year or otherwise special event that lasts no more than seven calendar days, the items required within subsections 9 (d) and 10 may be excluded from the application. However, the director of parking services reserves the right to require that the applicant submit these documents upon his or her determination that the information is necessary to make his or her decision.

(b) Applications to renew a previously approved permit may be limited to:

(1) A cover letter signed by the applicant and the owner of each premises that would benefit from the valet parking stating that the items provided within the previously approved application have not changed;

(2) A contract for the parking location (in accordance with subsection (a)(10) above);

(3) Proof of insurance (in accordance with subsection (a)(12) above); and

(4) Fees (in accordance with subsection (a)(13) above).

(c) Once the business license division determines an application is complete, the business license division will forward the application to the director of parking services who will make his or her decision to approve, approve with conditions, or deny the application. The criteria that the director of parking services shall consider when making his or her decision are set forth in section 12-127.

(d) The director of parking services may seek counsel from other city agencies prior to making his or her decision. The director of parking services must make a decision within 30 days after the business license division determines that an application is complete. If the director of parking services fails to issue a decision within the time frame above, the application shall be considered approved.

(e) The director of parking services shall return the application and the decision regarding the application to the business license division. If the application is approved or approved with conditions, the business license division shall issue a valet parking permit to the applicant.
(Ord. No. 2004-022, 7-28-04; Ord. No. 2024-039, 12-3-24)

Sec. 12-124. Term of permit.

Every valet parking permit shall expire at midnight on the 31st day of December next occurring after issuance unless otherwise specified on the permit.
(Ord. No. 2004-022, 7-28-04)

Sec. 12-125. Operating requirements.

(a) The valet parking service shall only accept vehicles at, and return vehicles to, the approved drop-off and return locations. Dimensions of drop-off and return locations shall be determined by the director of parking services.

(b) The valet parking service shall only move vehicles between the approved drop-off and return locations and the approved parking location. Said movement of vehicles shall occur only along the approved route.

(c) The valet parking service shall not use on-street parking spaces for valet parking.

(d) The valet parking service shall not park any vehicle upon private property without written authorization by the property owner or an authorized agent of the property owner.

(e) The valet parking service shall provide adequate staffing to receive, park, and return vehicles so that traffic is not impeded by the activities of the permit. Vehicle queuing is allowed only within the area approved for vehicle queuing.

(f) The valet parking service shall ensure that at least five feet of clearance is provided along all pedestrian walkways.

(g) The valet parking service shall post in a conspicuous location a copy of the permit and a diagram of the approved route between the approved drop-off and return locations and the approved parking location.

(h) Except where an applicant proposes to valet park in conjunction with a once-a-year or otherwise special event that lasts no more than seven calendar days, each valet parking service shall display at each drop-off and return location a sign no less than six square feet that includes letters and numerals plainly visible from the street stating:

(1) "Valet Parking";

(2) The name of the valet parking service;

(3) The hours of operation of the valet parking service; and

(4) The parking fees, if any.

(i) The valet parking service shall notify the city police department whenever a vehicle has been left for a period longer than 48 hours without a prior contractual arrangement for such period of time.

(j) Each person employed by or otherwise assisting the valet parking service shall have a valid driver's license.
(Ord. No. 2004-022, 7-28-04; Ord. No. 2024-039, 12-3-24)

Sec. 12-126. Penalties.

Any person violating these regulations or any condition of a permit issued pursuant to this code shall be guilty of a misdemeanor, and the director of general services may revoke the respective permit as set forth within section 12-127.
(Ord. No. 2004-022, 7-28-04)

Sec. 12-127. Grounds for revocation and denial.

(a) The director of parking services may revoke or deny a permit for any one of the following reasons:

(1) The valet parking service fails to cooperate with the city police department in the investigation of any crime committed at, in proximity to, or between the drop-off and return location and the parking location.

(2) The applicant has made a material misrepresentation in his or her application.

(3) The valet parking service prescribed by the applicant would or does substantially impact traffic or disrupt the peace and quiet within any area of the city.

(4) The valet parking service at the specified location would be or is incompatible with other uses in the vicinity.

(5) The applicant, valet parking service, or premises benefiting from the valet parking violated any condition of a previous or existing permit within the city during the past five years.

(6) The applicant, valet parking service, or premises benefiting from the valet parking service fails to comply with other criteria set forth herein.

(7) The building, structure, lot, or equipment upon the premises benefiting from the valet parking fails to comply with all applicable health, zoning, fire, building, and safety laws of the State of South Carolina or the city.

(b) The director of parking services shall notify an applicant in writing by certified mail when a permit is revoked or denied. An applicant may appeal a decision of the director of parking services to the city manager or his or her designee within 30 days of receiving the decision.

(c) Unless the public health, welfare, or safety requires more immediate action, revocation is effective 48 hours after written notice is delivered to the applicant.
(Ord. No. 2004-022, 7-28-04; Ord. No. 2024-039, 12-3-24)

Sec. 12-128. Insurance requirements.

(a) Prior to the issuance of a permit, the valet parking service shall maintain garage liability with a limit of not less than $300,000.00 for each accident and garage keeper's liability coverage with a limit of not less than $125,000.00 for each accident.

(b) The city shall be named as an additional insured under the garage liability and garage keeper's liability policies of the valet parking service.

(c) Any deductibles must be declared and approved by the city.

(d) The insurance policies shall be endorsed to state that coverage shall not be changed or cancelled except after 30 days prior written notice by certified mail has been given to the city of such change or cancellation.

(e) Prior to the issuance of a permit, and at all times while the permit is in effect, the applicant shall maintain on file with the director of general services a certificates of insurance showing evidence of the required coverage limits and naming the city as additional insured.

(f) If the insurance policies issued to the valet parking service are cancelled for any reason, the permit issued is automatically suspended. To reinstate the permit, the valet parking service shall provide new policies of insurance to the city.
(Ord. No. 2004-022, 7-28-04)

Sec. 12-129. Indemnification.

The valet parking service agrees to indemnify, hold harmless, release and defend (even if the allegations are false, fraudulent, or groundless), the city, its officers and employees, from any and all liability, loss, suits, claims, damages, costs, judgments, and expenses (including attorney's fees and costs of litigation) which in whole or in part result from, or arise out of:

(1) Any act or omission of its employees;

(2) The operations of the valet parking service;

(3) Any condition of property used in the operation; or

(4) Any acts, errors, or omissions of the valet parking service.
(Ord. No. 2004-022, 7-28-04)

Sec. 12-130. Conformance with applicable laws.

(a) Nothing in this division authorizes or is intended to authorize the parking of vehicles by a valet parking service in a manner contrary to applicable laws of the State of South Carolina and parking and traffic regulations of the city.

(b) If a parking meter is present at the approved drop-off or return location, the director of parking services shall place upon the parking meter a sign reserving the parking space for valet parking only during the approved hours of operation.
(Ord. No. 2004-022, 7-28-04; Ord. No. 2024-039, 12-3-24)

Sec. 12-131. Conditions imposed on permit.

(a) The director of parking services may impose conditions upon the permit that are reasonably necessary to protect the peace and tranquility of any residential area, mitigate traffic impacts, protect other uses in the area, or protect the public health, welfare, and safety.

(b) An applicant issued a permit pursuant to these regulations, any valet parking service operating under said permit, and any premises that would benefit from the valet parking resulting from said permit shall comply with all conditions imposed upon the permit pursuant to subsection (a) of this section.

(c) An applicant may appeal the imposition of a condition(s) upon the permit in accordance with procedure and time frame established within section 12-127(b).
(Ord. No. 2004-022, 7-28-04; Ord. No. 2024-039, 12-3-24)

Sec. 12-132. Reservation of rights.

The approval of a permit provides only for the nonpermanent and nonexclusive use of the public right-of-way. Applicants, valet parking services, and the premises benefiting from the valet parking shall have neither property interest in, nor any entitlement to the granting or continuation of any permit for the use of, any public right-of-way.
(Ord. No. 2004-022, 7-28-04)

Secs. 12-133—12-140. Reserved.

ARTICLE III. RAILROADS*

Sec. 12-141. Speed of trains.

(a) It shall be unlawful for any railroad train or engine, or any portion of a railroad train, to pass any street crossing in the city at a rate of speed greater than 20 miles per hour, except that at the Seaboard Coastline crossing in the 900 block of Whaley Street and at the crossings of the Southern Railroad line to and from Charlotte, speeds shall not exceed ten miles per hour.

***Cross reference—**Licenses, permits and miscellaneous business regulations, ch. 11.
State law reference—Railroads generally, S.C. Code 1976, § 58-17-10 et seq.

(b) On failing to comply with the conditions of this section, the railroad company so offending shall be fined for each and every offense, on conviction before the recorder, provided that a summons is served on the agent, president, secretary or treasurer of such company so violating.
(Code 1979, § 2-3081)

Sec. 12-142. Trains not to block streets.

It shall be unlawful for the directing officer or the operator of any railroad train to direct the operation of or to operate the train in such a manner as to prevent the use of any street for purposes of travel for a period of time longer than five minutes, except that this provision shall not apply to trains or cars in motion other than those engaged in switching. It shall be unlawful for any railroad train to stop within an intersection or on a crosswalk for the purpose of receiving or discharging passengers.
(Code 1979, § 2-3082)

Sec. 12-143. Warning bells at crossings.

It shall be unlawful for any engine or locomotive or steam railroad to cross any street crossing on grade within the limits of the city unless warning is given by the ringing of bells, as occasion demands, within at least 50 yards of such crossing; provided, however, that at all street crossings where watchmen are stationed, or electric warning signals operated, this section shall not apply.
(Code 1979, § 2-3083)

Sec. 12-144. Flagmen at crossings.

In order to provide for the safety of the public at the places where the tracks of steam, electric or diesel railroad companies cross the streets of the city, it shall be the duty of such railroad companies to station, both day and night, at such crossings as in the judgment of the city council the public safety may require, to be designated by the city council, a flagman, whose duty it shall be to show a red flag whenever a train may be approaching or crossing such streets.
(Code 1979, § 2-3084)

Sec. 12-145. Gong or flashlight signals at crossings.

The respective railroad companies, or their receivers, whose tracks cross any street at grade within the city limits, may, at such crossings as are designated by the city council, continue or install and maintain gong or flashlight signals in compliance with the requirements of the city council, which signals shall be operated to indicate danger upon the approach of a train or locomotive, and which signals shall be in lieu of all other warnings and signals required by city ordinances.
(Code 1979, § 2-3085)

Sec. 12-146. Disregarding warning signals.

Any person disregarding the warning signals required to be given by any railroad whose tracks cross any street at grade within the city limits shall be guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5.
(Code 1979, § 2-3086)

Sec. 12-147. Construction specifications for crossings.

(a) *Standards.* All railroad crossings in the city shall be constructed and maintained in accordance with the following specifications:

(1) *Construction generally.* All railroads crossing or traversing any streets at grade within the limits of the city shall be constructed so as to conform to either of the two types of construction described in this section. The construction shall be carried the full width of the street from property line to property line, and shall present to sidewalk and street traffic a surface free from bumps or depressions. Any paving or surfacing disturbed during the construction of these crossings, or the repair or maintenance thereof, shall be replaced by the railroad company under the direction of the city engineer.

(2) *Single tracks.* Where a railroad crosses a street at grade with a single track, construction shall be between the gauge rails and to a distance of three feet beyond the gauge rails on each side of the track, and shall extend the full width of the street from property line to property line.

(3) *Multiple tracks.* Where a railroad crosses a street at grade with two or more tracks, any two of which tracks are 20 feet or less apart from center to center, the construction shall be continuous between all or both of such tracks and the gauge rails thereof, and to a distance of three feet beyond the extreme outer gauge rails of such tracks, and shall extend the full width of the street from property line to property line.

(4) *Tracks twenty feet or more apart.* Any track, the centerline of which is a greater distance than 20 feet from the center of any other track, shall be deemed a single track.

(5) *Grade and elevation.* The grades and elevations of all existing tracks, and all tracks hereafter constructed, crossing or traversing any streets at grade, shall conform and be maintained to the elevations and grades as established by the city engineer or as fixed by contiguous street paving.

(6) *Rails.* Between the gauge rails, and beyond the gauge rails to the extent provided in this section, there shall be laid rails of the same width and height as the gauge rails. These rails shall be parallel to the track with joints broken, and the rails shall be placed as close together as possible, thus filling the space between the gauge rails,

and between the tracks where more than one, and beyond the gauge rails to the extent provided in this section. The balls of all rails shall be level with those of the gauge rails. All rails shall be securely spiked.

(7) *Timbers and floor.* The space between the gauge rails, and beyond the gauge rails to the extent provided in this section, shall be floored with timber not less than three inches thick and laid parallel to the rails, and with joints broken. The floor shall be carried on wood plates of sufficient thickness to bring the floor to a level with the balls of the rails and the entire floor securely spiked to the ties.

(b) *Violations; penalty.* Upon failure of any person to comply with any of the provisions of this section, the city engineer, or someone authorized by him, shall cause written notice of such noncompliance to be mailed to such person. If such failure to comply with the provisions of this section shall continue for a period of 30 days after such written notice, the person so failing to comply, to whom such notice was directed, shall be severally liable and guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5. Each and every day, after such 30 days' written notice, that such noncompliance continues shall be construed as a separate offense and shall be so construed severally against the offending person receiving the written notice.
(Code 1979, § 2-3087)

Sec. 12-148. Removal of platforms or obstructions on crossings.

Any railroad company having any platform or obstruction on any of the street crossings within the city limits, and who shall, on notice served on the agent, president, secretary or treasurer of such company to remove such platform or obstruction, fail to remove the platform or obstruction within seven days from the date of such notice being served, shall, on conviction before the recorder, be punished as provided in section 1-5 after the expiration of such seven days, as such obstruction or platform may be permitted to remain on such crossing. The city manager is also, in his discretion, authorized to remove any such obstruction, and may, in addition to the fine authorized by this section, cause the railroad company to pay for the expenses of such removal.
(Code 1979, § 2-3088)

Sec. 12-149. Construction of storm drains at crossings.

Railroad companies whose tracks cross the streets of the city shall construct and maintain storm drainage therein in accordance with the city storm drainage ordinances.
(Code 1979, § 2-3089)

ARTICLE IV. PARKING GARAGES AND CITY OWNED PARKING FACILITIES

Sec. 12-150. Fees.

The rates below are available to the general public on the city's website. All rates are subject to change each fiscal year based upon budgetary considerations and approval by city

Council. All rates applicable to existing and future public decks within Bull Street District shall be phased in over a 10 year period, owing to the special conditions existing pursuant to the Bull Street Development Agreement. The monthly fee structure for parking decks and city owned parking facilities is as follows:

(a) *Decks:*

(1) Arsenal Hill, Freed Street, Lady Street, Lincoln Street, Park Street, PJ Cannon, Sabal Street, Sumter Street, Taylor Street and Washington Street Parking Decks:

	Fee
Public/Visitor Parking	First Hour Free Second Hour $3.00 Each Additional Hour $1.00 Maximum Daily Rate $15.00 Lost Ticket $15.00

(2) Arsenal Hill Deck:

	Fee
Monthly unreserved space	$85.00
Monthly Unreserved Hospitality Roof Only	$35.00

(3) Taylor Street Deck:

	Fee
Monthly unreserved space	$65.00
Monthly Unreserved Hospitality Roof Only	$35.00

(4) Lady Street, Sumter Street and Washington Street Decks:

	Fee
Monthly unreserved space	$85.00
Monthly reserved space	$155.00
Monthly Unreserved Hospitality Roof Only	$35.00

(5) Park Street and Lincoln Street Decks:

	Fee
Monthly unreserved space	$78.00
Monthly reserved space	$125.00
Monthly Unreserved Hospitality Roof Only	$35.00

(6) PJ Cannon Deck:

	Fee
Monthly unreserved space	$85.00
Monthly reserved space	$130.00
Monthly Unreserved Hospitality Roof Only	$35.00

(7) Freed Street and Sabal Street Decks

	Fee
Monthly unreserved space	$85.00
Monthly reserved space	$155.00
Monthly Unreserved Hospitality Roof Only	$35.00

(b) *Surface parking lots:*

(1) Sumter Street Lot

	Fee
Monthly unreserved space	$65.00
Public/Visitor Parking	$1.50/hourly

(2) Devine Street and Pavillion Lot

	Fee
Monthly unreserved space M-Sa 9:00A-7:00P	$35.00

(3) Harden Street Lot

	Fee
Public/Visitor	$1.50 hourly until 4:00P $7.00 flat fee after 4:00P (Monday—Wednesday) $10.00 flat fee after 4:00P (Thursday—Saturday)

(4) 1127 Washington Street Lot

	Fee
Monthly unreserved space	$105.00
Public/Visitor	$1.50/hourly

(5) Taylor Street Lot

	Fee
Monthly unreserved space	$65.00

(c) *In/Out permit parking on street (unassigned space monthly) $50.00.*

(d) *Residential Parking, non-residential neighborhood areas:*

	Fee
Monthly unreserved, nights and weekends only	$50.00

(e) Electric Vehicle Charging:

	Fee
Level 2 Charging Station	$0.1900/kWh
Level 2 Charging Station dwell-time	$2.00/hour ($25 per dwell session max)
DC Fast Charging Station	$0.3469/kWh
DC Fast Charging Station dwell-time	$2.00/hour ($25 per dwell session max)

All Electric Vehicle Charging fees are in addition to any applicable posted parking facility fees.

(Ord. No. 2006-80, 12-13-06; Ord. No. 2008-091, 10-22-08; Ord. No. 2011-102, 2-21-12; Ord. No. 2024-039, 12-3-24)

Chapter 13

MUNICIPAL COURT*

Sec. 13-1. Establishment of municipal court.
Sec. 13-2. Administrative municipal court judge and municipal court judges.
Sec. 13-3. Rules and regulations.
Sec. 13-4. Assessment of costs.
Sec. 13-5. Installment payment of fines.
Sec. 13-6. Court administrator.
Sec. 13-7. Ministerial recorder.
Sec. 13-8. Clerk of court.
Sec. 13-9. Juror compensation.

***Editor's note—**Ord. No. 2008-058, adopted July 16, 2008, amended former Ch. 13, §§ 13-1—13-6, in its entirety which pertained to similar subject matter and derived from the Code of 1979.

Cross references—Administration, ch. 2; law enforcement, ch. 10; offenses and miscellaneous provisions, ch. 14.

State law references—Authority of city council to establish municipal court, S.C. Code 1976, § 14-25-910; election of recorder, tenure, salary, vacancy in office, jurisdiction, procedure, etc., S.C. Code 1976, §§ 14-25-920, 14-25-930, 14-25-970.

Sec. 13-1. Establishment of municipal court.

There is hereby established a municipal court for the city pursuant to S.C. Code 1976, § 14-25-5.
(Ord. No. 2008-058, 7-16-08; Ord. No. 2020-080, 9-15-20)

Sec. 13-2. Administrative municipal court judge and municipal court judges.

The court shall be presided over by an administrative municipal judge and by one or more municipal judges, who shall be appointed by the city council for a term fixed by the city council of not less than two years but not more than four years and shall continue to serve beyond the appointed term until a successor is appointed and qualified.

(a) The administrative municipal court judge shall be an attorney who is a member in good standing with the South Carolina Bar. The administrative municipal court judge shall, on a weekly basis, preside over various terms and sessions of court, jury and non-jury matters; schedule and assign other municipal judges to various terms and sessions of court; cause all reporting requirements of the South Carolina Supreme Court or South Carolina Court Administration be properly and timely prepared and submitted; direct and oversee the judicial and administrative duties of the municipal court; and establish, review and revise the procedures of the court. All such duties shall be exercised in accordance with state law and municipal ordinances, rules and regulations.

(b) Municipal judges shall be attorneys at law appointed by the city council to preside over terms of municipal court set by the administrative municipal court judge. Judges may be full-time or part-time as determined by the council.

(Ord. No. 2008-058, 7-16-08; Ord. No. 2020-080, 9-15-20)

Sec. 13-3. Rules and regulations.

The administrative municipal judge shall have power to make such rules and regulations, not inconsistent with state laws and city ordinances, for the conducting of the business of the municipal court, as may be necessary for the dispatch of the court, the preservation of order and the furtherance of public justice.
(Ord. No. 2008-058, 7-16-08; Ord. No. 2020-080, 9-15-20)

Sec. 13-4. Assessment of costs.

The municipal judge of the city may assess certain charges as the costs of court on defendants convicted, or dismissed through leniency.
(Ord. No. 2008-058, 7-16-08; Ord. No. 2020-080, 9-15-20)

Sec. 13-5. Installment payment of fines.

The judge of the municipal court may authorize the payment of fines in installments in such cases and upon such terms as the municipal judge, in his discretion, deems appropriate.
(Ord. No. 2008-058, 7-16-08; Ord. No. 2020-080, 9-15-20)

Sec. 13-6. Court administrator.

The municipal court administrator, subject to the city manager, shall exercise general supervisory control over the municipal court department and all municipal court employees, to include the clerks of the court, personnel of the violations bureau, bailiffs and all secretaries. He shall monitor all court operations and procedures, maintain court records, dockets, recordings and transcripts, maintain liaison with all municipal judges and perform such additional duties as may be required by law or assigned to him by the city manager.
(Ord. No. 2020-080, 9-15-20)

Sec. 13-7. Ministerial recorder.

The city council hereby establishes the office of ministerial recorder. Ministerial recorders shall be elected from time to time by the council and shall serve at its pleasure or until the office is vacated when employment with the city is terminated. The compensation of ministerial recorders shall be fixed by the city council. Ministerial recorders of the city shall perform the powers provided by law and shall be subject to supervision of the court administrator. Ministerial recorders shall not be law enforcement officers but may hold any other position under the court administrator.
(Ord. No. 2008-058, 7-16-08; Ord. No. 2020-080, 9-15-20)

Note—Formerly numbered as § 13-6.

State law references—Establishment of office of ministerial recorder, S.C. Code 1976, § 14-25-310; powers of ministerial recorders, S.C. Code 1976, § 14-25-320.

Sec. 13-8. Clerk of court.

Pursuant to South Carolina Code Sec., 14-25-35, the municipal clerk or other municipal employee may be appointed to serve as clerk of the court. The clerk of the court shall keep such records and make such reports as may be determined by the State Court Administrator.
(Ord. No. 2008-058, 7-16-08; Ord. No. 2020-080, 9-15-20)

Note—Formerly numbered as § 13-7.

Sec. 13-9. Juror compensation.

Municipal court jurors shall receive compensation of $10.00 per day and $5.00 for mileage per day.
(Ord. No. 2014-039, 4-22-14; Ord. No. 2020-080, 9-15-20)

Note—Formerly numbered as § 13-8.

Chapter 14

OFFENSES AND MISCELLANEOUS PROVISIONS*

Article I. In General

Sec. 14-1. Offenses committed on municipal property outside city limits.
Sec. 14-2. Aiding or abetting violation.
Sec. 14-3. Begging; obstructing pedestrian or vehicular traffic.
Sec. 14-4. Council approval required for publication or sale of city directory.
Sec. 14-5. Prohibited acts in city owned parking facilities and lots.
Sec. 14-6. Selling or furnishing individual cigarettes or cigarettes not in original packaging.
Sec. 14-7. Reporting of lost/stolen firearms; firearms recovered from crimes or criminal activity.
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Article II. Offenses Against the Person

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Article III. Offenses Against Property

Sec. 14-61. Obtaining property by fraud.
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Sec. 14-91. Disorderly conduct.
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Sec. 14-99. Possession or consumption of alcoholic beverages on public property.
Sec. 14-100. Enhanced trigger devices declared illegal; exceptions.
Sec. 14-101. Discharging firearms, weapons or explosives.
Sec. 14-102. Carrying weapons.
Sec. 14-103. Sale or possession of switchblade knives.
Sec. 14-104. Unlawful urination or defecation.

***Cross references—**Law enforcement, ch. 10; municipal court, ch. 13.

State law reference—Crimes and offenses, S.C. Code 1976, title 16.

Sec. 14-105. Urban camping and improper use of public places.
Sec. 14-106. Hours of sale restricted for commercial establishments which allow for on-premises consumption of beer, ale, porter and/or wine.
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Sec. 14-311. Definitions.
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Sec. 14-411. Abandoned shopping cart prevention and retrieval plan.

ARTICLE I. IN GENERAL

Sec. 14-1. Offenses committed on municipal property outside city limits.

Any person committing any offense in, at or upon lands owned by the city or leased to the city outside the limits of the city shall be deemed and considered as committing an offense against the provisions of this Code and other ordinances of the city and shall be triable for such offense in the municipal court in the same manner and to the same extent as other offenders against such provisions and such ordinances.
(Code 1979, § 2-2001)

Sec. 14-2. Aiding or abetting violation.

It shall be unlawful for any person to aid or abet any other person in the violation of this Code or of any ordinance, or part thereof, of the city, or to procure, encourage, incite or advise any other person to violate this Code or any ordinance.
(Code 1979, § 2-2002)

State law reference—Similar provisions, S.C. Code 1976, § 16-1-40.

Sec. 14-3. Begging; obstructing pedestrian or vehicular traffic.

(a) *Definitions.* The following definitions apply for purposes of this section:

(1) *Aggressively beg* means to beg with intent to intimidate another person into giving money or goods.

(2) *Beg, solicit* and *solicitation* means to request or ask, directly or indirectly, for money, credit, property, financial assistance, food or drink, or any other thing of value as a charity, whether by words, bodily gestures, signs or other means.

(3) *Obstruct pedestrian or vehicular traffic* means to walk, stand, sit, lie or place an object in such a manner as to block passage by another person or a vehicle, or to require another person or a driver of a vehicle to take evasive action to avoid physical contact. Acts authorized as an exercise of one's constitutional right to picket or to legally protest, and acts authorized by a permit issued pursuant to Chapter 22, Article VI, pertaining to parades and processions, shall not constitute obstruction of pedestrian or vehicular traffic.

(4) *Public place* means an area generally visible to public view and includes alleys, bridges, buildings, driveways, parking lots, parks, plazas, sidewalks and streets open to the general public, including those that serve food or drink or provide entertainment, and the doorways and entrances to buildings or dwellings and the grounds enclosing them.

(5) *Financial institution* means a bank, trust company, savings and loan association, credit union, check-cashing business or other entity principally engaged in the business of lending money or receiving or soliciting money on deposit.

(6) *Automated teller machine* or *ATM* means an unattended electronic machine, located in a public place, connected to an electronic system and related equipment activated by a magnetically encoded card allowing consumers to make deposits, pay bills, transfer money, obtain cash withdrawals, pay for purchases and perform other routine financial or banking transactions.

(7) *After dark* means between sunset and sunrise. The times of sunset and sunrise shall be those times as published in The State newspaper or any other newspaper of general circulation in the corporate limits of the City of Columbia.

(b) Begging or soliciting shall be deemed to have taken place when the request is made, whether or not the person or entity making the request received any contribution referred to in this section.

(c) *Prohibited acts.* It shall be unlawful for any person within the city in any public place to:

(1) Aggressively beg;

(2) Obstruct pedestrian or vehicular traffic;

(3) Touch the person being solicited without that person's consent;

(4) Follow the person solicited after that person to whom the solicitation is directed has indicated either verbally, by physical sign or by attempting to leave the presence of the person soliciting;

(5) Block the passage of the person to whom the solicitation is directed;

(6) Beg within 20 feet of the entrance to any financial institution or any automated teller machine, regardless of whether or not such automated teller machine is located at or near a financial institution.

(7) Beg within 20 feet of any outdoor dining area or outdoor merchandise area, provided such areas are in active use at the time.

(8) Beg within 20 feet of any transit stop or shelter or taxi stand.

(9) Beg while the person being solicited is standing in line waiting to be admitted to a commercial establishment.

(10) Beg while the person being solicited is sitting in a vehicle awaiting or receiving drive thru service.

(11) Beg after dark by means of verbal communication.

Nothing in this section shall relieve any person or entity from complying with or be construed as allowing conduct prohibiting or limited by Chapter 22, Articles III and VI, pertaining to obstructing sidewalks and parades and permits; Chapter 11, Article VII,

Division 1-3, inclusive, pertaining to peddlers and solicitors, Chapter 15 pertaining to parks, S.C. Code Ann. §5-27-910, et seq., or any other laws, ordinances, rules or regulations of the city or state.
(Code 1979, § 2-2055; Ord. No. 2008-031, 5-28-08)

Sec. 14-4. Council approval required for publication or sale of city directory.

It shall be unlawful for any person to solicit orders for, publish, distribute, sell or offer for sale any directory of the city to be known as or called the official city directory without the sanction and approval of the city council.
(Code 1979, § 2-2031)

Sec. 14-5. Prohibited acts in city owned parking facilities and lots.

It shall be unlawful for any person using any public parking facility owned or operated by the city to either perform or allow the performance of any of the following acts, unless such activity is specifically authorized, permitted or supervised by the city:

(1) *Damaging property.* Willfully mark, deface, disfigure, injure, tamper with, or displace or remove any buildings, railings, paving or paving material, water lines or other public utilities or parts or appurtenances thereof, signs, notices or placards, whether temporary or permanent, posts or other boundary markers, or other structures or equipment, facilities or parking facility property or appurtenances whatsoever, either real or personal.

(2) *Use of facilities.* Enter upon or be within any public parking facility owned or operated by the city for any purpose other than to park a motor vehicle in a space designated for that use or for purposes of ingress and egress to that motor vehicle. Motor vehicles parked within a public facility shall not be occupied for any purpose other than to park in or exit the facility.

(3) *Removing soil or plants.* Dig or remove any soil, rock, stones, trees, shrubs or plants, down-timber or other wood or materials, or make any excavation by tool, equipment, blasting or other means.

(4) *Damaging plants.* Damage, cut, carve, transplant or remove any tree or plant, or injure the bark or pick the flowers or seeds of any tree or plant, nor shall any person attach any rope, wire or other contrivance to any tree or plant. A person shall not dig in or otherwise disturb grass areas, or in any other way injure or impair the natural beauty or usefulness of any area of a parking facility, whether inside or outside.

(5) *Littering.* Bring in or dump, deposit or leave any bottles, broken glass, ashes, paper, boxes, cans, dirt, rubbish, waste, garbage, refuse or other litter, or place refuse or litter in or contiguous to any parking facility, or anywhere on the grounds thereof, other than in the proper receptacles, where provided.

(6) *Interference with others.* Endanger the safety of any person by any conduct or act, or prevent any person from using any parking facility, or interfere with such use in compliance with this chapter and with the rules applicable to such use.

(7) *Fires.* Build or attempt to build a fire upon or within a parking facility. No person shall drop, throw or otherwise scatter lighted matches, burning cigarettes or cigars, tobacco paper or other inflammable material within any parking area or on any highway, road or street abutting or contiguous thereto.

(8) *Alcoholic beverages.* Possess and/or consume alcoholic beverages, beer or wine; provided, however, that alcoholic beverages shall be permitted when possession and consumption is specifically authorized by permit or license of the state alcohol beverage control commission or for city-authorized private functions in areas designated for such functions when the state alcohol beverage control commission permits or licenses are not required.

(9) *Fireworks.* Possess, explode, discharge or ignite fireworks of any kind, unless specifically permitted by the city.

(10) *Parking in unauthorized area.* Park or leave automobiles, trucks, bicycles, unicycles, tricycles, scooters, mopeds, motorcycles, motorbikes, motorized carts or other motorized vehicles in places other than those specifically designated for such purpose.

(11) *Vending or peddling.* Vend, sell, peddle or offer for sale any commodity or article, except sales conducted by or specifically permitted by the city.

(12) *Violation of rules and regulations of parking services division.* Violate any rule or regulation promulgated by the parking services division of the city.

(Ord. No. 2004-001, 1-14-04; Ord. No. 2004-092, 10-20-04)

Sec. 14-6. Selling or furnishing individual cigarettes or cigarettes not in original packaging.

It shall be unlawful for any person to sell, offer for sale, barter or expose for sale any cigarette, tobacco or smokeless tobacco except in its original factory-wrapped package within the limits of the city. It shall be unlawful for any person to sell, offer for sale, barter or expose for sale any cigarettes in a package containing fewer than 20 cigarettes within the limits of the city. Any person violating the provisions of this section, either in person, by agent, or in any other way, shall be held and deemed guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5.

(Ord. No. 2013-135, 1-7-14)

Sec. 14-7. Reporting of lost/stolen firearms; firearms recovered from crimes or criminal activity.

(a) An owner or other person who resides in and is lawfully in possession of a firearm, rifle, or shotgun in the City of Columbia who suffers the loss or theft of such weapon shall report, within 24 hours of discovery, the loss or theft of each weapon to the City of Columbia police department, along with the facts and circumstances of the loss or theft.

(b) The department shall collect all pertinent information including, but not limited to, the weapon's serial number, make, model, caliber, and any distinguishing marks or numbers. The department shall enter all collected information, as it complies with the prerequisite criteria, into the NCIC database in reference to the loss or theft of the weapon. Reports of lost or stolen weapons must be recorded on the standard incident form used by the agency and stored in the normal manner used for incident reports.

(c) When any firearm is secured as evidence, contraband, or found property by the Columbia police department, the department shall attempt, consistent with established policy, to:

(1) Identify the firearm through tracing, test firing or other means of electronic or forensic analysis;

(2) Investigate whether the weapon had been used in any other crimes or criminal activity;

(3) Identify the name and location the lawful owner;

(4) Determine if the owner is still legally allowed to own or possess the type of firearm under existing federal or state law;

(5) Contact any innocent owner to obtain necessary information and inform the owner of the process for recovery of the firearm;

(6) Any investigation in furtherance of a criminal investigation or law enforcement purpose.

(d) All firearms will be secured in the CPD property and evidence facility until the investigation is complete or the underlying matter in which the firearm was secured has been prosecuted to a conclusion or otherwise resolved pursuant to federal and state law.

(e) To defray the costs of the investigation on the history and ownership of the firearm, any innocent owner seeking to recover a firearm which has been stolen from their residence, place of business or vehicle shall pay a fee of $150.00 to the City of Columbia. If, after a period of 90 days after the date the owner was notified the firearm was subject to be released to their possession and custody, the fee remains unpaid, the fee shall be waived but the firearm will be deemed abandoned property and disposed of in accordance with federal law, state law and department policy.

(f) No fees shall be assessed against any firearm or to any owner who provides documentary proof the theft or loss of the firearm was reported to the state or local law enforcement authority with jurisdiction over the location of the firearm within 24 hours of the discovery of the loss or theft.

(g) No fee shall be assessed against any firearm or to any owner for weapons secured solely for temporary safekeeping.

(h) Failure to report the loss or theft of any firearm as provided for in this section may result in the assessment of an infraction punishable by a civil penalty of up to $500.00 per firearm.

(i) If any provision, clause, sentence or paragraph of this section or the application thereof to any person or circumstances shall be held invalid, that invalidity shall not affect the other provisions of this section which can be given effect without the invalid provision or application, and to this end the provisions of this section are declared to be severable.
(Ord. No. 2019-045, 8-6-19; Ord. No. 2022-080, 9-20-22)

Sec. 14-8. Hate intimidation.

(a) A person who violates section 10-34, 12-8, 14-5, 14-31, 14-91, 14-92, 14-93, 14-94, 14-97, 14-101, 14-102, 14-104, 14-263, 15-1 or 22-72 with the intent to intimidate a person in whole or in part because of the actual or perceived race, color, creed, religion, ancestry, gender, sexual orientation (as defined in section 11-503), disability (as defined in section 11-503) gender identity, expression or national origin of any person is guilty of the separate offense of hate intimidation and shall be punished as provided by section. 1-5. The sentences shall run consecutive to one another unless the court specifies on the record good cause why they should run concurrently.

(b) Fines imposed under this section for contemporaneous or concurrent violations of this section shall be assessed for each violation.

(c) A court may impose community service or participation in an educational program for violation of this section.

(d) All fines paid and collected pursuant to this section shall be used to support educational programs.

(e) As used in this section "educational program" shall mean an educational program approved by the city that is conducted by a public or not-for-profit entity within the city limits and that provides training relating to the harm or damage to individuals or society caused by bigotry on the basis of race, color, creed, religion, ancestry, gender, sexual orientation, disability or national origin.
(Ord. No. 2019-062, 9-17-19)

Secs. 14-9—14-30. Reserved.

ARTICLE II. OFFENSES AGAINST THE PERSON

Sec. 14-31. Assault and battery; fighting.

It shall be unlawful for any person to commit an assault and battery, or in any manner whatever to engage in any combat or fight in any private or public place within the corporate limits of the city.
(Code 1979, § 2-2011)

Sec. 14-32. Distributing material, soliciting or conducting transactions on street; stopping persons on sidewalk for purpose of soliciting business.

(a) Except as authorized by permit issued by city council pursuant to subsection (c) of this section, it shall be unlawful for any person to distribute material, make any solicitation, or conduct any transaction with any pedestrian or occupant of a vehicle traveling or standing within that portion of a street set aside for vehicular travel, including medians, islands and parking spaces.

(b) It shall be unlawful for any person while upon any public sidewalk in the city to accost or stop or to attempt to accost or stop persons passing by with the thought of inducing them to enter any place where merchandise is sold, or to solicit trade, business or patronage for any hotel, roominghouse, eating house, store or mercantile establishment, theater or motion picture theater, shine parlor or other business of any kind or character whatsoever, or to molest or seek or attempt to molest persons on such sidewalks by such solicitation.

(c) City council may issue a permit to a rescue squad, volunteer fire department, or other charitable or eleemosynary organization to solicit funds from motorists on highways and streets within the city. No organization may be issued more than two such permits in any one calendar year. When granting such a permit, city council may impose such terms and conditions as may be deemed appropriate.

(Code 1979, § 2-2046; Ord. No. 2001-056, 7-11-01)

Cross reference—Distribution of handbills and newspapers, § 3-1.

Secs. 14-33—14-60. Reserved.

ARTICLE III. OFFENSES AGAINST PROPERTY

Sec. 14-61. Obtaining property by fraud.

It shall be unlawful for any person to obtain, or get into his hands or his possession, any money, goods, chattels, jewels or other property of any other person by color and means of any false token, fraud or false representation.
(Code 1979, § 2-2021)

State law reference—Similar provisions, S.C. Code 1976, § 16-13-240.

Sec. 14-62. Failure to pay for food or other services at restaurant.

It shall be unlawful for any person while a guest at any restaurant, café or eating establishment within the corporate limits of the city to intentionally abscond without paying for food or other services obtained therein.
(Code 1979, § 2-2024)

Secs. 14-63—14-90. Reserved.

ARTICLE IV. OFFENSES AGAINST THE PUBLIC PEACE AND ORDER

Sec. 14-91. Disorderly conduct.

It shall be unlawful for any person within the city limits to engage in the following conduct, knowing or having reasonable grounds to know that it will tend to promote or provoke a fight, assault or brawl:

(1) To utter, while in the presence of others, any lewd or obscene epithets or make any lewd or obscene gestures with his hands or body;

(2) To use fighting words directed toward another;

(3) To knowingly and willfully engage in any overt physical conduct that interferes with another's pursuit of a lawful occupation or activity;

(4) Without lawful permission to congregate with another or others, in or on any public way, so as to impede the flow of vehicular or pedestrian traffic, and refuse to clear such public way when ordered by the city police or other lawful authority; or

(5) In any public place or on any public way, to accost or attempt to force his company upon any person against his will.

(Code 1979, § 2-3033)

Sec. 14-92. Disturbing audience or assemblage at place of amusement.

Any person who shall interrupt or disturb any audience or other group of people who may be assembled in any place of amusement within the city, by any noise or loud talking, indecent behavior or other annoyance which may in any manner interfere with good order and decorum, shall be deemed guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5.

(Code 1979, § 2-2034)

Sec. 14-93. Disturbing religious services.

Any person who shall:

(1) Willfully and maliciously disturb or interrupt any meeting, society, assembly or congregation convened for the purpose of religious worship;

(2) Enter such meeting while in a state of intoxication; or

(3) Use or sell spirituous liquors, or use blasphemous, profane or obscene language at or near the place of meeting;

shall be deemed guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5.

(Code 1979, § 2-2035)

State law reference—Similar provisions, S.C. Code 1976, § 16-17-520.

Sec. 14-94. Disturbing schools.

It shall be unlawful for any person, at or near any schoolhouse or institution of learning in the city, to engage or attract by conversation, signals, signs, sounds, or loitering in the neighborhood during school hours, or in any other manner, the attention of any of the pupils or teachers of such schools or institutions, to the disturbance of the school or institution or to the detriment of the discipline thereof.

(Code 1979, § 2-2036)

State law reference—Similar provisions, S.C. Code 1976, § 16-17-420.

Sec. 14-95. Escape from custody.

It shall be unlawful for any person under arrest by city officials, or for any prisoner or convict of the city, to make or effect his escape, or to endeavor or attempt to do so, or for any person to aid, abet, encourage or procure any such person under arrest or any prisoner or convict so to do.
(Code 1979, § 2-2037)

State law reference—Similar provisions, S.C. Code 1976, § 16-9-410.

Sec. 14-96. Fortunetelling.

It shall be unlawful to engage in the business, trade or profession of fortunetelling, palmistry, phrenology, clairvoyance or the prediction of future events by cards or other means or to offer to tell fortunes or predict future events by palmistry, astrology, clairvoyance, cards or other means as an inducement to promote some other business, trade or profession. Any person violating the provisions of this section shall be guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5.
(Code 1979, § 2-2038)

State law reference—Similar provisions, S.C. Code 1976, § 16-17-690.

Sec. 14-97. Loitering.

(a) *Definition.* As used in this section, the term "loitering" shall mean remaining idle in essentially one location, spending time idly, loafing or walking around aimlessly in a public place in such a manner as to:

(1) Create or cause to be created a disturbance or annoyance that would be unreasonable to a person of ordinary sensibilities;

(2) Create or cause to be created a danger of a breach of the peace;

(3) Obstruct or hinder the free passage of vehicles or pedestrians;

(4) Obstruct or interfere with any person lawfully in any public place;

(5) Engage in begging;

(6) Engage in gambling;

(7) Engage in prostitution;

(8) Solicit or engage in any business, trade or commercial transaction unless specifically authorized or licensed to do so;

(9) Unlawfully use or possess an unlawful drug; or

(10) Unlawfully use or possess alcoholic beverages, beer or wine.

(b) *Violations.* Any person loitering in any public place as defined in subsection (a) of this section may be ordered by any police officer to leave that place. Any person who shall refuse to leave after being ordered to do so by a police officer shall be guilty of a violation of this section. Nothing in this section shall be construed or enforced in such a manner as to restrict freedom of speech, religion or association.
(Code 1979, § 2-2039; Ord. No. 2004-085, 9-8-04)

Sec. 14-98. Drunkenness.

Any person who shall be found drunk or intoxicated in the corporate limits of the city in any place, public or private, so as to be offensive to others shall be guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5.
(Code 1979, § 2-2040)

State law reference—Similar provisions, S.C. Code 1976, § 16-17-530.

Sec. 14-99. Possession or consumption of alcoholic beverages on public property.

(a) *Prohibited.* Except as expressly provided in this section, it shall be unlawful for any person to consume, or to possess in an open container, any alcoholic beverage in or on any public street, road, alley, sidewalk, tree zone, parking garage or park within the city.

(b) *Exceptions.* This section shall not apply to the following areas unless possession or consumption of any of the defined alcoholic beverages on public property is prohibited by state law or regulation:

(1) Any portion of a public sidewalk covered by an encroachment ordinance permitting use of the sidewalk by a restaurant or other public accommodation licensed to sell beer, wine or other alcoholic beverages for on-premises consumption being used by patrons of the restaurant or other public accommodation in the manner authorized by the encroachment ordinance; and

(2) Any public park, street, sidewalk or tree zone, or any portion thereof, designated in a resolution of the city council as the site of a public festival or other special event at which alcoholic beverages may be consumed; and

(3) Any public street, sidewalk or tree zone, or any portion thereof, situated behind barricades which have been placed for a neighborhood block event, if the neighborhood block event has been approved by the issuance of a special permit by the Columbia Police Department and at which alcoholic beverages are not being sold for consumption.

(4) Any parking garage, or any portion thereof, for an admission free event which has been approved by Parking Services and the Fire Marshal and approved by the issuance of a special permit by the Columbia Police Department and at which alcoholic beverages are not being sold for consumption.

(c) *Definitions.* As used in this section, the following terms shall have the meanings specified in this subsection:

(1) Alcoholic beverage means any beverage which contains alcohol, regardless of the percentage of alcohol contained therein, including, but not limited to beer, ale, porter and other similar malt or fermented beverages, wine, alcoholic liquors or other liquors or a compound or mixture of them by whatever name called or known.

(2) Open container means a cup, glass, mug or other similar container, and also any bottle, can, flask or other similar container to which a top or cork is not securely affixed.

(3) Parking garage means any parking garage owned and operated by the city.

(4) Street and road mean only the paved portions of a public right-of-way that are suitable for vehicular traffic or parking.

(5) Tree zone means a strip of land between a public street or road and an adjacent sidewalk parallel thereto.

(d) *Penalty.* A person convicted of violating this section shall be fined not more than $500.00 and/or imprisoned for not more 30 days.
(Ord. No. 94-75, 10-19-94; Ord. No. 2010-132, 12-14-10; Ord. No. 2014-036, 4-8-14)

Sec. 14-100. Enhanced trigger devices declared illegal; exceptions.

(a) Any device capable of being attached to a firearm for the purpose of increasing the firing rate or capabilities of the firearm using recoil, commonly known as ""bump stocks" or "bump fire stocks", are hereby declared unlawful and any person in actual or constructive possession of such a device is guilty of a misdemeanor punishable in municipal court pursuant to section 1-5.

(b) Any device capable of attaching to a firearm and which repeatedly activates the trigger of the weapon through the use of a lever or other part that is turned in a circular motion, commonly known as "trigger crank" or "gat crank", are hereby declared unlawful and any person in actual or constructive possession of such a device is guilty of a misdemeanor punishable in municipal court pursuant to section 1-5.

(c) Violations as stated in subsection (a) or (b) above are subject to the following exceptions:

(1) Any member of the United States military or any legally sworn law enforcement personnel while engaged in the course of their duties or in training;

(2) Any "bump stock" or "trigger crank" device which is possessed by a person who is not prohibited under state or federal law from using, owning or possessing a firearm, and the device is completely disconnected from any firearm in a manner which would render the device inoperable and stored in a separate container from the firearm or weapon;

(3) Any law enforcement officer or department which has seized a firearm, with "bump stock" or "trigger crank" attached, pursuant to a lawful seizure of a weapon, as contraband or evidence of a crime, inside the City of Columbia; provided, however, any law enforcement agency taking possession of a "bump stock" attached to a firearm must notify the Columbia Police Department immediately to inform them of the existence of the device, the location where it was obtained, where the device will be stored and any other facts relevant to the use or possession by any person.

(4) Possession of any weapon which is manufactured to fire through the use of a crank or lever.

(Ord. No. 2017-109, 12-19-17)

Sec. 14-101. Discharging firearms, weapons or explosives.

(a) It shall be unlawful for any person to fire or discharge within the corporate limits of the city any gun, pistol, rifle, firearm, weapon, small arms, air rifle, BB rifle, air pistol, pellet gun, target gun, signal gun, slingshot, bow and arrow, crossbow, rocket or explosive, or any fireworks not authorized by the fire prevention code.

(b) Authority of police to seize devices. Any police officer is hereby authorized and empowered to abate such nuisance whenever any bow and arrows, slingshot or other device for throwing missiles is found in the possession of and being used by a minor or other irresponsible person, by seizing and destroying the device; provided that such seizure shall not prevent the imposition of penalties for violation of this section.

(Code 1979, § 2-2043; Ord. No. 99-093, 10-27-99)

Sec. 14-102. Carrying weapons.

It shall be unlawful for any person to carry about his person any pistol, dirk, butcher knife, case knife, sword or spear, cane, metal knuckles, razors or other weapons of offense within the corporate limits of the city.

(Code 1979, § 2-2044)

State law reference—Carrying concealed weapons, forfeiture of weapons, S.C. Code 1976, § 16-23-460.

Sec. 14-103. Sale or possession of switchblade knives.

(a) It shall be unlawful for any person to sell, offer for sale or possess a switchblade knife within the city.

(b) For the purposes of this section, the term "switchblade knife" shall mean a knife having the appearance of a pocket knife, the blade of which can be opened by a flick of a button, pressure on the handle, or other mechanical devices.

(Code 1979, § 2-2045)

Sec. 14-104. Unlawful urination or defecation.

It shall be unlawful for any person to urinate or defecate on or in any public or private property within the city except in a restroom or other toilet facility designated for the sanitary disposal of human waste.
(Ord. No. 2004-086, 9-8-04)

Sec. 14-105. Urban camping and improper use of public places.

(a) *Definitions.* The following definitions apply for purposes of this section:

(1) *Camp* shall mean residing in or using a public street, sidewalk, or park for private living accommodations, such as erecting tents or other temporary structures or objects providing shelter; sleeping in a single place for any substantial prolonged period of time; regularly cooking or preparing meals; or other similar activities.

(2) *Storing personal property* shall mean leaving one's personal effects, such as, but not limited to, clothing, bedrolls, cookware, sleeping bags, luggage, knapsacks, or backpacks, unattended for any substantial prolonged length of time. This term shall not include parking a bicycle or other mode of transportation.

(3) *Public park* includes all municipal parks, public playgrounds, public plazas, attractions, and monuments.

(4) *Public street* includes all public streets and highways, public sidewalks, public benches, public parking lots, and medians.

(b) *Public parks.* It shall be unlawful to camp or to store personal property in any park, as defined above, owned by the city.

(c) *Public streets.* It shall be unlawful to camp, to sleep, to store personal property, to sit or to lie down on any public street, as defined above.

(d) *Other public property.* Blocking ingress and egress. It shall be unlawful to camp, to sleep, to store personal property, to sit or to lie down on any public property so as to interfere with ingress or egress from buildings.

(e) *Warning.* No person may be arrested for violating this code section until he or she has received an oral or written warning to cease the unlawful conduct. Warnings are not particular to a location but to the unlawful conduct overall. If the violator fails to comply with the warning issued, he or she is subject to arrest for urban camping.

(f) *Notice.* Proper signage that provides conspicuous notice to a person that their conduct is unlawful and in violation of this section code shall be deemed a written warning.

(g) *Exceptions.* This code section shall not be construed to prohibit the following behavior:

(1) Persons sitting or lying down as a result of a medical emergency;

(2) Persons in wheelchairs sitting on sidewalks;

(3) Persons sitting down while attending parades;

(4) Persons sitting down while patronizing sidewalk café§

(5) Persons lying down or napping while attending performances, festivals, concerts, fireworks, or other special events;

(6) Persons sitting on chairs or benches supplied by a public agency or the abutting private property owner;

(7) Persons sitting on seats in bus zones occupied by people waiting for the bus;

(8) Persons sitting or lying down while waiting in an orderly line outside a box office to purchase tickets to any sporting event, concert, performance, or other special event;

(9) Persons sitting or lying down while waiting in an orderly line awaiting entry to any building, including shelters, or awaiting social services, such as provision of meals;

(10) Children sleeping while being carried by an accompanying person or while sitting or lying in a stroller or baby carriage; or

(11) Camping as permitted by the city's parks and recreation department.

(h) *Standard.* In determining whether an exception applies, law enforcement shall apply a reasonableness standard and consider the direct or circumstantial evidence of the intent of the person engaged in the conduct.

(Ord. No. 2007-068, 9-19-07; Ord. No. 2023-079, 8-1-23)

Sec. 14-106. Hours of sale restricted for commercial establishments which allow for on-premises consumption of beer, ale, porter and/or wine.

(a) *Definitions.* The following definitions apply for the purposes of this section:

Beer, ale, porter and wine are defined as stated in Section 61-4-10 of the Code of Laws of South Carolina 1976, as amended from time to time.

Citation means credible evidence of any attempt to violate any crime, regulation, ordinance or code which is either documented or investigated by a law enforcement agency, fire marshal, license inspector or code enforcement officer and results in a formal document summoning the accused to any court or administrative panel; or a conviction for a violation of any crime, ordinance or code in this section.

Commercial establishment means any individual, firm, partnership, cooperative nonprofit membership, corporation, joint venture, professional association, estate, trust, business trust, receiver, syndicate holding company, or other group or combination acting as a unit, in the singular or plural, and the agent or employee having charge or control of a commercial establishment in the absence of the principal.

Drinking establishment means any commercial establishment which allows for on premises consumption of beer, ale, porter and/or wine. For purposes of this section, a drinking establishment also includes any eating establishment which allows for on premises consumption regardless of the nature of its zoning or the business type as determined by the business license administrator.

Family member means spouse, sibling or parent, and spouses or domestic partners thereof; grandparents and grandchildren, and spouses thereof; domestic partner and parents thereof, and any individual related by blood or affinity whose close association with the employee is the equivalent of a family relationship.

Permit holder means the name of the individual who is the successful applicant for the extended hours operating permit or the agent for the business on the extended hours operating permit if the applicant is a business entity.

Permit period means the period of time from 2:00 a.m. until sunrise or the time the commercial establishment is required by state law to close, whichever may be the latest time.

Permit year is the calendar year or any portion thereof for which an extended operating hours permit has been issued and which expires on June 30th.

Related person means any person with a personal or business relationship, including: family member; mortgagor/mortgagee; leaseholder/lessee; creditor/debtor; employer/employee; co-owner of the business by more than 20 percent of equity; or a person with a guaranteed share of proceeds or profits in the business.

(b) *Hours of operations for drinking establishments.* Drinking establishments shall be prohibited from operating, selling, being open to the public or allowing consumption of beer, ale, porter or wine after 2:00 a.m. on Mondays through Saturdays, without having a valid extended hours permit issued by the City of Columbia pursuant to this section.

(c) *Extended hours operating permit; application, requirements.*

(1) A drinking establishment may seek exemption to subsection (b) to operate after 2:00 a.m. until sunrise or the time the commercial establishment is required by state law to close, whichever may be the latest time on Mondays through Saturdays, by obtaining an extended hours operating permit issued by the Columbia Police Department upon a form approved for such use by the chief of police, or his designee.

(2) All extended hours operating permits shall be issued for one calendar year, or any portion thereof, and shall expire on June 30.

(3) All extended hours operating permits shall only be issued in the name of a person, or business entity, who is also the named holder of the City of Columbia business license for that business.

(4) Applicants shall pay a nonrefundable application fee of $100.00, along with any permit fees required under this section.

(5) No drinking establishment may apply for an extended hours operating permit unless the drinking establishment has been in operation in that location for a period of twenty-four months prior to the date of the application.

(6) As a condition of the permit, all applications shall include a security plan to be approved by the Columbia Police Department, a fire safety plan to be approved by the Columbia Fire Department and a certification by an inspector approved by the city that the location is in compliance with all applicable building and fire codes.

(7) Extended operating hours permits which shall be conspicuously displayed at the entry way of the commercial establishment.

(8) Extended hours operating permits are not transferable.

(9) Applications shall include a current copy of the menu of food options offered by the drinking establishment during the permit period.

(10) Applications shall include proof of the drinking establishment's liability insurance and workers' compensation insurance for the permit period.

(11) Applications will be denied to any applicant who is a related person to a previous permit or license holder whose city issued permit or license was suspended or revoked in the previous 60 months.

(d) *Terms and conditions of extended hours operating permits.*

(1) Any drinking establishment which holds an extended hours operating permit shall fully cooperate with any law enforcement or fire agency seeking to inspect, investigate or enforce the laws or regulations of the City of Columbia, State of South Carolina or the United States of America during the permit year.

(2) If a violation of any laws, ordinances or regulations should occur during the permit year, or if any circumstance or situation of public health or safety should occur at the business during the permit year, the city may require reasonable corrective measures be taken by the permit holder to include, but not be limited to: additional training for drinking establishment staff, periodic inspections, revision of fire safety or security plans, employment of additional staff, or such other and further corrective measures to ensure the safety of the drinking establishment patrons and employees. Any corrective measures required under this section are in addition to, and do not replace, or create a condition of, any other penalty, relief or remedy available under law.

(3) Upon issuance of this permit, the permit holder agrees that during the permit period, all of its employees are an agent of the business for the limited purpose of being placed on notice of conditions, incidents or citations which occur.

(4) During the permit period, the permit holder must offer for sale food items from the current menu approved with the extended hours operating permit application.

(5) The drinking establishment must have in place and maintain current at all times liquor liability insurance and workers' compensation insurance. The commercial establishment shall provide the city proof of such insurance at the time of application for the permit and at any other time the city may request. A lapse or cancellation of the insurance coverage will result in a suspension of the extended hours operating permit until insurance is reinstated.

(6) As part of the security plan, the permit holder shall establish a policy that:

(i) Requires all floor managers, bartenders and wait staff to maintain certification in Serve Safe Alcohol, TIPS or Lexington Richland Alcohol and Drug Abuse Council's PREP training on determining when a customer is underage or apparently intoxicated or training approved by the Columbia Police Department;

(ii) Prohibits employees from serving alcohol to underage or apparently intoxicated customers; and

(iii) Requires the drinking establishment, its agents and employees to enforce a policy of refusing further alcohol service to underage or intoxicated customers.

(7) Drinking establishments may utilize security agency personnel to exercise security functions, as defined by Section 40-18-20, et seq., of the Code of Laws of South Carolina 1976, as amended if such security agency is licensed by the State of South Carolina and by the city.

(8) No alcohol consumption will be permitted in the parking lots under the control of the drinking establishment as prohibited by law. No alcohol consumption will be permitted outside of any roofed, decked, café-style areas or encroachment areas authorized by city council, nor shall any glass or metal containers of any kind be permitted to leave the roofed, decked, café-style areas of the drinking establishment or encroachment areas authorized by city council. The drinking establishment will establish policies and security resources to assure compliance.

(9) During the permit period, the drinking establishment may not offer drinks at any discount or special price. All drinks are to be sold at the regularly established price of the drinking establishment.

(10) The commercial establishment shall not allow any drinking contests or games, or contests involving disrobing, or "wet t-shirt", "Girls Gone Wild" ™ or similar contests will be held or advertised at the commercial establishment unless the commercial establishment is licensed to operate as a sexually oriented business. No agent, employee or independent contractor for the commercial establishment will encourage or permit this prohibited behavior by the patrons, unless the business is licensed to operate as a sexually oriented business.

(e) *Penalties; suspension or revocation.*

(1) In addition to any administrative remedy available under this section, or any other remedy available under law, any violation of any requirement of this section is criminally enforceable in the municipal court as provided in section 1-5 of the Code of Ordinances of the City of Columbia.

(2) Extended hours operating permits are the property of the city and shall immediately be surrendered to the Columbia Police Department upon revocation, cancellation or suspension.

(3) If any application submitted under this section is incomplete or does not contain the requirements outlined, the permit shall not be issued until the application is complete and all requirements are met. Failure by the applicant to submit the required information or to correct the deficiency in 60 days will result in denial of the application.

(4) If three or more administrative, criminal, or fire citations, or a combination of same, are made against the permit holder or any of its employees in a 30-day period, the extended hours operating permit shall be immediately suspended for a period of 90

days. Two such suspensions within a twenty-four-month period will result in revocation/denial of any renewal application for a period of two complete permit years.

(5) If any application submitted under this section contains a misrepresentation, or a false or misleading statement, as may be determined by the chief of police, his designee, the permit shall be immediately revoked.

(6) Any permit issued by this section may be revoked under Article II of Chapter 8 of the Code of Ordinances of the City of Columbia. Once revoked, no permit application under this section will be considered for two complete permit years.

(7) The chief of police, in his discretion, may suspend any permit issued under this section for a reasonable period of time, not to exceed 14 days, to investigate the facts and circumstances of any condition which is an immediate threat to health or safety of the public, the business patrons or employees.

(f) *Fees.* Permits shall be issued upon the payment of the following permit fees:

Permit application fee	$100.00
Initial permit	$2,500.00
Renewal of permit with no citations for the previous permit year	$1,000.00
Renewal of permit with two or more administrative citations of laws or regulations pertaining to intoxicating liquors, beer, wine, ale or porter, or the taxation of same during the previous permit year	$3,000.00
Renewal of permit with two or more criminal citations of laws or regulations pertaining to intoxicating liquors, beer, wine, ale or porter during the previous permit year	$5,000.00
Renewal of permit if two or more citations of laws, ordinances or regulations regarding fire safety, including occupancy limits during the previous permit year	$5,000.00
Renewal after having a 90-day suspension as provided in section 14-106(e)(4) during the permit year	$10,000.00

(g) *Appeals.*

(1) The permit holder may make a written demand to the city manager for a de novo review of any action taken under this ordinance. This review does not stay the action against permit, but a hearing will be scheduled with the city manager as soon as possible. The review must be received by the city manager before the time specified in the notice. The review may be faxed or emailed to the city manager. The written demand shall include an address and a contact number, either phone or facsimile, in order for the person to be informed of the hearing location, date and time. The city manager may amend or modify the action, or when appropriate under the facts

presented, extend the time for compliance by the owner to such date as the city manager may determine. The decisions of the city manager are final, and shall be delivered in written form within ten days and mailed to the address provided.

(2) Any appeal of the city manager's administrative decision is final and reviewable by the circuit court in the same procedure and manner as state licensing appeals under Section 1-23-380, et. seq. of the Code of Laws of South Carolina, as amended from time to time, incorporated herein by express reference.

(h) *Severability.* The provisions of this section are severable, and, if any provision hereof shall be determined by a court of competent jurisdiction to be invalid or unenforceable, such determination shall not affect the validity or enforceability of any other provision hereof. (Ord. No. 2011-001, 5-1-11; Ord. No. 2011-021, 6-7-11; Ord. No. 2012-092, 10-2-12; Ord. No. 2018-001, 5-15-18)

Sec. 14-107. Careless operation of drone.

(a) For purposes of this section, the term "drone" shall be defined as an unmanned aircraft system without a human pilot onboard but instead is controlled from an operator on the ground.

(b) It shall be unlawful for any person within the city limits to operate a drone in any one or more of the following ways:

(1) In violation of any federal or state statute or regulation which applies to drones, including provisions of mandatory registration;

(2) In any manner which causes personal injury, however slight, to another person or persons;

(3) In any manner which causes damage, however slight, to the property of any person or entity;

(4) At any time while under the influence of alcohol or drugs;

(5) In any manner in furtherance of the commission of any crime;

(6) Over any gathering or group of people which exceeds 50 persons without lawful permission by the event organizer and any applicable federal or state agencies which have jurisdiction;

(7) In any manner which impedes the normal and safe flow of vehicular traffic on any public roadway, street or highway; or

(8) In any manner which interferes with the safe and efficient operations of any first responder while engaged in a call for service.

(c) A violation of this section is within the jurisdiction of the Columbia Municipal Court and punishable as provided in section 1-5.

(d) Use of a drone in any manner which violates this section is hereby declared to be a public nuisance.
(Ord. No. 2019-011, 2-19-19)

Sec. 14-108. Discharge of fireworks.

(a) Except as otherwise provided in this section, it is unlawful for a person to use, discharge, shoot, or ignite fireworks or similar explosives within the city between the hours of 10:00 p.m. and 7:00 a.m. This section may not be construed to prohibit the discharge or lighting of sparklers or similar pyrotechnic products which generate no appreciable noise at any time. For the purposes of this section, "fireworks" is a term as defined by S.C. Code 1976, § 40-56-20.

(b) Notwithstanding the provisions of subsection (a), the permitted hours for the use of fireworks must be extended on the Fourth of July and New Year's Eve to include the hours of 10:00 p.m. July 4th—1:00 a.m. on July 5th and 10:00 p.m. December 31st—1:00a.m. January 1st.

(c) It is unlawful to:

(1) Negligently, recklessly, or intentionally direct the discharge of fireworks towards a structure, animal, or person;

(2) Intentionally detonate fireworks upon the land of another without express prior consent;

(3) Offer for sale or sell permissible fireworks to children under the age of 16 years unless accompanied by a parent;

(4) To ignite or detonate fireworks within 600 feet of a church, hospital, public school;

(5) To ignite or detonate permissible fireworks within a motor vehicle or discharge a permissible fireworks from a motor vehicle;

(6) To place or throw an ignited firework into or at a motor vehicleand

(7) Intentionally dump, throw, drop, deposit, discard, or otherwise discharge fireworks onto another's property without express prior consent.

(d) A violation of this section is punishable by a civil penalty of up to $100.00 for a first offense, $250.00 for a second offense and $500.00 for a third or subsequent offense. Each violation of this section may be punished as a separate offense. Second, third, and subsequent violations are those occurring within a period of five years from the date of a previous violation.

(e) After three separate violations in a single location over a period of six months, the location can be declared to be a public nuisance and subject to the nuisance provisions of Chapter 8, article II of the Columbia City Code.

(f) Nothing in this section may be construed to prohibit within the city the use of flares or similar devices necessary for the safe operation of railroads, buses, trucks, or other vehicles within the city or that is necessary during emergencies.

(g) Nothing in this section shall be read to supersede or otherwise be exempt from the requirements of Columbia City Code Chapter 9, Fire Prevention and Protection.

(h) Any firework display permitted by the city and state fire marshal is exempt from subsection (a), (b), and (c)(4) of this section.
(Ord. No. 2022-083, § 1, 11-1-22; Ord. No. 2023-093, 11-21-23)

Secs. 14-109—14-130. Reserved.

ARTICLE V. OFFENSES INVOLVING MINORS

DIVISION 1. GENERALLY

Sec. 14-131. Selling or furnishing cigarettes, tobacco or cigarette papers to minors.

It shall be unlawful for any person to sell, furnish, give or provide any minor under the age of 18 years with cigarettes, tobacco or cigarette papers, or any substitute therefor, within the limits of the city. Any person violating the provisions of this section, either in person, by agent, or in any other way, shall be held and deemed guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5; provided that a written order given a minor by an adult shall not be deemed a violation of the provisions of this section.
(Code 1979, § 2-2064)

State law reference—Similar provisions, S.C. Code 1976, § 16-17-500.

Secs. 14-132—14-150. Reserved.

DIVISION 2. CURFEW

Sec. 14-151. Curfew established; exception.

It shall be unlawful for any minor under the age of 14 years to loiter, idle, wander, stroll, engage in the selling of merchandise of any kind, or play in or upon the public streets, alleys, parks, playgrounds, public buildings or places of amusement, or any public place, between the hours of 8:00 p.m. and 6:00 a.m. of the following day; provided, however, that the provisions of this section shall not apply to a minor accompanied by his parent, guardian or other adult responsible person having the care and custody of the minor. Each violation of the provisions of this section shall constitute a separate offense.
(Code 1979, § 2-2061)

Sec. 14-152. Responsibility of parent or guardian.

It shall be unlawful for the parent, guardian or other adult person having the care and custody of a minor under the age of 14 years to knowingly permit such minor to loiter, idle, wander, stroll, engage in the selling of merchandise of any kind, or play in or upon the public streets, alleys, parks, playgrounds, public buildings or places of amusement, or any public place, between the hours of 8:00 p.m. and 6:00 a.m. of the following day; provided, however, that the provisions of this section do not apply when the minor is accompanied by his parent, guardian or other adult person having the care and custody of the minor. Each violation of the provisions of this section shall constitute a separate offense.
(Code 1979, § 2-2062)

Sec. 14-153. Duties of police regarding minors in public place during school hours.

All police officers of the city are hereby empowered and authorized to apprehend and to question any minor under the age of 14 years who shall loiter, idle, wander, stroll, engage in the selling of merchandise of any kind, or play in or upon the public streets, alleys, parks, playgrounds or places of amusement, or any public place, during the regular public school hours fixed by the authorities and officers in charge of the running and management of the public schools in the city, and to report the name of any minor apprehended to the public school authorities and to the officers charged with the enforcement and carrying out of the compulsory education laws.
(Code 1979, § 2-2063)

Secs. 14-154—14-159. Reserved.

DIVISION 3. JUVENILE CURFEW FOR THE FIVE POINTS ADULT HOSPITALITY DISTRICT

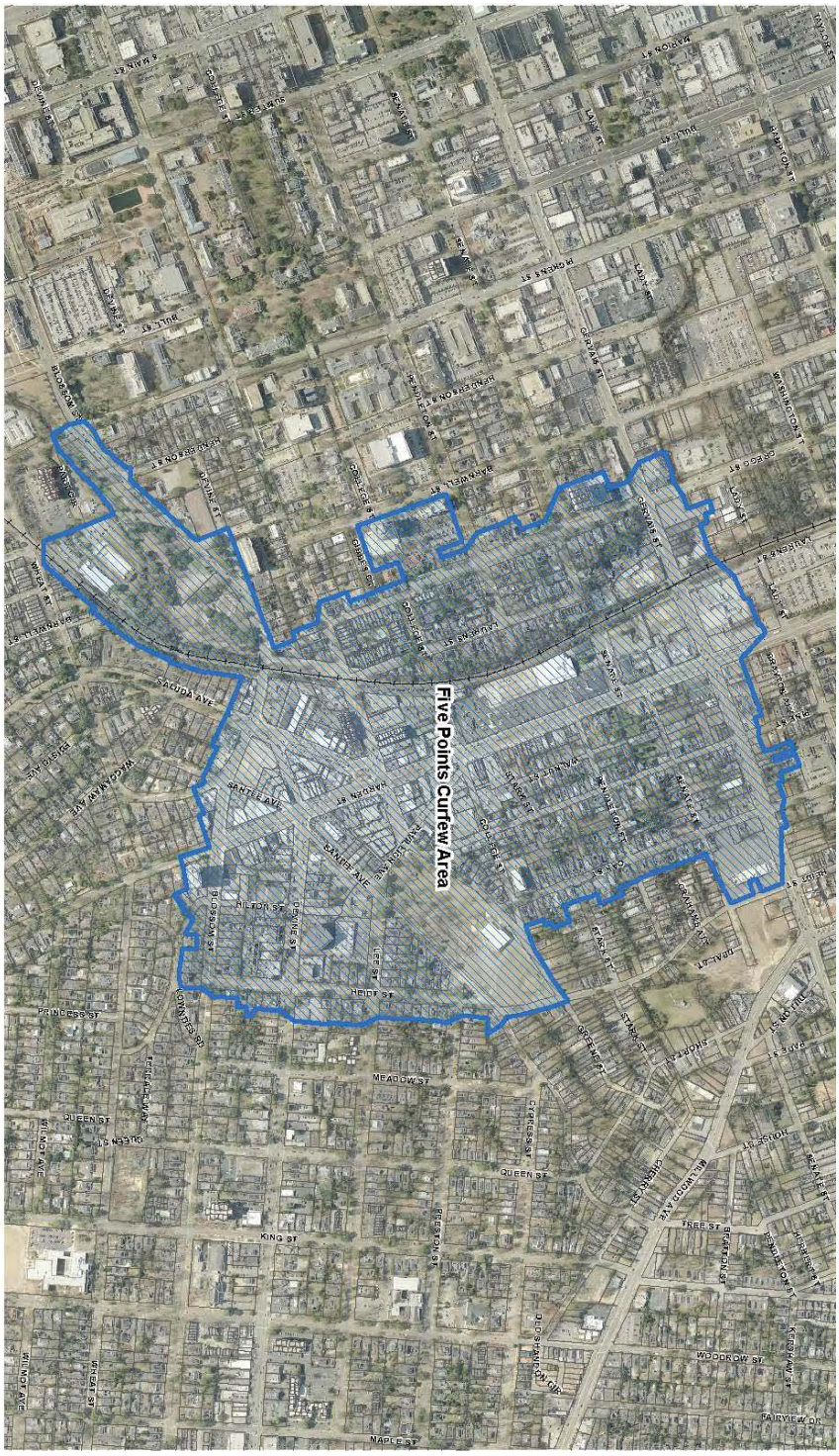
Sec. 14-160. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning.

Curfew hours refers to the hours of 11:00 p.m. through 6:00 a.m. the next day, each day of the week.

Establishment refers to any privately-owned place of business within the Five Points Adult Hospitality District operated for a profit, to which the public is invited, or to any non-profit organization licensed to sell or serve beer, wine or other alcoholic beverage, including, but not limited to any place of amusement or entertainment. With respect to such establishment, the term "operator" shall mean any person, and any firm, association, partnership (and the members or partners thereof) and/or any corporation (and the officers thereof) conducting or managing that establishment.

Five Points Adult Hospitality District refers to the hospitality area as shown on the map attached hereto as Exhibit A, which is incorporated herein by reference thereto, and includes Maxcy Gregg Park and M. L. King Park.



FIVE POINTS CURFEW AREA

Minor or *juvenile* refers to any person under 17 years of age who has not been emancipated by court order entered pursuant to state law.

Officer refers to a police or other law enforcement officer charged with the duty of enforcing the laws of the State of South Carolina and/or the ordinances of the city.

Parent refers to:

(1) A person who is a minor's biological or adoptive parent and who has legal custody of a minor (including either parent, if custody is shared under a court order or agreement);

(2) A person who is the biological or adoptive parent with whom a minor regularly resides;

(3) A person judicially appointed as a legal guardian of the minor; or

(4) A person 18 years of age or older standing in *loco parentis* (as indicated by the authorization of an individual listed in part(s) (1), (2) or (3) of this definition, above, for the person to assume the care or physical custody of the minor, or as indicated by any other circumstances).

Person refers to an individual, not to any association, corporation, or any other legal entity.

Public place refers to any place to which the public or a substantial group of the public has access, including, but not limited to: streets, highways, roads, sidewalks, alleys, avenues, parks, and/or the common areas of schools, hospitals, apartment houses, office buildings, transportation facilities and shops.

Remain refers to the following actions:

(1) To linger or stay at or upon a place; and/or

(2) To fail to leave a place when requested to do so by an officer or by the owner, operator or other person in control of that place.

Temporary care facility refers to a court-approved foster home, group home, non-secure facility, or program as provided by S.C. Code Ann. § 63-19-810, where minors may wait, under visual supervision, to be retrieved by a parent or other responsible adult. No minors waiting in such facility shall be handcuffed and/or secured (by handcuffs or otherwise) to any stationary object.
(Ord. No. 2011-059, 8-23-11)

Sec. 14-161. Five Points Adult Hospitality curfew established.

(a) It shall be unlawful for a minor, during curfew hours, to remain in or upon any public place within the Five Points Adult Hospitality District, to remain in any motor vehicle operating or parked therein or thereon, or to remain in or upon the premises of any establishment within the Five Points Adult Hospitality District, unless:

(1) The minor is accompanied by a parent; or

(2) The minor is involved in an emergency; or

(3) The minor is engaged in an employment activity, or is going to or returning home from such activity, without detour or stop; or

(4) The minor is on the sidewalk directly abutting a place where he or she resides with a parent; or

(5) The minor is attending an activity sponsored by a school, religious, or civic organization, by a public organization or agency, or by another similar organization or entity, which activity is supervised by adults, and/or the minor is going to or returning from such an activity without detour or stop; or

(6) The minor is on an errand at the direction of a parent, and the minor has in his or her possession a writing signed by the parent containing the following information: the name, signature, address and telephone number of the parent authorizing the errand, the telephone number where the parent may be reached during the errand, the name of the minor, and a brief description of the errand, the minor's destination(s) and the hours the minor is authorized to be engaged in the errand; or

(7) The minor is involved in interstate travel through, or beginning or terminating in, the City of Columbia; or

(8) The minor is exercising First Amendment rights protected by the United States Constitution, such as the free exercise of religion, freedom of speech and the right of assembly.

(b) It shall be unlawful for a minor's parent to knowingly permit, allow or encourage such minor to violate subsection (a).

(c) It shall be unlawful for a person who is the owner or operator of any motor vehicle to knowingly permit, allow or encourage a violation of subsection (a).

(d) It shall be unlawful for the operator of any establishment, or for any person who is an employee thereof, to knowingly permit, allow or encourage a minor to remain upon the premises of the establishment during curfew hours. It shall be a defense to prosecution under this subsection that the operator or employee of an establishment promptly notified the Columbia Police Department that a minor was present at the establishment during curfew hours and refused to leave.

(e) It shall be unlawful for any person (including any minor) to give a false name, address, or telephone number to any officer investigating a possible violation of this division.
(Ord. No. 2011-059, 8-23-11)

Sec. 14-162. Enforcement.

(1) Minors. Before taking any enforcement action hereunder, an officer shall make an immediate investigation for the purpose of ascertaining whether or not the presence of a minor in a public place, motor vehicle and/or Establishment within the Five Points Adult Hospitality District during curfew hours is in violation of subsection 14-161(a).

If such investigation reveals that the presence of such minor is in violation of subsection 14-161(a), then:

(i) If the minor has not previously been issued a warning for any such violation, then the officer shall issue a verbal warning to the minor, which shall be followed by a written warning mailed by the police department to the minor and his or her parent(s); or

(ii) If the minor has previously been issued a warning for any such violation, then the officer shall charge the minor with a violation of this division and shall issue a summons requiring the minor to appear in court.

As soon as practicable, the officer shall notify the parent of the minor, and thereafter:

(i) Release the minor to his or her parent or other responsible adult; or

(ii) Place the minor in a temporary care facility for a period not to exceed the remainder of the curfew hours, so that his or her parent(s) may retrieve the minor; or

(iii) If a minor refuses to give an officer his or her name and address, refuses to give the name and address of his or her parent(s), or if no parent can be located prior to the end of the applicable curfew hours, or if located, no parent appears to accept custody of the minor, the minor may be taken to a temporary care facility or otherwise to be dealt with in the manner and pursuant to such procedures as required by state law. See S.C. Code Ann. § 63-19-10, et seq.

(2) Others. If an investigation by an officer reveals that a person has violated subsection 14-161(b), (c), (d), and/or (e), and if the person has not previously been issued a warning with respect to any such violation, an officer shall issue a verbal warning to the person, which shall be followed by a written warning mailed by the Columbia Police Department to the person; however, if any such warning has previously been issued to that person then the officer shall charge the person with a violation and shall issue a summons directing the person to appear in court.

(3) Any person found guilty of a violation of this division shall be guilty of a misdemeanor, punishable upon conviction, in accordance with section 1-5 of the Columbia City Code. For the purpose of enforcing this ordinance, the Columbia Police Department is hereby authorized to maintain records of warnings and violations.

(4) Nothing in this division shall be taken or construed to limit, foreclose or otherwise impair the ability of the city to enforce other city ordinances or state laws regulating the conduct of juveniles and their companions, including, but not limited to laws relating to contributing to the delinquency of minors, underage possession and consumption of alcohol or tobacco products, and the like.
(Ord. No. 2011-059, 8-23-11)

Secs. 14-163—14-169. Reserved

DIVISION 4. CONVERSION THERAPY FOR MINORS PROHIBITED

Sec. 14-170. Policy.

The City of Columbia, South Carolina has a compelling interest in protecting the physical and psychological well-being of minors, including but not limited to lesbian, gay, bisexual, transgender and/or questioning youth, from exposure to the serious harms and risks caused by conversion therapy or reparative therapy by licensed providers. These provisions are exercises of the police power of the city for the public safety, health, and welfare; and its provisions shall be liberally construed to accomplish that purpose.
(Ord. No. 2021-021, 6-15-21)

Sec. 14-171. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Conversion therapy or *reparative therapy* means any practice or treatment that seeks to change an individual's sexual orientation or gender identity, including efforts to change behaviors or gender expressions or to eliminate or reduce sexual or romantic attractions or feelings toward individuals of the same gender. Conversion therapy shall not include counseling that provides support and assistance to a person undergoing gender transition, or counseling that provides acceptance, support and understanding of a person or facilitates a person's coping, social support, and development, including sexual orientation-neutral treatment interventions to prevent or address unlawful conduct or unsafe sexual practices, as long as such counseling does not seek to change sexual orientation or gender identity.

Gender identity means the gender-related identity, appearance, expression, behavior, mannerisms, or other gender-related characteristics of an individual, with or without regard to the individual's designated sex at birth.

Minor means a person less than 18 years old.

Penalty. Any person that violates any provision of this section shall be guilty of a civil infraction, punishable by a civil penalty of a fine not to exceed $500.00. Each violation of this division shall be considered a separate and distinct offense.

Prohibited practice. It shall be unlawful for any provider, who is licensed by the city to engage in business, to provide conversion therapy or reparative therapy to a minor within city limits.

Provider means any licensed medical or mental health professional including, but not limited to, licensed professional counselors, licensed psychologists, licensed clinical social workers, provisional licensed professional counselors, provisional and temporary licensed psychologists, licensed and provisional licensed marital and family therapists, psychiatrists, certified substance abuse counselors, certified school counselors, behavior analysts, and any professional licensed under Title 40 of the South Carolina Code of Laws.

Sexual orientation means homosexuality, heterosexuality, asexuality, and bisexuality, or some combination thereof, by consenting adults, or as perceived by others, but not including sexual preference or practice between an adult and a minor.
(Ord. No. 2021-021, 6-15-21)

Sec. 14-172. Intent.

It is city council's intent that this division regulate professional conduct by providers who are licensed by the city to engage in business and the manner in which providers deliver therapeutic treatment to minors within City limits, but does not otherwise prohibit or limit proponents or opponents of conversion therapy to speak about gender or sexual orientation conversion publicly and privately, including to their minors in forms other than conversion therapy.
(Ord. No. 2021-021, 6-15-21)

Sec. 14-173. Conflicting provisions.

Should any provision, paragraph, sentence, or word of this ordinance be rendered or declared invalid by any final court action in a court of competent jurisdiction or by reason of any preemptive legislation, the remaining provisions, paragraphs, sentences, or words of this division as hereby adopted shall remain in full force and effect.
(Ord. No. 2021-021, 6-15-21)

Secs. 14-174—14-180. Reserved.

ARTICLE VI. GAMBLING*

Sec. 14-181. Prohibited.

It shall be unlawful for any person within the city to play for money or other things of value at any game, with cards or dice, or any gaming table, faro bank, or bank of the same or like kind, or other device for gambling by whatsoever name it may be called, nor shall anyone bet on any of the sides or hands of such as do game.
(Code 1979, § 2-2065)

Sec. 14-182. Maintaining faro bank, gaming table, etc.

No person shall keep, operate or maintain at any place within the city any faro bank, or bank of the same or like kind, or gaming table or other device for gambling by whatsoever name it may be called, and any person found guilty of a violation of this section shall be guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5.
(Code 1979, § 2-2066)

***State law reference—**Similar provisions regulating or prohibiting gambling, S.C. Code 1976, § 16-19-10 et seq.

Sec. 14-183. Wagers to be forfeited.

All and every sum of money staked, bet or pending on the event of any game prohibited in this article is hereby declared to be forfeited to the general fund of the city.
(Code 1979, § 2-2067)

Sec. 14-184. Destruction of gambling devices.

The chief of police is vested with the authority to destroy gambling or gaming machines or devices of any kind whatsoever which shall come into his possession upon violations of state or city gambling laws immediately after final disposition of a case, unless otherwise directed by court order.
(Code 1979, § 2-2068)

State law reference—Similar provisions, S.C. Code 1976, § 52-15-20.

Secs. 14-185—14-210. Reserved.

ARTICLE VII. PROSTITUTION, INDECENCY AND LEWD ACTS*

Sec. 14-211. Prohibited.

It shall be unlawful for any person to engage in any form of prostitution, within the city.
(Ord. No. 2008-106, 1-7-09)

Sec. 14-212. Inviting or enticing persons for immoral purpose.

(a) It shall be unlawful for any person to invite, entice or solicit any person upon any public place in the city to accompany, go with or follow him for the purpose of engaging in prostitution or any other lewd or lascivious act.

(b) For the purpose of this section, a "public place" shall mean an area generally visible to public view and includes streets, sidewalks, bridges, alleys, plazas, parks, driveways, parking lots, automobiles (whether moving or not), and those portions of buildings open to the general public, including those which serve food or drink or provide entertainment, and the doorways and entrances to buildings or dwellings and the grounds enclosing them.
(Ord. No. 2008-106, 1-7-09)

Sec. 14-213. Permitting use of room for prostitution.

It shall be unlawful for any person owning or operating a hotel, roominghouse, lodginghouse, boardinghouse, dwelling or other house within the limits of the city to permit

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***Editor's note—**Ord. No. 2008-106, adopted Jan. 7, 2009, amended and restated former Art. VII, §§ 14-211—14-217, in its entirety which pertained to similar subject matter and derived from the Code of 1979.

State law reference—Prostitution generally, S.C. Code 1976, §§ 16-15-90—16-15-110.

any room or portion thereof to be used for the purpose of prostitution or any other lewd or lascivious act. If it shall be established that prostitution or any other lewd or lascivious act has been practiced

in such hotel, roominghouse, lodginghouse, boardinghouse, dwelling or other house and that the owner or keeper thereof has not used reasonable precautions to prevent such act, the owner or keeper thereof shall be deemed to have violated this article and shall be subject to the penalties prescribed.
(Ord. No. 2008-106, 1-7-09)

Sec. 14-214. Transporting person for immoral purpose.

It shall be unlawful for any person or driver of any public conveyance, vehicle or common carrier of any kind whatsoever to transport, carry, convey or assist by aiding, abetting, encouraging, requesting or otherwise, in transporting, carrying, conveying or accompanying by any ways or means whatsoever any person from any point within the city limits to any other point within the city limits, or from any point within the city limits to any point outside of the city limits, or from any point outside of the city limits to any point within the incorporated limits of the city, for the purpose of prostitution or any lewd or lascivious act.
(Ord. No. 2008-106, 1-7-09)

Sec. 14-215. Giving information about or directing persons to places for purpose of prostitution.

It shall be unlawful for any person in the city to give information about or direct any other person to any house or place for the purpose of prostitution or any other lewd or lascivious act, whether the communication be by word of mouth direct or by telephone or in writing.
(Ord. No. 2008-106, 1-7-09)

Sec. 14-216. Maintaining or frequenting house of prostitution or assignation.

It shall be unlawful for any person to maintain, keep, live at or frequent any place within the city which is used for the purpose of prostitution or other lewd and lascivious acts, whether the place be a place where prostitutes live or a house of assignation.
(Ord. No. 2008-106, 1-7-09)

Sec. 14-217. Renting premises for use as bawdy house.

It shall be unlawful for any person to rent or let, whether himself or by agent, or whether he be principal or agent, any place within the limits of the city when he has reason to believe that the place is being rented or let for the purpose of maintaining therein a disorderly house or bawdy house, or to permit any property that he may own or have in charge as agent to be used for the purpose of maintaining therein a disorderly house or bawdy house.
(Ord. No. 2008-106, 1-7-09)

Sec. 14-218. Other prohibited acts in public places.

(a) No person shall appear in any public place and make an indecent exposure of his or her person.

(b) It shall be unlawful for any person to knowingly or intentionally, in a public place, (1) to engage in sexual intercourse; (2) engage in deviate sexual conduct; (3) appear in a state of nudity in a lewd or lascivious manner; or (4) fondle the person's genitals or the genitals of another person.

(c) For the purpose of this section, a "public place" shall mean an area generally visible to public view and includes streets, sidewalks, bridges, alleys, plazas, parks, driveways, parking lots, automobiles (whether moving or not), and those portions of buildings open to the general public including those which serve food or drink, or provide entertainment, and the doorways and entrances to buildings or dwellings and the grounds enclosing them.

(d) Nothing in this section shall be interpreted to apply to a woman who breastfeeds her own child in a public place, on property of others, to the view of any person on a street or highway, or any other place where a woman and her child are authorized to be.

(e) No provision in this section shall be interpreted to prohibit nudity or near nudity incidental to a theatrical performance or presentation in a theater or auditorium ordinarily used for theatrical performances or presentations. This exclusion shall not apply to any theatrical performance or presentation or any other event performed in an outdoor venue or which is open to the admission of minors under the age of 16 years unless admission requires the minor under the age of 16 years to be accompanied by a parent or legal guardian.
(Ord. No. 2008-106, 1-7-09)

Secs. 14-219—14-240. Reserved.

ARTICLE VIII. ABANDONED REFRIGERATORS AND OTHER HAZARDOUS CONTAINERS*

Sec. 14-241. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Abandon means the throwing away on vacant property, junk heaps, trash piles, or debris accumulations of a refrigerator or any other like act which would constitute abandonment thereof.

Dangerous exposure or access means the placing of a refrigerator not in use in a garage, barn, outbuilding, porch, yard, lot or other portion of premises where children or other persons may come upon it and may be attracted to it.

***Editor's note—**Ord. No. 2008-068, adopted jan. 28, 2009, amended former Art. VIII, §§ 14-241—14-245, in its entirety which pertained to similar subject matter and derived from the Code of 1979.

Cross reference—Nuisances, § 8-31 et seq.

State law reference—Abandoning iceboxes and refrigerators, S.C. Code 1976, § 16-3-1010.

Refrigerator means an icebox, ice chest, freezer, refrigerator, cooler, or other like closed cabinet, box, or device that seals off or impedes the free circulation of air in and through the interior of the cabinet, box, or device.
(Ord. No. 2008-068, 1-28-09)

Sec. 14-242. Interpretation of article.

The provisions of this article shall be liberally construed to effect the remedy intended and prevent loss of lives of children and other persons. Any refrigerator which is abandoned or found to be in a condition of dangerous exposure or access as defined in this article is hereby declared to be an immediate and extremely dangerous threat to the public health, safety and welfare, especially to children, and is hereby declared to be a public nuisance requiring immediate abatement.
(Ord. No. 2008-068, 1-28-09)

Sec. 14-243. Latches and locks to be removed.

It shall be unlawful for any person to abandon, dangerously expose or afford access to, or to cause or permit to be abandoned or dangerously exposed or access afforded to, any refrigerator unless the door thereto has been removed from such refrigerator or unless the latch or lock holding each door thereof shut is dismantled or removed so that the door may be opened by any child or person from within by simply pushing on it. Jamming or obstructing the lock or latch shall not be sufficient compliance with this section. The lock or latch must be removed or dismantled so that accidental latching or locking is impossible.
(Ord. No. 2008-068, 1-28-09)

Sec. 14-244. Responsibility for compliance.

The duty of complying with the provisions of this article is imposed alike on the owner of the refrigerator and the owner or any occupant of the premises where an abandonment or dangerous exposure or access occurs.
(Ord. No. 2008-068, 1-28-09)

Sec. 14-245. Inspection of premises.

The city building official, the chief of the police department, the chief of the fire department, or other proper city official or employee shall have full power and authority to inspect any and all premises located within the city limits for the purpose of enforcing the terms of this article. If the owner of the refrigerator or the owner or any occupant of the premises where an abandonment or dangerous exposure or access occurs cannot be immediately contacted to immediately abate, the city building official, the chief of the police department, the chief of the fire department or other proper city official or employee, after consultation with and concurrence by the city manager, shall have full power and authority to enter the property to abate pursuant to section 14-243 of this article.
(Ord. No. 2008-068, 1-28-09)

Sec. 14-246. City authorization to immediately modify or remove.

Where the city building official, the chief of the police department, the chief of the fire department, or other proper city official or employee finds a refrigerator in violation of section 14-243, that person shall have full power and authority to immediately take any and all actions necessary to ensure that the refrigerator is either modified or removed from the premises so that the risk of loss of life of children and other persons is eliminated. Removing a refrigerator found in violation of section 14-243 should only be employed where no other practical and effective remedy will eliminate the risk of loss of life of children and other persons. Where circumstances warrant the removal of a refrigerator, the city is under no obligation to save, return, or compensate the owner of the refrigerator.
(Ord. No. 2008-068, 1-28-09)

Secs. 14-247—14-260. Reserved.

ARTICLE IX. GRAFFITI

Sec. 14-261. Purpose and intent.

The city council of the City of Columbia, South Carolina is enacting this article to help prevent the spread of graffiti vandalism and to establish a program for the removal of graffiti from public and private property.

The council finds that graffiti is a public nuisance and destructive of the rights and values of property owners as well as the entire community. Unless the city acts to remove graffiti from public and private property, the graffiti tends to remain. Other properties then become the target of graffiti, and entire neighborhoods are affected and become less desirable places in which to be, all to the detriment of the city.

The city council intends, through the adoption of this article, to provide additional enforcement tools to protect public and private property from acts of graffiti vandalism and defacement.
(Ord. No. 2002-060, § 1, 8-7-02)

Sec. 14-262. Definitions.

For the purposes of this article, the following words shall have the meanings respectively ascribed to them in this section, except where the context clearly indicates a different meaning:

Graffiti means any unauthorized inscription, word, figure, painting or other defacement that is written, marked, etched, scratched, sprayed, drawn, painted, glued or engraved on or otherwise affixed to any surface of public or private property by any means whatsoever to the extent that the graffiti was not authorized in advance by the owner or occupant of the property, or, despite advance authorization, is otherwise deemed a public nuisance by the city council.

Person means any individual, partnership, corporative association, private corporation, personal representative, receiver, trustee, assignee, or any other legal entity.
(Ord. No. 2002-060, § 1, 8-7-02)

Sec. 14-263. Prohibited acts.

It shall be unlawful for any person to apply graffiti to any natural or man-made surface on any city-owned property or, without the permission of the owner or occupant, on any non-city-owned property.
(Ord. No. 2002-060, § 2, 8-7-02)

Sec. 14-264. Penalties.

(a) *Fines and imprisonment.* Any person violating this article shall be punished by a fine up to five hundred dollars ($500.00), or by imprisonment for a term not to exceed thirty (30) days, or by both fine and imprisonment at the discretion of the court.

(b) *Restitution.* In addition to any punishment specified in this section, the court shall order any violator to make restitution to the victim for damages or loss caused directly or indirectly by the violator's offense in the amount or manner determined by the court.

(c) *Community service.* In lieu of, or as part of, the penalties specified in this section, a minor or adult may be required to perform community service.

Reasonable effort shall be made to assign the minor or adult to a type of community service that is reasonably expected to have the most rehabilitative effect on the minor or adult, including community service that involves graffiti removal.
(Ord. No. 2002-060, § 3, 8-7-02)

Sec. 14-265. Rewards and reimbursements for information.

(a) The city may offer a reward in an amount to be established by resolution of the city council for information leading to the identification and apprehension of any person who willfully damages or destroys any public or private property by the use of graffiti. In the event of multiple contributions of information, the reward amount shall be divided by the city in the manner it shall deem appropriate.

(b) Claims for rewards under this section shall be filed with the city in the manner specified by the city council.

(c) No claim for a reward shall be allowed unless the city investigates and verifies the accuracy of the claim and determines that the requirements of this section have been satisfied.
(Ord. No. 2002-060, § 4, 8-7-02)

Sec. 14-266. Graffiti as nuisance.

(a) The existence of graffiti on public or private property in violation of this article is expressly declared to be a public nuisance and, therefore, is subject to the removal and abatement provisions specified in this article.

(b) It is the duty of both the owner of the property to which the graffiti has been applied and any person who may be in possession or who has the right to possess such property to at all times keep the property clear of graffiti.
(Ord. No. 2002-060, § 5, 8-7-02)

Sec. 14-267. Removal of graffiti by perpetrator.

Any person applying graffiti on public or private property shall have the duty to remove the graffiti within twenty-four (24) hours after notice by the city or private owner of the property involved. Such removal shall be done in a manner prescribed by the chief of police, the director of the department of public works, or any additional city department head, as authorized by the city council. Any person applying graffiti shall be responsible for the removal or for the payment of the removal. Failure of any person to remove graffiti or pay for the removal shall constitute an additional violation of this article.
(Ord. No. 2002-060, § 6, 8-7-02)

Sec. 14-268. Removal of graffiti by property owner or city.

If graffiti is not removed by the perpetrator according to section 14-267, graffiti shall be removed pursuant to the following provisions:

(1) *Property owner responsibility.* It is unlawful for any person who is the owner or who has primary responsibility for control of property or for repair or maintenance of property in the city to permit property that is defaced with graffiti to remain defaced for a period of ten (10) days after service by first class mail of notice of the defacement. The notice shall contain the following information:

   a. The street address and legal description of the property sufficient for identification of the property;

   b. A statement that the property is a potential graffiti nuisance property with a concise description of the conditions leading to the finding;

   c. A statement that the graffiti must be removed within ten days after receipt of the notice and that if the graffiti is not abated within that time the city will declare the property to be a public nuisance.

   d. An information sheet identifying any graffiti removal assistance programs available through the city and private graffiti removal contractors.

(2) *Exceptions to property owner responsibility.* The removal requirements of subsection (a) above shall not apply if the property owner or responsible party can demonstrate that:

   a. The property owner or responsible party lacks the financial ability to remove the defacing graffiti or is actively engaged in actions to remove the graffiti; or

   b. The property owner or responsible party has an active program for the removal of graffiti and has scheduled the removal of the graffiti as part of that program,

in which case it shall be unlawful to permit such property to remain defaced with graffiti for a period of 15 days after service by first class mail of notice of the defacement.

(3) *Right of city to remove.*

a. *Use of public funds.* Whenever the city becomes aware or is notified and determines that graffiti is located on publicly or privately owned property viewable from a public or quasi-public place, the city shall be authorized to use public funds for the removal of the graffiti, or for the painting or repairing of the graffiti, but shall not authorize or undertake to provide for the painting or repair of any more extensive an area than that where the graffiti is located, unless the city manager, or other designee of the city manager, determines in writing that a more extensive area is required to be repainted or repaired in order to avoid an aesthetic disfigurement to the neighborhood or community, or unless the property owner or responsible party agrees to pay for the costs of repainting or repairing the more extensive area.

b. *Right of entry on private property.* Prior to entering upon private property or property owned by a public entity other than the city for the purpose of graffiti removal, the city shall attempt to secure the consent of the property owner or responsible party and a release of the city from liability for property damage or personal injury. If the property owner or responsible party fails to remove the offending graffiti within the time specified by this article, or if the city has requested consent to remove or paint over the offending graffiti and the property owner or responsible party has refused consent for entry on terms acceptable to the city and consistent with the terms of this section, the city shall commence abatement and cost recovery proceedings for the graffiti removal according to the provisions specified below.

(4) *Abatement and cost recovery proceedings.*

a. *Notice of due process hearing.* The city manager, or the designee of the city manager, serving as the hearing officer, shall provide the property owner of record and the party responsible for the maintenance of the property, if a person different than the owner, not less than 48 hours notice of the city's intent to hold a due process hearing at which the property owner or responsible party shall be entitled to present evidence and argue that the property does not constitute a public nuisance. Notice shall be served in the same manner as a summons in a civil action in accordance with the South Carolina Rules of Civil Procedure. If the owner of record cannot be found after a diligent search, the notice may be served by posting a copy thereof in a conspicuous place upon the property for a period of ten days and publication thereof in a newspaper of general circulation.

b. *Determination of hearing officer.* The determination of the hearing officer after the due process hearing shall be final and not appealable. If, after the due process hearing, regardless of the attendance of the owner or the responsibility party or

their respective agents, the hearing officer determines that the property contains graffiti viewable from a public or quasi-public place, the hearing officer shall give written notice in an eradication order that, unless the graffiti is removed within ten days, the city shall enter upon the property, cause the removal, painting over (in such color as shall meet with the approval of the hearing officer), or such other eradication thereof as the hearing officer deems appropriate, and shall provide the owner and the responsible party thereafter with an accounting of the costs of the eradication effort on a full cost recovery basis.

c. *Eradication effort.* Not sooner than the time specified in the order of the hearing officer, the city manager, or the designee of the city manager, shall implement the eradication order and shall provide an accounting to the owner and the responsible party of the costs thereof.

d. *Cost hearing.* The owner or responsible party may request a cost hearing before the hearing officer on the eradication accounting, and appropriate due process must be extended to the owner or responsible party. If following the cost hearing, or if no hearing is requested, after the implementation of the eradication order, the hearing officer determines that all or a portion of the costs are appropriately chargeable to the eradication effort, the total amount set forth in the eradication accounting, or an amount thereof determined as appropriate by the hearing officer, shall be due and payable by the owner or responsible party within 30 days. Any amount of eradication charges assessed by the hearing officer that are less than the total amount set forth in the eradication accounting shall be explained by written letter from the hearing officer to the city council.

(Ord. No. 2002-060, § 7, 8-7-02)

Sec. 14-269. Ease of removal provisions.

(a) *Utility colors and paint type.* Any gas, electric, telephone, water, sewer, cable, telephone and other utility operating in the city shall paint its above-surface metal fixtures with an industry-recognized paint type and color.

(b) *Condition encroachment permits.* All encroachment permits issued by the city shall, among such other things, be conditions on:

(1) The permittee's application of an anti-graffiti material to the encroaching object of a type and nature that is acceptable to the city manager, or the city manager's designee.

(2) The permittee's immediate removal of any graffiti;

(3) The city's right to remove graffiti or to paint the encroaching object; or

(4) The permittee's providing the city with sufficient matching paint and/or anti-graffiti material on demand for use in the painting of the encroaching object containing graffiti.

(Ord. No. 2002-060, § 8, 8-7-02; Ord. No. 2007-041, 6-27-07)

Sec. 14-270. Prevention provisions.

(a) *Design of potential grafitti-attracting surfaces.* Any applicant for design review approval, conditional use permit, special use permit, development agreement, or other form of development or building permit shall, to the extent deemed feasible by the city manager, or the designee of the city manager, have designed any building structures visible from any public or quasi-public place in such a manner to consider prevention of graffitti, including but not limited to the following;

(1) Use of a protective coating to provide for the effective and expeditious removal of graffiti;

(2) Use of additional lighting;

(3) Use of non-solid fencing;

(4) Use of landscaping designed to cover large expansive walls such as ivy or similar clinging vegetation.

(Ord. No. 2002-060, § 9, 8-7-02)

Editor's note—Ord. No. 2007-041, adopted June 27, 2007 repealed former 14-271 in its entirety which pertained to the exemption of single-family residential property from the provisions of this article. Former § 14-271 derived from Ord. No. 2002-060, § 10, adopted Aug. 7, 2002.

Secs. 14-271—14-290. Reserved.

ARTICLE X. SEXUAL OFFENDER RESIDENCY RESTRICTIONS

Sec. 14-291. Restrictions on residency and loitering of sexual offenders.

(a) Any person required to register as a sexual offender pursuant to South Carolina Code § 23-3-430 shall not maintain a residence, reside or loiter within 1,000 feet of any school, child care facility, church, playground, park, designated school bus stop, public pool, youth athletic facility or playing fields or courts or rinks, or neighborhood or youth center.

(b) The buffer distance described above shall be determined by measuring from the outer boundary of the property on which the person maintains a residence, resides or loiters to the outer boundary of the other property, at their closest points. The buffer distance shall be measured as the shortest straight line between the two points without regard to any intervening structures or objects.

(c) As used in this section, the word "loiter" shall mean remaining idle in essentially one location for no apparent lawful purpose, or without a lawful purpose for being present, or for the purpose of watching, gazing or looking upon the occupants of the other property in a clandestine manner or with unlawful intent, or under circumstances that warrant alarm for the safety of persons or property in the vicinity, or to establish control over identifiable areas, or to intimidate others from entering those areas, or to conceal illegal activities.

(d) The prohibition on maintaining a residence or residing shall not apply to a permanent residence established by the registered sex offender prior to the enactment of this Code section or prior to the commencement of the operation of the other buffered property for any of the purposes listed in subsection (a) above.

The prohibition on maintaining or residing shall not apply to the sex offender who resides in a homeless shelter for no more than one year, a group home for persons under the age of twenty-one licensed by the Department of Social Services, or a residential treatment facility for persons under the age of twenty-one licensed by the Department of Health and Environmental Control, and the site was purchased by the organizer prior to the effective date the ordinance from which this article derives.

If upon registration of a sex offender, or at any other time, it is determined that the sex offender is residing in an area or place in violation of this ordinance, the sex offender shall be notified, in writing, that the sex offender has 30 days to vacate the residence. It shall be unlawful for the sex offender to fail to vacate the residence within thirty days of the written notice.
(Ord. No. 2008-104, 2-4-09)

Secs. 14-192—14-310. Reserved.

ARTICLE XI. "BATH SALTS" AND SYNTHETIC MARIJUANA

Sec. 14-311. Definitions.

As used in this article, the following term shall have the meaning indicated in this section:

Methylone, mephedrone, methylmethcathinone, fluoromethcathinone or methylenedioxypyrovaleron (MDPV), collectively "bath salts" shall mean any material, compound, mixture, or preparation, whether produced directly or indirectly from a substance of vegetable origin or independently by means of chemical synthesis or by a combination of extraction and chemical synthesis, that contains any quantity of the following substances, or that contains any of the following substances' analogs, salts, isomers, and salts of isomers when the existence of the analogs, salts, isomers, and salts of isomers is possible within the specific chemical designation: methylone, mephedrone, methoxymethcathinone, fluroromethcathinone or methylenedioxypyrovalerone (MDPV).

Synthetic marijuana shall mean and refer to all chemical compounds intended to replicate, mimic or cause a similar reaction to the effects of marijuana or cannabis. Such compounds are known or marketed under such names as THC, HU-210 Cannabicyclohexanol, JWH-018, JWH-073, K2, Spice, herbal incense, herbal smoking blends, and other names. Further, synthetic marijuana shall be considered an illegal narcotic as further provided in the Columbia City Code.
(Ord. No. 2011-067, 9-27-11)

Sec. 14-312. Possession, distribution or consumption of methylone, mephedrone, methylmethcathinone, fluoromethcathinone or methylenedioxy pyrovaleron (MDPV), collectively "bath salts" and/or synthetic marijuana.

It is unlawful for a person to use, offer for use, purchase, offer to purchase, sell, offer to sell, or possess synthetic marijuana bath salts unless prescribed by a licensed physician. Licensed health care providers, pharmacists and medical or pharmaceutical research facilities are exempted from the prohibitions against using, possessing, selling or purchasing bath salts when used, purchased, sold or possessed for patient treatment or medical or pharmaceutical research.
(Ord. No. 2011-067, 9-27-11)

Sec. 14-313. Advertisement, sale, and use prohibited.

The advertisement, sale and use of synthetic marijuana and bath salts is prohibited within the City of Columbia.
(Ord. No. 2011-067, 9-27-11)

Sec. 14-314. Penalty.

Any person who violates any provision of this chapter for which no penalty is otherwise applicable or provided shall be subject to the penalty provisions of section 1-5.
(Ord. No. 2011-067, 9-27-11)

Secs. 14-315—14-350. Reserved

ARTICLE XII. DRUG PARAPHERNALIA.

Sec. 14-351. Definitions.

As used in this article, the following term shall have the meaning indicated in this section:

Drug paraphernalia means all equipment, products and materials of any kind which are used, intended for use or designed for use, in planting, propagating, cultivating, growing, harvesting, manufacturing, compounding, converting, producing, processing, preparing, testing, analyzing, packaging, repackaging, storing, containing, concealing, injecting, ingesting, inhaling, or otherwise introducing into the human body a controlled substance in violation of this section. It includes, but is not limited to:

(1) Kits used, intended for use, or designed for use in planting, propagating, cultivating, growing or harvesting of any species of plant which is a controlled substance or from which a controlled substance can be derived;

(2) Kits used, intended for use, or designed for use in manufacturing, compounding, converting, producing, processing, or preparing controlled substances;

(3) Isomerization devices used, intended for use, or designed for use in increasing the potency of any species of plant which is a controlled substance;

(4) Testing equipment used, intended for use, or designed for use in identifying, or in analyzing the strength, effectiveness or purity of controlled substances;

(5) Scales or balances used, intended for use, or designed for use in weighing or measuring controlled substances;

(6) Diluents and adulterants, such as quinine hydrochloride, mannitol, mannite, dextrose and lactose, used, intended for use, or designed for use in cutting controlled substances;

(7) Separation gins and sifter used, intended for use, or designed for use in removing twigs and seeds from, or in the otherwise cleaning or refining of, marijuana;

(8) Blenders, bowls, containers, spoons and mixing devices used, intended for use, or designed for use in compounding controlled substances;

(9) Capsules, balloons, envelopes and other containers used, intended for use, or designed for use in compounding controlled substances;

(10) Containers and other objects used, intended for use, or designed for use in storing or concealing controlled substances;

(11) Hypodermic syringes and other objects used, intended for use, or designed for use in parenterally injecting controlled substances into the human body;

(12) Objects used, intended for use, or designed for use in ingesting, inhaling, or otherwise introducing marijuana, cocaine, hashish, or hashish oil into the human body, such as:

a. Metal, wooden, acrylic, glass, stone, plastic ceramic pipes with or without screens, permanent screens, hashish heads, or punctured metal bowls,

b. Water pipes,

c. Carburetion tubes and devices,

d. Smoking and carburetion masks,

e. Roach clips, meaning objects used to hold burning material such as a marijuana cigarette, that has become too small or too short to be held in the hand,

f. Miniature cocaine spoons, and cocaine vials,

g. Chamber pipes,

h. Carburetor pipes,

i. Electric pipes,

j. Air-drive pipes,

k. Chillums,

l. Bongs,

m. Ice pipes and chillers.

(Ord. No. 2023-081, 8-15-23)

Sec. 14-352. Factors to be considered.

In determining whether an object is drug paraphernalia, a court or other authority should consider, in addition to all other logically relevant factors, the following:

(1) Statements by an owner or by anyone in control of the object concerning its use;

(2) Prior convictions, if any, of an owner, or of anyone in control of the object, under any state or federal law relating to any controlled substance;

(3) The proximity of the object, in time and space, to a direct violation of this section;

(4) The proximity of the object to controlled substances;

(5) The existence of any residue of controlled substances on the object;

(6) Direct or circumstantial evidence of the intent of an owner or of anyone in control of the object, to deliver it to persons whom he knows or should reasonably know, intended to use the object to facilitate a violation of this section; the innocence of an owner, or of anyone in control of the object, as to a direct violation of this section shall not prevent a finding that the object is intended for use, or designed for use as drug paraphernalia;

(7) Instructions, oral or written, provided with the object concerning its use;

(8) Descriptive materials accompanying the object which explain or depict its use;

(9) National and local advertising concerning its use;

(10) The manner in which the object is displayed for sale;

(11) Whether the owner, or anyone in control of the object, is a legitimate supplier of like or related items to the community, such as a licensed distributor or dealer of tobacco products;

(12) Direct or circumstantial evidence of the ratio of sales of the object(s) to the total sales of the business enterprise;

(13) The existence and scope of legitimate uses for the object in the community;

(14) Expert testimony concerning its use.

(Ord. No. 2023-081, 8-15-23)

Sec. 14-353. Possession of drug paraphernalia.

It is unlawful for any person to use, or to possess with intent to use, drug paraphernalia to plant, propagate, cultivate, grow, harvest, manufacture, compound, convert, produce,

process, prepare, test, analyze, pack, repack, store, contain, conceal, inject, ingest, inhale or otherwise introduce into the human body a controlled substance in violation of this section within the corporate limits of the city.
(Ord. No. 2023-081, 8-15-23)

Sec. 14-354. Manufacture or delivery of drug paraphernalia.

It is unlawful for any person to deliver, possess with intent to deliver, or manufacture with intent to deliver, drug paraphernalia, knowing, or under circumstances where one should reasonably know, that it will be used to plant, propagate, cultivate, grow, harvest, manufacture, compound, convert, produce, process, prepare, test, analyze, pack, repack, store, contain, conceal, inject, ingest, inhale, or otherwise introduce into the human body a controlled substance in violation of this section within the corporate limits of the city.
(Ord. No. 2023-081, 8-15-23)

Sec. 14-355. Penalty.

Any person who violates any provision of this chapter shall be fined not more than $500.00 or imprisoned for not more than 30 days.
(Ord. No. 2023-081, 8-15-23)

Secs. 14-356—14-400. Reserved.

ARTICLE XIII. ABANDONED SHOPPING CARTS

Sec. 14-401. Definitions.

As used in this article, the following terms shall have the meaning indicated in this section:

Abandoned shopping cart means any shopping cart that has been removed without written consent of the owner or manager, from the retail establishment's premises or parking lot and is located on either public or private property.

Premises means the entire area owned, occupied, and/or utilized by an owner which provides shopping carts for use by customers or other persons.

Retail establishment means any trade establishment selling articles, commodities, services, or any line of merchandise where shopping carts are made available for and used by patrons and/or the public.

Shopping cart means a basket which is mounted on wheels or a similar device generally used in a retail or commercial establishment by a customer for the purpose of transporting goods of any kind.
(Ord. No. 2023-080, 8-1-23)

Sec. 14-402. Abandoned shopping carts.

It shall be unlawful for any person, other than a shopping cart owner or its authorized representative to do any of the following:

(1) To permanently remove a lawfully marked shopping cart from a premises or parking lot or be without written consent of the owner or manager;

(2) To be in possession of a lawfully marked shopping cart that has been removed from a premises or parking lot without written consent of the owner or manager, with the intent to permanently deprive the owner of possession of the shopping cart; or

(3) To cause or permit any shopping cart to be abandoned on or upon any sidewalk, street, or other public area, other than the premises of the owner of such shopping cart.

(Ord. No. 2023-080, 8-1-23)

Sec. 14-403. Exception.

This Code section shall not be construed to include any of the following:

(1) Shopping carts removed from the premises or parking lot for the purposes of repair, maintenance, or disposal; or

(2) Shopping carts abandoned on private property by no fault of the owner of said property.

(Ord. No. 2023-080, 8-1-23)

Sec. 14-404. Penalty.

Any person who commits a violation pursuant to section 14-402 shall be subject to a civil penalty of not more than $500.00.

(Ord. No. 2023-080, 8-1-23)

Sec. 14-405. Shopping cart identification required.

Every shopping cart owned or provided by any owner shall have the sign that includes the owner's name, address, and phone number permanently affixed on the shopping cart for identification and retrieval purposes.

(Ord. No. 2023-080, 8-1-23)

Sec. 14-406. Shopping cart removal warning sign.

Owners shall display conspicuous signs notifying the public that removal of shopping carts from the premises or parking lot is prohibited pursuant to this code section without the written consent of the retail establishment.

(Ord. No. 2023-080, 8-1-23)

Sec. 14-407. Written consent required for off-premises use of shopping cart.

An owner or its representative may permit a customer off-premises use of a shopping cart for transportation of purchased items. The authorization must be in writing with the provided date and time. This shopping cart must be returned to the owner's premises within 72-hours.
(Ord. No. 2023-080, 8-1-23)

Sec. 14-408. Mandatory securing of shopping carts after hours.

Shopping carts stored outdoors shall be locked after business hours in a manner that prevents unauthorized removals.
(Ord. No. 2023-080, 8-1-23)

Sec. 14-409. Retrieval of shopping carts.

Law enforcement shall notify the owner of an abandoned shopping cart that such is located in a place that can be accessed safely by an owner. Such notice shall be made to persons identified in the retail establishment's abandoned shopping cart prevention and retrieval plan. Within 24 hours of notification, the owner or its agent shall retrieve the identified shopping cart.
(Ord. No. 2023-080, 8-1-23)

Sec. 14-410. Administrative costs and enforcement.

Any owner who fails to retrieve its abandoned shopping cart(s) within 24 hours after receiving notice from law enforcement in accordance with section 14-409 shall pay the city's actual costs for retrieving the shopping cart(s) and providing the notification to the owner.

Any owner who fails to retrieve abandoned shopping carts in accordance with this code section in excess of three times during a six-month calendar period shall be subject to an additional $50.00 civil penalty for each occurrence, and be required to submit a revised abandoned shopping cart prevention and retrieval plan to be approved by the chief of police or his/her designee. Any subsequent violations may result in the city requiring an owner to obtain a shopping cart retrieval business to ensure compliance with this code section. An occurrence includes all shopping carts owned by the retail establishment that are retrieved by the city in a one-day period.
(Ord. No. 2023-080, 8-1-23)

Sec. 14-411. Abandoned shopping cart prevention and retrieval plan.

Every retail establishment who provides shopping carts to customers or intends to provide shopping carts to customers shall develop, implement and comply with the terms and conditions of an approved abandoned shopping cart prevention and retrieval plan to prevent unauthorized removal of shopping carts from a premises or parking lot. A proposed plan shall be submitted to the city's business licensing department within 60 days following the adoption of this article. Any retail establishment that opens after the adoption of the

ordinance codified in this section shall within 30 days from the filing date on their city business license application, submit an abandoned shopping cart prevention and retrieval plan, to accompany said application, to the city's business licensing department.

An abandoned shopping cart prevention and retrieval plan shall include the following:

(1) The retail establishment's name, the name of the owner, any agent(s), the physical address where the retail establishment is located along with a phone number of the on-site and off-site owner or manager.

(2) Designation of the agent for retrieval of the shopping cart, including direct contact information for said agent.

(3) An example of the shopping cart identification sign shall be attached to the proposed shopping cart ownership identification.

(4) A verification that shopping carts that are stored outdoors shall be locked during hours when the retail establishment is closed.

(5) An outline of a bi-weekly plan to retrieve abandoned shopping carts by and through either the designated agent or a contracted service.

(Ord. No. 2023-080, 8-1-23)

Chapter 15

PARKS AND RECREATION*

Sec. 15-1. Prohibited acts in parks.
Sec. 15-2. Permits for group use of parks or a festival.
Sec. 15-3. Additional rules and regulations.
Sec. 15-4. Hours of operation.
Sec. 15-5. User fees.

***Cross references—**Environmental health and sanitation, ch. 8; vegetation, § 17-791 et seq.; streets, sidewalks and other public places, ch. 22.

State law reference—Municipal parks and recreational facilities, S.C. Code 1976, § 51-15-10.

Sec. 15-1. Prohibited acts in parks.

It shall be unlawful for any person using the public parks, recreation areas, grounds or facilities of the city (referred to in this chapter as parks) to either perform or allow the performance of any of the following acts, unless such activity is authorized, permitted or supervised by the parks and recreation department of the city:

(1) *Damaging property.* Willfully mark, deface, disfigure, injure, tamper with, or displace or remove any buildings, bridges, tables, benches, fireplaces, railings, paving or paving material, water lines or other public utilities or parts or appurtenances thereof, signs, notices or placards, whether temporary or permanent, monuments, stakes, posts or other boundary markers, or other structures or equipment, facilities or park property or appurtenances whatsoever, either real or personal.

(2) *Pollution of waters.* Throw, discharge or otherwise place or cause to be placed in the waters of any fountain, pond, lake, stream, bay or other body of water in or adjacent to any park or any tributary, stream, storm sewer or drain flowing into such waters any substance, matter or things, liquid or solid, which will or may result in the pollution of such waters.

(3) *Removing soil or plants.* Dig or remove any soil, rock, stones, trees, shrubs or plants, downtimber or other wood or materials, or make any excavation by tool, equipment, blasting or other means, except that digging shall be permitted in areas designated for such purpose.

(4) *Damaging plants.* Damage, cut, carve, transplant or remove any tree or plant, or injure the bark or pick the flowers or seeds of any tree or plant, nor shall any person attach any rope, wire or other contrivance to any tree or plant. A person shall not dig in or otherwise disturb grass areas, or in any other way injure or impair the natural beauty or usefulness of any area.

(5) *Littering.* Bring in or dump, deposit or leave any bottles, broken glass, ashes, paper, boxes, cans, dirt, rubbish, waste, garbage, refuse or other litter, or place refuse or litter in any waters in or contiguous to any park, or anywhere on the grounds thereof, other than in the proper receptacles, where provided.

(6) *Interference with others.* Endanger the safety of any person by any conduct or act, or prevent any person from using any park or any of its facilities, or interfere with such use in compliance with this chapter and with the rules applicable to such use.

(7) *Fires.* Build or attempt to build a fire, except at places specifically designated for such purpose or as permitted by the department of parks and recreation. No person shall drop, throw or otherwise scatter lighted matches, burning cigarettes or cigars, tobacco paper or other inflammable material within any park area or on any highway, road or street abutting or contiguous thereto.

(8) *Alcohol.* Possess and/or consume beverages, or food items of any type which contain alcohol, beer or wine regardless of the percentage of alcohol contained therein, except within Riverfront Park, Keenan House, Finlay Park, the Eau Claire Print Building

next to the Eau Claire Town Hall, Boyd Plaza, Coble Plaza, and Earlewood Community Building and Park, Page Ellington Park, Busby Street Community Center, and the Lincoln Street Tunnel as follows:

a. At events open to the public involving the assembly or the intention of attracting 100 or more people, for cultural, ceremonial, educational, or celebratory purposes, which generates revenue, regardless of status, to include art exhibits, wine/food tasting events, circuses, fairs, carnivals, festivals, auctions, concerts, and any event which is advertised or marketed in any form including, but not limited to: posters, business cards, internet, and media outlets; serves an entrepreneurial purpose; includes fees/charges for goods/services (e.g. food and drink); and whenever there is an admission fee or leasing fee and when possession and consumption is specifically authorized by resolution of Columbia City Council and the event organizer obtains a permit or license if required by the South Carolina Department of Revenue for the possession and/or consumption of beer, ale, porter, malt or wine only at the event. Public events held in Page Ellington Park and Riverfront Park shall end by 9:00 p.m. and service of beer and wine only shall end by 8:30 p.m. Public events held in the Keenan House, Finlay Park, Busby Street Community Center, Eau Claire Print Building, Boyd Plaza, Coble Plaza, Earlewood Community Building and Park and the Lincoln Street Tunnel shall end by 10:00 p.m. and service of beer and wine shall end by 9:30 p.m.; or

b. At private functions, authorized by the city, for which the South Carolina Department of Revenue does not require a permit or license for the possession and/or consumption of alcoholic beverages, beer or wine. Private functions held in Page Ellington Park, Riverfront Park shall end by 9:00 p.m. and service of beer and wine only shall end by 8:30 p.m. Private functions held in the Keenan House, Finlay Park, Busby Street Community Center. Eau Claire Print Building, Boyd Plaza, Coble Plaza, Earlewood Community Building and Park and the Lincoln Street Tunnel shall end by 10:00 p.m. and service of beer and wine shall end by 9:30 p.m.;

(9) *Fireworks.* Possess, explode, discharge or ignite fireworks of any kind, unless specifically permitted by the department of parks and recreation and the fire marshal.

(10) *Parking in unauthorized area.* Park or leave automobiles, trucks, bicycles, unicycles, tricycles, scooters, mopeds, motorcycles, motorbikes, motorized carts or other motorized vehicles in places other than those specifically designated for such purpose.

(11) *Vending or peddling.* Vend, sell, peddle or offer for sale any commodity or article, except sales conducted by or specifically permitted by the department of parks and recreation.

(12) *Violation of rules and regulations of parks and recreation department.* Violate any rule or regulation promulgated by the parks and recreation department of the city.

(13) *Improper use of park equipment and furniture.* It shall be unlawful for any person to recline upon any seat, table, bench, or in any location not intended for occupancy.

(14) *Exclusive minor child play zones.* The director of parks and recreation shall designate exclusive minor child play zones within such city parks as deemed appropriate to enhance the safety of minor children at play and limit the use of playground equipment to age appropriate users.

a. No persons over the age of 12 years are allowed in exclusive minor child play zone areas unless such persons are the parents, legal guardians or authorized temporary custodians caring for the minor child or minor children playing within the area or family members of the minor child or minor children playing within the area.

b. Authorized temporary custodians for the purpose of this subsection (14) are any person who has a minor child or minor children in his or her care and custody with the consent of the minor child or minor children's parent(s) or legal guardian(s).

c. The boundaries of exclusive minor child play zones shall be clearly designated by the placement of fencing or other discernable barriers along with the placement of signage.

d. Prior to implementing exclusive minor child play zones within any park, the parks and recreation director shall request that the designation be placed on city council's agenda for public input and for approval by a majority vote of members of city council present at the meeting.

e. This subsection does not apply to special authorized events held within the city parks.

(15) *Concealable weapons.* Openly carry a concealable weapon.

(16) *Firearms.* At events subject to the provisions of section 15-1(8), possession of firearms within the boundaries of the areas in which the possession and/or consumption of alcoholic beverages are permitted.

(Code 1979, § 2-2052; Ord. No. 99-021, 3-17-99; Ord. No. 2002-037, 7-10-02; Ord. No. 2006-030, 6-28-06; Ord. No. 2012-073, 8-21-12; Ord. No. 2013-046, 6-18-13; Ord. No. 2014-038, 7-15-14; Ord. No. 2015-028, 4-21-15; Ord. No. 2019-057, 8-20-19; Ord. No. 2021-063, 9-21-21; Ord. No. 2022-035, 6-21-2022; Ord. No. 2024-084, 12-3-24)

Sec. 15-2. Permits for group use of parks or a festival.

(a) *Permit required; conditions.* Any person, group, association or organization desiring to use any park or recreational facility of the City of Columbia for a group of 25 individuals or more or to conduct an activity or event for which it could be reasonably assumed that 25 or more persons might gather at a park or recreational facility to participate in or witness such activity or event or a festival, (a festival being defined as a program of festive activities, cultural events or entertainment open to the general public), shall first apply and obtain a

permit from the director of parks and recreation or his designee. A permit is not required for events, activities or festivals sponsored or co-sponsored by the parks and recreation department of the city. The director of parks and recreation or his designee shall impose such conditions in the permit as he shall deem necessary to ensure compliance with applicable rules, regulations and ordinances and protect the public health, safety, security, peace, order, welfare and convenience.

(b) *Application procedure.* An application for a permit shall be filed with the director of the department of parks and recreation or his designee. Per the chart below:

Park Rental Event Types and Application Deadlines	*Event Type*	*Deadline*	*Deposit Info*	*Booking Info*
Major Festival or Event May include: Outdoor entertainment, sale of food/ beverages, service of alcohol, and/or generate revenue Expected attendance greater than 1,000	A	90 days prior to event	Deposit due upon contract signing	Event Booking and confirmation can begin up to 18 months in advance.
Festival or Event May include: Outdoor entertainment, sale of food/ beverages, service of alcohol, and/or generate revenue Expected attendance less than 1,000	A	90 days prior to event	Deposit due upon contract signing	Event Booking can begin up to 12 months in advance, with confirmation 120 days prior to Event. Exclusive use of Park shall be based on expected participants.
Parade, Procession, March, Road Race, Bicycle Race *Any request to close adjacent roads will require separate City Special Events Permit (Ord. 2023-064)*	A	90 days prior to event	Deposit due upon contract signing	Event Booking can begin up to 18 months in advance. No exclusive use of Park facilities that are not rented.
Wedding and Receptions Includes ceremony and/or reception. Unique experiences available.	A	90 days prior to event	Deposit due upon contract signing	Event Booking can begin up to 18 months in advance. Other Events are subject to be booked along with Concerts or Festivals. All guests are welcome to attend.

Park Rental Event Types and Application Deadlines	*Event Type*	*Deadline*	*Deposit Info*	*Booking Info*
Private or Public Gathering May include: Sale or service of food/beverages, outdoor entertainment, and/or the service of alcohol	B	60 days prior to event	Deposit due upon contract signing	Event Booking can begin up to 60 days in advance. No exclusive use of Park facilities that are not rented.
Neighborhood Gatherings, Block Party or Walk Any request to close adjacent roads will require separate City Special Events Permit (Ord. 2023-064)	C	30 days prior to event	Deposit due upon contract signing	Event Booking can begin up to 18 months in advance. No exclusive use of Park facilities that are not rented.

The application for a permit shall be on forms prescribed by the director of the department of parks and recreation or his designee, which shall include the name, address and telephone number of the person seeking the permit; the name, address and telephone number of the person, group, association or organization sponsoring the event, activity or festival; the name, address and telephone number of the person who will be responsible for the conduct of the event, activity or festival; a brief description of the event, activity or festival; the day and hours for which the permit is desired; the park or recreational facility, or portion thereof, for which such permit is requested; an estimate of the anticipated number of persons to attend the event, activity or festival; liability insurance information, if any; and any other information which the director of the parks and recreation department or his designee shall find reasonably necessary to make a fair determination as to whether a permit should be issued.

(c) *Permit issuance.* The director of the parks and recreation department or his designee may deny or condition the issuance of a permit under this section when he finds that:

(1) The proposed event or activity of the park or recreational facility or festival will unreasonably interfere with or detract from the enjoyment of the areas of the park or recreational facility for other members of the public outside the location of the event, activity or festival;

(2) The proposed event or activity will unreasonably interfere with or detract from the promotion of public health, welfare, safety and recreation of all persons who visit the park or recreational facility outside the location of the event, activity or festival;

(3) The proposed event, activity or festival is reasonably anticipated to incite violence, crime or disorderly conduct;

(4) The available parking and sanitary facilities will accommodate all persons attending the proposed event, activity or festival as well as all other persons who visit the park or recreational facility unrelated to the event, activity or festival outside the location of the event, activity or festival;

(5) The proposed event, activity or festival will not result in damage to, overuse of or destruction of the grounds, equipment, vegetation, buildings, fences and other amenities of the park or recreational facility;

(6) Arrangements have been made to keep the park or recreational facility clean and free of debris resulting from the proposed event, activity or festival;

(7) The park or recreational facility desired has not been reserved for other use at the day and hour requested in the application;

(8) The applicant has paid all security deposits and required fees; and

(9) The person, group, association or organization failed to comply with all park rules and regulations; all permit conditions and all applicable ordinances under a prior permit for an event, activity or festival in any city park or recreational facility issued within the preceding 12 months.

Permits shall be issued in order of receipt by the director of the parks and recreation departments or his designee, except that a person, group, association or organization which has not been issued a permit for use of the same park or recreational facility within the preceding 12 months shall have priority over a person, group, association or organization which has been issued such a permit for use of the same park or recreational facility within the preceding 12 months.

(d) *Fees.* The applicant shall be charged fees for the use of a park or recreational facility as are approved by the city council.

(e) *Appeals.* Within five days after receipt of an application, the director of the parks and recreation department or his designee shall apprise an applicant in writing of his reasons for denying an application for a permit, and any aggrieved person shall have the right to appeal in writing within two days to the city manager or his designee, who shall consider the application under the permit issuance provisions set forth in subsection (c) of this section and sustain or overrule the director's decision within two days. The decision of the city manager or his designee shall be final.

(f) *Effect of permit.* A permittee shall be bound by all park rules and regulations; all permit conditions and all applicable ordinances as fully as though the rules, regulations and ordinances were inserted in the permits.

(g) *Revocation.* The director of the parks and recreation department or his designee shall have the authority to revoke a permit upon a finding of violation of any applicable rule, ordinance, regulation or permit condition.

(Code 1979, § 2-2053; Ord. No. 2008-094, 10-22-08; Ord. No. 2025-090, 10-28-25)

Sec. 15-3. Additional rules and regulations.

The director of the parks and recreation department of the city shall promulgate rules and regulations to control, limit or prohibit any activity in a park, or any area therein, which would prevent the fullest use and enjoyment of a park by the general public consistent with public health, welfare, safety and recreation and the protection of public property, subject to the review and approval of the city manager.
(Code 1979, § 2-2054)

Sec. 15-4. Hours of operation.

(a) *Hours closed to public.* Except as otherwise provided herein, all city parks, playgrounds, recreation centers, ball diamonds, tennis courts, athletic or recreational facilities, greenbelts or any other areas, real property or other premises designated for public recreational use by the city (recreational facilities) shall be closed daily to the general public from official sunset to official sunrise. Official sunrise to sunset as defined by the National Weather Service for Columbia, South Carolina and published by The State Newspaper.

The director of parks and recreation shall cause notice to be placed at the main entrances of recreational facilities notifying the general public of the hours that the recreational facility is open for use by the general public as follows:

(1) *Tot lot/playgrounds.* Sunrise to sunset. These facilities include the following:

Anna Mae Dickson Mini Park

Elmwood/Roy Lynch Park

Fairwold Park

Hollywood/Rosehill Park

Isaac McClinton Park

Realtors Park

(2) *Neighborhood Centers/Parks.* Unless otherwise noted the hours shall be from 7:30 a.m. to 6:00 p.m. (Summer) and 2:00 p.m. until 6:00 p.m. (academic year) These facilities include the following:

Busby Neighborhood Center

Emily Douglas

Hampton

Heathwood

Kathryn M. Bellfield-Booker Washington Heights Cultural Arts Center. Hours of operation:

Monday—Friday: 10:00 a.m.—8:00 p.m.

Saturday: 10:00 a.m.—6:00 p.m.

Closed on Sunday

Mays Park

Melrose Park

Pacific Park

Rosewood Park

St. Anna's Park

Sims Park

South Edisto Neighborhood Center

(3) *Neighborhood Parks.* Sunrise to sunset.

Busby Neighborhood Park

Emily Douglas Park

Hampton Park

Heathwood Park

Lester Bates Park

Lincoln Park

Marshal Park

Mays Park

Melrose Park

Pacific Park

Rosewood Park

St. Anna's Park

Sims Park

South Edisto Discovery Park

(4) *Play fields/athletic fields.* These facilities include the following:

Columbia Tennis Center: 6:00 8:00 a.m.—9:00 p.m.

Thomas S. Martin and Valencia Park: 6:00 a.m.—9:00 p.m.

(5) *Community centers/parks.* 6:00 a.m. to 9:00 p.m. unless otherwise noted. These facilities include the following:

Ben Arnold Center

Drew Wellness Center—-Hours of operation:

Monday—Thursday: 5:30 a.m.—10:00 p.m.

Friday: 5:30 a.m.—8:00 p.m.

Saturday: 8:00 a.m.—6:00 p.m.

Sunday: 2:00 p.m.—6:00 p.m.

Greenview

Hyatt

Lorick

M.L. King

Pinehurst

Woodland

(6) *Community parks.* 6:00 a.m. to 9:00 p.m. These parks include the following:

Drew Park

Earlewood Park

Greenview Park

Greenview Pool—Seasonally as posted

Hyatt Park

Lorick Park

M.L. King Park

Maxcy Gregg Park—Sunrise to sunset

Maxcy Gregg Pool—Seasonally as posted

Pinehurst Park

Woodland Park

(7) *Regional parks.* 6:00 a.m. to 9:00 p.m. These facilities include the following:

Boyd Plaza

Coble Plaza

Finlay Park

Granby Park—Sunrise to sunset

Memorial Park

Owens Field Park

Page Ellington Park

Riverfront/Canal Park

Saluda River

Southeast Park

(8) *Premier rental facilities.* 8:00 a.m. to 11:00 p.m. These facilities include the following:

Busby Neighborhood Center

Earlewood Community Building

Keenan House

Eau Claire Print Building

(b) *Unlawful acts.*

(1) It shall be unlawful for any person to remain upon the premises of any recreational facility during the hours that such are closed to the public after being warned to leave by an officer of the Columbia Police Department.

(2) It shall be unlawful for any person to enter upon the premises of any recreational facility during the hours that such are closed to the public after having been warned to leave any recreational facility within six months preceding the date of the offense.

(c) *Exceptions.* This section shall not apply to:

(1) Persons whose presence is authorized by city by contract, agreement, lease or otherwise or by a permit issued by the director of parks and recreation, or his designee, in compliance with all other city ordinances, rules or regulations;

(2) Persons remaining in the recreational facility after the time for closing who are participating in or attending events, activities or programs previously scheduled or authorized by the parks and recreation department because the event, activity or program has not concluded;

(3) Persons making use of any public way located through a recreational facility; however, such persons must confine themselves to the limits of the public way;

(4) Persons who are actually engaged at such time in the official business of any city, county, state or the United States or any agency or department thereof.

(Ord. No. 99-037, 5-19-99; Ord. No. 2009-089, 10-7-09; Ord. No. 2021-063, 9-21-21; Ord. No. 2022-035, 6-21-22; Ord. No. 2024-084, 12-3-24)

Sec. 15-5. User fees.

(a) *Definitions.*

Fee structure for parks and recreation is broken into four categories:

(1) Rentals (facilities, equipment).

(2) Event support fees.

(3) Athletics.

(4) Classes/camps/programs.

Rentals are classified into three groups and fees are assessed accordingly:

(1) *Gated/admission* (admission charged and/or controlled access)—Rental fees, deposit plus support fees.

(2) *Public* (no controlled access or admission fees)—Rental fees plus deposit.

(3) *Non-profit/exempt*—Support costs plus security deposit.

Examples: American Cancer Society, Boy Scouts, Richland County School District 1

(b) *Park rental fee schedule.* Gated/admission rates for facility or park rentals will apply to events which require an admission fee to the park and/or fencing around a park to control access. (Fencing will be paid for by the renter). Rates will be set in a six-hour time block.

(c) *Fee waiver.* The city manager or his/her designee is authorized to waive any and all fees associated with the use of city owned facilities. Such waivers are limited to organizations with a direct affiliation to the City of Columbia (i.e. Columbia Council of Neighborhoods, Parks and Recreation Foundation, City Development Corporations) and whose activity benefits the expressed mission of the city and is determined to be for the public good.

(d) *Parks.*

(1) *Finlay Park:*

Park Rental Fees

Item	*Cost*	*Duration (Hours)*	*Notes*	*Security Deposit*	*Application Deadline (See below for details)*
Full Park Rental/ Ticketed or Free Admission	$2,500.00	6	1-6 hours	$1,250.00	A or B
Full Park Rental/ Ticketed or Free Admission	$3,000.00	7		$1,500.00	A or B
Full Park Rental/ Ticketed or Free Admission	$3,500.00	8		$1,750.00	A or B
Full Park Rental/ Ticketed or Free Admission	$5,000.00	9+	Full Day	$2,500.00	A or B
Full Park Rental/ Ticketed or Free Admission (City Holiday)	$3,500.00	6	1-6 hours	$1,750.00	A or B
Full Park Rental/ Ticketed or Free Admission (City Holiday)	$4,000.00	7		$2,000.00	A or B
Full Park Rental/ Ticketed or Free Admission (City Holiday)	$4,500.00	8		$2,250.00	A or B

Park Rental Fees

Item	*Cost*	*Duration (Hours)*	*Notes*	*Security Deposit*	*Application Deadline (See below for details)*
Full Park Rental/ Ticketed or Free Admission (City Holiday)	$6,000.00	9+	Full Day	$3,000.00	A or B
Full Park Rental/ Ticketed or Free Admission (Non-profit)	$1,250.00	6	1-6 hours	$625.00	A or B
Full Park Rental/ Ticketed or Free Admission (Non-profit)	$1,500.00	7		$750.00	A or B
Full Park Rental/ Ticketed or Free Admission (Non-profit)	$1,750.00	8		$875.00	A or B
Full Park Rental/ Ticketed or Free Admission (Non-profit)		9+	Full Day	$1,250.00	A or B
Full Park Rental/ Ticketed or Free Admission (Non-Profit) (City Holiday)	$1,750.00	6	1-6 hours	$ 875.00	A or B
Full Park Rental/ Ticketed or Free Admission (Non-Profit) (City Holiday)	$2,000.00	7		$1,000.00	A or B
Full Park Rental/ Ticketed or Free Admission (Non-Profit) (City Holiday)	$2,250.00	8		$1,125.00	A or B

Park Rental Fees

Item	*Cost*	*Duration (Hours)*	*Notes*	*Security Deposit*	*Application Deadline (See below for details)*
Full Park Rental/ Ticketed or Free Admission (Non-Profit) (City Holiday)	$3,000.00	9+	Full Day	$1,500.00	A or B

Stage Rental

Item	*Cost*	*Duration (Hours)*	*Notes*	*Security Deposit*	*Application Deadline (See below for details)*
Stage Rental (Performance Art)	$2,500.00	6		$1,250.00	A or B
Stage Rental (Performance Art)	$500.00	7+	Each Additional Hour	$250.00	A or B
Stage Rental (Concert)	$2,500.00	6		$1,250.00	A or B
Stage Rental (Concert)	$500.00	7+	Each Additional Hour	$250.00	A or B
Stage Rental (Performance Art) (Non-profit)	$1,000.00	6		$500.00	A or B
Stage Rental (Performance Art) (Non-profit)	$250.00	7+	Each Additional Hour	$125.00	A or B
Stage Rental (Concert) (Non-profit)	$2,000.00	6		$1,000.00	A or B
Stage Rental (Concert) (Non-profit)	$250.00	7+	Each Additional Hour	$125.00	A or B

Wedding Packages

Item	*Cost*	*Duration (Hours)*	*Notes*	*Security Deposit*	*Application Deadline (See below for details)*
Wedding Package (Overlook Plaza + Nest (interior) (controlled access) *Plus the cost of Food & Beverage and Event Personnel*	$650.00	6		$325.00	A
Wedding Package (Overlook Plaza + Nest (interior) (controlled access) *Plus the cost of Food & Beverage and Event Personnel*	$100.00	7+	Each Additional Hour	$50.00	A
Wedding Package (Overlook Plaza + Nest (interior + patio) (controlled access) *Plus the cost of Food & Beverage and Event Personnel*	$800.00	6		$400.00	A
Wedding Package (Overlook Plaza + Nest (interior + patio) (controlled access) *Plus the cost of Food & Beverage and Event Personnel*	$150.00	7+	Each Additional Hour	$75.00	A

Other Event Spaces

Item	*Cost*	*Duration (Hours)*	*Notes*	*Security Deposit*	*Application Deadline (See below for details)*
Overlook Plaza/No Controlled Access	$250.00	2		$125.00	A, B or C
Overlook Plaza/No Controlled Access	$100.00	3+	Each Additional Hour	$50.00	A, B or C
Overlook Plaza/ Controlled Access *Plus the cost of Event Personnel*	$350.00	2		$175.00	A, B or C
Overlook Plaza/ Controlled Access	$100.00	3+	Each Additional Hour	$50.00	A, B or C
The Nest (interior space) *Plus the cost of Food & Beverage*	$250.00	2		$ 125.00	A, B or C
The Nest (interior space) *Plus the cost of Food & Beverage*	$100.00	3+	Each Additional Hour	$50.00	A, B or C
The Nest (interior space + patio) *Plus the cost of Food & Beverage and Event Personnel*	$350.00	2		$175.00	A, B or C
The Nest (interior space + patio) *Plus the cost of Food & Beverage and Event Personnel*	$150.00	3+	Each Additional Hour	$75.00	A, B or C

Other Event Spaces

Item	*Cost*	*Duration (Hours)*	*Notes*	*Security Deposit*	*Application Deadline (See below for details)*
The Gadsden Green (excludes Pickleball)	$250.00	2		$125.00	A, B or C
The Gadsden Green (excludes Pickleball)	$125.00	3+	Each Additional Hour	$62.50	
The Upper Lawn	$250.00	2		$125.00	A, B or C
The Upper Lawn	$125.00	3+	Each Additional Hour	$62.50	
Cascade 5	$150.00	2		$75.00	B or C
Cascade 5	$75.00	3+	Each Additional Hour	$37.50	B or C
Cascade 6	$150.00	2		$75.00	B or C
Cascade 6	$75.00	3+	Each Additional Hour	$37.50	B or C
Cascade 7	$150.00	2		$75.00	B or C
Cascade 7	$75.00	3+	Each Additional Hour	$37.50	B or C
The Secret Garden	$100.00	2		$50.00	B or C
The Secret Garden	$50.00	3+	Each Additional Hour	$25.00	B or C
The Landing	$250.00	2		$125.00	B or C
The Landing	$125.00	3+	Each Additional Hour	$62.50	B or C

Other Event Spaces

Item	*Cost*	*Duration (Hours)*	*Notes*	*Security Deposit*	*Application Deadline (See below for details)*
The Landing and Splash Pad	$500.00	2		$250.00	B or C
The Landing and Splash Pad	$250.00	3+	Each Additional Hour	$125.00	B or C
The Landing, Splash Pad and Skate Rentals for up to 25 people	$550.00	2		$275.00	B or C
The Landing, Splash Pad and Skate Rentals for up to 25 people	$275.00	3+	Each Additional Hour	$137.50	B or C
The Landing, Splash Pad and Ping Pong	$550.00	2		$ 275.00	B or C
The Landing, Splash Pad and Ping Pong	$275.00	3+	Each Additional Hour	$137.50	B or C

Court Rentals	*Cost*	*Duration (Hours)*	*Notes*
Pickleball	$16.00	1	Off-Peak
Pickleball	$20.00	1	Peak

Ping Pong Table Rentals	*Cost*	*Duration (Hours)*	*Notes*
Ping Pong Table (single)	$10.00	1	
Ping Pong Table (pair)	$20.00	1	

Sailboat Rentals	*Cost*	*Duration (Hours)*	*Notes*
:30 Minute Rental	$10.00	0.5	
:60 Minute Rental	$15.00	1	

Roller Skate Rentals	*Cost*	*Duration (Hours)*	*Notes*
Kids Skates	$3.00	1	
Adult Skates	$5.00	1	

Staffing Rates

Personnel	*Cost*	*Duration (Hours)*	*Notes*
Production Manager	$60.00	1	Per hour, per PM
Stage Hand	$25.00	1	Per hour, per SH

Miscellaneous Rates

Item	*Cost*	*Unit*	*Notes*
Bike Rack Barricades	$20.00	1	Includes set-up and tear down

Park Rental Event Types and Application Deadlines	*Event Type*	*Deadline*	*Deposit Info*	*Booking Info*
Major Festival or Event May include: Outdoor entertainment, sale of food/beverages, service of alcohol, and/or generate revenue Expected attendance greater than 1,000	A	90 days prior to event	Deposit due upon contract signing	Event Booking and confirmation can begin up to 18 months in advance.

Park Rental Event Types and Application Deadlines	*Event Type*	*Deadline*	*Deposit Info*	*Booking Info*
Festival or Event May include: Outdoor entertainment, sale of food/beverages, service of alcohol, and/or generate revenue Expected attendance less than 1,000	A	90 days prior to event	Deposit due upon contract signing	Event Booking can begin up to 12 months in advance, with confirmation 120 days prior to Event. Exclusive use of Park shall be based on expected participants.
Parade, Procession, March, Road Race, Bicycle Race *Any request to close adjacent roads will require separate City Special Events Permit (Ord. 2023-064)*	A	90 days prior to event	Deposit due upon contract signing	Event Booking can begin up to 18 months in advance. No exclusive use of Park facilities that are not rented.

Park Rental Event Types and Application Deadlines	*Event Type*	*Deadline*	*Deposit Info*	*Booking Info*
Wedding and Receptions Includes ceremony and/or reception. Unique experiences available.	A	90 days prior to event	Deposit due upon contract signing	Event Booking can begin up to 18 months in advance. Other Events are subject to be booked along with Concerts or Festivals. All guests are welcome to attend.
Private or Public Gathering May include: Sale or service of food/beverages, outdoor entertainment, and /or the service of alcohol	B	60 days prior to event	Deposit due upon contract signing	Event Booking can begin up to 60 days in advance. No exclusive use of Park facilities that are not rented.
Neighborhood Gatherings, Block Party or Walk *Any request to close adjacent roads will require separate City Special Events Permit (Ord. 2023-064)*	C	30 days prior to event	Deposit due upon contract signing	Event Booking can begin up to 18 months in advance. No exclusive use of Park facilities that are not rented.

Pursuant to Sec. 15-2 of the Code of Ordinances of the City of Columbia a permit is required for any person, group, association or organization desiring to use any park or recreational facility of the City of Columbia for a group of 25 individuals or more or to conduct an activity or event for which it could be reasonably assumed that 25 or more persons might gather at a park or recreational facility to participate in or witness such activity or event or a festival, (a festival being defined as a program of festive activities, cultural events or entertainment open to the general public), shall first apply and obtain a permit from the director of parks and recreation or his designee.

All food service items, including plates, bowls, and utensils must be biodegradable. All beverage containers must be recyclable. Violations of this provision may result in an exclusion period of three years for event organizers or food and drink purveyors, including food trucks.

A clean-up charge will be assessed in an amount equal to the cost of the clean-up for any person, group, association or organization using any park or recreational facility of the City of Columbia.

Organizations are limited to a maximum of one event per quarter year four events per year).

(2) *Coble Plaza:*

Gated/admission	$1,000.00/6hr. block
(admission charged and/or controlled access,	+ $250.00/each add. hr.
required approval by city council or their designee)	+ $350.00/deposit
(more than 2 additional hrs. requires second block	+ support fees
of time)	+ set up/take down
Public (no controlled access or admission fees)	$120.00/hr. + support fees
City holidays	$150.00/hr. + support fees
Deposit	$350.00
Non-profit*	$350.00
(*proof of non-profit status required)	+ $75.00/hr. deposit
	+ support fees
Setup/takedown (nonevent time)	$100.00/hr.

(e) *Building rental fee schedule:* Building rentals are available in time blocks of:

(1) 8:00 a.m.—12:00 noon.

(2) 1:00 p.m.—5:00 p.m.

(3) 6:00 p.m—11:00 p.m.

(f) *Buildings.*

(1) *Neighborhood centers:* Arsenal Hill, Edisto Discovery, Emily Douglas, Hampton, Heathwood, Mays, Melrose, Pacific, Sims, and St. Anna's

	Block	*Setup/Takedown Additional Hours*
Gated/admission (admission charged and/or controlled access) (more than 2 additional hrs. requires second block of time)	$250	$75/hr.
Public (no controlled access or admission fees)	$175	$50/hr.
City holidays	$200	$60/hr.
Deposit (daily rental)	$150	N/A
Non-profit* (*proof of non-profit status required)		$150 deposit + $25/hr. support fees

(2) *Community centers:* Ben Arnold, Greenview, Leroy Moss (Hyatt), Lorick, M.L. King, Pinehurst, and Woodland

	Block	*Setup/Takedown Additional Hours*
Gated/admission (admission charged and/or controlled access) (more than 2 additional hrs. requires second block of time)	$450	$100/hr.
Public (no controlled access or admission fees)	$300	$75/hr.
City holidays	$375	$80/hr.
Deposit (daily rental)	$200	N/A
Non-profit* (*proof of non-profit status required)	Support fees	$200 deposit + $75/hr. support fee
Meeting rooms	$100	$30/hr.
City holidays	$150	$75/hr.
Deposit (daily rental)	$100	N/A
Non-profit* (*proof of non-profit status required)	N/A	$100 deposit + $25/hr. support fee

(3) *Ensor Keenan House* (non-profit rate not available Friday's & Saturday's and December 1st - January 1st)

	Block	*Setup / Takedown Additional Hours*
Gated/admission (admission charged and/or controlled access) (more than 2 additional hrs. requires second block of time)	$425	$60/hr.
Public (no controlled access or admission fees)	$275	$50/hr.
City holidays	$325	$60/hr.
Deposit (daily rental)	$200	N/A
Non-profit* (*proof of non-profit status required)		$200 deposit + $50/hr. support fee

(4) *Earlewood Community Building*; (non-profit rate not available Friday's & Saturday's and December 1st - January 1st

	Block	*Setup / Takedown Additional Hours*
Gated/admission (admission charged and/or controlled access) (more than 2 additional hrs. requires second block of time)	$425	$60/hr.
Public (no controlled access or admission fees)	$350	$75/hr.
City holidays	$425	$90/hr.
Deposit (daily rental)	$300	N/A
Non-profit* (*proof of non-profit status required)		$300 deposit + $50/hr. support fee

(5) *Eau Claire Print Building* (non-profit rate not available Friday's & Saturday's and December 1st - January 1st

Gated/admission (admission charged and/or controlled access) (more than 2 additional hrs. requires second block of time)	$600	$125/hr.
Public (no controlled access or admission fees)	$400	$100/hr.
City holidays	$475	$125/hr.
Deposit (daily rental)	$300	N/A
Non-profit* (*proof of non-profit status required)		$300 deposit + $50/hr. support fee

(6) *Booker Washington Heights Cultural Arts Center.*

a. Theater

Gated/admission (admission charged and/or controlled access) (more than 2 additional hrs. requires second block of time)	$500	$100/hr.
Public (no controlled access or admission fees)	$300	$75/hr.
City holidays	$325	$100/hr.
Security deposit	$200	N/A
Non-profit* (*proof of non-profit status required)		$200 deposit + $50/hr. support fee

b. Classroom

Public (no controlled access or admission fees)	$100	$30/hr.
City holidays	$150	$75/hr.
Security deposit	$100	N/A

(g) *Picnic shelters:* Anna Mae Dickson, Earlewood*, Elmwood/Roy Lynch*, Emily Douglas, Greenview, Heathwood, Hollywood/Rose Hill, Lorick, Mays, Melrose, Page Ellington Shelter*, Rosewood, St. Anna's, and Sims.

Time block	*Fee*	*Parks*
First Come, First Serve	Free	Anna Mae Dickson, Emily Douglas, Greenview, Heathwood, Hollywood/ Rose Hill, Lorick, Mays, Melrose, Rosewood, St. Anna's, and Sims.
Daily 9:00 a.m.—1:00 p.m. and 2:00 p.m.—6:00 p.m.	$40.00 per block of time $40.00 per block of time	Earlewood Park Shelter, Elmwood/ Roy Lynch Shelter, Page Ellington Shelter.

* Designated Picnic Shelters are for reservations only. Use outside of reserved blocks may constitute trespassing.

(h) *Support fees:*

	Fee
(1) *Staff.*	
Electrician	$30/hr.
Foreman	$35/hr.
BGM	$24/hr.
MEO II	$32/hr.
Building host	$25/hr.
Park ranger	$25/hr.
(2) *Equipment.*	
a. Tables and chairs.	
i. Tables	$8 ea./12 hrs.
ii. Chairs	$4 ea./12 hrs.
b. Vehicles.	
i. 2-ton truck	$24/hr.
ii. ¾-ton truck	$10/hr.
iii. Mobile stage (*non-profit) (*proof of non-profit status required)	$200 deposit $200 rental + staff support fees
iv. Mobile stage	$200 deposit $300/4hrs. plus $100 each additional hr. + staff support fees

v. *Sectional stage *not for general public use	$200 deposit + staff support fees

(3) *Services rendered.*

	Fee
Event cleanup:	
0—499 people	$175
500—1,499 people	$250
1,500—above (depends on event size, time and # of food or drink vendors)	

(i) *Athletics:*

	Fee
(1) *Adult sports.*	
i. Softball	$300/team
ii. Basketball:	
2 games/week	$225/team
1 game/week	$175/team
iii. Flag football	$200/team
iv. Volleyball	$150/team
(2) *Youth sports.*	
Basketball, soccer, volleyball, baseball, flag football, tennis, Lacrosse instructional leagues	$40/child
(3) *Tennis.*	
Court fees (per person) (Columbia Tennis Center only)	$5/hr.
Tournament fees: (Applies to the Columbia Tennis Center, Greenview Park, and Southeast Park)	$5 per person per event (singles/doubles and or mix doubles)
One set of courts (2—6)	$93.50/day
All courts	$137.50/day
(4) *Swimming.*	
Daily admission:	
Youth	$3
Adult	$4
Swim lessons	$35 per person

Season passes:	
Youth	$100
Adult	$140
Swim Team Practice	$1,200/2 months
Swim Party	$300 Saturday and Sunday only, from 6:00 p.m. - 9:00 p.m. Maxcy Gregg and Greenview Pools only
Swim Meets	$600 per meet

(5) *Golf.*

Ball rental:	
Small bucket	$6
Large bucket	$7

(6) *Field rental.*

a. Soccer.

Practice:	$50/hr.
1 field (daily)	$100
3+ fields	$50/field
Multi-use:	
1 field	$50
3+ fields	$30/field
Security deposit	$100

b. Softball/baseball

Practice (Non-league)	$15/hr. (additional $15/hr. for lights)
Tournament (daily):	
1 field	$150
Each additional field	$100
Security deposit	$200

(j) *Classes/camps/programs:* *Fee*

(1) *Camp.*

Summer day camp	$85/week
Cultural arts summer camp	$95/week
Cultural arts 4 day camp	$65/for the 4 days
Cultural arts specialty camp	$40 minimum - $80 maximum
Sports camp	$85/week
Double Dutch camp	$85/week
Outdoor/environmental camp	$125/week
After school	$40/week
Whitewater Kids Club Camp	$100/week

(2) *Classes.*

Adult class (standard 6 wks.)	$90 per class
Youth class (standard 6 wks.)	$90 per class
Art center open studio	$80/2 months
Adult pottery	$90/6 Weeks

(k) *Drew Wellness Center.*

	City Resident	*Non-resident*
INDIVIDUAL Adult (age 18—49):		
12 months	$264.00	$303.60
6 months	$198.00	$227.70
One month	$39.60	$46.20
Daily	$6.00	$8.00
INDIVIDUAL Senior (50+):		
12 months	$198.00	$227.70
6 months	$165.00	$190.30
One month	$33.00	$38.50
Daily	$5.00	$6.00
YOUTH (17 and younger):		
One month	$27.00	$33.00
Daily	$3.00	$4.00
FAMILY (Family of 4/max)*:		
12 months	$396.00	$456.50
6 months	$297.00	$341.00
One month	$66.00	$79.20

	City Resident	*Non-resident*
Extra child (ea.)	$10/month $60/year	$12/month $72/year

*Dependent children: ages up to 23 who are claimed on main member's income taxes or insurance. Age 5 and under must be accompanied by parent or guardian at all times.

(l) *Event vendor fees:*

Food and drink vendor (vendor serving a variety of food and beverages)	$150.00
Business/professional services vendor	$100.00
Merchandise vendor	$100.00
Snack vendor	$75.00
Arts and crafts vendor	$50.00

(Ord. No. 2005-001, 1-19-05; Ord. No. 2009-103, 10-7-09; Ord. No. 2013-046, 6-18-13; Ord. No. 2018-025, 6-19-18; Ord. No. 2023-062, 6-20-23; Ord. No. 2025-055, 10-28-25)

Chapter 16

PERSONNEL*

Sec. 16-1. Adoption of state retirement system.
Sec. 16-2. Reserved.

*Cross references—Administration, ch. 2; officers and employees, § 2-111 et seq.

Sec. 16-1. Adoption of state retirement system.

(a) The city, after making application to the state for inclusion of its employees in the state retirement system and acceptance of the employees of the city into the retirement system, hereby adopts the state retirement system as the retirement system for the employees of the city, except as otherwise provided in the Retirement Act of 1945, as amended.

(b) The finance department is authorized and directed to make deductions from the salaries of employees of the city and to pay to the retirement system the contributions of employees together with the contribution by the city as provided in the Retirement Act of 1945, as amended.

(Code 1979, § 1-3031)

State law references—Authority of political subdivisions to join state retirement systems, S.C. Code 1976, § 9-1-470; membership of employees in system, S.C. Code 1976, § 9-1-480.

Sec. 16-2. Reserved.

Editor's note—Ord. No. 2006-056, adopted July 19, 2006, repealed former section 16-2 in its entirety which pertained to a pre-retirement death benefit program city employees. Former § 16-2 derived from the Code of 1979.

Chapter 17

RESERVED*

***Editor's note—**Ord. No. 2020-099, adopted Dec. 1, 2020, provided for the repeal of Ch. 17, Planning, Land Development and Zoning and provided for its replacement with a new Ch. 17, Unified Development Ordinance ("UDO"), as may be amended from time to time. The current regulations are available for inspection by contacting the City Clerk, City Hall, 3rd Floor, 1737 Main Street, Columbia, South Carolina, 29201; (803) 545-3045; cityclerk@columbiasc.net, or the Zoning Division, 1136 Washington Street, Columbia, South Carolina, 29201; (803) 545-3333, or viewed online at https://planninganddevelopment.columbiasc.gov/code-of-ordinances. Please see the Zoning Text Amendment Log at the end of the online version of the UDO for a list of all amendments made subsequent to August 30, 2021. Ord No. 2021-001, adopted June 15, 2021 and effective Aug. 30, 2021, enacted a new official zoning map for the city. Adoption of the new zoning map enables implementation of the Unified Development Ordinance on August 30, 2021. Contact information for the current zoning map is listed above.

Chapter 18

REDEVELOPMENT COMMISSIONS*

Article I. In General

Secs. 18-1—18-30. Reserved.

Article II. Redevelopment Commission for the Congaree Vista Area

Sec. 18-31. Established; powers and duties.
Sec. 18-32. Membership; term of members.
Sec. 18-33. Designated area.
Secs. 18-34—18-50. Reserved.

Article III. Reserved

Secs. 18-51—18-60. Reserved.

Article IV. East Central Redevelopment Commission

Sec. 18-61. Creation; duties.
Sec. 18-62. Composition of commission.
Sec. 18-63. Designated area of operation.

***Cross references—**Administration, ch. 2; buildings and building regulations, ch. 5.

ARTICLE I. IN GENERAL

Secs. 18-1—18-30. Reserved.

ARTICLE II. REDEVELOPMENT COMMISSION FOR THE CONGAREE VISTA AREA

Sec. 18-31. Established; powers and duties.

There is hereby established, pursuant to S.C. Code 1976, § 31-10-10 et seq., known as the Community Development Law, a redevelopment commission with all of the powers and duties provided by the act.
(Code 1979, § 6-1020)

Sec. 18-32. Membership; term of members.

The redevelopment commission established by this article shall consist of eight members, who shall be the members of the board of directors of Columbia Development Corporation, who shall serve ex officio for two years; provided that initially the mayor and councilmembers who are directors shall serve terms of one year in order to provide staggered terms of two years thereafter as required by the state act.
(Code 1979, § 6-1021)

Sec. 18-33. Designated area.

The redevelopment commission established by this article shall exercise its powers within the Congaree Vista area of the city bounded on the north by Elmwood Avenue, on the east by Sumter Street, on the south by Heyward Street and a line extended from Gist Street to the Congaree River, and on the west by the Broad and Congaree Rivers.
(Code 1979, § 6-1022)

Secs. 18-34—18-50. Reserved.

ARTICLE III. RESERVED*

Secs. 18-50—18-61. Reserved.

*__Editor's note—__Ord. No. 2006-007, adopted Feb. 15, 2006, repealed former Art. III, §§ 18-61—18-63, in its entirety which pertained to the Columbia Neighborhood Redevelopment Commission and derived from the Code of 1979.

ARTICLE IV. EAST CENTRAL REDEVELOPMENT COMMISSION

Sec. 18-61. Creation; duties.

There is hereby established, pursuant to Act. No. 451 of 1984 of the General Assembly of South Carolina, known as the "Community Development Law", a redevelopment commission with all of the powers and duties provided by said act.
(Ord. No. 2006-008, 6-14-06)

Sec. 18-62. Composition of commission.

The redevelopment commission shall consist of the mayor and members of Columbia City Council.
(Ord. No. 2006-008, 6-14-06)

Sec. 18-63. Designated area of operation.

The redevelopment commission established by this article shall exercise its powers within the following East Central areas of the city: Taylor Street and Forest Drive on the North, Manning Street and King Street on the East, Harden Street and Pavilion Street on the West and Southwest and Santee Avenue on the South and Southeast; Covenant Road on the North, Devonshire Drive, St. Julian, Byrnes Drive, Harrison Road, Pinehurst Road, Midland Drive and Dubard Drive on the East, Forest Drive on the South, and Two Notch Road on the West; Farrow Road and Beltline Boulevard on the Northwest, Carnegie Street on the Northeast, Slighs Avenue and Chestnut Street on the South, Two Notch Road on the East; Slighs Avenue and Chestnut Road on the North; Two Notch Road on the East; Taylor Street on the South and Harden Street on the West; Superior Street and Holt Drive on the North, Adeline Drive on the Southeast, Mitchell Street and Commerce Drive on the South and Royster Street on the Northwest, as shown and delineated on maps of such areas on file in the Office of the City Clerk, copies of which are attached hereto and designated as Exhibits "A", "B", "C", "D" and "E."
(Ord. No. 2006-008, 6-14-06)

Chapter 19

SOLID WASTE MANAGEMENT*

Article I. In General

Secs. 19-1—19-30. Reserved.

Article II. Collection and Disposal

Sec. 19-31. Definitions.
Sec. 19-32. Authority of director of public services.
Sec. 19-33. Enforcement generally; penalty; citations.
Sec. 19-34. Materials to be removed by occupant.
Sec. 19-35. Receptacle requirements; placement of receptacles.
Sec. 19-36. Placement of waste in receptacles.
Sec. 19-37. Materials not to be placed in receptacles.
Sec. 19-38. Bringing refuse into city.
Sec. 19-39. Retail and commercial establishments.
Sec. 19-40. Frequency of collection; limitations on quantity of waste.
Sec. 19-41. Restrictions on collection.
Sec. 19-42. Removing or damaging receptacles or contents; storage of waste; transport of waste.
Sec. 19-43. Service fees.

***Cross references—**Buildings and building regulations, ch. 5; environmental health and sanitation, ch. 8; litter, § 8-231 et seq.; dumping dead animals or waste matter, § 8-272; dumping or accumulation of garbage or refuse, § 8-275; storage of garbage and refuse, § 8-276; planning, land development and zoning, ch. 17; stormwater management and sedimentation control, ch. 21; utilities and engineering, ch. 23.

State law reference—Collection of garbage, S.C. Code 1976, § 44-55-1010.

ARTICLE I. IN GENERAL

Secs. 19-1—19-30. Reserved.

ARTICLE II. COLLECTION AND DISPOSAL

Sec. 19-31. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Ashes means refuse resulting from the burning of wood, coal, coke and other combustible material which has no live embers.

Bulk container means a container of not less than two cubic yards or larger than eight cubic yards. The container is to be of tight construction in order to secure the waste materials to prevent littering.

Garbage means refuse of animal or vegetable foodstuffs resulting from the handling, preparation, cooking and consumption of food.

Hazardous refuse means materials such as poison, acids, caustics, infected materials and explosives.

Industrial waste means all waste generated from manufacturing plants, factories, lumber mills, wholesale stores, bottling works, printing establishments and garages.

Litter means any quantity of garbage or rubbish not properly containerized for disposal.

Multiple residential units means any duplex, condominium, apartment or group of apartments used for dwelling places of more than one family.

Recyclable materials include but are not limited to aluminum, newsprint, glass (clear, green and amber) and plastic (polyethylene terephthalate and high density polyethylene), and such other materials as the council may identify from time to time.

Recyclables container means a plastic receptacle carrying identification of the city and whose design, construction and capacity shall be designed by the city. Recyclables containers shall be furnished by the city. Their use shall be primarily for single-family and multifamily dwellings of six or fewer units. Recyclables containers remain the property of the city.

Retail and commercial mean any office, retail store, restaurant, hotel, religious, charitable or governmental offices, or private clubs.

Roll cart means a plastic, wheeled refuse receptacle having a tightfitting attached lid carrying identification of the city and a designated serial number and whose design, construction and capacity shall be designed by the city. Roll carts shall be furnished by the city. Their use shall be primarily for single-family and multifamily dwellings of six or fewer units. Roll carts remain the property of the city.

Rubbish means all refuse other than garbage, ashes or dead animals incident to the ordinary conduct of the household or of retail business.

Single residential unit means any dwelling place occupied by one family.

Small dead animals means dead cats, dogs and other animals of similar size.
(Code 1979, § 9-4001; Ord. No. 2009-046, Ord. No. 2009-046, 8-5-09; Ord. No. 2009-080, 8-19-09)

Cross reference—Definitions generally, § 1-2.

Sec. 19-32. Authority of director of public services.

The collection, removal and disposal of all waste from premises by the city shall be under the jurisdiction of the director of public services.
(Code 1979, § 9-4002)

Sec. 19-33. Enforcement generally; penalty; citations.

It shall be the duty of the director of public services and chief sanitarian with the assistance of such other persons or code enforcement officials as the city manager may direct, to see that the provisions of this article are enforced except where otherwise specifically provided for by ordinance. Individuals violating the provisions of this article are guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5. The director of public services and chief sanitarian and such other persons or code enforcement officials as the city manager may direct shall issue citations to individuals violating the provisions of this article.
(Code 1979, § 9-4003; Ord. No. 2005-128, 1-11-06)

Sec. 19-34. Materials to be removed by occupant.

(a) *Non-household waste.* Rubbish, ashes or building materials not resulting from normal household use must be removed from the premises by the occupant.

(b) *Packing materials.* Any owner or occupant of any establishment or institution where packing and unpacking and/or loading and unloading of materials at exterior locations take place shall provide suitable containers there for the disposal and storage of such materials and shall make appropriate arrangements for the collection and disposal thereof. Furthermore, it shall be the duty of the owner or occupant to remove at the end of each working day any materials that have not been containerized at these locations.
(Code 1979, § 9-4004)

Sec. 19-35. Receptacle requirements; placement of receptacles.

(a) *Receptacles generally.* Every person producing or having refuse collected by the city shall keep, on the premises or property occupied or used by him, refuse roll carts or bulk containers as specified in this article, in locations accessible using normal collection methods, to handle accumulations of refuse on the premises or property in the interval between collections by the city. In those areas designated by the city, every person producing

or having recyclable materials to be collected by the city may, on a voluntary basis and upon request to the city, keep on the premises or property occupied or used by him recyclables containers as specified in this article, in locations accessible using normal collection methods, to handle accumulations of recyclable materials on the premises or property in the interval between collections by the city.

(b) *Placement at curb.* Roll carts and, in those areas designated by the city, recyclables containers are to be placed at curbside no later than 8:00 a.m. on the day of the collection and removed no later than 7:30 p.m. on the day of collection. Special exceptions to this requirement may be granted when the superintendent of solid waste determines that there is no person living in the house who is physically capable of rolling the cart to and from the curb or carrying the recyclables containers to the curb.

(c) *Roll carts.* One roll cart shall be issued to each household in the city. The roll carts remain the property of the city for use of the households to which they are issued. Residents who damage roll carts issued to them must pay for repairing the carts or purchasing replacement carts from the city. Carts that are damaged through normal use as a result of being emptied by city forces will be repaired or replaced at city expense. Collection will be suspended at any location at which a roll cart is missing or at which a roll cart is damaged to such an extent as to interfere with normal collection methods.

(d) *Recyclables containers.* A recyclables container shall be issued to each requesting household in those areas designated by the city. The recyclables containers shall remain the property of the city for use of the household to which they are issued. Residents who damage or lose the recyclables container issued to them must pay for purchasing a replacement recyclables container from the city. Recyclables containers that are damaged through normal use as a result of being emptied by city forces will be replaced at city expense.

(e) All roll carts and recyclables container lids and tops shall be kept closed or shut except when emptying or filling and when not at curbside for collection as set forth herein, shall be kept or placed as follows:

(1) In a garage or carport; or

(2) In the back or rear of the property; or

(3) On the side of the dwelling beyond the front corner of the dwelling.

(Code 1979, § 9-4005; Ord. No. 2019-027, 6-4-19)

Sec. 19-36. Placement of waste in receptacles.

(a) Garbage and rubbish must be placed in refuse roll carts or bulk containers as specified in this article. In those areas designated by the city, recyclable materials, in order to be recycled, must be placed in recyclables containers. Glass and plastic shall have all lids removed prior to being placed in the recyclables container. Other material resulting from normal household use also should be placed in refuse roll carts, provided the total weight of the filled receptacle shall not exceed 200 pounds.

(b) As many as three 30-gallon trash bags and/or boxes will be collected biweekly with the roll cart. Solid waste in excess of the amounts described in this section will be removed by the street cleaning crew on the assigned day.
(Code 1979, § 9-4006)

Sec. 19-37. Materials not to be placed in receptacles.

(a) *Excess waste.* Materials resulting from normal household use, other than garbage, in quantities too great to be placed in roll carts may be placed contiguous to the front of the household premises off of the paved portion of the street right-of-way, but not in median strips or in front of property of another without consent.

(b) *Bulky waste.* Appliances, furniture, bedding and other bulky items resulting from normal household use shall be subject to special collection upon call to the sanitation division. These items shall be placed at the street only on the day agreed to for pickup.

(c) *Tree trimmings and yard waste.* Shrubbery trimmings, tree trimmings, grass clippings, leaves and other outdoor vegetation shall be kept separate from all other garbage, rubbish or other household materials and be placed contiguous to the front of the premises off of the paved portion of the street right-of-way, but not in median strips or in front of property of another without consent. Tree limbs shall not exceed six feet in length or have diameters greater than eight inches.
(Code 1979, § 9-4007)

Sec. 19-38. Bringing refuse into city.

It shall be unlawful for any person to bring any type of refuse that originates outside the city limits into the city for collection by city forces.
(Code 1979, § 9-4008)

Sec. 19-39. Retail and commercial establishments.

(a) Retail and commercial establishments not required to furnish bulk containers will utilize roll carts. Each establishment will be furnished one roll cart by the city. Businesses will have the option to purchase one additional roll cart. Businesses generating refuse in excess of the capacity of two roll carts must convert to bulk container service as specified by the director of public services. All waste generated by a business must be contained within the two roll carts.

(b) Business and commercial establishments having no accessible rear entrance may place refuse roll carts or bulk containers at curbs in front of the business establishment between the hours of 6:00 p.m. and 10:00 p.m. All refuse roll carts or bulk containers placed on the sidewalk at the curb by such establishments must be removed by 9:00 a.m. following collection.

(c) Disposal of used appliances, used furniture, used tires, shipping units, boxes, etc., by retail and commercial establishments shall be subject to a charge when these items exceed containerization for roll carts or bulk containers. The director of public services shall notify such establishments to dispose of such items that exceed containerization by weight, type, size or quantity. Upon such notification, establishments must dispose of described materials at an approved landfill.

(d) Any establishment or institution which cannot meet any of the prescribed requirements of this section shall make appropriate arrangements for collection and disposal or transport to a state permitted landfill.

(Code 1979, § 9-4009; Ord. No. 94-30, 6-8-94; Ord. No. 2009-115, 12-6-20)

Cross reference—Licenses, permits and miscellaneous business regulations, ch. 11.

Sec. 19-40. Frequency of collection; limitations on quantity of waste.

Except in those areas designated by the city for the recycling of recyclable materials, not more than one garbage collection and one trash collection shall be provided per week

residential property. In those areas designated by the city for the recycling of recyclable materials, one garbage and recyclable materials collection and one trash collection shall be provided per week for residential property.
(Code 1979, § 9-4010; Ord. No. 2009-046, 6-24-09)

Sec. 19-41. Restrictions on collection.

(a) *Receptacles on streets or sidewalks.* All receptacles for business or commercial establishments shall be made available to the collectors not later than 7:00 p.m. All receptacles placed on city streets or sidewalks shall be removed not later than 9:00 a.m. following collection, and no receptacles shall be placed on any sidewalk or street between the hours of 7:00 a.m. and 6:00 p.m. Monday through Friday or between the hours of 10:00 p.m. Saturday through 6:00 p.m. Sunday.

(b) *Bulk containers.* All bulk containers shall have the words "No Parking—Towing Enforced" or words of similar import in letters of not less than four inches in height in contrasting color painted on the approach side of the container. Parking enforcement shall be the responsibility of the recipient of collection services.

(c) *Hazardous refuse.* No hazardous materials shall be collected.

(d) *Dead animals.* Small dead animals will be collected without charge between 8:00 a.m. and 4:00 p.m. upon notification to the solid waste division and provided the body is in a location accessible to the collector. Owners of large dead animals shall be responsible for their removal and disposal.

(e) *Lot clearing.* No materials such as trees, shrubbery or underbrush resulting from land being cleared, either by order of the health department or otherwise, or from construction or demolition either resulting from order by the building official or otherwise, will be collected by the city without charge.

(f) *Commercial cutting.* The city will not collect without charge materials such as trees, shrubbery, underbrush, chips or sawdust resulting from commercial cutting operations. Commercial cutters, such as tree surgeons and landscapers, are required to dispose of waste produced by their operations promptly at no expense to the city.

(g) *Bulk containers for multiple residential units.* The owners of multiple residential units containing more than six units shall be required to furnish bulk containers for private collection service except that the City of Columbia will continue to provide bulk container service to those multiple residential units currently receiving such service which contain more than six units if more than fifty percent of the total units within the multiple residential unit complex or group are owner-occupied legal residences of the owners and are taxed on an assessment equal to four percent of the fair market value of the property.

The owners or the owners' representative shall submit a written request for continuation of such service to the director of public works along with sufficient documentation proving that more than fifty percent of the total units within the multiple residential unit complex or group are owner-occupied legal residences of the owner(s) and are taxed on an assessment equal to

four percent of the fair market value of the property. Waste not placed in such bulk containers must be disposed of by the owners of the property or persons responsible for the waste. Each day of failure to comply with this section shall constitute a separate offense.

(h) *Bulk containers for commercial and industrial users.* Commercial and industrial users shall provide bulk containers as required by regulation for private collection service.

(i) *Waste injurious to collection equipment.* Any solid waste item that has demonstrated by experience that it has a high probability of inflicting damage to the collection equipment used by the city may be excluded from the collection process.
(Code 1979, § 9-4011; Ord. No. 2009-046, 8-5-09; Ord. No. 2009-080, 6-24-09)

Sec. 19-42. Removing or damaging receptacles or contents; storage of waste; transport of waste.

(a) It shall be unlawful for any person to remove any roll cart or recyclables container from its designated premises or to damage maliciously any roll cart or recyclables container. It shall be unlawful:

(1) For any unauthorized person to remove, disarrange or interfere with refuse roll carts, recyclables containers, litter receptacles and/or bulk containers used for the collection of refuse or recyclable materials, or the contents of any such roll cart, recyclables container, litter receptacles and/or bulk container.

(2) For any person to break or damage any roll cart, recyclables container, litter receptacle and/or bulk container used for refuse or recyclable materials.

(3) To fail to keep all refuse receptacles, recyclables containers and/or bulk containers clean, sanitary, tightly covered and in good repair.

(b) It shall be unlawful:

(1) For any person to permit refuse to be scattered upon the streets of the city.

(2) To place hot ashes, etc., or any burning matter in any roll cart, recyclables container, litter receptacle, bulk container or waste paper bin.

(3) As set forth in this subsection (b), for the responsible party to fail to provide sufficient roll carts, recyclables containers, litter receptacles or bulk containers pursuant to the requirements of this article.

(4) To place in a roll cart, recyclables container, litter receptacle, bulk container or waste paper bin, or to leave loose, construction and demolition waste, industrial refuse, special refuse, and animal and agricultural waste for collection by the solid waste division.

(c) It shall be unlawful to transport materials without protecting against spillage or leakage.
(Code 1979, § 9-4013)

Cross reference—Motor vehicles and traffic, ch. 12.

Sec. 19-43. Service fees.

All persons producing or having refuse collected by the city shall pay a user service fee for such service as follows:

(1)	Residential service: Single-family or multifamily buildings subject to ad valorem tax containing not more than six dwelling units, collection and disposal	No charge
(2)	Tax-exempt residential property	$175.00 per year
(3)	Commercial refuse collection (per roll cart)	34.75 per year
(4)	Taxable nonresidential properties:	
	a. Non-dumpster service, disposal:	
	1. Basic service: Less than 1.0 cubic yard per week	34.95 per year
	2. Low volume service: Less than 1.0 cubic yard per day	15.35 per month
	3. Mean volume service: 1.0 to less than 3.0 cubic yards per day	30.70 per month
	4. High volume service: 3.0 or more cubic yards per day	46.00 per month
(5)	Building material collection	
	a. Disposal fees:	
	Minimum truck size	50.00
	1/4 truck load	75.00
	1/2 truck load	150.00
	3/4 truck load	200.00
	Full truck load	300.00
	b. Residential and business customers producing more than one cubic yard of building material trash per week shall be subject to an additional collection and disposal charge.	

(Code 1979, § 9-4014; Ord. No. 94-29, 6-8-94; Ord. No. 95-34, 6-7-95; Ord. No. 2004-044, 5-19-04; Ord. No. 2009-046, 6-24-09)

Chapter 20

SPECIAL FEES AND TAXES*

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Sec. 20-151. Tax exemption for new manufacturing establishments and additions to manufacturing establishments.
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Sec. 20-154—20-200. Reserved.

***Cross references—**Administration, ch. 2; licenses, permits and miscellaneous business regulations, ch. 11; water and sewer rates, § 23-141 et seq.

ARTICLE I. IN GENERAL

Secs. 20-1—20-30. Reserved.

ARTICLE II. TOURISM DEVELOPMENT FEE

Sec. 20-31. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Accommodation means any room, excluding meeting and conference rooms, campground spaces, recreational vehicle spaces, lodgings or sleeping accommodations furnished to transients by any hotel, motel, inn, condominium, bed and breakfast, residence or any other place in which rooms, lodgings or sleeping accommodations are furnished for consideration within the city. The gross proceeds received from the lease or rental of sleeping accommodations supplied to the same person for a period of 30 continuous days are not considered proceeds from transients.

(Ord. No. 96-3, § 1, 3-20-96)

Cross reference—Definitions generally, § 1-2.

Sec. 20-32. Fee imposed.

A uniform fee equal to three percent is hereby imposed on the gross proceeds derived from the rental of any accommodations within the city.

(Ord. No. 96-3, § 2, 3-20-96)

Sec. 20-33. Payment.

(a) Payment of the tourism development fee established in this article shall be the liability of the consumer of the services. The fee shall be paid at the time of delivery of the services to which the fee applies, and shall be collected by the provider of the services. The city shall promulgate a form of return which shall be utilized by the provider of the services to calculate the amount of tourism development fees collected and due. This form shall contain a sworn declaration as to the correctness thereof by the provider of services.

(b) The provider of services shall remit the form, a copy of the state sales tax computation form and the tourism development fees due not later than the 20th of each month to the city finance office, 1737 Main Street, Columbia, SC 29201.

(Ord. No. 96-3, § 3, 3-20-96)

Sec. 20-34. Special revenue fund.

An interest-bearing, segregated and restricted account to be known as the city tourism development fee special revenue fund is hereby established. All revenues received from the tourism development fee shall be deposited into this fund. The principal and any accrued interest in this fund shall be expended only as permitted by this article.

(Ord. No. 96-3, § 4, 3-20-96)

Sec. 20-35. Distribution of funds.

All funds placed in the city tourism development fee special revenue fund, including accrued interest, shall be expended only for the purpose of investigating the feasibility of the construction of public meeting facilities, the construction of public meeting facilities and for other enhancements to services used by tourists and convention delegates within the city. Any such expenditure shall be authorized by written resolution of the city council.
(Ord. No. 96-3, § 5, 3-20-96)

Sec. 20-36. Inspections, audits and administration.

For the purpose of enforcing the provisions of this article, the director of finance or other authorized agent of the city is empowered to enter upon the premises of any person subject to this article and to make inspections, examine and audit books and records. It shall be unlawful for any person to fail or refuse to make available the necessary books and records during normal business hours upon 24 hours' written notice. If an audit reveals that false information has been filed by the remitter, the cost of the audit shall be added to the correct amount of fees determined to be due. All operational and administrative costs associated with the billing and collection of this tourism development fee will be charged to the city and will be paid for from the earned interest paid to the city. The finance director may make systematic inspections of all accommodations within the city to ensure compliance with this article. Records of inspections shall not be deemed public records.
(Ord. No. 96-3, § 6, 3-20-96)

Sec. 20-37. Violations and penalties.

(a) It shall be a violation of this article to:

(1) Fail to collect the tourism development fee in connection with the rental of any accommodations to transients.

(2) Fail to remit to the city the tourism development fee collected, pursuant to this article, on a monthly basis.

(3) Knowingly provide false information on the form of return submitted to the city.

(4) Fail to provide books and records to the city finance department for the purpose of an audit upon 24 hours' written notice.

(b) The penalty for violation of this article shall be five percent per month, charged on the original amount of the tourism development fee due, up to a maximum of 100 percent. Additionally, violators may be deemed guilty of a misdemeanor, subject to a $500.00 fine and/or imprisonment for up to 30 days for violation of this article.
(Ord. No. 96-3, § 7, 3-20-96)

Secs. 20-38—20-50. Reserved.

ARTICLE III. HOSPITALITY TAX

Sec. 20-51. Imposed.

There is hereby imposed a local hospitality tax of two percent on the gross proceeds of the sale of prepared meals and beverages in establishments (hereinafter "vendor") within the City of Columbia (hereinafter "city"). Payment of the hospitality tax established hereby shall be the liability of the customer.
(Ord. No. 2003-017, § 1, 4-23-03)

Sec. 20-52. Collection.

The tax imposed by this article shall be collected from the customer when payment for meals or beverages is tendered and shall be held in trust for the benefit of the city until remitted as provided in section 20-53.
(Ord. No. 2003-017, § 2, 4-23-03)

Sec. 20-53. Remittance.

Payment of the hospitality tax established herein shall be remitted by the vendor to the city on a monthly basis, along with such return or form as may be established by the city for such purposes, not later than the twentieth day of the month and shall cover the tax due for the previous month. Any tax not timely remitted shall be subject to a penalty of five percent of the sum owed for each month or portion thereof until paid. The failure to collect from the customer the tax imposed by this ordinance shall not relieve the vendor from making the required remittance.
(Ord. No. 2003-017, § 3, 4-23-03)

Sec. 20-54. Penalty for failure to remit.

The failure of any vendor subject to this article to remit to the city the tax imposed by the provisions of this article shall constitute a misdemeanor punishable by a fine of not more than $500.00 or imprisonment for up to 30 days, or both.
(Ord. No. 2003-017, § 4, 4-23-03)

Sec. 20-55. Use of tax proceeds.

There is hereby established a special account to be known as the local hospitality tax account into which the taxes remitted shall be deposited by the city and used solely for the purposes provided by law.
(Ord. No. 2003-017, § 5, 4-23-03)

Secs. 20-56—20-100. Reserved.

ARTICLE IV. ELECTRONIC PAYMENT FEES

Sec. 20-101. Definitions.

Electronic payment fee shall mean any fee(s) or charge(s), including but not limited to credit or debit card processing fees and convenience fees, that are assessed by a third-party to customers that pay any amounts owed to the City of Columbia by credit card, debit card or other electronic funds transfer.
(Ord. No. 2010-086, 6-23-10; Ord. No. 2015-008, 4-14-15)

Sec. 20-102. Fee(s) imposed.

(a) An electronic payment may be added to the amount due the city for the service provided for customers electing to pay their accounts by credit card, debit card or other electronic funds transfer. Such fee amount shall be equal to the amount charged by the provider of such payment service and shall be remitted to the provider.

(b) Dishonored electronic payments. A charge in the maximum amount permitted by South Carolina law shall be added to a customer's account for each chargeback ordered if payment is made by debit or credit card or other electronic funds transfer and subsequently dishonored.
(Ord. No. 2010-086, 6-23-10; Ord. No. 2015-008, 4-14-15; Ord. No. 2019-084, 11-25-19)

Secs. 20-103—20-150. Reserved.

ARTICLE V. MUNICIPAL AD VALOREM TAX EXEMPTIONS

Sec. 20-151. Tax exemption for new manufacturing establishments and additions to manufacturing establishments.

(a) *Eligibility*. All new manufacturing establishments located in the city, and all additions to any existing manufacturing establishments, including additional machinery and equipment, located in the city, satisfying the requirements of Article X, Section 3(g) of the South Carolina Constitution and Section 12-37-220(A)(7) of the Code of Laws of South Carolina, 1976, as amended, as in effect for the applicable year, shall be exempt from municipal *ad valorem* taxes for five years.

(b) *Administrative compliance*. The owner of any manufacturing establishment seeking to obtain exemption from such ad valorem taxes shall comply with all requirements of state law and the South Carolina Department of Revenue for the exemption to apply. The determination of the South Carolina Department of Revenue that such new manufacturing establishment, or new additions including machinery and equipment, is qualified for the manufacturing exemption under Article X, Section 3(g) of the South Carolina Constitution

and Section 12-37-220(A)(7) of the Code of Laws of South Carolina, 1976, as amended, shall constitute a determination that such establishment is exempt from municipal *ad valorem* taxes under the provisions of this section.
(Ord. No. 2012-097, 12-18-12)

Sec. 20-152. Tax exemption for new corporate headquarters, corporate office facilities and distribution facilities and additions to such facilities.

(a) *Eligibility*. All new corporate headquarters, corporate office facilities, distribution facilities, and additions to existing corporate headquarters, corporate office facilities, or distribution facilities located in the city and satisfying the requirements of Section 12-37-220(B)(32) of the Code of Laws of South Carolina, 1976, as amended, as in effect for the applicable year, shall be exempt from municipal ad valorem taxes for a period of five years from the time of establishment, construction, or being placed in service.

(b) *Administrative compliance*. The owner of any property seeking to obtain exemption from such *ad valorem* taxes shall comply with all requirements of state law and the South Carolina Department of Revenue for the exemption to apply. The determination of the South Carolina Department of Revenue that such new corporate headquarters, corporate office facilities, distribution facilities, and additions to existing corporate headquarters, corporate office facilities, or distribution facilities qualify for the exemption set forth in Section 12-37-220(B)(32) of the Code of Laws of South Carolina, 1976, as amended, shall constitute a determination that such establishment is exempt from municipal *ad valorem* taxes under the provisions of this section.
(Ord. No. 2012-097, 12-18-12)

Sec. 20-153. Tax exemption for new facilities for research and development activities and additions to such facilities.

(a) *Eligibility*. All facilities of new enterprises engaged in research and development activities located in the City and all additions to such facilities satisfying the requirements of Section 12-37-220(B)(34) of the Code of Laws of South Carolina, 1976, as amended, as in effect for the applicable year, shall be exempt from municipal *ad valorem* taxes for a period of five years from the time of establishment, construction, or being placed in service.

(b) *Administrative compliance*. The owner of any property seeking to obtain exemption from such *ad valorem* taxes shall comply with all requirements of state law and the South Carolina Department of Revenue for the exemption to apply. The determination of the South Carolina Department of Revenue that such new enterprises engaged in research and development and additions to such facilities qualify for the exemption set forth in Section 12-37-220(B)(34) of the Code of Laws of South Carolina, 1976, as amended, shall constitute a determination that such establishment is exempt from municipal *ad valorem* taxes under the provisions of this section.
(Ord. No. 2012-097, 12-18-12)

Sec. 20-154—20-200. Reserved.

Chapter 21

STORMWATER MANAGEMENT AND SEDIMENTATION CONTROL*

Article I. In General

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Article II. Stormwater Quantity and Quality Control

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Sec. 21-52. Monitoring of discharges and inspections.

***Cross references—**Buildings and building regulations, ch. 5; environmental health and sanitation, ch. 8; construction of storm drains at railroad crossings, § 12-149; planning, land development and zoning, ch. 17; solid waste management, ch. 19; streets, sidewalks and other public places, ch. 22; utilities and engineering, ch. 23.

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Sec. 21-171. General standards.
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ARTICLE I. IN GENERAL

Secs. 21-1—21-30. Reserved.

ARTICLE II. STORMWATER QUANTITY AND QUALITY CONTROL*

DIVISION 1. GENERALLY

Sec. 21-31. Findings and purpose.

(a) The city council of the City of Columbia finds that:

(1) Uncontrolled stormwater runoff may have a significant, adverse impact on the health, safety and general welfare of the City of Columbia and the quality of life of its citizens by transporting pollutants into receiving waters and by causing erosion or contributing to conditions which may increase the incidence and severity of flooding.

(2) Proper management of stormwater runoff will minimize damage to public and private property, promote a functional drainage system, reduce the effects of development on land and stream channel erosion, attain and maintain water quality standards, enhance the local environment associated with the drainage system, reduce local flooding, reduce pollutant loading to the maximum extent practicable and maintain to the extent practicable the pre-development runoff characteristics of the area, and facilitate economic development while mitigating associated pollutant, flooding and drainage impacts.

(3) Non-stormwater discharges to a municipal separate storm sewer system ("MS4") can contribute to the pollution of the waters of the State.

(4) The City of Columbia is required by federal and state law [33 U.S.C 1342, 40 C.F.R. 122.26, S.C. Code Ann. §§ 48-1-10 et seq., and S.C. Regulation 61-9.122.26] to obtain a National Pollutant Discharge Elimination System ("NPDES") permit from the South Carolina Department of Health and Environmental Control ("DHEC") for stormwater discharges to the waters of the State from the City of Columbia Municipal Separate Storm Sewer System ("City of Columbia MS4"). The NPDES MS4 permit requires the city to develop and implement a comprehensive stormwater management program to effectively prohibit the discharge of non-stormwater into the MS4 and to reduce the discharge of pollutants from the MS4 to the maximum extent practicable.

(5) Certain facilities that discharge stormwater associated with an industrial activity, including land disturbing activities, are required to obtain NPDES permits. Also, the South Carolina Stormwater Management and Sediment Reduction Act [S.C. Code Ann. §§ 48-14-10 et seq.] requires a state permit for certain land disturbing activities.

***Editor's note—**Ord. No. 2011-095, adopted Dec. 20, 2011, repealed former Art. II, Divs. 1—3, in its entirety which pertained to similar subject matter and derived from the Code of 1979; Ord. No. 2002-050, § 4, 6-5-02.

(b) It is the purpose of this article to protect, maintain, and enhance the environment of the City of Columbia and the short-term and long-term public health, safety, and general welfare of the citizens of the city by establishing requirements and procedures designed to:

(1) Control the potential adverse effects of increased stormwater runoff associated with both future development and existing development;

(2) Reduce the discharge of pollutants to the City of Columbia MS4 and its receiving waters to the maximum extent practicable using management practices, control techniques and system, design and engineering methods and such other programs and controls as are required by the NPDES MS4 Permit.

(3) Control and reduce the contribution of pollutants to the NPDES MS4 Permit and receiving waters of the State by stormwater discharges associated with residential, commercial, industrial and related facilities activity; and

(4) Assure compliance with federal and state NPDES regulations and the NPDES MS4 permit.

(Ord. No. 2011-095, 12-20-11)

Sec. 21-32. Authority and applicability.

(a) This article is adopted pursuant to S.C. Code Ann. §§ 48-14-10 et seq., S.C. Code Ann. § 5-7-30, S.C. Regulation 61-9.122.26, and S.C. Regulation 72-300 et seq.

(b) This article applies to all areas within the City of Columbia corporate boundaries and within any municipality or other governmental entity that chooses to participate as a co-permittee with the city in the NPDES MS4 permit.

(c) The application of this article, the provisions expressed herein, and the federal and state stormwater regulations shall be minimum stormwater management requirements and shall not be deemed a limitation or repeal of any other ordinances of City of Columbia or powers granted to the city by the State of South Carolina statutes, including, without limitation, the power to require additional or more stringent stormwater management requirements as necessary to meet the requirements of the NPDES MS4 Permit.

(d) The stormwater division shall be primarily responsible for the coordination and enforcement of the provisions of this article, the City of Columbia Stormwater Management Program, and the NPDES MS4 Permit.

(Ord. No. 2011-095, 12-20-11)

Sec. 21-33. Definitions.

Definitions contained in South Carolina regulations 61-9.122.2 and 72-301 are incorporated herein by reference unless a term is given a different meaning by the definition of that term in this section. Where the same words are defined in both the aforementioned regulations, but are not the same, the definitions contained in S.C. Regulation 61-9.122.2 shall be used for the purposes of this article. Additional terms, phrases and words shall have the meaning given in this article, except where the context clearly indicates a different meaning. All other words

shall have their customary meanings. Words used in the singular shall include the plural, and the plural shall include the singular; words used in the present tense shall include the future tense. The word "shall" is mandatory and not discretionary. The word "may" is permissive.

Accidental discharge means a discharge prohibited by this article into the City of Columbia MS4 or a community water, which occurs by chance and without planning or consideration prior to occurrence.

Best management practices means a wide range of management procedures, schedules of activities, prohibitions on practices and other management practices which have been demonstrated to effectively control the quality and/or quantity of stormwater runoff and which are compatible with the planned land use (S.C. Regulation 72-301(5)).

City means the City of Columbia, South Carolina.

City council means the city council of the City of Columbia, South Carolina.

City of Columbia MS4 is the municipal separate storm sewer system, as defined by S.C. Regulation 61-9.122.26(b), which is owned and operated by the city.

Clean Water Act means the Federal Water Pollution Control Act, as amended, codified at 33 U.S.C § 1251 et seq.

Develop land means to change the runoff characteristics of a parcel of land in conjunction with residential, commercial, industrial, or institutional construction or alteration (S.C. Regulation 72-301(12)).

Development means any of the following actions undertaken by any person, including, without limitation, any public or private individual or entity:

(1) The construction, installation, or alteration of a structure, impervious surface or drainage facility;

(2) Clearing, scraping, grubbing or otherwise significantly disturbing the soil, vegetation, mud, sand or rock of a site; or

(3) Adding, removing, exposing, excavating, leveling, grading, digging, burrowing, dumping, piling, dredging, or otherwise disturbing the soil, vegetation, mud, sand or rock of a site.

Director means the City of Columbia Director of Utilities and Engineering or any duly authorized representative of the director.

Discharge means any discharge or discharge of any sewage, industrial wastes or other wastes into any of the waters of the State, whether treated or not (S.C. Regulation 61-9.122.2).

Entitled property means any property that, from January 1, 2006 to the adoption of this article, has been subject to either permitted development activity or a valid governmental approval. If a permitted development activity or valid governmental approval has occurred

with respect to any tract and such tract was subsequently subdivided, or in the future is subdivided, by an approved subdivision plat, then all subdivided parcels that were part of the original tract shall be considered entitled property.

High polycyclic aromatic hydrocarbons (PAH) pavement product means a product, material or substance that contains greater than 0.1 percent (1,000 ppm) PAH by weight and is intended for use on an asphalt or concrete surface, including but not limited to, a driveway, playground, parking area, sidewalk, pathway, or roadway. High PAH pavement product may contain coal tar, coal tar pitch volatiles, RT-12, refined tar, steam-cracked petroleum residues, heavy pyrolysis oil, steam-cracked asphalt, pyrolysis fuel oil, heavy fuel oil, ethylene tar, ethylene cracker residue, or a variation of those substances assigned the chemical abstracts service (CAS) numbers 65996-92-1, 65996-93-2, 65996-89-6, 8007-45-2, 64742-90-1, or 69013-21-4.

Illicit connection means any man-made conveyance connecting a non-stormwater discharge directly to the City of Columbia MS4 which results in a discharge that is not composed entirely of stormwater runoff except discharges to the City of Columbia MS4 pursuant to an NPDES permit (other than the NPDES permit for the City of Columbia MS4).

Illicit discharge means any discharge to the City of Columbia MS4 or receiving waters that is not composed entirely of stormwater except (a) discharges pursuant to an NPDES permit (other than the NPDES for the City of Columbia) and (b) other discharges listed subsection 21-48(d) of this article.

Improper disposal means any discharge other than through an illicit connection that results in an illicit discharge, including, but not limited to, the disposal of used oil and toxic materials or other hazardous liquids or substances resulting from the improper management of these materials.

Industrial activity means activity associated with an industrial facility subject to an NPDES permitting requirements for stormwater discharge associated with industrial activity as defined in S.C. Regulation 61-9.122.26(b)(14) or any other industrial facility which the stormwater division determines has a potential to contribute substantial pollutant loadings to the City of Columbia MS4.

Land disturbance permit means written approval issued by the city pursuant to Section 21-43 of this article, authorizing land-disturbing activities in accordance with a SWPPP approved by the director.

Land disturbing activities means any use of the land by any person that results in a change in the natural cover or topography that may cause erosion and contribute to sediment and alter the quality and quantity of stormwater runoff. (S.C. Code Ann. § 48-14-20(8)).

Maintenance means any action necessary to preserve stormwater controls in proper working condition, in order to serve the intended purposes set forth in this article and to prevent structural failure of such structures or controls.

NPDES program means the National Pollutant Discharge Elimination System program as defined in S.C. Regulation 61-9.122.2.

NPDES MS4 permit means the NPDES permit for stormwater discharges issued to the City of Columbia pursuant to the Clean Water Act and the state stormwater discharge regulations (S.C. Regulation 61-9.122.26).

Permitted development activity means the property owner has commenced construction of a building or of any portion of a potable water distribution or transportation system, a sanitary sewer distribution or transportation system, a storm drainage system or a public road; or the property owner has commenced grading or other land disturbance activities in conformance with valid permits issued by the City of Columbia.

Person means any individual, public or private corporation, political subdivision, association, partnership, corporation, municipality, State or Federal agency, industry, co-partnership, firm, trust, estate, any other legal entity whatsoever, or an agent or employee thereof. (S.C. Regulation 61-9.122.2).

Pollutant means dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, chemical wastes, biological materials, radioactive materials (except those regulated under the Atomic Energy Act of 1954, as amended (42 U.S.C. 2011 et seq.)), heat, wrecked or discarded equipment, rock, sand, cellar dirt and industrial, municipal, and agricultural waste discharged into water. Pollutant does not mean: (i) Sewage from vessels; or (ii) Water, gas, or other material which is injected into a well to facilitate production of oil or gas, or water derived in association with oil and gas production and disposed of in a well, if the well used either to facilitate production or for disposal purposes is approved by authority of the State in which the well is located, and if the State determines that the injection or disposal will not result in the degradation of ground or surface water resources. (S.C. Regulation 61-9.122.2).

Receiving waters means the waters into which the City of Columbia MS4 discharges and which are located within the jurisdictional boundaries of the City of Columbia and include, without limitation, the lakes, rivers, streams, ponds, wetlands, and groundwater of the City of Columbia.

Runoff means direct response of a watershed to precipitation and includes the surface and subsurface runoff that enters a ditch, stream, storm sewer, or other concentrated flow during and following the precipitation. (S.C. Code Ann. § 48-14-20(13)).

Stormwater division means the City of Columbia Stormwater Management staff.

Stormwater means stormwater runoff, snow melt runoff and surface runoff and drainage (S.C. Regulation 61-9.122.26(b) (13)).

Stormwater management means for: (a) quantitative control, a system of vegetative or structural measures, or both, that control the increased volume and rate of stormwater

runoff caused by manmade changes to the land; (b) qualitative control, a system of vegetative, structural, or other measures that reduce or eliminate pollutants that might otherwise be carried by stormwater runoff (S.C. Code Ann. § 58-14-30(11)).

Stormwater management systems and facilities means those natural and man-made channels, swales, ditches, swamps, rivers, streams, creeks, branches, reservoirs, ponds, drainage ways, inlets, catch basins, pipes, head walls, storm sewers, lakes, and other physical works, properties, and improvements which transfer, control, convey or otherwise influence the movement of stormwater runoff.

Stormwater Best Management Practices (BMP) Design Manual means the most recent compilation of design, performance and review criteria for stormwater management practices developed by the director pursuant to section 21-42 of this article.

SWMP means the stormwater management program as required pursuant to the NPDES MS4 permit.

Stormwater pollution prevention plan or *SWPPP* means a set of drawings and other documents which describe the best management practices and activities to be implemented by a person or business to eliminate or reduce stormwater discharges to the maximum extent possible. The SWPPP shall include all of the information and specifications required by S.C. Regulation 72-300 et seq., the current Stormwater BMP Design Manual developed pursuant to section 21-42 of this article, and any applicable state general permit.

Surface water means all water, which is open to the atmosphere and subject to surface runoff which includes lakes, streams, ponds, and reservoirs. (S.C. Code Ann. § 49-4-20(10)).

Unavoidable discharge means an emergency discharge required to prevent imminent threat to human health or prevent severe property damage for which reasonable and prudent measures are taken to minimize the impact of the discharge.

Valid government approval means the issuance of a permit by City of Columbia to commence a permitted development activity; or approval by the City of Columbia of subdivision of the property, of planned development district zoning for the property, or of a sketch plan for development of the property.

Variance means the modification of the minimum stormwater management requirements contained in this article or the SWMP for specific circumstances where strict adherence of the requirements would result in unnecessary hardship and would not fulfill the intent of this article.

Watercourse means a stream or other body of water, either natural or man-made, with a permanent or intermittent flow.

Water quality means those characteristics of stormwater runoff that relate to the physical, chemical, biological or radiological integrity of water.

Water quality buffer means an area of original or re-established vegetation that borders streams, rivers, ponds, lakes, wetlands and seeps in which no vegetation shall be disturbed, removed, or replanted unless a buffer restoration plan has been approved by the stormwater division.

Water quantity means those characteristics of stormwater runoff that relate to the rate and volume of the stormwater runoff.

Waters of the state means lakes, bays, sounds, ponds, impounding reservoirs, springs, wells, rivers, streams, creeks, estuaries, marshes, inlets, canals, the Atlantic Ocean within the territorial limits of the State, and all other bodies of surface or underground water, natural or artificial, public or private, inland or coastal, fresh or salt, which are wholly or partially within or bordering the state or within its jurisdiction. (S.C. Regulation 61-9.122.2).

Waters of the United States means "Waters of the United States" or "waters of the U.S." as defined at S.C. Regulation 61-9.122.2.
(Ord. No. 2011-095, 12-20-11; Ord. No. 2023-061, 6-20-23)

Sec. 21-34. Severability.

Should any word, phrase, clause or provision of this article be declared invalid or unconstitutional by a court of competent jurisdiction, such declaration shall not affect this article as a whole or any part hereof except that specific provision declared by such court to be invalid or unconstitutional.
(Ord. No. 2011-095, 12-20-11)

Sec. 21-35. Conflicting provisions.

All ordinances or parts of ordinances in conflict with the provisions of this article are hereby repealed. This article shall prevail in any and all conflicts with guidelines, manuals or other publications within the city as it pertains to stormwater management.
(Ord. No. 2011-095, 12-20-11)

DIVISION 2. ORGANIZATION AND ADMINISTRATION

Sec. 21-36. Regulations.

Federal regulations governing stormwater management, as specified in 40 C.F.R. 122.26, and state regulations, as specified in S.C. Regulation 61-9.122.26 adopted pursuant thereto, and S.C. Regulation 72.300 et seq. are adopted as the minimum requirements for all measures established in any regulations adopted by the city to implement and enforce this article.

Pursuant to section 2-151 of this Code, the city may, in its discretion, adopt regulations to implement this article, comply with the NPDES MS4 permit, implement the SWMP or to otherwise further the goal of protecting the quality of the waters into which the City of Columbia MS4 discharges.
(Ord. No. 2011-095, 12-20-11)

Sec. 21-37. Coordination with other agencies.

The director shall coordinate the city's activities with other federal, state and local agencies, which manage and perform functions relating to the protection of receiving waters. Authority not expressly reserved for other agencies or restricted by statute is placed with the director for the protection and preservation of receiving waters. The director shall coordinate with state and federal agencies having jurisdiction.

The director will consult with agencies with responsibility for the construction, operation and maintenance of roads within the City of Columbia MS4 and shall advise said agencies of its recommendations for the conduct of such activities with respect to stormwater management.
(Ord. No. 2011-095, 12-20-11)

Sec. 21-38. Cooperation with other governments.

The city may enter into agreements with other governmental and private entities to carry out the purposes of this article. These agreements may include, but are not limited to, enforcement, resolution of disputes, cooperative monitoring and cooperative management of MS4s and cooperative implementation of stormwater management programs.

Nothing in this article or in this section shall be construed as limitation or repeal of any ordinances of these local governments or of the powers granted to these local governments by the South Carolina Constitution or South Carolina statutes including, without limitation, the power to require additional or more stringent stormwater management requirements within their jurisdictional boundaries.
(Ord. No. 2011-095, 12-20-11)

Sec. 21-39. Stormwater division.

The stormwater division shall be responsible for day-to-day coordination, implementation and enforcement of this article and the SWMP. This includes responsibility for, but is not limited to, the SWMP's monitoring program and the SWMP's stormwater management programs for commercial and residential activities, construction site runoff, industrial runoff control program, and control of contribution of pollutants from illicit discharges and improper disposal. Without limitation of the foregoing, the stormwater division shall have the following specific powers and duties:

(1) To issue any permit, certification or license that may be required by the SWMP or this article.

(2) To deny a facility connection to the City of Columbia MS4 or discharge to waters of the state if the requirements of state and federal stormwater regulations and this article are not met.

(3) To approve SWPPPs and to require as a condition of such approvals structural or non-structural controls, practices, devices or operating procedures required under the SWMP.

(4) To require performance bonds of any person to secure that person's compliance with any SWPPP, permit, certificate, license or authorization issued or approved by the stormwater division pursuant to the SWMP.

(5) To enforce all federal and state regulatory requirements promulgated or imposed pursuant to the Clean Water Act and the South Carolina Stormwater Management and Sediment Reduction Act, applicable to the management of stormwater discharges to or from the City of Columbia MS4.

(6) To conduct all activities necessary to carry out the SWMP and other requirements included in the NPDES MS4 permit and this article and to pursue the necessary means and resources required to properly fulfill this responsibility.

(7) To enter into agreements with other governmental entities or private persons or entities to provide or procure services to conduct and carry out stormwater management activities.

(8) To direct, review and recommend for approval by the city council the stormwater management operating budget.

(9) To take any and all actions necessary to enforce this article or collect any fee or penalty as provided for herein.

(10) To develop and conduct training programs required under the NPDES MS4 permit.

(11) To develop design standards and best management practices.

DIVISION 3. STORMWATER QUALITY CONTROL

Sec. 21-40. Permitting requirements and exemptions.

(a) No person shall (1) develop land, (2) engage in any industry or enterprise, (3) construct, operate or maintain any landfill, hazardous waste treatment, disposal or recovery facility, or any other industrial or related facility without a permit as required by this article.

(b) The following development activities are exempt from the provisions of this article:

(1) Land disturbing activities undertaken on forestland for the production and harvesting of timber and timber products.

(2) Land disturbing activities on agricultural land for production of plants and animals including, but not limited to, forages and sod crops, grains and feed crops, tobacco, cotton, and peanuts; dairy animals and dairy products; poultry and poultry products; livestock, including beef cattle, sheep, swine, horses, ponies, mules or goats, including the breeding and grazing of these animals; bees, fur animals and aquaculture. The construction of an agricultural structure that requires the disturbance of one acre or more of land, such as, but not limited to, broiler houses, machine sheds, repair shops, coops, barns and other major buildings shall require the submittal and approval of a Land Disturbance permit prior to the start of the land disturbing activity.

(3) Activities undertaken by persons who are otherwise regulated by the provisions of Chapter 20 of Title 48, the South Carolina Mining Act.

(4) Construction or improvement of single family residences or their accessory buildings which are separately built and not part of multiple construction in a subdivision development.

(5) Any of the following land disturbing activities undertaken by any person who provides gas, electrification, or communications services, subject to the jurisdiction of the South Carolina Public Service Commission, or corporations organized and operating pursuant to Section 33-49-10 et seq.:

i. Land disturbing activities conducted pursuant to a certificate of environmental compatibility and public convenience and necessity issued pursuant to Title 58,

Chapter 33, of the South Carolina Code, or land disturbing activities conducted pursuant to any other certification or authorization issued by the Public Service Commission;

ii. Land disturbing activities conducted pursuant to a federal environmental permit, including Section 404 of the Federal Clean Water Act, and including permits issued by the Federal Energy Regulatory Commission;

iii. Land disturbing activities associated with emergency maintenance or construction of electric, gas, or communications facilities, when necessary to restore service or when the Governor declares the area to have sustained a disaster and the actions are undertaken to protect the public from a threat to health or safety;

iv. Land disturbing activities associated with routine maintenance and/or repair of electric, gas, or communications lines;

v. Land disturbing activities associated with the placement of underground lines for distribution or transmission of electric energy or of gas or communications services; or

vi. Land disturbing activities conducted by a person filing environmental reports, assessments or impact statements with the United States Department of Agriculture, Rural Electrification Administration in regard to a project.

(6) Entitled property. All entitled property shall comply with the stormwater regulations that were in effect at the time such entitled property became subject to either permitted development activity or a valid governmental approval.

(Ord. No. 2011-095, 12-20-11)

Sec. 21-41. Stormwater management program.

The stormwater division shall develop a SWMP to meet the requirements of Part II of the NPDES MS4 permit and shall submit the SWMP to DHEC for approval. The stormwater division shall implement the SWMP in accordance with the deadlines established in Part III of the NPDES MS4 permit. During the life of the NPDES MS4 permit, all modifications of the SWMP will conform to the procedures set forth in Part II.H.2 of the NPDES MS4 permit.

Sec. 21-42. Design/engineering standards; Stormwater BMP Design Manual.

(a) Minimum requirements and guidance shall be established for processes regarding the evaluation and implementation of land disturbing or pollutant discharging activities and the design of stormwater management systems and facilities within the city. The stormwater division is authorized to develop and adopt additional policies, criteria, processes, specifications and standards for the proper implementation of the requirements of this article, federal and state laws and the SWMP in the Stormwater BMP Design Manual. The manual shall include design standards, procedures and criteria for conducting hydrologic, hydraulic and pollutant load evaluations, and downstream impact for all components of the stormwater management system. Although the intention of the manual is to establish uniform design

practices, it neither replaces the need for engineering judgment nor precludes the use of information not presented. Other accepted engineering procedures may be used to conduct hydrologic, hydraulic and pollutant load studies if approved by the stormwater division.

(b) The manual will be evaluated and updated every five years and/or with each permit term renewal. Public input and involvement will be an integral part of the process and shall influence proposed revisions by the stormwater division to reflect the advances in technology and engineering, improved knowledge of local conditions, including monitoring and experience gathered with time. Prior to amendments becoming effective, changes shall be generally publicized, made available for review and an opportunity for public comment shall be provided.

(c) These design and engineering standards for land disturbing activities shall be set forth in the Stormwater BMP Design Manual. These design and engineering standards establish the required level of quality and performance for stormwater management systems on all land disturbance projects and the technical basis for the achieving stormwater management, including water quantity and quality objectives. The design and engineering standards set forth in the Stormwater BMP Design Manual establish the minimum technical requirements for compliance with this article, federal and state law, and the SWMP. Therefore, an applicant for a land disturbance permit must meet the standards set forth in the version of the manual in effect at the time a complete land disturbance permit application is submitted to the stormwater division.

(d) The Stormwater BMP Design Manual shall establish two categories of design and engineering standards for land disturbing activities:

Land disturbing activities with a disturbed area which is:

(1) Equal to or greater than 5,000 square feet; or

(2) Less than 5,000 square feet and part of a larger common plan of development or sale with a planned disturbance of equal to or greater than 5,000 square feet.

(e) An applicant for a land disturbance permit must meet the standards set forth in the version of the Stormwater BMP Design Manual in effect at the time a complete land disturbance permit application is submitted to the stormwater division.
(Ord. No. 2011-095, 12-20-11)

Sec. 21-43. Land disturbance permit application process.

Unless exempted under subsection 21-40(b) of the article, all construction activities that result in land disturbing activities with a disturbed area equal to or greater than 5,000 square feet or part of a larger common plan of development or sale with any proposed disturbance cumulatively equal to or greater than 5,000 square feet shall require a land disturbance permit issued by the director. An applicant for a land disturbance permit shall submit a land disturbance permit application, notice of intent, SWPPP, and checklist for review by the stormwater division. If the city feels it necessary, a jurisdictional determination issued by the

US Army Corps of Engineers and approved mitigation plan may be required for project approval. The SWPPP must meet the requirements of S.C. Regulation 72-300 et seq. and standards specified in the Stormwater BMP Design Manual.

It shall be the responsibility of the applicant (property owner, lessee or person responsible for land disturbing activities) to provide a complete land disturbance application package that meets all the requirements of this article, the SWMP, the Stormwater BMP Design Manual, and state and federal regulations. The land disturbance application package shall include proof of any required training or certification. The land disturbance permit application package and review requirements can be found on the city's stormwater website. A land disturbance permit must be issued prior to any grading, construction, or land disturbing activities. The city may require bonds or performance securities, at their discretion, for all applications of land disturbance. No land disturbing activities shall begin until DHEC grants coverage under the NPDES general permit for large and small construction activities, if applicable.
(Ord. No. 2011-095, 12-20-11)

Sec. 21-44. Maintenance, construction, inspection, and notice of termination (not) for activities authorized under a land disturbance permit.

Proposed installation and long-term maintenance of a stormwater management system is critical for the achievement of its purpose of controlling stormwater runoff quantity and quality and the short-term and long-term public health, safety and general welfare of the citizens of the city.

(a) A permanent maintenance agreement and plan for the stormwater management system shall be included in the SWPPP. As part of the maintenance plan, the property owner or lessee of such structure or control shall specifically agree to be responsible for permanent maintenance. In order to transfer maintenance responsibility, a letter of acceptance by the new owner(s) accepting permanent maintenance responsibility shall be filed, along with any proof of required training or certification, with the Stormwater Division.

(b) As part of the land disturbance permit application, the applicant shall submit construction and BMP maintenance and inspection schedules. Required and recommended schedules for BMP maintenance and inspection shall be provided in the Stormwater BMP Design Manual.

(c) If the construction is to be phased, no construction stage work of a phase which includes the installation of stormwater management structures or controls shall commence until the preceding phase of work is completed in accordance with the approved land disturbance permit and SWPPP.

(d) The permittee shall notify the director before commencing any work to implement the approved land disturbance permit and SWPPP and upon completion of any phase or designated component of the site. The contractor and/or owner shall hold a pre-construction conference with stormwater division staff a minimum of 48-hrs prior to

the commencement of work as outlined in permit approval. All self-inspections, maintenance actions, BMP replacements, co-permittee agreements and changes to the approved land disturbance permit and SWPPP shall be documented and maintained on-site from the commencement of any work until such time as the NOT is processed.

(e) The permittee shall notify the stormwater division when the site or portion of the site is sufficiently stabilized to begin the NOT process. If portions of the site are to be completed prior to others (e.g., phased construction), a proposed schedule shall be included in the approved land disturbance permit. The NOT process shall at a minimum require:

(1) A final plat showing the location of all stormwater easements and responsible party for the maintenance of the system. The plat shall also show conflicts with other new or existing easements and tracking of GPS coordinates for all stormwater structures. References shall be made to any and all owners and lessees. Any covenants established to ensure the maintenance and long-term functioning of the stormwater system must be recorded with the Register of Deeds for Richland County;

(2) Documentation of project completion from the owner of the approved Land Disturbance Permit, including any revisions and as-built construction drawings, inspection reports and stormwater system ownership transfers;

(3) Verification that all components of the stormwater management system meet the approved Land Disturbance Permit and SWPPP specifications or achieve the function for which they were designed. In addition, the site shall be cleared of all construction trash and debris from the stormwater system and the site as a whole;

(4) A maintenance plan and maintenance agreement accepting responsibility for permanent maintenance of post-construction stormwater control measures, if different from the agreement submitted during the review process;

(5) The permittee to pay in full all outstanding fees, penalties, fines, judgments, awards, and/or costs, if incurred pursuant to this article; and

(6) A final inspection conducted by the stormwater division.

(f) Permit notice of termination (NOT) procedures shall be developed by the stormwater division and shall include inspection procedures to assure that the work has been carried out in accordance with the permit and this article. The project NOT process may include phasing so that portions of a project can be closed out at various time periods, provided that the necessary documentation is submitted for approval. This process and required documentation are detailed in the stormwater website.

(g) The NOT process must be finalized by the stormwater division prior to:

(1) The use or occupancy of any newly constructed components of the site.

(2) Final acceptance of any road for maintenance or designation of road owner and associated stormwater management system.

(3) Release of any bond held by the city in connection with the development or any construction on the site.

(4) Approval and/or acceptance for recording of a final plat for a subdivision of property pursuant to section 17-492 of the City Code.

(Ord. No. 2011-095, 12-20-11)

Sec. 21-45. Ownership and city participation.

(a) Unless city ownership is established prior to the amendment of this article, all stormwater management systems and facilities located on any property within the city's jurisdiction shall be privately owned and maintained unless the director accepts the controls or structures for city ownership and maintenance. The City of Columbia owns or has legal access for purposes of operation, maintenance, and improvement of those systems and facilities which:

(1) Are located within city-maintained public streets, rights-of-way; and easements;

(2) Are subject to easements, rights-of-entry, rights-of-access, rights-of-use, or other permanent provisions for adequate access for operation, maintenance, and/or improvement of systems and facilities; or

(3) Are located on public lands to which the city has adequate access for operation, maintenance, and/or improvement of systems and facilities.

(b) The city reserves the right to accept or refuse ownership and maintenance of all or part of a stormwater system on any property not owned by the city.

(c) Privately-owned stormwater management systems and facilities shall be maintained in accordance with the design and procedures set forth in the approved land disturbance plans. Operation, maintenance, and/or improvement of stormwater systems and facilities which are located on private property or public property not owned by the city and for which there has been no public dedication of such systems and facilities for operation, maintenance, and/or improvement of the systems and facilities shall be and remain the legal responsibility of the property owner.

(d) A property owner or lessee may hire or contract others to perform necessary maintenance actions, but the city will hold the property owner or lessee as the responsible party should legal actions be necessary. The person(s) performing said work must be able to produce proof of any required trainings meeting NPDES MS4 permit conditions.

(e) The city shall have the right, pursuant to the authority of this article, for its designated officers and employees to enter upon private property and public property owned by other than the city, upon reasonable notice to the owner thereof, to inspect the property and conduct surveys and engineering tests thereon in order to assure compliance with this article.

(f) When the stormwater division determines that additional storage capacity or pollution reduction for on-site stormwater management is necessary in order to meet NPDES MS4 permit conditions, to enhance or provide for the public health, safety and general welfare, to

correct existing water quantity and quality problems or to provide protection for future development, the city may require additional stormwater controls that may include additional storage or treatment capacity.

(g) It is the express intent of this article to protect the public health, safety, and welfare of all properties and persons in general, but not to create any special duty or relationship with any individual person or to any specific property within or outside the boundaries of the city. The city expressly reserves the right to assert all available immunities and defenses in any action seeking to impose monetary damages upon the city, its officers, employees and agents arising out of any alleged failure or breach of duty or relationship as may now exist or hereafter be created.

(h) To the extent any permit, plan approval, inspection or similar act is required by the city as a condition precedent to any activity or change upon property not owned by the city, pursuant to this or any other regulatory ordinance, regulation, or rule of the city or under federal or state law, the issuance of such permit, plan approval, or inspection shall not be deemed to constitute a warranty, express or implied, nor shall it afford the basis for any action, including any action based on failure to permit or negligent issuance of a permit, seeking the imposition of money damages against the city, its officers, employees, or agents.
(Ord. No. 2011-095, 12-20-11)

Sec. 21-46. Watercourse protection.

(a) Every person owning property through which a watercourse passes, or such person's lessee(s), shall keep and maintain that part of the watercourse within the property free of trash, debris, excessive vegetation (other than that which is required by water quality buffers), and other obstacles that would pollute, contaminate, or significantly retard the flow of water through the watercourse. In addition, the owner(s) or lessee(s) shall maintain existing privately owned structures within or directly adjacent to a watercourse, so that such structures will not become a hazard to the use, function or physical integrity of the watercourse.

(b) Impaired waters are those waters not meeting state water quality standards as defined by Section 303(d) of the Federal Clean Water Act. Every two years, states are required to submit a list of impaired waters to the United States Environmental Protection Agency (U.S. EPA) for approval. These waters are then added to the 303(d) List of Impaired Waters. For sites that apply for a Land Disturbance Permit and have stormwater discharges to a receiving water that is listed as impaired on South Carolina's 303(d) List of Impaired Waters, it shall be determined by the stormwater division if the discharge from the site will contain the pollutant(s) of concern and if so, carefully evaluate the selected BMP's and their performance to ensure that stormwater discharges will not contribute to or cause a violation of water quality standards. If the project disturbs 25 acres or more, the SWPPP must have written quantitative and qualitative assessment that the BMP's selected will control the stormwater discharges so that they will not contribute to or cause a violation in water quality standards.

(c) To assist in the compliance with state and federal laws and regulations, the stormwater division may develop special protection areas which require additional control of stormwater quality and quantity than provided by minimum design standards. Such areas may consist of watersheds corresponding to adopted TMDLs, known flooding problems and pollution impairments, or other areas necessary to protect, maintain, and enhance water quality and the environment of the city and the public health, safety, and general welfare of the citizens of the city. These areas can be expected to change with time as development continues and federal and state law demands.

(d) The city stormwater division shall be responsible for the identification and preparation of stormwater studies. These studies may result in the implementation of additional requirements to meet or exceed the dynamic needs of the area with respect to water quality. The city shall allow individuals and/or groups to submit requests for consideration of stormwater studies. These requests will be weighed against other requests and existing city priorities (watershed requirements, emergency mitigation, priority areas, etc.). To the extent any areas are identified for study, public input will be included in the process. Once the area has been studied, any problems identified, and solutions determined, special provisions may be adopted through the stormwater management design manual and other means.

(e) New stormwater systems created as the result of any new and significant redevelopment project shall be connected to the existing drainage system in a manner so as not degrade the integrity of the existing system, whether natural or manmade, and shall have demonstrated this to the stormwater division prior to issuance of the NOT. Discharge points shall be confined to connections with an existing natural or man-made drainage system. When stormwater discharges are to flow into collection systems not owned and maintained by the city, the owners of all such systems, private or public, shall be notified and provided the opportunity to review such plans. The owners of these systems shall maintain the right to disapprove connections to their system. Private systems shall include all those on private property, including private ponds. Ponds built inline with waters of the state are not included as private systems, but instead protected by this article as any other water of the state.

(f) Additionally, water quality buffers are required along all jurisdictional waters and non-jurisdictional wetlands as identified by the US Army Corps of Engineers (USACE). Buffers are most effective when stormwater runoff is flowing into and through the buffer zone as shallow sheet flow, rather than concentrated flow such as channels, gullies or wet weather conveyances. Buffers shall be considered a "no disturb zone" along waters and wetlands identified by the USACE. Vegetation cannot be disturbed, removed or replanted unless a buffer restoration plan has been approved by the stormwater division. The function of the buffer is to protect the physical and ecological integrity of the water, to reduce flooding potential and to filter runoff from all development. Variances and appeals may be granted under the provisions set forth in section 21-60 of this article. The BMP manual shall be the reference for all design requirements related to water quality buffers.
(Ord. No. 2011-095, 12-20-11)

Sec. 21-47. Notification of spills.

(a) Notwithstanding other requirements of law, as soon as any person responsible for a property, facility or its operation and maintenance, or responsible for emergency response for a property, facility or operation has information of any known or suspected release of non-stormwater materials which are resulting or may result in illegal discharges or pollutants discharging into stormwater, the storm drain system or waters of the state, said person shall take all necessary steps to ensure the discovery, containment and cleanup of such release. The person shall also take immediate steps to ensure no recurrence of the discharge. In the event of such a release of materials containing or comprised of pollutants, including but not limited to oils, greases, engine fluids and fuels, chemicals, herbicides and pesticides, and fertilizers, said person shall immediately notify all necessary agencies. This shall include the Columbia Fire Department and Stormwater Hotline. Notifications shall be confirmed by written notice addressed and mailed to the stormwater division within five business days of the spill event. In the event of a release of materials regardless of pollutant content, said person shall record an on-site written record of the spill. The owner or operator of such establishment shall retain an onsite written record of any and all spills that will include information on cleanup measures taken and the actions to prevent its recurrence. Such records shall be retained for at least five years. Failure to provide notification of a release as provided above is a violation of this article.

(b) The owner, operator or other designated responsible party will bear all costs of cleaning up any spills. In the event that the city cleans up a spill, the owner, operator or designated responsible party will be required to reimburse the city for funds used in the clean-up.

(c) Notification under this Section is in addition to any notification required under state or federal law, including, but not limited to, Section 304 of the Emergency Planning and Community Right-to-Know Act, 42 U.S.C. §§ 11001 et seq., and Section 103 of the Comprehensive Environmental Response, Compensation, and Liability Act, 42 U.S.C. §§ 9601 et seq.
(Ord. No. 2011-095, 12-20-11)

DIVISION 4. DETECTION AND REMOVAL OF ILLICIT CONNECTIONS AND DISCHARGES AND IMPROPER DISPOSAL

Sec. 21-48. Illicit connections, illicit discharges and improper disposal.

(a) It shall be unlawful for any person to connect any pipe, open channel or any other conveyance system that discharges anything except stormwater or unpolluted water, which is approved by the stormwater division, into receiving waters.

(b) It shall be unlawful for any person to continue the operation of any such illicit connection regardless of whether the connection was permissible when constructed. Improper connections in violation of this article must be disconnected and redirected, if necessary, to the satisfaction of the stormwater division and any other federal, state or local agencies or departments regulating the discharge.

(c) It shall be unlawful for any person to throw, drain, run or otherwise discharge to any component of the City of Columbia MS4 or to the waters of the state or to cause, permit or allow to be thrown, drained, run or allow to seep or otherwise discharge into such system or receiving water all matter of any nature excepting only such storm or surface water as herein authorized.

(d) It shall be unlawful for any person to use, or permit to be used, a high polycyclic aromatic hydrocarbons (PAH) pavement product within the City of Columbia.

(e) The following discharges are exempt from the provisions in (a), (b) and (c) above unless the stormwater division determines such discharge to be a significant source of pollution:

(1) Unpolluted industrial cooling water, but only under the authorization and direction of the stormwater division and appropriate NPDES permit.

(2) Water line flushing performed or required by a government agency, diverted stream flows, rising ground waters, unpolluted pumped ground waters, and unpolluted ground water infiltration.

(3) Discharges from portable water sources, foundation drains, air conditioning condensation, irrigation water, springs, water from crawl space pumps, footing drains, lawn watering, individual car washing, residential pool backwashing, flows from riparian habitats and wetlands, and street wash water.

(4) Discharges or flows from fire fighting.

(5) Other unpolluted water.

(f) In the event of an accidental discharge or an unavoidable discharge to the City of Columbia MS4 of any pollutant, the person who caused the unanticipated discharge or the owner of the property on which the discharge originated shall inform the stormwater division as soon as possible, but not to exceed 24 hours, of the nature, quantity and time of occurrence of the discharge. The person who caused the accidental discharge and the owner of the property on which the discharge originated shall take immediate steps to contain the discharge, properly dispose of the contained material, and take such other actions as necessary to minimize the effects of the discharge on the MS4 and receiving waters. The person who caused the accidental discharge and the owner of the property on which the discharge originated shall also take immediate steps to prevent a recurrence of the discharge.
(Ord. No. 2011-095, 12-20-11; Ord. No. 2023-061, 6-20-23)

Sec. 21-49. Detection of illicit connections and improper disposal.

(a) The stormwater division shall take appropriate steps to detect and eliminate illicit connections to the City of Columbia MS4, including the adoption of a program to screen illicit discharges and identify their source or sources, perform inspections, and levy fines if not removed.

(b) The stormwater division shall take appropriate steps to detect and eliminate illicit discharges and improper disposal into the City of Columbia MS4. These steps may include programs to screen for illicit discharges and programs to provide for public education, public information, and other appropriate activities to facilitate the proper management and disposal of used oil, toxic materials and household hazardous waste.
(Ord. No. 2011-095, 12-20-11)

Sec. 21-50. Waste disposal prohibitions.

Waste collection/disposal shall be performed in accordance with City Code of Ordinances Chapters 8 and 19. No material shall be deposited in or on a storm drainage conveyance structure, including inlets, ditches, and waters of the US or state.
(Ord. No. 2011-095, 12-20-11)

Sec. 21-51. Industrial or construction activity discharges.

Any person subject to an industrial or construction activity NPDES stormwater discharge permit or land disturbance permit shall comply with all provisions of such permit. Proof of compliance with said permit may be required in a form acceptable to the stormwater division prior to issuance of a building permit and/or allowing discharges to the City of Columbia MS4.
(Ord. No. 2011-095, 12-20-11)

Sec. 21-52. Monitoring of discharges and inspections.

(a) This section applies to all facilities that have stormwater discharges associated with industrial activity, including any construction site subject to an NPDES or land disturbance permit.

(b) The stormwater division shall have the right to enter and inspect facilities subject to regulation under this article as often as may be necessary to determine compliance with this article. If a discharger has security measures in force which require proper identification and clearance before entry into its premises, the discharger shall make the necessary arrangements to allow access to representatives of the stormwater division.

(c) Facility operators shall allow the stormwater division ready access to all parts of the premises for the purposes of inspection, sampling, examination and copying of records that must be kept under the conditions of an NPDES permit or land disturbance permit, including those for controlling the contributions of pollutants from industrial facilities and for prohibiting illicit discharges and to verify that industries that are discharging stormwater to the City of Columbia MS4 are in compliance with their general or individual NPDES stormwater permit at or above standard design criteria requirements.

(d) The stormwater division shall have the right to set up on any permitted facility such devices as are necessary in the opinion of the authorized enforcement agency to conduct monitoring and/or sampling of the facility's stormwater discharge.

(e) The stormwater division has the right to require the discharger to install monitoring equipment as necessary. The facility's sampling and monitoring equipment shall be maintained at all times in a safe and proper operating condition by the discharger at its own expense. All devices used to measure stormwater flow and quality shall be calibrated to ensure their accuracy.

(f) Any temporary or permanent obstruction to safe and easy access to the facility to be inspected and/or sampled shall be promptly removed by the operator at the written or oral request of the stormwater division and shall not be replaced. The costs of clearing such access shall be borne by the operator.

(g) Unreasonable delays in allowing the stormwater division access to a permitted facility is a violation of a stormwater discharge permit and of this article. A person who is the operator of a facility with a NPDES permit to discharge stormwater associated with industrial activity commits an offense if the person denies the stormwater division reasonable access to the permitted facility for the purpose of conducting any activity authorized or required by this article.

(h) Upon refusal by any property owner to permit an inspector to enter or continue an inspection, the inspector shall terminate the inspection or confine the inspection to areas concerning which no objection is raised. The inspector shall immediately report the refusal and the grounds to the director.

(i) If the stormwater division has been refused access to any part of the premises from which stormwater is discharged and is able to demonstrate probable cause to believe that there may be a violation of this article, or that there is a need to inspect and/or sample as part of a routine inspection and sampling program designed to verify compliance with this article or any permit issued hereunder, or to protect the overall public health, safety, and welfare of the community, then the stormwater division may seek issuance of a search warrant from a court of competent jurisdiction. In the event that the stormwater division reasonably believes that discharges from the premises into the City of Columbia MS4 may cause an imminent and substantial threat to human health or the environment, the inspection may take place at any time and without notice to the owner of the property or a representative on site. The inspector shall present proper credentials upon reasonable request by the owner or representative.

(j) At any time during the conducting of an inspection or at such other times as the stormwater division may request information from an owner or representative, the owner or representative may identify areas of its facility or establishment, material or processes which contains or which might reveal a trade secret. If the stormwater division has no clear and convincing reason to question such identification, all material, processes and all information obtained within such areas shall be conspicuously labeled "CONFIDENTIAL - TRADE SECRET." The trade secret designation shall be freely granted to any material claimed to be such by the owner or representative so long as there is clear and convincing evidence for such a designation. In the event the stormwater division does not agree with the trade secret designation, the material shall be temporarily designated a trade secret and the owner or representative may request an appeal of the stormwater division's decision in the manner in which all such appeals are handled in this article. Designation as trade secret shall not be grounds for denying inspection, but all information gathered during such an inspection will be treated as per subsection 21-52(k).

(k) All trade secret material which are prepared or obtained by or for the stormwater division shall be marked as such and filed in a secure place separate from regular files and documents. Reports from samples prepared or obtained by or for the stormwater division or submitted for laboratory analysis shall be marked as such and treated in the same manner as other trade secret material. Trade secret material shall not be divulged by the stormwater division to anyone other than (1) other employees of the city or employees of the state or federal governments engaged in an inspection or enforcement proceeding involving the designated material and (2) to administrative or judicial courts upon order to so divulge the material to the court.
(Ord. No. 2011-095, 12-20-11)

DIVISION 5. ENFORCEMENT, PENALTIES, AND ABATEMENT

Sec. 21-53. Violations.

(a) Upon determination that a violation of any of the provisions of this article has occurred, the stormwater division may give written notice to the violator within five (5) business days. This notice shall specify: the nature of the violation, the findings of fact, and the deadline within which to correct deficiencies and/or restore the affected property, if appropriate. It shall be sufficient notification to deliver the notice to the property owner and/or operator via the United States Mail, properly stamped, certified and addressed to the address used for notice of taxes on the subject property by the Richland County Auditor or Lexington County Auditor.

(b) Pursuant to the authority conferred upon the city by the South Carolina Constitution, the South Carolina General Assembly and in compliance with the requirements of the NPDES MS4 permit, the stormwater division is authorized to develop and adopt additional policies, criteria, and processes for enforcement procedures as outlined in the Stormwater Enforcement Manual. The manual may be updated periodically by the stormwater division. The most current version shall be used by the City of Columbia for enforcement procedures.
(Ord. No. 2011-095, 12-20-11)

Sec. 21-54. Civil penalties.

Any person violating any of the provisions of this article, or any rule or regulation, permit or condition, final determination or order of the stormwater division, shall be subject to a civil penalty not more than ($1,000.00) for each violation. Each separate day of a violation constitutes a new and separate violation. If payment is not received or equitable settlement reached within 30 days after demand for payment is made, a civil action may be filed on behalf of the city in the circuit court to recover the full amount of the penalty.
(Ord. No. 2011-095, 12-20-11)

Sec. 21-55. Additional enforcement measures.

Where the city is fined and/or placed under a compliance schedule by the state or federal government for a violation(s) of its NPDES permit, and the city can identify the person(s) who caused such violation(s) to occur, the city may pass through the penalty and cost of compliance to that person(s).

The city may institute injunctive, mandamus or other appropriate action or proceedings at law or equity, including criminal proceedings, for the enforcement of this article, to correct violations of this article, or to seek reimbursement for corrective action and any court of competent jurisdiction shall have the right to issue restraining orders, temporary or permanent injunctions, mandamus or other appropriate forms of remedy or relief.
(Ord. No. 2011-095, 12-20-11)

Sec. 21-56. Corrective action.

(a) In the event that a violation of this article has not been corrected within the applicable time period for correction, the city, or its contractor, may enter upon the lot or parcel of land and correct the violation, and the costs incurred as a result of such action (including inspection, administration, labor and equipment costs) shall be collected either from the performance security, if in place and sufficient to cover such costs, from the property owner, or shall become a lien upon the property and shall be collected in the same manner as City taxes are collected.

(b) The stormwater division is authorized to develop and adopt additional policies, criteria, and processes for alternative enforcement procedures as outlined in the stormwater enforcement manual.
(Ord. No. 2011-095, 12-20-11)

Sec. 21-57. Stop work.

(a) Any person who shall proceed with any work which requires a land disturbance permit hereunder without first submitting a SWPPP and obtaining a permit or who is operating under an expired permit, where applicable, shall have automatically placed on the subject property a stop work order, pay to city double the normal amount of applicable performance securities and fees, and payment of any other applicable penalties, prior to lifting of the stop work order.

(b) Any person found in violation of the terms of this article shall also be subject to a stop work order as deemed necessary by the stormwater division. In addition to any requirements from subsection 21-57(a), such persons shall be required to correct such violations as required by subsection 21-57(c).

(c) The stop work order may allow or require work necessary for the correction of violations, but no other activities related to the project. Any person in violation of a stop work order is subject to impoundment of any and all equipment on the property, and payment of all fees, performance securities, penalties and payment of impoundment charges prior to retrieving such equipment.
(Ord. No. 2011-095, 12-20-11)

Sec. 21-58. Permit suspension and revocation.

A land disturbance permit may be suspended or revoked if one or more of the following violations have been committed:

(1) Violations of the conditions of any site development plan approval issued by the city;

(2) Land-disturbing activities not in accordance with the approved SWPPP;

(3) Non-compliance with the potential for notice(s) of violation or stop work order(s); or

(4) Non-compliance resulting in an immediate danger in a downstream area in the judgment of the stormwater division.

(Ord. No. 2011-095, 12-20-11)

Sec. 21-59. Criminal penalties.

In addition to any applicable civil penalties, any person who negligently, willfully or intentionally violates any provision of this article or who knowingly makes any false statement, representation or certification in any application, record, report, plan or other document or files required to be maintained pursuant to this article or any permit issued pursuant to this article shall be deemed guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5. Each day of a violation shall constitute a new and separate offense.

(Ord. No. 2011-095, 12-20-11)

Sec. 21-60. Variances and appeals.

(a) The stormwater division shall have the authority to grant variances and exceptions to any of the provisions of this division in response to an application showing undue hardship. These variances shall not be contrary to public interest but may be authorized where a literal enforcement of the provisions of this article will, in an individual case, result in undue hardship, so that the spirit of this article shall be observed, public safety and welfare secured, and substantial justice done.

In granting any variance, the stormwater division may prescribe conditions and safeguards in conformity of this article. A written application for variance shall be submitted demonstrating that:

(1) There are extraordinary and exceptional conditions pertaining to the piece of property;

(2) These conditions do not generally apply to other property in the vicinity;

(3) Because of these conditions, the literal application of this article to the particular piece of property would effectively prohibit or unreasonably restrict the utilization of the property.

(b) The fact that property may be utilized more profitably should a variance be granted may not be considered grounds for a variance;

(c) The stormwater division shall further make a finding that the reasons set forth in the application justify the granting of the variance, and that the variance is a minimum variance that will make possible the reasonable use of the land, building or structure.

(d) The stormwater division shall further make a finding that the granting of the variance will be in harmony with the general purpose and intent of this article, and will not be injurious to the neighborhood or otherwise detrimental to the public welfare;

(e) The stormwater division may prescribe a time limit within which the action for which the variance is requested shall be begun or completed, or both.

(f) Violations of conditions and safeguards prescribed in conformity with this article, when part of the terms under which the variance is granted, shall be deemed a violation of this article, punishable under penalties established in this article. Failure to begin or complete, or begin and complete, an action for which a variance is granted, within the time limit specified, when such time limit is made a part of the terms under which the variance is granted, shall void the variance.

(g) Any person aggrieved by any decision of the stormwater division under this article may appeal to the city engineer. An appeal under the provision must be filed in writing with the city engineer within 30 days of the decision being mailed or delivered to the person aggrieved and must state the reasons for the appeal.

(h) Using information provided by the appellant, the city engineer (or his or her designee) shall conduct a technical review of the decision and respond to the appeal in writing within 30 days.

(i) A decision of the city engineer that is adverse to an appellant may be further appealed to the city manager or his or her designee within 30 days of the adverse decision. Notice of the appeal shall be delivered to the city manager or his or her designee by the appellant, stating the grounds for further appeal. The city manager or his or her designee shall issue a written decision on the appeal within 30 days. All decisions by the city manager or his or her designee shall be served on the appellant personally or by registered or certified mail. (Ord. No. 2011-095, 12-20-11)

DIVISION 6. CHARGES AND FEES

Sec. 21-61. Field inspection and plan review.

Fees associated with the plan review of land development construction documents and inspections will be assessed via the schedule below. The revision of such fees shall be approved by the city council.

Area of Land Disturbance	*Fee*
5,000 square feet—1 acre	$150.00 flat fee + $50.00/month inspection fee[1]
1—10 acre(s)	$300.00 flat fee + $50.00/month inspection fee[1]
10+ acres	$500.00 flat fee + $50.00/month inspection fee[1]
Linear	$150.00 flat fee + $50.00/month inspection fee[1]
Project Modifications[2]	$100.00 flat fee per modification submittal

[1] $50.00 every month beginning the second month of land disturbance activities and ending on the date a notice of termination (NOT) is processed in accordance with section 21-44. One invoice shall be sent to the permittee for all monthly fees. For the purpose of invoicing, one month shall equal 30 days, and any remainder less than 30 days shall not be invoiced.

[2] For major project modifications that will affect hydrology calculations, a change or addition in point discharge location, and/or the addition of impervious or disturbed area.
(Ord. No. 2011-095, 12-20-11; Ord. No. 2024-010, 4-2-24)

Sec. 21-62—21-120. Reserved.

ARTICLE III. FLOOD DAMAGE PREVENTION*

DIVISION 1. GENERALLY

Sec. 21-121. Statutory authority.

The legislature of the state has delegated the responsibility to local governmental units to adopt regulations designed to promote the public health, safety and general welfare of its citizenry. Therefore, the city council does ordain this article.
(Code 1979, § 6-12001)

Sec. 21-122. Findings of fact.

(a) The flood hazard areas of the city are subject to periodic inundation which results in loss of life and property, health and safety hazards, disruption of commerce and governmental services, extraordinary public expenditures for flood protection and relief, and impairment of the tax base, all of which adversely affect the public health, safety and general welfare.

(b) These flood losses are caused by the cumulative effect of obstructions in floodplains causing increases in flood heights and velocities, and by the occupancy in flood hazard areas by uses vulnerable to floods or hazardous to other lands which are inadequately elevated, floodproofed or otherwise protected from flood damages.
(Code 1979, § 6-12002)

Sec. 21-123. Purpose of article.

It is the purpose of this article to promote the public health, safety and general welfare and to minimize public and private losses due to flood conditions in specific areas by provisions designed to:

(1) Restrict or prohibit uses which are dangerous to health, safety and property due to water, erosion, or flood heights or velocities;

***State law reference—**Floodplains defined, S.C. Code 1976, § 44-96-250.

(2) Require that uses vulnerable to floods, including facilities which serve such uses, be protected against flood damage at the time of initial construction;

(3) Control the alteration of natural floodplains, stream channels and natural protective barriers which are involved in the accommodation of floodwaters;

(4) Control filling, grading, dredging and other development which may increase erosion or flood damage; and

(5) Prevent or regulate the construction of flood barriers which will unnaturally divert floodwaters or which may increase flood hazards to other lands.

(Code 1979, § 6-12003)

Sec. 21-124. Objectives of article.

The objectives of this article are to:

(1) Protect human life and health;

(2) Minimize expenditure of public money for costly flood control projects;

(3) Minimize the need for rescue and relief efforts associated with flooding and generally undertaken at the expense of the general public;

(4) Minimize prolonged business interruptions;

(5) Minimize damage to public facilities and utilities such as water and gas mains, electric, telephone and sewer lines, streets and bridges located in floodplains;

(6) Help maintain a stable tax base by providing for the sound use and development of floodprone areas in such a manner as to minimize future flood blight areas; and

(7) Ensure that potential home buyers are notified that property is in a flood area.

(Code 1979, § 6-12004)

Sec. 21-125. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning. Unless specifically defined in this section, words or phrases used in this article shall be interpreted so as to give them the meaning they have in common usage to give this article its most reasonable application.

Accessory structure (appurtenant structure) means structures that are located on the same parcel of property as the principal structure and the use of which is incidental to the use of the principal structure. Accessory structures should constitute a minimal investment, may not be used for human habitation, and be designed to have minimal flood damage potential. Examples of accessory structures are detached garages, carports, storage sheds, pole barns, and hay sheds.

Addition (to an existing building) means any walled and roofed expansion to the perimeter of a building in which the addition is connected by a common loadbearing wall other than a

firewall. Additions to existing buildings shall comply with the requirements for new construction regardless as to whether the addition is a substantial improvement or not. Any walled and roofed addition which is connected by a firewall or is separated by independent perimeter loadbearing walls is new construction.

Appeal means a request for a review of the city engineer's interpretation of any provision of this article or a request for a variance.

Area of shallow flooding means a designated AO zone on a community's flood insurance rate map (FIRM) with base flood depths from one to three feet, where a clearly defined channel does not exist, where the path of flooding is unpredictable and indeterminate, and where velocity flow may be evident.

Area of special flood hazard means the land in the floodplain within a community subject to a one percent or greater chance of flooding in any given year.

Base flood means the flood having a one percent chance of being equaled or exceeded in any given year.

Basement means that portion of a building having its first floor subgrade (below ground level) on all sides.

Breakaway wall means a wall that is not part of the structural support of the building and is intended through its design and construction to collapse under specific lateral loading forces without causing damage to the elevated portion of the building or the supporting foundation system.

Building means any structure built for support, shelter or enclosure for any occupancy or storage.

Critical development means development that is critical to the community's public health and safety, is essential to the orderly functioning of a community, stores or produces highly volatile, toxic or water-reactive materials, or houses occupants that may be insufficiently mobile to avoid loss of life or injury. Examples of critical development include jails, hospitals, schools, fire stations, nursing homes, wastewater treatment facilities, water plants, and gas/oil/propane storage facilities.

Development means any manmade change to improved or unimproved real estate, including but not limited to buildings or other structures, mining, dredging, filling, grading, paving, excavation, drilling operations, or permanent storage of materials.

Elevated building means a nonbasement building built to have the lowest floor elevated above the ground level by means of fill, solid foundation perimeter walls, pilings, columns (posts and piers), shear walls or breakaway walls.

Existing construction means any structure for which the start of construction commenced before August 26, 1981.

Existing manufactured home park or subdivision means a manufactured home park or subdivision for which the construction of facilities for servicing the lots which the manufactured homes are to be affixed (including at a minimum the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed before August 26, 1981.

Expansion to an existing manufactured home park or subdivision means the preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

Flood and *flooding* mean a general and temporary condition of partial or complete inundation of normally dry land areas from the unusual and rapid accumulation of surface waters from any source.

Flood hazard boundary map (FHBM) means an official map of a community, issued by the Federal Emergency Management Agency, where the boundaries of the areas of special flood hazard have been defined as zone A.

Flood insurance rate map (FIRM) means an official map of a community, on which the Federal Emergency Management Agency has delineated both the areas of special flood hazard and the risk premium zones applicable to the community.

Flood proofing means any combination of structural and non-structural additions, changes or adjustments to structures which reduce or eliminate flood damage to real estate or improve real property, water and sanitary facilities, structures and their contents.

Flood insurance study means the official report provided by the Federal Emergency Management Agency. The report contains flood profiles, as well as the flood boundary and floodway map and the water surface elevation of the base flood.

Flood resistant material means any building material capable of withstanding direct and prolonged contact (minimum 72 hours) with floodwaters without sustaining damage that requires more than low-cost cosmetic repair. Any material that is water-soluble or is not resistant to alkali or acid in water, including normal adhesives for above-grade use, is not flood-resistant. Pressure-treated lumber or naturally decay-resistant lumbers are acceptable flooring materials. Sheet-type floor coverings that restrict evaporation from below and materials that are impervious, but dimensionally unstable are not acceptable. Materials that absorb or retain water excessively after submergence are not flood-resistant. Please refer to Technical Bulletin 2, Flood Damage-Resistant Materials Requirements, dated 8/08, and available from the Federal Emergency Management Agency. Class 4 and 5 materials, referenced therein, are acceptable flood-resistant materials.

Floodway means the channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than one foot.

Floor means the top surface of an enclosed area in a building (including basement), i.e., top of a slab in concrete slab construction or top of wood flooring in wood frame construction. The floor of an attached garage can still be considered the lowest floor if there are no openings.

Freeboard means a factor of safety usually expressed in feet above a flood level for purposes of flood plain management. "Freeboard" tends to compensate for the many

unknown factors that could contribute to flood heights greater than the height calculated for a selected size flood and floodway conditions, such as wave action, bridge openings, and the hydrological effect of urbanization of the watershed.

Functionally dependent facility means a facility which cannot be used for its intended purpose unless it is located or carried out in close proximity to water, such as a dock. The term does not include long-term storage, manufacture, sales or service facilities.

Functionally dependent use means a use which cannot perform its intended purpose unless it is located or carried out in close proximity to water. The term includes only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship building and ship repair facilities, but does not include long-term storage or related manufacturing facilities.

Highest adjacent grade means the highest natural elevation of the ground surface, prior to construction, next to the proposed walls of a structure.

Historic structure means any structure that is:

(1) Listed individually in the National Register of Historic Places (a listing maintained by the Department of the Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;

(2) Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;

(3) Individually listed on a state inventory of historic places in states with historic preservation programs which have been approved by the Secretary of the Interior; or

(4) Individually listed on a local inventory of historic places in communities with historic preservation programs that have been certified either:

   a. By an approved state program as determined by the Secretary of the Interior; or

   b. Directly by the Secretary of the Interior in states without approved programs.

Increased cost of compliance (ICC) applies to all new and renewed flood insurance policies effective on and after June 1, 1997. The NFIP shall enable the purchase of insurance to cover the cost of compliance with land use and control measures established under Section 1361. It provides coverage for the payment of a claim to help pay for the cost to comply with State or community floodplain management laws or ordinances after a flood event in which a building has been declared substantially or repetitively damaged.

Limited storage means an area used for storage and intended to be limited to incidental items that can withstand exposure to the elements and have low flood damage potential. Such an area must be of flood resistant or breakaway material, void of utilities except for essential lighting and cannot be temperature controlled. If the area is located below the base flood elevation in an A, AE and A1—A30 zone it must meet the requirements of this article.

Lowest adjacent grade (LAG) means an elevation of the lowest ground surface that touches any deck support, exterior walls of a building or proposed building walls.

Lowest floor means the lowest floor of the lowest enclosed area. Any unfinished or flood resistant enclosure, usable solely for parking of vehicles, building access, or storage in an area other than a basement area is not considered the buildings lowest floor, provided that such an enclosure is not built so as to render the structure in violation of other provisions of this article.

Manufactured home means a structure, transportable in one or more sections, which is built on a permanent chassis and designed to be used with or without a permanent foundation when connected to the required utilities. The term also includes park trailers, travel trailers and similar transportable structures placed on a site for 180 consecutive days or longer and intended to be improved property.

Manufactured home park or subdivision means a parcel or contiguous parcels of land divided into two or more manufactured home lots for rent or sale.

Mean sea level means the average height of the sea for all stages of the tide. It is used as a reference for establishing various elevations within the floodplain. For the purposes of this article, the term is synonymous with National Geodetic Vertical Datum (NGVD).

National Geodetic Vertical Datum (NGVD), as corrected in 1929, is a vertical control used as a reference for establishing various elevations within the floodplain.

New construction means structures for which the start of construction commenced on or after August 26, 1981. The term also includes any subsequent improvements to such structure.

New manufactured home park or subdivision means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after August 26, 1981.

North American Vertical Datum (NAVD) of 1988 means vertical control, as corrected in 1988, used as the reference datum on flood insurance rate maps.

Recreational vehicle means a vehicle which is:

(1) Built on a single chassis;

(2) Four hundred square feet or less when measured at the largest horizontal projection;

(3) Designed to be self-propelled or permanently towable by a light duty truck; and

(4) Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel or seasonal use.

Repetitive loss means a building covered by a contract for flood insurance that has incurred flood-related damages on two occasions during a ten-year period ending on the date

of the event for which a second claim is made, in which the cost of repairing the flood damage, on the average, equaled or exceeded 25 percent of the market value of the building at the time of each such flood event.

Section 1316 of the National Flood Insurance Act of 1968 provides that no new flood insurance shall be provided for any property found by the Federal Emergency Management Agency to have been declared by a state or local authority to be in violation of state or local ordinances.

Special flood hazard area (see area of special flood hazard) means the land in the floodplain within a community subject to a one percent or greater chance of flooding in any given year.

Start of construction includes substantial improvements, and means the date the building permit was issued, provided the actual start of construction, repair, reconstruction or improvement was within 180 days of the permit date. The actual start means the first placement of permanent construction of a structure (including a manufactured home) on a site, such as the pouring of slabs or footings, installation of piles, construction of columns, or any work beyond the stage of excavation or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for basements, footings, piers or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure.

Structure means a walled and roofed building that is principally above ground, a manufactured home, a gas or liquid storage tank, or other manmade facilities or infrastructure.

Substantial damage means damage of any origin sustained by a structure whereby the cost of restoring the structure to its before-damaged condition would equal or exceed 50 percent of the market value of the structure before the damage occurred.

Substantial improvement means any combination of repairs, reconstruction, alteration or improvements to a structure in which the cumulative cost over the previous five-year period equals or exceeds 50 percent of the current market value of the structure before the "start of construction" of the improvement. The current market value of the structure should be (i) the appraised value of the structure prior to the start of the repair or improvement for which the current permit is sought, or (ii) in the case of damage, the value of the structure prior to the damage occurring. This term includes structures which have incurred substantial damage, regardless of the actual repair work performed. For the purposes of this definition, substantial improvement is considered to occur when the first alteration of any wall, ceiling, floor or other structural part of the building commences, whether or not that alteration affects the external dimensions of the structure. The term does not, however, include either: (1) any project for improvement of a structure required to correct existing violations of state

or local health, sanitary or safety code specifications which are solely necessary to ensure safe living conditions or (2) any alteration of a "historic structure," provided that the alteration will not preclude the structure's continued designation as a "historic structure."

Substantially improved existing manufactured home park or subdivision means a manufactured home park or subdivision where the repair, reconstruction, rehabilitation or improvement of the streets, utilities and pads equals or exceeds 50 percent of the value of the streets, utilities and pads before the repair, reconstruction or improvement commenced.

Variance means a grant of relief from the requirements of this article which permits construction in a manner otherwise prohibited by this article where specific enforcement would result in unnecessary hardship.

Violation means the failure of a structure or other development to be fully compliant with these regulations.
(Code 1979, § 6-12011; Ord. No. 2007-026, 6-6-07; Ord. No. 2009-011, 2-18-09; Ord. No. 2015-046, 6-16-15; Ord. No. 2017-090, 12-5-17)

Cross reference—Definitions generally, § 1-2.

Sec. 21-126. Lands to which article applies.

This article shall apply to all areas of special flood hazard within the jurisdiction of the city.
(Code 1979, § 6-12021)

Sec. 21-127. Basis for establishing areas of special flood hazard.

Adoption of Letter of Map Revisions (LOMR)—All LOMRs that are issued in the areas identified in this ordinance are hereby adopted.

The areas of special flood hazard identified by the Federal Emergency Management Agency in its flood insurance study for the county at the following map numbers with effective dates are declared to be a part of this article:

Map Number	*Effective Date*
45079C00945L	December 21, 2017
45079C0165L	December 21, 2017
45079C0210L	December 21, 2017
45079C0230L	December 21, 2017
45079C0235L	December 21, 2017
45079C0236L	December 21, 2017
45079C0237L	December 21, 2017
45079C0255L	December 21, 2017
45079C0260L	December 21,2017
45079C0261L	December 21,2017
45079C0262L	December 21,2017
45079C0263L	December 21,2017

Map Number	*Effective Date*
45079C0264L	December 21, 2017
45079C0270L	December 21, 2017
45079C0280L	December 21,2017
45079C0285L	December 21, 2017
45079C0295L	December 21, 2017
45079C0325L	December 21,2017
45079C0241L	December 21,2017
45079C0242L	December 21, 2017
45079C0376L	December 21,2017
45079C0377L	December 21,2017
45079C0379L	December 21,2017
45079C0138L	December 21,2017
45079C0383L	December 21,2017
45079C0405L	December 21,2017
45079C0410L	December 21,2017
45069C0133J	July 5, 2018
45069C0134J	July 5, 2018
45063C0163J	July 5, 2018
45079C0094L	December 21, 2017
45079C0164L	December 21, 2017
45079C0168L	December 21, 2017
45079C0208L	December 21, 2017
45079C0209L	December 21, 2017
45079C0207L	December 21, 2017
45079C0206L	December 21, 2017
45079C0226L	December 21, 2017
45079C0228L	December 21, 2017
45079C0229L	December 21, 2017
45079C0236L	December 21, 2017
45079C0237L	December 21, 2017
45079C0238L	December 21, 2017
45079C0239L	December 21, 2017
45079C0243L	December 21, 2017
45079C0244L	December 21, 2017
45079C0242L	December 21, 2017
45079C0241L	December 21, 2017
45079C0233L	December 21, 2017
45079C0234L	December 21, 2017
45079C0251L	December 21, 2017
45079C0252L	December 21, 2017
45079C0254L	December 21, 2017

Map Number	*Effective Date*
45079C0253L	December 21, 2017
45079C0261L	December 21, 2017
45079C0262L	December 21, 2017
45079C0264L	December 21, 2017
45079C0263L	December 21, 2017
45079C0270L	December 21, 2017
45079C0266L	December 21, 2017
45079C0267L	December 21, 2017
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45079C0405L	December 21, 2017
45079C0410L	December 21, 2017
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45079C0356L	December 21, 2017
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45079C0359L	December 21, 2017

(Code 1979, § 6-12022; Ord. No. 2009-011, 2-18-09; Ord. No. 2009-011, 2-18-09; Ord. No. 2010-133, 9-15-10; Ord. No. 2010-133, 9-15-10; Ord. No. 2017-090, 12-5-17; Ord. No. 2017-115, 1-16-18; Ord. No. 2018-016, 5-15-18)

Sec. 21-128. Development permit required.

A development permit shall be required in conformance with the provisions of this article prior to the commencement of any development activities.
(Code 1979, § 6-12023)

Sec. 21-129. Compliance with applicable regulations.

No structure or land shall hereafter be located, extended, converted or structurally altered without full compliance with the terms of this article and other applicable regulations.
(Code 1979, § 6-12024)

Sec. 21-130. Abrogation of existing covenants or restrictions; conflicting provisions.

This article is not intended to repeal, abrogate or impair any existing easements, covenants or deed restrictions. However, where this article and another ordinance conflict or overlap, whichever imposes the more stringent restrictions shall prevail.
(Code 1979, § 6-12025)

Sec. 21-131. Interpretation of article.

In the interpretation and application of this article, all provisions shall be:

(1) Considered as minimum requirements;

(2) Liberally construed in favor of the city council; and

(3) Deemed neither to limit nor repeal any other powers granted under state statutes.
(Code 1979, § 6-12026)

Sec. 21-132. Warning and disclaimer of liability.

The degree of flood protection required by this article is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. Larger floods can and will occur on rare occasions. Flood heights may be increased by manmade or natural causes. This article does not imply that land outside the areas of special flood hazard or uses permitted within such areas will be free from flooding or flood damages. This article shall not create liability on the part of the city or by any officer or employee thereof for flood damages that result from reliance on this article or any administrative decision made thereunder.
(Code 1979, § 6-12027)

Sec. 21-133. Penalty.

Violation of the provisions of this article or failure to comply with any of its requirements, including violation of conditions and safeguards established in connection with grants of variance or special exceptions, shall constitute a misdemeanor, punishable in accordance

with section 1-5. Each day such violation continues shall be considered a separate offense. Nothing contained in this section shall prevent the city from taking such other lawful action as is necessary to prevent or remedy any violation.
(Code 1979, § 6-12028)

Sec. 21-134. Severability.

If any provision, clause, sentence or paragraph of this article or the application thereof to any person or circumstances shall be held invalid, that invalidity shall not affect the other provisions of this article which can be given effect without the invalid provision or application, and to this end the provisions of this article are declared to be severable.
(Ord. No. 2015-046, 6-16-15)

Secs. 21-135—21-150. Reserved.

DIVISION 2. ADMINISTRATION*

Sec. 21-151. Responsibility for administration.

The city engineer, the floodplain administrator or their designee is hereby appointed to administer and implement the provisions of this article.
(Code 1979, § 6-12041; Ord. No. 2015-046, 6-16-15; Ord. No. 2017-090, 12-5-17)

Sec. 21-152. Application for development permit.

Application for a development permit shall be made to the city engineer, or his designee on forms furnished by the city prior to any development activities, and may include but shall not be limited to the following: plans in duplicate drawn to scale showing the nature, location, dimensions and elevations of the area in question; and existing or proposed structures, fill, storage of materials and drainage facilities, and their location. Specifically, the following is required:

(1) *Application stage.* The applicant shall provide the following:

a. Elevation in relation to mean sea level of the proposed lowest floor (including basement) of all structures.

b. Elevation in relation to mean sea level to which any nonresidential structure will be flood proofed.

c. Certification from a registered professional engineer or architect that the nonresidential flood proofed structure will meet the flood proofing criteria in section 21-172(2).

d. Description of the extent to which any watercourse will be altered or relocated as a result of proposed development.

***Cross reference—**Administration, ch. 2.

(2) *Construction stage.* The applicant shall provide a floor elevation or flood proofing certification after the lowest floor is completed. Upon placement of the lowest floor, or flood proofing by whatever construction means, it shall be the duty of the permit holder to submit to the city engineer or designee a certification of the elevation of the lowest floor or flood proofed elevation, as built, in relation to mean sea level. The certification shall be prepared by or under the direct supervision of and certified by a registered land surveyor or professional engineer. When flood proofing is utilized for a particular building, the certification shall be prepared by or under the direct supervision of and certified by a professional engineer or architect. Any work undertaken prior to submission of the certification shall be at the permit holder's risk. The city engineer shall review the floor elevation survey data submitted. Deficiencies detected by such review shall be corrected by the permit holder immediately and prior to further progressive work being permitted to proceed. Failure to submit the survey, or failure to make the corrections required by this section, shall be cause to issue a stop work order for the project.

(3) *As-built certification.* Upon completion of the development a registered professional engineer, land surveyor or architect, in accordance with SC law, shall certify according to the requirements that the development is built in accordance with the submitted plans and previous pre-development certifications.

(Code 1979, § 6-12042; Ord. No. 2017-090, 12-5-17)

Sec. 21-153. Enforcement.

(a) *Inspections.* The local floodplain administrator or his designee may make as many inspections of the work as may be necessary to ensure that any work is being done according to the provisions of the local ordinance and the terms of any permit. In exercising this power, the floodplain administrator or his designee has a right, upon presentation of proper credentials, to enter on any premises within the territorial jurisdiction at any reasonable hour for the purposes of inspection or other enforcement action.

(b) *Corrective action order.*

(1) If the local floodplain administrator or his designee finds violations of applicable state and local laws, it shall be his/her duty to notify the owner or occupant of the building of the violation. The floodplain administrator shall give him written notice, by certified or registered mail to his last known address or by personal service, that the building or property is in violation of the flood damage prevention ordinance. He/she shall make an order in writing to the owner, requiring the owner to remedy the violation within such period, but not less than 60 days, as the floodplain administrator may prescribe; provided that where the floodplain administrator finds that there is imminent danger to life or other property, he may order that corrective action be taken in such lesser period as may be feasible.

(2) Any owner who has received an order to take corrective action may appeal from the order as provided for in this Article.

(c) *Remedies.*

(1) Whenever a building or part thereof is being constructed, reconstructed, altered, or repaired in violation of this article, the floodplain administrator may order the work to be immediately stopped. The stop-work order shall be in writing and directed to the person doing the work. The stop-work order shall state the specific work to be stopped, the specific reasons for the stoppage, and the conditions under which the work may be resumed. Violation of a stop-work order constitutes a misdemeanor.

(2) The local floodplain administrator may revoke and require the return of the development permit by notifying the permit holder in writing, stating the reason for the revocation. Permits shall be revoked for any substantial departure from the approved application, plans, or specifications; for refusal or failure to comply with the requirements of state or local laws; or for false statements or misrepresentations made in securing the permit. Any permit mistakenly issued in violation of an applicable state or local law may also be revoked. What constitutes a substantial departure will be determined by the floodplain administrator.

(3) If a structure is declared in violation of this article and after all other penalties are exhausted to achieve compliance with this ordinance then the local floodplain administrator shall notify the Federal Emergency Management Agency (FEMA) to initiate a Section 1316 of the National Flood Insurance Act of 1968 action against the structure upon the finding that the violator refuses to bring the violation into compliance with this article. Once a violation has been remedied the local floodplain administrator shall notify FEMA of the remedy and ask that the Section 1316 be rescinded.

a. The following documents are incorporated by reference and may be used by the local floodplain administrator to provide further guidance and interpretation of this ordinance as found on FEMA's website at www.fema.gov:

i. FEMA 55 Coastal Construction Manual

ii. All FEMA Technical Bulletins

iii. All FEMA Floodplain Management Bulletins

iv. FEMA 348 Protecting Building Utilities from Flood Damage

v. FEMA 499 Home Builder's Guide to Coastal Construction Technical Fact Sheets

(4) If the owner of a building or property fails to comply with an order to take corrective action from which no appeal has been taken, or fails to comply with an order of the governing body following an appeal, he shall be guilty of a misdemeanor and shall be punished in the discretion of the court.

(Ord. No. 2017-090, 12-5-17)

Sec. 21-154. Duties of city engineer.

Duties of the city engineer under this article shall include but not be limited to the following:

(1) The city engineer shall review all development permits to ensure that the permit requirements of this article have been satisfied.

(2) The city engineer shall review proposed development to assure that all necessary permits have been received from those governmental agencies from which approval is required by federal or state law, including section 404 of the Federal Water Pollution Control Act Amendments of 1972, 33 U.S.C 1334.

(3) The city engineer shall notify adjacent communities and South Carolina Department of Natural Resources State Coordinator of Flood Mitigation Programs prior to any alteration or relocation of a watercourse, and submit evidence of such notification to the Federal Emergency Management Agency.

(4) Obtain the actual elevation (in relation to mean sea level) to which the new or substantially improved structures have been floodproofed, in accordance with the floodproofing certification.

(5) The city engineer shall ensure that maintenance is provided within the altered or relocated portion of the watercourse so that the flood-carrying capacity is not diminished.

(6) The city engineer shall prevent encroachments within floodways unless the certification and flood hazard reduction provisions of this ordinance are met.

(7) Cooperate with neighboring communities with respect to the management of adjoining floodplains and/or flood-related erosion areas in order to prevent aggravation of existing hazards.

(8) Notify adjacent communities prior to permitting substantial commercial developments and large subdivisions to be undertaken in areas of special flood hazard and/or flood-related erosion hazards.

(9) The city engineer shall verify and record the actual elevation (in relation to mean sea level) of the lowest floor (including basement) of all new or substantially improved structures in accordance with section 21-152(2).

(10) The city engineer shall verify and record the actual elevation (in relation to mean sea level) to which the new or substantially improved structures have been flood proofed, in accordance with section 21-152(2).

(11) When flood proofing is utilized for a particular structure, the city engineer shall obtain certification from a registered professional engineer or architect, in accordance with section 21-172(2).

(12) Where interpretation is needed as to the location of boundaries of the areas of special flood hazard (for example, where there appears to be a conflict between a mapped boundary and actual field conditions), the city engineer shall make the necessary interpretation. The person contesting the location of the boundary shall be given a reasonable opportunity to appeal the interpretation as provided in this article.

(13) Where a map boundary showing an area of special flood hazard and field elevations disagree, the base flood elevations for flood protection elevations (as found on an elevation profile, floodway data table, etc.) shall prevail. The correct information should be submitted by the city Engineer to FEMA as per the map maintenance activity requirements.

(14) When base flood elevation data or floodway data has not been provided in accordance with section 21-127, then the city engineer shall obtain, review and reasonably utilize any base flood elevation data available from a federal, state or other source in order to administer the provisions of division 3 of this article.

(Code 1979, § 6-12043; Ord. No. 2009-011, 2-18-09; Ord. No. 2010-134, 9-15-10; Ord. No. 2017-090, 12-5-17)

Sec. 21-155. Appeals and variances.

(a) *Establishment of appeals board.* The building board of adjustments and appeals as established by the city council shall hear and decide appeals and requests for variances from the requirements of this article.

The building board of adjustments and appeals shall hear and decide appeals when it is alleged there is an error in any requirement, decision or determination made by the city engineer or his designee in the enforcement or administration of this article.

(b) *Right to appeal.* Any person aggrieved by the decision of the building board of adjustments and appeals, or any taxpayer, may appeal such decision to the court of common pleas, as provided by state law.

(c) *Historic structures.* Variances may be issued for the repair or rehabilitation of historic structures upon the determination that the proposed repair or rehabilitation will not preclude the structure's continued designation as a historic structure and the variance is the minimum necessary to preserve the historic character and design of the structure.

(d) *Functionally dependent uses.* Variances may be issued for development necessary for the conduct of a functionally dependent use, provided the criteria of this article are met, no reasonable alternative exists, and the development is protected by methods that minimize flood damage and create no additional threat to public safety.

(e) *Criteria.* In passing upon such applications, the building board of adjustments and appeals shall consider all technical evaluations, all relevant factors, all standards specified in other sections of this article, and:

(1) The danger that materials may be swept onto other lands to the injury of others;

(2) The danger to life and property due to flooding or erosion damage;

(3) The susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner;

(4) The importance of the services provided by the proposed facility to the community;

(5) The necessity of the facility to a waterfront location, in the case of a functionally dependent facility;

(6) The availability of alternative locations, not subject to flooding or erosion damage, for the proposed use;

(7) The compatibility of the proposed use with existing and anticipated development, and the relationship of the proposed use to the comprehensive plan and floodplain management program for that area;

(8) The relationship of the proposed use to the comprehensive plan and floodplain management program for that area;

(9) The safety of access to the property in times of flood for ordinary and emergency vehicles;

(10) The expected height, velocity, duration, rate of rise and sediment transport of the floodwaters and the effects of wave action, if applicable, expected at the site; and

(11) The cost of providing governmental services during and after flood conditions, including maintenance and repair of public utilities and facilities such as sewer, gas, electrical and water systems, and streets and bridges.

(f) *Findings.* Findings listed above shall be submitted to the building board of adjustments and appeals, in writing, and included in the application for a variance. Additionally, comments from the Department of Natural Resources, Land, Water and Conservation Division, State Coordinator's Office, must be taken into account and included in the permit file.

(g) *Floodways.* Variances shall not be issued within any designated floodway if any increase in flood levels during the base flood discharge would result unless a CLOMR is obtained prior to issuance of the variance. In order to ensure the project is built in compliance with the CLOMR for which the variance is granted the applicant must provide a bond for 15% of the cost to perform the development.

(h) *Conditions.* Upon consideration of the factors listed above and the purposes of this article, the building board of adjustments and appeals may attach such conditions to the granting of variances as it deems necessary to further the purposes of this article. The following conditions shall apply to all variances:

(1) Variances may not be issued when the variance will make the structure in violation of other federal, state, or local laws, regulations, or ordinances.

(2) Variances shall not be issued within any designated floodway if any increase in flood levels during the base flood discharge would result.

(3) Variances shall only be issued upon a determination that the variance is the minimum necessary, considering the flood hazard, to afford relief; and in the instance of a historical building, a determination that the variance is the minimum necessary so as not to destroy the historic character and design of the building.

(4) Variances shall only be issued upon:

a. A showing of good and sufficient cause;

b. A determination that failure to grant the variance would result in exceptional hardship; and

c. A determination that the granting of a variance will not result in increased flood heights, additional threats to public safety or extraordinary public expense, create nuisance, cause fraud on or victimization of the public, or conflict with existing local laws or ordinances.

(5) Any applicant to whom a variance is granted shall be given written notice specifying the difference between the base flood elevation (BFE) and the elevation to which the structure is to be built and a written statement that the cost of flood insurance will be commensurate with the increased risk. Such notification shall be maintained with a record of all variance actions.

(6) A variance shall not be issued for unpermitted development or other development that is not in compliance with the provision of this article.

(7) The city engineer or the city engineer designee shall maintain the records of all appeal actions and report any variances to the Federal Emergency Management Agency upon request.

(Code 1979, § 6-12044; Ord. No. 2015-046, 6-16-15; Ord. No. 2017-090, 12-5-17)

Secs. 21-156—21-170. Reserved.

DIVISION 3. FLOOD HAZARD REDUCTION

Sec. 21-171. General standards.

In all areas of special flood hazard, the following provisions are required:

(1) *Reasonably safe from flooding.* All permit applications shall be reviewed to determine whether proposed building sites will be reasonably safe from flooding.

(2) New construction and substantial improvements shall be anchored to prevent flotation, collapse or lateral movement of the structure.

(3) Manufactured homes shall be anchored to prevent flotation, collapse or lateral movement. Methods of anchoring may include but are not limited to use of over-the-top or frame ties to ground anchors. This standard shall be in addition to and consistent with applicable state requirements for resisting wind forces.

(4) New construction and substantial improvements shall be constructed with materials and utility equipment resistant to flood damage.

(5) New construction and substantial improvements shall be constructed by methods and practices that minimize flood damage.

(6) Critical development shall be elevated to the 500-year flood elevation or be elevated to the highest known historical flood elevation (where records are available), whichever is greater. If no data exists establishing the 500-year flood elevation or the highest known historical flood elevation, the applicant shall provide a hydrologic and hydraulic engineering analysis that generates 500-year flood elevation data,

(7) Electrical, heating, ventilation, plumbing, air conditioning equipment and other service facilities shall be designed and/or located so as to prevent water from entering or accumulating within the components during conditions of flooding.

(8) New and replacement water supply systems shall be designed to minimize or eliminate infiltration of floodwaters into the systems.

(9) New and replacement sanitary sewage systems shall be designed to minimize or eliminate infiltration of floodwaters into the systems and discharges from the systems into floodwaters.

(10) Site waste disposal systems shall be located and constructed to avoid impairment to them or contamination from them during flooding.

(11) *Gas or liquid storage tanks.* All gas or liquid storage tanks, either located above ground or buried, shall be anchored to prevent floatation and lateral movement resulting from hydrodynamic and hydrostatic loads.

(12) Any alteration, repair, reconstruction or improvements to a structure which is in compliance with the provisions of this article shall meet the requirements of new construction as contained in this article.

(13) *Non-conforming buildings or uses.* Non-conforming buildings or uses may not be enlarged, replaced, or rebuilt unless such enlargement or reconstruction is accomplished in conformance with the provisions of this article. Provided, however, nothing in this article shall prevent the repair, reconstruction, or replacement of an existing building or structure located totally or partially within the floodway, provided that the bulk of the building or structure below base flood elevation in the floodway is not increased and provided that such repair, reconstruction, or replacement meets all of the other requirements of this article.

(14) *American with Disabilities Act (ADA).* A building must meet the specific standards for floodplain construction outlined in this ordinance, as well as any applicable ADA requirements. The ADA is not justification for issuing a variance or otherwise

waiving these requirements. Also, the cost of improvements required to meet the ADA provisions shall be included in the costs of the improvements for calculating substantial improvement.

(Code 1979, § 6-12051; Ord. No. 2017-090, 12-5-17)

Sec. 21-172. Specific standards.

In all areas of special flooding hazard where base flood elevation data has been provided, the following provisions are required:

(1) *Residential construction.* New construction and substantial improvement of any residential structure (including manufactured homes) shall have the lowest floor, including machinery and equipment, elevated no lower than two feet above the base flood elevation. No basements are permitted. Should solid foundation perimeter walls be used to elevate a structure, flood openings sufficient to facilitate the unimpeded movement of floodwaters shall be provided in accordance with standards of subsection (3) of this section.

(2) *Nonresidential construction.* New construction and substantial improvement of any commercial, industrial or nonresidential structure (including manufactured homes) shall have the lowest floor, including machinery and equipment, elevated no lower than two feet above the level of the base flood elevation. No basements are permitted. Structures located in all A zones may be flood proofed in lieu of being elevated provided that all areas of the structure below the required elevation are watertight with walls substantially impermeable to the passage of water, and use structural components having the capability of resisting hydrostatic and hydrodynamic loads and the effects of buoyancy. A registered professional engineer or architect shall certify that the standards of this subsection are satisfied.

(3) *Elevated buildings.* New construction and substantial improvements of elevated buildings that include fully enclosed areas formed by foundation and other exterior walls below the base flood elevation shall be designed to preclude finished living space and designed to allow for the entry and exit of floodwaters to automatically equalize hydrostatic flood forces on exterior walls.

a. Designs for complying with this requirement must either be certified by a professional engineer or architect or meet the following minimum criteria:

1. A minimum of two openings on different walls shall be provided having a total net area of not less than one square inch for every square foot of enclosed area subject to flooding;

2. The bottom of all openings shall be no higher than one foot above the higher of the interior or exterior grade immediately under the opening;

3. Only the portions of openings that are below the base flood elevation can be counted towards the required net open area;

4. Openings may be equipped with screens, louvers, valves or other coverings or devices provided they permit the automatic flow of floodwaters in both directions;

5. Fill placed around foundation walls must be graded so that the grade inside the enclosed area is equal to or higher than the adjacent grade outside the building on at least one side of the building; and

6. Hazardous velocities. Hydrodynamic pressure must be considered in the design of any foundation system where velocity waters or the potential for debris flow exists. If flood velocities are excessive (greater than 5 feet per second), foundation systems other than solid foundations walls should be considered so that obstructions to damaging flood flows are minimized.

(4) *Enclosures below lowest floor:*

a. Electrical, plumbing and other utility connections are prohibited below the base flood elevation.

b. Access to the enclosed area shall be the minimum necessary to allow for parking of vehicles (garage door) or limited storage of maintenance equipment used in connection with the premises (standard exterior door) or entry to the living area (stairway or elevator).

c. The interior portion of such enclosed area shall not be partitioned or finished into separate rooms.

d. All construction materials below the required lowest floor elevation specified in the specific standards should be of flood resistant materials.

(5) *Standards for manufactured homes and recreational vehicles.*

a. All manufactured homes placed or substantially improved on individual lots or parcels, in expansions to existing manufactured home parks or subdivisions, or in substantially improved manufactured home parks or subdivisions must meet all the requirements for new construction, including elevation and anchoring.

b. All manufactured homes placed or substantially improved in an existing manufactured home park or subdivision must be elevated so that:

1. The lowest floor of the manufactured home is elevated no lower than two feet above the level of the base flood elevation.

2. The manufactured home chassis is supported by reinforced piers, or other foundation elements of at least an equivalent strength, of no less than 36 inches in height above grade.

3. The manufactured home must be securely anchored to the adequately anchored foundation system to resist flotation, collapse and lateral movement.

4. In an existing manufactured home park or subdivision on which a manufactured home has incurred substantial damage as the result of a flood, any manufactured home placed or substantially improved must meet the standards of this section.
5. An evacuation plan must be developed for evacuation of all residents of all new, substantially improved or substantially damaged manufactured home parks or subdivisions located within flood-prone areas. This plan shall be filed with and approved by the local floodplain administrator and the local emergency preparedness coordinator.

c. All recreational vehicles placed on sites must either:
1. Be on site for fewer than 180 consecutive days;
2. Be fully licensed and ready for highway use; or
3. Meet all the requirements for new construction, including anchoring and elevation requirements of this section.

d. A recreational vehicle is ready for highway use if it is on its wheels or jacking system, is attached to the site only by quick-disconnect type utilities and security devices, and has no permanently attached structures.

(6) *Floodways.* Located within areas of special flood hazard are areas designated as floodways. Since the floodway is an extremely hazardous area due to the velocity of floodwater, which carries debris and potential projectiles and has erosion potential, the following provisions shall apply:

a. Encroachments are prohibited, including fill, new construction, substantial improvements and other development, unless certification (with supporting technical data) by a professional engineer is provided demonstrating that encroachment will not result in any increase in flood levels during the base flood discharge.

b. A conditional letter of map revision (CLOMR) has been approved by FEMA. A letter of map revision must be obtained upon completion of the proposed development.

c. If subsection (5)a of this section is satisfied, all new construction and substantial improvements shall comply with all applicable flood hazard reduction provisions of this division.

d. The placement of manufactured homes (mobile homes) is prohibited except in an existing manufactured home (mobile home) park or subdivision. A replacement manufactured home may be placed on a lot in an existing manufactured home park or subdivision provided the anchoring standards and the elevation standards are met.

e. Permissible uses within floodways may include: general farming, pasture, outdoor plant nurseries, horticulture, forestry, wildlife sanctuary, game farm, and other similar agricultural, wildlife, and related uses. Also, lawns, gardens,

play areas, picnic grounds, and hiking and horseback riding trails are acceptable uses, provided that they do not employ structures or fill. Substantial development of a permissible use may require a no-impact certification. The uses listed in this subsection are permissible only if and to the extent that they do not cause any increase in base flood elevations or changes to the floodway configuration.

f. Map maintenance activities. The National Flood Insurance Program (NFIP) requires flood data to be reviewed and approved by FEMA. This ensures that flood maps, studies and other data identified in this ordinance accurately represent flooding conditions so appropriate floodplain management criteria are based on current data.

(7) *Requirement to submit new technical data.*

a. For all development proposals that impact floodway delineations or base flood elevations, the community shall ensure that technical or scientific data reflecting such changes be submitted to FEMA as soon as practicable, but no later than six months from the date such information becomes available. These development proposals include; but not limited to:

1. Floodway encroachments that increase or decrease base flood elevations or alter floodway boundaries;
2. Fill sites to be used for the placement of proposed structures where the applicant desires to remove the site from the special flood hazard area;
3. Alteration of watercourses that result in a relocation or elimination of the special flood hazard area, including the placement of culverts; and
4. Subdivision or large scale development proposals requiring the establishment of base flood elevations in accordance with this article.

b. It is the responsibility of the applicant to have technical data, required in accordance with this ordinance, prepared in a format required for a conditional letter of map revision or letter of map revision, and submitted to FEMA. Submittal and processing fees for these map revisions shall also be the responsibility of the applicant.

1. The local floodplain administrator shall require a conditional letter of map revision prior to the issuance of a floodplain development permit for:
2. Proposed floodway encroachments that increase the base flood elevation; and
3. Proposed development which increases the base flood elevation by more than one foot in areas where FEMA has provided base flood elevations but no floodway.
4. Floodplain development permits issued by the local floodplain administrator shall be conditioned upon the applicant obtaining a Letter of Map Revision from FEMA for any development proposal subject to this article.

5. Right to submit new technical data. The floodplain administrator may request changes to any of the information shown on an effective map that does not impact floodplain or floodway delineations or base flood elevations, such as labeling or planimetric details. Such a submission shall include appropriate supporting documentation made in writing by the local jurisdiction and may be submitted at any time.

(8) *Accessory structures.* A detached accessory structure or garage, the cost of which is greater than $3,000.00, must comply with the requirements as outlined in FEMA's Technical Bulletin 7-93 Wet Floodproofing Requirements or be elevated in accordance with this article or dry floodproofed in accordance with this article.

a. If accessory structures of $3,000.00 or less are to be placed in the floodplain, the following criteria shall be met:

1. Accessory structures shall not be used for any uses other than the parking of vehicles and storage;

2. Accessory structures shall be designed to have low flood damage potential;

3. Accessory structures shall be constructed and placed on the building site so as to offer the minimum resistance to the flow of floodwaters;

4. Accessory structures shall be firmly anchored to prevent flotation, collapse and lateral movement of the structure;

5. Service facilities such as electrical and heating equipment shall be installed in accordance with this article;

6. Openings to relieve hydrostatic pressure during a flood shall be provided below base flood elevation in conformance with this article; and

7. Accessory structures shall be built with flood resistance materials in accordance with Technical Bulletin 2, Flood Damage-Resistant Materials Requirements, dated 8/08, and available from the Federal Emergency Management Agency. Class 4 and 5 materials, referenced therein, are acceptable flood-resistant materials.

8. Swimming pool utility equipment rooms. If the building cannot be built at or above the BFE, because of functionality of the equipment then a structure to house the utilities for the pool may be built below the BFE with the following provisions:

9. The utilities must be anchored to prevent flotation and shall be designed to prevent water from entering or accumulating within the components during conditions of the base flood.

b. Elevators.

1. Install a float switch system or another system that provides the same level of safety necessary for all elevators where there is a potential for the

elevator cab to descend below the BFE during a flood per FEMA's Technical Bulletin 4-93 Elevator Installation for Buildings Located in Special Flood Hazard Areas.

2. All equipment that may have to be installed below the BFE such as counter weight roller guides, compensation cable and pulleys, and oil buffers for traction elevators and the jack assembly for a hydraulic elevator must be constructed using flood-resistant materials where possible per FEMA's Technical Bulletin 4-93 Elevator Installation for Buildings Located in Special Flood Hazard Areas.

c. Fill.

1. An applicant shall demonstrate that fill is the only alternative to raising the building to meet the residential and non-residential construction requirements of subsection 21-172(1) or (2), and that the amount of fill used will not affect the flood storage capacity or adversely affect adjacent properties. The following provisions shall apply to all fill placed in the special flood hazard area:

2. Fill may not be placed in the floodway unless it is in accordance with the requirements in this article.

3. Fill may not be placed in tidal or non-tidal wetlands without the required state and federal permits.

4. Fill must consist of soil and rock materials only. A registered professional geotechnical engineer may use dredged material as fill only upon certification of suitability. Landfills, rubble fills, dumps, and sanitary fills are not permitted in the floodplain.

5. Fill used to support structures must comply with ASTM Standard D-698, and its suitability to support structures certified by a registered, professional engineer.

6. Fill slopes shall be no greater than two horizontal to one vertical. Flatter slopes may be required where velocities may result in erosion.

7. The use of fill shall not increase flooding or cause drainage problems on neighboring properties.

8. Fill may not be used for structural support in the coastal high hazard areas.

9. Will meet the requirements of FEMA Technical Bulletin 10-01, Ensuring That Structures Built On Fill in or Near Special Flood Hazard Areas Are Reasonable Safe from Flooding.

(Code 1979, § 6-12052; Ord. No. 2015-046, 6-16-15; Ord. No. 2017-090, 12-5-17; Ord. No. 2023-026, 3-7-23)

Sec. 21-173. Standards for streams without established base flood elevations and floodways.

Located within the areas of special flood hazard established in section 21-127, where small streams exist but where no base flood data has been provided or where no floodways have been provided, the following provisions apply:

(1) No encroachments, including fill material or structures, shall be located within a distance of the stream bank equal to five times the width of the stream at the top of the bank or 20 feet on each side from the top of the bank, whichever is greater, unless certification by a professional engineer is provided demonstrating that such encroachments will not result in any increase in flood levels during the occurrence of the base flood discharge.

(2) New construction and substantially improved structures shall be elevated or flood proofed to elevations established in accordance with section 21-172(1) and (2) or the lowest floor (including basement) shall be elevated at least two feet above the highest adjacent grade.

(3) Base flood elevation data shall be provided for subdivision proposals and other proposed development (including manufactured home parks and subdivisions) which is greater than the lesser of 50 lots or five acres.

(4) Data from preliminary, draft, and final Flood Insurance Studies constitutes best available data. Refer to FEMA Floodplain Management Technical Bulletin 1-98 Use of Flood Insurance Study (FIS) Data as Available Data. If an appeal is pending on the study in accordance with 44 CFR Ch. 1, Part 67.5 and 67.6, the data does not have to be used.

(5) When base flood elevation (BFE) data is not available from a federal, state, or other source one of the following methods may be used to determine a BFE For further information regarding the methods for determining BFEs listed below, refer to FEMA's manual Managing Floodplain Development in Approximate Zone A Areas:

a. Contour Interpolation.

1. Superimpose approximate Zone A boundaries onto a topographic map and estimate a BFE.

2. Add one-half of the contour interval of the topographic map that is used to the BFE.

b. Data extrapolation. A BFE can be determined if a site within 500 feet upstream of a reach of a stream reach for which a 100-year profile has been computed by detailed methods, and the floodplain and channel bottom slope characteristics are relatively similar to the downstream reaches. No hydraulic structures shall be present.

c. Hydrologic and hydraulic calculations. Perform hydrologic and hydraulic calculations to determine BFEs using FEMA approved methods and software.

(Code 1979, § 6-12053; Ord. No. 2003-028, 5-7-03; Ord. No. 2015-046, 6-16-15; Ord. No. 2016-063, 8-2-16; Ord. No. 2017-090, 12-5-17)

Sec. 21-174. Standards for streams with established base flood elevations but without floodways.

Along rivers and streams where base flood elevation (BFE) data is provided but no floodway is identified for a special flood hazard area on the FIRM or in the FIS, the following provisions apply:

(1) No encroachments including fill, new construction, substantial improvements, or other development shall be permitted unless certification with supporting technical data by a registered professional engineer is provided demonstrating that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood level more than one foot at any point within the community.

(Ord. No. 2015-046, 6-16-15)

Sec. 21-175. Standards for subdivision proposals.

(a) All subdivision proposals and other proposed new development shall be consistent with the need to minimize flood damage and are subject to all applicable standards in these regulations.

(b) All subdivision proposals and other proposed new development shall have public utilities and facilities such as sewer, gas, electrical and water systems located and constructed to minimize flood damage.

(c) All subdivision proposals and other proposed new development shall have adequate drainage provided to reduce exposure to flood hazards.

(d) The applicant shall meet the requirement to submit technical data to FEMA when a hydrologic and hydraulic analysis is completed that generates base flood elevations.

(Code 1979, § 6-12054; Ord. No. 2015-046, 6-16-15)

Note—Formerly numbered as § 21-174.

Sec. 21-176. Standards for areas of shallow flooding (AO zones).

Located within the areas of special flood hazard established in section 21-127 are areas designated as shallow flooding areas (AO zones). These areas have special flood hazards associated with base flood depths of one to three feet where a clearly defined channel does not exist and where the path of flooding is unpredictable and indeterminate; therefore, the following provisions apply:

(1) All new construction and substantial improvements of residential structures shall have the lowest floor, including basement, elevated to the depth number specified on

the flood insurance rate map, in feet, above the highest adjacent grade. If no depth number is specified, the lowest floor, including basement, shall be elevated at least three feet above the highest adjacent grade.

(2) All new construction and substantial improvements of non-residential structures shall:

a. Have the lowest floor, including basement, elevated to the depth number specified on the flood insurance rate map, in feet, above the highest adjacent grade. If no depth number is specified, the lowest floor, including basement, shall be elevated at least three feet above the highest adjacent grade; or

b. Together with attendant utility and sanitary facilities, be completely flood-proofed to or above that level so that any space below that level is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy.

(3) All structures on slopes must have drainage paths around them to guide water away from the structures.

(Code 1979, § 6-12055; Ord. No. 2015-046, 6-16-15)

Note—Formerly numbered as § 21-175.

Chapter 22

STREETS, SIDEWALKS AND OTHER PUBLIC PLACES*

Article I. In General

Sec. 22-1. Control and management of city equipment and materials used for working on streets.
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Secs. 22-3—22-30. Reserved.

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Sec. 22-33. Assessment records.
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Article III. Obstructions

Sec. 22-71. Prohibited; removal.
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Sec. 22-74. Pedestrians on sidewalks.
Secs. 22-75—22-100. Reserved.

***Cross references—**Any ordinance dedicating, naming, establishing, locating, relocating, opening, paving, widening, vacating, etc., any street or public way in the city saved from repeal, § 1-11(5); any ordinance providing for local improvements and assessing taxes therefor saved from repeal, § 1-11(9); painting advertising matter on sidewalks or other public property, § 3-3; livestock and fowl running at large, § 4-31; buildings and building regulations, ch. 5; sweeping of litter into streets or sidewalks, § 8-237; sidewalk maintenance, § 8-331 et seq.; sidewalk vending, § 11-251 et seq.; motor vehicles and traffic, ch. 12; parks and recreation, ch. 15; planning, land development and zoning, ch. 17; stormwater management and sedimentation control, ch. 21; utilities and engineering, ch. 23; vehicles for hire, ch. 24.

State law reference—Authority to maintain streets, ways and bridges within the city limits, S.C. Code 1976, § 5-27-120.

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Article VIII. Festivals or Other Public Events

Sec. 22-301. Generally.

ARTICLE I. IN GENERAL

Sec. 22-1. Control and management of city equipment and materials used for working on streets.

The entire control of the city street equipment, materials and implements used in working on the streets of the city shall be confided to the superintendent of streets, under the direction of the director of public services, who shall be responsible to the city manager. The superintendent of streets shall be exclusively responsible for the care and management thereof.
(Code 1979, § 4-2001)

Sec. 22-2. Discharging water or other liquids on streets or sidewalks.

It shall be unlawful for any owner, occupant, tenant or operator of any premises in the city to consistently, continuously or frequently cast, drain or discharge water or other liquid upon the streets or sidewalks of the city, or to permit such to be done, or to occupy or manage such premises so that water or other liquid will be so cast, drained or discharged upon the streets or sidewalks; provided, however, that the provisions of this section shall not apply to rainfall.
(Code 1979, § 4-2002)

Secs. 22-3—22-30. Reserved.

ARTICLE II. PERMANENT IMPROVEMENTS AND SPECIAL ASSESSMENTS*

Sec. 22-31. Consent of property owners required.

When permanent improvements to any streets or sidewalks, or parts of either, in the city are intended to be made, and a part of the costs of such improvements is to be assessed against the abutting property, before such improvements are ordered, there shall first be filed with the city clerk the written consent of at least two-thirds of the owners of property abutting on such streets or parts of streets or sidewalks to be improved, agreeing that such improvements shall be made; provided, however, that the city shall pay or cause to be paid at least one-half of the costs of such improvements and shall make provisions for the payment thereof.
(Code 1979, § 4-2011)

Sec. 22-32. Assessments generally.

Upon the filing of such written consent as provided in section 22-31 and the determination by the city council to make such improvements, the city council shall by ordinance or resolution order such improvements, and in such ordinance shall provide that the city shall pay or cause

*__State law reference—__Authority to provide for payment of improvements of streets and sidewalks by levying proportionate assessments upon owners of property immediately abutting such streets or sidewalks, S.C. Code 1976, § 5-27-310.

to be paid one-half of the cost thereof, and shall thereupon proceed to have the costs of such improvements ascertained and shall have assessment records prepared showing the amount to be assessed against each particular piece of property in proportion to its frontage.
(Code 1979, § 4-2012)

Sec. 22-33. Assessment records.

In making assessments under this article, if the improvement is for a sidewalk, then the assessment for such sidewalk shall be upon the property immediately abutting thereon, and if for a roadway, then upon the property abutting upon both sides of the street; provided that such assessments shall not exceed one-half of the total cost of the improvements, respectively. The assessment records as prepared shall be filed with the city clerk, whose duty it shall be after receipt of the assessment records to give notice by publication in a newspaper published in the city, in one issue thereof, that such assessment records are in his office and will there remain for a period of one week from the date of publication of such notice. During such period of one week any persons concerned may inspect the assessment records and file in writing with the city clerk exceptions or objections to such assessments. Any number of assessment rolls may be included in one notice.
(Code 1979, § 4-2013)

Sec. 22-34. Exceptions or objections to assessments; confirmation of assessments.

Should no objections be made pursuant to section 22-33, or if objections be made, when the objections have been disposed of, the city council shall by ordinance or resolution confirm such assessments. Should exceptions or objections to any such assessments be filed with the city clerk during the period mentioned in section 22-33, a time for the hearing of such exceptions or objections by the city council shall be fixed by the mayor and notice thereof given by at least one publication in a newspaper published in the city at least three days before such hearing, and at such hearing such exceptions shall be passed upon by the city council. No appeal from the order of confirmation of assessments shall be permitted and no attack upon such assessments shall be made after ten days from the date of confirmation by the city council. Upon confirmation of assessments, a record shall be prepared and kept by the accounting division showing the names of the owners, the location of the property and the amount of assessments and the time of payment and such other entries that may seem proper for a record of the assessments.
(Code 1979, § 4-2014)

Sec. 22-35. Enforcement of assessments.

The assessments laid pursuant to this article, and each installment thereof, shall constitute a lien upon the property so assessed from the date of entry on the assessment lien records until the expiration of five years from the date when the final payment is due and payable, unless sooner payment is made, coordinate with the lien for city taxes, and payment thereof shall be enforced as the payment of city taxes is enforced.
(Code 1979, § 4-2015)

Sec. 22-36. Sale of property does not release lien.

The sale of the property assessed pursuant to this article for the enforcement of the lien for any one or more of the installments due upon such property shall not release such property from the lien of the remaining installments as and when the installments shall become due. The purchaser of such property at the sale for nonpayment of any installment which may be due and unpaid shall take the property subject to the lien of the remaining unpaid installments.
(Code 1979, § 4-2016)

Sec. 22-37. Payment of assessments by installments; interest.

The assessments laid pursuant to this article shall be due and payable in ten annual installments, one each year for ten successive years upon the date fixed by the city council in an ordinance or resolution confirming the assessments. All deferred payments (annual installments) shall bear interest from the date when the work of making such improvements is commenced, with the accrued interest on all deferred payments (annual installments) to be payable annually at the time the annual installment is due, and shall be enforceable and collectible in the same manner as is provided in this article for assessments.
(Code 1979, § 4-2017)

Sec. 22-38. Default in payment of assessment.

Upon default in the payment of any installment or deferred portion of any assessments under this article, or upon default in the payment of any interest thereon as the interest shall become payable, then the whole assessment, with the interest thereon, may at the option of the city council be declared to be immediately due and payable and collectible, with such penalties and costs as are now provided for delinquent city taxes.
(Code 1979, § 4-2018)

Sec. 22-39. Entry of satisfaction of assessment in assessment book.

Whenever full payment of a paving assessment shall have been made by the abutting owner, it shall be the duty of the supervisor of the accounting division to make entry of such satisfaction on such assessment book, and the lien shall thereby be extinguished.
(Code 1979, § 4-2019)

Sec. 22-40. Prepayment of assessment.

Property owners shall have the right at any time to pay in full all unpaid installments of assessments, and interest thereon, provided that, if such payment is made other than on the date on which an installment is due, interest on all such unpaid installments shall be paid up to the date of the next maturing installment.
(Code 1979, § 4-2020)

Sec. 22-41. Issuance of bonds or certificates of indebtedness.

The city council is authorized and empowered to issue certificates of indebtedness or assessment bonds showing the amounts of money due to the city by property owners as deferred payments or installments upon such assessments, and to sell any of such certificates or bonds, or to borrow money by pledging any of them as collateral security for the payment of such debt, and in either event of sale or collateral pledge of such certificate of indebtedness or assessment bonds, or any of them, to pledge the faith and credit of the city for the payment thereof, and to guarantee the payment of the certificates or bonds for and in the name of the city.
(Code 1979, § 4-2021)

Sec. 22-42. Sinking fund.

All installments and interest collected on the assessments under this article, whether paid in advance or not, shall be kept in a sinking fund for the purpose of paying off certificates of indebtedness or assessment bonds and interest thereon as they shall become due.
(Code 1979, § 4-2022)

Sec. 22-43. Amount and form of bonds and certificates of indebtedness.

The amount, form and maturity of certificates of indebtedness or assessment bonds and the disposition and guarantee thereof under the provisions of section 22-41 shall be such as may be fixed by the city council.
(Code 1979, § 4-2023)

Sec. 22-44. Report of sale or transfer of property.

The grantor and grantee of any property, or part of any property, sold or transferred after assessment has been laid thereon pursuant to this article, and before such assessment lien has been extinguished as provided in this article, shall file in writing with the city clerk and treasurer, within ten days after every such sale or transfer, the name of such grantor and grantee, an accurate description of the property so sold or transferred, and the date thereof.
(Code 1979, § 4-2024)

Secs. 22-45—22-70. Reserved.

ARTICLE III. OBSTRUCTIONS

Sec. 22-71. Prohibited; removal.

(a) It shall be unlawful to create or allow an obstruction of any street within the city without the consent of city council.

(b) Any obstruction found in any street within the city, after due notice to remove the obstruction and refusal or neglect to do so, shall be removed at the expense of the person causing such obstruction. On knowledge or information given to the city manager that any

street or part of a street is occupied or obstructed, by any person, without the consent of the city council, the city manager shall notify the person so occupying or obstructing the street or a part of a street to remove such obstruction or occupancy within three days. The city manager is also further authorized to remove the obstruction or occupancy at the expense of the party occupying or obstructing such street or thoroughfare, without such notice, whenever immediate harm to the rights of the city makes any delay in the enforcement of this section improper.

(c) For the purposes of this section, the term "obstruction" means any object other than a lawfully parked motor vehicle.

(d) For the purposes of this section, the term "street" shall include any area within the street right-of-way including the area between the curb-line and adjacent property lines.
(Code 1979, § 4-2051; Ord. No. 2002-016, 4-17-02)

Sec. 22-72. Congregating on streets and sidewalks.

All persons are forbidden from congregating and obstructing the sidewalks or streets in front of churches, hotels, business places and other buildings of public resort within the corporate limits of the city. The chief of police and any member of the police force shall have power to arrest and commit any person offending in any of the provisions of this section.
(Code 1979, § 4-2052)

Sec. 22-73. Obstructing sidewalks with barrels, boxes or merchandise.

It shall be unlawful for any person to obstruct the pavement or sidewalks with barrels or boxes or with any article of merchandise.
(Code 1979, § 4-2053)

Sec. 22-74. Pedestrians on sidewalks.

All pedestrians shall be required to keep to the right and to avoid unnecessary stops on the sidewalks so as to avoid blocking of the sidewalk, crosswalks or the entrance to any store or building.
(Code 1979, § 4-2054)

Secs. 22-75—22-100. Reserved.

ARTICLE IV. BANNERS OVER STREETS AND RIGHTS-OF-WAY

Sec. 22-101. Generally.

Banners may be hung over or within the rights-of-way of streets and roads in the city only as permitted in this article.
(Code 1979, § 4-2061; Ord. No. 96-57, 11-6-96)

Sec. 22-102. "Banner" defined.

As used in this article, the term "banner" means a sign made of cloth or other flexible material suspended by ropes or cables from two or more utility poles or other similar supports.
(Code 1979, § 4-2062; Ord. No. 96-57, 11-6-96)

Cross reference—Definitions generally, § 1-2.

Sec. 22-103. Permitted banners; contents.

(a) All banners must advertise or publicize a civic, cultural or philanthropic event scheduled to take place within the city on a specified date.

(b) The event must be one that the public is encouraged to attend, such as festivals and walk-a-thons, and not a celebratory or congratulatory occurrence, and must be open to all persons without regard to race, religion, gender or national origin. A reasonable fee may be charged for admission to the event.

(c) The event must be sponsored by:

(1) A religious, charitable, scientific or educational organization that qualifies for exemption from federal income taxation pursuant to section 501(c)(3) of the Internal Revenue Code of 1986;

(2) A nonprofit civic league operated exclusively for the promotion of social welfare;

(3) A nonprofit horticultural organization; or

(4) A nonprofit business league or chamber of commerce.

The sponsor must certify that paid advertising is not the primary means of advertising the event.

(d) A banner may bear the name or trademark of not more than one business enterprise that is providing financial support for the event, but the name or trademark of the business enterprise may not cover more than 20 percent of the total area of the banner. A banner may not contain any other commercial message.

(e) No banner may contain any deceptive, defamatory or obscene matter.
(Code 1979, § 4-2063; Ord. No. 96-57, 11-6-96)

Sec. 22-104. Materials and construction; maximum size.

All banners must be made of nylon net material or be of such a design as allows for air flow through the banner to reduce strain on the supporting poles. The city may cut air holes in the material as it sees fit. The maximum size for a net-type banner shall be 50 inches in height and 50 feet long. The maximum size for other type banners shall be 48 inches high by 40 feet long. Each banner must have a one-quarter-inch rope sewn into the border on the top and the bottom.
(Code 1979, § 4-2064; Ord. No. 96-57, 11-6-96)

Sec. 22-105. Permitted locations.

Banners may be hung across or within rights-of-way only at the following intersections:

(1) Across Gervais Street at the Congaree River Bridge.

(2) Across Gervais Street at Park Street.

(3) Across Gervais Street at Sumter Street.

(4) Parallel to Gervais Street at Bull Street.

(5) Across Elmwood Avenue at Lincoln Street.

(6) Across 2300 Bull Street in front of DHEC.

(7) Harden Street and Green Street.

(8) Harden Street and Devine Street.

(9) Blossom Street and Saluda Avenue.

(10) Senate Street.

(11) Other such locations as approved by traffic engineering division.

(Code 1979, § 4-2065; Ord. No. 96-57, 11-6-96)

Sec. 22-106. Placement and removal.

(a) All banners shall be hung and removed by city personnel. The fees specified in this article must be paid before banners will be hung.

(b) Banners may be hung not more than one week prior to the beginning of the event to which they relate, and the banners will be removed as soon as practicable following the conclusion of the event.

(c) The organization requesting the banners must provide the banners and all rope or cable necessary to hang them. The city will not be responsible for any damage to banners, regardless of how such damage occurs.

(d) No more than one banner may be erected for any single event.

(Code 1979, § 4-2066; Ord. No. 96-57, 11-6-96)

Sec. 22-107. Fee for hanging banners.

A fee of $100.00 must be paid to the city in advance for the hanging and removal of each banner.

(Code 1979, § 4-2067; Ord. No. 96-57, 11-6-96)

Sec. 22-108. Application for approval.

All requests to hang banners must be in writing and must state the following information:

(1) The name, the address and the telephone number of the organization making the request, and the name of the individual to whom communications concerning the request should be directed;

(2) A description of and the date of the event for which banners are requested;

(3) The locations for which banners are requested;

(4) A statement that the event will be open to all persons without regard to race, religion, gender or national origin, subject only to the payment of a reasonable admission fee, if applicable; and

(5) Information sufficient to enable the city manager to determine whether the organization requesting the banners is:

a. A religious, charitable, scientific or educational organization that qualifies for exemption from federal income taxation pursuant to section 501(c)(3) of the Internal Revenue Code of 1986;

b. A nonprofit civic league operated exclusively for the promotion of social welfare;

c. A nonprofit horticultural organization; or

d. A nonprofit business league or chamber of commerce.

(Code 1979, § 4-2068; Ord. No. 96-57, 11-6-96)

Sec. 22-109. Administration and enforcement; appeals; exceptions.

(a) The city manager or his designee shall administer and enforce the terms of this article. Any decision made by a designee of the city manager disapproving a request to hang a banner may be appealed to the city manager, whose decision shall be final.

(b) Requests to hang banners will be considered and approved, if appropriate, in the order in which they are received.

(c) The terms of this article do not apply to banners hung by the city for its own purposes.
(Code 1979, § 4-2069; Ord. No. 96-57, 11-6-96)

Secs. 22-110—22-130. Reserved.

ARTICLE V. UTILITY INSTALLATIONS IN STREETS*

Sec. 22-131. Permit.

(a) *Required; submission of plans.* Prior to constructing any underground pipeline, utility line, cable line, etc., under a paved public street, a permit shall be secured from the office of the city engineer. The request for the permit shall be accompanied by an appropriate drawing, if applicable, showing the location of the proposed utility installation and any other pertinent information necessary to determine conflicts with other utilities as requested by the city engineer.

(b) *Specifications for construction.* The construction will be accomplished in accordance with specifications of the city engineer.

***Cross reference—**Utilities and engineering generally, ch. 23.

(c) *Fee.* At the time of filing the application, a permit fee to cover inspection shall be paid to the city in the amount of $10.00.
(Code 1979, § 4-2101)

Sec. 22-132. Boring required on major streets.

Only bored or cased crossings shall be permitted within the paved portion of major or arterial streets, except when soil and other conditions make boring impractical as determined by the city engineer, or when an emergency is deemed to exist. All crossings shall be a minimum of 24 inches below the paved surface unless otherwise specifically approved by the city engineer.
(Code 1979, § 4-2102)

Sec. 22-133. Emergency cutting.

An emergency shall be deemed to exist when the preservation of the peace, health and safety of the city and its inhabitants is jeopardized. The determination of an emergency shall be made by an official of the utility designated in writing filed with the city engineer. In crossing a major or arterial roadway when it is deemed an emergency, a cut may be made only after written approval by the designated official of the utility, which must be forwarded to the city engineer within 24 hours after the cut is made. A paving cut permit fee to cover inspection shall be charged, and the applicant shall be responsible for permanent repair of the cut in accordance with the current city specifications.
(Code 1979, § 4-2103)

Sec. 22-134. Inspections.

Line, boring or paving cut repairs must be inspected and approved by the city engineer upon completion of the project and again one year from that date, during which period the permit applicant and/or owner shall remain liable for the cost of repairs and any damages which may be due the city arising from such work.
(Code 1979, § 4-2104)

Sec. 22-135. Bond.

In addition to the permit fee to cover inspection, the applicant for a permit under this article shall file with the city clerk a bond in the sum of $5,000.00 approved by the city manager and the city attorney as to form.
(Code 1979, § 4-2105)

Sec. 22-136. Payment of costs of construction and relocation.

Prior to construction of any underground utility line, pipeline, cable line, etc., under a paved street, the applicant shall agree as a condition of the permit that the underground utility line, pipeline, cable line, etc., shall be constructed at the applicant's sole risk and

expense, and that upon demand by the city, when such demand is deemed necessary for a public street purpose, any underground utility line, pipeline, cable line, etc., shall be relocated by the applicant at the applicant's sole expense.
(Code 1979, § 4-2106)

Sec. 22-137. Underground utilities.

It shall be unlawful to erect, construct, maintain or use any pole, overhead wires or associated structure for new service or in replacement of existing service, excepting such poles as are necessary to support street lighting, traffic signals, and transmission lines above 43,000 volts.
(Ord. No. 2005-012, 2-16-05)

Secs. 22-138—22-160. Reserved.

ARTICLE VI. SPECIAL EVENTS AND PARADES*

Sec. 22-161. Enforcement of other laws.

Nothing contained in this article shall prohibit the authority of any law enforcement officer to arrest a person engaged in any act or activity granted in this article if the conduct of such person violates the laws of the state, provisions of this Code or other ordinances of the city, or unreasonably obstructs the public use of public streets or sidewalks, or if such person engages in acts that cause a breach of peace, undue disturbance, interference or molestation of other persons making lawful use of the space in a peaceful manner.
(Ord. No. 2023-064, 6-20-23)

Sec. 22-162. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Event means any special event or the use of a public facility pursuant to park or recreational facility permit.

Event organizer means any person who conducts, manages, promotes or organizes an event.

***Editor's note—**Ord. No. 2023-064, adopted June 20, 2023, repealed the former art. VI, §§ 22-161—22-173, and enacted a new art. VI as set out herein. The former art. VI pertained to parades and derived from the 1979 Code, §§ 2-3031—2-3043.

Event promoter means any person who:

(1) Is directly or indirectly responsible for the organization of an event, as evidenced by activities such as contracting with the principals, selecting entertainment, sponsoring, advertising or otherwise holding out an event to members of the general public, inviting participants, or renting or controlling the site of an event; and

(2) Directly or indirectly receives or shares in the following:

a. Admission or entrance fees paid by participants or spectators;

b. Compensation, consideration or other revenue from sponsors of or private donors to the event;

c. Revenues from concessions or other sales; or

d. Revenues from the control of vending or concession sites or permits, including nonresident event promoters who do business within the city.

Festival means a thematic, organized, site-specific celebration, performance, exhibition open to the general public.

Goods means wares, personal property, merchandise or any other similar item or object that is generally sold.

Parade means any parade, march, ceremony, show, exhibition, pageant or procession of any kind, or rallies or demonstrations, or any similar display in or upon any street, sidewalk, public place, park or other outdoor places owned or under control of the city.

Parade permit means a permit as required by this article.

Public areas means public sidewalks, parks, playgrounds and other pedestrian areas, as may be limited by city council resolution.

Sidewalk means that portion of a highway other than the roadway, set apart by curbs, barriers, markings or other delineation for pedestrian travel.

Signage means any sign, pennant, flag, banner, inflatable display or other attention-seeking device, including but not limited to:

(1) *Temporary site-specific signage.* Printed signs and/or banners bearing the name of a specific event intended to identify the location of that event.

(2) *Temporary welcome signage.* Printed signs and/or banners bearing the name of a specific business or entity and a welcome statement referencing the event participants and spectators.

Special event means an entertainment, amusement, athletic, political or other event held on private property or in the exclusionary use of public property, which is reasonably foreseeable to involve a large assemblage of vehicles and/or persons, impose traffic congestion, impact required parking, involve sanitation and security concerns, or the erection of structures or operation of rides, games or machines, that may affect city residents' or visitors' health, safety, or welfare or may require excessive public safety cost in responding

to and/or managing the event to preserve the public peace. A special event has a specific start and stop date, except for city sponsored events. A series of similar events may be considered a single special event. A special event can include but is not limited to: filming; concerts; parades; circuses; fairs; festivals; block parties; automobile or motorcycle rallies; community events; mass participation sporting competitions such as marathons and running events; bicycle and other wheeled races or tours; spectator sports such as football, basketball and baseball games; and golf tournaments.

Special event permit means a permit issued for a special event.

Special event venue means that defined area identified on a submitted site plan approved by the city manager or designee for which a special event permit has been issued.

Street means a public right-of-way or place of whatever nature, publicly maintained and open to use of the public for purposes of vehicular or pedestrian travel. Street includes highways, alleyways, sidewalks and any other public area that accommodates vehicular or pedestrian travel.

Tax-exempt nonprofit organization means an organization that is exempt from payment of income taxes by federal or state law and which has been in existence for a minimum of six months preceding the date of application for a special event permit or other permit. This shall include charities, 501(c)(3) organizations, civic groups, fraternal organizations and mutual benevolent aid societies. Appropriate official documentary proof may be required.

Vendor means any person who sells or offers to sell any goods, food or beverages within a special event venue or public facility during a facility use, including the event organizer or any person who contracts with the event organizer for space within the special event venue or public facility in order to vend goods.
(Ord. No. 2023-064, 6-20-23)

Sec. 22-163. Compliance with other laws.

The granting of any permit under this article shall not eliminate:

(1) Requirements for any business license or any other permits or licenses which may be prescribed by any other federal, state or local statutes, ordinances, rules and regulations;

(2) Compliance with any other applicable federal, state, or local statutes, ordinances, rules or regulations; or

(3) Compliance with regulations regarding the concentration of persons, animals, equipment or vehicles at access points or other areas which substantially damages planting or landscaping on public or private property.
(Ord. No. 2023-064, 6-20-23)

Sec. 22-164. Recovery of excessive public safety costs.

(a) In addition to all other civil and criminal penalties provided by law, the city shall be entitled to recover from the responsible party the cost of an excessive public safety response associated with an event, whether permitted or unpermitted, whether occurring inside or outside the city limits, that directly impacts city residents or city resources. Excessive public safety costs may be recovered in any manner prescribed by law. Event promoters and event organizers that promote, stage, conduct, organize or sponsor permitted or unpermitted events shall be held accountable and shall be responsible for the cost of the city's additional expenditure of public resources as a result of the event. For purposes of this section, "excessive public safety response" means the deployment or dispatch of law enforcement officers, the need for public safety personnel or emergency vehicles, or code enforcement or public works equipment or personnel due to an observation or report of public disturbances, public health or safety or code violations as a result of an event when compared to the usual frequency or intensity of law or regulation enforcement. Excessive public safety response costs also include the cost of any public safety response caused by the failure of the permittee to adequately plan for the event or abide by the terms and conditions of the event permit. Excessive public safety response costs do not include protection of the attendees of a free speech event from hostile members of the public or counter-demonstrations.

(b) Responsible parties for excessive public safety costs shall include any permittee, event organizer, event promoter, event sponsor, property owner or other individual or entity that knows or should have known that the event, whether permitted or unpermitted, could result in the deployment of public resources to protect or preserve the public health, safety or welfare. Responsible parties shall be jointly and severally liable for the additional expenditure of public resources or excessive public safety response costs.
(Ord. No. 2023-064, 6-20-23)

Sec. 22-165. Miscellaneous provisions applicable to this article, as well as unpermitted events.

(a) The city shall determine when or if an event requires the closure of the entire street, a portion of the street or no street closure. Closure of a street may involve additional personnel and the placement of physical barriers for public safety.

(b) Sound amplification carried by a person (ex., loudspeakers or bullhorns) is prohibited when the sound is louder than an average conversational level at a distance of 100 feet. Parades and public assemblies with permits must identify sound amplification devices that are too large to be carried by one person or that employ marching musicians or groups of performers.

(c) Any special event permit is subject to revocation by the city manager or designee, police chief or designee or fire chief or designee on the following grounds:

(1) Due to emergency or unforeseen conditions that may arise before or during the course of the event for which it is granted;

(2) To preserve public health, safety and welfare;

(3) For violation of any law or regulation by the participants, applicant or event organizer;

(4) If the event cannot be conducted without violating any condition of the permit or is being conducted in violation of any condition of the permit;

(5) If the event organizer or any person associated with the event organizer or facility use fails to obtain any other permit or license required by the City Code or ordinance, state law or federal law;

(6) If the permit was issued in error or contrary to law; or

(7) If the information provided in the application has been falsified or misrepresented.

(d) The city manager or designee, police chief or designee or fire chief or designee may modify or amend any permit or requirements in keeping with the nature of the approved event and as circumstances dictate.

(e) For public safety reasons the following are prohibited at all events, including but not limited to protests, demonstrations, pickets and extraordinary events, and declared contraband and subject to confiscation. These prohibitions may be modified or waived by the city manager or designee based upon the nature of the event:

(1) Open flames except in stationary cooking devices essential to the event.

(2) Any combustible or flammable solids, liquid or gasses, including lighters, torches, etc., except in stationary cooking devices essential to the event.

(3) Sticks, poles, selfie sticks or other similar elongated solid objects capable of inflicting bodily harm as a striking or stabbing object, excluding commercially available corrugated cardboard tubing as the supporting article for signage, flags and the like.

(4) Backpacks, satchels, bags, coolers or similar personally carried containers, except when said container is completely clear and see-through. This prohibition is not applicable to facility use permits and may be waived or modified when checkpoint entry to the area of assembly is monitored by either private internal security approved by the city or by law enforcement officers with examination of the contents prior to entry.

(5) Any firearm or ammunition, concealed or otherwise, except as an essential part of a recognized active national military observation of governmentally sponsored event.

(6) Any mechanical or handmade contrivance that launches any projectile of solid, liquid or gaseous composition, including aerosols/pressurized canisters.

(7) Any stabbing, cutting or slicing blade, whether of metal or other solid composition.

(8) Any striking object such as a bat, stick, brass knuckles, martial arts weapons, implement handles and the like, which could inflict bodily injury.

(9) Any facial mask, headgear or cloth worn over any portion of the face which prevents facial identification of a person over 16 years of age (see S.C. Code 1976, § 16-7-110).

(10) Any carried object that resembles or serves the purpose of a shield.

(11) Any armor or defensive covering that resembles or serves the purpose of defensive body armor.

(12) Drones and other unmanned aircraft systems.

(13) Glass and/or thermal containers.

(14) Individually carried signage exceeding the size restriction of 24 inches by 36 inches by ¼ inch provided however, flexible banners with a supporting rigid spine carried by two persons are permitted in roadway parades and processions along with ornamental objects such as mock swords, pennants, flags and rifles in the context of a marching band of a school or military organization.

(15) Wagons or carts.

(f) The permittee shall carry a copy of the permit on his/her person during the event and will be designated as the contact person available to law enforcement for the transmission of messages or directions to all persons participating or attending the event. If the permittee is not present on site, another individual must carry the permit and make his/her position known to law enforcement on site.

(g) All persons participating in or attending the event shall obey the lawful commands of any law enforcement officer and shall conduct themselves in a lawful manner at all times.

(h) The normal flow of traffic shall not be disrupted except in instances where a law enforcement officer or city employee under a law enforcement officer's direction performs this disruption.
(Ord. No. 2023-064, 6-20-23)

Sec. 22-166. Special event permit required; exceptions.

(a) No person shall conduct, promote, manage or engage in any special event unless a special event permit is obtained pursuant to this article.

(b) This section shall not apply to the following:

(1) Funeral processions supervised by a licensed mortuary;

(2) Picketing as permitted by city ordinance;

(3) Students going to and from school classes or participating in educational activities, providing such conduct is under immediate direction and supervision of the proper school authorities; or

(4) A parade, event or performance that is under the control of the City of Columbia and is conducted on city streets, rights-of-way or any other city owned or managed property.

(5) Governmental agencies acting in the course and scope of their authority.
(Ord. No. 2023-064, 6-20-23)

Sec. 22-167. Special event applications; contents; review process.

(a) An applicant shall submit an application to the city manager or her designee accompanied by the applicable special events permit fee set forth on the city's special events fee schedule, as approved by city council.

(b) The advance-filing period for each type of special event shall be stated on each application. Failure to submit an application within the specified time will result in the application being deemed incomplete.

(c) In consideration of the high demand on public services, the city manager may limit acceptance of special event applications.

(d) The application for each type of special event shall contain all pertinent information for the type of event, including but not limited to:

(1) The name, address and telephone number of the applicant.

(2) The dates and times of the special event.

(3) A certification that the applicant will be financially responsible for any city fees or costs that may be imposed for the event.

(4) The name, address and telephone number of the parade chairman or event organizer, if any, and the chief officer of the event organizer, if any.

(5) If the special event is designed to be held by, on behalf of or for any organization other than the applicant, the applicant shall provide documentation from such organization:

a. Authorizing the applicant to apply for the special event permit on its behalf; and

b. Certifying that the applicant will be financially responsible for any costs or fees that may be imposed for the event.

(6) A copy of the tax exemption letter issued to any applicant claiming to be a tax-exempt nonprofit organization.

(7) A statement of the purpose of the special event.

(8) A statement of fees to be charged to attendees or participants for the special event.

(9) The proposed signage, boundaries, location, map, dates, times, routes, alternate routes, staging areas, parking or disbanding stands or areas.

(10) The approximate number of persons and types and number of animals, structures or vehicles involved in the special event and the parking plan for vehicles.

(11) The plan for trash removal and special event breakdown and clean-up.

(12) The number of bands or other musical units and the nature of any equipment to be used to produce sounds or noise.

(13) The number and location of portable sanitation facilities.

(14) Other equipment or services necessary to conduct the special event with due regard for participant and public health and safety.

(15) The number of persons proposed or required to monitor or facilitate the special event and provide spectator or participant control and direction using city streets, sidewalks or facilities.

(16) Provisions for first aid and/or emergency medical services.

(17) Insurance and surety bond information.

(18) Any special or unusual requirements that may be imposed or created by virtue of the proposed special event.

(19) Full information on the location, number and names of vendors, and the types of goods or services intended to be marketed within the boundaries of the special event.

(20) Whether alcohol will be sold or provided.

(21) Any other information required by the city manager or her designee.

Sec. 22-168. Criteria for issuance of special event permit.

(a) In reviewing an application for a special event permit, the city manager or designee shall consider the following:

(1) Whether the special event will substantially interrupt the safe and orderly movement of other traffic contiguous to its route;

(2) Whether the special event will require the diversion of a number of law enforcement officers to properly provide adequate protection to the remainder of the city;

(3) Whether the concentration of persons, animals, equipment or vehicles at assembly points or other areas will substantially interfere with adequate fire and police protection of, or ambulance service to, areas or near such areas or will hinder the movement of firefighting equipment;

(4) Whether the special event is reasonably likely to result in violence to persons or property causing serious harm to the public;

(5) Whether the special event is to be held for the primary purpose of advertising a product, goods or services and is designed to be primarily for profit.

(6) Whether the route has been requested recurrently in prior years and is too disruptive to residents or businesses;

(7) Whether the proposed use of public property, right-of-way or facility will unduly interfere with the normal use of the public property, right-of-way or facility by the city or the general public. Consideration will be given to the number of people

expected to be in attendance, the primary purpose of the space, other previously permitted events occurring nearby or in the same space and close in time to the proposed event. The appropriateness of the size of space requested for the type of activity proposed will be assessed so that limited space will not be expected to hold a greater number of people or large space is not set aside for a limited number of people.

(8) Whether the concentration of persons within the special event presents a public health hazard based upon guidance from public health authorities.

(9) Whether the special event is proposed on the same date or in close proximity to another special event such that the proposed special event may compromise public safety or the ability to provide public services.

(10) Any other factor(s) the city manager or designee deems relevant.

(b) The permittee shall provide proof of comprehensive general liability insurance with combined single limits of $1,000,000.00 from an A-rated insurer authorized to do business in South Carolina. Based on the nature of the special event, the city manager or designee, in consultation with the director of insurance and risk services or designee, may require increased or decreased coverage amounts and/or additional coverage types: Such insurance shall:

(1) Name the City of Columbia, its officers, employees and agents as additional insureds;

(2) Designate that such insurance is primary without right of contribution from any other insurance carried by the additional insureds;

(3) Contain a waiver of subrogation in favor of the additional insureds;

(4) Provide that the insurer will give the city written notice at least 30 days in advance of any cancellation or material change to the insurance; and

(5) Contain no exclusion or endorsement that negates coverage for the additional insureds relating to the negligence of the additional insureds.

(c) Except for special events involving the sale, provision or consumption of alcoholic beverages or traffic control issues, the foregoing insurance requirements may be waived by the city manager or designee, in consultation with the city's risk management department, based on consideration of the following factors:

(1) Whether the special event is expressive activity protected by the first amendment;

(2) Whether the cost of obtaining insurance imposes an unreasonable financial burden or objectively impossible. Applicant must submit a statement from at least two licensed insurance brokers supporting the claim that it is objectively impossible to obtain the required insurance coverage.

(3) Whether a fee or donation is charged for the special event;

(4) Whether the special event will involve the use of equipment (other than sound equipment), vehicles, animals, fireworks or pyrotechnics;

(5) The expected attendance of the special event; and

(6) Any other relevant factor(s).

(Ord. No. 2023-064, 6-20-23)

Sec. 22-169. Issuance of a special event permit does not obligate city services or constitute co-sponsorship.

Issuance of a special event permit does not obligate or require the city to provide city services, equipment or personnel. City services, equipment or personnel may be provided for special events based upon consideration of availability and cost recovery. Issuance of a permit, provision of city services, equipment or personnel and/or waiving of any fee does not imply or constitute city co-sponsorship or endorsement or allow the use of the city seal.

The use of the city seal or the words "City of Columbia" or any facsimile thereof that would reasonably imply an official endorsement or sponsorship of the event by the city is prohibited absent express written authorization from the city manager.

(Ord. No. 2023-064, 6-20-23)

Sec. 22-170. Cost recovery.

(a) The required deployment of city services will be determined by the city taking into consideration the type of event, location of the event, whether alcohol is being served, the number of participants, the level of street or right-of-way usage and the need for pedestrian and traffic control.

(b) Fees and costs shall be stated in the special events fee schedule and/or other departmental fee schedules as approved by city council.

(c) The applicant is required to pay all fees and costs at the time of submission of the application.

(d) Failure to pay shall prevent the application from being processed.

(Ord. No. 2023-064, 6-20-23)

Sec. 22-171. Parade permit required.

Unless otherwise indicated, the provisions regarding special events are applicable to parade permits. It shall be unlawful for any person to engage in, participate in, aid, form, start or stage any parade or procession or any special event as defined herein subject to the exceptions found herein on any of the streets or in any other public places within the corporate limits of the city without first having secured a special events permit from the chief of police to do so; provided, however, that funeral processions and governmental agencies acting within the scope of their official functions are excepted from this article.

(Ord. No. 2023-064, 6-20-23)

Sec. 22-172. Reconsideration of denial of permit.

If the city manager or her designee disapproves the application, he or she shall notify the applicant, setting forth reasons for the denial. The applicant shall then apply in writing to the city manager for reconsideration.
(Ord. No. 2023-064, 6-20-23)

Sec. 22-173. Appeals.

Any applicant shall have the right to appeal the denial of a special event or parade permit to the city council. The appeal shall be taken within five days after receipt of the notice of denial.
(Ord. No. 2023-064, 6-20-23)

Sec. 22-174. Public conduct during parades.

(a) *Interference.* No person shall unreasonably hamper, obstruct, impede or interfere with any parade or parade assembly or with any person, vehicle or animal participating or used in a parade.

(b) *Driving through parade.* No driver of any vehicle shall drive between the vehicles or persons comprising a parade when such vehicles or persons are in motion and are conspicuously designated as a parade.

(c) *Parking on parade route.* The chief of police shall have the authority, when reasonably necessary, to prohibit or restrict the parking of vehicles along a highway or part thereof constituting a part of the route of a parade. The chief of police may post signs to such effect, and it shall be unlawful for any person to park or leave unattended any vehicle in violation thereof.
(Ord. No. 2023-064, 6-20-23)

Secs. 22-175—22-200. Reserved.

ARTICLE VII. CURB CUTS AND DRIVEWAY APPROACHES

Sec. 22-201. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Apron means the portion of a driveway approach connecting the straight or unwidened portion to the public roadway, i.e., that portion contained between the two curb returns.

Curb corner point of tangency means the point on the curb at a street intersection at which the curb along the roadway begins to curve to meet the curb and the other roadway. Where no curb exists, this point shall be as determined by the city engineer.

Curb return means the side boundary of the widened portion of a driveway approach which connects the straight or unwidened portion of the driveway approach to the curb or edge of a public roadway.

Curb return point of tangency means the point on the curb return at the intersection of a driveway approach and a public roadway at which the curb or the edge of the pavement of the public roadway begins to deviate to form the curb return.

Driveway means a place, way or passage on private property intended for the operation of automobiles and/or other vehicles.

Driveway approach means an area, way or passage within a public street right-of-way between the roadway and private property, customarily intended to provide passage or access for vehicles from the roadway to the driveway.

Flare means the difference in width between the driveway approach at the face of the roadway curb and that at the property line.

Outside sidewalk line means a line parallel to the property line, located along the sidewalk edge which is furthest from the street roadway; or, where no sidewalk exists, a line within the street right-of-way parallel to and at a distance established by the city engineer from the private property line.

(Code 1979, § 4-2031)

Cross reference—Definitions generally, § 1-2.

Sec. 22-202. General standards.

(a) *Compliance with article.* It shall be unlawful for any person to cut, break out or remove any curb along or to construct a curb return or driveway approach in the right-of-way of a public street, way or alley except as authorized under the terms of this article.

(b) *Construction of driveway approach for use as parking area.* It shall be unlawful for any person to construct, alter or extend or to permit or cause to be constructed, altered or extended any driveway approach which can be used only as a parking area. A driveway approach must provide access to something definite on private property such as a parking area or a driveway or door at least seven feet wide intended to be used for the entrance of vehicles.

(c) *Unauthorized markings.* It shall be unlawful for any unauthorized person to paint, delineate or otherwise mark, or cause to be painted, delineated or otherwise marked, any curb, curb return or driveway approach.

(d) *Signs.* Any signs pertaining to the use of the driveway ("one-way," "do not enter," "entrance," "exit," etc.) shall be erected at the expense of the owner and upon his own property. Any such sign shall be installed only upon approval of the building official.
(Code 1979, § 4-2032)

Sec. 22-203. Width, location and design.

(a) *Single-family or duplex residential property.*

(1) Driveway approaches shall be at least 12 feet in width at all points and not greater than 16 feet in width except within the apron.

(2) The flare shall be at least five feet, but shall not exceed ten feet.

(b) *Industrial and commercial properties.*

(1) Driveway approaches shall be at least 13 feet in width for one-way or 25 feet for two-way traffic and shall not exceed 15 feet for one-way or 30 feet for two-way traffic, except the width within the apron, and in no case shall the total width of driveway aprons exceed 50 percent of the property frontage on that street.

(2) The flare shall not exceed ten feet, except for shopping centers covering at least two acres and providing ample off-street parking, in which case the flare shall not exceed 50 feet.

(c) *Other properties.* The standards for other properties shall be within the limits of the standards of subsections (a)(2) and (b)(2) of this section and shall be those determined reasonable by the building official.

(d) *Pedestrian islands.* In order to provide safety for pedestrians, the width at the outside sidewalk line of a driveway approach shall not exceed 30 feet unless a refuge island, at least four feet long and the full width of the sidewalk, is provided within the driveway approach at the sidewalk line.

(e) *Number and separation of driveway approaches.* No more than two driveway approaches will be allowed along any single private property line on the same street. Where two driveway approaches on a street front serve the same parcel of land, the space between driveway approaches as measured between the nearest curb return points of tangency shall be at least 20 feet in length, except immediately adjacent to a hotel, apartment, industrial or commercial driveway approach the distance shall be 25 feet in length.

(f) *Corner lots.* On corner lots, no curb return point of tangency shall be nearer the street right-of-way line on the approach side of the intersection than 25 feet or nearer the street right-of-way line on the departure side of the intersection than 15 feet.

(g) *Distance from adjacent property lines.* The curb return point of tangency shall be at least five feet from the adjacent property line measured where the right-of-way lines and property line (measured perpendicular to centerline) intersect.

(h) *Construction material.* All driveway approaches and curb returns which adjoin paved roadways must be constructed of concrete or other material approved by the building official.

(i) *Elevation.* The elevation of the driveway approach at the outside sidewalk line shall not be lower than the top of the street curb. Where no curb exists, the elevation of the driveway approach at this point shall be at least six inches above the street gutter.
(Code 1979, § 4-2033)

Sec. 22-204. Removal.

It will be the responsibility of the city to remove curb returns and driveway approaches and replace the street curb when driveway approaches are abandoned or when driveway approaches or curb returns hereafter constructed do not meet the provisions of this article, or when necessary for the public health, safety, morals, convenience, order, prosperity or general welfare. When removed by the city by reason of violation of this article, the city shall charge the violator with the expense thereof.
(Code 1979, § 4-2034)

Sec. 22-205. Permit; payment of costs.

(a) *Application for permit.* Applications for the construction of all driveway approaches must be approved by the building official. On commercial property, at least two permanent prints or India ink drawings on good quality 12-inch by 18-inch paper at a scale of ten feet to the inch shall be submitted to and approved by the building official, one of which shall be kept in his files and one dated, marked, approved and returned to the applicant. Such print or drawing shall show the proposed driveway approach, including all dimensions, specifications, elevations, street numbers, street names, property lines, the property owner's name, the contractor's name, the date and all other information necessary to make determinations with regard to compliance with this article.

(b) *Payment of costs.* On commercial property, all expenses of constructing a driveway approach and curb returns shall be the responsibility of the applicant. A fee shall be charged the applicant to cover the expense to the city of review, inspection and other engineering services rendered by the city under this article. The minimum fee shall be as established by regulation. Any additional expense will be charged on the basis of expense records of such services maintained by the building official.

(c) *Permit fee.* The fee for each driveway or curb cut permit shall be $10.00.

(d) *Time limit for commencing construction.* If, after approval, construction is not begun within 90 days, the approval granted under this section shall become null and void.
(Code 1979, § 4-2035)

Sec. 22-206. Bond requirements.

(a) *Performance bond.* Before any person shall engage in the construction or alteration of street curb cuts or driveways in the city, he shall first obtain the proper license and deposit with the city council a good and sufficient surety bond in the sum of $2,000.00, to be approved by the city legal department, conditioned that the person engaged in the street curb cuts or driveway construction business will faithfully observe all the laws pertaining to such business, including blasting and excavating; and that he will make good any unfaithful or inadequate work done either by himself or his agents or employees and that such person will maintain in a safe condition for a period of one year all ditches and excavations which may be opened in the performance of any curb cut or driveway work, and further that all dirt and other material excavated will be replaced in a good condition with similar materials. These requirements apply whether such excavation is made in a street (paved or unpaved), sidewalks, curbs, gutters or other city property.

(b) *Indemnity bond.* Before any person shall engage in construction or alteration of street curb cuts or driveways in the city, he shall first obtain the proper license and deposit with the city council a good and sufficient surety bond in the sum of $15,000.00 for bodily injury or death and $5,000.00 for property damage, to be approved by the city legal department, conditioned that the person engaged in the street curb cut or driveway construction business will indemnify and save harmless the city from all claims arising from accidents and damage of any character whatsoever caused by the negligence of such person engaged in the street curb cut or driveway construction business, or by any other unfaithful, inadequate work done either by himself or his agents or employees.
(Code 1979, § 4-2036)

Sec. 22-207. Variances and waivers.

(a) The city traffic committee appointed by the city manager is hereby authorized to grant in writing variances from the strict application of the provisions of this article, provided that it first determines that all of the following conditions are present:

(1) The variance desired arises from peculiar or special conditions not ordinarily found in similar districts in the city.

(2) A literal enforcement of the terms of this article will work unusual and unnecessary hardship on the property owner or tenant or would tend to deprive the owner of all reasonable use of his property.

(3) The granting of the variance will not adversely affect the rights of adjacent property owners or tenants.

(4) The granting of the variance will not destroy the spirit and aim of this article.

(5) The granting of the variance is not, and will not be within the foreseeable future, contrary to the public interest, safety, health, morals, convenience, prosperity or general welfare.

(b) The building official is hereby authorized to waive or modify the requirements of section 22-203(b) in zoning use districts which are zoned LM (light manufacturing) and HM (heavy manufacturing) where there are no curbs present and where at least 90 percent of the property frontage on the street within the block in which the property is located is used in connection with the loading and unloading of heavy trucks; provided that any such waiver or modification shall be subject to revocation or further modification at any time by the building official when it is in the public interest to do so.
(Code 1979, § 4-2037)

Sec. 22-208. Penalty.

Any person violating a provision of this article, or causing, permitting or suffering such violation to be done, shall be guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5. Each such person shall be deemed guilty of a separate offense for each and every day or portion thereof during which any violation of any of the provisions of this article is committed, continued or permitted.
(Code 1979, § 4-2038)

Secs. 22-209—22-300. Reserved.

ARTICLE VIII. FESTIVALS OR OTHER PUBLIC EVENTS

Sec. 22-301. Generally.

For festivals or other public events city council shall by resolution (a) declare specified streets to be closed or permit conduct on public property which otherwise would be prohibited by provisions of the Code, and (b) specify prohibited conduct on that public property, it shall be unlawful for any person to engage in the prohibited conduct.
(Ord. No. 2001-022, 2-21-01)

Chapter 23

UTILITIES AND ENGINEERING*

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***Cross references—**Buildings and building regulations, ch. 5; environmental health and sanitation, ch. 8; planning, land development and zoning, ch. 17; solid waste management, ch. 19; stormwater management and sedimentation control, ch. 21; streets, sidewalks and other public places, ch. 22; utility installations in streets, § 22-131 et seq.

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ARTICLE I. IN GENERAL

Sec. 23-1. Rule to show cause on civil penalties and hearings on administrative orders.

(a) *Rule to show cause.* Whenever the city manager shall have reasonable information that any person has violated any ordinance or regulation of the city relating to wastewater collection and treatment or water treatment and distribution, or that such person has violated any permit, permit condition or final determination of the city as required by state or federal law, he may issue a rule to show cause requiring the person to appear and show cause why civil penalties should not be imposed. A notice of the hearing shall be served at least ten (10) days prior to the hearing. If mailed, service of the notice is effective upon mailing.

(b) *Hearing on administrative orders.* Any person who has been issued an administrative order under this Chapter 23 may request a hearing by filing a request for hearing within fifteen calendar days of the date of issuance of the administrative order. The request shall be filed with the city clerk and shall include reference to the administrative order and the reasons for the request for a hearing.

(c) *Hearing officers; determination of penalties.* The city council shall from time to time designate by resolution hearing officers who shall conduct hearings and make determinations upon those matters identified in rules to show cause or administrative orders issued in accordance with this Chapter 23. For a rule to show cause, the hearing officer in each case shall determine whether penalties shall be imposed, and the amount of such penalties, subject to the limitations contained in S.C. Code 1976, § 6-11-285.

(d) *Hearing procedures.* The hearing procedures shall be conducted in accordance with the following procedures:

(1) The hearing shall be conducted within 60 days of the filing of a rule to show cause or a request for review of an administrative order; provided, however, that a hearing shall be conducted for review of a cease and desist order or an administrative order for revocation of a permit within 15 days of filing a request for review with the city clerk;

(2) The hearing officer shall observe the rules of evidence as applied in civil cases in the court of common pleas;

(3) All testimony shall be taken under oath and all parties shall have the right to cross-examination of the witness;

(4) The hearing shall be recorded by a certified court reporter and may be transcribed at the request of any party at the expense of the requesting party;

(5) The party requesting review of an administrative order shall bear the burden of proof to establish matters by a preponderance of the evidence, and the city shall bear the burden of proof in a rule to show case for the imposition of penalties;

(6) The party having the burden of proof shall present its case first;

(7) The hearing office shall issue a written decision on the matters identified in the rule to show cause or administrative order with 30 days of the hearing;

(8) A rule to show cause or request for review of an administrative order may be amended only by leave of the hearing officer;

(9) Service of a rule to show cause, administrative order, request for review of an administrative, notice of hearing, and decision of the hearing officer under this section shall be by personal delivery or by first-class mail.

(10) The city may promulgate regulations to establish hearing procedures not otherwise established in this section.

(e) The decision of a hearing officer under this section may be appealed to court of common pleas for Richland County as provided by law.

(Code 1979, § 5-1002; Ord. No. 2019-043, 8-20-19)

State law reference—Authority to provide penalties, S.C. Code 1976, § 6-11-285.

Secs. 23-2—23-30. Reserved.

ARTICLE II. PUBLIC UTILITIES DEPARTMENT*

Sec. 23-31. Functions.

The public utilities department shall perform the following functions:

(1) Construct, operate and maintain water treatment facilities so as to provide safe and sanitary water to the city for drinking, domestic, commercial and industrial uses.

(2) Install, operate and maintain all water lines, fire hydrants and water meters within the city's service area to ensure the safe and sanitary delivery of an adequate supply of water to all users.

(3) Install, operate and maintain facilities to ensure the efficient and sanitary movement of wastewater to treatment facilities.

(4) Provide and operate wastewater treatment and processing facilities to return wastewater to the environment in a state which is not detrimental to the surroundings.

(5) Provide for personnel, equipment and material to install, operate and maintain an efficient traffic control system, communication system, fire alarm system and street lighting system.

(Code 1979, § 5-1001)

State law reference—Construction and operation of municipal utilities, S.C. Code 1976, § 5-31-610.

***Cross reference—**Departments, § 2-151 et seq.

Secs. 23-32—23-60. Reserved.

ARTICLE III. WATER SERVICE*

Sec. 23-61. Map of street mains, hydrants and valves.

It shall be the duty of the city engineer to make and preserve a map or plan of the location of the street mains, showing the course, distance and size of each of them. On such map or plan he shall lay down every extension of such mains as soon as such extensions are made, and the location of every hydrant and valve shall also be properly designated.
(Code 1979, § 5-2001)

Sec. 23-62. Application for service.

(a) An application for new water and/or sewer service shall be made to the engineering department, stating the property address and the tax map number of the property to be served and the type of water and/or sewer service requested (commercial or residential) and the applicable rate (in city or out of city) on a form provided by the city.

(b) A request to transfer an existing water and/or sewer service account shall be made to customer service, stating the property address and the tax map number of the property to be served on a form to be provided by the city. Account transfers will not be allowed to properties described in (c). Account balances, if not past due, will be transferred to the new account. Those properties described in (c) will require an application for new water and/or sewer service.

(c) Except as provided in subsection (i) of this section, if the property to be served is located in an unincorporated area of a county and not subject to a properly executed and recorded declaration of covenant the property owner(s) shall, prior to or contemporaneously with an application or transfer request, submit:

(1) A properly executed annexation petition to the City of Columbia, if the property is contiguous to the corporate limits of the city; or

(2) A properly executed, recordable declaration of covenant, if the property is not contiguous to the corporate limits of the city and not already subject to a properly recorded declaration of covenant.

***Editor's note—**Ord. No. 2003-049, adopted March 10, 2004, amended Art. III by amending § 23-62, repealing former § 23-63 in its entirety and renumbering former §§ 23-64—23-72 as 23-63—23-71. Repealed former § 23-63 pertained to service contracts and derived from the Code of 1979.

(d) No water and/or sewer service shall be provided, transferred, permitted or allowed until such time as an annexation petition or declaration of covenant as is provided for herein is submitted to the city.

(e) Declaration of covenants shall be filed in the register of deeds for the county in which the property is located.

(f) Annexation petitions and declaration of covenants shall be in a form approved by the city attorney.

(g) An applicant or transferor shall provide proof of ownership, leasehold interest, occupancy, residency, authority, identity or existence, if a legal entity, upon request and shall not receive or continue to receive water and/or sewer service until the requested proof has been provided and/or verified by the city.

(h) The provision of service to customers outside the corporate limits by the city is deemed to be a contract subject to all rate schedules, rules, regulations and ordinances of the city as may be amended from time to time. The contract does not create or impose upon the city any obligation to provide service in the future. Service may be discontinued at any time in the sole and exclusive discretion of city council upon reasonable notice.

(i) Property owners of properties within an industrial park created or established by Richland County may be exempt from the requirement to execute a declaration of covenant prior to receiving water service from the city if Richland County affirmatively supports the request for exemption and city council approves the request.
(Code 1979, § 5-2002; Ord. No. 2003-049, 3-10-04; Ord. No. 2015-035, 5-5-15)

Sec. 23-63. Liability of owner for broken meters.

The owner of the property or occupant contracting for water service shall be responsible for the negligent or willful damage to meters, meter boxes, valves, locking devices or other fixtures appertaining to water service; and the actual cost of labor and materials used in replacement or repair of such damaged fixtures shall be added to the water bill.
(Code 1979, § 5-2004; Ord. No. 2003-049, 3-10-04)

Sec. 23-64. Right of city to shut off water in mains.

The city reserves the right at any time without notice to shut the water off in its mains for the purpose of making repairs or extensions or for other purposes. No claims shall be made against the city by reason of the breakage of any service pipe or service cock or from any other damage that may result from shutting off water for repairing, laying or relaying mains, hydrants or other connections.
(Code 1979, § 5-2005; Ord. No. 2003-049, 3-10-04)

Sec. 23-65. Temporary service for building or construction purposes.

Contractors, builders or others desiring water for building or construction purposes must make application to the director of engineering therefor, who will issue a permit or work

order. There shall be one type of such service: by temporary construction meter. Services provided under this section shall not be used in lieu of permanent metered service when permanent service is appropriate. The amount to be paid during construction will be the irrigation rate as established in sections 23-143, 23-144 and 23-145. The applicant shall provide each temporary construction meter the same backflow prevention protection as required for a permanent service. Metered water service may be provided to the city's contractors and builders upon application to the Director of Engineering.
(Code 1979, § 5-2006; Ord. No. 2003-049, 3-10-04; Ord. No. 2023-117, 10-17-23)

Sec. 23-66. Use of water without permit.

It shall be unlawful for any person to receive water from any part of the city water system without a valid permit from the city engineer or without an in-service meter. It shall be unlawful for any person to tamper with, open, close, remove, bypass or otherwise deal with any fire hydrant, valve, valve box, meter, meter box, tank, pump, structure or fixture appertaining to the city water system.
(Code 1979, § 5-2007; Ord. No. 2003-049, 3-10-04)

Sec. 23-67. Private fire protection systems.

(a) Applicants for private fire protection, whether in or outside the city, such as private hose connections for fire protection in buildings, and such as hydrants and sprinkler systems, where any such private fire protection is served or to be served through unmetered services, shall pay the total cost of the installation, including the cost of making the connections to the mains and including cutting and replacing of any pavement. Private fire protection systems are not to be connected to or used for domestic service.

(b) Present owners of and applicants for private fire protection, where such private fire protection is subject to the rates established by this chapter, shall file with the water collections division a contract which shall state the number of hose connections, hydrants and sprinkler heads installed or to be installed. Any contemplated additions or alterations to any private fire protection shall be reported to and approved by the water collections division before such additions or alterations are made.

(c) In case of failure to pay to the city when due any fee or charge required for such service, the city shall have the right to suspend all water service to the property, both metered and unmetered service, whether or not the bill for water used through any metered service is paid.

(d) The city shall have access to all property at all times for the purpose of inspecting any private fire protection system.
(Code 1979, § 5-2008; Ord. No. 2003-049, 3-10-04)

Sec. 23-68. Separate meter required for each structure; exceptions.

(a) A separate water meter shall be required for each structure served, except that auxiliary structures under the same ownership and same tenancy as the principal structure on a lot may be served through the meter for the principal structure.

(b) Mobile home parks, and commercial or dwelling units in the same structure, may be served through one meter provided all units are under the same ownership or the water tap is contracted for by co-owners' council or association created pursuant to the South Carolina Horizontal Property Act, and monthly rates in article V of this chapter shall be as if each separate unit had an individual three-fourths-inch meter. Water service and sanitary sewer accounts for properties served in this manner shall be in the name of the property owner or co-owners' council or association created pursuant to the South Carolina Horizontal Property Act of the property served and the property owner or co-owners' council or association created pursuant to the South Carolina Horizontal Property Act shall be responsible for all charges therefor. No credit shall be allowed for vacancies.

(c) For apartment complexes of 200 or more units, a separate water meter will not be required for each structure under the same ownership served provided that water mains and fire hydrants adequate to meet the requirements of the city's water system design criteria and the city fire chief's requirements for fire protection are constructed and deeded to the city, and monthly rates shall be as stated in subsection (b) of this section.
(Code 1979, § 5-2009; Ord. No. 2003-049, 3-10-04; Ord. No. 2007-109, 2-6-08)

Sec. 23-69. Stop and waste cocks.

The stop and waste cock or cutoff valve must be placed by the property owner at the property line, or at such point where the pipe leaves the street line. Such cock or valve shall be under the control of the tenant or owner, to be used in case of a break or other necessity whereby pipes to be repaired can be cut off without the necessity for using the street corporation cutoff. This is not intended to take the place of the ordinary stop and waste cock located within the premises used to drain the pipes to prevent damage by freezing. As many additional stop and waste cocks as desired by the owner may be placed within the premises, to be used according to desire or convenience.
(Code 1979, § 5-2010; Ord. No. 2003-049, 3-10-04)

Sec. 23-70. Authority of city manager to restrict use during water shortage.

(a) *Declaration.* Whenever in the judgment of the city manager, it becomes necessary to conserve water in the service area, due to drought or any condition affecting the water supply, the city manager with notice to city council is authorized to issue a declaration that existing conditions prevent fulfillment of the usual water-use demands. Immediately upon the issuance of such declaration, regulations and restrictions set forth therein shall become effective and remain in effect until the water shortage is terminated and the declaration rescinded.

(b) *Prohibited use unlawful.* Water use prohibition by declaration of this section is unlawful.

(c) *Water shortage conditions.*

(1) *Drought.* Levels of drought, as set forth in the South Carolina Department Response Act of 1985, are moderate, severe and extreme. Declarations issued by the city manager shall impose conditions on water use appropriate to the level of drought

which exists according to drought monitoring data, recommendations, declarations, and/or notifications supplied by the regional Drought Response Committee or the South Carolina Water Resources Commission.

When drought conditions exist, the city manager may impose appropriate conditions to reduce water use as follows:

a. Moderate drought conditions. Voluntary reduction of water use of 30 percent by residential water users, including residential irrigation users, and 15 percent by all other water users;

b. Severe drought conditions. Mandatory reduction of water use of 30 percent by residential water users, including residential irrigation users, and a voluntary reduction of 15 percent by all other water users;

c. Extreme drought conditions. Mandatory reduction of water use by residential and institutional water users, including residential and institutional irrigation users, by 30 percent and 15 percent by all other water users.

For the purpose of this ordinance, an institutional water user is defined as a governmental or public entity, public and private educational institutions, churches and other places of worship, water utilities and all public lands or buildings.

(2) *Other.* During shortages of water caused by any condition other than drought, the city manager shall impose restrictions on use appropriate to the nature and duration of the shortage.

(d) *Agreements.* Water service and extension agreements are subject to conditions relating to water shortages.

(e) *Water rate surcharges.* In the event of an extreme emergency or extreme drought-related water shortage, the city manager is hereby authorized to monitor water use and limit households to three cubic feet per household per day. Domestic water use above this limit will be subject to a surcharge of ten times the then applicable rate. Institutional, commercial, industrial, and recreational water users will be subject to water use surcharges of 20 times the then applicable rate if the city manager finds that adequate conservation measures have not been implemented in compliance with the declaration of curtailment.

(f) *Rationing.* In the event that a drought or emergency threatens the preservation of public health and safety, the city manager is hereby authorized to ration water, to determine areas and types of users to be rationed, and to set schedules for use.

(g) *Penalties.* In addition to fines and penalties provided by this code, the city manager may discontinue the water service to any person or customer upon failure to comply with the provisions of this ordinance. Services discontinued under such circumstances shall be restored only upon payment of a reconnection charge, hereby established at double the then applicable tap fee and any other costs incurred by the city in discontinuing service. In addition, suitable assurances must be given to the city manager that the same action shall not be repeated during the drought or water shortage.

(h) *Variances.*

(1) Persons not capable of immediate water use reduction or curtailment, because of equipment damage or other extreme circumstances, shall commence gradual reduction of water use within 24 hours of the declaration of water use curtailment/reduction and shall apply for a variance from curtailment.

(2) Persons requesting exemption from the provisions of this ordinance shall file a petition for variance with the city manager within five days after such curtailment becomes effective.

(3) When a declaration of curtailment is issued by the city manager, all petitions for variances shall be acted upon by the city manager. Petitions shall contain the following:

a. Name and address of the petitioner(s);

b. Purpose of water use;

c. Specific provisions from which the petitioner is requesting relief;

d. Detailed statement as to how the curtailment declaration adversely affects the health, safety or property;

e. Technical problems affecting compliance with ordinance;

f. Alternate methods which the petitioner is expected to implement and the date of implementation;

g. Steps the petitioner is taking to meet the restrictions from which variance is sought and the expected date of compliance;

h. Description of the relief desired;

i. Period of time for which the variance is sought;

j. Other pertinent information.

(4) In order for a variance to be granted, petitioner must show one or more of the following conditions:

a. Compliance with the ordinance cannot be technically accomplished during the duration of the water shortage;

b. Alternative methods can be implemented which will achieve the same level of reduction in water use;

c. Imminent danger to health, safety or property.

(5) Variances shall include a timetable for compliance and shall expire when the declaration is rescinded.

(Code 1979, § 5-2011; Ord. No. 2000-040, 6-14-00; Ord. No. 2003-049, 3-10-04)

Sec. 23-71. Violation of restrictions of city manager.

Any person violating the terms of water restrictions imposed by the city manager pursuant to this article shall be guilty of a misdemeanor and punished, upon conviction, in accordance with section 1-5.
(Code 1979, § 5-2012)

Secs. 23-72—23-100. Reserved.

ARTICLE IV. WASTEWATER SERVICE*

Sec. 23-101. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Authorized representative of an industrial user means:

(1) A responsible corporate officer if the industrial user submitting the reports required by paragraph 23-105(n) of this section is a corporation. For the purpose of this paragraph, a responsible corporate officer means:

(i) A president, secretary, treasurer, or vice-president of the corporation in charge of a principal business function, or any person who performs similar policy- or decision-making functions for the corporation; or

(ii) The manager of one or more manufacturing, production, or operating facilities, provided the manager is authorized to make management decisions that govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for control mechanism requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures;

(2) A general partner or proprietor if the industrial user is a partnership or sole proprietorship, respectively; or

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***Editor's note—**Ord. No. 2019-043, adopted Aug. 20, 2019, amended and restated former Art.IV, §§ 23-101—23-115 in its entirety. Former Art. IV pertained to similar subject matter and derived from Code of 1979, § 5-3001—5-3014; Ord. No. 96-7, § 1, 3-20-96; Ord. No. 97-56, 9-17-97; Ord. No. 97-57, 9-17-97; Ord. No. 98-58,8-19-98; Ord. No. 2000-044, 6-21-00; Ord. No. 2000-073, 9-20-00; Ord. No. 2019-042, 6-18-19.

State law reference—Establishment of municipal sewerage system, S.C. Code 1976, § 5-31-810.

(3) A duly authorized representative of the individual designated in subparagraph (1) or (2) above if:

(i) The authorization is made in writing by the individual described in (1) or (2);

(ii) The authorization specifies either an individual or a position having responsibility for the overall operation of the facility from which the industrial discharge originates, such as the position of plant manager, operator of a well, or well field superintendent, or a position of equivalent responsibility, or having overall responsibility for environmental matters for the company; and

(iii) The written authority is submitted to the control authority.

(4) If an authorization under subparagraph (3) of this section is no longer accurate because a different individual or position has responsibility for the overall operations of the facility, or overall responsibility for environmental matters for the company, a new authorization satisfying the requirements of subparagraph (3) of this section must be submitted to the control authority prior to or together with any reports to be signed by an authorized representative.

BOD means the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedure in five days at 20 degrees Celsius, expressed in milligrams per liter, in accordance with testing methods established under 40 CFR Part 136.

Best management practices or *BMPs* means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions listed in S.C. Reg. 61-9.403.5(a)(1) and (b). BMPs also include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage.

Color means the color of the light transmitted by the waste solution after removing the suspended material, including the pseudo-colloidal particles.

Control authority means the director of utilities or his duly authorized representative.

Day means a calendar day. Computation of time shall be in accordance with section 1-2.

Domestic waste means that liquid from bathrooms, shower rooms, toilet rooms, sinks, kitchens, laundry facilities located in residences, apartments, hotels, motels, restaurants, cafeterias, office buildings, schools and commercial establishments.

Industrial user or *user* means any user of the works POTW that discharges nondomestic waste.

Industrial discharge means the introduction of pollutants into the POTW from any non-domestic source regulated under Section 307(b), (c), or (d) of the Federal Water Pollution Control Act as amended by the Clean Water Act of 1977 or Section 48-1-90 of the South Carolina Pollution Control Act.

Industrial waste means any waste discharged into the POTW which is not domestic waste.

Instantaneous limit means the maximum concentration of a pollutant allowed to be discharged at any time, determined from the analysis of any discrete or composited sample collected, independent of the industrial flow rate and the duration of the sampling event.

Interference means a discharge which, alone or in conjunction with a discharge or discharges from other sources, both:

(1) Inhibits or disrupts the POTW, its treatment processes or operations or its sludge processes, use or disposal; and

(2) Therefore is a cause of a violation of any requirement of the POTW's NPDES permit (including an increase in the magnitude or duration of a violation) or of the prevention of sewage sludge or disposal in compliance with the following statutory provisions and regulations or permits issued thereunder (or more stringent state or local regulations): Section 405 of the Clean Water Act, the Solid Waste Disposal Act (SWDA) (including title II more commonly referred to as the Resource Conservation and Recovery Act (RCRA), and including state regulations contained in any state sludge management plan prepared pursuant to subtitle D of SWDA), the Clean Air Act, the Toxic Substances Control Act, and the Marine, Research and Sanctuaries Act, and the South Carolina Pollution Control Act.

Local limit means a specific discharge limit developed and enforced by the city on industrial users to implement the general and specific discharge prohibitions listed in S.C. Reg. 61-9.403.5(a)(1) and (b).

Monthly average means the sum of all daily discharges measured during a calendar month divided by the number of daily discharges measured during that month.

National pretreatment standard, pretreatment standard, or *standard* means any regulation containing pollution discharge limits promulgated by the EPA in accordance with section 307(b) and (c) of the Clean Water Act which applies to industrial users. This term includes local limits established pursuant to S.C. Reg. 61-9.403.5.

New source shall mean:

(1) Any building, structure, facility, or installation from which there is or may be a discharge of pollutants, the construction of which commenced after the publication of proposed pretreatment standards under section 307(c) of the Clean Water Act that will be applicable to such source if such standards are thereafter promulgated in accordance with that section, provided that:

(i) The building, structure, facility, or installation is constructed at a site at which no other source is located; or

(ii) The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or

(iii) The production or wastewater generating processes of the building, structure, facility, or installation are substantially independent of an existing source at

the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant and the extent to which the new facility is engaged in the same general type of activity as the existing source should be considered;

(2) Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility, or installation meeting the criteria of Section 1(ii) or 1(iii) of this section, but otherwise alters, replaces, or adds to existing process or production equipment.

(3) Construction of a new source as defined under this section has commenced if the owner or operator has:

(i) Begun, or caused to begin, as part of a continuous onsite construction program;

a. Any placement, assembly, or installation of facilities or equipment; or

b. Significant site preparation work including clearing, excavation or removal of existing buildings, structures, or facilities which is necessary for the placement, assembly, or installation of new source facilities or equipment; or

(ii) Entered into a binding contractual obligation for the purchase of facilities or equipment which are intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this paragraph.

Normal waste means that waste having a BOD concentration of 200 milligrams per liter or less, and suspended solids concentration of 200 milligrams per liter or less.

Pass through means a discharge which exits the POTW into water of the State or of the United States in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of violation of any requirement of the POTW's NPDES permit (including an increase in the magnitude or duration of a violation).

Person means any individual, firm, company, association, corporation, or municipal corporation other than the city.

pH means the logarithm of the reciprocal of the weight of hydrogen ions in grams per liter of solution. The stabilized pH of waste will be considered to be a pH which is within the specified pH limits after a sample of the waste has been subjected to aeration.

Properly shredded waste means the organic wastes resulting from the preparation, cooking and dispensing of foods that have been shredded to such degree that all particles will be carried freely under the flow conditions normally prevailing in public sewers, with no particle being greater than one-half inch in any dimension.

Receiving stream and waters of the state mean all streams, lakes, ponds, marshes, watercourses, waterways, wells, springs, reservoirs, aquifers, irrigation systems, drainage

systems and other bodies or accumulations of water, surface or underground, natural or artificial, public or private, which are contained within, flow through, or border upon the state or any portion thereof and which receive the discharge from a wastewater treatment plant or are formed by the effluent from a wastewater treatment plant.

Sanitary sewerage system or *POTW* means all or any part of the lateral sewers, collecting sewers, district sewers, intercepting sewers, wastewater pumping stations, waste treatment facilities and outfall sewers owned by the city and/or administered by the city.

Significant industrial user means:

(1) Except as provided in subsection (3) and (4) below, any industrial user subject to categorical pretreatment standards; or

(2) Except as provided in subsection (3) and (4) below, any other industrial user which:

(i) Discharges an average 25,000 gallons per day or more of process wastewater (excluding sanitary, noncontact cooling and boiler blowdown wastewaters); or

(ii) Contributes a process wastewater which makes up five percent or more of the average dry weather hydraulic or organic capacity (BOD, TSS, etc.) of the treatment facilities; or

(iii) Has a reasonable potential in the opinion of the control authority to adversely affect the operation of the POTW or to violate any pretreatment standard or requirement (in accordance with S.C. Reg. 61-9.403.8(f)(6)).

(3) The control authority may determine that an industrial user subject to categorical pretreatment standards under S.C. Reg. 61-9.403.6 and 40 CFR chapter I, subchapter N is a non-significant categorical industrial user rather than a significant industrial user on a finding that the industrial user never discharges more than 100 gallons per day (gpd) of total categorical wastewater (excluding sanitary, non-contact cooling and boiler blowdown wastewater, unless specifically included in the pretreatment standard) and the following conditions are met:

(i) The industrial user, prior to the control authority's finding, has consistently complied with all applicable categorical pretreatment standards and requirements;

(ii) The industrial user annually submits the certification statement required in S.C. Reg. 61-9.403.12(q) together with any additional information necessary to support the certification statement; and

(iii) The industrial user never discharges any untreated, concentrated wastewater.

(4) Upon a finding that an industrial user meeting the criteria in the paragraph above has no reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement, the control authority may at any time, on its own initiative or in response to a petition received from an industrial user, and in accordance with S.C. Reg. 61-9.403.8(f)(6), determine that such industrial user is not a significant industrial user.

Significant noncompliance means any of the following:

(1) Chronic violations of discharge limits in which 66 percent or more of the measurements taken for the same pollutant parameter during a six-month period exceed (by any magnitude) a numeric pretreatment standard or requirement (as defined by S.C. Reg. 61-9.403.3), including instantaneous limits;

(2) Technical review criteria violations in which 33 percent or more of the measurements taken for the same pollutant parameter during a six-month period equal or exceed the product of the numeric pretreatment standard or requirement (as defined by S.C. Reg. 61-9.403.3), including instantaneous limits, multiplied by the applicable TRC (TRC=1.4 for BOD, TSS, fats, oil, and grease, and 1.2 for all other pollutants except pH);

(3) Any other violation of a pretreatment standard (daily maximum, long-term average, instantaneous limit, or narrative standard) that the control authority determines has caused, alone or in combination with other discharges, interference (e.g., slug loads) or pass through (including endangering the health of city personnel or the public);

(4) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or to the environment or has resulted in the POTW's exercise of its emergency authority under S.C. Reg. 61-9.403.8(f)(1)(vi)(B) to halt or prevent such a discharge;

(5) Failure to meet, within 90 days after the schedule date, a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction, or attaining final compliance;

(6) Failure to provide, within 45 days after the due date, required reports such as baseline monitoring reports, 90-day compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules;

(7) Failure to accurately report noncompliance; or

(8) Any other violation or group of violations, which may include a violation of best management practices, which the control authority determines will adversely affect the operation or implementation of the local pretreatment program.

Slug load or *slug discharge* means any discharge at a flow rate or concentration, which could cause a violation of the prohibited discharge standards in section 23-102 of this article. A slug discharge is any discharge of a non-routine, episodic nature, including but not limited to an accidental spill or a non-customary batch discharge, which has a reasonable potential to cause interference or pass through, or in any other way violate the POTW's regulations, local limits or industrial user permit conditions.

Strength of waste means the concentration, expressed in milligrams per liter of BOD, suspended solids or compounds (substances) contained in the liquid waste.

Suspended solids means solids that either float on the surface of or are suspended in water or liquid waste, and which are removable by laboratory filtration.

Unpolluted water or waste means any water or waste containing none of the following: free or emulsified grease or oil; acids or alkalines; phenols or other substances imparting taste and odor in receiving waters; toxic or poisonous substances in suspension, colloidal state or solution; and noxious or odorous gases. Unpolluted water or waste shall contain not more than ten milligrams per liter of BOD. Unpolluted water or waste normally shall include:

(1) The discharge from rain downspouts and drains.

(2) The discharge from surface water and stormwater drains.

(3) The discharge from air conditioning systems.

(4) Cooling waters containing no free or emulsified greases or oils, no acids or alkalies, no phenols or other substances imparting taste and odor in receiving waters, no toxic or poisonous substances (whether in suspension, in colloidal state or in solution), and no noxious or odorous gases.

Unpolluted water or waste shall also mean any water or waste judged by the South Carolina Department of Health and Environmental Control (SCDHEC) to be admissible to streams and watercourses under the jurisdiction of SCDHEC, and in accordance with the standard of water quality established by SCDHEC for the particular stream or watercourse into which such unpolluted water or waste is to be discharged.

Zero discharge industrial user means an industrial user which manages or disposes of non-domestic waste without discharge to the POTW, but has the potential to discharge and/or spill non-domestic waste by one of the following means:

(1) Drains in the manufacturing process area that are connected to the sewer system and that may discharge waste in the case of spills, washdowns, etc.;

(2) Tanks containing regulated wastewater or chemicals that contain overflow or emergency bypass hookups to the sewer system;

(3) Any structure, piping, treatment system design, etc. that the industrial pretreatment division identifies as a possible route for discharge of regulated (process) wastewater; or

(4) Floor drains that are not permanently plugged and tamper proof.

(Ord. No. 2019-043, 8-20-19; Ord. No. 2021-029, 5-4-21)

Sec. 23-102. Prohibited discharges.

(a) No person shall discharge or cause to be discharged into any portion of the sanitary sewerage system, directly or indirectly, any waste which may violate any law or governmental regulation, may create interference or pass through, or have an adverse or harmful effect on the sanitary sewerage system, maintenance personnel, wastewater treatment plant person-

nel or equipment, treatment plant effluent quality, or public or private property, or which may otherwise endanger the public or the local environment or create a nuisance. Discharges of the following are prohibited:

(1) Any gasoline, benzene, naphtha, acetone, solvent or fuel oil or any liquid, solid or gas that would cause flammable or explosive conditions, including but not limited to waste streams with a closed cup flashpoint of less than 140 degrees Fahrenheit (60 degrees Celsius) using test methods specified in 40 CFR 261.21.

(2) Any quantities of rainwater, stormwater, groundwater, street drainage, water from yard fountains, ponds or lawn sprays, or any other unpolluted water, except as provided in this article.

(3) Any water added for the purpose of diluting wastes which would otherwise exceed applicable maximum concentration limitations for any wastewater constituent.

(4) Any wastes containing dissolved sulfides in amounts which would be hazardous, cause damage to the sanitary sewerage system, or create a public nuisance.

(5) Any waste, liquid or vapor having a temperature higher than 150 degrees Fahrenheit (65 degrees Celsius).

(6) Any waste that will increase the temperature of the treatment plant influent to greater than 104 degrees Fahrenheit (40 degrees Celsius).

(7) Any wastes requiring the introduction of an excessive quantity of chlorine or any other chemical compound for sewage treatment purposes which has potential to adversely affect the operation of the POTW or cause a violation of any requirement of the POTW's NPDES permit.

(8) Any quantities of deionized water, steam condensate or distilled water.

(9) Any waste producing discoloration of wastewater or treatment plant effluent.

(10) Any waste containing substances that may precipitate, solidify or become viscous at temperatures between 50 degrees Fahrenheit (ten degrees Celsius) and 100 degrees Fahrenheit (38 degrees Celsius).

(11) Any quantities of garbage or waste that are not ground sufficiently to pass through a one-half-inch screen.

(12) Any quantity of blow-down or bleed water from cooling towers or other evaporative coolers exceeding one-third of the makeup water.

(13) Any quantity of single pass cooling water, surface water, roof runoff and subsurface drainage unless specifically authorized by the control authority.

(14) Recognizable portions of the human anatomy.

(15) Any water or waste containing more than 100 milligrams per liter of fat, oil or grease.

(16) Any waste that has not been properly shredded.

(17) Any ashes, cinders, sand, mud, straw, shavings, lint, glass, rags, metals, feathers, tar, plastics, wood, paunch manure, insulation materials, fibers of any kind, stock or poultry feeds, processed grains, viscera or other solid or viscous substance capable of causing obstruction to flow in sewers or interference with proper operation of waste treatment facilities.

(18) Any waters or wastes having a stabilized pH lower than 6.0 or higher than 9.0, or having properties capable of either causing damage or creating a hazard to structures, equipment and personnel of the sanitary sewerage system and waste treatment facilities.

(19) Any waters or wastes having a BOD concentration in excess of 300 milligrams per liter, except as provided in this article.

(20) Any waters or wastes having a suspended solids concentration in excess of 300 milligrams per liter, except as provided in this article.

(21) Any waters or wastes containing contaminants, including oxygen-demanding pollutants, of such character or in such quantity as will not be amenable to the waste treatment processes, or will injure or interfere with the waste treatment processes, or will constitute a hazard to humans or animals, or will create a hazard in the stream or watercourse receiving the effluent from the waste treatment plant.

(22) Any waters or wastes containing suspended solids of such character and quantity that unusual attention or expense is required in the handling or treatment of such waste materials at the waste treatment plant.

(23) Any noxious or malodorous gas or substance capable of creating a public nuisance, or any substance or compound which, when introduced into a reducing environment such as might exist in the sanitary sewerage system, might cause the evolution of a malodorous gas and thereby create a public nuisance.

(24) Any pollutant which could result in the presence of toxic gases, vapors or fumes within the sanitary sewerage system in a quantity that may cause acute worker health and safety problems.

(25) Any wastewater containing any radioactive wastes or isotopes except as specifically approved by the control authority in compliance with applicable state or federal regulations.

(26) Any trucked or hauled pollutants, except as discharge points designated by the control authority in accordance with section 23-115 of this article.

(27) Any substance which may cause the POTW's effluent or any other product of the POTW, such as residues, sludges or scums, to be unsuitable for the reclamation process. In no case shall a substance discharged cause interference.

(28) Any sludges, screenings or residues from the pretreatment of industrial wastes.

(29) Any medical wastes, except as specifically authorized by the control authority in a wastewater discharge permit.

(30) Any material containing ammonia, ammonia salts, or other chelating agents which will produce metallic complexes that interfere with the sanitary sewerage system.

(31) Any material that would be identified as hazardous waste according to S.C. Reg. 61-79 Part 261 if not disposed of in a sewer except as may be specifically authorized by the control authority.

(32) Any wastewater causing the treatment plant effluent to violate State Water Quality Standards for toxic substances as described in S.C. Reg. 61-68.

(33) Wastewater which causes, alone or in conjunction with other sources, the treatment plant's effluent to fail a toxicity test.

(34) Any wastes containing detergents, surface active ingredients, or other substances which may cause excessive foaming in the sanitary sewerage system.

(35) At no time, shall two successive readings on an explosion hazard meter, at the point of discharge into the sanitary sewerage system (or at any point in the system) be more than five percent nor any single reading over ten percent of the lower explosive limit (LEL) of the meter.

(36) Any discharge in violation of the Fats, Oils, and Grease Management Regulation (Parts 29 and 30).

(b) No person shall discharge harmful quantities of hazardous substances as defined in 40 CFR chapter I, subchapter D, Parts 116 and 117, or in excess of the amounts set forth in Local Limits for Industrial Discharges of Wastewater (Part 32) promulgated pursuant to section 23-104.

(c) No statement contained in this section shall be construed as preventing the execution of a contract, special agreement or arrangement between the city and any person whereby an industrial waste or pollutant of unusual strength or character may be admitted into the sanitary sewerage system by the city after approved pretreatment of such waste by the person desiring to discharge waste into the sanitary sewerage system, or the assessment of special charges for the use of the sanitary sewerage system.
(Ord. No. 2019-043, 8-20-19; Ord. No. 2021-029, 5-4-21)

Sec. 23-103. Discharge of industrial waste.

(a) *General.* It is the desire and intent of the city to cooperate with industry in the effort to improve quality, prevent impairment of quality, or maintain quality of streams in the Columbia area in accordance with water quality standards established by SCDHEC for the various streams and watercourses in the Columbia area. To this end, the city may permit the discharge of industrial waste into the sanitary sewerage system provided that:

(1) Sewerage capacity is available on a basis compatible with the best overall use of the sewer;

(2) The waste being discharged or proposed to be discharged is amenable to treatment by the processes employed in the wastewater treatment plants of the city;

(3) The waste being discharged or proposed to be discharged will not cause damage to the sanitary sewerage system and/or wastewater treatment facilities, and will not constitute a hazard to humans and animals or be capable of creating a public nuisance;

(4) The concentration of substances, compounds and elements in the waste being discharged or proposed to be discharged does not exceed the pretreatment standards; and

(5) Any person now discharging or proposing to discharge waste shall fully comply with this article.

Applications for permits to discharge industrial waste into the sanitary sewerage system of the city will be reviewed by the control authority on this basis.

(b) *Required information.* Any person discharging or any person desiring to discharge industrial waste into the sanitary sewerage system shall submit with his application to the control authority a complete chemical analysis of the waste being discharged or proposed to be discharged, including concentrations of BOD and suspended solids contained therein. Such person shall also submit pertinent flow data, including rates and duration, a description of their operations, and a wastestream schematic. Should the waste from such person's operations be deemed to be unsuitable for discharge into the sanitary sewerage system because of objectionable character as defined by this article, because of concentration of elements or substances in excess of the limits established by the control authority, or because of flow characteristics incompatible with the best use of the receiving sewer, the control authority will not approve the discharge of such waste into the sanitary sewerage system until such person has employed, at his own expense, methods and processes of pretreatment as will render the waste suitable for discharge to the sanitary sewerage system in accordance with this article.

(c) *Criteria for approval.* The control authority will not specify, suggest or recommend equipment, structures or arrangements comprising the pretreatment processes. Approval of discharge of industrial waste by any person will be given only on the basis of performance of pretreatment processes (if pretreatment should be required). Approval given to any person for discharge of industrial waste, whether pretreated or not, into the sanitary sewerage system shall in no way relieve such person of the responsibility of full compliance with this article at all times.

(d) *Flow equalization.* To effectively utilize the capacity of the sanitary sewerage system and to facilitate operation of the wastewater treatment facilities, it may be desirable that discharge of industrial waste into the sanitary sewerage system be done at a uniform rate of flow over a period of 24 hours or by bulk discharge at specific periods of time. In order to accomplish this purpose, any person discharging or proposing to discharge industrial waste into the sanitary sewerage system shall provide, at his own expense, a holding tank from which such waste shall be discharged at a specified rate of flow over a 24-hour period. This requirement may be waived provided that:

(1) The total daily waste flow from the establishment of such person does not exceed 50,000 gallons;

(2) The maximum rate of discharge from the establishment does not exceed 100 gallons per minute; and

(3) In all other respects, the discharge of such waste is in full compliance with this article.

(e) *Holding tank wastes.* Any person proposing to discharge any holding tank industrial wastes into the sanitary sewerage system must secure a permit in accordance with this article. A separate permit must be secured for each separate discharge unless it can be demonstrated that the wastewater is routinely produced and is of such quantity and quality as to be in compliance with the permit. It shall be the responsibility of the owner of the holding tank or other similar facility to secure the permit from the city.

(f) *Septic tank trucks.* Owners of septic tank trucks or of other methods of transportation utilized in the conveyance of wastes into the sanitary sewerage system, or their lessees, shall also secure a permit. The terms and conditions of the permit may include but shall not be limited to the following:

(1) Maximum permissible composite concentration of wastewater constituents.

(2) Limits on rate and time of discharge or requirements for flow regulation.

(3) Requirements for inspection and sampling.

(4) Requirements for recording, maintaining and reporting information concerning the origin of each tank truck load, and identification of industrial contributors to the load by permit number.

(5) Prohibition of discharge of certain wastewater constituents.

(6) Other conditions as deemed appropriate by the control authority to ensure compliance with this article.

(g) *General guidelines.* As stated in this section, the discharge of any industrial waste or pollutant by any person shall be considered to be an event unique to that person, and an individual application shall be made by any person discharging or proposing to discharge any industrial waste or pollutant into the sanitary sewerage system. For the general information of those persons discharging or proposing to discharge any industrial waste or pollutant into the sanitary sewerage system, the standards as set forth in this subsection shall apply to such discharge. All requirements as set forth under section 23-102 shall also be applicable, except as extended or modified in this section.

(1) *Packinghouse waste.* All hair, bristle, hides or parts of hides, bones, animal parts, paunch manure, viscera, grease (in excess of the concentration specified under section 23-102), stock feeds, grit, sand and straw shall be removed prior to discharge.

(2) *Poultry processing waste.* All feathers, parts of birds, bones, grit, sand, poultry feeds, viscera and grease (in excess of the concentration specified under section 23-102) shall be removed prior to discharge.

(3) *Textile wastes.* All lint, thread, pieces of cloth, latex and yarn shall be removed prior to discharge. Kiering and acid boiling wastes shall be cooled, neutralized and stabilized to comply with the limits specified in this article. Bleachery wastes shall be cooled, neutralized and stabilized to comply with the limits specified in this article. Sulfur dyeing wastes shall not be discharged to the sanitary sewerage system. Discharge of other dyeing wastes will be considered on a case-by-case basis.

(4) *BOD.* Concentration of BOD in the waste in excess of 300 milligrams per liter shall be subject to charges set forth in section 23-108, and concentration in excess of 500 milligrams per liter shall be subject to further review before approval by the control authority.

(5) *Suspended solids.* Concentration of suspended solids in the waste in excess of 300 milligrams per liter shall be subject to charges set forth in section 23-108, and concentration in excess of 500 milligrams per liter shall be subject to further review before approval by the control authority.

(6) *Dissolved solids.* Allowable concentrations of dissolved solids shall be based on evaluation of industrial allocation and shall be determined by the control authority on a case-by-case basis.

(7) *Ceramic glazing wastes.* Ceramic glazing wastes shall not be discharged into the sanitary sewerage system.

(8) *Lime, alum and calcium sulfate sludges.* Lime, alum and calcium sulfate sludges shall not be discharged into the sanitary sewerage system; provided, however, sludges generated by operations of water treatment plants owned and operated by governmental entities may be discharged subject to quantity limitations and permit conditions deemed appropriate by the control authority.

(9) *Toxic materials.* Any wastewater containing toxic pollutants in sufficient quantity, either singly or by interaction with other pollutants, to injure or interfere with any wastewater treatment process, constitute a hazard to humans or animals, create a toxic effect in the receiving water of the sanitary sewerage system, or exceed the limitations established pursuant to section 23-104 shall be precipitated and removed from the waste flow prior to discharge to the sanitary sewerage system. Waste containing hexavalent chromium shall have chromium reduced to the trivalent state or further prior to discharge. Any discharge of hexavalent chromium is prohibited per section 23-102(a).

The omission of any particular waste from the standards outlined in this subsection does not imply that discharge of such waste to the sanitary sewerage system will be permitted. Any liquid waste of peculiar character and volume, or of toxic or unusual nature, shall be subject to review by the control authority and to standards deemed applicable by the control authority.

(h) *Measurement of volume.* The volume or quantity of industrial waste discharged by any person into the sanitary sewerage system shall be measured by one or more of the following methods:

(1) If the volume of water used by any person in his industrial or process operations is substantially the same as the volume purchased from the municipal waterworks system, then the volume of water purchased shall be considered to be the volume of waste discharged.

(2) If, in the establishment of any person discharging industrial waste into the sanitary sewerage system, a substantial portion of the water purchased from the municipal waterworks system is used for domestic or commercial purposes (resulting in normal waste), for cooling purposes, or for other purposes that do not require the discharge of such used water to the sanitary sewerage system, such person may, at his own

expense, install a meter of a design approved by the control authority on the waste line from his industrial and/or process operations. The volume of waste flow, as measured through the meter, shall be considered to be the volume of waste discharged to the sanitary sewerage system.

(3) If any person discharging or proposing to discharge industrial waste into the sanitary sewerage system does not secure his entire water supply requirements from the municipal waterworks system, such person shall, at his own expense, install a meter of a design approved by the control authority on the waste line from his industrial and/or process operations. The volume of waste flow, as measured through the meter, shall be considered to be the volume of waste discharged to the sanitary sewerage system.

(i) *Construction and maintenance of control manhole.* Any person discharging or proposing to discharge any industrial waste into the sanitary sewerage system shall construct, at his own expense, a control manhole on the waste line from his industrial and/or process operations for the purpose of facilitating observations, measurements and sampling of the industrial waste discharged from such person's establishment. The control manhole shall be constructed in a suitable and satisfactory location downstream from any pretreatment facilities, holding tanks or other approved works, and ahead of the point of discharge of such waste into the sanitary sewerage system. The design of the control manhole shall be in accordance with the requirements of the control authority. The control manhole shall be maintained by such person so as to be safe, accessible and in proper operating condition at all times.

(j) *Exemption from requirement for control manhole.* The requirement with respect to construction of a control manhole may be waived provided that:

(1) Total daily waste flow from the establishment of such person does not exceed the equivalent of 25,000 gallons of sanitary waste;

(2) The maximum rate of discharge from the establishment does not exceed 100 gallons per minute;

(3) Access, means and facilities are provided within such person's establishment for the purpose of observing, measuring and sampling the waste flow from such person's establishment; and

(4) The discharge of all such waste from the establishment is, in all other respects, in full compliance with this article.

(Ord. No. 2019-043, 8-20-19)

Sec. 23-104. Local limits.

(a) Local Limits are established in Local Limits for Industrial Discharges of Wastewater (Regulation Part 32).

(b) The maximum allowable headworks loading (MAHL) will be used to determine the maximum allowable industrial loading (MAIL), taking into account the contributions from the domestic sources, applying a safety factor and establishing a reserved capacity load for growth and analytical variability as deemed appropriate in the discretion of the control authority. User-specific limits for appropriate pollutants of concern shall be included in wastewater permits for industrial users based on the control authority's allocation on MAIL on a case-by-case basis depending on the individual industrial user's need for certain loading.

(b) An industrial waste survey (IWS) is required prior to an industrial user discharging wastewater to the sanitary sewerage system, when a request for a renewal is submitted, and when an industrial user makes a change to its waste stream. IWS information will be used to develop user-specific local limits as appropriate to ensure that the POTW's MAHLs are not exceeded for particular pollutants of concern. The control authority may establish local limits as concentration-based, mass-based, or both. All significant industrial users shall install and maintain an accurate flow measuring device at the compliance sampling point. The control authority, in its sole discretion, may require other industrial users to install and maintain an accurate flow measuring device at the compliance sampling point.

(c) On a case-by-case basis, the control authority may, in its sole discretion, develop BMPs, by ordinance or in individual wastewater discharge permits, to implement local limits.

(d) The control authority reserves the right to establish limitations and requirements which are more stringent than those required by either state or federal regulation if deemed necessary to comply with the objectives presented in this ordinance or the general and specific prohibitions in section 23-102 of this article, as is allowed by S.C. Reg. 61-9.403.4. (Ord. No. 2019-043, 8-20-19)

Sec. 23-105. Discharge permit required; issuance; conditions.

(a) *Permit required.* Any person desiring to deposit or discharge any industrial waste or other pollutant into the sanitary sewerage system or any person now discharging any industrial waste or other pollutant into the sanitary sewerage system shall make application to the control authority. The control authority will approve such application and issue a permit to discharge only when satisfactory evidence is submitted by the applicant to the control authority that the discharge of such industrial waste or other pollutants is in full compliance with this article.

(b) *Application.* In addition to the requirements and criteria set for in section 23-103, persons seeking a permit shall complete and file with the control authority an application in the form prescribed by the control authority. The applicant shall submit, where appropriate:

(1) The name, address and telephone number of the applicant and the owner of the premises from which industrial wastes are intended to be discharged.

(2) Daily average volume of wastewater to be discharged.

(3) Schedule of all industrial process waste flows produced before and after pretreatment, if any, at the premises, including the daily volume, and wastewater constituents and characteristics as determined by representative samples and analyses done by a qualified laboratory acceptable to the control authority and in accordance with 40 CFR 136 and amendments thereto.

(4) Estimated time and duration of discharge within a 20 percent tolerance.

(5) Estimated hourly peak wastewater flow rates, including daily, monthly and seasonal variations within a 20 percent tolerance.

(6) Site and plumbing plans describing any pretreatment facilities and showing all connections to the sanitary sewerage system.

(7) A description of activities, facilities and plant processes on the premises, including all process waste materials which are or could be discharged, but excluding proprietary information concerning processes and products.

(8) Type or classes of products produced.

(9) The average number of employees and normal hours of work.

(10) Any other relevant information as may be deemed by the control authority to be necessary to evaluate the permit application.

(c) *Failure to apply for permit.* The responsibility for filing an application for a permit to discharge shall rest upon the person discharging or proposing to discharge industrial waste or other pollutants to the sanitary sewerage system. Should such person fail to file an application for a permit to discharge and should such person then be discharging any industrial waste or other pollutant to the sanitary sewerage system, the control authority shall, after 24 hours' notice has been given, cause such person's water service from the public water system to be discontinued, and water service will be restored at such person's expense only after he has complied with the provisions of this article. If such person does not use water exclusively from the public water system, the control authority shall, after 24 hours' notice has been given, cause such person's connection to the sanitary sewerage system to be severed, and such connection will be restored at such person's expense only after he has complied with the provisions this article. The control authority may discontinue water service without providing 24 hours' notice if the control authority determines, in its discretion, that the unpermitted discharge has the potential to cause a substantial interference or pass through or potential to cause damage to the sanitary sewerage system or rapid deterioration of the system structures.

(d) *Discharging waste prior to approval of permit application.* Should any person discharging or proposing to discharge any industrial waste or other pollutant into the sanitary sewerage system file an application with the control authority for a permit to discharge and should such person then be discharging any industrial waste or other pollutant to the sanitary sewerage system prior to the issuance of a permit for the discharge, the control authority may discontinue the person's water service in accordance with

subsection (c) herein. The control authority, in its discretion, may authorize discharge of industrial waste into the sanitary sewerage system during the pendency of the permit application pursuant to a corrective action plan under an appropriate enforcement action.

(e) *General permits.* The control authority may, but is not required to, issue a general permit for any industrial sector which satisfies the criteria in S.C. Reg. 61-9.403.8(f)(iii)(A)(1). Industrial users seeking coverage under a general permit must submit an application in accordance with this section 23-105.

(f) *Compliance with discharge standards.* All permit holders shall make wastewater acceptable under the limitations established in this article and in their individual permits before discharging directly or indirectly into any part of the sanitary sewerage system. For existing industrial discharges, an appropriate compliance schedule may be included in the permit.

(g) *Compliance with permit conditions.* No permit holder shall discharge industrial wastewaters in excess of the quantity, rate of discharge, or quality conditions specified in the permit. Any person desiring to modify his discharge in a manner which would violate conditions of his permit shall notify the control authority in advance of such discharge and shall apply for an amended permit.

(h) *Issuance.* The control authority will evaluate the data furnished by the applicant and may require additional information. A proposed permit may be issued within 60 days after all data has been furnished to and accepted by the control authority. The applicant shall then be allowed a 30-day comment period. Upon the expiration of the comment period, or upon the expiration of 90 days from the date the data has been furnished and accepted, the control authority shall issue or deny a permit. A permit may contain appropriate restrictions that are more stringent than requirements and limitations set forth in this article; in such case such restrictions shall apply. Issuance of a permit shall not relieve the user from complying with all applicable laws, regulations and ordinances promulgated by other government authority, nor shall the issuance of a permit be construed as a representation by the city that the discharge permitted therein complies with all of such laws, regulations and ordinances.

(i) *Restrictions.* The restrictions in permits shall be uniformly enforced by the control authority, and may include but shall not be limited to the following:

(1) The maximum permissible concentration or mass of wastewater constituents. Permit limits may include nutrient-based limits, such as total phosphorous, total nitrogen, and ammonia nitrogen.

(2) Limits on rate and time of discharge, or requirements for flow regulation and equalization.

(3) Requirements for inspection, flow metering and sampling facilities, and alternative sampling methods.

(4) Pretreatment of industrial wastewater before discharge.

(5) Provisions for intentional diversion of waste streams from any portion of the pretreatment facility.

(6) Specifications for monitoring programs, which may include sampling locations, frequency and method of sampling, flow metering, number, types and standards for tests, and reporting schedule.

(7) Prohibition of discharge of certain wastewater constituents.

(8) Requirement for submission of periodic discharge reports, to include information concerning volume, rate of flow, constituent concentrations, peak flow rates, hours of operation, number of employees or other information.

(9) Requirements for the protection of the sanitary sewerage system.

(10) Other conditions as deemed appropriate by the control authority to ensure compliance with this article.

(j) *Term.* Permits shall be issued for any specified period of time, not to exceed five years.

(k) *Separate permit required for each connection; required conditions; transfer of permit.* A separate permit shall be required for each wastewater connection discharging directly or indirectly into the sanitary sewerage system. Each permit must contain effluent limits, including best management practices, based on applicable pretreatment standards and requirements to control slug discharge, if determined by the control authority to be necessary. For each user having multiple connections at a single plant or facility, a single permit shall be required which may set forth specific effluent limitations and conditions for discharge from each separate connection. No permit is transferable.

(l) *Pretreatment facilities.* Any facilities required for pretreatment or equalization of wastewater prior to discharge into the sanitary sewerage system shall be provided and maintained at the permit holder's expense. Where pretreatment or equalization of wastewater flows is required by the control authority, plans, specifications and other pertinent data or information relating to such pretreatment or flow control facilities shall be filed with the control authority prior to the construction thereof. Plans and specifications for industrial pretreatment facilities must also be submitted to the state department of health and environmental control, industrial wastewater division, for review and approval prior to construction. Neither filing of the plans nor the issuance of a permit shall be construed to indicate that the control authority in any way vouches for or warrants the capabilities of any such plans, specifications or data in any manner. Subsequent alterations or additions to such pretreatment of flow control facilities shall not be made without prior notice to the control authority.

(m) *Surveys and zero discharge industrial users.* For the purpose of maintaining an accurate, up-to-date industrial user inventory, the control authority may, at its discretion, require the submittal of a survey questionnaire from any nondomestic user. Upon request by the city, a zero discharge industrial user shall submit an survey questionnaire to the city to include the means by which the zero discharge industrial user will manage non-domestic

waste without discharge to the POTW. The survey questionnaire must be certified in accordance with section (n)(12) below and signed by an authorized representative of the user. In its discretion, the city may issue a permit to a zero discharge industrial user. If a permit is not issued to a zero discharge industrial user, the city may require an annual statement and documentation to demonstrate that the zero discharge industrial user is managing non-domestic waste without discharge to the POTW. If required, this annual statement must be certified in accordance with section (n)(12) below and signed by an authorized representative of the user.

(n) *Reporting.* Sewer users that become subject to new or revised categorical pretreatment standards are required to comply with the following requirements.

(1) *Baseline monitoring reports.*

(i) Within either one hundred eighty (180) days after the effective date of a categorical pretreatment standard, or the final administrative decision on a category determination under S.C. Reg. 61-9.403.6(a)(4), whichever is later, existing categorical industrial users currently discharging to or scheduled to discharge to the POTW shall submit to the control authority a report which contains the information listed in paragraph ii, below. At least ninety (90) days prior to commencement of their discharge, new sources, and sources that become categorical industrial users subsequent to the promulgation of an applicable categorical standard, shall submit to the control authority a report which contains the information listed in paragraph (ii), below. A new source shall report the method of pretreatment it intends to use to meet applicable categorical standards. A new source also shall give estimates of its anticipated flow and quantity of pollutants to be discharged.

(ii) Industrial users described above shall submit the information set forth below.

1. Identifying information. The user shall submit the name and address of the facility including the name of the operator and owners;

2. Permits. The user shall submit a list of any environmental control permits held by or for the facility;

3. Description of operations. The user shall submit a brief description of the nature, average rate of production, and Standard Industrial Classification of the operations(s) carried out by such industrial user. This description should include a schematic process diagram which indicates points of discharge to the POTW from the regulated processes.

4. Flow measurement. The user shall submit information showing the measured average daily and maximum daily flow, in gallons per day, to the control authority from each of the following:

a. Regulated process streams; and

b. Other streams as necessary to allow use of the combined wastewater formulate of S.C. Reg. 61-9.403.6(e).

5. Measurement of pollutants.

a. The user shall identify the pretreatment standards applicable to each regulated process.

b. In additional, the user shall submit the results of sampling and analysis identifying the nature and concentration (or mass, where required by the standard or control authority) of regulated pollutants in the discharge from each of the user's regulated processes. Both daily maximum and average concentration (for mass, where required)

shall be reported. The sample shall be representative of daily operations. In cases where the standard requires compliance with a best management practice or pollution prevention alternative, the user shall submit documentation as required by the control authority or the applicable standards to determine compliance;

c. A minimum of four grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide, and volatile organics. For all other pollutants, 24-hour composite samples must be obtained through flow-proportional composite sampling techniques where feasible. The control authority may waive flow-proportional composite sampling techniques for any industrial user that demonstrates that flow-proportional sampling is infeasible. In such cases, samples may be obtained through time-proportional composite sampling techniques or through a minimum of four grab samples where the user demonstrates that this will provide a representative sample of the effluent being discharged.

d. The user shall take a minimum of one representative sample to compile that data necessary to comply with the requirements of this paragraph.

e. Samples should be taken immediately downstream from pretreatment facilities if such exist or immediately downstream from the regulated process if no pretreatment exists. If other wastewaters are mixed with the regulated wastewater prior to pretreatment the industrial user should measure the flows and concentrations necessary to allow use of the combined wastestream formula of S.C. Reg. 61-9.403.6(e) in order to evaluate compliance with the pretreatment standards. Where an alternate concentration or mass limit has been calculated in accordance with S.C. Reg. 61-9.403.6(e) this adjusted limit along with supporting data shall be submitted to the control authority;

f. Sampling and analysis shall be performed in accordance with the techniques prescribed in 40 CFR part 136 and amendments thereto. Where 40 CFR part 136 does not contain sampling or analytical techniques for the pollutant in question, or where the EPA determines that the part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analysis shall be performed by using validated analytical methods or any other applicable sampling and analytical methods procedures, including procedures suggested by the control authority or other parties;

g. The control authority may allow the submission of a baseline report which utilizes only historical data so long as the data provides information sufficient to determine the need for industrial pretreatment measures;

h. The baseline report shall indicate the time, date and place of sampling, and methods of analysis, and shall certify that such sampling and analysis is representative of normal work cycles and expected pollutant discharge to the POTW.

6. Compliance schedule. If additional pretreatment and/or operation and maintenance will be required to meet the pretreatment standards, the shortest schedule by which the industrial user will provide such additional pretreatment and/or O&M must be provided. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard; and

7. Signature and report certifications. All baseline monitoring reports must be certified in accordance with this section (n)(12) below and signed by an authorized representative of the user. A compliance certification must be signed by an authorized representative of the user.

(2) *Compliance schedule progress reports.* The following conditions shall apply to the compliance schedule required by section (1)(ii)(6) above:

(i) The schedule shall contain progress increments in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the industrial user to meet the applicable pretreatment standards (such events include, but are not limited to, hiring an engineer, completing preliminary and final plans, executing contracts for major components, commencing and completing construction, and beginning and conducting routine operation);

(ii) No increment referred to above shall exceed nine months;

(iii) The user shall submit a progress report to the control authority no later than 14 days following each date in the schedule and the final date of compliance including, as a minimum, whether or not it complied with the increment of progress, the reason for any delay, and, if appropriate, the steps being taken by the industrial user to return to the established schedule; and

(iv) In no event shall more than nine months elapse between such progress reports to the control authority.

(3) *Reports on compliance with categorical pretreatment standard deadline.* Within 90 days following the date for final compliance with applicable categorical pretreatment standards, or in the case of a new source following commencement of the introduction of wastewater into the POTW, any user subject to such pretreatment standards and requirements shall submit to the control authority a report containing the information described in section (1)(ii)(1) through (7) above. All compliance reports must be signed and certified in accordance with section (n)(12) below. All sampling will be done in conformance with section (1)(ii)(5)(f) above.

(4) *Periodic compliance reports.*

(i) All significant industrial users must, at a frequency determined by the control authority submit no less than twice per year (January and July) reports indicating the nature, concentration of pollutants in the discharge which are limited by pretreatment standards and the measured or estimated average and maximum daily flows for the reporting period. In cases where the pretreatment standard requires compliance with a best management practice or pollution prevention alternative, the user must submit documentation required by the control authority or the pretreatment standard necessary to determine the compliance status of the user.

(ii) All periodic compliance reports must be signed and certified in accordance with section (n)(12) below.

(iii) All wastewater samples must be representative of the user's discharge. Wastewater monitoring and flow measurements facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of a user to keep its monitoring facility in good working order shall not be grounds for the user to claim that sample results are unrepresentative of its discharge.

(iv) If a user subject to the reporting requirement in this section monitors any regulated pollutant at the appropriate sampling location more frequently than required by control authority, the results of this monitoring shall be included in the report.

(5) *Reports of changed conditions.* Each user must notify the control authority of any significant changes to the user's operations or system which might alter the nature, quality, or volume of its wastewater at least 30 days before the change.

(i) The control authority may require the user to submit such information as may be deemed necessary to evaluate the changed condition, including the submission of a wastewater discharge permit application under section (b) above.

(ii) The control authority may issue an individual wastewater discharge permit or modify an existing wastewater discharge permit in response to changed conditions or anticipated changed conditions.

(6) *Reports of potential problems.*

(i) In the case of any discharge, including, but not limited to, accidental discharges, discharges of a nonroutine, episodic nature, a noncustomary batch discharge, a slug discharge or slug load, that might cause potential problems for the POTW, the user shall immediately telephone and notify control authority in writing of the incident. This notification shall include the location of the discharge, type of waste, concentration and volume, if known, and corrective actions taken by the user.

(ii) A notice shall be permanently posted on the user's bulletin board or other prominent place advising employees who to call in the event of a discharge described in paragraph (i) above. Employers shall ensure that all employees, who could cause such a discharge to occur, are advised of the emergency notification procedure.

(iii) Significant industrial users are required to notify the control authority immediately of any changes at its facility affecting the potential for a slug discharge.

(7) *Reports from unpermitted users.* All users not required to obtain an individual wastewater discharge permit shall provide appropriate reports to the control authority in writing as the control authority may require.

(8) *Analytical requirements.* All pollutant analyses, including sampling techniques, to be submitted as part of a wastewater discharge permit application or report shall be performed in accordance with the techniques prescribed in 40 CFR Part 136 and amendments thereto, unless otherwise specified in an applicable categorical pretreatment standard. If 40 CFR Part 136 does not contain sampling or analytical techniques for the pollutant in question, or where the EPA determines that the Part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analyses shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the control authority or other parties approved by EPA.

(9) *Sample collection.* Samples collected to satisfy reporting requirements must be based on data obtained through appropriate sampling and analysis performed during the period covered by the report, based on data that is representative of conditions occurring during the reporting period.

(i) Except as indicated in section 23-107, the user must collect wastewater samples using 24-hour flow-proportional composite sampling techniques, unless time-proportional composite sampling or grab sampling is authorized by control authority. Where time-proportional composite sampling or grab sampling is authorized by the control authority, the samples must be representative of the discharge. Using protocols (including appropriate preservation) specified in 40 CFR Part 136 and appropriate EPA guidance, multiple grab samples collected during a 24-hour period may be composited prior to the analysis as follows: for cyanide, total phenols, and sulfides the samples may be composited in the laboratory or in the field; for volatile organics and oil and grease, the samples may be composited in the laboratory. Composite samples for other parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by the control authority, as appropriate. In addition, grab samples may be required to show compliance with instantaneous standards.

(ii) Samples for oil and grease, temperature, pH, cyanide, total phenols, sulfides, and volatile organic compounds must be obtained using grab collection techniques.

(iii) For sampling required in support of baseline monitoring and 90-day compliance reports required by section (n)(1), (n)(2), and (n)(3) above, a minimum of four grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide and volatile organic compounds for facilities for which historical sampling data do not exist; for facilities for which historical sampling data are available, control authority may authorize a lower minimum. For the reports required by section (n)(4) above, the industrial user is required to collect the number of grab samples necessary to assess and assure compliance by with applicable pretreatment standards and requirements.

(10) *Date of receipt of reports.* Written reports will be deemed to have been submitted on the date postmarked and deposited in a mail collection box or facility serviced by the United States Postal Service, postage prepaid. For reports, which are not mailed, postage prepaid, into a mail collection box or facility serviced by the United States Postal Service, the date of receipt of the report shall govern.

(11) *Recordkeeping.* Users subject to the reporting requirements of this article shall retain, and make available for inspection and copying, all records of information obtained pursuant to any monitoring activities required by this article, any additional records of information obtained pursuant to monitoring activities undertaken by the user independent of such requirements, and documentation associated with best management practices. Records shall include the date, exact place, method, and time of sampling, and the name of the person(s) taking the samples; the dates analyses were performed; who performed the analyses; the analytical techniques or methods used; and the results of such analyses. These records shall remain available for a period of at least three years. This period shall be automatically extended for the duration of any litigation concerning the user or the control authority, or where the user has been specifically notified of a longer retention period by control authority.

(12) *Certification statements.* The following certification statement is required to be signed and submitted by users submitting permit applications in accordance with section (b); users submitting baseline monitoring reports under section (n)(1); users submitting reports on compliance with the categorical pretreatment standard deadlines under section (n)(3); and users submitting periodic compliance reports required by section (n)(4). The following certification statement must be signed by an authorized representative:

I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submit-

ted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

(Ord. No. 2019-043, 8-20-19; Ord. No. 2021-029, 5-4-21)

Sec. 23-106. Right of entry of enforcement officers; right to exclude or limit wastes; compliance with state and federal standards.

(a) The control authority, the state department of health and environmental control and other duly authorized employees of the city and/or the state department of health and environmental control, bearing proper credentials and identification, shall be permitted to enter upon all properties for the purpose of inspection, observation, flow measurement, examination and copying of records and testing of industrial waste and other pollutants in accordance with this chapter.

(b) The control authority may temporarily exclude from the sanitary sewerage system any industrial waste or other pollutant, whether pretreated or not, whenever in the opinion of the control authority such action is necessary for the purpose of determining the effects of such waste upon the sanitary sewerage system and the waste treatment facilities.

(c) The city council may exclude from the sanitary sewerage system any industrial waste or other pollutant, whether pretreated or not, whenever in the opinion of the city council such action is necessary to protect the sanitary sewerage system and the waste treatment facilities or to facilitate the operation of the sanitary sewerage system and the waste treatment facilities.

(d) The control authority is authorized to implement and enforce the requirements of this article, including, but not limited to, the implementation and enforcement of the program requirements set forth in S.C. Reg. 61-9.403.5 and 403.8. The city council may set limits on toxic and priority pollutants that are more stringent than state and federal requirements when it is necessary for the protection of the sanitary sewerage system and/or proper operation of the waste treatment facilities.

(e) Federal and state requirements and limitations on discharges shall apply in any case where they are more stringent than requirements and limitations as set forth in this article. All users must comply with applicable categorical pretreatment standards as set forth in 40 CFR chapter I, subchapter N.

(Ord. No. 2019-043, 8-20-19)

Sec. 23-107. Determination of character and strength of wastes; accidental discharges; confidentiality of information; publication of names of noncomplying users.

(a) The industrial waste and/or other pollutants being discharged by any person into the sanitary sewerage system shall be subject to periodic inspection. A determination of character and strength of those wastes shall be made annually, or more often as may be deemed necessary, by the control authority or his authorized assistants.

(b) Samples shall be collected in such a manner as to be representative of the wastes being discharged. The laboratory methods followed in the examination of those wastes shall be those as set forth in 40 CFR 136 and amendments thereto.

(c) The determination of the character, strength or quantity of the wastes as made by the control authority or his authorized assistants shall be binding as a basis for computation of charges or for actions by the control authority. The person discharging such wastes may, however, conduct his own sampling and analytical program and submit to the control authority the results relating to character, strength and quantity of the wastes. In such cases, however, the securing of samples shall be in accordance with methods acceptable to the control authority, and the laboratory procedures followed in analyzing the samples shall be as specified in subsection (b) of this section. Acceptance or rejection of the results thus submitted shall be a right reserved for the control authority.

(d) The control authority may require any industrial user to construct and maintain a wastewater monitoring facility of a design or configuration acceptable and sufficient to accomplish monitoring requirements as set forth in the permit.

(e) The sampling, analysis and flow measurement procedures, equipment, data and test results shall be subject at any reasonable time to inspection by the control authority. The control authority may require the submission of all discharge monitoring results generated by testing methods described in 40 CFR 136. Flow measurement systems and all appropriate equipment shall be regularly calibrated in accordance with procedures acceptable to the control authority.

(f) Users shall notify the control authority immediately (within 24 hours) by telephone or in person upon discharging wastes in violation of this article accidentally or otherwise. Such notification shall be followed, within five days of the day of occurrence, by a detailed written statement to the control authority, describing the causes of the accidental discharge and the measures being taken to prevent future occurrences. The control authority may require the user to conduct follow-up testing in accordance with methods described in 40 CFR 136 and submit the test results within 30 days, as specified in S.C. Reg. 61-9.403.12(g)(2). Users are required to take all reasonable countermeasures to stop the discharge and to neutralize its effect, if possible. The control authority may require the user to provide protection from accidental discharge of prohibited materials or other wastes controlled by this article. If the user knows in advance of the need for a bypass, as defined in S.C. Reg. 61-9.403.17(a), the user shall submit prior notice to the control authority, if possible at least ten days before the date of the bypass.

(g) Should measurements or other investigations indicate that the industrial user has discharged wastewater, the constituents of which are significantly different in quantity or quality from those stated by the user, the control authority shall notify the user and require that the user furnish all information in his possession that is relevant.

(h) Information and data on a user obtained from reports, questionnaires, permit applications, permits and monitoring programs and from inspections shall be available to the public or other governmental agencies without restriction unless the user specifically requests and is able to demonstrate to the satisfaction of the city that the release of such information would divulge information, processes or methods of production entitled to protection as trade secrets of the user. When requested by the person furnishing a report, the portions of a report which might disclose trade secrets or secret processes shall not be made available for inspection by the public, but shall be made available upon written request to governmental agencies for uses related to this article, the National Pollutant Discharge Elimination System permit, the state disposal system permit and/or the pretreatment programs; provided, however, that such portions of a report shall be available for use by the state or any state agency in judicial review or enforcement proceedings involving the person furnishing the report. Discharge monitoring data or reports will in no instance be considered subject to withholding from public inspection.

(i) The control authority shall at least annually provide public notification, in the largest daily newspaper published in the metropolitan Columbia sewer service area, of industrial users which during the previous 12 months were, at least once, in significant noncompliance with any provision of this article or any condition or limitation of a permit issued in accordance with this article.

(j) In addition to the requirements of subsection (f) in this section, any user who discharges hazardous waste into the sanitary sewerage system shall notify the control authority, the EPA Regional Waste Management Division Director, and State hazardous waste authorities, in writing, of any such discharge which, if otherwise disposed of, would be a hazardous waste under S.C. Reg. 61-79 Part 261. Such notification must include the name of the hazardous waste as set forth in S.C. Reg. 61-79 Part 261, the EPA hazardous waste number, and the type of discharge (continuous, batch, or other). If the user discharges more than one hundred (100) kilograms of such waste per calendar month to the POTW, the notification also shall contain the following information to the extent such information is known and readily available to the user: an identification of the hazardous constituents contained in the wastes, an estimation of the mass and concentration of such constituents in the wastestream discharged during that calendar month, and an estimation of the mass of constituents in the wastestream discharged during the following twelve (12) months. All notifications must take place no later than one hundred and eighty (180) days after the discharge commences. Any notification under this paragraph need be submitted only once for each hazardous waste discharged. However, notifications of changed conditions must be submitted under section 23-105(n)(5) of this article. The notification requirement in this section does not apply to pollutants already reported by users subject to categorical pretreatment standards under the self-monitoring requirements of this article.

(1) Dischargers are exempt from the requirements of subsection (j), above, during a calendar month in which they discharge no more than 15 kilograms of hazardous wastes, unless the wastes are acute hazardous wastes as specified in S.C. Reg. 61-79.261.30(d) and 261.33(e). Discharge of more than fifteen (15) kilograms of

nonacute hazardous wastes in a calendar month, or of any quantity of acute hazardous wastes as specified in S.C. Reg. 61-79.261.30(d) and 261.33(e), requires a one-time notification. Subsequent months during which the user discharges more than such quantities of any hazardous waste do not require additional notification.

(2) In the case of any new regulations under section 3001 of RCRA identifying additional characteristics of hazardous waste or listing any additional substance as a hazardous waste, the user must notify the control authority, the EPA Regional Waste Management Waste Division Director, and State hazardous waste authorities of the discharge of such substance within ninety (90) days of the effective date of such regulations.

(3) In the case of any notification made under this subsection (j), the user shall certify that it has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical.

(4) This provision does not create a right to discharge any substance not otherwise permitted to be discharged by this articlr, a permit issued thereunder, or any applicable federal or state law.

(Ord. No. 2019-043, 8-20-19)

Sec. 23-108. Liability for extra costs incurred by city; charge for excess BOD or suspended solids.

(a) *Liability for costs associated with violation.* Any person who violates any provision of this article, or any condition or limitation of a permit or plan approval related thereto, shall be financially responsible and liable to the city, in addition to normal service charge and surcharges for industrial wastes, for all costs incurred by the city associated with the violation of this article, including but not limited to the following:

(1) Costs of mileage and labor incurred in detecting and correcting the violation.

(2) Laboratory analysis costs associated with detecting and correcting the violation.

(3) Additional treatment costs caused by the violation or associated with detecting and correcting the violation.

(4) Repair and/or replacement of any part of the sanitary sewerage system damaged by the violation.

(5) Any liability, damages, fines or penalties incurred by the city as a result of the violation.

(6) Other costs as are associated with the detecting and correcting of the violation.

(b) *Surcharge for excess BOD or suspended solids.* If any person discharges into the sanitary sewerage system a waste containing BOD concentration or suspended solids in excess of 300 milligrams per liter, then such person shall pay an additional cost according to rates determined by the city council as established in section 23-149(c).

(c) *Liability for additional expense in handling and treatment of waste.* If any person discharges into the sanitary sewerage system a waste which, because of its particular or unusual character, imposes an unusual burden on the sanitary sewerage system and the waste treatment facilities, and causes the city to incur additional expenses in the handling (conveying) and treatment of the waste by reason of (but not limited to) provision of additional personnel, provision of additional equipment or structures, increase in operating costs, and decrease in efficiency of treatment processes required by and resulting from the handling and treatment of the waste, then such person shall be charged for such additional expense over and above the other charges set forth in this section. The control authority shall determine whether any person is causing the city to incur such additional expense and, if so, the amount of such additional expense.
(Ord. No. 2019-043, 8-20-19)

Sec. 23-109. Damaging or tampering with city equipment.

No person shall maliciously, willfully or negligently break, damage, destroy, deface, tamper with or remove any equipment or materials used by the city for the purpose of making waste examinations and waste flow measurements and left upon the premises of a person discharging wastes into the sanitary sewerage system. Only authorized persons will be allowed to uncover, adjust, maintain and remove such equipment and materials.
(Ord. No. 2019-043, 8-20-19)

Sec. 23-110. Applicability of article; right of city to amend article.

This article shall apply to any person discharging or proposing to discharge waste into the sanitary sewerage system. This article shall not be considered as or construed to be a contract between the city and any person. The city hereby expressly reserves the right to amend, change or repeal this article at any time.
(Ord. No. 2019-043, 8-20-19)

Sec. 23-111. Termination of water or wastewater service; revocation of discharge permit.

(a) The control authority may suspend or terminate water and/or wastewater service when:

(1) When the conditions through the discharge of pollutants presents an imminent endangerment to the public or to the environment;

(2) Materials damaging to the sanitary sewerage system or treatment processes are released by the discharger to the sewer system, causing rapid deterioration of these structures or interfering with property conveyance or treatment of wastewater;

(3) It is determined that the industrial user is delivering into the sanitary sewerage system wastes that cannot be sufficiently treated, or require treatment that is not normally provided, or are a contributing cause of the city's inability to meet applicable NPDES effluent limitations for its wastewater treatment plants;

(4) The user discharges to the sanitary sewerage system without a permit in violation of section 23-105;

(5) The user violates the Fats, Oils, and Grease Management Regulation (Part 29); or

(6) The user has repeatedly violated this article or its permit to such an extent that compliance with this article or the permit cannot, in the judgment of the control authority, reasonably be expected.

(b) Violation of any of the following conditions may result in the revocation of an industrial wastewater permit:

(1) Failure of the industrial user to accurately and fully report the wastewater volume, constituents and characteristics used to report significant changes in wastewater volume, constituents or characteristics;

(2) Refusal of reasonable access to the industrial user's premises for the purpose of inspection or monitoring;

(3) Failure to pay any and all costs and fees as outlined in sections 23-105 and 23-108, a sewer user charge or other charges, penalties, costs and expenses;

(4) Violation of any condition of the permit or of any of the then-current regulations or discharge prohibitions;

(5) Failure to report spill or unauthorized discharges;

(6) Failure to factually report the wastewater constituents and characteristics of the discharge;

(7) Failure to report a significant change in operations, or wastewater constituents and characteristics;

(8) Failure to install or deliberately altering monitoring equipment;

(9) Failure to properly operated and maintain wastewater equipment;

(10) Failure to meet a deadline in a compliance schedule;

(11) Improper sampling;

(12) Slug load discharge;

(13) Dilution of wastewater in lieu of treatment;

(14) Falsifying reports;

(15) Discharge of wastewater prohibited by this regulation; or

(16) Significant noncompliance with schedules, pretreatment standards or requirements, or with any terms of a permit issued pursuant to this article.

(c) Before any further discharge of industrial wastewater may be made by a user whose permit has been revoked, the user must apply for and be granted a reinstatement of the terminated permit or a new permit, as the control authority may require, and pay all delinquent fees, charges and costs occasioned by the violation. Costs shall include all

expenses, including general and administrative expenses, incurred by the city in revoking the permit and disconnecting the user from the sanitary sewerage system, and those incurred due to the violation as provided in this article. This shall be paid for by the user before any new permit will be issued. When all costs cannot be readily determined, the city may require and accept a deposit which it considers sufficient and which will be subject to appropriate adjustment after all costs have been determined.
(Ord. No. 2019-043, 8-20-19)

Sec. 23-112. Violations; administrative orders; penalties.

(a) *Civil penalties:* Any person who violates the provisions of this artiule or the provisions of any permit or order issued pursuant to this article is subject to a civil penalty of up to $2000.00 for each day of violation. Each day on which a violation occurs or continues shall be deemed a separate and distinct violation. In the case of a monthly or long-term average discharge limit, the civil penalty may be assessed for each day during the period of the violation. Prior to imposition of a civil penalty, the city will issue a rule to show cause pursuant to section 23-1.

(b) *Administrative orders:* In addition to any other remedy available under this section, the POTW may issue an administrative order (1) imposing a schedule to achieve compliance with this article or a permit issued pursuant to this article, (2) ordering a user to cease and desist activities, including the discharge of wastewater, in violation of this article or a permit issued pursuant to this article, (3) terminating water and sewer service, (4) revoking a permit issued pursuant to this article; or (5) ordering such other action as deemed necessary to address a violation of this article or a permit issued pursuant to this article. Any person who has been issued an administrative order may request a hearing by filing a request for hearing within fifteen calendar days of the date of issuance of the administrative order. The request shall be filed with the city clerk and shall include reference to the administrative order and the reasons for the request for a hearing. The hearing shall be conducted in accordance with section 23-1.

(c) *Criminal penalties:* Any person who knowingly discharges waste into any portion of the system in violation of this article; or who knowingly makes any false statement, representation or certification in any application, record, report, plan or other document or files required to be maintained pursuant to this article or any wastewater contribution permit; or who falsifies, tampers with or knowingly renders inaccurate any monitoring device, shall be deemed guilty of a misdemeanor, punishable, upon conviction, in accordance with section 1-5, with a fine of not more than $500.00 or imprisonment for not more than 30 days, or both. Each day on which a violation shall occur or continue shall be deemed a separate and distinct offense.

(d) *Injunctive relief:* In addition to any other criminal or civil remedies that may be available under this section, the POTW may bring a civil action to obtain an injunction against any person in violation of this article or any provision of a permit or order issued pursuant to this article.
(Ord. No. 2019-043, 8-20-19)

Sec. 23-113. Bond or indemnity agreement.

In any and all instances where the city has reasonable cause to believe that any of the rules, regulations or provisions set forth in this article or that have otherwise been adopted by the city have been, may be or are being violated by any person discharging water into the sanitary sewerage system, the city may require such person to give bond or enter into an indemnity agreement in form acceptable to the city with sufficient surety to be approved by the city attorney to protect, indemnify and hold harmless the city from any loss, damage or expense that it may suffer or incur as a result of such noncompliance or violation by such person. In the event of failure to do so after ten days' notice by United States mail that such bond or agreement will be required, the use of the sanitary sewerage system by such person shall be denied or discontinued.
(Ord. No. 2019-043, 8-20-19)

Sec. 23-114. Use of privies.

(a) The term "privy," as used in this section, includes any building, structure or facility of any kind, including portable toilet units, which are not connected to the sanitary sewerage system or to an approved septic tank.

(b) No person shall construct, install or maintain any privy within the city, except on a construction site for use by construction workers during the period for which a building permit has been issued by the city, or for special events of not more than 48 hours, or for outdoor recreational events.

(c) Any person violating this section shall be guilty of a misdemeanor and, upon conviction, shall be punished in accordance with section 1-5. Each day of violation shall constitute a separate offense.
(Ord. No. 2019-043, 8-20-19)

Sec. 23-115. Discharge of septic tank waste.

(a) It shall be unlawful for any person to discharge solid or liquid waste into the sanitary sewerage system unless the standards of acceptable waste established by ordinance are met and the discharge is made through an approved connection. No material shall be discharged into the public sewer system except at an approved location with a permit issued by the director of utilities pursuant to section 23-103(f).

(b) Hauled waste shall be deposited at an approved location at the wastewater treatment plant. Each depositor shall be approved by the director of utilities and issued a permit pursuant to section 23-103(f). Discharge of wastewater transported from private utilities is prohibited.
(Ord. No. 2019-043, 8-20-19)

Sec. 23-116. Use of septic tanks where public sewer is available.

It shall be unlawful for any person owning property within the city to maintain or use a septic tank where a public sewer is accessible for connection, subject to the following

exception: Use of a septic tank in existence prior to the availability of a public sewer accessible for connection is permitted until such time as S.C. Reg. 61-56 requires connection to the public sewer. Such connection shall be made within 30 days after the owner of the property serviced by the septic tank is required to connect to a public sewer pursuant to S.C. Reg. 61-56. Installation of new septic tanks where a public sewer is accessible is strictly prohibited. Any violation of this section shall be a misdemeanor, punishable, upon conviction, in accordance with section 1-5.
(Ord. No. 2019-043, 8-20-19)

Sec. 23-117. Additional regulations.

Rules and regulations relating to discharge of waste into the sanitary sewerage system are not included in this codification. Copies of the rules and regulations are on file in the office of the city clerk.
(Ord. No. 2019-043, 8-20-19)

Secs. 23-118—23-140. Reserved.

ARTICLE V. WATER AND SEWER RATES*

Sec. 23-141. Security deposits.

(a) A non-refundable application/transfer fee in the amount of $30.00 is required for all applications for new water and/or sewer service or requests to transfer existing water and/or sewer accounts.

(b) Water and/or sewer service accounts two months in arrears shall be terminated for nonpayment, until a termination notice has been mailed to the billing address on file for the account. Service will be subject to termination 15 days after the date of the termination notice.
(Code 1979, § 5-4012; Ord. No. 2003-049, 3-10-04)

Sec. 23-142. Interest on past due accounts.

Interest at the rate of one and one-half percent per month shall be added to all account balances more than 30 days past due.
(Ord. No. 95-51, 6-21-95)

Sec. 23-143. Water service rates.

Generally. Except as otherwise provided by contract, monthly water service charges shall be as follows:

***Cross reference—**Special fees and taxes, ch. 20.

Monthly Water Use (cubic feet)	*Meter Size (inches)*	*In City*	*Out of City*
Minimum—300	¾"	$8.96	$15.23
	1"	$14.95	$25.42
	1½"	$22.40	$38.08
	2"	$35.83	$60.92
	3"	$71.68	$121.84
	4"	$111.98	$190.38
	6"	$224.25	$381.21
	8"	$358.35	$609.20
	10"	$711.51	$1,209.57
Additional charge per 100 cubic feet			

Volumetric Charges are based on the customer category.

Monthly Water Use (cubic feet)	*In City*	*Out of City*
Residential:		
Next 9,700	$3.21	$5.47
Next 90,000	$3.06	$5.20
Over 100,000	$2.90	$4.90
Irrigation:		
Next 9,700	$5.47	$9.29
Next 90,000	$5.20	$8.84
Over 100,000	$4.90	$8.36
All others:		
Next 9,700	$3.06	$5.20
Next 90,000	$2.89	$4.90
Next 1,120,000	$2.70	$4.61
Over 1,220,000	$2.70	$3.86

Water service charges and volumetric charges may be calculated using gallons as the unit of measure with the above-referenced rates utilized for conversion purposes so that the overall cost of service remains unchanged.

(Code 1979, § 5-4001; Ord. No. 94-27, 6-8-94; Ord. No. 98-40, 6-17-98; Ord. No. 2000-042, 6-14-00; Ord. No. 2002-046, 6-19-02; Ord. No. 2003-049, 3-10-04; Ord. No. 2005-057, 6-22-05; Ord. No. 2006-046, 11-18-06; 2007-044, 6-27-07; Ord. No. 2008-039, 6-18-08; Ord. No. 2010-089, 6-23-10; Ord. No. 2011-027, 6-21-11; Ord. No. 2012-050, 6-26-12; Ord. No. 2013-013, 3-26-13; Ord. No. 2015-025, 6-16-15; Ord. No. 2017-044, 6-20-17; Ord. No. 2018-027, 6-19-18; Ord. No. 2019-039, 6-18-19; Ord. No. 2019-073, 10-15-19; Ord. No. 2021-041, 5-18-21; Ord. No. 2023-059, 6-20-23)

Sec. 23-144. Special water service fees.

(a) *Fee for turning on water*. A fee of $5.00 will be charged for turning on water, except for the first time after a new service is established.

(b) *Delinquency fee.* A fee of $40.00 will be charged when service is discontinued for nonpayment, a past due bill is collected, or a delinquent notice is left.

(c) *Dishonored checks, credit card payments and electronic payments.* A charge in the maximum amount permitted by South Carolina law shall be added to a water account for each returned or bad check given on the account. If payment was made by electronic funds transfer or credit card and a chargeback is ordered, the same administrative fee applicable for returned checks shall be added to the water account for each chargeback.

Water service shall be terminated immediately upon dishonor of a check, credit card payment or electronic payment chargeback on an account which is two months in arrears.

(d) *Restoration of discontinued service; service calls in connection with delinquent account.* A fee of $80.00 will be charged for replacing a meter or removing a locking device to restore discontinued service, or for a service call involving a vehicle in connection with a delinquent account:

(e) *Installation of fire hydrant meter.* A fee of $1,000.00 will be charged for installing all fire hydrant meters. No connection to a fire hydrant shall be made by any person other than an authorized employee of the city except through a permitted fire hydrant meter. If hydrant meter is returned undamaged within three years, the applicant is eligible to receive a credit up to $700.00.

(f) *Charges to constitute lien; discontinuance of service authorized.* All fees and charges for water service shall be a lien on the property served as provided by contract with the water customer. Services shall be discontinued for any account which is two months in arrears; provided that the city manager or his designee may authorize continued service in a hardship case upon the execution of an acceptable payment schedule which will bring the account current in not more than 12 months with payment in full for continued service.

(g) *Testing of backflow devices.* A fee of $200.00 per backflow device shall be charged for the annual testing and certification of reduced pressure backflow devices and double check valves if the customer does not provide the City with annual testing results. Testing and certification shall be performed by the city on all such devices. This fee shall be added to the charges for water service.

(h) *Locating and uncovering meter or backflow device.* The actual cost of locating, uncovering and inspecting any water meter or backflow device covered by grading or filling shall be added to the charges for water service.

(i) *Unauthorized use fee (straight connection to hydrant).* A fee of $150.00 shall be charged.

(j) *Unauthorized use fee (straight connection to waterline).* A fee of $500.00 shall be charged.

(k) *Fees associated with meters.*

(1) *Meter test:* One test every three years at the customer's request. Over one test within three years, the following fees will be charged:

a. $100.00 for ¾" meter.

b. $200.00 for 1"—2" meter.

c. No charge if testing results indicate inaccurate meter reading in accordance with industry standards.

(2) Meter Replacement: $300.00 for ¾"—1" meter at customer request if meter is functioning properly.

(3) *Lock meter:* $40.00 fee will be charged for locking meter or lock replacement.

(l) *Utility review fee:* A fee of $250.00 shall be charged for review of water and sewer plans. Any complete redesign submittals for the same site shall be charged $250.00.
(Code 1979, § 5-4002; Ord. No. 2002-061, 8-21-02; Ord. No. 2008-005, 1-23-08; Ord. No. 2020-072, 9-15-20; Ord. No. 2021-042, 5-18-21)

Sec. 23-145. Installation of water meters and cross connection control devices.

(a) *Water meters.*

(1) Charges for water meter installation shall be:

Meter Size (inches)	*Installed by City Forces*	*Developer/Owner Installed*
¾	$2,512.00	$1,062.00
1	3,468.00	2,018.00
1½	4,350.00	2,900.00
2	8,490.00	7,040.00

(2) Water meter boxes for meters four inches and larger shall be site-constructed to city specifications by the owner's contractor at the owner's expense.

(3) Separate meters for exterior surface irrigation without sewer service charges may be permitted for any property served by regular potable water service.

(4) It shall be unlawful for any person to use water through a water meter installed for irrigation for any purpose other than outside surface irrigation. Violation of this subsection shall result in immediate summary forfeiture of the irrigation meter and tap, in addition to penalties provided by this Code.

(5) The water meter installation fees for temporary construction meters shall be those specified in this section for permanent service of the same size. When the temporary construction meter is adequate to provide the permanent service desired, it may be

converted to permanent service without payment of additional meter fees upon approval of the director of utilities and engineering. Such approval shall not be withheld when all other city requirements have been met.

(6) Non-residential water meters other than irrigation meters are subject to water and sewer charges in the city's sewer service area where sewer is available and provided to the property unless it is illustrated and proven to the city engineer and/or the director of engineering that under no circumstance can the water provided through the meter discharge into the sanitary sewer system.

(b) *Cross connection control devices.*

(1) Dual checkvalves one inch in size and under shall be purchased and installed by the city water distribution division, the cost of which is included in the meter installation fee.

(2) Other cross connection control devices designed to prevent backflow over one inch in size shall be purchased, installed, and properly maintained by the owner. All cross connection control devices shall be installed pursuant to the requirements of this code, the manufacturer's specifications, and any other applicable code or regulation. If any cross connection control device is contained in a protective cover or container, such as a water meter box, the entire cover or container shall be purchased, installed, and maintained by the owner at the owner's expense.

(3) It shall be unlawful for any person to use water through a meter provided by the city without an appropriate approved cross connection control device designed to prevent backflow being in place. Persons in violation of this subsection will be given 30 days' written notice to have an approved backflow preventer device installed, or water service will be discontinued. In those cases in which and approved backflow preventer device has not been installed within the 30 days, water service will be discontinued and the water meter removed. No further water service will be provided until such time as an approved cross connection control device designed to prevent backflow has been installed and an additional water meter installation fee has been paid.

(Code 1979, § 5-4003; Ord. No. 2000-034, 6-21-00; Ord. No. 2006-048, 11-15-06; Ord. No. 2006-109, 5-16-07; Ord. No. 2017-063, 8-1-17; Ord. No. 2023-117, 10-17-23)

Sec. 23-146. Fire hydrant, fire protection and sprinkler system charges.

(a) Fire hydrant charges added to water bills for out-of-city customers shall be:

(1) Residential, single unit.....$11.00

(2) Residential, multi-unit (served by one meter):

a. First unit.....11.00

b. Each additional unit.....8.25

(3) Small business.....13.75

(4) Commercial.....24.75

(5) Heavy commercial or light industry.....46.75

(6) Industry.....60.50

(b) The minimum charge shall be made for each out-of-city meter connected to the water line, even though it may be cut off.

(c) Where property served by private hydrants or sprinkler systems is outside of the city limits, the following rates will be charged, payable monthly:

(1) Hydrants: $48.00 per year each.

(2) Sprinkler systems: $0.24 per sprinkler head per year.

(d) Use of water through a meter installed for sprinkler system service for purposes other than outside irrigation shall result in forfeiture of the meter and service.

(e) It shall be unlawful for any person to cover a meter box through grading or fill dirt after the request for the meter to be installed has been made. Any violator of this subsection will be required to pay the cost of relocating the meter box.

(f) A fee of $175.00 shall be charged for each fire hydrant flow test made by the city engineer upon private application.

(g) Out-of-city customers in any county shall pay a fire protection charge as follows:

(1) Residential..... $ 2.00

(2) Residential, multi-unit (served by one meter):

a. First unit..... 2.00

b. Each additional unit..... 1.50

(3) Small business..... 2.50

(4) Commercial..... 4.50

(5) Heavy commercial or light industry..... 8.50

(6) Industry..... 11.00

(Code 1979, § 5-4006; Ord. No. 2012-050, 6-26-12; Ord. No. 2012-103, 2-5-13; Ord. No. 2012-103, 2-5-13; Ord. No. 2015-054, 9-1-2015; Ord. No. 2019-055, 7-16-19; Ord. No. 2023-067, 6-20-23)

Sec. 23-147. Installation of water meters serving fire protection sprinkler systems.

(a) Water meters serving fire protection sprinkler systems. Applicant shall be responsible for all costs of installation and materials, including cost of making connection to the main, cutting and repairing pavement, and restoration required to install a water meter to serve a fire protection sprinkler system. Water meters to serve fire protection sprinkler systems shall be purchased from the City of Columbia water division.

(b) Charges for water meters serving fire protection sprinkler systems shall be the city's cost of the meter times 1.15.

(c) Water meters serving fire protection sprinkler systems shall be installed in a separate vault meeting current City of Columbia design regulations. Installation shall be by a city approved contractor hired by the owner at the owner's expense. A list of approved contractors shall be provided by the utilities and engineering department. Installation shall include, but not be limited to, city approved backflow device and necessary isolation valves. Plans shall be approved by the utilities and engineering department prior to the purchase and installation of a water meter to serve a fire protection sprinkler system. Installation of a water meter to serve a fire protection sprinkler system, including service and connection, must be coordinated with the City of Columbia inspector and approved prior to operation. (Ord. No. 2008-040, 6-18-08)

Sec. 23-148. Sewer tapping fees.

(a) Tapping charges for sewer connections shall be:

(1) Taps installed by developer/owner: $300.00 for each tap constructed.

(2) Taps installed by city forces: $1,300.00 for each tap constructed.
(Code 1979, § 5-4004; Ord. No. 97-57, 9-17-97; Ord. No. 2006-049, 11-15-06; Ord. No. 2015-013, 2-10-15; Ord. No. 2023-117, 10-17-23)

Sec. 23-149. Sewer service rates.

(a) *Generally.* Except as otherwise provided by contract, the monthly sewer service charge shall be as follows:

Size of Meter (inches)	*In City*	*Out of City*
⅝	$8.96	$15.23
1	8.96	15.23
1½	8.96	15.23
2	14.33	24.36
3	28.67	48.72
4	44.79	76.14
6	89.59	152.30
8	143.61	243.67
10	223.98	380.75

Monthly Water Use (cubic feet)	*Monthly Sewer Service Charge*	
	In City	*Out of City*
Each 100 cubic feet	$4.65	$7.92

(b) *Consumers using water cooling towers for air conditioning.* Consumers using water cooling towers for air conditioning systems shall be given a credit of 30 cubic feet per ton per month during the service periods commencing in the months of April through October. The minimum charge shall be:

Size of Meter (inches)	*In City*	*Out of City*
⅝	$14.52	$18.48
1	20.49	27.05
1½	26.42	35.62
2	38.33	52.71
3	62.10	86.97
4	109.66	155.47
6	228.54	326.72
8	323.64	463.77
10	712.98	1,024.70

(c) *Surcharge for excess BOD or suspended solids.* If any person discharges into the sanitary sewerage system a waste containing BOD concentration or suspended solids in excess of 300 milligrams per liter, then such person shall pay an additional cost according to rates determined by the city council. This monthly surcharge will be assessed on each pound of BOD and each pound of suspended solids in excess of 300 milligrams per liter as follows:

	BOD Rate	*Suspended Solids Rate*
Effective July 1, 1998	$0.08	$0.06
Effective July 1, 1999	0.11	0.08
Effective July 1, 2000	0.14	0.10
Effective July 1, 2001	0.17	0.12
Effective July 1, 2002	0.20	0.14

(d) *Limitation on charge on single-family residences.* Maximum sewer charge on single-family residences during the service periods commencing in the months of April through October will be 1,400 cubic feet.

(e) *Apartments and trailer parks.* Sewer rates for apartment buildings and trailer parks shall be the base rate of a single-family residence per dwelling unit plus a base fee based on meter connection size plus the rate per 100 cubic feet as reflected by water consumption.

(f) *Hotels, motels, dormitories and roominghouses.* Sewer rates for hotels, motels, dormitories and roominghouses shall be one-half the base rate of a single-family residence per room plus a base fee based on meter connection size plus the rate per 100 cubic feet as reflected by water consumption.

(g) *Contaminated groundwater.* Separate meters for discharges of contaminated groundwater are required. In city or out of city customers discharging contaminated ground water shall pay the out of city base monthly sewer service charge times one and one-half plus the out of city monthly sewer service charge for each 100 cubic feet times one and one-half.

(h) The monthly water and sewer rates as defined in this section shall also increase in future years as follows:

Increase 5%	*Beginning July 1, 2024*
Increase 5%	Beginning July 1, 2025
Increase 5%	Beginning July 1, 2026
Increase 5%	Beginning July 1, 2027

(Code 1979, § 5-4005; Ord. No. 94-27, 6-8-94; Ord. No. 97-57, 9-17-97; Ord. No. 98-40, 6-17-98; Ord. No. 2000-042, 6-19-00; Ord. No. 2000-063, 9-6-00; Ord. No. 2005-057, 6-22-05; Ord. No. 2006-046, 11-8-06; Ord. No. 2007-044, 6-27-07; Ord. No. 2008-039, 6-18-08; Ord. No. 2010-089, 6-23-10; Ord. No. 2011-027, 6-21-11; Ord. No. 2012-050, 6-26-12; Ord. No. 2012-077, 8-21-12; Ord. No. 2012-099, 10-16-12; Ord. No. 2013-013, 3-26-13; Ord. No. 2015-025, 6-16-15; Ord. No. 2017-044, 6-20-17; Ord. No. 2017-063, 8-1-17; Ord. No. 2018-027, 6-19-18; Ord. No. 2019-039, 6-18-19; Ord. No. 2019-073, 10-15-19; Ord. No. 2021-041, 5-18-21; Ord. No. 2022-095, 11-1-22; Ord. No. 2023-059, 6-20-23)

Sec. 23-150. Discharge of hauled waste.

(a) Hauled waste shall be deposited at an approved location at the wastewater treatment plant. The following fees shall be paid for the discharge of each load:

Gallons	*Portable Toilet, Septic Tank and Grease Trap Wastes*	*Contaminated Groundwater*
1—500	$60.00	$121.00
501—1,000	72.00	144.00
1,101—1,500	84.00	168.00
1,501—2,000	96.00	192.00
2,001—2,500	108.00	216.00
2,501—3,000	120.00	240.00
3,001—3,500	132.00	264.00
3,501 or more	$12.00 per 500 gallons or any portion thereof over 3,500 gallons	$24.00 per 500 gallons or any portion thereof over 3,500 gallons

(b) Wastewater discharges having a stabilized pH lower than 6.0 or higher than 9.0 shall be subject to an additional pH adjustment charge or shall be prohibited as follows:

Less than 3.0	Prohibited
From 3.0 to 4.9	$10.00
From 5.0 to 5.9	5.00
From 6.0 to 9.0	No charge
From 9.1 to 10.0	5.00

From 10.1 to 12.0 ..... 10.00

Greater than 12.0 ..... Prohibited

(Code 1979, § 5-4007; Ord. No. 97-57, 9-17-97; Ord. No. 2000-043, 6-21-00; Ord. No. 2019-040, 6-18-19; Ord. No. 2021-029, 5-4-21)

Sec. 23-151. Reserved.

Editor's note—Ord. No. 2019-040, adopted June 18, 2019, repealed former § 23-151 in its entirety which pertained to the use of septic tanks where public sewer is available and derived from the Code of 1979, § 5-4008.

Sec. 23-152. Sewer capacity fee.

Amount. In addition to those fees established and required by section 23-148, a sewer capacity fee shall be required to be paid prior to each sewer service connection to offset the cost of constructing increased sewer treatment plant and sewer collection system capacity or capital expenditures to retain current system capacity in accordance with the capital improvement plan of the City of Columbia. The costs of construction or expenditures to retain current system capacity shall include design and engineering costs, materials, labor and debt service on any bonds which may be issued to provide the intended plant capacity increase. The amount of the capacity fee for each connection shall be computed by multiplying the number of taps required for each application in accordance with section 23-148 times $2,640.00. One tap or one equivalent residential unit (ERU) is equivalent to 400 GPD for purposes of calculating capacity fees. Taps may be proportioned to the nearest tenth after the first whole tap for the purposes of calculating capacity fees. Applicants with

estimated wastewater discharges of 300,000 GPD or greater shall be calculated as described in this section up to 300,000 GPD with an addition of $1.00 per gallon for every gallon per day greater than 300,000.

For a property that is being redeveloped where water/wastewater service already exists, credit will be applied to the sewer plant expansion capacity fee based on existing water meter size. For existing commercial accounts with water meters that are smaller than 4-inch in size, no sewer plant capacity fee will be charged when there is a change in use but no increase in meter size. For existing commercial accounts with water meters smaller than 4-inch in size where an increase in meter size occurs due to a change in use, the sewer plant expansion capacity fee will be calculated by subtracting the ERU total associated with the existing water meter size from the ERU total associated with new water meter size, and multiplying that difference by the nominal value of one ERU. The following ERU factors shall be used for this calculation:

Water Meter Size (inch)	*ERU Factor*
0.75	1.0
1.0	1.67
1.5	3.33
2.0	5.33
3.0	10.67

The term "redeveloped" as used in this section means to make a new or different use of a property that has existing water and sewer service such that the new customer has an increased water demand that may or may not involve the need for a larger water meter.
(Code 1979, §§ 5-4009, 5-4010; Ord. No. 2006-050, 11-15-06; Ord. No. 2006-108, 5-16-07; Ord. No. 2011-081, 12-20-11; Ord. No. 2012-105, 12-18-12; Ord. No. 2015-013, 2-10-15; Ord. No. 2021-043, 5-18-2021; Ord. No. 2022-059, 6-21-22)

Sec. 23-153. Sewage pumping station surcharge.

To offset the added cost of operation, maintenance and replacement of small sewage pumping stations, a surcharge of $8.00 per month per residence shall be paid by all residential customers served by such stations when the number of residences served by the station is 50 or fewer. The surcharge shall be in addition to the monthly service charges established in section 23-149. When the number of residences served by a station exceeds 50, the surcharge shall be removed from the billings for residences served by that station. The surcharge shall be applicable only to residences served by sewage pumping stations accepted for operation and maintenance on or after March 1, 1992.
(Code 1979, § 5-4013)

Sec. 23-154. Extended payment option.

At the time of application for a water and/or sewer service connection, applicant may elect to pay the water tap and meter installation fee and/or the sewer tap fee and plant expansion

fee in full or pay the fee, or any portion thereof, in 48 equal monthly installments with a fixed annual interest rate thereon. The fixed annual interest shall be the interest rate charged for all monthly installments set forth in the water installation fee agreement and/or the sewer tap and plant expansion fee agreement entered into during that fiscal year. For residential service fees, the interest rate shall be calculated for each fiscal year as equal to the prime rate as listed in the first edition of the Wall Street Journal published in the month of May which precedes the upcoming fiscal year. For non-residential service fees, the interest rate shall be calculated as zero percent. The monthly payments for the water tap and meter installation fee and/or the sewer tap fee and plant expansion fee shall be added to and collected with the monthly water and/or sewer bill for the property to be served commencing with the first water and/or sewer bill, and shall be collected in the same manner as any other water and/or sewer charges by the City of Columbia. In the event of the sale of the property being served by the water and/or sewer connection, the unpaid portion of the fees subject to

the extended payment in accordance with this section shall be immediately due and payable unless purchaser(s) assume the extended payment obligation at closing. Unless purchaser(s) apply for transfer of service and/or assume or pay in full the unpaid extended payment, no further water and/or sewer service shall be provided to such property.
(Ord. No. 2012-101, 12-18-12; Ord. No. 2019-083, 1-21-20)

Sec. 23-155. Industrial user permit fees.

An annual fee of $200.00 will be assessed every July for all active permits on July first of that year.
(Ord. No. 2019-041, 6-18-19)

Secs. 23-156—23-180. Reserved.

ARTICLE VI. POLES AND WIRES

Sec. 23-181. Supervision of telegraph, telephone and electric lines.

The city electrician, under the direction of the city manager, shall have the supervision and charge of all telegraph, telephone and electric light and power lines established in the limits of the city.
(Code 1979, § 5-5001)

Sec. 23-182. Authority to order wires or poles removed.

The city electrician, at all times, shall have full power and authority to order and cause any electric wires or poles to be cut or removed or electric current to be discontinued where they are liable to cause trouble to the fire alarm or other wires or property.
(Code 1979, § 5-5002)

Sec. 23-183. Placing city lines on company poles.

All telegraph, telephone and electric light and power lines established in the limits of the city shall be subject to the authority and right of the city electrician to permit city lines to be placed on the same poles.
(Code 1979, § 5-5003)

Sec. 23-184. Location of poles.

No posts or poles shall be erected within 15 feet of any hydrant, or so as to interfere with any water pipe, shade tree, driveway or intersection of streets or fire alarm. When sidewalks are extended or altered by the city authorities, posts or poles shall be readjusted to conform thereto.
(Code 1979, § 5-5004)

Sec. 23-185. Specifications for poles; height of wires and lamps.

All poles for telegraph, telephone and electric lines shall be straight, properly trimmed, painted and stenciled with the name of the company owning the poles, and shall be of iron, cedar, chestnut, cypress or otherwise approved material, and shall not be less than 20 feet in height from the ground. If such poles are of wood, they shall not be less than six inches in diameter at the small end, and ten inches in diameter at the ground. Such poles shall be properly set in the ground not less than four feet. Whenever any wire shall cross any street or way, it shall be at a height not less than 20 feet above such street or way, and be protected by guards when in the opinion of the city electrician guards are necessary. The lamps shall be placed at least 24 to 32 feet above the earth, as may be required by the city electrician.
(Code 1979, § 5-5005)

Sec. 23-186. Supply conductors; broken and imperfect wires.

All open supply conductors used for the transmission of electricity for lighting and motive power or other purposes shall be of the size and kind which will conform with the requirements of the National Electrical Code, except that all conductors, other than the neutral conductor, of service drops shall be weatherproofed. When placed above the surface of the ground, such wires shall be suspended upon poles, and whenever in proximity to other wires dead guards must, at the direction of the city electrician, be placed so as to prevent any possibility of contact with foreign wires. This rule shall apply to arc, incandescent and power wires. When any such wire shall be broken, or its covering becomes imperfect, the electric current shall forthwith be discontinued and the wire not used until properly repaired or replaced.
(Code 1979, § 5-5006)

Sec. 23-187. Insulated fastenings for wires; joints in wires.

Wires for the transmission of electricity for lighting and motive power shall be secured to insulated fastenings of glass, hard rubber or other approved insulating material. Tie wires shall be weatherproofed if the conducting wires to which they are applied are weatherproofed. All joints in wires shall be securely made, and joints in weatherproofed wires shall be wrapped with weatherproofing material.
(Code 1979, § 5-5007)

Sec. 23-188. Fastening wires to walls or buildings.

Wires for transmission of electricity for lighting and motive power, in running along outside walls, cornices and the like, shall be rigidly fastened by nonconducting fastenings, and when

carried over or attached to buildings must be at least seven feet above the highest point of flat roofs and 1½ feet above pitched roofs. They shall not run over or be attached to buildings other than those desiring light and power.
(Code 1979, § 5-5008)

Sec. 23-189. Authority of fire chief to shut off current in case of fire.

In case of fire, the chief of the fire department, or in his absence the officer of the fire department next in charge to him, shall have full authority to order the central station of any electric light or power company to shut off the current from any wire whose position endangers the lives of the firefighters. The chief of the fire department, or his subordinate officer, shall also have full power to cut or have cut any such electric light or power company's wires when for any sufficient reason the current cannot be shut off from the central station with promptness.
(Code 1979, § 5-5009)

Sec. 23-190. Attaching wires to fire alarm poles.

No wire for the transmission of electricity for lighting or motive power shall be attached to the poles of the fire alarm.
(Code 1979, § 5-5010)

Sec. 23-191. Removal of poles holding dead wires or otherwise not in use.

All poles or posts holding dead wires only, or otherwise not in actual use, must be removed from the street.
(Code 1979, § 5-5011)

Secs. 23-192—23-199. Reserved.

ARTICLE VII. STORMWATER MANAGEMENT*

Sec. 23-200. Findings of fact.

The city council of Columbia, South Carolina makes the following findings of fact:

(1) The professional engineering and financial analyses conducted on behalf of and submitted to the city properly assess and define the stormwater management problems, needs, goals, program priorities and funding opportunities of the city.

***Editor's note—**Ord. No. 2011-095, adopted Dec. 20, 2011, amended and restated the provisions of this article by repealing former §§ 23-204—23-23-206 in their entirety and renumbering the remaining provisions. Former repealed §§ 23-204—23-206 respectively pertained to scope of responsibility; boundaries and jurisdiction; requirements for on-site stormwater systems, enforcement methods and inspections. These former sections derived from Ord. No. 2002-029, 6-19-02.

Cross reference—Stormwater management and sedimentation control, Ch. 21.

(2) Given the problems, needs, goals, program priorities, and funding opportunities identified in the professional engineering and financial analyses submitted to the city, it is appropriate to authorize the establishment of a separate enterprise accounting unit which shall be dedicated specifically to the management, maintenance, protection, control, regulation, use, and enhancement of stormwater systems in the City of Columbia in concert with other water resource management programs.

(3) Stormwater management is needed throughout the City of Columbia. Intense urban development in most portions of the city has radically altered the natural hydrology of the area and the hydraulics of stormwater systems, with many natural elements having been replaced or augmented by man-made facilities. A stormwater utility service area subject to stormwater service charges should encompass the entirety of the City of Columbia, and the service charge rate structure should reflect the amount of impervious surfaces that exists on individual properties.

(4) The stormwater needs in the City of Columbia include but are not limited to protecting the public health, safety, and welfare. Provision of stormwater management programs, systems, and facilities therefore render and/or result in both service and benefit to individual properties, property owners, citizens, and residents of the city and to properties, property owners, citizens, and residents of the unincorporated city concurrently in a variety of ways as identified in the professional engineering and financial analyses.

(5) The service and benefit rendered or resulting from the provision of stormwater management programs, systems, and facilities may differ over time depending on many factors and considerations, including but not limited to location, demands and impacts imposed on the stormwater programs, systems, and facilities, and risk exposure. It is not practical to allocate the cost of the city's stormwater management programs, systems, and facilities in direct and precise relationship to the services or benefits rendered to or received by individual properties or persons over a brief span of time, but it is both practical and equitable to allocate the cost of stormwater management among properties and persons in proportion to the long-term demands they impose on the City's stormwater programs, systems, and facilities which render or result in services and benefits.

(6) The City of Columbia presently owns and operates stormwater management systems and facilities which have been developed, installed, and acquired through various mechanisms over many years. The future usefulness and value of the existing stormwater systems and facilities owned and operated by the city, and of future additions and improvements thereto, rests on the ability of the city to effectively manage, protect, control, regulate, use, and enhance the stormwater systems and facilities in the City of Columbia in concert with the management of other water resources in the city. In order to do so, the city must have adequate and stable funding for its stormwater management program operating and capital investment needs.

(7) The city council finds, concludes, and determines that a utility provides the most practical and appropriate means of properly delivering stormwater management services and benefits throughout the City of Columbia, and the most equitable means to fund stormwater services in the city is through stormwater service charges and other mechanisms as described in the professional engineering and financial analyses prepared for the city.

(8) The city council finds, concludes, and determines that a schedule of stormwater utility service charges based on the impervious area of each property is the most appropriate and equitable means of allocating the cost of stormwater management services and stormwater management systems and facilities throughout the city. Such charges can be complemented by other funding methods which address specific needs, including but not limited to allocations of other revenues available to the city, special service fees, special assessments of the city, various taxes as allowed by law, and other revenues as deemed appropriate by the city council.

(9) The city council finds that credits against stormwater utility service charges are an appropriate means of adjusting fees, rates, rentals, charges, fines, and penalties in certain cases, and should be granted for properties providing on-site or off-site services, systems, facilities, activities, easements, or assets which reduce or otherwise mitigate the impact of said property on the city's cost of providing stormwater management services and/or stormwater management systems and facilities, and that such credits should be conditional upon continuing provision of such services, systems, facilities, activities, easements, or assets in a manner complying with the standards and codes as determined by the city engineer. Credits for on-site stormwater management systems and facilities shall be generally proportional to the affect that such systems have on the peak rate of runoff from the site. Credits should also be granted for activities which reduce the city's cost of public information and education about stormwater management and may include credits against stormwater service charges to public and private school systems. Credits for educational programs and other activities related to stormwater management provided by public and private schools shall be based on the city's avoided costs as determined by the city engineer and not on the cost of the educational programs or other activities.

(10) The city council finds that the impervious area on each property is the most important factor influencing the cost of the stormwater management services and stormwater management systems and facilities provided by the city or to be provided by the city in the future, and that the impervious area of each property is therefore the most appropriate parameter for calculating a periodic stormwater service charge.

(11) The city council finds that it is imperative that all revenues raised or otherwise allocated specifically to stormwater management services, inclusive of stormwater quality issues and requirements along with stormwater public education and relations, and stormwater management systems and facilities be dedicated solely to those purposes and directs that such revenues shall therefore be deposited into the

enterprise accounting fund of the stormwater management utility and shall remain in that fund and be dispersed only for stormwater management capital, operating, and non-operating costs, debt service of bonds for stormwater management purposes, and other appropriate uses as determined by the city council.

(Ord. No. 2002-029, 6-19-02; Ord. No. 2011-095, 12-20-11)

Sec. 23-201. Article designation and authority.

This article may be cited as the Stormwater Management Utility Ordinance of the City of Columbia and is adopted pursuant to S.C. Code Sections 48-14-10, et seq., S.C. Code Section 5-7-30, and 26 S.C. Code Regulations 72-300 through 72-316.

(Ord. No. 2002-029, 6-19-02; Ord. No. 2011-095, 12-20-11)

Sec. 23-202. Definitions.

Unless the context specifically indicates otherwise, the meaning of words and terms used in this ordinance shall be as set forth in S.C. Code Section 48-14-20, and 26 S.C. Code Regulation 72-301, mutatis mutandis.

Credits. Credit shall mean a conditional reduction in the amount of a stormwater service charge or other fees, rates, rentals, charges, fines, and penalties to an individual property based on the provision and continuing presence of an effectively maintained and operational on-site stormwater system or facility, or continuing provision of a service or activity that reduces the stormwater management utility's cost of providing stormwater management services and stormwater management systems and facilities.

Customers of the stormwater utility. Customers of the stormwater utility shall include all persons, properties, and entities served by and/or benefitting from the utility's acquisition, management, maintenance, extension, and improvement of the stormwater management programs, systems, and facilities and regulation of public and private stormwater systems, facilities, and activities related thereto, and persons, properties, and entities which will ultimately be served or benefitted as a result of the stormwater management program.

Detached single-family dwelling unit. Detached single-family dwelling unit shall mean developed land containing one structure which is not attached to another dwelling and which contains one or more bedrooms, with a bathroom and kitchen facilities, designed for occupancy by one family. Detached dwelling units may include single-family houses, single duplex units under common ownership, patio homes, manufactured homes, and mobile homes located on individual lots or parcels of land, and single story residential townhouse and condominium units. Developed land may be classified as a detached single-family dwelling unit despite the presence of incidental structures associated with residential uses such as garages, carports, or small storage buildings. Detached single-family dwelling units shall not include developed land containing: structures used primarily for non-residential purposes, manufactured homes and mobile homes located within manufactured home or mobile home parks where the land is owned by others than the owners of the manufactured homes or mobile homes, or multiple residential properties.

Developed land. Developed land shall mean property altered from its natural state by construction or installation of improvements such as buildings, structures, or other impervious surfaces, or by other alteration of the property that results in a meaningful change in the hydrology of the property during and following rainfall events.

Equivalent residential unit. For the purposes of this ordinance, an equivalent residential unit shall mean 2,454 square feet of impervious area. The equivalent residential unit shall be used as the basis for determining stormwater service charges to detached single-family dwelling unit properties or classes of detached dwelling unit properties and other properties.

Exemption. Exemption shall mean not applying to or removing the application of the stormwater management utility service charge from a property. No permanent exemption shall be granted based on taxable or non-taxable status or economic status of the property owner. An exemption may be granted based on agreements between the city and other persons, governmental and non-governmental entities, and organizations whereby the other persons, governmental and non-governmental entities, and organizations perform on-site and/or off-site stormwater quantity and quality management, including acquiring, designing, building, operating, and maintaining systems and facilities, and performing measures and actions which equal or exceed the stormwater management program performed by the stormwater management utility. Exemptions may be removed or rescinded at any time by the city.

Impervious surface area. Impervious surfaces are those areas which prevent or impede the infiltration of stormwater into the soil as it entered in natural conditions prior to development. Common impervious areas include, but are not limited to, rooftops, sidewalks, walkways, patio areas, driveways, parking lots, storage areas, compacted gravel and soil surfaces, awnings and other fabric or plastic coverings, and other surfaces which prevent or impede the natural infiltration of stormwater runoff which existed prior to development. Impervious surfaces may also influence the water quality of stormwater exiting a property and receiving waters to which stormwater is ultimately discharged, affecting its use and value to the community.

Multiple-dwelling unit residential properties. Multiple-dwelling unit residential properties shall mean developed land whereon more than one residential dwelling unit is located, and shall include, but not be limited to riplexes, quadraplexes, apartment houses, multi-story residential townhouse and condominium developments, attached single-family homes, boarding houses, group homes, hotels and motels, retirement centers, and other structures in which more than one-family group commonly and normally reside or could reside. In the application of stormwater service charges, multiple-dwelling unit properties shall be treated as other developed lands as defined in this article.

Other developed lands. Other developed lands shall mean, but not be limited to, multiple-dwelling unit residential properties, manufactured home and mobile home parks, commercial and office buildings, public buildings and structures, industrial and manufacturing buildings, storage buildings and storage areas covered with impervious surfaces, parking lots, parks, recreation properties, public and private schools and universities, research facilities and stations, hospitals and convalescent centers, airports, agricultural uses covered by impervious surfaces, water and wastewater treatment plants, and lands in other uses which alter the

hydrology of the property from that which would exist in a natural state. Properties which are used for other than single-family residential use located in detached single-family dwelling units shall be deemed other developed lands for the purpose of calculating stormwater service charges.

Stormwater management systems and facilities. Stormwater management systems and facilities are those natural and man-made channels, swales, ditches, swamps, rivers, streams, creeks, branches, reservoirs, ponds, drainage ways, inlets, catch basins, pipes, head walls, storm sewers, lakes, and other physical works, properties, and improvements which transfer, control, convey or otherwise influence the movement of stormwater runoff.

Stormwater service charges. Stormwater service charges shall mean the periodic service charge imposed pursuant to this article for the purpose of funding costs related to stormwater management services and stormwater management systems and facilities. The use of the impervious area of each property as a stormwater service charge rate parameter shall not preclude the use of other parameters, or of grouping of properties having similar characteristics into classes or categories, grouping of properties having similar characteristics through the use of ranges or rounding up or down to a consistent numerical interval, or the use of flat-rate charges for one or more classes of similarly-situated properties whose impact on the City of Columbia's cost of providing stormwater management services and stormwater management systems and facilities is relatively consistent. Stormwater service charges may also include special charges to individual properties or persons for services, systems, or facilities related to stormwater management, including but not limited to charges for development plan review, inspection of development projects and on-site stormwater control systems, and enhanced levels of stormwater service above and beyond the levels normally provided by the City of Columbia.
(Ord. No. 2002-029, 6-19-02; Ord. No. 2011-095, 12-20-11)

Sec. 23-203. Establishment of a stormwater management utility and enterprise fund.

(a) There is hereby established a stormwater management utility within the engineering department which shall be responsible for stormwater management programs throughout the city, and which shall provide for the management, protection, control, regulation, use, and enhancement of stormwater systems and facilities.

(b) The city manager shall establish a stormwater enterprise fund in the city budget and accounting system for the purpose of dedicating and protecting all funding applicable to the purposes and responsibilities of the stormwater management utility, including but not limited to rentals, rates, charges, fees, and licenses as may be established by the Columbia City Council and other funds that may be transferred or allocated to the stormwater management utility. All revenues and receipts of the stormwater management utility shall be placed in the stormwater enterprise fund and all expenses of the utility shall be paid from the stormwater enterprise fund, except that other revenues receipts, and resources not accounted for in the

stormwater utility enterprise fund may be applied to stormwater management programs, facilities, operations, and capital investments as deemed appropriate by the Columbia City Council, upon recommendation by the city manager.

(c) The Columbia City Council hereby transfers to the stormwater management utility operational control over the existing stormwater management programs, systems, and facilities performed, provided, or owned and heretofore operated by the city and other related assets, including but not limited to properties other than roadways upon which such systems and facilities are located, easements, rights-of-entry and access, and certain equipment used solely for stormwater management.
(Ord. No. 2002-029, 6-19-02; Ord. No. 2011-095, 12-20-11)

Sec. 23-204. General funding policy.

(a) Funding for the stormwater management utility advanced program, systems, and facilities shall be equitably derived through methods which have a demonstrable relationship to the varied demands and impacts imposed on the stormwater program, systems, and facilities by individual properties or persons and/or the level of service rendered by or resulting from the provision of stormwater programs, systems, and facilities. Stormwater service charge rates shall be structured so as to be fair and reasonable, and the resultant service charges shall bear a substantial relationship to the cost of providing services and facilities throughout the city. Similarly situated properties shall be charged similar rentals, rates, charges, fees, or licenses. Service charge rates shall be structured to be consistent in their application and shall be coordinated with the use of other funding methods employed for stormwater management within the city, including but not limited to allocations from the general fund. Plan review and inspection fees, special fees for services, fees in-lieu of regulatory requirements, impact fees, system development charges, special assessments, general obligation and revenue bonding, and other funding methods and mechanisms available to the city may be used in concert with stormwater service charges and shall be coordinated with such charges in their application to ensure a fair and reasonable service charge rate structure.

(b) The cost of stormwater management programs, systems, and facilities subject to stormwater service charges may include operating, capital investment, and non-operating expenses, prudent operational and emergency reserve expenses, and stormwater quality as well as stormwater quantity management programs, needs, and requirements.

(c) To the extent practicable, credits against stormwater service charges and/or other methods of funding stormwater management shall be provided for on-site stormwater control systems and activities constructed, operated, maintained and performed to the city's standards by private property owners which eliminate, mitigate, or compensate for the impact that the property or person may have upon stormwater runoff discharged to public stormwater systems or facilities or to private stormwater facilities which impact the proper function of public stormwater systems or facilities.

(d) To the extent practicable, credits against stormwater service charges and/or other methods of funding stormwater management shall be provided for activities which reduce the city's cost of public information and education about stormwater management and may include credits against stormwater service charges to public and private school systems. Credits for educational programs and other activities related to stormwater management provided by public and private schools shall be based on the city's avoided costs as determined by the city engineer and not on the cost of the educational programs or other activities.
(Ord. No. 2002-029, 6-19-02; Ord. No. 2011-095, 12-20-11)

Sec. 23-205. Stormwater service charge rates.

(a) Stormwater service charge rates may be determined and modified from time to time by the Columbia City Council so that the total revenue generated by said charges and any other sources of revenues or other resources allocated to stormwater management by the city council to the stormwater management utility shall be sufficient to meet the cost of stormwater management services, systems, and facilities, including but not limited to the payment of principal and interest on debt obligations, operating expense, capital outlays, non-operating expense, provisions for prudent reserves, and other costs as deemed appropriate by the city council. The following stormwater service charge rates shall apply:

(1) *Detached single-family dwelling units.* Detached single-family dwelling units, as defined by this ordinance, shall be billed for one equivalent residential unit, as defined in this article.

(2) *Other developed lands.* All developed lands not classified as detached single-family dwelling units, as defined by this section, shall be billed for one equivalent residential unit for each 2,454 square feet or fraction thereof of impervious area on the subject property. provided, however, for any such developed land annexed into the city on and after the effective date of the ordinance from which this section is derived, billing shall be prorated by an annually increasing 20 percent per year of the standard billing rate during the five-year period following the date of annexation, such that the first 12 billing cycles immediately following annexation are at 20 percent of the standard billing rate and the 49th and subsequent billing cycles are at 100 percent of the standard billing rate. There will be no service charge for developed lands with fewer than 600 square feet of impervious area.

(b) The monthly stormwater service charge rate per equivalent residential unit, as defined in this ordinance, shall be:

$11.80 Beginning July 1, 2017

$12.54 Beginning July 1, 2018

$13.32 Beginning July 1, 2019

$14.15 Beginning July 1, 2021

$15.03 Beginning July 1, 2024

(Ord. No. 2002-029, 6-19-02; Ord. No. 2008-044, 6-18-08; Ord. No. 2011-095, 12-20-11; Ord. No. 2012-045, 6-26-12; Ord. No. 2017-049, 6-20-17; Ord. No. 2020-046, 6-16-20; Ord. No. 2022-048, 8-2-22; Ord. No. 2023-066, 6-20-23; Ord. No. 2024-032, 5-7-24)

Sec. 23-206. Exemptions and credits applicable to stormwater service charges.

(a) Except as provided in this section, no public or private property shall be exempt from stormwater utility service charges or receive a credit or offset against such service charges. No exemption, credit, offset, or other reduction in stormwater service charges shall be granted based on the age, tax, or economic status, race, or religion of the customer, or other condition unrelated to the stormwater management utility's cost of providing stormwater management services and stormwater management systems and facilities. A stormwater management utility service charge credit manual shall be prepared by the city engineer specifying the design and performance standards of on-site stormwater services, systems, facilities, and activities that qualify for application of a service charge credit, and how such credits shall be calculated.

(b) Credits. The following types of credits against stormwater service charges shall be available:

(1) *On-site detention and retention facilities.* Developed land other than detached single-family dwelling units with on-site detention or retention facilities may receive a credit against the stormwater service charge applicable to the property based on attaining and continuing compliance with the technical requirements and performance standards contained in the Stormwater Management Utility Service Charge Credit Manual. The stormwater utility service charge credit for on-site stormwater control systems or facilities that reduce or mitigate the impact of impervious surfaces on the subject property shall be proportional to the extent that the on-site stormwater control systems or facilities provided, operated, and maintained by the property owner reduce or mitigate the stormwater management utility's cost of providing stormwater management services and stormwater management systems and facilities. The stormwater utility service charge credit for services and activities that reduce or mitigate the stormwater management utility's cost of providing stormwater management services and stormwater management systems and facilities shall be proportional to the reduced costs realized by the stormwater management utility, but shall not be related to the cost of such services and activities to the person or entity providing same.

(2) *Public information and education.* Developed land other than detached single-family dwelling units that provide activities which reduce the city's cost of public information and education about stormwater management may receive a credit against the stormwater service charge applicable to the property based on attaining and continuing compliance with the requirements and performance standards contained in the Stormwater Management Utility Service Charge Credit Manual. Credits for educational programs and other activities related to stormwater management provided by public and private schools shall be based on the city-avoided costs as determined by the city engineer and not on the cost of the educational programs or other activities.

(c) Exemptions. The following exemptions from the stormwater service charges shall be allowed:

(1) Improved public road rights-of-way which have been conveyed to and accepted for maintenance by the State of South Carolina and are available for use in common for vehicular transportation by the general public.

(2) Improved public road rights-of-way which have been conveyed to and accepted for maintenance by the City of Columbia and are available for use in common for vehicular transportation by the general public.

(3) Railroad tracks; however, railroad stations, maintenance buildings, or other developed land used for railroad purposes shall not be exempt from stormwater service charges.

(4) All of that property in the City of Columbia that is a part of the Fort Jackson Army federal military facilities.

(d) *Timing of applications.* The following timelines shall be used in determining the effective date of a credit against stormwater service charges:

(1) For new detention/retention facilities as well as educational programs, the credit shall become effective with the first billing period following successful completion of the application process and approval by the city engineer (or his or her designee).

(2) For detention/retention facilities as well as educational programs existing on the effective date of this ordinance, the credit shall become effective retroactively to the date of initial billing if an application is received by the city on or before July 1, 2003. The granting of such a credit shall be dependent upon successful completion of the application process and approval by the city engineer (or his or her designee). For existing detention/retention facilities as well as educational programs for which the application is received by the city after July 1, 2003, the credit shall become effective with the first billing period following successful completion of the application process and approval by the city engineer (or his or her designee).

(Ord. No. 2002-029, 6-19-02; Ord. No. 2003-038, 5-14-03; Ord. No. 2011-095, 12-20-11)

Sec. 23-207. Stormwater service charge billing, delinquencies and collections.

(a) A stormwater service charge bill may be included as a separate line item to the city's water and sewer billing or may be sent through the United States mail or by alternative means, notifying the customer of the amount of the bill, the date the payment is due, and the date when past due. The stormwater service charge bill may be billed and collected along with other charges, including but not limited to the city water and sewer billing, or other means as deemed most effective and efficient by the city council. The owner of each parcel of land shall be ultimately obligated to pay such charges and any associated late charges, interest or penalties.

(b) Where stormwater service charges appear on the city water and sewer bill and a customer does not pay the service charges for all utilities on the bill in full, the partial payment shall be applied to the respective service charges in a prorated manner.

(c) In the event that stormwater service charges that appear on the City of Columbia water and sewer bill including those cases where the only charge on the water and sewer bill is the stormwater service charge are not paid when due, interest and/or late fees shall accrue in the same manner and at the same rate as provided for by section 23-142 of the Code of Ordinances of the City of Columbia, until such time as the overdue payment and interest are paid.

(d) If a property receives water and/or sewer service and if the stormwater service charges for that property are not paid, the city shall have the authority to terminate water and/or sewer service to that property. Termination will be in accordance with section 23-141 of the City of Columbia Code of Ordinances regarding notice, appeal, and termination of utility services. Alternatively, the city may pursue such remedies as are available and as authorized by state law including the issuance of a civil penalty as provided for by state law.

(e) No property for which stormwater service charges are outstanding shall receive water and/or sewer service until the outstanding stormwater service charge on that property is paid in full. No customer with a delinquent stormwater service account shall be permitted to open a water and/or sewer account at the same or different location until the delinquency has been satisfied in full.

(f) If a customer is underbilled or if no bill is sent for a particular property, the city may backbill for a period of up to three years, but shall not assess late charges, interest or penalties for that period.

(g) Detached single-family dwelling units shall be subject to the imposition of a stormwater service charge upon establishment of a water and/or sewer account for the said property. Other developed lands shall be subject to the imposition of a stormwater service charge upon establishment of a water and/or sewer account for the said property or in those cases where water and/or sewer service is not needed upon the final approval of site development by the city.
(Ord. No. 2002-029, 6-19-02; Ord. No. 2011-095, 12-20-11)

Sec. 23-208. Investment and reinvestment of funds and borrowing.

Funds generated for the stormwater management utility from fees, bond issues, other borrowing, and other sources shall be utilized only for those purposes for which the utility has been established, including but not limited to: regulation; planning; acquisition of interests in land, including easements; design and construction of facilities; maintenance of the stormwater system; billing and administration; water quantity and water quality management, including monitoring, surveillance, private maintenance inspection, construction inspection; and other activities which are reasonably required. Such funds shall be invested and reinvested pursuant to the same procedures and practices established by the city for investment and reinvestment of funds. City council may use any form of borrowing authorized by the laws of the State of South Carolina to fund capital acquisitions or expenditures for the stormwater management utility. City council, in its discretion and pursuant to standard budgetary procedures, may supplement such funds with amounts from the general fund.
(Ord. No. 2002-029, 6-19-02; Ord. No. 2011-095, 12-20-11)

Sec. 23-209. Appeals.

Any customer who believes the provisions of this article have been applied in error may appeal in the following manner and sequence.

(1) An appeal of a stormwater service charge must be filed in writing with the city engineer within 30 days of the charge being mailed or delivered to the property owner and stating the reasons for the appeal. In the case of stormwater service charge appeals, the appeal shall include a survey prepared by a registered land surveyor or professional engineer containing information on the total property area, the impervious surface area, and any other features or conditions that influence its hydrologic response to rainfall events.

(2) Using information provided by the appellant, the city engineer (or his or her designee) shall conduct a technical review of the conditions on the property and respond to the appeal in writing within 30 days. In response to an appeal, the city engineer may adjust the stormwater service charge applicable to the property in conformance with the general purposes and intent of this article.

(3) A decision of the city engineer that is adverse to an appellant may be further appealed to the city manager or his or her designee within 30 days of the adverse decision. Notice of the appeal shall be delivered to the city manager or his or her designee by the appellant, stating the grounds for further appeal. The city manager or his or her designee shall issue a written decision on the appeal within 30 days. All decisions by the city manager or his or her designee shall be served on the property owner personally or by registered or certified mail, sent to the billing address of the property owner. All decisions of the city manager or his or her designee shall be final.

(Ord. No. 2002-029, 6-19-02; Ord. No. 2011-095, 12-20-11)

Sec. 23-210. No suspension of due date.

No provision of this article allowing for an administrative appeal shall be deemed to suspend the due date of the service charge with payment in full. Any adjustment in the service charge for the person pursuing an appeal shall be made by refund of the amount due, without interest.

(Ord. No. 2002-029, 6-19-02; Ord. No. 2011-095, 12-20-11)

Sec. 23-211. Stormwater advisory board.

(a) *Established.* There is hereby established a stormwater advisory board of the city. All members are to be appointed by the city council. Each member shall be a bona fide resident of the City of Columbia.

(b) *Purposes and duties.* The stormwater advisory board shall provide guidance and advice to the city council pertaining to the stormwater management program, including but not limited to, program activities, functions, systems, management, and funding. The board shall fulfill such other functions, powers and duties as delegated to it by the city council.

(c) *Conflicts of interest.* No member of the stormwater advisory board shall act in a case in which he/she has a personal interest.

(d) *Records.* The city engineer or his or her designee shall act as secretary to the stormwater advisory board and shall make a detailed report of all its proceedings, which shall set forth the reasons for its decisions, the vote of each member participating therein, the absence of any member and any failure of any member to vote.

(e) *Rules of procedure; meetings.* The board shall establish rules for its own procedure, not inconsistent with the provisions of this article. The stormwater advisory board shall meet at regular intervals to be determined by the chairman.

(Ord. No. 2002-029, 6-19-02; Ord. No. 2011-095, 12-20-11)

Sec. 23-212. Enforcement and penalties.

Any person who violates any provision of this article shall be subject to a civil penalty of not more than $1,000.00, or such additional maximum amount as may become authorized by state law (state statute 48-14-140), provided the owner or other person deemed to be in violation has been notified of a violation. Notice shall be deemed achieved when sent by regular United States mail to the last known address reflected on the city water and/or sewer billing records, or such other address as has been provided by the person to the city. Each day of a continuing violation shall be deemed a separate violation. If payment is not received or equitable settlement reached within 30 days after demand for payment is made, a civil action may be filed on behalf of the city in the circuit court to recover the full amount of the penalty. This provision on penalties shall be in addition to and not in lieu of other provisions on penalties, civil or criminal, remedies and enforcement which may otherwise apply.
(Ord. No. 2002-029, 6-19-02; Ord. No. 2011-095, 12-20-11)

Sec. 23-213. Severability.

If a section, subsection, or part of this article shall be deemed or found to conflict with or be preempted by a provision of South Carolina or federal law, then that section, sub-section, or part of this article shall be deemed ineffective, but the remaining parts of this article shall remain in full force and effect.
(Ord. No. 2002-029, 6-19-02; Ord. No. 2011-095, 12-20-11)

Sec. 23-214. Conflict with preceding ordinances.

If a section, subsection or provision of this article shall conflict with the provisions of a section, subsection or part of a preceding article of the City of Columbia, then the preceding section, subsection or part shall be deemed repealed and no longer in effect.
(Ord. No. 2002-029, 6-19-02)

Secs. 23-215—23-299. Reserved.

Chapter 24

VEHICLES FOR HIRE*

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***Cross references—**Licenses, permits and miscellaneous business regulations, ch. 11; motor vehicles and traffic, ch. 12; streets, sidewalks and other public places, ch. 22.

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ARTICLE I. IN GENERAL

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ARTICLE II. TAXICABS, SHUTTLES AND LIMOUSINES*

DIVISION 1. GENERALLY

Sec. 24-31. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Cruising means driving on, over and along the streets or public places of the city in search of, or soliciting, prospective passengers for hire.

Driver means any person in actual charge of the operation of a taxicab, van, shuttle or limousine, whether as owner or agent, servant or employee of the owner.

Limousine means a motor-driven vehicle designed to transport a specific passenger or group of passengers for an hourly or daily fee to a specific destination pursuant to a prearranged contract.

Owner means any person who has control, direction, maintenance and benefit of the collection of revenue derived from the operation of taxicabs, shuttles or limousines on or over the streets or public ways of the city, whether as owner, licensee, bailee or otherwise, except as driver.

Route means a course of travel established at the same time as the establishment of a fixed hourly or daily fee. This definition of route does not include driving over, on or along the streets of the city in search of or soliciting prospective passengers for hire.

Shuttle means a motor-driven vehicle originally designed by the manufacturer's specifications without modification to transport eight or more passengers for a prearranged fixed hourly or daily fee to a specific destination along a route.

Taxicab means a motor-driven vehicle originally designed by the manufacturer's specifications without modification to transport not more than seven passengers and used for the transportation of passengers for a metered fee.

***Editor's note—**Ord. No. 2011-036, adopted Oct. 18, 2011, amended former Art. II, Divs. 1—5, in its entirety which pertained to similar subject matter and derived from the Code of 1979 and the following: Ord. No. 94-58, 3-15-95; Ord. No. 96-18, 5-1-96; Ord. No. 2000-051, 8-23-00; Ord. No. 2001-086, 10-3-01; Ord. No. 2005-094, 8-24-05 Ord. No. 2005-097, 10-12-05; Ord. No. 2005-099, 10-12-05; Ord. No. 2005-138, 1-18-06; Ord. No. 2007-069, 9-19-07; Ord. No. 2009-051, 7-22-09.

State law reference—Regulation of taxicab operations, S.C. Code 1976, §§ 58-23-1230—58-23-1410.

Taximeter means an instrument or device attached to a taxicab used to mechanically measure the distance, time or zone unit upon which the fare to be charged to the passenger will be based, and recording by figures on the dial of the device the fare as it accrues.

Vehicle for hire. All taxicabs, shuttles or limousines shall be designated as vehicles for hire for purposes of this article.

Waiting time means all time when a taxicab is not in motion and is occupied by a passenger, and the time consumed while standing at the direction of a passenger or person who has engaged such taxicab.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-32. Daily trip sheets.

The driver of each and every taxicab or shuttle shall keep a complete and accurate record of each trip upon a daily trip sheet, the form of which shall be approved by the chief of police, showing the time and place of origin and destination of the trip, the number of passengers carried, the mileage and the amount of fare collected. The owner of each and every limousine shall keep a complete and accurate copy of each contract with its customers. These records shall be filed daily and such record shall be kept on file, available for inspection by the chief of police or his designated assistants, for a period of not less than six months.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-33. Maximum number of passengers.

It shall be unlawful for the driver of any vehicle for hire to transport therein more passengers than specified by the vehicle manufacturer's original specifications without any modification.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-34. Carrying other persons without consent of passenger.

No driver of a vehicle for hire shall carry any other person than the passenger by whom he has been engaged, without the consent of such passenger.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-35. Refusal to transport orderly persons.

No driver of a vehicle for hire shall refuse or neglect to transport any orderly person upon request anywhere in the city, unless previously engaged or unable to do so.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-36. Transporting person for purpose of committing unlawful or immoral act.

No driver of a vehicle for hire shall transport a person for the purpose of committing a crime or for the purpose of committing an immoral act.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-37. Inspection of vehicles.

No vehicle for hire shall be operated on or over the streets or public ways of the city until it has been inspected annually and approved for licensing by the chief of police or his designated assistant.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-38. Failure of vehicle to pass inspection.

If, after the initial inspection, the chief of police or his designated assistant finds that any vehicle for hire does not comply with the provisions of this article, the license therefor may be suspended by him and such vehicle for hire shall not be operated on or over city streets until the vehicle for hire shall have been put in proper condition, pursuant to the terms of this article, and the license reinstated.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-39. Insurance.

Before any license is issued for the operation of a vehicle for hire, the owner shall file with the police department a copy of a policy of liability insurance, issued by a company authorized to do business in this state, providing for at least the minimum coverage required by state law for other motor vehicles. The city shall be given ten days' notice by the insurer prior to cancellation of any such policy.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-40. Display of information on vehicle.

Any person obtaining a license to operate a vehicle for hire shall, immediately upon obtaining such license, have painted on the side of each vehicle to be operated the word "taxi," "taxicab" or "shuttle" and also shall have placed on the side or rear of such vehicle the name of the owner or company operating such vehicle. The city license number shall be displayed on each side and on the rear of the vehicle in contrasting colors. Lettering and numbers shall be a minimum of three inches in height and in contrasting colors to the color of the vehicle. Such identification shall be approved by the chief of police and shall be unobstructed by any part of the vehicle.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-41. Display of rate schedule and vehicle information inside vehicle.

All vehicles for hire shall have posted inside the vehicle, in a manner clearly visible to the passengers therein, a current rate schedule. This rate schedule shall be available in printed form to passengers upon request. All vehicles for hire are required to place within the vehicle, visible by all passengers, information regarding regulatory inquiries or where to file a complaint. The information posted shall include the City of Columbia cab registration number, and area code and phone number of the City of Columbia Business License Division.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-42. Adoption of distinctive color or insignia for vehicles.

Any person operating more than one vehicle for hire may, at his discretion, by and with the consent of the chief of police, adopt a distinctive and uniform color or distinguishing logotype or insignia for all vehicles operated by such person. Upon adoption of any such distinctive color, distinguishing logotype or insignia, the owner of the business shall file immediately a copy and description of the logotype or insignia with the city clerk. Other vehicle for hire services may adopt varying shades of the same primary color as long as such varying shade is distinctive and easily distinguishable from other vehicles.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-43. Taxicab identity lights.

Every taxicab shall be equipped with an identity light attached to the top of the vehicle. The identity light shall be constructed in one unit consisting of an illuminated plate or cylinder upon which is printed the company name and the words "taxi," "taxicab" or "for hire." The overall dimensions of such identity light shall not exceed six inches in height by 20 inches in length. The lights of the identity light shall be connected to a contact switch attached to the taximeter, and such contact switch shall operate automatically to illuminate such identity light when the taximeter is not in operation indicating that the taxicab contains no passengers and to extinguish such identity light when the taximeter is in operation. It shall be unlawful to drive or operate any taxicab with such identity light illuminated while carrying passengers for compensation, and it shall be unlawful to drive, operate or be in charge of any taxicab unless such identity light is illuminated when such taxicab is for hire.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-44. Vehicles to be kept clean and sanitary.

Every vehicle for hire operated in the city shall be kept in a clean and sanitary condition, and shall be swept and dusted at least once a day. At least once every seven days, the interior shall be vacuumed and the interior woodwork or metal framework, glass and floor shall be cleansed thoroughly with a suitable antiseptic solution.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-45. Maintenance of vehicles.

Every vehicle for hire operated in the city shall be kept in such a state of repair as may be necessary to provide for the safety of the public and for the continuous and satisfactory operation of such vehicle.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-46. Communication device required.

(a) Except for companies operating two or fewer vehicles, every taxicab and shuttle service shall be equipped with a commercial or cellular push to talk (PTT) communication device. All taxi cab drivers are prohibited from using a handheld wireless electronic communication device to compose, send or read a communication while driving or operating a motor vehicle upon the public streets and highways within the city.

(b) For purposes of this section, the following definitions shall apply:

Wireless electronic communication device means an electronic device that allows a person to wirelessly communicate with another person, including, but not limited to a mobile, cellular, wireless or digital telephone, a personal digital assistant, a text messaging device or a computer.

Driving or operating a motor vehicle means that the motor vehicle is moving or in motion.

(c) Nothing in this section is intended to conflict with enforcement or applicable restrictions or requirements imposed on commercial motor vehicle operators pursuant to the Federal Motor Carrier Safety Regulations.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-47. Full-time operation and physical office.

(a) Full-time operation is required for vehicles for hire. For purposes of this article, full-time operation is defined as being in service and on call at least 12 hours each day, except Sunday.

(b) Any vehicle for hire company with ten or more operational taxicabs in its fleet after the effective date of this ordinance shall establish and maintain an office in a commercially zoned location within or without the corporate limits of the city. Any vehicle for hire company licensed with ten or more taxicabs in the company's fleet prior to the effective date of the ordinance from which this article derives shall establish and maintain an office in a commercially zoned location within or without the corporate limits of the city within 180 days of the effective date of this ordinance. If within the corporate limits of the city, such office shall be in a commercial zone permitted by the zoning ordinances of the city. The office shall be staffed by a minimum of one (1) person from the hours of 9:00 a.m. until 5:00 p.m., Monday through Friday.

(c) Failure comply with this section shall result in a revocation of the permit to operate.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-48. Taxicab stands.

The city council may designate stands for taxicabs. Consideration will be given to the effect upon traffic and parking and the convenience to the public when establishing such stands. All stands shall be subject to use by any taxicab.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-49. Surcharge on fares for taxicabs equipped with driver safety devices.

(a) Any taxicab operated in the city limits may be equipped with one or more of the following safety devices:

(1) A securely fastened transparent protective partition with a width equal to the width of the front seat of the vehicle and being of a height such that it extends from the bottom of the front seat to a point three inches below the roof of the taxicab. Such partition

shall prevent a passenger in the rear of the taxicab from reaching the driver. The partition shall be made of a material advertised as bullet resistant and capable of withstanding a bullet fired from a handgun; and

(2) Trunk locks with a quick-release feature that allows for the release of the trunk from inside the trunk compartment.

(b) The safety features described in this section shall be installed within 14 days of a driver's request. Notice of this 14-day requirement shall be posted in a conspicuous place in the office of the taxicab company.

(c) Any vehicle that has the safety features described in this section shall be allowed to charge an additional $0.25 per fare for four months to provide for the costs of the safety features. A taxicab imposing this surcharge will have a sign prominently displayed in the taxicab reading as follows: "Taxicabs equipped with protective partitions and quick-release trunk locks are entitled to charge an additional twenty-five cents ($0.25) per fare. This surcharge will expire on _____/_____/_____."
(Ord. No. 2011-036, 10-18-11)

Sec. 24-50. Handicapped service requirement.

All taxicab companies owning or operating five or more taxi cabs shall maintain not less than one vehicle capable of providing service to persons confined to wheelchairs. Such vehicle must be designed so as to allow a wheelchair bound customer the ability to enter, ride in and exit the vehicle without the need of moving from the wheelchair.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-51. Smoking prohibited.

All vehicles for hire licensed to operate in the city shall be 100 percent smoke free at all times.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-52. Dress code.

Clothing for drivers of a vehicle for hire shall be neat, clean and of a non-revealing nature. Shorts, collared shirts and open toed shoes are permissible. T-shirts, tank tops, flip-flops and hair curlers are prohibited.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-53. Cell phone use.

Drivers of vehicles for hire are prohibited from using cell phones while operating a vehicle for hire unless the driver is utilizing a hands free device. Drivers are permitted to use a commercial or cellular push to talk (PTT) device while operating a vehicle for hire.
(Ord. No. 2011-036, 10-18-11)

Secs. 24-54—24-70. Reserved.

DIVISION 2. DRIVER'S PERMIT

Sec. 24-71. Required.

It shall be unlawful for any person to act as a driver of a vehicle for hire, or to be in charge of any vehicle for hire, without having a permit therefor issued by the police department. (Ord. No. 2011-036, 10-18-11)

Sec. 24-72. Investigation of application; persons ineligible for permit.

(a) Before issuing any permit as required by this section, the chief of police or his designee shall investigate the facts set out in such application, and shall not grant such permit to any applicant who:

(1) Has been or could be classified as a habitual offender as defined in S.C. Code Ann. § 56-1-1020 (2006) and as that section may from time to time be amended;

(2) Except as provided in subsections (3) and (4), has been convicted of a violation of any law or ordinances involving moral turpitude within the previous five years;

(3) Has been convicted, regardless of the length of time since conviction, of an offense involving:

a. Assault and/or battery of a high and aggravated nature;

b. Assault and/or battery with intent to kill;

c. Auto theft;

d. Attempted auto theft;

e. Bank robbery;

f. Accessory to bank robbery;

g. Robbery; or

h. Manslaughter.

Provided, however, that the chief of police or his designee shall have the authority to issue a permit to any applicant who has been convicted of any offense referenced in this subsection provided that:

1. A period of ten years has passed since the completion of any sentence, period of parole or probation related to such crime; and

2. The applicant can demonstrate that he has not been convicted of a criminal offense since the plea or conviction was entered; and

3. The applicant can demonstrate that he has had no more than six points assessed against his driver's license at any one time since the completion of any sentence, period of parole or probation related to such crime.

(4) Has been convicted, regardless of the length of time since conviction, of any of the following offenses:

a. Any sex offense which would cause the applicant to be included on the Sexual Offender Registry as defined in S. C. Code Ann. § 23-3-430 (2006)) and as that section may be amended from time to time;

b. Trafficking in a controlled substance;

c. Distribution, sale, manufacture or possession with intent to distribute a controlled substance;

d. Purchase of a controlled substance while in, on, or within a half-mile radius of the grounds of a school, public playground or public park; or

e. Murder.

(b) The provisions of this section shall not bar permit renewal for any person who holds a valid permit as of the effective date of the ordinance from which this section is derived and who may have been convicted of any of the offenses enumerated in this section prior to the date that permit was issued.

(c) For purposes of this section, "conviction" is defined as entering a plea of guilty, entering a plea of nolo contendere, being found guilty by a judge or jury, or forfeiting bail or bond on a charge.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-73. Expiration.

Every driver's permit as required by this division issued on or after , _____, 2011 shall thereafter expire three years from the date of issuance; provided, however, that no permit issued under this provision shall expire within 90 days after being issued. Any permit which would expire within 90 days after issue shall expire three years from the date of issuance following such 90-day period.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-74. Issuance of permit card and permit fee.

(a) On issuance of any driver's permit required by this division by the chief of police or his designated assistant, he shall issue a card which shall bear on its face a photograph of the permittee, the number of his permit, the expiration date thereof, and such other information as the chief of police may direct.

(b) A fee of $10.00 will be charged for the issuance of each driver's permit.

(c) A new application for a driver's permit will be required for the operator of any vehicle for hire when the operator of the vehicle for hire changes from one vehicle for hire company to another. A new application fee and permit fee will be required.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-75. Display of permit card.

The vehicle for hire driver's permit card shall at all times be kept on display in the vehicle for hire operated by such driver, easily visible by the passenger, while such permittee is in control of such vehicle for hire.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-76. Physical examination of applicants; certification as to physical condition.

No person shall be issued a new or renewal of a vehicle for hire driver's permit under the provisions of this division until he has been examined and it has been certified by a physician licensed to practice in South Carolina that the applicant is not disabled by reason of defects of sight, hearing, body or limbs from safely operating a motor vehicle in and upon the streets of the city. The city reserves the right to have any applicant examined by a physician appointed by the city before issuing a new or renewal of a permit to such applicant to drive a vehicle for hire within the city.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-77. Contents of application; application fee.

(a) Each new and renewal permit required by the provisions of this division shall be applied for in writing, on such application form as the chief of police may prescribe, which shall show that the applicant has:

(1) Obtained a driver's license from the South Carolina Department of Motor Vehicles after satisfactorily completing a driver's examination which shall show the experience of the applicant in driving motor vehicles, and whether such applicant has been convicted of a violation of a motor vehicle, traffic or criminal law, giving particulars of each offense charged, and such other information as the chief of police may prescribe; and

(2) South Carolina Law Enforcement Division (SLED) criminal history report; and

(3) Negative five panel drug test certified by a laboratory which is certified by the National Laboratory Certification Program.

(b) Such application shall be accompanied by at least two recent photographs of the applicant, the size of which shall be determined by the chief of police, and the certification of at least two reputable citizens of the city personally acquainted with the applicant showing him to be a person of good moral character.

(c) An application fee of $20.00 to cover the cost of investigation and other expenses related to filing and processing shall be paid by the person applying for a driver's permit before such permit shall be issued; provided that, if any permit shall expire within three years after it is issued, the application fee shall be prorated using the following schedule:

(d) Each new and first time renewal applicant shall participate in the Famously Hot Hospitality Class.

(e) Any application for a new permit or for the renewal of a permit shall be denied if the application is incomplete or contains a misrepresentation, false or misleading statement or a material fact. If it is discovered that any application for a new permit or for the renewal of a permit was incomplete or contained a misrepresentation, false or misleading statement or a material fact after a permit has been issued, then the permit shall be immediately revoked.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-78. Minimum age of applicant.

Every applicant for a permit under the provisions of this division shall be at least 18 years of age.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-79. Revocation.

Any driver's permit granted under the terms of this division may be revoked by the chief of police for violation of provisions of this article after notice to the permittee in writing citing him to appear before the chief of police and to show cause why his permit should not be revoked. That the driver's license has been revoked by the state, that he has willfully or persistently violated the provisions of the ordinances of the city, or that he is unfit physically or morally to operate a vehicle for hire in the city shall be deemed sufficient reason for revocation of the permit.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-80. Operating vehicle without valid permit.

It shall be unlawful for any person to operate any vehicle for hire after the revocation of the driver's permit, after the expiration of any driver's license or permit issued by the chief of police, or while such permit is not in full force and effect in accordance with the provisions of this division.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-81. Appeals.

(a) Any person dissatisfied with the decision of the chief of police or his designee denying a permit or revoking a permit under this division shall have the right of appeal as set out below. Notice of intention to appeal, fully setting forth the grounds of the appeal, must be given in writing and served on the city clerk within ten days after the mailing of written notice of the denial or revocation of a permit by United States mail, postage pre-paid, to the appellant at the address contained in the application or the appeal is waived.

(b) The appeal hearing shall be conducted by a three-person panel. The city manager shall appoint the members of the panel and shall designate one of the appointees to act as chairperson. The chairperson shall convene the panel for the hearing within 15 working days of the filing of the appeal. At the hearing, the panel shall accept any relevant documents or statements from the appellant and from the police chief or his designee. The panel shall make

a written recommendation within 15 working days to the city manager to uphold or reverse the decision of the police chief based on its interpretation of the facts and applicable sections of this division. The recommendation of the panel shall be approved by a majority of the panel members. The chairperson of the panel shall immediately notify the appellant in writing of the panel's recommendation. Proceedings before the panel shall be recorded by the city clerk. Either party may have the proceedings recorded by additional means at their own expense. The city manager may uphold or reverse the recommendation of the panel subject to the provisions of this section. The city manager will make his determination within ten working days of the panel's decision.

(c) Any party dissatisfied with the decision of the city manager shall have the right of appeal to the circuit court. A petition, fully setting forth the grounds of appeal, must be given in writing and served on the city clerk and filed with the clerk of court for the circuit court within ten days after the decision of the city manager is announced. There shall be no trial de novo on any appeal. The circuit court will review the record of the proceedings before the city manager or his designee for errors of law only.
(Ord. No. 2011-036, 10-18-11)

Secs. 24-82—24-100. Reserved.

DIVISION 3. CERTIFICATE OF PUBLIC CONVENIENCE AND NECESSITY

Sec. 24-101. Required.

No vehicle for hire shall be licensed to do business in or use the streets of the city unless there shall first have been obtained from the city council a certificate of public convenience and necessity therefor. For purposes of this section, doing business on the streets of the city is defined as entering the city for the purpose of picking up a fare or delivering a fare to the designated destination a minimum of six times during the course of a calendar year.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-102. Issuance; revocation.

(a) The city council may, when in its judgment the public interest and safety require it, issue or refuse to issue to any applicant a certificate of public convenience and necessity, or, upon notice and after hearing, may for like cause revoke any such certificate theretofore issued. In case such certificate is revoked, the business license administrator may remit to the holder of such revoked certificate the unearned portion of any license tax paid to the city by such certificate holder.

(b) In determining whether public convenience and necessity require the licensing of such vehicles for hire for which application may be made, the city council may take into consideration whether the demands of the public require such proposed or additional vehicle for hire service within the city, there is a need for new or additional service which is not adequately being provided by existing vehicles for hire, the financial responsibility of the

applicant, the number, kind and type of equipment, the increased traffic congestion and demand for increased parking space upon the streets of the city which may result and whether the safe use of the streets by the public, both vehicular and pedestrian, will be preserved by the granting of such additional licenses, and such other relevant facts as the city council may deem advisable or necessary. The burden of showing public convenience and necessity shall rest upon the applicant by providing clear and convincing evidence.
(Ord. No. 2011-036, 10-18-11)

Secs. 24-103—24-120. Reserved.

DIVISION 4. LICENSE

Sec. 24-121. Applicants to agree to terms of article.

Any person applying for a license to operate a vehicle for hire shall be required to agree to all terms of this division as well as the terms and conditions contained in Division 1 of this article and any amendments thereto which may be enacted by the city council in the public welfare.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-122. Issuance.

A vehicle for hire license shall be issued to the holder of a certificate of public convenience and necessity for each vehicle to be operated under the supervision of the holder up to the maximum number specified in the certificate. A copy of the certificate of title or other evidence of title (which shall include the title of a lessor of the vehicle) shall be filed with the city clerk, together with a copy of any lease documents affecting the operation of the vehicle.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-123. Supervision of operation of vehicles; leasing vehicles.

Every vehicle for hire shall be operated by or under the supervision of the person to whom the license is issued; provided, however, that the holder of a certificate of public convenience and necessity for the purpose of operation of a taxicab and who owns and operates a central radio system and has a telephone number listed under a trade name identical to or similar to the name in which the taxi license is issued may enter into a lease arrangement for a minimum term of 90 days for the operation of a vehicle either as lessor or lessee upon such terms as may be agreed to by the parties, provided that the holder of the license shall be responsible for compliance with the provisions of this division.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-124. Transfer.

No license shall be transferred to a new owner or lessee of a vehicle for hire. A certificate of convenience and necessity may be transferred upon approval of the city council to a corporation in which the original holder owns a majority of the outstanding stock. No license

shall be issued unless there is a vehicle owned or leased by the certificate holder which has met the requirements of this article to which the license can be affixed. A license shall be surrendered and cancelled when the holder no longer has a qualified vehicle for it. No certificate of convenience and necessity or taxi license shall be leased by the holder to another party or entity, or in any manner transferred with or without value.
(Ord. No. 2011-036, 10-18-11)

Secs. 24-125—24-140. Reserved.

DIVISION 5. RATES FOR TAXI SERVICE; TAXIMETERS

Sec. 24-141. Rates established.

(a) Effective November 7, 2011, the maximum rates to be charged for taxi service are established as follows:

(1)	First 1/10 mile	$2.25
(2)	Each additional 1/10 mile	0.25
(3)	Each additional passenger over two	0.50
(4)	Trunk space	2.00
(5)	Waiting time, per hour	18.00

(6) Traffic delay charge: The clock on the meter will take over after the cab's speed goes below five miles per hour, during which time the meter will register at the rate of $18.00 per hour.

(7) In response to oil price increases and commensurate increases in fuel costs, the following sliding scale fuel surcharges may be collected:

Average Cost of Fuel Per Gallon	*Amount of Fuel Surcharge*
$4.00—$4.50	$1.00
$4.51—$5.00	$1.50
$5.00—$5.50	$2.00
$5.51—$6.00	$2.50
$6.00—$6.50	$3.00
$6.51—$7.00	$3.50

The fuel surcharge shall be based upon the American Automobile Association's average regular gasoline per gallon fuel rate for Columbia, South Carolina as of January 1st, April 1st, July 1st and October 1st of each calendar year. Each taxi shall post a placard in plain sight of the passengers informing them of the applicable American Automobile Association's average regular gasoline per gallon fuel rate for Columbia, South Carolina and the amount of the surcharge that will be charged.

(b) Senior citizens (60 years of age and over) are to be given a ten percent discount off the rates outlined in (a)(1) and (2) above. Other charges apply as are outlined in (a)(3) through (8) above.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-142. Display of rate schedule; calibration of taximeters.

Each taxicab shall keep a schedule of the rates established in this division, such schedule to be posted in the taxicab so as to be clearly visible to all passengers. Each taximeter shall be calibrated to conform to the rates established in this division.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-143. Overcharging.

No person owning, controlling or operating any taxicab shall let the taxicab for hire and receive a fee or charge in excess of the rates established by the city council.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-144. Failure to pay for taxi service.

It shall be unlawful for any person to engage or use a taxicab in the city not intending to pay for the service at the time such vehicle is engaged and with the intent to defraud the owner or driver of such vehicle of the value of the use thereof.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-145. Taximeter required.

It shall be unlawful for any owner or driver operating any taxicab under the provisions of this article to operate or cause to be operated on the streets or public ways of the city any such taxicab unless the taxicab is equipped with a taximeter approved by the chief of police.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-146. Taximeters to be kept accurate.

It shall be the duty of every owner using any taximeter at all times to keep the taximeter accurate.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-147. Inspection of taximeters.

Taximeters shall be subject to inspection from time to time by the chief of police or by his designated assistant.
(Ord. No. 2011-036, 10-18-11)

Sec. 24-148. Visibility of dial on taximeter.

All taximeters shall be placed so that the reading dial showing the amount to be charged shall be well lighted and readily visible to passengers riding in such taxicabs.
(Ord. No. 2011-036, 10-18-11)

Secs. 24-149—24-170. Reserved.

ARTICLE III. HORSE-DRAWN VEHICLES FOR HIRE*

Sec. 24-171. License required.

It shall be illegal to operate any vehicle which is pulled or drawn by a horse, mule or other beast of burden within the city for the purpose of transporting passengers unless that vehicle shall have a valid current license issued by the city pursuant to the provisions of this article.
(Code 1979, § 8-6001)

Sec. 24-172. Certificate of public convenience and necessity.

(a) *Required.* No horse-drawn vehicle for hire shall be licensed to do business in or use the streets of the city unless there shall first have been obtained from the city council a certificate of public convenience and necessity therefor.

(b) *Application; regulation of operation and routes.* An applicant for a certificate of public convenience and necessity for the operation of a horse-drawn vehicle for hire shall include in the application detailed information concerning the specific type vehicle to be used, the specific area of the city within which operations shall be conducted, the routes to be used, and the hours and days of the week the horse-drawn vehicle may be operated. Issuance of the certificate of public convenience and necessity shall be conditioned on strict compliance with the areas, routes and times approved or modified by the city council. The city council may further condition the certificate to regulate the method of operation of horse-drawn vehicles for hire as may be considered necessary to ensure proper traffic flow and public safety within the specific area to be served.

(c) *Conditions.* Each applicant shall certify as a condition for the issuance of a certificate of public convenience and necessity that:

(1) All vehicles to be operated pursuant to the certificate shall be maintained in a safe and sanitary condition at all times; and

(2) No one shall be permitted to operate the vehicles who is not at least 18 years old, who does not possess a valid license to operate a motor vehicle issued by the state, who has been convicted of a major crime or the violation of laws or ordinances involving moral turpitude, or who has a record of habitually violating traffic laws or ordinances.

***Cross reference—**Animals generally, ch. 4.

(d) *Denial, revocation or modification.* The city council may, when in its judgment the public interest and safety require it, issue or refuse to issue to any applicant a certificate of public convenience and necessity, or, upon notice and after hearing, may for like cause revoke or modify any such certificate theretofore issued. In case such certificate is revoked, the city treasurer shall remit to the holder of such revoked certificate the unearned portion of any license tax paid to the city by such certificate holder.

(e) *Criteria for issuance.* In determining whether public convenience and necessity require licensing of such horse-drawn vehicles for hire for which application may be made, the city council shall take into consideration whether the demands of the public require the proposed or additional service within the city, the financial responsibility of the applicant, the number, kind and type of equipment, the increased traffic congestion and demand for increased parking space upon the streets of the city which may result, whether the safe use of the streets by the public, both vehicular and pedestrian, will be preserved by the granting of such additional licenses, and such other relevant facts as the city council may deem advisable or necessary. The council shall also consider the applicant's proposed procedures for care and protection of the health of the horses and may impose additional requirements in the certificate. The burden of showing public convenience and necessity shall rest upon the applicant.
(Code 1979, § 8-6002)

Sec. 24-173. Issuance of license.

Upon presentation of evidence that a certificate of public convenience and necessity has been granted by the city council under this article, the business license inspector shall issue to the certificate holder a license for each horse-drawn vehicle to be operated up to the number authorized in the certificate, at the same rate as for taxicabs.
(Code 1979, § 8-6003)

Sec. 24-174. Indemnification of city; liability insurance.

(a) As a condition for the issuance of any license pursuant to the provisions of this article, the licensee shall agree to indemnify the city, its agents and employees from and against all claims, damages, losses and expenses, including attorneys' fees, arising out of or resulting from the operation of any licensed vehicle for hire.

(b) Before any license is issued for the operation of a horse-drawn vehicle for hire, the owner shall file with the city clerk a copy of a policy of liability insurance issued by a company authorized to do business in this state providing for at least the minimum coverage limits required for motor vehicles in this state.
(Code 1979, § 8-6004)

Sec. 24-175. Operating regulations; inspections.

(a) *Display of license and certificate.* It shall be illegal to operate any horse-drawn vehicle for hire on any city street or right-of-way unless a current valid license certificate issued by the business license inspector is prominently displayed within the vehicle.

(b) *Compliance with provisions of certificate.* All horse-drawn vehicles for hire must be operated in strict compliance with the provisions of the certificate of public convenience and necessity pursuant to which the license was issued.

(c) *Compliance with traffic regulations.* All traffic regulations of the city or the state must be strictly complied with.

(d) *Sanitation requirements.* All operators of horse-drawn vehicles for hire shall comply with the following sanitation requirements:

(1) All horses, mules and other animals shall be equipped with adequate devices to prevent manure and other excrement from falling upon the streets of the city. Any excrement which falls upon the streets of the city shall be removed at the expense of the licensee.

(2) All animal waste for disposal shall be promptly transported to sites or facilities legally empowered to accept it for treatment or disposal.

(3) A licensee shall further comply with all applicable health and sanitation requirements of the state and all rules and regulations promulgated by the state.

(e) *Inspections.* Each horse-drawn vehicle for hire shall be kept in a safe and sanitary condition at all times. The city shall have the right to inspect or cause to be inspected any horse-drawn vehicle as often as may be necessary for the purpose of ascertaining and causing to be corrected any unsafe or unsanitary conditions or any violations of this article or any other rule, regulation, ordinance or law relating to the operation of such horse-drawn vehicles.

(f) *Identification on vehicles; other signs on vehicles.* All horse-drawn vehicles used by a licensee shall have conspicuously displayed on the exterior of the vehicle the name of the licensee or the trade name under which the vehicle is operated. No signs other than those required by this article shall be allowed on any horse-drawn vehicle.
(Code 1979, § 8-6005)

Secs. 24-176—24-200. Reserved.

ARTICLE IV. WRECKER AND TOWING SERVICES*

Sec. 24-201. Wreckers to respond to accidents only when called by police.

It shall be unlawful for the owner or agent of any wrecker or towing service to go to any place where an accident has occurred unless called by the police dispatcher. Responding to a call upon notice from gas station attendants, taxicab drivers or unauthorized persons shall be considered a violation of this article.
(Code 1979, § 2-4001)

***State law reference—**Regulation of wreckers at scenes of accidents, S.C. Code 1976, § 4-18-10.

Sec. 24-202. Response to calls generally; monitoring police radio.

It shall be unlawful for the owner, agent or driver of any wrecker or towing service to respond to a location unless requested to do so by the police department or an individual. No provision of this section, however, shall prohibit the owner, agent or driver of any wrecker or towing service from monitoring police radio calls for the purpose of ascertaining that the police department is in compliance with zone regulations as provided in section 24-208.
(Code 1979, § 2-4002)

Sec. 24-203. Solicitation of business by wrecker operators.

It shall be unlawful for the owner or agent of any wrecker or towing service to solicit wrecker or towing service. In the event of non-accidental mechanical breakdowns, the operator of an automobile or vehicle shall be allowed to call a wrecker or towing service of his choice, provided the wrecker or towing service has a business license to operate in the city.
(Code 1979, § 2-4003)

Sec. 24-204. Solicitation of business by city employees.

It shall be unlawful for any city employee to solicit business for any wrecker or towing service, and any employee guilty of violating this provision shall forfeit his right to continue as such employee and shall be subject to discharge. It shall likewise be unlawful for any owner, agent or driver of a towing service to entice or engage a city employee to solicit business for the service in exchange for payment, whether money, a gift or a gratuity, and the offending service shall forfeit its eligibility for zone service.
(Code 1979, § 2-4004)

Sec. 24-205. Authority of police to have vehicles towed and impounded.

Whenever a police officer finds a motor vehicle or other vehicle that has been abandoned or wrecked upon the public streets or ways of the city, or upon city property, or that has been parked in violation of a city ordinance or state law, or that has been or is being used in the commission of a crime, such officer may have the vehicle removed by a wrecker to the storage lot or garage operated by such wrecker. Vehicles removed under these conditions shall be held until claimed by the legal owner or lienholder or otherwise disposed of as provided by statute.
(Code 1979, § 2-4005; 2002-057, 3-5-03)

Sec. 24-206. Right of vehicle owner or operator to designate wrecker service; other wrecker service.

The emergency services dispatcher shall call any wrecker service having a business license issued by the city requested by the owner or operator of a vehicle damaged or disabled in a street or public place. If no wrecker service is designated by the vehicle owner or operator, and

in any situation in which a vehicle is towed at the direction of city personnel without the prior authorization or consent of the owner or operator of the vehicle, the emergency services dispatcher shall call the wrecker service as provided in section 24-207.
(Code 1979, § 2-4006; 2002-057, 3-5-03)

Sec. 24-207. Zone service generally.

(a) The city manager, upon the recommendation of the director of public works, shall have prepared a map of the city, divided into not less than three nor more than six zones, and shall provide that each zone be serviced by one or more firms meeting the eligibility requirements of this article. A firm may apply for zone service only for the zone within which it has its primary business location; however, a firm may apply and be approved in any other zone provided it has a full independent service location in that zone. This firm must have also been licensed and operated a wrecker service at the same physical address in that zone for a period of two years or more. Zones serviced by firms without heavy duty equipment may be further serviced by firms having heavy duty wreckers.

(b) If more than one wrecker firm is participating in a zone, the city manager shall set up a rotation list for the performance of wrecker services in that zone. The city manager shall determine when each wrecker service shall be subject to call pursuant to the rotation list.
(Code 1979, § 2-4007; 2002-057, 3-5-03; Ord. No. 2007-049, 6-20-07; Ord. No. 2011-058, 10-18-11)

Sec. 24-208. Eligibility for participation in zone service.

Any firm having its main business operation within the city shall become eligible to participate in zone service as provided in section 24-207 if it has a valid license to do business in the city and if it conforms to the rules and requirements established in this article and has done so for a minimum of two years. Any deviation from the requirements of the policies established in this article or failure to provide reasonable, quick and efficient service at the rates prescribed may result in the suspension for a specified time or termination of the contract with such company by the city manager upon recommendation of the director of public works. A suspension, termination or a waiver of the two year waiting period shall be subject to appeal to the city council upon written request within ten days after notice of suspension or termination or denial for eligibility to participate in zone service.
(Code 1979, § 2-4008; Ord. No. 97-42, 7-16-97; 2002-057, 3-5-03; Ord. No. 2007-049, 6-20-07)

Sec. 24-209. Application to participate in zone service.

Any firm meeting the minimum eligibility requirements may apply to the director of public works of the city to participate in zone service towing operations. The application shall contain the following information:

(1) *Business operation.*

a. Name of firm: Indicate whether the firm is a corporation or partnership, and list all parties having a financial interest in the towing firm, including names and

addresses, the number of years the business has been established in the city and the number of years that those persons holding financial interest in the firm have been residents of the city.

b. Attendants and drivers: List names and addresses of all attendants and drivers who will conduct the police towing service, as well as the number of years employed, training received by those attendants and drivers and experience of the personnel in the conduct of the business.

c. Equipment: Describe available equipment to be used in police towing services, particularly in terms of comparative qualities or capacities as related to minimum eligibility requirements.

d. Communications: Describe the method of operation of the communications system between place of business and operating tow trucks, as well as the means utilized for ensuring prompt dispatch of trucks upon receipt of calls from the police department.

e. Other facilities and personnel available: List all provisions for recordkeeping, backup personnel and auxiliary services which might be required to effectively carry out a high level of service to the public in the business of tow truck operations.

(2) *Business location and storage lot.*

a. Primary business location: List the location of primary business operation within the city, including dimensions and type of facilities available.

b. Storage lot: List the location of storage lots, dimensions thereof, relationship to the primary business operation, type of protection afforded, screening and maintenance provided at the lots, and theft insurance providing protection to the owners of vehicles stored.

(Code 1979, § 2-4009; 2002-057, 3-5-03)

Sec. 24-210. New applications to participate in zone service.

Any firm otherwise meeting the eligibility requirements of sections 24-208 and 24-209 and having been in the wrecker business at the same physical address within the requesting zone for a minimum of two years may apply for participation in zone coverage at any time. An aggrieved applicant may, upon written notice, appeal to the city council within ten days after notice that its application was disapproved.

(Code 1979, § 2-4010; 2002-057, 3-5-03; Ord. No. 2007-049, 6-20-07; Ord. No. 2011-058, 10-18-11)

Sec. 24-211. Equipment for emergency wreckers; 24-hour service required.

(a) *Generally.* Every emergency wrecker proposed to be used by an applicant shall be subject to inspection in a manner determined by the chief of police, and every such wrecker, other than an emergency heavy duty wrecker, shall comply with the following minimum requirements:

(1) Each applicant shall have at least two wreckers, one of which may be a carrier. Each unit shall be not less than one ton in size with dual rear wheels. Each wrecker shall have a sign on the driver and front passenger door clearly showing only one company name, address and telephone number. These signs shall be painted on or permanently affixed to the doors. All lettering on such signs shall be plainly visible and shall be in a color that contrasts to that of the wrecker.

(2) Each wrecker shall be equipped with a power-operated winch, winch line and boom, with a factory-rated lifting capacity or a city-tested capacity of not less than 8,000 pounds, single line capacity. Each wrecker shall carry as standard equipment a towing device (wheel lift or sling), towing dollies and safety chains.

(3) Each carrier shall be a minimum of 17 feet in length, equipped with a power-operated winch with a factory-rated lifting capacity of not less than 8,000 pounds, tiedown chains and hooks.

(4) Each wrecker and/or carrier shall be equipped with a fire extinguisher, wrecking bar, broom, shovel and approved warning devices.

(5) Each wrecker and/or carrier and all of its equipment shall be in a safe working condition and must be titled in the name of the applicant and registered at the South Carolina Department of Motor Vehicles.

(6) Each wrecker and/or carrier shall be equipped with a communication device allowing them to communicate with their main business location.

(b) *Heavy duty wreckers.* Every emergency heavy duty wrecker of not less than 2½ tons in size shall meet the requirements in subsection (a) of this section and, in addition thereto, shall be equipped with a power-operated winch, winch line and boom with a factory-rated lifting capacity or a city-tested capacity of not less than 32,000 pounds, single or double line capacity, and a tow sling.

(c) *Twenty-four-hour service required.* Each applicant shall maintain 24-hour wrecker service and respond to the location of a vehicle to be towed within thirty minutes after receipt of a call from the city.

(Code 1979, § 2-4011; 2002-057, 3-5-03; Ord. No. 2007-049, 6-20-07; Ord. No. 2011-058, 10-18-11)

Sec. 24-212. Agreements with city.

Approved applicants under this article shall enter into agreements with the city, executed by the city manager or his designee, which agreements shall be binding contracts to perform services for the calendar year or portion thereof in which application is made.
(Code 1979, § 2-4012; 2002-057, 3-5-03)

Sec. 24-213. Insurance.

(a) An applicant under this article shall procure and keep in full force and effect a policy of public liability and property damage insurance issued by a casualty insurance company authorized to do business in the state and in the standard form approved by the insurance commissioner of the state, with the insured provision of such policy including the city as an insured, and the coverage provision insuring the public from any loss or damage that may arise to any person or property by reason of the operation of any emergency wrecker of such applicant and providing that the amount of recovery on each emergency wrecker shall be in limits of not less than the following sums:

(1) For damages arising out of bodily injury to or death of one person in any one accident, $100,000.00;

(2) For damages arising out of bodily injury to or death of two or more persons in any one accident, $300,000.00; and

(3) For injury to or destruction of property in any one accident, $25,000.00.

(b) An applicant shall procure liability insurance in the amount of $100,000.00 to cover damages arising out of bodily injury or death to persons and in the amount of $25,000.00 for damages for injury to or destruction of property caused by vehicles in tow, under possession of, or in control of a wrecker operated and maintained by the applicant.

(c) Every policy mentioned in subsection (a) of this section shall contain an endorsement providing for 30 days' notice to the city in the event of any material change or cancellation of the policy.
(Code 1979, § 2-4013; 2002-057, 3-5-03)

Sec. 24-214. Storage lots.

(a) *Location; size; fencing and security.* Each applicant under this article shall have a storage lot located within their zone with adequate storage, at least 50 feet by 100 feet, or equivalent area either under cover or fenced with a six-foot chain link fence topped with three strands of barbed wire, except that if other ordinances or regulations of the city require a fence that is opaque, an opaque fence shall be installed. Stored vehicles and contents must be kept safe from pilfering. Vehicles towed for the city must be stored within their zone and within the security fencing.

(b) *Signage.* Each wrecker service on rotation must have a sign placed on the exterior of their business location, being clearly visible, stating the company name, telephone number and business hours.

(c) *Hours.* There shall be an attendant on call, capable of responding to police requests for towing within thirty minutes of a call, as well as an attendant being present or available for the release of vehicles to the public within thirty minutes of a call, 24 hours a day, seven days a week. Failure to respond to a police call for towing within the allotted timeframe could result in the next wrecker service on the rotation list being called and the initially called wrecker will forfeit the call. Failure to respond to a request from the public for the release of a vehicle within the allotted timeframe could result in suspension or termination of the contract for provision of zone services.

(d) *Records.* Each garage shall keep a record of the vehicle and license number, the date and time it was towed and the location from which it was towed, the name of the officer ordering the towing, and whether the vehicle was impounded or towed at the owner's request.

(Code 1979, § 2-4014; 2002-057, 3-5-03; Ord. No. 2011-058, 10-18-11)

Sec. 24-215. Towing and storage charges.

In all cases in which a vehicle is towed at the direction of city personnel or without the prior authorization or consent of the owner or operator of the vehicle, the following shall apply:

(1) *Towing.* A maximum charge of $195.00 beginning on the effective date of the ordinance from which this section is derived for one year and then $225.00 beginning on the 366th day following the effective date shall be made for the use of a wrecker when a vehicle is disabled as the result of an accident. A corresponding additional charge may be made if the automobile flipped over and must be righted or is on a bank or sloping terrain. If the vehicle is being towed for a parking violation or abandonment, a maximum charge of $150.00 beginning on the effective date of the ordinance from which this section is derived for one year and then $175.00 beginning on the 366th day following the effective date shall be made for the use of the wrecker. If the owner of such vehicle appears before his vehicle is towed away and makes claim to his vehicle after the wrecker has been ordered to remove such vehicle, the vehicle may be released to the owner upon payment of $75.00 beginning on the effective date of the ordinance from which this section is derived for one year and then $100.00 beginning on the 366th day following the effective date to the wrecker service, provided the owner shall satisfy all charges against the vehicle at police headquarters. A maximum charge of $175.00 per hour shall be made for each heavy-duty wrecker.

(2) *Storage.* Maximum storage charges on stored or impounded vehicles shall be $35.00 per day;

(3) *Release of impounded vehicles.* No stored or impounded vehicle shall be released until proper evidence of ownership is exhibited and all towing and storage charges have been paid. The towing and storage charges shall be collected by the wrecker service as provided by law.

(4) *Posting of rates; additional charges.* All rates approved by the city shall be posted in a conspicuous place in each office of the wrecker service. All towing and storage charges will be itemized on an invoice or receipt when charges are paid. No charges other than towing and storage charges will be made on any vehicle without prior written approval from the owner or his agent.

(5) *Payment methods.* Every firm providing zone services shall accept major credit cards in addition to cash for towing and storage charges. There shall be no additional fee charged for the use of credit cards.

(Code 1979, § 2-4015; 2002-057, 3-5-03; Ord. No. 2011-058, 10-18-11; Ord. No. 2023-097, 9-19-23)

Sec. 24-216. Towing of vehicles obstructing streets.

All wrecker services under contract for police-requested towing shall assist in towing vehicles which obstruct streets during special events, repairs or emergencies without cost to the city or the vehicle owner, including the removal from the street, upon request of the police, of damaged or disabled vehicles obstructing the right-of-way and awaiting another requested wrecker service. All vehicles shall be checked by a police officer for damage prior to towing. The city shall not be responsible for any towing charges under any circumstances.
(Code 1979, § 2-4016)

Sec. 24-217. Removal of glass and debris.

All wrecker services doing business in the city shall remove glass, damaged parts, oil and all debris at the location from which any vehicle is towed.
(Code 1979, § 2-4017)

Sec. 24-218. Suspension or revocation of business license.

(a) The chief of police may direct that the city business license inspector revoke or suspend any business license issued for towing service for up to 60 days if he determines that the public interest so requires and when it is found, after investigation, that:

(1) The license has been mistakenly or improperly issued or issued in violation of a city ordinance;

(2) The licensee has breached any condition upon which his license was issued or has failed to comply with the provisions of this article;

(3) The licensee has obtained his license through any fraud or misrepresentation, a false or misleading statement, or evasion or suppression of a material fact in his application;

(4) The licensee has been convicted of an offense under a law or ordinance regulating business, a crime of moral turpitude, or an unlawful sale of merchandise or prohibited goods; or

(5) The licensee has engaged in an unlawful activity or nuisance related to the business.

(b) The chief of police may direct that the city business license inspector revoke or suspend any license issued for towing service for any of the reasons listed in subsection (a) of this section for a period of more than 60 days, provided that any person aggrieved by an order revoking or suspending such license may file a written request for a hearing before the city council within ten days after issuance of such order. The manager shall give five days' notice of a hearing upon this request, to be held not more than 30 days after service of the notice on the person requesting the hearing or his representative. At such hearing, the council shall determine whether the denial, revocation or suspension of the license was in accordance with the provisions of this section and shall issue a written finding of facts and an order to carry out its findings. This order and finding of facts shall be served upon all parties.

(c) Revocation of a business license shall automatically terminate any contract with the city pursuant to section 24-209.
(Code 1979, § 2-4018)

Secs. 24-219—24-300. Reserved.

ARTICLE V. PEDICABS

Sec. 24-301. The operation of pedicabs regulated.

(a) City council hereby makes the following findings of fact:

(1) Pedicabs, as hereinafter defined, are by their design and nature, slow moving, and pose a potential danger for those using the vehicles and the streets; and

(2) The unregulated operation of pedicabs on the streets of the city would be detrimental to the safety of the public; and

(3) It is in the public interest, and for the public safety and welfare, that the streets in the city, and the users thereof be protected from unregulated vehicles which hinder travel or which pose dangers or distractions which give rise to accidents and inconvenience; and

(4) City council further finds, for the same reasons, that electric, oil or gasoline powered pedicabs in operation in the city would not be in the public interest.

(Ord. No. 2006-037, 5-24-06)

Sec. 24-302. Definition.

Pedicabs shall be defined as a bicycle or other opened or closed vehicle with three (3) or more wheels operated by one individual for the purpose of, or capable of, transporting passengers in seats or a platform made a part of the pedicab. This definition shall not include a bicycle built for two where the operators are seated one behind the other, nor shall it include the operation of a bicycle with trainer or beginner wheels affixed thereto, nor shall it include a wheelchair or other vehicle with the purpose of operation by or for the transportation of a handicapped person, nor shall it include a tricycle built for a child or an adult with a seat for only one (1) operator and no passenger.

(Ord. No. 2006-037, 5-24-06)

Sec. 24-303. Mechanized power, touring and sightseeing prohibited.

The operation of pedicabs powered in any manner other than the strength of the operator is prohibited in the city.

(Ord. No. 2006-037, 5-24-06)

Sec. 24-304. Certificate of public convenience and necessity required.

No pedicab shall operate in the city without a duly issued certificate of public convenience and necessity and without having paid such fee therefor as city council may, from time to time, establish. The certificate of public convenience and necessity must be permanently affixed to the vehicle in a location approved by the city manager.

(Ord. No. 2006-037, 5-24-06)

Sec. 24-305. Application; inspection.

(a) An applicant for a certificate of public convenience and necessity shall provide the city manager with the following:

(1) Adequate identification of the applicant and the pedicab and proof of ownership;

(2) Factory authorized material setting forth the characteristics of the pedicab, including its dimensions, weight and passenger capacity;

(3) Color photographs not less than 8″ 10″ of all four (4) sides of the pedicab, or in the discretion of the city manager, sketches of a similar make and model, and samples of colors proposed for use on the pedicab;

(4) Adequate proof of liability insurance with policy limits of not less than $300,000.00 per person and $600,000.00 per occurrence.

(5) A franchise fee of $350.00 per year;

(6) After approval, but prior to the issuance, a current City business license.

(Ord. No. 2006-037, 5-24-06)

Sec. 24-306. Transferability.

A certificate of public convenience and necessity required by this division shall be issued on a specific vehicle and for a specific owner and is not transferable except in the event of an absolute sale of a pedicab company, in which case said certificate shall be transferable to the new owner thereof. The certificate remains the property of the city and must be surrendered upon expiration or revocation.

(Ord. No. 2006-037, 5-24-06)

Sec. 24-307. Suspension or revocation.

(a) Failure to abide by the provisions of this chapter or any of the ordinances of the city or laws of the state in any manner affecting or regulating the operation of the vehicle for which the certificate is issued or the failure to maintain the required insurance shall be grounds for the suspension for a reasonable time or the revocation of the certificate of public convenience and necessity issued under this article or a penalty as provided in section 1-5 of the Code of the City of Columbia.

(b) If, in the opinion of the city manager, a certificate of public convenience and necessity should be suspended or revoked, he shall give written notice to the holder thereof, by certified mail, of the right to appear before city council and show cause why the certificate should not be suspended or revoked. No suspension or revocation of a certificate of public convenience and necessity shall take effect until the holder thereof shall have had the opportunity to be heard by city council.

(Ord. No. 2006-037, 5-24-06)

Sec. 24-308. Expiration.

All certificates of appropriateness shall be granted for a period of one (1) year and shall expire on the anniversary of the date of issuance.
(Ord. No. 2006-037, 5-24-06)

Sec. 24-309. Operators.

All operators of pedicabs within the city shall have a valid South Carolina driver's license.
(Ord. No. 2006-037, 5-24-06)

Sec. 24-310. Number of passengers restricted.

No pedicab shall be operated with more than the manufacturer's recommendations for the maximum number of passengers therein.
(Ord. No. 2006-037, 5-24-06)

Sec. 24-311. Lights required.

All pedicabs that operate in the city shall be equipped with front and rear lights as approved by the police department. Operators shall comply with all applicable laws pertaining to the requirements of usage.
(Ord. No. 2006-037, 5-24-06)

Sec. 24-312. Repeated violations.

Repeated violations of any provisions of this article by an owner or operator of a pedicab may result in a forfeiture of the certificate of public convenience and necessity for said vehicle in the discretion of city council.
(Ord. No. 2006-037, 5-24-06)

ARTICLE VI. MOPED RENTALS

Sec. 24-313. Findings.

(a) The primary purpose of the public streets is the use by vehicular, bicycle and pedestrian traffic.

(b) Offering mopeds for rent on the public streets within defined areas promotes the public interest by providing the public with alternative means of transportation within the city, reducing automobile traffic congestion and parking congestion.

(c) Reasonable regulation of moped rentals is necessary to protect the public health, safety and welfare.

(d) The regulations contained in this division do not prohibit free speech but merely regulate activities that are commercial in nature.

(e) The granting of franchises for the use of public streets and the making of charges therefor are authorized by S.C. Code 1976, § 5-7-30, and are subject to such conditions as the city council may impose to protect the public interest, welfare and convenience.
(Ord. No. 2015-068, 9-1-15)

Sec. 24-314. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Moped means a motorized cycle that meets the definition of a moped under state law.

Moped rental means typical practices associated with, and the act of offering mopeds through an unmanned, automated process for short-term rental to the general public by the hour, day, or week, but not to include long-term rental or lease of longer than one (1) week.

Moped rental station means the location within the city right-of-way from which mopeds shall be offered for rental through an unmanned, automated process and for which the rental company is seeking or has obtained a franchise.

Public right-of-way means any area dedicated for public use as a public street, pedestrian way, or other thoroughfare, including but not limited to streets, roadways, parkways, alleys, sidewalks, and pedestrian ways.

Rental company means any person or enterprise engaged in the renting, or offering for rent, of mopeds on the public streets.
(Ord. No. 2015-068, 9-1-15)

Sec. 24-315. Permitted rental mopeds.

No moped shall be offered for rent by a rental company except the mopeds approved for the specific location of the franchise. All mopeds offered for rent under this Division must meet the specifications for a moped under state law, be equipped as required by state law, and must be properly labeled under state law.
(Ord. No. 2015-068, 9-1-15)

Sec. 24-316. Franchise and license required; franchise fee; transfer of franchise.

(a) It shall be unlawful to rent, or offer to rent, a moped within the city right-of-way without first obtaining a franchise and business license therefor.

(b) A nonexclusive franchise for not more than one year may be granted for the operation of each rental location specified by resolution of city council. Notice of availability and nature of franchises shall be given by conspicuously posting at least one notice at the proposed location. At least one such notice shall be visible from each public thoroughfare that is within 100 feet of the proposed location. Such notice shall be posted ten days prior to the public hearing.

(c) An annual franchise fee of $360.00 per moped per location shall be paid in quarterly installments in advance. If the quarterly installment is not paid in full by the tenth day of the following quarter, the franchise shall be immediately revoked. One business license for each franchisee shall be required at the applicable rate pursuant to Article II of this chapter.

(d) A franchise may not be transferred in any manner. Sale of a majority of stock in a corporate franchisee by stockholders listed on the franchise application or sale of a majority interest in a partnership as listed on the franchise application shall be deemed a transfer of the franchise which is prohibited.
(Ord. No. 2015-068, 9-1-15)

Sec. 24-317. Application to business license division for franchise.

The application to the business license division for a moped rental franchise shall include the following information:

(1) The name, home and business address of the applicant, and the name and address of the owner, if other than the applicant, of the moped(s) to be used in the operation of the moped rental business.

(2) The proposed location of the moped rental station for which a franchise is sought.

(3) A description, including all specifications and equipment provided to the renter, and photograph or drawing of the moped proposed to be used.

(4) The names, addresses and percentage of stock owned by shareholders in a corporate applicant, and the percentage interest of each partner in a partnership applicant.

(5) A certificate of public liability insurance with a limit of not less than $1,000,000.00 per occurrence and $2,000,000.00 aggregate.

a. The city shall be named as an additional insured under the public liability insurance policy.

b. Any deductibles must be declared and approved by the city.

c. The insurance policies shall be endorsed to state that coverage shall not be changed or cancelled except after 30 days prior written notice by certified mail has been given to the city of such change or cancellation.

d. Prior to the issuance of a franchise, and at all times while the permit is in effect, the applicant shall maintain on file with the director of parking services a certificate of insurance showing evidence of the required coverage limits and naming the city as additional insured.

e. If the insurance policies issued to the rental company are cancelled for any reason, the franchise is automatically suspended. To reinstate the permit, the rental company shall provide new certificates of insurance to the city.

(6) Proof of insurance for each moped as may be required by state law.

(7) Such other information as the applicant may choose or as may be requested by the city council to demonstrate that the applicant has the financial ability to perform the conditions of a franchise.

(Ord. No. 2015-068, 9-1-15)

Sec. 24-318. Issuance of franchise.

(a) The franchise required by section 24-317 shall be granted by ordinance in accordance with section 2-81, after notice and a public hearing on the issuance of the franchise. Any franchise granted pursuant to this article shall be subject to modification by ordinance at any time deemed necessary by the city council for protection of public interests. Any franchise shall be granted as a privilege and not as a matter of right. Moped rental at any location may be temporarily suspended or relocated by the city manager upon reasonable notice when private or public construction or activities of the city make it unsafe or impractical to allow moped rental.

(b) In determining the acceptability of an application, the city council may consider any factors presented in the application, at a public hearing, or in any staff report or investigation of matters related to the past record and ability of the applicant to perform conditions of this division and the franchise agreement in a manner that serves the public interests.

(c) Not later than 30 days after the filing of a completed application for a rental company's franchise, the applicant shall be notified by the city manager of the date of the public hearing on the issuance or denial of the franchise.

(Ord. No. 2015-068, 9-1-15)

Sec. 24-319. Operating requirements.

(a) The rental company shall only accept mopeds at, and return mopeds to, the approved rental station locations for which it has a franchise. Dimensions of drop-off and return locations and appropriate marking and signage of rental stations shall be determined by the director of parking services. The rental company shall reimburse the city for any and all costs of marking the pavement designating the franchise area.

(b) The rental company shall post in a conspicuous location at the rental station the location number assigned to it by the city. The location number and franchise shall be on file and available for inspection in the office of the business license division.

(c) The rental company shall provide to each renter a safety helmet appropriate for the use on a moped.

(d) The rental company shall offer to rent only those mopeds that are in all respects in good operating condition and fully equipped as required by state and federal law.

(e) The rental company shall not authorize the renter of a moped to permit another person to operate the moped, unless the person is also listed as a renter and has complied with the provisions of this division.

(f) The rental company shall be responsible for paying all citations, fees and fines, including any towing costs and associated storage fees, incurred by its rental mopeds. The city shall send to the rental company every week a list of citations, fees and/or fines incurred by its rental mopeds. The rental company shall pay all such citations, fees and fines within seven days after receipt of the list of citations, fees and fines incurred by its rental mopeds.
(Ord. No. 2015-068, 9-1-15)

Sec. 24-320. Evidence of compliance with fire regulations.

A certificate of inspection or compliance as required by applicable fire code shall be provided to the parking services director prior to commencement of operations under the franchise.
(Ord. No. 2015-068, 9-1-15)

Sec. 24-321. Prohibited conduct.

A rental company shall not:

(1) Operate on any street or sidewalk where such operations are otherwise prohibited or not expressly authorized.

(2) Use on-street parking spaces or sidewalks or obstruct any pedestrian walkways for moped rental or storage.

(3) Park any moped upon private property without written authorization by the property owner or an authorized agent of the property owner.

(4) Park more mopeds at a particular moped rental station than is allowed under the franchise.

(5) Allow any items relating to the operation of the rental station to be placed anywhere other than in the franchised area.

(6) Set up, maintain or permit the use of any table, crate, carton, rack or other device to increase the selling or display capacity of his business.

(7) Solicit or conduct business with persons in motor vehicles.

(8) Sell or rent anything other than that for which a franchise has been granted.

(9) Sound or permit the sounding of any device which produces a loud and raucous noise, or use or operate any loudspeaker, public address system, radio, sound amplifier or similar device to attract the attention of the public.

(10) Conduct rental services without the insurance coverage specified in section 24-317.

(11) Allow the stand or any other item relating to the operation of the rental business to lean against or hang from any building or other structure lawfully placed on public property, without the owner's permission.

(Ord. No. 2015-068, 9-1-15)

Sec. 24-322. Advertising.

No advertising shall be permitted on any moped or at any moped rental station except to identify the name and contact information of the franchise holder, except as permitted by section 12-18.
(Ord. No. 2015-068, 9-1-15)

Sec. 24-323. Renewal of franchise.

All franchises granted under this division are valid for the entire franchise period unless revoked or suspended prior to expiration. An application to renew a franchise shall be made not later than 60 days before the expiration of the current franchise.
(Ord. No. 2015-068, 9-1-15)

Sec. 24-324. Denial, suspension or revocation of franchise.

Any franchise granted under this division may be denied, suspended or revoked by the city council for any of the following reasons:

(1) Fraud or misrepresentation contained in the application for a franchise.

(2) Fraud or misrepresentation made in the course of carrying on the business of vending.

(3) Conduct of the franchised business in such manner as to create a public nuisance or constitute a danger to the public health, safety, welfare or morals.

(4) Conduct which is contrary to the provisions of this division or the franchise.

(5) Failure to use the franchise fully in accordance with its terms within 90 days after notice of the grant of franchise, or within 15 days after notice of non-use, during the term of the franchise.

(6) Failure to qualify for a business license or determination that any condition in section 11-44 or 11-45 exists.

(7) A determination that the applicant is not able or qualified, by reason of background, medical limitations, financial condition or conditions related to the rental business, to render acceptable service to the public pursuant to this division.

(8) A determination that a more qualified applicant for the same location will accept a franchise.

(9) A determination that no franchise should be granted to any applicant and that a location should be removed from the approved franchise list.

(10) Failure of franchisee to pay in full the quarterly franchise fee installment by the tenth day of the following quarter.

(Ord. No. 2015-068, 9-1-15)

Sec. 24-325. Indemnification.

The franchisee agrees to indemnify, hold harmless, release and defend (even if the allegations are false, fraudulent, or groundless), the city, its officers and employees, from any and all liability, loss, suits, claims, damages, costs, judgments, and expenses (including attorney's fees and costs of litigation) which in whole or in part result from, or arise out of:

(1) Any act or omission of its employees;

(2) The operations of the franchisee;

(3) Any condition of property used in the operation of the franchise; or

(4) Any acts, errors, or omissions of the franchisee.

(Ord. No. 2015-068, 9-1-15)

Sec. 24-326. Conformance with applicable laws.

Nothing in this article authorizes or is intended to authorize the parking and/or operation of a moped in a manner contrary to applicable laws of the State of South Carolina and parking and traffic regulations of the city.

(Ord. No. 2015-068, 9-1-15)

CODE COMPARATIVE TABLE

1979 CODE

This table gives the location within this Code of those sections of the 1979 Code, as updated through August 1993, which are included herein. Sections of the 1979 Code, as supplemented, not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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*__Note—__The adoption, amendment, repeal, omissions, effective date, explanation of numbering system and other matters pertaining to the use, construction and interpretation of this Code are contained in the adopting ordinance and preface which are to be found in the preliminary pages of this volume.

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